SUPPLEMENT NO. 115
September 2026

CODE OF ORDINANCES

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 2026-092, enacted May 26, 2026.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxiv	xiii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:11, SH:12	SH:11, SH:12
61—66.3	61—66.12
96.1—96.4	96.1—96.4
1153—1156.4	1153—1156.3
1163—1174.3	1163—1174.10
1205—1206.2	1205—1206.3
1217—1220.7	1217—1220.8
1251, 1252	1251—1252.1
3045	3045
3065	3065
3113—3196	3113—3196

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SUPPLEMENT NO. 114
April 2026

CODE OF ORDINANCES

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 2026-012, enacted January 27, 2026.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxiv	xiii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:11	SH:11, SH:12
1691—1694	1691—1694.1
3045	3045

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SUPPLEMENT NO. 113
February 2026

CODE OF ORDINANCES

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 2025-189, enacted December 16, 2025.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxiv	xiii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:11	SH:11
61—62.8	61—62.8
98.4.2.17—100.6	99—100.10
133—138	133—138.3
265—268	265—268
3043, 3044	3043—3045
3113—3196	3113—3196

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SUPPLEMENT NO. 112
October 2025

CODE OF ORDINANCES

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 2025-115, enacted September 9, 2025.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxiv	xiii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:11	SH:11
257—276	257—288
693	693
1305—1306.2	1305—1306.2
1315—1318.4	1315—1318.15
1385, 1386	1385, 1386
1393—1396.3	1393—1396.3
3043	3043, 3044
3063—3065	3063—3065
3113—3197	3113—3196

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SUPPLEMENT NO. 111
August 2025

CODE OF ORDINANCES

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 2025-090, enacted June 17, 2025.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxiv	xiii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:11	SH:11
1156.5—1158.2	1157—1158.5
1305—1306.2	1305—1306.2
1322.3—1322.6	1322.3—1322.10
1392.5—1396.1	1393—1396.3
1671—1672.2	1671—1672.2
1732.1—1746.8	1733—1746.8
1961—1966	1961—1966.5
1983—1986	1983—1986
3043	3043
3063—3066	3063—3065
3113—3197	3113—3197

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SUPPLEMENT NO. 110
June 2025

CODE OF ORDINANCES

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 2025-053, enacted March 25, 2025.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxiv	xiii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:11	SH:11
62.7	62.7, 62.8
70.1—70.3	70.1—70.3
90.3—90.11	90.3—90.11
98.4.2.3, 98.4.2.4	98.4.2.3, 98.4.2.4
116.11—140	117—149
393, 394	393, 394
1075—1078	1075—1078
1169—1170.6	1169—1170.6
1220.1—1220.7	1220.1—1220.7
1249—1254	1249—1257
1447—1459	1447—1462
1747—1760	1747—1772
3041, 3042	3041—3043
3113—3197	3113—3197

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SUPPLEMENT NO. 109
February 2025

CODE OF ORDINANCES

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 2024-178, enacted November 26, 2024.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxiv	xiii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:11	SH:11
61—62.7	61—62.7
94.1—96	95—96.4
99—100.7	99—100.6
392.1—400	393—401
3041, 3042	3041, 3042
3113—3196	3113—3197

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SUPPLEMENT NO. 108
October 2024

CODE OF ORDINANCES

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 2024-149, enacted September 10, 2024.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxiv	xiii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9, SH:10	SH:9—SH:11
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90.7—90.13	90.7—90.11
1153—1156.3	1153—1156.4
1166.1, 1166.2	1166.1, 1166.2
1174.1, 1174.2	1174.1—1174.3
1196.1—1196.3	1196.1—1196.4
1716.3—1724.1	1717—1724.5
3041, 3042	3041, 3042
3063—3066	3063—3066
3113—3196	3113—3196

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SUPPLEMENT NO. 107
August 2024

CODE OF ORDINANCES

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 2024-080, enacted May 28, 2024.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxiv	xiii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9, SH:10	SH:9, SH:10
61—62.7	61—62.7
70.1, 70.2	70.1—70.3
82.1—90.5	83—90.13
125—128.2	125—128.2
689—691	689—693
1153—1156	1153—1156.7
1176.3—1181	1176.3—1181
1213—1220.7	1213—1220.7
1385—1392.3	1385—1392.6
1957—1964	1957—1964.5
1983—1986	1983—1986
3041, 3042	3041, 3042
3063—3066	3063—3066
3113—3197	3113—3196

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SUPPLEMENT NO. 106
May 2024

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 2024-026, enacted February 27, 2024.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxiv	xiii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9, SH:10	SH:9, SH:10
65—66.3	65—66.3
116.9—116.12	116.9—116.16
387—388.2	387—388.1
397—402.4	397—400
423, 424	423—424.1
889—894	889—895
3041, 3042	3041, 3042
3063—3066	3063—3066
3113—3197	3113—3197

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February 2024

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 2023-237, enacted November 28, 2023.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxiv	xiii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9, SH:10	SH:9, SH:10
94.1—94.4	94.1—94.4
99—100.7	99—100.7
1306.3—1306.6	1306.3—1306.6
3041, 3042	3041, 3042

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SUPPLEMENT NO. 104
November 2023

CODE

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 2023-106, enacted May 23, 2023.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxiv	xiii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9, SH:10	SH:9, SH:10
62.3—62.6.1	62.3—62.7
98.4.6.3—99	99—100.7
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1305—1306.2	1305—1306.6
1314.4.1—1316.2	1315—1316.15
1321—1322.6	1321—1322.6
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3063—3066	3063—3066
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SUPPLEMENT NO. 103
July 2023

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 2023-071, enacted April 11, 2023.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Title page	Title page
xiii—xxiv	xiii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9	SH:9, SH:10
61, 62	61, 62
66.1, 66.2	66.1—66.3
71—82.2	70.1—82.1
98.1—98.4	98.1—98.3
98.4.5—98.4.6.3	98.4.5—98.4.6.3
387—388.2	387—388.2
395—402	395—402.4
421—427	421—433
739—745	739
795, 796	795—796.2
801—804	801—804.1
871, 872	871, 872
933, 934	933—934.2
1043—1044.2	1043—1044.2
1079—1092	1079—1090

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1174.1, 1174.2	1174.1, 1174.2
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1306.3—1308	1307—1308.3
1314.3, 1314.4	1314.3—1314.4.1
1503—1508	1503
1671—1672.2	1671—1672.2
1715, 1716	1714.1—1715
1716.5—1718	1717—1718.3
1723, 1724	1723—1724.1
1809—1842	1809—1842.5
1850.5—1853	1851—1867
1889, 1890	1889, 1890
3039, 3040	3039—3041
3063—3065	3063—3066
3113, 3114	3113—3114.1
3119—3122.1	3119—3122
3129—3136	3129—3136
3140.01—3150.1	3141—3150.3
3154.1—3156	3155—3156.1
3161—3170.2	3161—3170.3
3175—3179	3175—3179

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SUPPLEMENT NO. 101
November 2021

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 2021-149, enacted October 26, 2021.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii, xiv	xiii, xiv
xix—xxiv	xix—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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1170.3, 1170.4	1170.3—1170.4.1
1212.1—1220.6	1213—1220.7
1395, 1396	1395—1396.1
1754.5—1754.9	1754.5—1754.9
1810.1—1812.2	1811—1812.1
	1812.3—1812.7
1843, 1844	1843—1844.1
1848.1—1850.2	1849—1850.18
3039	3039
3063—3065	3063—3065
3123, 3124	3123—3124.1
3135—3139.1	3135—3140.01

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3149—3150.1	3149—3150.1
3165, 3166	3165, 3166
3177, 3178	3177—3178.1
3183—3184.1	3183—3184.1

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SUPPLEMENT NO. 99
June 2021

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 2021-059, enacted April 27, 2021

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii--xiv.i	xiii—xiv.i
xxiii, xxiv	xxiii, xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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69—70.1	69—70.2
98.4.5—98.4.7	98.4.5—98.4.10
1890.1, 1890.2	1890.1, 1890.2
1911—1912.4	1911—1912.4.1
3039	3039
3125—3136.1	3125—3136
3187—3190.1	3187—3190.1

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SUPPLEMENT NO. 98
March 2021

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 2021-008, enacted January 26, 2021

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xxi—xxiv	xxi—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7, ,SH:8	SH:7, SH:8
62.6.1	62.6.1
137—140	137—140
1312.1—1314	1312.1—1314
1395, 1396	1395, 1396
1671, 1672	1671—1672.4
1716.5, 1716.6	1716.5—1716.7
1723—1724.1	1723, 1724
1731, 1732	1731, 1732
1746.5	1746.5—1746.8
1890.1—1890.3	1890.1—1890.3
1912.7	1912.7, 1912.8
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3161—3162.2	3161—3162.2
3169—3170.2	3169—3170.2
3186.1—3188	3187—3188.1

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SUPPLEMENT NO. 97
October 2020

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 2020-124, enacted September 8, 2020.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii, xiv	xiii—xiv.i
xix, xx	xix, xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7	SH:7, SH:8
62.3—62.4.1	62.3—62.4.1
98.4.3, 98.4.4	98.4.3—98.4.7
1205—1206.2	1205—1206.2
1447—1448.1	1447—1448.3
1455—1458	1455—1459
1847—1848.2	1847—1848.2.1
1848.9, 1848.10	1848.9—1848.10.1
3037, 3038	3037, 3038
3123, 3124	3123, 3124
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3145—3146.1	3145—3146.1
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SUPPLEMENT NO. 96
September 2020

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 2020-53, enacted April 28, 2020.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5—SH:7	SH:5—SH:7
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3037, 3038	3037, 3038

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SUPPLEMENT NO. 95
July 2020

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 2020-053, enacted April 28, 2020.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:7	SH:7
1967—1970	1967—1970.1
3037, 3038	3037, 3038

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SUPPLEMENT NO. 94
April 2020

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 2020-037, enacted March 10, 2020.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xix, xx	xix, xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5—SH:7
65—66.2	65—66.2
79—80.1	79—80.1
116.11, 116.12	116.11, 116.12
1306.1—1306.3	1306.1—1306.4
1314.9—1315	1314.9—1315
1723—1732	1723—1732.1
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SUPPLEMENT NO. 93
March 2020

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 2019-111, enacted November 12, 2019.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5, SH:6
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3037, 3038	3037, 3038
3065	3065
3181—3184	3181—3184

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SUPPLEMENT NO. 92
November 2019

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 2019-101, enacted October 8, 2019.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii, xiv	xiii, xiv
xxi, xxii	xxi, xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5, SH:6
94.1, 94.2	94.1—94.2.1
891, 892	891—892.1
1165—1166.2	1165—1166.2
1716.1—1716.6	1716.1—1716.6
1812.1, 1812.2	1812.1, 1812.2
1824.1, 1824.2	1824.1, 1824.2
1848.2.1—1848.4	1848.3—1848.4.1
1848.8.1—1848.10	1848.9—1848.12
3037, 3038	3037, 3038
3065	3065

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SUPPLEMENT NO. 91
July 2019

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 2019-064, enacted July 16, 2019.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii, xiv	xiii, xiv
xix, xx	xix, xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5, SH:6
62.3—62.4.1	62.3—62.4.1
69, 70	69—70.1
90.3—90.5	90.3—90.5
116.9, 116.10	116.9—116.10.3
1177—1182	1176.1—1181
1391, 1392	1391, 1392
1685, 1686	1685—1686.1
3037	3037, 3038
3065	3065
3137, 3138	3137, 3138
3185—3186.1	3185—3186.1

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SUPPLEMENT NO. 90
April 2019

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 2019-027, enacted April 9, 2019.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xxi—xxiv	xxi—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5, SH:6
1049—1054	1049—1054.1
1065—1070	1065—1070
1754.5—1754.9	1754.5—1754.9
1817—1820	1817—1820
1841—1848.2	1841—1848.2.1
1848.8.1, 1848.8.2	1848.8.1, 1848.8.2
1848.11—1850	1849—1850.2
3037	3037

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SUPPLEMENT NO. 89
February 2019

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 2019-001, enacted January 8, 2019.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxiv	xiii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5, SH:6
62.6.1	62.6.1
75—80	75—80.1
98.4.5—98.6	98.5—98.7
109—110.1	109—110.1
139	139, 140
871, 872	871—872.2
885, 886	885—894
1305—1306.2	1305—1306.3
1681—1716	1681—1716.6
1723, 1724	1723—1724.1
1731—1746.3	1731—1746.5
3035, 3036	3035—3037
3140.1	3140.1
3153, 3154	3153—3154.1
3167—1368.2	3167—3168.3

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SUPPLEMENT NO. 88
October 2018

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 2018-126, enacted September 25, 2018.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxiv	xiii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
62.3—62.4.1	62.3—62.4.1
98.1—98.2.2	98.1—98.2.1
116.9—116.10.2	116.9, 116.10
1044.1, 1044.2	1044.1, 1044.2
1091, 1092	1091—1100.6
1163—1166	1163—1166.3
1321—1322.5	1321—1322.6
1336.1	1336.1, 1336.2
3035, 3036	3035, 3036
3063—3065	3063—3065
3127—3140.1	3127—3140.1
3163, 3164	3163—3164.1
3183—3184.1	3183—3184.1

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SUPPLEMENT NO. 87
July 2018

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 2018-089, enacted July 17, 2018.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xvii—xx	xvii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
1186.1—1190	1187—1190.12
1334.1—1336	1335—1336.1
3035, 3036	3035, 3036
3138.1—3140	3139—3140.1
3157—3158.1	3157—3158.1

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SUPPLEMENT NO. 86
June 2018

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 2018-061, enacted May 8, 2018.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii, xiv	xiii, xiv
xix—xxii	xix—xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
62.1, 62.2	62.1, 62.2
92.1—94.2	93—94.4
1327—1328.4	1327—1328.4.1
1754.5, 1754.6	1754.5—1754.9
3035, 3036	3035, 3036
3121—3122.1	3121—3122.1
3131, 3132	3131, 3132
3141, 3142	3141, 3142
3153, 3154	3153, 3154
3156.1—3158	3157—3158.1
3165—3166.1	3165—3166.1
3171, 3172	3171—3172.1
3191, 3192	3191, 3192

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SUPPLEMENT NO. 85
March 2018

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 2016-150, enacted November 22, 2016.

The Code is up to date through:

Ordinance No. 2017-155, enacted December 19, 2017.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii, xiv	xiii—xiv.i
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
62.3, 62.4	62.3—62.4.1
98.3—98.4.2	98.3—98.4.5
1205—1206.2	1205—1206.2
3035, 3036	3035, 3036
3131—3132.1	3131—3132.1
3141—3146	3141—3146.1

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March 2018

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time to include:

Ordinance No. 2016-149, enacted November 22, 2016.

The Code is up to date through:

Ordinance No. 2017-155, enacted December 19, 2017.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
1985, 1986	1985, 1986
3035, 3036	3035, 3036

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SUPPLEMENT NO. 83
February 2018

CODE

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CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:
`

Ordinance No. 2017-155, enacted December 19, 2017.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiv.i—xviii	xv—xviii
xxi, xxii	xxi, xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
397—400.6	397—400.6
421—424	421—424
743—745	743—745
803—807	803—807
1175—1182.2	1175—1182.7
1188.3—1188.6	1188.3—1188.6
1503—1506	1503—1506.1
1848.2.1—1848.8	1848.3—1848.8.2
3035	3035, 3036
3133—3138	3133—3138.1
3147—3148.1	3147—3148.1
3185, 3186	3185—3186.1

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SUPPLEMENT NO. 82
October 2017

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:
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Ordinance No. 2017-112, enacted September 13, 2017.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xxi, xxii	xxi, xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
95—98.2	95—98.1
1330.1, 1330.2	1330.1—1330.3
1671—1692	1671—1692.5
1839—1846	1839—1846.1
1848.11, 1848.12	1848.11, 1848.12
3035	3035
3168.1—3170	3168.1—3169

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SUPPLEMENT NO. 81
July 2017

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City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:
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Ordinance No. 2017-061, enacted May 30, 2017.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii, xiv	xiii—xiv.i
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents) SH:5
62.1—62.6.1	62.1—62.6.1
95—97	94.1—97
98.3, 98.4	98.3—98.4.2
3035	3035
3117, 3118	3117, 3118
3127—3132	3127—3132.1

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SUPPLEMENT NO. 80
May 2017

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:
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Ordinance No. 2017-034, enacted March 28, 2017.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
883—886	883—886
1848.3—1848.8	1848.3—1848.8
3035	3035
3139, 3140	3139, 3140

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SUPPLEMENT NO. 79
March 2017

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2017-009, enacted January 24, 2017.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii, xiv	xiii, xiv
xvii, xviii	xvii, xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
62.1, 62.2	62.1, 62.2
89—90.1	89—90.5
1186.5—1188.1	1187—1188.6
1249—1250.1	1249—1250.1
3035	3035
3129, 3130	3129, 3130

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SUPPLEMENT NO. 78
November 2016

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2016-117, enacted September 27, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xvii, xviii	xvii, xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
65, 66	65—66.2
98.2.1—98.2.2.2	98.2.1—98.2.2.2
1043, 1044	1043—1044.3
1089, 1090	1089—1092
3035	3035
3145, 3146	3145, 3146

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SUPPLEMENT NO. 77
August 2016

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2016-076, enacted June 21, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxiv	xiii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
62.3—62.6	62.3—62.6.1
98.2.1, 98.2.2	98.2.1—98.2.2.2
137	137—139
1049—1058	1049—1058.1
1065—1070	1065—1070.1
1811—1812.2	1811—1812.2
1817, 1818	1817, 1818
1829—1848.2	1829—1848.2.2
1848.7, 1848.8	1848.7, 1848.8
3033, 3034	3033—3035
3131, 3132	3131, 3132
3155, 3156	3155—3156.1
3161—3162.2	3161—3162.2
3191, 3192	3191, 3192

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SUPPLEMENT NO. 76
June 2016

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2016-054, enacted April 26, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Title page	Title page
xvii, xviii	xvii, xviii
xxi, xxii	xxi, xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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1186.7—1188	1187—1188.1
1209—1212	1209—1212.1
1809, 1810	1809, 1810
1810.3—1812.1	1811—1812.2
1819—1824	1819—1824.2
1849, 1850	1849, 1850
3033, 3034	3033, 3034
3177, 3178	3177, 3178

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SUPPLEMENT NO. 75
February 2016

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2016-015, enacted January 26, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxiii	xiii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
61, 62	61—62.6
	62.7
67—82.2.3	67—82.2.3
87—88.1	87—88.1
97, 98	96.1—97
133	133—137
1732.1—1738	1733—1738.2
1809, 1810	1809—1810.4
1817—1822.2	1817—1822.3
1826.1—1834	1827—1834.2
1839—1848.1	1839—1848.12
1889—1890.1	1889—1890.3
	1890.5, 1890.6
1912.7	1912.7
3033	3033, 3034
3131, 3132	3131, 3132
3147—3148.1	3147—3148.1

Remove Old Pages	*Insert New Pages*
3155, 3156	3155, 3156
3177—3180.1	3177—3179
3189—3190.1	3189—3190.1

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February 2016

CODE

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2016-015, enacted January 26, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxiii	xiii—xxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
61, 62	61—62.6
	62.7
67—82.2.3	67—82.2.3
87—88.1	87—88.1
97, 98	96.1—97
133	133—137
1732.1—1738	1733—1738.2
1809, 1810	1809—1810.4
1817—1822.2	1817—1822.3
1826.1—1834	1827—1834.2
1839—1848.1	1839—1848.12
1889—1890.1	1889—1890.3
	1890.5, 1890.6
1912.7	1912.7
3033	3033, 3034
3131, 3132	3131, 3132
3147—3148.1	3147—3148.1

Remove Old Pages	*Insert New Pages*
3155, 3156	3155, 3156
3177—3180.1	3177—3179
3189—3190.1	3189—3190.1

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SUPPLEMENT NO. 74
October 2015

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2015-134, enacted September 22, 2015.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxiii	xiii—xxiii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
113—116	112.1—115
116.9, 116.10	116.8.1—116.9
391, 392	391—392.1
395, 396	395, 396
1051—1056	1051—1056.1
1069—1072.2	1069—1072.2.1
1156.1—1158	1157—1158.2
1186.1, 1186.2	1186.1, 1186.2
1186.7	1186.7
1229—1233	1229—1233
1389—1392	1389—1392.1
1399, 1400	1399, 1400
3033	3033
3113, 3114	3113, 3114
3139, 3140	3139, 3140
3165—3166.1	3165—3166.1
3183, 3184	3183—3184.1

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SUPPLEMENT NO. 73
July 2015

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2015-050, adopted May 12, 2015.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xxiii	xxiii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3, SH:4
63—66	63—66
689—690.1	689—690.1
1957—1994	1957—1986
3031, 3032	3031—3033
3063—3065	3063—3065
3145—3148	3145—3148
3175—3178.1	3175—3177
3189, 3190	3189—3190.1

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SUPPLEMENT NO. 72
April 2015

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2015-027, adopted March 24, 2015.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
263—264.1	263—264.1
339	339
1993, 1994	1993, 1994
3031, 3032	3031, 3032

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SUPPLEMENT NO. 71
November 2014

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2014-135, adopted October 14, 2014.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xvii—xxii	xvii—xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
1166.1—1170	1167—1170.6
1183—1186	1183—1186
1186.7	1186.7
1711—1716	1711—1716
1723—1732	1723—1732.1
1757—1760	1757—1760
3031, 3032	3031, 3032
3063—3065	3063—3065

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SUPPLEMENT NO. 70
August 2014

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2014-101, adopted July 15, 2014.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxiii	xiii—xxiii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
117, 118	117—118.1
1153, 1154	1153, 1154
1162.1—1164	1163—1164.2
1166.3—1168	1167—1168.4
1447, 1448	1447, 1448
3031, 3032	3031, 3032
3149—3150.1	3149—3150.1

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SUPPLEMENT NO. 69
May 2014

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2014-43, adopted March 25, 2014.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xvii—xxiii	xvii—xxiii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
1043—1072	1043—1072.4
1079—1089	1079—1090
1163—1166	1162.1—1166
1227—1233	1227—1233
1321—1322.2	1321—1322.5
1968.3, 1968.4	1968.3, 1968.4
3031, 3032	3031, 3032
3123, 3124	3123, 3124
3139, 3140	3139, 3140
3147—3148.1	3147—3148.1
3153—3162	3153—3162.2
3171—3174	3171—3174
3183—3192	3183—3192

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SUPPLEMENT NO. 68
February 2014

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2014-15, adopted January 30, 2014.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii, xiv	xiii, xiv
xvii—xx	xvii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
61, 62	61, 62
99, 100	99
121—128	121—128.2
151—154	151—154
875, 876	875, 876
1164.1—1166	1165—1166.4
1173, 1174	1173—1174.2
1309—1312.2	1309—1312.2.1
1395—1398	1395—1398
1957, 1958	1957—1958.1
1975—1978	1975—1978.1
1991, 1992	1991, 1992
3031	3031, 3032
3119, 3120	3119, 3120
3135, 3136	3135, 3136
3149, 3150	3149—3150.1

Remove Old Pages	*Insert New Pages*
3154.1—3158	3154.1—3158
3187—3190	3187—3190

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SUPPLEMENT NO. 67
September 2013

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2013-73, adopted August 21, 2013.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xxi—xxiii	xxi—xxiii
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
SH:1, SH:2	SH:1—SH:3
689—690.1	689—690.1
1183—1186.9	1183—1186.7
1991, 1992	1991—1994
3031	3031
3177, 3178	3177—3178.1

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SUPPLEMENT NO. 66
July 2013

CODE

City of

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Looseleaf Supplement

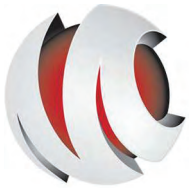
This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2013-55, adopted May 28, 2013.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Title page	Title page
xvii—xxiii	xvii—xxiii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
1043, 1044	1043—1044.1
1077, 1078	1077—1089
1187, 1188	1187, 1188
1957, 1958	1957, 1958
1963—1968	1963—1968.4
1987—1993	1987—1992
3031	3031
3113, 3114	3113, 3114
3131, 3132	3131, 3132
3135, 3136	3135—3136.1
3145—3148	3145—3148.1
3151, 3152	3151—352.1
3185—3186.1	3185—3186.1
3189, 3190	3189—3190.1

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SUPPLEMENT NO. 65
April 2013

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2013-35, adopted March 12, 2013.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xvii, xviii	xvii, xviii
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
872.1—874	873—874.3
1163, 1164	1163—1164.2
3031	3031
3141—3142.1	3141—3142.1
3165, 3166	3165, 3166
3185, 3186	3185, 3186

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SUPPLEMENT NO. 64
March 2013

CODE

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CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

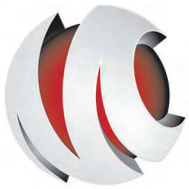
This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2013-13, adopted January 22, 2013.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxiii	xiii—xxiii
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
98.2.1, 98.2.2	98.2.1, 98.2.2
265, 266	265, 266
1321—1322.1	1321—1322.2
1326.9—1328	1327—1328.7
1839, 1840	1839—1840.1
1848.1	1848.1
3031	3031
3113, 3114	3113, 3114
3121, 3122	3121—3122.1
3140.1—3142	3141—3142.1
3153, 3154	3153—3154.2
3165—3166.1	3165—3166.1

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SUPPLEMENT NO. 63
October 2012

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2012-376, adopted September 25, 2012.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xvii, xviii	xvii, xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
1153, 1154	1153, 1154
1166.1—1173	1167—1174
1753—1754.6	1753—1754.6
3031	3031
3145—3148	3145—3148
3171, 3172	3171—3172.1
3183, 3184	3183, 3184

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September 2012

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2012-240, adopted May 8, 2012.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xvii—xxiii	xvii—xxiii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
87, 88	87, 88
1043, 1044	1043, 1044
1071	1071—1078
1249—1250.1	1249—1250.1
3031	3031
3145—3152	3145—3152

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SUPPLEMENT NO. 61
May 2012

CODE

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2012-91, adopted March 19, 2012.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii, xiv	xiii, xiv
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
66.1—82.2.2	67—82.2.3
1229—1233	1229—1233
1959—1962	1959—1962
3029—3031	3029—3031
3125—3130	3125—3130

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SUPPLEMENT NO. 45, REVISION
March 2012

CODE

City of

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Looseleaf Supplement

This Supplement No. 45, Revision, is printed to revise pages in Supplement No. 45 and should be inserted as directed below.

Remove Old Pages	*Insert New Pages*
1326.1, 1326.2	1326.1, 1326.2
1326.9, 1326.10	1326.9, 1326.10
3025, 3026	3025, 3026

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SUPPLEMENT NO. 60
February 2012

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2012-32, adopted January 10, 2012.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
1183—1186	1182.1—1185
1186.7, 1186.8	1186.7, 1186.8
1333, 1334	1333—1334.1
	3031

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SUPPLEMENT NO. 59
November 2011

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2011-136, adopted September 13, 2011.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xxi—xxiii	xxi—xxiii
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
SH:1	SH:1, SH:2
1809, 1810	1809, 1810
1844.1—1846	1845—1846.9
1849, 1850	1849—1853
3029, 3030	3029, 3030
3167, 3168	3167—3168.1
3179, 3180	3179—3180.1

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SUPPLEMENT NO. 58
September 2011

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2011-53, adopted July 19, 2011.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xix—xxiii	xix—xxiii
Checklist of Up-to-Date Pages	Checklist of Up-to-Date Pages (following Table of Contents)
SH:1	SH:1
11, 12	11, 12
689—690.1	689—690.1
881, 882	881, 882
1065—1070	1065—1071
1305—1306.3	1305—1306.2
1335, 1336	1335—1345
3029, 3030	3029, 3030
3151, 3152	3151, 3152
3163—3166	3163—3166.1
3177, 3178	3177, 3178
3185, 3186	3185—3186.1

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SUPPLEMENT NO. 57
May 2011

CODE

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2011-30, adopted April 12, 2011.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xvii, xviii	xvii, xviii
xxi, xxii	xxi, xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1	SH:1 (following Checklist of up-to-date pages)
689, 690	689—690.1
879—882	879—882
1153, 1154	1153, 1154
1171—1174.1	1171—1173
1213—1220.1	1213—1220.6
1957—1994	1957—1993
3029	3029, 3030
3113, 3114	3113, 3114
3119, 3120	3119, 3120
3127, 3128	3127, 3128
3145—3150	3145—3150
3157—3162.1	3157—3162
3167, 3168	3167, 3168
3175—3194	3175—3192

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SUPPLEMENT NO. 56
March 2011

CODE

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2010-272, adopted December 21, 2010.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xviii	xiii—xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents) SH:1 (following Checklist of up-to-date pages)
65, 66	65—66.1
127, 128	127, 128
1153, 1154	1153, 1154
1163, 1164	1163, 1164
1186.7, 1186.8	1186.7—1186.9
1227	1227—1233
1312.1—1314	1312.1—1314
1747—1748.1	1747—1748.1
1975—1978	1975—1978
2991	2991***
3029	3029
3121, 3122	3121, 3122
3139, 3140	3139—3140.1
3147, 3148	3147, 3148
3153, 3154	3153, 3154
3161, 3162	3161—3162.1
3175, 3176	3175—3176.1

Remove Old Pages	*Insert New Pages*
3187, 3188	3187—3188.1

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SUPPLEMENT NO. 55
October 2010

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2010-232, adopted September 28, 2010.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xxii	xiii—xxiii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
61, 62	61, 62
67, 68	67, 68
77, 78	77—78.1
81—82.2	81—82.2
89, 90	89—90.1
98.3, 98.4	98.2.1—98.4
387, 388	387, 388
400.7—416	401—414
797, 798	797—798.2
1049—1052	1049—1052
1059, 1060	1059—1060.1
1163—1166.3	1163—1166.3
1176.1, 1176.2	1176.1, 1176.2
1184.1, 1184.2	1184.1—1184.3
1186.5—1186.8	1186.5—1186.8
1312.1—1313	1312.1—1314
1385—1397	1385—1402
1753—1754.5	1753—1754.6

Remove Old Pages	*Insert New Pages*
1825, 1826	1825, 1826
1839—1842.1	1839—1842.1
1847, 1848	1847—1848.1
1889, 1890	1889, 1890
1893—1896	1893—1895
1912.5, 1912.6	1912.5—1912.7
1957, 1958	1957, 1958
1973—1978	1973—1978.1
3027, 3028	3027—3029
3063—3065	3063—3065
3113—3190	3113—3194

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SUPPLEMENT NO. 54
May 2010

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2010-38, adopted March 9, 2010.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii, xiv	xiii—xiv.i
Checklist of up-to-date pages	Checklist of up-to-date pages
61, 62	(following Table of Contents)
	61, 62
67—82.2	67—82.2.2
87, 88	87—88.1
127—130	127—130
1311—1312.2.1	1311—1312.2.1
3025—3028	3025—3028
3113, 3114	3113, 3114
3119—3120.1	3119, 3120
3125—3130	3125—3130
3151—3152.1	3151—3152.1

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SUPPLEMENT NO. 53
December 2009

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2009-240, enacted November 24, 2009.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xv—xviii	xv—xviii.i
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
257, 258	257—258.1
267—272.2	267—272.4
689, 690	689, 690
883—885	883—886
985—994	985—998
1162.1—1166	1163—1166.3
1176.1—1179	1176.1—1179
3027	3027, 3028
3113—3116	3113—3116
3131, 3132	3131, 3132
3145—3146.1	3145—3146.1
3161, 3162	3161—3162.1
3178.1—3182	3179—3182.1

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SUPPLEMENT NO. 52
July 2009

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2009-62, enacted April 28, 2009.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xix, xx	xix, xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
1177—1180	1176.1—1179
1447—1448.1	1447—1448.1
1811, 1812	1811, 1812
1825, 1826	1825, 1826
3027	3027
3129, 3130	3129, 3130
3159, 3160	3159, 3160
3173, 3174	3173—3174.1
3183, 3184	3183, 3184

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SUPPLEMENT NO. 51
May 2009

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2009-31, enacted February 24, 2009.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xv—xviii	xv—xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
259, 260	259, 260
271—272.1	271—272.2
1219, 1220	1219, 1220
1305—1306.2	1305—1306.3
1314.5—1315	1314.5—1315
3027	3027
3065	3065
3113, 3114	3113, 3114
3119, 3120	3119—3120.1
3150.1—3152	3151—3152.1

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SUPPLEMENT NO. 50
December 2008

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2008-150, enacted November 25, 2008.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xvii—xx	xvii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
1317—1318.2	1317—1318.1
1746.1—1746.3	1746.1—1746.3
1751—1754.4	1751—1754.5
1991—1994	1991—1994
3027	3027
3141	3141
3145, 3146	3145—3146.1
3169—3170.1	3169—3170.1

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SUPPLEMENT NO. 49
November 2008

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2008-121, enacted September 9, 2008.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
882.1—885	883—885
1049—1052	1049—1052.1
1061, 1062	1061—1062.1
1201—1206.2	1201—1206.2
1683, 1684	1683—1684.1
3016.1—3018	3017—3018.1
3027	3027

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SUPPLEMENT NO. 48
August 2008

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2008-75, adopted May 6, 2008.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xvii—xxii	xvii—xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
101—106	101—106
1314.3—1316	1314.3—1315
1326.7—1326.10	1326.7—1326.12
1330.3—1334	1331—1336
1671, 1672	1671, 1672
1709—1725	1709—1746.3
3025, 3026	3025—3027
3063, 3064	3063, 3064
3117, 3118	3117, 3118
3121—3124	3121—3124
3131, 3132	3131, 3132
3135—3136.2	3135—3136.2
3149—3150.1	3149—3150.1
3167—3170	3167—3170.1
3172.1—3172.3	3172.1—3172.3

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SUPPLEMENT NO. 47
February 2008

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2007-223, adopted November 27, 2007.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xxi, xxii	xxi, xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
1067—1070	1067—1070
1816.1—1822	1817—1822.2
1840.1—1842	1841—1842.1
1844.9—1848	1845—1850
3025, 3026	3025, 3026
3113, 3114	3113, 3114
3175—3178	3175—3178.1

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SUPPLEMENT NO. 46
December 2007

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2007-158, adopted August 21, 2007.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xvii—xxii	xvii—xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
425—427	425—427
879—882.1	879—882.1
1205—1206.1	1205—1206.2
1213—1220	1213—1220.1
1317, 1318	1316.1, 1317
1561—1566	1561, 1562
1671—1714	1671—1725
1843, 1844	1843—1844.10
2991	2991
3025, 3026	3025, 3026
3063—3065	3063—3065
3117—3124	3117—3124
3129—3136	3129—3136.2
3141	3141
3149, 3150	3149, 3150
3153, 3154	3153, 3154
3157—3164	3157—3164
3167—3172.1	3167—3172.3
3175—3180	3175—3180.1
3185—3190	3185—3190

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SUPPLEMENT NO. 45
July 2007

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2007-87, adopted April 10, 2007.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii—xxii	xiii—xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
61—68	61—68.1
98.3—98.6	98.3—98.6
116.13—128	117—128
689, 690	689, 690
1043, 1044	1043, 1044
1047—1063	1047—1070
1318.5—1322	1319—1322.1
1326.1, 1326.2	1326.1—1326.10
1385—1386.1	1385—1386.1
1447—1448.1	1447—1448.1
1455, 1456	1455—1458
3025	3025, 3026
3063—3065	3063—3065
3113, 3114	3113, 3114
3117—3132.1	3117—3132.1
3139—3142	3139—3141
3145—3150	3145—3150.1
3155—3162	3155—3162.1
3165—3170	3165—3170.1
3175, 3176	3175—3176.1
3181—3184	3181—3184
3186.1—3190	3187—3190

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SUPPLEMENT NO. 44
December 2006

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2006-554, adopted November 28, 2006.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii, xiv	xiii, xiv
xvii—xx	xvii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
61, 62	61, 62
97—98.2	97—98.6
116.9, 116.10	116.9—116.10.2
129, 130	129—133
871—872.1	871—872.1
1181—1184	1180.1—1183
1314.5—1318	1315—1318.5
1447, 1448	1447—1448.1
1747, 1748	1747—1748.1
1838.1—1840	1839—1840.1
3021—3025	3021—3025
3063—3065	3063—3065
3113, 3114	3113, 3114
3117—3120.1	3117—3120.1
3123, 3124	3123, 3124
3127—3132.1	3127—3132.1
3135—3140	3135—3139
3143—3150	3143—3150
3157—3158.1	3157—3158.1
3161—3168	3161—3168.1
3171, 3172	3171—3172.1
3181—3184	3181—3184

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August 2006

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2006-200, adopted May 28, 2006.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
985—992	985—992.1
1185—1186.2	1185—1186.2
1186.7, 1186.8	1186.7, 1186.8
1209—1212	1209—1212
1698.7—1702	1699—1702.1
1835—1838.1	1835—1838.1
3005—3010	3005—3010.1
3025	3025

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SUPPLEMENT NO. 42
January 2006

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2005-630, adopted November 22, 2005.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
689—691	689—691
1189, 1190	1189, 1190
1991—1994	1991—1994
3025	3025

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SUPPLEMENT NO. 41
October 2005

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2005-340, adopted August 16, 2005.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xvii—xxii	xvii—xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
689—691	689—691
1153, 1154	1153—1154.1
1225	1225—1227
1249, 1250	1249, 1250
1389—1394	1389—1394.1
1889, 1890	1889, 1890
1912.5, 1912.6	1912.5, 1912.6
3023, 3024	3023—3025
3113, 3114	3113, 3114
3117, 3118	3117, 3118
3133, 3134	3133, 3134
3139, 3140	3139, 3140
3147—3150	3147—3150
3154.1—3158	3155—3158.1
3161—3164	3161—3164.1
3171, 3172	3171, 3172
3175—3182	3175—3182
3185—3186.1	3185—3186.1

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SUPPLEMENT NO. 40
June 2005

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2005-19, adopted January 25, 2005.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xix—xxii	xix—xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
105—110	105—110.1
1154.1—1156	1155—1156.1
1811—1812.1	1811—1812.1
1825, 1826	1825—1826.1
1889, 1890	1889—1890.1
1912.1—1912.4	1912.1—1912.6
1959—1968	1959—1968.1
1984.1—1988	1985—1988.1
3023, 3024	3023, 3024
3131, 3132	3131—3132.1
3177—3178.1	3177—3178.1
3185—3186.1	3185—3186.1

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SUPPLEMENT NO. 39
December 2004

CODE OF ORDINANCES

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2004-109, adopted October 12, 2004.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii, xiv	xiii, xiv
xix—xxii	xix—xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
151, 152	151, 152
157—159	157, 158
269—272	269—272.1
1305, 1306	1305, 1306
1679—1698	1679—1698.8
1889, 1890	1889, 1890
1911—1912.3	1911—1912.4
3015, 3016	3015—3016.1
3023, 3024	3023, 3024
3113, 3114	3113, 3114
3123—3128	3123—3128
3139, 3140	3139, 3140
3153, 3154	3153, 3154
3162.1—3164	3163, 3164
3185, 3186	3185—3186.1

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SUPPLEMENT NO. 38
May 2004

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2004-06, adopted January 27, 2004.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii, xiv	xiii, xiv
xvii, xviii	xvii, xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
66.1—82.2	67—82.5
1181, 1182	1181—1182.1
1197—1206	1197—1206.1
1211, 1212	1211, 1212
1311—1312.2	1311—1312.2.1
3023, 3024	3023, 3024
3125, 3126	3125, 3126
3133, 3134	3133, 3134
3169, 3170	3169, 3170
3183, 3184	3183, 3184

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SUPPLEMENT NO. 37
August 2003

CODE OF ORDINANCES

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2003-58, adopted June 17, 2003.

See the Code Comparative Table—Ordinances for further information.

Remove old pages	*Insert new pages*
xiii, xiv	xiii, xiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
61—64	61—64
85, 86	85, 86
97—98.3	97—98.2
109—116.2	109—116.14
121—130	121—130
689, 690	689, 690
1305—1306.2	1305—1306.2
3023	3023, 3024
3063—3065	3063—3065
3113, 3114	3113, 3114
3118.1—3120	3119—3120.1
3129—3138.2	3129—3137
3145, 3146	3145, 3146
3149, 3150	3149, 3150
3153, 3154	3153, 3154
3157—3162	3157—3162.1
3175, 3176	3175, 3176

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SUPPLEMENT NO. 36
January 2003

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2002-153, adopted December 17, 2002.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii, xiv	xiii, xiv
xix, xx	xix, xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
63, 64	63, 64
107—114	107—111
1184.3—1186.4	1185—1186.8
1754.5—1759	1755—1760
1837, 1838	1837—1838.1
3023	3023
3113, 3114	3113, 3114
3137, 3138	3137, 3138
3163, 3164	3163, 3164
3171—3176.1	3171—3176

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SUPPLEMENT NO. 35
August 2002

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2002-76, adopted May 28, 2002.

See the Code Comparative Table-Ordinances for further information.

Remove old pages	*Insert new pages*
xiii, xiv	xiii, xiv
xvii, xviii	xvii, xviii
xxi, xxii	xxi, xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
63, 64	63, 64
94.1—98.2	95—98.3
114.1—116	115—116.2
259, 260	259—260.1
1215, 1216	1215—1216.1
1313, 1314	1312.1—1313
1391, 1392	1391—1392.1
1809, 1810	1809, 1810
1815, 1816	1815—1816.1
1839, 1840	1839, 1840
1847, 1848	1847, 1848
3023	3023
3117, 3118	3117—3118.1
3129—3132	3129—3132
3150.1—3154.1	3151—3154.1
3157, 3158	3157—3158.1
3161, 3162	3161, 3162
3175, 3176	3175—3176.1

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SUPPLEMENT NO. 34
February 2002

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City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2001-133, adopted December 18, 2001.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xix, xx	xix, xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
67, 68	67, 68
105—112	105—109
1184.1, 1184.2	1184.1—1184.3
1677—1680	1677—1680.2
1817, 1818	1817—1818.1
1837, 1838	1837, 1838
1912.1—1912.3	1912.1—1912.3
1991—1994	1991—1994
3019—3023	3019—3023
3165—3172	3165—3172
3183, 3184	3183, 3184

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SUPPLEMENT NO. 33
July 2001

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2001-55, adopted May 29, 2001

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xv—xxii	xv—xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
75, 76	75, 76
91, 92	91—92.1
387—400	387—400.8
421—427	421—427
795—807	795—807
1153, 1154	1153, 1154
1219	1219—1225
1503—1506	1503—1508
1671, 1672	1671—1672.1
1697—1709	1697—1714
3021	3021—3023
3063—3065	3063—3065
3115—3134.1	3115—3132
3136.1—3138	3137—3138.2
3141—3144	3141—3144
3147—3150.1	3147—3150.1
3159—3168	3159—3168
3185—3189	3185—3190

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SUPPLEMENT NO. 32
January 2001

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2000-247, adopted October 24, 2000.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii—xxii	xiii—xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
61—64	61—64
81—82.1	81—82.2
127—129	127—130
151—152.1	151, 152
689—691	689—691
985, 986	985—986.1
991	991—994
1043, 1044	1043, 1044
1061, 1062	1061—1063
1153—1154.1	1153—1154.1
1186.3, 1186.4	1186.3, 1186.4
1213	1213—1219
1447—1449	1447—1456
3021	3021
3063—3065	3063—3065
3113—3122.1	3113—3120
3125, 3126	3125—3126.1
3131—3134.1	3131—3134.1
3136.1, 3136.2	3136.1, 3136.2
3139—3150	3139—3150.1
3153—3154.1	3153—3154.1
3157, 3158	3157, 3158
3163—3172	3163—3172
3175—3178.2	3175—3178.1
3181—3186	3181—3186.1

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SUPPLEMENT NO. 31
June 2000

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2000-56, adopted April 25, 2000.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii—xxi	xiii—xxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
61—66.1	61—66.1
93, 94	93—94.1
96.1—98	97—98.2
121—125	121—129
1153—1154.1	1153—1154.1
1186.3, 1186.4	1186.3, 1186.4
1205—1207	1205—1213
1305—1306.2	1305—1306.2
1309—1314.3	1309—1314.6
1911, 1912	1911—1912.3
3021	3021
3063, 3064	3063—3065
3113—3117	3113—3116
3121, 3122	3121—3122.1
3125—3128	3125—3128
3131—3134.1	3131—3134.1
3136.1, 3136.2	3136.1, 3136.2
3139—3142.1	3139—3142
3144.1—3154	3145—3154.1
3158.1—3162	3159—3162
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3175, 3176	3175—3176.1
3186.1—3189	3187—3189

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SUPPLEMENT NO. 30
October 1999

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1999-135, adopted September 20, 1999.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii—xxi	xiii—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
61, 62	61, 62
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80.3—82	81—82.1
88.1—96	89—96.5
103, 104	103, 104
1314.1, 1314.2	1314.1, 1314.2
1386.1	1386.1
1447, 1448	1447, 1448
1449, 1450	1449
1811, 1812	1811—1812.1
3019, 3020	3019—3021
3113, 3114	3113, 3114
3131—3134	3131—3134.1
3151—3154	3151—3154
3157—3158.1	3157—3158.1
3161, 3162	3161, 3162
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SUPPLEMENT NO. 29
June 1999

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1999-51, adopted April 27, 1999.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
99—105	99—105
689—691	689—691
1186.3, 1186.4	1186.3, 1186.4
3019, 3020	3019, 3020
3063, 3064	3063, 3064
3133, 3134	3133, 3134
3136.1, 3136.2	3136.1, 3136.2
3149, 3150	3149, 3150
3153, 3154	3153, 3154
3157—3158.1	3157—3158.1

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SUPPLEMENT NO. 28
March 1999

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1999-10, adopted February 9, 1999.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii—xxi	xiii—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
61—62.1	61—62.1
65—66.1	65—66.1
71—80.2	71—80.3
92.1—100	93—100
121	121—125
1043, 1044	1043, 1044
1181—1184	1181—1184
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1385, 1386	1385—1386.1
1809—1853	1809—1848
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3113, 3114	3113, 3114
3121—3136.1	3121—3136.2
3140.1—3142.1	3141—3142.1
3149—3158.1	3149—3158.1
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SUPPLEMENT NO. 27
October 1998

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1998-74, adopted April 14, 1998.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xvii, xviii	xvii, xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
61, 62	61, 62
65—66.1	65—66.1
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115, 116	115, 116
1173, 1174	1173—1174.1
1180.1—1184	1181—1184.2
1983, 1984	1983—1984.1
3019	3019
3157—3158.1	3157—3158.1
3181—3184.1	3181—3184.1

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SUPPLEMENT NO. 26
March 1998

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1997-458, adopted November 25, 1997.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii—xxi	xiii—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
88.1, 88.2	88.1, 88.2
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1701, 1702	1701, 1702
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1991—1994	1991—1994
2991	2991
3003	3003
3017—3019	3017—3019
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3115—3118.1	3113—3117
3136.1	3136.1
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SUPPLEMENT NO. 25
November 1997

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1997-220, adopted June 17, 1997.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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115—118	115—121
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871—872.1	871—872.1
879—882	879—882.1
1153, 1154	1153, 1154
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3017—3019	3017—3019
3121, 3122	3121, 3122
3127, 3128	3127, 3128
3131—3134.1	3131—3134.1
3136.1	3136.1
3147—3150	3147—3150
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3160.1—3166	3161—3166.1
3178.1	3178.1
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SUPPLEMENT NO. 24
May 1997

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1996-223, adopted October 29, 1996. (including Ordinance No. 1997-88, adopted March 12, 1996)

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii—xviii	xiii—xviii.i
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
61, 62	61, 62
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113	113—118
393, 394	393—394.1
1160.1—1162	1161—1162.1
1186.1—1186.4	1186.1—1186.4
1447, 1448	1447, 1448
1448.7—1453	1449—1451
1993, 1994	1993, 1994
2991	2991
3017, 3018	3017—3019
3123, 3124	3123—3124.1
3129—3134.1	3129—3134.1
3157—3160	3157—3160.1
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SUPPLEMENT NO. 23
November 1996

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1996-173, adopted September 3, 1996.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xxi	xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
65, 66	65—66.1
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1186.3, 1186.4	1186.3, 1186.4
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1333, 1334	1333, 1334
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1993, 1994	1993, 1994
	2991
3017, 3018	3017, 3018
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3137—3140	3137—3140.1
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SUPPLEMENT NO. 22, REVISION
July 1996

CODE

City of

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Looseleaf Supplement

This Supplement No. 22, Revision, is printed to revise pages appearing in Supplement No. 22, and should be inserted as directed below.

Remove old pages	*Insert new pages*
xiii, xiv	xiii, xiv

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SUPPLEMENT NO. 22
June 1996

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1996-54, adopted March 12, 1996.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii, xiv	xiii, xiv
xvii, xviii	xvii, xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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1061	1061, 1062
1153—1154.1	1153—1154.1
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1251—1254	1251—1254
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3017, 3018	3017, 3018
3133, 3134	3133—3134.1
3149, 3150	3149—3150.1
3153, 3154	3153, 3154
3157—3158.1	3157—3158.1
3164.1	3164.1
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SUPPLEMENT NO. 21
January 1996

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1995-488, adopted October 10, 1995.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii—xxi	xiii—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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1199—1201	1199
1809—1812	1809—1812.1
1823—1824.1	1823—1824.2
1839, 1840	1839—1853
3015—3017	3015—3018
3115, 3116	3115, 3116
3125, 3126	3125, 3126
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3147—3150	3147—3150
3155—3158	3155—3158.1
3163, 3164	3163—3164.1
3171, 3172	3171, 3172
3175—3178	3175—3178.1

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SUPPLEMENT NO. 20
August 1995

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1995-115, adopted March 29, 1995.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii, xiv	xiii, xiv
xvii, xviii	xvii, xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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689—691	689—691
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1185—1186.3	1185—1186.4
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1809, 1810	1809—1810.1
1831, 1832	1831—1832.3
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3063, 3064	3063, 3064
3123, 3124	3123, 3124
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SUPPLEMENT NO. 19
November 1994

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1994-269, adopted August 16, 1994.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xix, xx	xix, xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
9, 10	9, 10
67, 68	67, 68
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1449, 1450	1449—1450.1
1671, 1672	1671, 1672
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3017	3017
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SUPPLEMENT NO. 18
April 1994

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1993-484, adopted December 28, 1993.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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88.1, 88.2	88.1, 88.2
103, 104	103—113
807	807
1051—1058	1051—1058.1
1186.1—1186.3	1186.1—1186.3
1251, 1252	1251, 1252
1749—1752	1749—1752
3017	3017
3117, 3118	3117, 3118
3136.1	3136.1
3161—3168	3161—3168
3173—3176	3173—3176
3183, 3184	3183, 3184
3187—3189	3187—3189

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SUPPLEMENT NO. 17
December 1993

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1993-284, adopted August 10, 1993.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii—xx	xiii—xxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
9, 10	9, 10
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73—76	73—80.1
88.1—92	88.1—92
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878.1—883	879—885
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1057, 1058	1057—1061
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1199—1201	1199—1201
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1309—1314	1309—1314.2
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3123—3136	3123—3136.1
3139—3144	3139—3144.1
3149—3166	3149—3166
3173—3189	3173—3189

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SUPPLEMENT NO. 16
April 1993

CODE

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1992-302, adopted December 15, 1992.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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395, 396	395, 396
739, 740	739, 740
1053, 1054	1053, 1054
1057, 1058	1057, 1058
1178.1—1180	1179—1180.1
1815, 1816	1815—1816.1
3015, 3016	3015, 3016

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SUPPLEMENT NO. 15
August 1992

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1992-11, adopted January 28, 1992.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii—xxi	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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739—744	739—745
803—807	803—807
1153, 1154	1153, 1154
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3157—3166	3157—3166
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SUPPLEMENT NO. 14
January 1992

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1991-77, adopted July 16, 1991.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
63, 64	63, 64
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421—424	421—424.1
1186.1, 1186.2	1186.1—1186.3
1451, 1452	1451, 1452
1505, 1506	1505—1507
1619—1621	1619—1622
1991—1994	1991—1994
3013—3015	3013—3015
3121, 3122	3121, 3122
3131, 3132	3131, 3132
3147—3152	3147—3152
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SUPPLEMENT NO. 13
February, 1991

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1990-129, adopted October 9, 1990.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
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1325, 1326	1325—1326.2
1451, 1452	1451, 1452
3015	3015
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3131, 3132	3131, 3132
3143, 3144	3143, 3144
3165, 3166	3165, 3166

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SUPPLEMENT NO. 12
May, 1990

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1989-91, adopted August 29, 1989.

See Code Comparative Table, page 3015.

Remove old pages	*Insert new pages*
xvii, xviii	xvii, xviii
Checklist of up-to-date pages	Checklist of up-to-date pages
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399—404	399—404
421—424	421—424
803, 804	803, 804
1503—1510	1503—1506
1991—1993	1991—1994
3015	3015
Index pages	Index pages
3122.1—3124	3123—3124.1
3131, 3132	3131, 3132
3149, 3150	3149, 3150
3159, 3160	3159, 3160

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SUPPLEMENT NO. 11
April, 1989

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1988-129, adopted November 22, 1988.

See Code Comparative Table, page 3015.

Remove old pages	*Insert new pages*
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3015	3015
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SUPPLEMENT NO. 10

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

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Ordinance No. 1988-105, adopted October 27, 1988.

See Code Comparative Table, page 3015.

Remove old pages	*Insert new pages*
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MUNICIPAL CODE CORPORATION

Tallahassee, Florida

December, 1988

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SUPPLEMENT NO. 9

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1988-32, adopted April 26, 1988.

See Code Comparative Table, page 3014.

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Tallahassee, Florida

August, 1988

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SUPPLEMENT NO. 8

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

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Ordinance No. 1987-162, adopted September 22, 1987.

See Code Comparative Table, page 3014.

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MUNICIPAL CODE CORPORATION

Tallahassee, Florida

April, 1988

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CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

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Tallahassee, Florida

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CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1987-3, adopted January 13, 1987.

See Code Comparative Table, page 3014.

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MUNICIPAL CODE CORPORATION

Tallahassee, Florida

July, 1987

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CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

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See Code Comparative Table, page 3014.

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MUNICIPAL CODE CORPORATION

Tallahassee, Florida

April, 1987

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CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1986-103, adopted September 9, 1986.

See Code Comparative Table, page 3013.

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MUNICIPAL CODE CORPORATION

Tallahassee, Florida

November, 1986

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CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

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MUNICIPAL CODE CORPORATION

Tallahassee, Florida

September, 1986

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SUPPLEMENT NO. 2

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

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See Code Comparative Table, page 3013.

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Tallahassee, Florida

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SUPPLEMENT NO. 1

CODE

City of

CHARLESTON, SOUTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

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See Code Comparative Table, page 3013.

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MUNICIPAL CODE CORPORATION

Tallahassee, Florida

January, 1986

CODE OF THE CITY

OF

CHARLESTON,

SOUTH CAROLINA

Published in 1985 by Order of the City Council

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Supp. No. 103

PREFACE

This Code constitutes a complete recodification of the ordinances of the City of Charleston of a general and permanent nature, and is the first codification since 1975. As expressed in the Adopting Ordinances, the Code supersedes all such ordinances not included therein or recognized as continuing in force by reference thereto.

The source of each section is included in the history notes appearing in parentheses at the end thereof. The absence of such a note indicates that the section is new and was adopted for the first time with the adoption of the Code. By use of the Comparative Tables appearing in the back of this volume, the reader can locate any ordinance included herein.

The chapters of the Code have been conveniently arranged in alphabetical order and the various sections within each chapter have been catchlined to facilitate usage. Footnotes which tie related sections of the Code together and which refer to relevant state laws have been included. A table listing the state law citations and setting forth their location within the Code is included at the back of this volume.

Numbering System

The numbering system used in this Code is the same system used in many state and municipal codes. Each section number consists of two component parts separated by a dash, the figure before the dash referring to the chapter number and the figure after the dash referring the position of the section within the chapter. Thus, the first section of Chapter 1 is numbered 1-1 and the sixteenth section of Chapter 5 is 5-16. Under this system, each section is identified with its chapter and, at the same time, new sections or even whole chapters can be inserted in their proper places, simply by using the decimal system for amendments. By way of illustration: If new material consisting of three sections that would logically come between Sections 7-4 and 7-5 is desired to be added, such new sections would be numbered 7-4.1, 7-4.2 and 7-4.3, respectively. New chapters may be included in the same manner. If the new material is to be included between Chapters 12 and 13, it will be designated as Chapter 12.5. Care

should be taken that the alphabetical arrangement of chapters is maintained when including new chapters. New articles and new divisions may be included in the same way or, in the case of articles, may be placed at the end of the chapter embracing the subject and, in the case of divisions, may be placed at the end of the article embracing the subject, the next successive number being assigned to the article or division.

Index

The index has been prepared with the greatest of care. Each particular item has been placed under several headings being couched in lay phraseology, others in legal terminology, and still others in language generally used by municipal officials and employees. There are numerous cross references within the index which stand as guideposts to direct the user to the particular item in which he is interested.

Looseleaf Supplements

A special feature of this Code to which the attention of the user is especially directed is the looseleaf system of binding and supplemental service for the Code. With this system, the Code will be kept up-to-date periodically. Upon the final passage of amendatory ordinances, they will be properly edited and the appropriate page or pages affected will be reprinted. These new pages will be distributed to holders of copies of the Code, with instructions for the manner of inserting the new pages and deleting the obsolete pages. Each such amendment, when incorporated into this Code, may be cited as a part thereof, as provided in section 4 of the Adopting Ordinance.

The successful maintenance of this Code up-to-date at all times will depend largely upon the holder of the volume. As revised sheets are received it will then become the responsibility of the holder to have the amendments inserted according to the attached instructions. It is strongly recommended by the publishers that all such amendments be inserted immediately upon receipt to avoid misplacing them and, in addition, that all deleted pages be saved and filed for historical reference purposes.

Acknowledgments

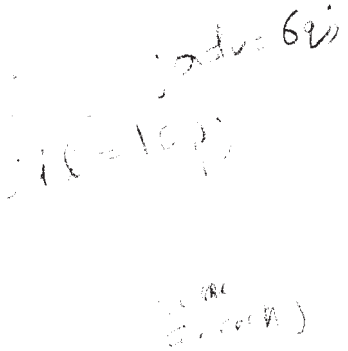
The publication of this Code was under direct supervision of A. Lawton Langford, President, James S. Vaught, Editor, of the

Municipal Code Corporation, Tallahassee, Florida. Credit is gratefully given to the other members of the publisher's staff for their sincere interest and able assistance throughout the project.

The publishers are most grateful to Mr. William E. Regan, Corporation counsel, and Ms. Mary Wrixson, Clerk of the Council for their cooperation and assistance during the progress of the work on this Code. It is hoped that their efforts and those of the publishers have resulted in a Code of Ordinances which will make the active law of the city readily accessible to all citizens and which will be a valuable tool in the day-to-day administration of the city's affairs.

MUNICIPAL CODE CORPORATION

Tallahassee, Florida



ADOPTING ORDINANCE

ORDINANCE NO. 1985-136

An Ordinance Adopting and Enacting a New Code for the City of Charleston, South Carolina; Establishing the Same; Providing for the Repeal of Certain Ordinances Not Included Therein; Providing for the Manner of Amending and Supplementing Such Code; and Providing When Such Code and This Ordinance Shall Become Effective.

Be It Ordained by the Mayor and Councilmembers of Charleston, in City Council Assembled:

Section 1. That the City Code of Ordinances, consisting of Chapters 1 to 31, each inclusive, is hereby adopted and enacted as the "Code of the City of Charleston, South Carolina," and shall be treated and considered as a new and original comprehensive ordinance which shall supersede all other general and permanent ordinances of the City passed on or before April 24, 1984.

Section 2. That all provisions of such Code shall be in full force and effect from and after November 26, 1985, and all ordinances of a general and permanent nature of the City of Charleston, adopted on final passage on or before April 24, 1984, and not included in such Code or recognized and continued in force by reference therein, are hereby repealed from and after the effective date of such Code. No resolution of the City, not specifically mentioned is hereby repealed.

Section 3. That whenever in such Code an act is prohibited or is made or declared to be unlawful or an offense or a misdemeanor by the Council, or whenever in such Code the doing of any act is required or the failure to do any act is declared to be unlawful by the City Council and no specific penalty is provided therefor, the violation of any such provisions of such Code shall be punished by a fine of not more than two hundred dollars ($200.00), or imprisonment for a term not exceeding thirty (30) days, as provided in Section 1-15 of such Code.

Section 4. Any and all additions and amendments to such Code, when passed in such form as to indicate the intention of the

City Council to make the same a part of such Code, [shall be deemed to be incorporated in the Code] so that reference to such Code shall be understood and intended to include such additions and amendments.

Section 5. That in case of the amendment of any section of such Code for which a penalty is not provided, the general penalty, as provided in Section 3 of this Ordinance and in Section 1-15 of such Code shall apply to the section as amended, or in case such amendment contains provisions for which a penalty, other than the aforementioned general penalty, is provided in another section in the same chapter, the penalty so provided in such other section shall be held to relate to the section so amended, unless such penalty is specifically repealed therein.

Section 6. That a copy of such Code shall be kept on file in the office of the Clerk of Council, preserved in looseleaf form, or in such other form as the Clerk of Council may consider most expedient. It shall be the express duty of the Clerk of Council or someone authorized by him, to insert in their designated places all amendments, ordinances or resolutions which indicate the intention of the City Council to make the same a part of such Code when the same have been printed or reprinted in page form, and to extract from such Code all provisions which may be repealed from time to time by the City Council. This copy of such Code shall be available for all persons desiring to examine the same.

Section 7. That it shall be unlawful for any person to change or alter, by additions or deletions, any part or portion of such Code, or to insert or delete pages or portions thereof, or to alter or tamper with such Code in any manner whatsoever which will cause the law of the City of Charleston to be misrepresented thereby. Any person violating this section shall be punished as provided in Section 1-15 of the Code of the City of Charleston, South Carolina, and in Section 3 of this Ordinance.

Section 8. That all ordinances or parts of ordinances in conflict herewith are, to the extent of such conflict, hereby repealed.

Section 9. This Ordinance shall become effective on November 26, 1985.

An Ordinance

Ratified in City Council this 26th day of November, in the Year of Our Lord, 1985, in the 210th Year of the Independence of the United States of America.

_____

Mayor

Attest:

_____

Clerk of Council

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(This checklist will be updated with the printing of each Supplement)

From our experience in publishing Looseleaf Supplements on a page-for-page substitution basis, it has become evident that through usage and supplementation many pages can be inserted and removed in error.

The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

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3033, 3034	77	3157, 3158	115
3035, 3036	89	3159, 3160	115
3037, 3038	98	3161, 3162	115
3039, 3040	103	3163, 3164	115
3041, 3042	110	3165, 3166	115
3043, 3044	113	3167, 3168	115
3045	115	3169, 3170	115
3063, 3064	112	3171, 3172	115
3065	115	3173, 3174	115
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SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code and are considered "Included." Ordinances that are not of a general and permanent nature are not codified in the Code and are considered "Omitted."

In addition, by adding to this table with each supplement, users of this Code of Ordinances will be able to gain a more complete picture of the Code's historical evolution.

Ord. No.	Date Adopted	Include/Omit
Supp. No. 56		
2010-234	10-12-10	Include
2010-246	10-12-10	Include
2010-248	10-26-10	Include
2010-249	11-10-10	Include
2010-251	11-23-10	Include
2010-269	12-21-10	Include
2010-271	12-21-10	Include
2010-272	12-21-10	Include
Supp. No. 57		
2011-14	2-22-11	Include
2011-15	2-22-11	Omit
2011-21	3-22-11	Include
2011-29	4-12-11	Include
2011-30	4-12-11	Include
Supp. No. 58		
2011-35	5-10-11	Include
2011-37	5-10-11	Include
2011-44	6-21-11	Include
2011-52	7-19-11	Include

Ord. No.	Date Adopted	Include/Omit
2011-53	7-19-11	Include
Supp. No. 59		
2011-58	8-16-11	Include
2011-59	8-16-11	Include
2011-60	8-16-11	Include
2011-136	9-13-11	Include
Supp. No. 60		
2011-282	12- 6-11	Include
2012-32	1-10-12	Include
Supp. No. 61		
2012-58	2-14-12	Include
2012-90	3-19-12	Include
2012-91	3-19-12	Include
Supp. No. 62		
2012-239	5- 8-12	Include
2012-240	5- 8-12	Include
Supp. No. 63		
2012-367	8-21-12	Include
2012-376	9-25-12	Include
Supp. No. 64		
2012-399	11-13-12	Include
2012-406	11-27-12	Include
2012-407	11-27-12	Include
2013-03	1- 8-13	Include
2013-10	1-22-13	Include
2013-11	1-22-13	Include
2013-13	1-22-13	Include
Supp. No. 65		
2013-19	2-12-13	Include
2013-35	3-12-13	Include
Supp. No. 66		
2013-41	4-23-13	Include
2013-42	4-23-13	Include
2013-55	5-28-13	Include

Ord. No.	Date Adopted	Include/Omit
Supp. No. 67		
2013-71	7-16-13	Include
2013-72	7-16-13	Include
2013-73	8-21-13	Include
Supp. No. 68		
2013-94	9-24-13	Include
2013-107	10- 8-13	Include
2013-111	10- 8-13	Include
2013-112	10-22-13	Include
2013-129	11-26-13	Include
2013-130	11-26-13	Include
2013-131	11-26-13	Include
2014-10	1-30-14	Include
2014-14	1-30-14	Include
2014-15	1-30-14	Include
Supp. No. 69		
2014-18	2-11-14	Include
2014-28	2-25-14	Include
2014-38	3-25-14	Include
2014-39	3-25-14	Include
2014-40	3-25-14	Include
2014-43	3-25-14	Include
Supp. No. 70		
2014-68	5-13-14	Include
2014-101	7-15-14	Include
Supp. No. 71		
2014-113	8-19-14	Include
2014-119	9- 9-14	Include
2014-123	9- 9-14	Include
2014-134	10-14-14	Include
2014-135	10-14-14	Include
Supp. No. 72		
2015-005	1-13-15	Include
2015-027	3-24-15	Include
Supp. No. 73		
2015-033	4-13-15	Include
2015-041	4-28-15	Include

Ord. No.	Date Adopted	Include/Omit
2015-050	5-12-15	Include
Supp. No. 74		
2015-082	7-21-15	Include
2015-089	7-21-15	Include
2015-090	7-21-15	Include
2015-091	7-21-15	Include
2015-092	8-18-15	Include
2015-093	8-18-15	Include
2015-105	8-18-15	Omit
2015-126	9-22-15	Include
2015-134	9-22-15	Include
Supp. No. 75		
2015-164	11-10-15	Include
2015-170	11-24-15	Include
2015-187	12-15-15	Include
2016-015	1-26-16	Include
Supp. No. 76		
2016-027	2- 9-16	Include
2016-054	4-26-16	Include
Supp. No. 77		
2016-064	5-10-16	Include
2016-065	5-24-16	Include
2016-070	5-24-16	Include
2016-076	6-21-16	Include
Supp. No. 78		
2016-084	7-19-16	Include
2016-091	8-16-16	Include
2016-117	9-27-16	Include
Supp. No. 79		
2017-004	1-24-17	Include
2017-008	1-24-17	Include
2017-009	1-24-17	Include
Supp. No. 80		
2017-022	3-14-2017	Include
2017-034	3-28-2017	Include

Ord. No.	Date Adopted	Include/Omit
Supp. No. 81		
2017-061	5-30-17	Include
Supp. No. 82		
2017-074	7-11-17	Include
2017-110	9-13-17	Include
2017-111	9-13-17	Include
2017-112	9-13-17	Include
Supp. No. 83		
2017-131	10-10-17	Include
2017-134	10-24-17	Include
2017-135	10-24-17	Include
2017-151	12-11-17	Include
2017-155	12-19-17	Include
Supp. No. 84		
2016-149	11-22-16	Include
Supp. No. 85		
2016-148	11-10-16	Include
2016-150	11-22-16	Include
Supp. No. 86		
2018-050	4-10-18	Include
2018-051	4-10-18	Include
2018-061	5- 8-18	Include
Supp. No. 87		
2018-088	7-17-18	Include
2018-089	7-17-18	Include
Supp. No. 88		
2018-102	8-21-18	Include
2018-113	9-18-18	Include
2018-114	9-18-18	Include
2018-115	9-18-18	Omit
2018-116	9-18-18	Include
2018-122	9-18-18	Omit
2018-126	9-25-18	Include
Supp. No. 89		
2018-131	10- 9-18	Include
2018-144	11-13-18	Include
2018-146	11-27-18	Include

Ord. No.	Date Adopted	Include/Omit
2018-147	11-27-18	Include
2018-149	11-27-2018	Include
2018-150	11-27-2018	Include
2019-001	1- 8-19	Include
Supp. No. 90		
2019-014	2-26-19	Include
2019-024	4- 9-19	Include
2019-025	4- 9-19	Include
2019-026	4- 9-19	Include
2019-027	4- 9-19	Include
Supp. No. 91		
2019-039	5-28-19	Include
2019-041	5-28-19	Include
2019-054	6-18-19	Include
2019-056	6-18-19	Include
2019-060	7-16-19	Include
2019-061	7-16-19	Include
2019-064	7-16-19	Include
Supp. No. 92		
2019-083	9-10-19	Include
2019-084	9-10-19	Include
2019-087	9-24-19	Include
2019-088	9-24-19	Include
2019-095	10- 8-19	Include
2019-099	10- 8-19	Include
2019-100	10- 8-19	Include
2019-101	10- 8-19	Include
Supp. No. 93		
2019-104	10-22-19	Include
2019-111	11-12-19	Include
Supp. No. 94		
2019-098	10- 8-19	Include
2019-137	12-17-19	Include
2020-023	2-11-20	Include
2020-024	2-11-20	Include
2020-031	3-10-20	Include
2020-037	3-10-20	Include

Ord. No.	Date Adopted	Include/Omit
2020-038	3-16-20	Omit
2020-39	3-16-20	Omit
2020-39(a)	3-19-20	Omit
2020-40	3-16-20	Omit
Supp. No. 95		
2020-041	3-20-20	Omit
2020-042	3-24-20	Omit
2020-046	3-26-20	Omit
2020-047	3-27-20	Omit
2020-048	4- 1-20	Omit
2020-051	4-16-20	Omit
2020-052	4-22-20	Omit
2020-053	4-28-20	Include
2020-057	5-12-20	Omit
2020-061	5-12-20	Omit
2020-068	5-28-20	Omit
2020-069	5-28-20	Omit
2020-070	5-28-20	Omit
2020-074	6- 6-20	Omit
Supp. No. 96		
2020-032 (corrected)	3-10-20	Include
Executive Order of	5-28-20	Omit
2020-082	6- 6-20	Omit
2020-083	6-25-20	Omit
2020-084	6-25-20	Omit
2020-085	7-14-20	Omit
Executive Order of	7-14-20	Omit
2020-086	7-14-20	Omit
2020-090	7-28-20	Omit
2020-091	7-28-20	Omit
2020-092	7-28-20	Omit
2020-096	8- 3-20	Omit
2020-099	8-18-20	Omit
2020-100	8-18-20	Omit
Executive Order of	8-18-20	Omit

Ord. No.	Date Adopted	Include/Omit
Supp. No. 97		
2020-081	6-23-20	Include
2020-095	7-28-20	Include
2020-123	9- 8-20	Include
2020-124	9- 8-20	Include
Supp. No. 98		
2020-131	9-22-20	Include
2020-134	10-13-20	Omit
2020-135	10-13-20	Omit
2020-140	10-13-20	Include
2020-145	10-27-20	Omit
2020-146	10-27-20	Omit
2020-147	10-27-20	Include
2020-148	10-27-20	Include
2020-160	11-24-20	Omit
2020-163	11-24-20	Include
2020-164	11-24-20	Include
2020-166	11-24-20	Include
2020-167	12- 1-20	Omit
2020-172	12- 1-20	Include
2021-002	1-12-21	Omit
Executive Order of	1-12-21	Omit
2021-008	1-26-21	Include
Supp. No. 99		
2021-023	2-23-2021	Include
2021-024	3- 9-21	Omit
2021-025	3- 9-21	Omit
2021-041	4-13-21	Omit
2021-042	4-13-2021	Omit
2021-052	4-13-21	Include
2021-055	4-27-2021	Omit
2021-059	4-27-21	Include
Supp. No. 100		
2021-060	5-11-21	Omit
2021-061	5-11-21	Omit
2021-062	5-11-21	Omit
2021-073	5-25-21	Include

Ord. No.	Date Adopted	Include/Omit
2021-080	6-15-21	Omit
2021-088	6-15-21	Omit
2021-089	6-30-21	Include
2021-090	7-20-21	Include
2021-093	7-20-21	Omit
2021-094	7-20-21	Omit
2021-105	7-29-21	Include
2021-106	7-29-21	Include
2021-107	7-29-21	Include
2021-108	7-29-21	Include
Supp. No. 101		
2021-110	8-17-21	Omit
2021-111	8-17-21	Omit
2021-116	8-17-21	Include
2021-117	8-17-21	Include
2021-126	9-14-21	Include
2021-127	9-14-21	Include
2021-137	9-28-21	Include
2021-138	10-12-21	Omit
2021-139	10-12-21	Omit
2021-149	10-26-21	Include
Supp. No. 102		
2021-118	8-17-21	Include
2021-158	11- 9-21	Include
2021-168	12- 7-21	Omit
2021-169	12- 7-21	Omit
2022-016	1-25-22	Include
2022-017	1-25-22	Include
2022-018	2- 9-22	Include
2022-038	3- 8-22	Include
2022-047	3-22-22	Include
Supp. No. 103		
2022-094	7-19-22	Include
2022-110	8-16-22	Include
2022-112	9-13-22	Include
2022-148	10-11-22	Include
2022-150	10-25-22	Include

Ord. No.	Date Adopted	Include/Omit
2022-159	11- 8-22	Include
2022-162	11- 8-22	Include
2023-006	1-10-23	Omit
2023-008	1-24-23	Include
2023-035	2-14-23	Include
2023-041	2-28-23	Include
2023-048	3-14-23	Include
2023-052	3-14-23	Include
2023-063	3-28-23	Include
2023-064	3-28-23	Include
2023-065	3-28-23	Include
2023-071	4-11-23	Include
Supp. No. 104		
2023-096	5-23-23	Include
2023-097	5-23-23	Include
2023-098	5-23-23	Include
2023-106	5-23-23	Include
Supp. No. 105		
2023-179	9-12-23	Include
2023-204	9-26-23	Include
2023-237	11-28-23	Include
Supp. No. 106		
2023-274	12- 5-23	Include
2023-279	12-19-23	Include
2024-007	1-10-24	Include
2024-025	2-27-24	Include
2024-026	2-27-24	Include
Supp. No. 107		
2024-042	3-12-24	Include
2024-050	3-26-24	Include
2024-052	3-26-24	Include
2024-066	4-23-24	Include
2024-067	4-23-24	Include
2024-079	5-28-24	Omit
2024-080	5-28-24	Include
Supp. No. 108		
2024-096	7-16-24	Include

Ord. No.	Date Adopted	Include/Omit
2024-097	7-16-24	Include
2024-139	9-10-24	Include
2024-140	9-10-24	Include
2024-149	9-10-24	Include
Supp. No. 109		
2024-161	10- 8-24	Include
2024-171	10-22-24	Include
2024-178	11-26-24	Include
Supp. No. 110		
2024-195	12-17-24	Include
2025-016	2-25-25	Include
2025-017	2-25-25	Include
2025-018	2-25-25	Include
2025-019	2-25-25	Include
2025-020	2-25-25	Include
2025-021	2-25-25	Include
2025-022	2-25-25	Include
2025-023	2-25-25	Include
2025-024	2-25-25	Include
2025-025	2-25-25	Include
2025-026	2-25-25	Include
2025-053	3-25-25	Include
Supp. No. 111		
2025-064	4-22-25	Include
2025-082	5-27-25	Include
2025-083	6-17-25	Include
2025-090	6-17-25	Include
Supp. No. 112		
2025-110	8-19-25	Include
2025-114	8-19-25	Include
2025-115	9- 9-25	Include
Supp. No. 113		
2025-138	10-14-25	Include
2025-141	10-28-25	Include
2025-189	12-16-25	Include

Ord. No.	Date Adopted	Include/Omit
Supp. No. 114		
2026-012	1-27-26	Include
Supp. No. 115		
2026-065	3-24-26	Include
2026-066	3-24-26	Include
2026-075	4-23-26	Include
2026-089	5-12-26	Include
2026-091	5-26-26	Include
2026-092	5-26-26	Include

CITY CODE

Chapter 1

GENERAL PROVISIONS

Sec. 1-1. How Code designated and cited.

The provisions in the following chapters and sections shall constitute and be designated the "Code of the City of Charleston, South Carolina," and may be so cited. Such Code may also be cited as "Charleston City Code."
(Code 1975, § 1-1)

State law reference—For requirement that city codify ordinances, see S.C. Code 1976, § 5-7-290.

Sec. 1-2. Definitions and rules of construction—Generally.

In the construction of this Code and of all ordinances, the following definitions and rules of construction shall be observed, unless inconsistent with the manifest intent of the council or unless the context clearly requires otherwise.

And, or. The word "and" may be read as "or," and the word "or" as "and," where the sense requires it.

Board of health. The words "board of health" shall mean the county board of health of Charleston County, South Carolina.

Bond. When a bond is required, an undertaking in writing shall be sufficient.

City. The words "city," "the city" or "this city" shall mean the City of Charleston, in the County of Charleston, and State of South Carolina, except as otherwise provided.

Computation of time. The time within which an act is to be done shall be computed by excluding the first day and including the last day; provided, however, that if the last day of the period so computed is a Saturday, a Sunday or a legal holiday, such day shall be excluded and the time period shall run until the end of the next day which is not a Saturday, a Sunday or a legal holiday.

State law reference—Computation of time, S.C. Code 1976, § 15-1-20.

Council, city council. The words "the council" or "city council" shall mean the city council of the City of Charleston, South Carolina.

Delegation of authority. Whenever a provision appears in this Code requiring or authorizing the head of a department or other officer of the city to do some act or perform some duty, it shall be construed to authorize such department head or other officer to designate, delegate and authorize subordinates to do the required act or perform the required duty unless the terms of the provision specifically designate otherwise.

Gender. Words of one gender include the other genders.

Health officer. The words "health officer" shall mean the health officer of Charleston County, South Carolina.

In the city. The words "in the city" shall mean and include any territory, jurisdiction of which, for the exercise of its regulatory power, has been conferred on the city by law.

Joint authority. All words giving joint authority to three (3) or more persons or officers shall be construed as giving such authority to a majority of such persons or officers.

Minor. The word "minor" shall mean any person under the age of eighteen (18) years, unless otherwise specifically provided.

Month. The word "month" shall mean a calendar month.

Number. Words used in the singular include the plural and the plural includes the singular number.

Oath. The word "oath" shall be construed to include an affirmation in all cases in which, by law, an affirmation may be substituted for an oath, and in such cases the words "swear" and "sworn" shall be equivalent to the words "affirm" and "affirmed."

Officer. A person holding a supervisory office of profit under the city government who, by law, is required to be elected or confirmed by city council.

Official time standard. Whenever certain hours are named herein they shall mean eastern standard time or daylight saving time as may be in current use in the city.

Owner. The word "owner," applied to building or land, shall include any part owner, joint owner, tenant in common, joint tenant or tenant by the entirety, of the whole or a part of such building or land.

Preceding, following. The words "preceding" and "following" shall mean next before and next after, respectively.

Personal property includes every species of property except real property, as herein defined.

Person. The word "person" shall include a corporation, firm, partnership, association, organization and any other group acting as a unit, as well as an individual.

Property. The word "property" shall include real and personal property.

Police officer. An officer or employee of the police department who has been appointed and qualified pursuant to law to exercise police authority.

Real property. "Real property" shall include land, tenements, hereditaments, fixtures and appurtenances.

Roadway. The word "roadway" shall mean that portion of a street improved, designed or ordinarily used for vehicular travel.

Shall, may. The word "shall" is mandatory; "may" is permissive.

Sidewalk. The word "sidewalk" shall mean any portion of a street between the curbline and the adjacent property line, intended for the use of pedestrians.

Signature or *subscription* includes a mark when the person cannot write.

State. The words "state" or "this state" shall mean the State of South Carolina.

Statute references. Whenever reference is made, for example, to § 44-1-160, S.C. Code, it shall be construed to refer to the Code of Laws of South Carolina 1976, § 44-1-160, as amended, or whatever section is to be cited. Whenever reference is made, for example, to Acts 1944, p. 1301, it shall be construed to refer to page 1301 of the Acts of South Carolina 1944, or whatever page and year is to be cited.

Street. The word "street" shall mean the entire width between boundary lines of every way publicly maintained when any part thereof is open to the use of the public for purposes of vehicular traffic and shall be taken to include any public way, road, highway, street, avenue, boulevard, parkway, alley, lane, viaduct, bridge and approaches thereto within the city.

Tenant, occupant. The words "tenant" or "occupant" applied to a building or land shall include any person who occupies the whole or a part of such building or land, whether alone or with others.

Tense. Words used in the past or present tense include the future as well as the past and present.

Writing, written. The words "writing" and "written" shall include printing and any other mode of representing words and letters.

Year. The word "year" shall mean a calendar year.
(Code 1975, § 1-2)

Sec. 1-3. Same—Officers, agents, etc., of the city.

In the construction of this Code and of all ordinances of the city, all officers, agents, employees and other persons, together with all things and places therein referred to, unless a contrary intention appears, shall be construed to mean the officers, agents, employees, and other persons, things and places situate in the city or employed by or appertaining to the city.

Sec. 1-4. Same—Acts prohibited or punishable.

In the construction of this Code and of all ordinances of the city, all acts prohibited or punishable under this Code or under any particular ordinance, unless a contrary intent appears, shall be construed to refer to such acts when committed or occurring within the limits of the city or in other places over which the municipal court and city police have authority or jurisdiction under the laws of the state, even though the Code or the particular ordinance only provides that such acts shall be prohibited or punishable and shall not specifically designate the jurisdiction or scope thereof.

Sec. 1-5. Provisions considered as continuation of existing ordinances.

The provisions appearing in this Code, so far as they are the same as those of "The Code of the City of Charleston, South Carolina, 1975," and all ordinances adopted subsequent to such Code and included herein, shall be considered as a continuation thereof and not as new enactments.
(Code 1975, § 1-3)

Sec. 1-6. Catchlines of sections.

The catchlines of the several sections of this Code printed in boldface type are intended as mere catchwords to indicate the contents of the section and shall not be deemed or taken to be titles of such sections, nor as any part of the section, nor, unless expressly so provided, shall they be so deemed when any of such sections, including the catchlines, are amended or re-enacted.
(Code 1975, § 1-5)

Sec. 1-7. Amendments to Code; effect of new ordinances; amendatory language.

Ordinances passed subsequent to the date of the last ordinance included in this Code prior to its adoption, when incorporated in supplements as provided in section 1-8, shall be prima facie evidence of such subsequent ordinances until such time that this Code and subsequent ordinances numbered or omitted are readopted as a new code by the city council.

Amendments to any of the provisions of this Code shall be made by amending such provisions by specific reference to the section number of this Code. Such amendments may be in the following language: "That section ____ of the Code of the City of Charleston, South Carolina, is hereby amended to read as follows: . . . ." The new provisions may then be set out in full as desired.

In the event a new section not heretofore existing in the Code is to be added, the following language may be used: "That the Code of the City of Charleston, South Carolina, is hereby amended by adding a section, to be numbered ____, which section shall

read as follows: . . . ." The new section may then be set out in full as desired.

All sections, articles, chapters or provisions desired to be repealed shall be specifically repealed by section, article or chapter number, as the case may be.

Sec. 1-8. Supplementation of Code.

(a) By contract or by city personnel, supplements to this Code shall be prepared and printed whenever authorized or directed by the council; but at least once a year. A supplement to the Code shall include all substantive permanent and general parts of ordinances passed by the council or adopted by initiative and referendum during the period covered by the supplement and all changes made thereby in the Code. The pages of a supplement shall be so numbered that they will fit properly into the Code and will, where necessary, replace pages which have become obsolete or partially obsolete, and the new pages shall be so prepared that, when they have been inserted, the Code will be current through the date of the adoption of the latest ordinance included in the supplement. The council shall on an annual basis pass an ordinance adopting the supplements as prepared by the person or organization responsible for supplementing the Code.

(b) In preparing a supplement to this Code, all portions of the Code which have been repealed shall be excluded from the Code by the omission thereof from reprinted pages.

(c) When preparing a supplement to this Code, the codifier (meaning the person, agency or organization authorized to prepare the supplement) may make formal, nonsubstantive changes in ordinances and parts of ordinances included in the supplement, insofar as it is necessary to do so to embody them into the unified Code. For example, the codifier may:

(1) Organize the ordinance material into appropriate subdivisions;

(2) Provide appropriate catchlines, headings and titles for sections and other subdivisions of the Code printed in the supplement, and make changes in such catchlines, headings and titles;

(3) Assign appropriate numbers to sections and other subdivisions to be inserted in the Code and, where necessary to accommodate new material, change existing section or other subdivision numbers;

(4) Change the words "this ordinance" or words having the same meaning to "this chapter," "this article," "this division," etc., as the case may be, or to "sections ____ to ____" (inserting section numbers to indicate the sections of the Code which embody the substantive sections of the ordinance incorporated into the Code); and

(5) Make other nonsubstantive changes necessary to preserve the original meaning of ordinance sections inserted into the Code; but in no case shall the codifier make any change in the meaning or effect of ordinance material included in the supplement or already embodied in the Code.

Sec. 1-9. City seal—Description.

The seal of the city is described as follows: On the right in the foreground is a female figure seated, her right arm raised and forefinger pointing, her left arm down and left hand holding a scepter; on the left is a ship under full sail; in the background is a water view of the city, with the steeples towering; immediately below the female figure are the words, "Carolopolis Condita A.D. 1670," (Charleston founded in the year of our Lord 1670). Encircling the whole are the following inscriptions in Roman capitals: "Aedes mores juraque curat." (She cares for her temples, customs and rights.) "Civitatis Regimine Donata A.D. 1783." (Presented with the government of a body politic in the year of our Lord 1783.) This seal, represented as aforesaid and hereto annexed shall be and is hereby established and declared to be the common seal of the city.
(Code 1975, § 1-8)

Sec. 1-10. Same—Custodian.

The clerk of council shall have the custody of the seal of the city, and the same shall be carefully preserved and kept by him at all times in his office.
(Code 1975, § 1-9)

Sec. 1-11. Police power extended to city property.

The police power of the city is hereby extended to include, as well as land within the city, all lands or property outside the city owned or leased by the city or any agency of the city and the general ordinances of the city shall be applicable on such property.

State law reference—Police authority outside city, S.C. Code 1976, § 5-7-110.

Sec. 1-12. Incorporation by reference.

All standard codes, rules, regulations and other subject matter herein or hereafter properly incorporated by reference, together with subsequent amendments thereto, pursuant to state law, and future incorporations by reference shall be kept and preserved in the office of the municipal clerk.

Sec. 1-13. Parenthetical and reference matter.

The matter in parentheses at the end of sections is for information only and is not a part of the Code. Citations to the 1975 Code of the city (Code 1975) indicate only the source; and the text may or may not be changed by this Code. Reference matter not in parentheses is for information only and is not a part of this Code.

Sec. 1-14. Effect of repeal or expiration of ordinance.

The repeal of an ordinance, or its expiration by virtue of any provision contained therein, shall not affect any right accrued, any offense committed, any penalty or punishment incurred or any proceeding commenced before the repeal took effect or the ordinance expired. When an ordinance which repealed another shall itself be repealed, the previous ordinance shall not be revived without express words to that effect.

(Code 1975, § 1-10)

State law reference—General limit on penalty, S.C. Code 1976, § 5-7-30.

Sec. 1-15. Liability for violations by corporations, etc.

(a) Any violation of this Code by any officer, agent or other person acting for or employed by any corporation or unincorporated association or organization while acting within the scope of his office or employment, shall in every case also be deemed to be a violation by such corporation, association or organization.

(b) Any officer, agent or other person acting for or employed by any corporation or unincorporated association or organization, shall be subject and liable to punishment as well as such corporation or unincorporated association or organization for the violation by it of any provision of this Code, where such violation was the act or omission, or the result of the act, omission or order of any such person.

Sec. 1-16. General penalty; continuing violations.

(a) Whenever in this Code or any section thereof no penalty is specifically provided for the violation of such Code or section, the court before whom an offender shall be tried may sentence him to pay a fine not exceeding five hundred dollars ($500.00) or serve a term not exceeding thirty (30) days in jail, or both. Each day any violation of this Code or section thereof shall continue shall, unless otherwise specifically provided, constitute a separate offense.

(b) Whenever a person is accused of committing an act which is susceptible of being designated as several different offenses, the judge of the municipal court, upon the trial of such person, shall be required to elect which charge to prefer and a conviction or an acquittal upon such elected charge shall be a complete bar to further prosecution for the alleged offense.

(Code 1975, §§ 1-6, 35-18; Ord. No. 1993-282, § 1, 8-10-93

Cross references—Motor vehicles and traffic, Ch. 19; municipal court, Ch. 20; offenses, Ch. 21; police, Ch. 25.

State law reference—Authority, S.C. Code 1976, § 5-7-30.

Sec. 1-17. Fee in case of arrest and conveyance to police station or jail.

In all cases of arrest for violation of any provision of this Code or other ordinance of the city where the defendant has been actually arrested and conveyed to the police station or jail, there shall be charged against each such defendant costs in the sum of one dollar ($1.00), and upon conviction for such violation such amount of costs shall be added to and collected from such defendant in addition to any penalties of fines or imprisonment which may have been imposed by the municipal court.

(Code 1975, § 1-7)

Sec. 1-18. Severability of parts of Code.

It is hereby declared to be the intention of the council that the sections, paragraphs, sentences, clauses and phrases of this Code are severable, and if any phrase, clause, sentence, paragraph or section of this Code shall be declared unconstitutional or invalid by the valid judgment or decree of any court of competent jurisdiction, such unconstitutionality or invalidity shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections of this Code, since the same would have been enacted by the council without the incorporation in this Code of any such unconstitutional or invalid phrase, clause, sentence, paragraph or section.
(Code 1975, § 1-4)

Sec. 1-19. Ordinances not affected by adoption of Code.

The repeal provided for in section 2 of the ordinance adopting this Code shall not affect any of the following:

(1) Any offense or act committed or done or any penalty or forfeiture incurred or any contract or right established or accruing before the effective date of the ordinance adopting this Code;

(2) Any ordinance or resolution promising or guaranteeing the payment of money for the city, or authorizing the issuance of any bonds of the city or any evidence of the city's indebtedness, or any contract or obligations assumed by the city;

(3) The administrative ordinances or resolutions of the city not in conflict or inconsistent with the provisions of this Code;

(4) Any ordinance or resolution fixing salaries of officers or employees of the city;

(5) Any appropriation ordinance or resolution;

(6) Any right or franchise granted by the council to any person, firm or corporation;

(7) Any ordinance or resolution dedicating, naming, establishing, locating, relocating, opening, closing, paving, widening, vacating, etc., any street or public way in the city;

(8) Any ordinance or resolution establishing and prescribing the street grades of any streets in the city;

(9) Any ordinance or resolution providing for local improvements or assessing taxes therefor;

(10) Any ordinance establishing fees, rates, and charges, not inconsistent with this Code;

(11) Any ordinance establishing city boundaries or annexing property to the city;

(12) Any zoning or subdivision ordinance of the city or amendments thereto;

(13) Any ordinance authorizing formation of joint agencies with other governments;

(14) Ordinances or resolutions prescribing traffic regulations for specific locations, prescribing through streets, parking limitations, parking prohibitions, one-way traffic, limitations on loads of vehicles or loading zones, speed limits and other specific traffic regulations, not inconsistent with this Code;

(15) Any ordinance levying taxes;

(16) Any ordinance enacted after April 24, 1984;

nor shall such repeal be construed to revive any ordinance or part of an ordinance that has been repealed by a subsequent ordinance which is repealed by the ordinance adopting this Code.

Sec. 1-20. General penalty.

Any person or entity violating any provision of the Code of the City of Charleston, or any code adopted pursuant thereto, within the corporate limits of the City of Charleston, may be issued a uniform ordinance summons. Issuance of the uniform ordinance summons shall vest jurisdiction in the municipal court to hear and dispose of the charge for which the uniform ordinance

summons is issued and served. The uniform ordinance summons may be issued by any enforcement officer authorized by state law or any other city employees designated by the council as code enforcement officers. The bond amount for violation shall be prescribed by the chief municipal court judge. Code enforcement officers are prohibited from accepting bonds. Bonds are to be posted in the manner prescribed in the uniform ordinance summons. The uniform ordinance summons shall not be used to perform a custodial arrest.

This section does not apply to any ordinance which regulates the use of motor vehicles on the public roads.

The attached form is hereby adopted as the City of Charleston's Uniform Ordinance Summons.
(Ord. No. 1992-302, § 1, 12-15-92; Ord. No. 2011-35, § 1, 5-10-11)

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Chapter 2

ADMINISTRATION*

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Sec. 2-21. Salaries and expenses to be set by ordinance.
Sec. 2-22. Members holding other political offices prohibited; exception.
Sec. 2-23. Meetings; rules and procedures for meetings; freedom of information; emergency ordinances.
Sec. 2-24. Adoption of ordinances and resolutions proposed by a councilmember, standing committee or appointed board or commission.
Sec. 2-25. Annual audits.
Sec. 2-26. Quorum.
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Sec. 2-28. Rules of decorum.
Sec. 2-29. Code of conduct.

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*__Cross references—__Division of animal control, § 5-36 et seq.; board of commissioners of Colonial Common and Ashley River Embankment, § 9-16 et seq.; municipal elections commission, § 11-21 et seq.; fire department, § 13-26 et seq.; administration and enforcement of garbage and trash regulations, § 14-16 et seq.; drivers of governmental vehicles not excepted from motor vehicles and traffic chapter, § 19-2; board of commissioners of Marion Square, § 18-16; department of traffic and transportation, § 19-36 et seq.; administrative procedure for municipal court, § 20-21 et seq.; department of recreation, § 22-16 et seq.; department of parks, § 22-46 et seq.; department of planning and urban development, § 23-16 et seq.; planning and zoning commission, § 23-86 et seq.; police department, § 25-16 et seq.; police relief and pension fund commission, § 25-46 et seq.; city electrician, § 30-16 et seq.

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ARTICLE I. IN GENERAL

Sec. 2-1. Form of government.

The municipal government of the city shall be the mayor-council form of government.
(Ord. No. 1977-71, § 1, 11-8-77)

Secs. 2-2—2-15. Reserved.

ARTICLE II. CITY COUNCIL

DIVISION 1. GENERALLY

Sec. 2-16. Composition.

The city council shall be composed of the mayor and twelve (12) members of council.
(Ord. No. 1977-71, § 1, 11-8-77)

State law reference—Structure of council under mayor-council form, S.C. Code 1976, § 5-9-20.

Sec. 2-17. Powers.

(a) All powers of the city are vested in the city council, except as otherwise provided by law, and the city council shall provide for the exercise of and for the performances of all duties and obligations imposed on the municipality by law.

(b) The city council may establish municipal departments, offices and agencies, and may prescribe the function of all departments, offices and agencies, except that no function assigned by law to a particular department, office or agency may be discontinued or assigned to another department, office or agency.
(Ord. No. 1977-71, § 1, 11-8-77)

Sec. 2-18. Term of office; when term begins.

(a) Members of the city council shall be elected for a term of four (4) years.

(b) The mayor and members of council who are elected in the general election of 1979 shall take office on the second Monday of January 1980 and serve until the second Monday in January next following the regularly scheduled general election for the office of the mayor and for the members of council for the council districts on the ballot in such general election.

(Ord. No. 1977-71, § 1, 11-8-77; Ord. No. 1979-19, § 2)

Editor's note—Previously no included provisions of Ord. No. 1979-19, § 1, have been added to the Code at the request of the city. Said provisions have been included in section 2-18 at the discretion of the editor.

Sec. 2-19. Judge of election and qualifications of members and of grounds for forfeiture of office.

The city council shall be the judge of the election and qualifications of its members and of the grounds for forfeiture of their office and for that purpose shall have power to subpoena witnesses, administer oaths and require the production of evidence. Notice of a hearing concerning a member charged with conduct constituting grounds for forfeiture of office shall be published in one or more newspapers of general circulation in the municipality at least one week in advance of the hearing. Decisions made by the council under this section may be appealed to the court of common pleas.

(Ord. No. 1977-71, § 1, 11-8-77)

State law reference—Similar provisions, S.C. Code 1976, § 5-7-210.

Sec. 2-20. Grounds for forfeiture of office; filling vacancies in office.

(a) A council member shall forfeit his or her office if he or she:

(1) Lacks at any time during his or her term of office any qualifications of the office prescribed by the general law and the constitution;

(2) Violates any express prohibitions of chapters one through seventeen, Title 5 of the South Carolina Code of Laws for 1976; or

(3) Is convicted of any crimes involving moral turpitude.

(b) A vacancy on the city council shall be filled for the remainder of the unexpired term at the next regular election or at a special election if the vacancy occurs one hundred eighty (180) days or more prior to the next general election.
(Ord. No. 1977-71, § 1, 11-8-77)

State law reference—Similar provisions, S.C. Code 1976, § 5-7-200.

Sec. 2-21. Salaries and expenses to be set by ordinance.

(a) The council may determine the salary of city elected officials by ordinance; provided, that an ordinance establishing or increasing such salaries shall not become effective until the commencement date of the terms of two (2) or more members elected at the next general election following the adoption of the ordinance, at which time it will become effective for all members whether or not they were elected in such election. The mayor and council members may also receive payment for actual expenses incurred in the performance of their official duties within limitations prescribed by section 2-21(f).

(b) The salaries of the councilmembers shall be twenty thousand one hundred thirty-one dollars and ninety cents ($20,131.99). Further, each councilmember shall be limited to no more than four (4) out-of-town overnight trips per year that are funded with city funds or city-administered grant funds.

(c) The salary of the mayor currently is and remains at one hundred eighty-eight thousand two hundred twenty-two dollars and eleven cents ($188,222.11).

(d) The mayor pro temp, in recognition of the additional work provided by virtue of the position, shall be paid twenty-two thousand one hundred thirty-one dollars and ninety cents ($22,131.99).

(e) Beginning in year 2022, the salary of elected city officials will be adjusted by the annual cost of living increase allotted to unclassified city employees.

(f) The following actual expenses incurred in the performance of council members' official duties will be eligible for reimbursement up to each council member's allotment of reimbursable administrative expenses:

(1) Costs incurred for constituent communications to include postage;

(2) Expenses related to official city-related meetings with constituents to include facility rental fees and refreshments;

(3) Constituent recognition items; and

(4) Council member nametags and city promotional items such as city pins and t-shirts;

(g) Any expense submitted by a council member for reimbursement must be submitted with a completed expense report, all required documentation as set forth in the expense report, and a receipt for the actual expense incurred.

(h) If for any reason an expense is reimbursed that is later determined to be not related to the performance of the council member's official duties, the council member will immediately reimburse the city for the total amount of the expense.

(i) Once a councilmember has reached their allotment of reimbursable administrative expenses as established in each year's budget, no further expenses will be reimbursed.
(Ord. No. 1983-61, § 1, 10-25-83; Ord. No. 1987-3, § 1, 1-13-87; Ord. No. 1991-35, § 1, 4-9-91; Ord. No. 1993-116, § 1, 5-11-93; Ord. No. 1999-151, § 1, 10-26-99; Ord. No. 2003-27, §§ 1, 2, 3-11-03; Ord. No. 2007-12, §§ 1, 2, 1-9-07; Ord. No. 2015-033, §§ 1, 2, 4-13-15; Ord. No. 20321-149, §§ 1—5, 10-26-21; Ord. No. 2024-025, § 1, 2-27-24)

State law reference—Similar provisions, S.C. Code 1976, § 5-7-170.

Sec. 2-22. Members holding other political offices prohibited; exception.

No council members shall hold any other municipal office or municipal employment while serving the term to which he or she was elected, except where authorized by law.
(Ord. No. 1977-71, § 1, 11-8-77)

State law reference—Similar provisions, S.C. Code 1976, § 5-7-180.

Sec. 2-23. Meetings; rules and procedures for meetings; freedom of information; emergency ordinances.

(a) The council, after public notice, shall meet regularly at least once in every month at such times and places as the council may prescribe by rule. Special meetings may be held on the call of the mayor or of a majority of the members.

(b) The council shall determine its own rules and order of business and shall provide for keeping minutes of its proceedings which shall be a public record.

(c) Procedures for meetings of a municipal governing body shall not conflict with the provisions of the general laws of the state with regard to freedom of information.

(d) To meet public emergencies affecting life, health, safety or the property of the people, the council may adopt emergency ordinances; but such ordinances shall not levy taxes, grant, renew or extend a franchise or impose or change a service rate. Every emergency ordinance shall be enacted by the affirmative vote of at least two-thirds (⅔) of the members of council present. An emergency ordinance is effective immediately upon its enactment without regard to any reading, public hearing, publication or public notice requirements. Emergency ordinances shall expire automatically as of the sixty-first day following the date of enactment.

(e) All regular meetings of city council that are recorded by a videographer shall be posted virtually in real time or televised as long as any existing cable franchise provider is required, as a part of its franchise agreement with the city, to provide such televising services, including at least one (1) camera and camera operator, to televise such meetings at no cost to the city. The city shall place a copy of each televised or virtually-posted regular city council meeting on the city's website. The public shall obtain copies of any regular city council meeting in accordance with the requirements of the S.C. Freedom of Information Act. Copies of all virtual or televised meetings of city council shall be archived and retained by the city's records management division.

(f) Councilmembers may attend standing committee meetings virtually or by telephone. Councilmembers may attend meetings of city council or the committee on ways and means virtually or by telephone only if the remaining members attending in person constitute a quorum of the governing body. During emergency meetings or specially called meetings due to exigent circumstances, councilmembers may attend virtually without the requirement that a quorum be present in person. When

virtual or telephonic attendance is permitted in accordance with this subparagraph, the following rules and procedures shall apply:

(1) Notice of virtual or telephonic attendance shall be provided to the clerk of council's office and when possible, not less than twenty-four (24) hours before the scheduled start time for the meeting. The clerk of council shall advise the mayor or committee chair of the request.

(2) At any meeting where a councilmember is attending virtually or by telephone, there shall be a device that allows the voice of the remotely-participating councilmember to be heard by everyone present in the meeting room.

(3) Any meeting where a councilmember is attending virtually or by telephone shall be conducted in accordance with the requirements of the S.C. Freedom of Information Act.

(4) Any councilmember attending a committee meeting virtually or by phone where an executive session is held will ensure that no other person is within a range that would allow matters to be discussed or considered to be heard.

(Ord. No. 1977-71, § 1, 11-8-77; Ord. No. 2010-246, § 1, 10-12-10; Ord. No. 2016-117, § 1, 9-27-16; Ord. No. 2019-098, § 1, 10-8-19; Ord. No. 2022-016, § 1, 1-25-22; Ord. No. 2022-047, § 1, 3-22-22)

State law reference—Similar provisions, S.C. Code 1976, § 5-7-250.

Sec. 2-24. Adoption of ordinances and resolutions proposed by a councilmember, standing committee or appointed board or commission.

(a) A councilmember may bring a proposed ordinance or resolution forward to city council by requesting a discussion item under "Council Communications" on the city council agenda. A majority of city council may then direct staff to draft the proposed ordinance or resolution to be considered by the appropriate standing committee. The standing committee's action on the proposed ordinance and resolution will be reported

out to city council at the subsequent city council meeting where city council will have the option of giving the ordinance a first reading or approving the resolution. Should there be no appropriate committee for assignment, a majority of council may direct staff to draft proposed legislation for discussion and/or consideration at a subsequent meeting. This process will not apply to resolutions proposed by councilmembers that are intended to honor individuals and do not require the city to adopt a policy or position on a specific issue.

(b) Any proposed ordinance originating from a standing committee or appointed board or commission, shall be presented to council for first reading at the regularly scheduled meeting after a two-week review period. This subsection does not apply to ordinances generated from ways and means committee, ordinances proposed by city staff or any emergency ordinance. Any proposed resolution from a standing committee or appointed board or commission shall be presented to council for consideration after a two-week review period. This subsection does not apply to resolutions generated from ways and means committee, resolutions proposed by city staff or any emergency resolutions.

(c) A proposed ordinance and resolution shall be introduced in writing and in the form required for final adoption. City council shall by ordinance establish its own rules and procedures to the adoption of ordinances and resolutions. No ordinance shall have the force of law until it has been read three (3) times and in conformance with the procedures set forth in section 2-46. Further, any ordinance providing for the adoption of the annual city budget shall be presented to city councilmembers at least two (2) weeks prior to its first reading.

(d) The city council may adopt any standard code or technical regulation by reference thereto in the adopting ordinance. The procedure and requirements governing such ordinance shall be as prescribed by state law. Copies of any ordinance adopting a code of technical regulations shall be made available by the municipal clerk for distribution or for purchase at a reasonable price.

(Ord. No. 1977-71, § 1, 11-8-77; Ord. No. 1998-01, § 1, 1-13-98; Ord. No. 2023-035, § 1, 2-14-23; Ord. No. 2026-066, § 1, 3-24-26)

State law reference—Similar provisions, S.C. Code 1976, §§ 5-7-270, 5-7-280.

Sec. 2-25. Annual audits.

The council shall provide for an independent annual audit of all financial records and transactions of the municipality and of any agency funded in whole by municipal funds and may provide for more frequent audits as it deems necessary. Special audits may be provided for any agency receiving municipal funds as the municipality deems necessary. Such audits shall be made by a certified public accountant, public accountant or firm of such accountants who have no personal interest, direct or indirect, in the fiscal affairs of the municipal government or any of its officers. The council may, without requiring competitive bids, designate such accountant or firm annually or for a period not exceeding four (4) years, provided that the designation for any particular fiscal year shall be made no later than thirty (30) days after the beginning of such fiscal year. The report of the audit shall be made available for public inspection. The council may in its discretion accept independent audits of municipal agencies and departments and include such audits in its general report of the audit of the municipality.

(Ord. No. 1977-71, § 1, 11-8-77; Ord. No. 1998-01, § 1-13-98)

State law reference—Similar provisions, S.C. Code 1976, § 5-7-240.

Sec. 2-26. Quorum.

The mayor, or in his absence the mayor pro tem, and not less than two-thirds (⅔) of the council members, shall be a quorum of the city council for the imposition of taxes and the appropriation of money; and for the discharge of all other duties imposed, and all other powers and authorities vested in such city by law, the mayor, or in his absence the mayor pro tem, and not less than one-half (½) of the council members shall be a quorum.

(Ord. No. 1977-71, § 1, 11-8-77)

Sec. 2-27. Vote required when document is not posted in council members' mail boxes at city hall prior to 5:00 p.m. on the Wednesday prior to regular city council meetings.

A two-thirds (⅔) vote of city council members present shall be required to consider any item on city council's agenda when the completed document has not been posted in council member's

mail boxes at city hall prior to 5:00 p.m. on the Wednesday immediately prior to any regular meeting of city council. However, best efforts will be made to deliver agenda packets to council members' specified addresses by 5:00 p.m. each Wednesday prior to the scheduled meeting.
(Ord. No. 1996-173, § 1, 9-3-96; Ord. No. 1998-181, § 1, 10-27-98; Ord. No. 2010-84, § 1, 4-27-10)

Sec. 2-28. Rules of decorum.

(1) *Rules of decorum.*

While any meeting of city council is in session, the following rules of decorum shall be observed:

(a) Any person who speaks at a city council meeting shall conduct himself or herself in a manner appropriate to the decorum of the meeting and shall not use any profane, abusive or obscene language nor any fighting words or otherwise engage in disorderly conduct. Any person who makes such remarks or otherwise engages in disorderly conduct which disrupts, disturbs or otherwise impedes the orderly conduct of a city council meeting shall, at the discretion of the mayor, or in his absence, the mayor pro tempore, be barred from further audience before city council during that meeting and may be removed from the building.

(b) Any law enforcement officer who is serving as sergeant-at-arms of city council shall carry out all orders and instructions given by the mayor or in his absence, the mayor pro tempore, for the purpose of maintaining order and decorum at the city council meeting. Upon instruction of the mayor, or in his absence, the mayor pro tempore, it shall be the duty of such law enforcement officer to remove from the city council meeting any person who is disturbing the proceedings of city council.

(c) This section in no way limits any person from being charged or arrested for criminal conduct which occurs

during the course of a city council meeting or during the course of a person being removed from a city council meeting pursuant to this section.

(Ord. No. 2007-13, § 1, 1-23-07; Ord. No. 2008-08, § 1, 1-22-08; Ord. No. 2012-58, § 1, 2-14-12; Ord. No. 2016-015, § 1, 1-26-16)

Sec. 2-29. Code of conduct.

(a) *Code of Conduct.* A member shall act at all times in accordance with the member's oath, which provides as follows:

> I do solemnly swear that I am duly qualified, according to the Constitution of this State, to exercise the duties of the office to which I have been appointed, and that I will, to the best of my ability, discharge the duties thereof, and preserve, protect and defend the Constitution of this State and of the United States.
>
> As Councilmember (or Mayor) of the municipality of Charleston, I will equally, fairly and impartially, to the best of my ability and skill, exercise the trust reposed in me, and I will use my best endeavors to preserve the peace and carry into effect according to law, the purposes for which I have been elected. So help me God.

(b) *Member.* As used herein, the term "member" includes the mayor and individual members of council.

(c) *Other rules.* This section 2-29 applies in addition to the other substantive and procedural rules applicable to members contained in the City Code, and under state and federal laws, including, without limitation, state ethics laws. Without limiting the foregoing, Section 61 of Robert's Rules of Order Newly Revised (11th ed.), as may be amended, shall apply to breaches of order by members in a meeting.

(d) *Compliance and enforcement.*

(1) A public disciplinary hearing against a member for violation of the oath may be held only upon resolution of council moved and adopted according to the following procedures: (1) a member must move to hold a public disciplinary hearing; (2) two (2) additional members

must second the motion; and (3) council must approve the motion by a vote of at least two-thirds (⅔) of members present and voting.

(2) A member charged with conduct constituting a violation of the oath in accordance with subsection 2-29(d)(1) shall be entitled to a public disciplinary hearing. Notice of such hearing shall be published in one or more newspapers of general circulation in the municipality at least one week in advance of the hearing. After the hearing, the question to be considered by council shall be: "Based on the evidence presented during the hearing, has the member (a) intentionally violated the oath; and/or (b) committed a serious violation of the Oath?" If the question is answered in the affirmative by at least two-thirds (2/3) of the members present and voting, council shall proceed to consider one or more of the following sanctions, which shall be imposed by majority vote of the members present and voting: (a) censuring the member; and/or (b) removing the member's seniority/committee status.

(3) Unless prohibited by applicable law, the member accused and/or charged with conduct constituting a violation of the oath may vote on the motion to set a public disciplinary hearing, the motion to determine whether the member violated the oath, or any sanctions.

(4) Nothing herein shall preclude city council from voting to go into executive session to receive legal advice regarding the interpretation or application of the oath.

(e) *Effect of violation.* A violation of this section 2-29 shall not be considered a basis for challenging the validity of a council or committee decision, nor shall this section 2-29 create additional rights in third parties or members of the public.
(Ord. No. 2021-059, § 1, 4-27-21)

Secs. 2-30—2-35. Reserved.

DIVISION 2. RULES OF ORDER*

Sec. 2-36. Meetings.

The regular meeting of the city council shall be held at 5:00 p.m., on the second and fourth Tuesdays of January, February, March, April, May, September, and October; and at the same hour on the third Tuesday of June, July, and August; and at the same time on the first and third Tuesdays of December. For the month of November, city council will be held on the first and third Tuesdays of November or the second and fourth Tuesdays of November so as to avoid the week of Thanksgiving. Regular meetings of council will be held in City Hall except that council may, at its discretion, hold four (4) regular meetings at alternate locations within the city limits. Regular meeting dates, times, and locations are subject to change. Special meetings may be held at any time on the call of the mayor, at his/her discretion or whenever he/she shall be thereunto requested in writing by at least one-third (⅓) of the whole number of councilmembers elected; such request stating in brief the nature and objects of the call. Whenever the designated Tuesday falls on a holiday observed by City Hall, council shall hold its regular meeting on the next succeeding Wednesday.
(Ord. No. 2022-017, § 1, 1-25-22; Ord. No. 2023-065, § 1, 3-28-23; Ord. No. 2025-016, § 1, 2-25-25)

Sec. 2-37. Call to order; order of business.

Immediately at the hour appointed for the meeting, the mayor shall take the chair, and the clerk shall proceed to call the roll. If a quorum is present, business shall proceed in the following order:

(1) Properly advertised public hearings shall be conducted. Immediately following the adjournment of the public hearings, city council shall discuss the matters for which the public hearings were held.

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*__Editor's note—__Ord. No. 2022-017, § 1, adopted Jan. 25, 2017, amended and restated former Div. 2, §§ 2-36—2-71, in its entirety. Former Div. 2 pertained similar subject matter and derived from Ord. No. 2004-06, § 1, 1-27-94; Ord. No. 2008-08, § 1, 1-22-08; Ord. No. 2010-84, § 2, 4-27-10; Ord. No. 2010-111, §§ 3, 4, 7-20-10; Ord. No. 2012-58, § 1, 2-14-12; Ord. No. 2016-015, § 1, 1-26-16; Ord. No. 2018-149, § 1, 11-27-18; 2019-001, § 1, 1-8-19; Ord. No. 2019-056, § 1, 6-18-19; Ord. No. 2019-137, § 1, 12-17-19.

(2) Reading of the journal of the previous meeting.

(3) Citizens participation period as provided by section 2-69 herein.

(4) Petitions and communications, to include reports or communications from city officers or boards.

(5) Councilmember communications.

(6) Consent agenda items.

(7) Reports from standing committees. If a standing committee does not have any actionable items to report to city council, the standing committee report will appear under consent agenda items.

(8) Reports from special or joint committees.

(9) Bills already in possession of council shall then be taken up for a second or third reading.

(10) Introduction of bills and resolutions.

(11) Miscellaneous business not included in any of the previous orders.

(Ord. No. 2022-017, § 1, 1-25-22; Ord. No. 2023-065, § 1, 3-28-23; Ord. No. 2024-042, § 1, 3-12-24)

Sec. 2-38. Members may leave upon absence of quorum fifteen minutes after starting time.

If a quorum of council fails to appear within fifteen (15) minutes after the hour appointed, no member shall be required to attend longer, unless he/she chooses to do so.

(Ord. No. 2022-017, § 1, 1-25-22)

Sec. 2-39. Leaving council meeting without permission of mayor prohibited.

Any member leaving the council chamber during a meeting, without permission of the mayor, shall be fined five dollars ($5.00), and should his/her leaving council chamber, without such permission, cause any suspension of business, he/she shall be fined fifteen dollars ($15.00), unless excused. Permission to leave the council chamber shall be requested of the mayor in

open session of council after having been duly recognized. The amount of all fines shall be deducted from the councilmember's salary on the councilmember's next paycheck.
(Ord. No. 2022-017, § 1, 1-25-22)

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Sec. 2-40. Recognition of members desiring to speak; forms of address; profanity.

(a) Any member when about to speak shall address the mayor as "Mr. Mayor," but shall not proceed with his/her remarks until recognized and named by the mayor. A member shall at all times avoid any profanity or disrespect to the council and all personalities, and shall confine himself/herself to the question under consideration. The fine for use of profanity shall be ten dollars ($10.00) for the first occurrence at a meeting and fifteen dollars ($15.00) for the second occurrence at the same meeting. The amount of all fines shall be deducted from the councilmember's salary on the councilmember's next paycheck.

(b) The mayor, when addressed by a member, shall name the member using the title of "councilmember." The member who shall first seek to be heard in order shall be first heard and if two (2) or more members seek to be heard at the same time, the mayor shall decide who shall speak first.
(Ord. No. 2022-017, § 1, 1-25-22)

Sec. 2-41. Limit on speeches.

No member shall speak a second time on the same question until every member desirous of speaking shall have spoken; and no more than twice without leave of council, except to explain. Nor shall he/she speak at any time longer than ten (10) minutes.
(Ord. No. 2022-017, § 1, 1-25-22)

Sec. 2-42. Division of house.

(a) If upon a question taken by acclamation the mayor doubts, or a division be called for, council shall divide, by those in the affirmative first raising their right hands, then those in the negative.

(b) The ayes and noes on any question shall always be ordered when required by any two (2) members, and the clerk shall call the roll and take names of all who vote aye and all who vote no, which he/she shall enter on the journal. When the question has been stated and the first response has been made

to the clerk's call, all debate shall cease, and no members shall say more than "aye" or "no." During the call no member shall leave the council chamber.
(Ord. No. 2022-017, § 1, 1-25-22)

Sec. 2-43. Explanation of vote.

A member may be permitted to explain his/her vote only by leave of council, and for such explanation he/she may be allowed not more than two (2) minutes.
(Ord. No. 2022-017, § 1, 1-25-22)

Sec. 2-44. Mayor to decide questions of order.

All questions of order shall be decided by the mayor without any debate, subject to an appeal to council.
(Ord. No. 2022-017, § 1, 1-25-22)

Sec. 2-45. Mayor to vote in all cases; exception; effect of tie vote.

The mayor shall vote in all cases (except when he/she may be directly interested, or shall be excused), his/her name being called last in the ayes and noes. If, with his/her vote, the council be equally divided, the question shall be decided in the negative.
(Ord. No. 2022-017, § 1, 1-25-22)

Sec. 2-46. Forms of laws; each ordinance to receive three readings; adoption procedures.

(a) All laws passed by council shall be in the form of ordinances, which shall receive three (3) readings. The first reading of a bill shall be by title only, for information; no amendment shall then be in order. The bill presented shall be printed as a part of the official proceedings, and lie over until the next meeting of council. No notice shall be necessary for the introduction of a bill.

(b) The style of all ordinances shall be, "Be it Ordained by the Mayor and Councilmembers of Charleston, in City Council Assembled."

(c) The second reading of a bill shall be by title only except that, if requested by any two (2) members of council, it shall be read section by section. After the bill has received second reading and all amendments and privileged motions (if any) disposed of, the question shall be, "Shall this Bill be ordered to a third reading?" Upon a decision in the affirmative, the order shall be accordingly; a decision in the negative shall be a rejection.

(d) At a third reading of the bill, the bill shall be read by its title only. After the bill shall have been so read the question shall be, "Shall this Bill pass, the title thereof be changed to an Ordinance and be ordered engrossed for ratification?" Upon the third reading of a bill, no amendment shall be offered, except by unanimous consent or previous notice.

(e) After a bill shall have passed its third reading and shall have been ordered to be engrossed for ratification, it shall then be ratified in open council by being signed by the mayor and clerk.

(f) A bill having passed its third reading but held over for ratification cannot at a subsequent meeting be considered, except by unanimous consent, two-thirds (⅔) of the members of the council being present at that meeting. It shall be the duty of the clerk to have such a bill which has passed its third reading engrossed and ready for ratification at the next regular meeting, and neither the clerk nor the city council shall have power to withhold its ratification, except by the unanimous consent of the council, two-thirds (⅔) of the council being present.

(g) Every bill before presentation shall have its title engrossed; every report its title at length; every petition, memorial, or paper its prayer or substance; and any council member presenting such a bill, report, memorial, or other paper shall endorse his/her name therein.

(Ord. No. 2022-017, § 1, 1-25-22)

Sec. 2-47. Notification of business association prior to debate or vote on lease or transfer of city-owned or controlled property.

Prior to debate on a vote by city council or any standing committee thereof to consider the transfer or lease of city owned

or controlled property to a business as defined in § 8-13-100(3) of the 1976 S.C. Code of Laws, as amended, including a non-profit corporation (hereinafter referred to as "business"), with which a councilmember or the mayor is associated, city councilmembers and the mayor shall be notified of the nature of the association between the councilmember or the mayor and the business by the councilmember or the mayor having the association with the business. The city employee responsible for placing the matter on the agenda for consideration shall also be subject to the requirements of this section if the employee has knowledge of the councilmember's or mayor's association with the business.
(Ord. No. 2022-017, § 1, 1-25-22)

Sec. 2-48. Use of electronic devices prohibited.

Any electronic device brought to a city meeting shall be set to silent or vibrate, so as not to disturb the meeting, Nothing in this provision shall apply to the clerk of council's office, council member or mayor in executing the official duties of that position. Any person who violates this section shall be removed from council chamber and shall may not be readmitted
(Ord. No. 2022-017, § 1, 1-25-22)

Sec. 2-49. Standing committees—Appointment by the mayor.

The mayor, at the first meeting in January, shall recommend appointments to standing committees and shall recommend the chairperson of each to city council. City council shall have the responsibility to vote on recommended appointments no later than the second meeting in January. The committees from the previous council will continue to meet regularly until the new recommendations are approved. In case of a vacancy in any committee, or in the chairpersonship of any committee, from any cause during the mayor's term of office, he/she shall fill such vacancy. The mayor may, from time to time, make such changes in said committees as may be necessary, or conducive to the convenience of the members.
(Ord. No. 2022-017, § 1, 1-25-22; Ord. No. 2023-065, § 1, 3-28-23)

Sec. 2-50. Same—established.

The standing committees are as follows:

(1) Ways and means, to consist of all councilmembers and the mayor, to whom shall be referred all matters connected with city finance, assessments and taxes. A quorum shall be seven (7) members.

(2) Public works and utilities, to consist of five (5) members of council and the mayor. A quorum shall be three (3) members.

(3) Public safety, to consist of five (5) members of council and the mayor. A quorum shall be three (3) members.

(4) Traffic and transportation, to consist of five (5) members of council and the mayor. A quorum shall be three (3) members.

(5) Real estate, to consist of five (5) members of council and the mayor. A quorum shall be three (3) members.

(6) Community development, to consist of five (5) members of council and the mayor. A quorum shall be three (3) members.

(7) Special facilities, to consist of five (5) members of council and the mayor. A quorum shall be three (3) members.

(8) Human resources, to consist of five (5) members of council and the mayor. A quorum shall be three (3) members.

(9) Recreation, to consist of five (5) members of council and the mayor. A quorum shall be three (3) members.

(10) License, to consist of five (5) members of council and the mayor. A quorum shall be three (3) members.

(11) Audit, to consist of all councilmembers and the mayor. A quorum shall be seven (7) members.

All other committees shall be appointed by the mayor, unless a ballot is called for by the members of council.
(Ord. No. 2022-017, § 1, 1-25-22; Ord. No. 2023-065, § 1, 3-28-23)

Sec. 2-51. Same—Duties generally.

(a) It shall be the duty of each member of a standing committee to attend all meetings of the committee of which he/she is a member, and lend his/her aid and assistance to the proper investigation into and report upon all matters referred to the committee.

(b) It shall be the duty of the standing committees of the council to carefully examine into and report upon all petitions and other matters referred to them by this body, using due diligence thereon.

(c) It shall be the duty of the standing committees and of the members thereof, to carefully examine the ordinances of the city appertaining to the subject with which the said committee is especially charged and to endeavor to ascertain from time to time whether the ordinances appertaining to the said subject are being properly regarded and enforced, and whether in their opinion these ordinances are sufficient and satisfactory; reporting from time to time to city council such violations as they may ascertain, such changes in ordinances on aforesaid subjects as they may deem proper, or any other matter connected therewith, which may seem to them to be in the best interest of the city.
(Ord. No. 2022-017, § 1, 1-25-22)

Sec. 2-52. Same—Referral of matters brought before council.

(a) The matters to be referred to the said several standing committees shall be such as appertain or relate to the subjects designated in the name of said committee and whenever matters shall be brought before city council by petition or otherwise connected with or relating to anyone of the said subjects exclusively, said matters shall be referred as of course to the standing committee having charge of said subject.

(b) Whenever any matter shall come before the city council by petition or otherwise, which shall be connected with or related to two (2) or more of these subjects with which the standing committees are especially charged, council shall in such case determine whether it shall be referred to a special

committee or to a joint committee, to be composed of two (2) or more of the standing committees concerned therewith, or to one of the said standing committees, and in the latter case to which one the reference is to be made.
(Ord. No. 2022-017, § 1, 1-25-22)

Sec. 2-53. Same—Calling of meetings.

The chairman of any standing committee shall, upon the written request of not less than one-third (1/3) of such committee within two (2) days thereafter, issue a call for a meeting of such committee, to be held not later than ten (10) days thereafter, and on his/her failure to do so the members making such request may call a meeting of such committee.
(Ord. No. 2022-017, § 1, 1-25-22)

Sec. 2-54. Same—Ways and means.

(a) *Composition.* The committee on ways and means shall consist of all councilmembers and the mayor, to whom shall be referred all matters connected with city finance, assessments and taxes.

(b) *Quorum.* A quorum shall be seven (7) members.

(c) *Responsibilities.* The responsibilities of the committee on ways and means shall involve legislative action on other matters pertaining to:

(1) Adoption of annual budget;

(2) Budgetary allocations and reallocations;

(3) Taxation ordinances and levies;

(4) Assessment and collection of revenues;

(5) Purchasing policies;

(6) Licensing;

(7) Contracts executed by executive branch;

(8) Review and approval of expenditures of proceeds from municipal hospitality tax;

(9) Review and approval of expenditures of proceeds from municipal accommodations tax.

(d) *Coordination with executive branch.* The committee on ways and means shall be responsible for coordination with the procurement division and the finance division of the department of administrative services and the corporation counsel.
(Ord. No. 2022-017, § 1, 1-25-22)

Sec. 2-55. Same—Public works and utilities.

(a) *Composition.* The committee on public works and utilities shall consist of five (5) members of council and the mayor.

(b) *Quorum.* A quorum shall be three (3) members.

(c) *Responsibilities.* The responsibilities of the committee on public works and utilities shall involve recommendations to council on matters pertaining to:

(1) Liaison with public works commission in matters related to water supply and distribution, service and pollution control;

(2) Improvement of sanitation and garbage services and maintenance of streets;

(3) Public works engineering;

(4) City maintenance services;

(5) Building, plumbing and electrical inspections, and code enforcement;

(6) Municipal marina and yacht basin.

(7) Stormwater project and floodplain management and stormwater maintenance.

(d) *Coordination with executive branch.* The committee on public works and utilities shall be responsible for coordination with the department of public service, department of stormwater management, department of traffic and transportation, housing board of appeals, commissioners of public works, and the yacht basin commission.
(Ord. No. 2022-017, § 1, 1-25-22)

Sec. 2-56. Same—Public safety.

(a) *Composition.* The committee on public safety shall consist of five (5) members of council and the mayor.

(b) *Quorum.* A quorum shall be three (3) members.

(c) *Responsibilities.* The responsibilities of the committee on public safety shall involve recommendations to council on all matters pertaining to:

(1) Fire service policy;

(2) Police service policy;

(3) Civil defense and emergency planning;

(4) Municipal penal ordinances and court services.

(d) *Review of judicial candidates.* The committee on public safety shall review and make recommendations regarding judicial candidates submitted by the mayor prior to the mayor's formal nomination of a judicial candidate to council for its approval.

(e) *Coordination with executive branch.* The committee on public safety shall be responsible for coordination with the police department, fire department, trustees of the fireman's insurance and pension fund, police relief and pension fund commission, board of firemasters and municipal court system. (Ord. No. 2022-017, § 1, 1-25-22; Ord. No. 2023-065, § 1, 3-28-23)

Sec. 2-57. Same—Community development.

(a) *Composition.* The committee on community development shall consist of five (5) members of council and the mayor.

(b) *Quorum.* A quorum shall be three (3) members.

(c) *Responsibilities.* The responsibilities of the committee on community development shall involve recommendations to the council on matters pertaining to:

(1) Land use and development policy;

(2) Municipal planning and comprehensive development planning services;

(3) Urban and neighborhood redevelopment services;

(4) Economic development services.

(d) *Coordination with executive branch.* The committee on community development shall be responsible for coordination with the department of planning and urban development, public works commission, planning and zoning commission, redevelopment and preservation commission, board of architectural review, CBD revitalization commission, board of adjustment, and the economic development commission.
(Ord. No. 2022-017, § 1, 1-25-22; Ord. No. 2023-065, § 1, 3-28-23)

Sec. 2-58. Same—Traffic and transportation.

(a) *Composition.* The committee on traffic and transportation shall consist of five (5) members of the council and the mayor.

(b) *Quorum.* A quorum shall be three (3) members.

(c) *Responsibilities.* The responsibilities of the committee on traffic and transportation shall involve recommendations to the council on matters pertaining to:

(1) Highway programs;

(2) Traffic planning and engineering;

(3) Mass transit;

(4) Municipal parking facilities.

(d) *Coordination with executive branch.* The committee on traffic and transportation shall be responsible for coordination with the department of traffic and transportation.
(Ord. No. 2022-017, § 1, 1-25-22; Ord. No. 2023-065, § 1, 3-28-23)

Sec. 2-59. Same—Special facilities.

(a) *Composition.* The committee on special facilities shall consist of five (5) members of the council and the mayor.

(b) *Quorum.* A quorum shall be three (3) members.

(c) *Responsibilities.* The responsibilities of the committee on special facilities shall involve recommendations to the council on matters pertaining to matters pertaining to City owned special facilities. The committee shall meet on a quarterly basis.

(d) *Coordination with executive branch.* The committee on special facilities shall be responsible for coordination with the department of special facilities, commission on arts, commission on history and the board of trustees of the Charleston Museum.
(Ord. No. 2022-017, § 1, 1-25-22; Ord. No. 2023-065, § 1, 3-28-23)

Sec. 2-60. Same—Human resources.

(a) *Composition.* The committee on human resources shall consist of five (5) members of the council and the mayor.

(b) *Quorum.* A quorum shall be three (3) members.

(c) *Responsibilities.* The responsibilities of the committee on human resources shall involve recommendations to the council on matters pertaining to:

(1) Municipal personnel and merit system;

(2) Accident review;

(3) Municipal health, education, and welfare programs;

(4) Charitable institutions;

(5) Community social service programs.

(d) *Coordination with executive branch.* The committee on human resources shall be responsible for coordination with the personnel division of the department of administrative services, the commissioners of the Charleston Orphan House, and the commissioners of the Charleston Housing Authority.
(Ord. No. 2022-017, § 1, 1-25-22)

Sec. 2-61. Same—Recreation.

(a) *Composition.* The committee on recreation shall consist of five (5) members of the council and the mayor.

(b) *Quorum.* A quorum shall be three (3) members.

(c) *Responsibilities.* The responsibilities of the committee on recreation shall involve recommendations to the council on matters pertaining to:

(1) Parks improvement and expansion;

(2) Recreation services and facilities;

(3) Cultural services.

(d) *Coordination with executive branch.* The committee on recreation shall be responsible for coordination with the department of recreation, commissioners of the Colonial Common and Ashley River Embankment, commissioners of Marion Square, golf course commission and board of recreation.
(Ord. No. 2022-017, § 1, 1-25-22)

Sec. 2-62. Same—Real estate.

(a) *Composition.* The committee on real estate shall consist of five (5) members of the council and the mayor.

(b) *Quorum.* A quorum shall be three (3) members.

(c) *Responsibilities.* The responsibilities of the committee on real estate shall involve recommendations to the council on matters pertaining to municipal real estate transactions.
(Ord. No. 2022-017, § 1, 1-25-22; Ord. No. 2023-065, § 1, 3-28-23)

Sec. 2-63. Same—License.

(a) *Composition.* The committee on licenses shall consist of five (5) members of the council and the mayor.

(b) *Quorum.* A quorum shall be three (3) members.

(c) *Responsibilities.* The responsibilities of the license committee shall involve recommendations to the council on matters pertaining to the business license ordinance for the City of Charleston and matters related thereto. The committee will also be responsible for considering appeals of business license fees

and any determination, denial, or suspension and proposed revocation of a business license, and appeals of peddler permit applications that have been denied.
(Ord. No. 2022-017, § 1, 1-25-22)

Sec. 2-64. Other committees.

All committees other than standing committees shall be appointed by the mayor, unless a ballot is called for by a majority of the members of council.
(Ord. No. 2022-017, § 1, 1-25-22)

Sec. 2-65. Prayers, petitions and memorials not to be granted without referral to and report by committee; exception.

No prayer, petition or memorial shall be granted, except by unanimous consent, without first being referred to its appropriate committee and until there has been a report from such committee.
(Ord. No. 2022-017, § 1, 1-25-22)

Sec. 2-66. Election of officers and commissioners.

The election of all officers and commissioners shall be by roll call, the clerk of council to call the roll and every member to state for whom he desires to vote, except when otherwise provided for by ordinances, and the election shall be determined by a majority of votes actually given. When, however, there is only one nomination for any vacant office, the mayor shall cast the unanimous vote of council for that office; unless a councilmember specifically shall request a roll call.
(Ord. No. 2022-017, § 1, 1-25-22)

Sec. 2-67. Robert's Rules to be followed.

The rules of parliamentary practice comprised in the current edition of Robert's Rules of Order shall govern the council in all cases to which they are applicable, and in which they are not inconsistent with the foregoing rules.
(Ord. No. 2022-017, § 1, 1-25-22)

Sec. 2-68. Election of mayor pro tempore.

At the first meeting of each year, and upon recommendation of the mayor, there shall be elected by ballot from the councilmembers, a mayor pro tempore who for the ensuing year, shall act as mayor, during the sickness or temporary absence of the mayor, and who shall not be re-elected to such office during the term, and in the event of the sickness or temporary absence of the mayor pro tempore, while acting as mayor, then and in that event, the chairman of the first standing committee in the order named in section 2-49, who shall be in the city and available, shall be acting mayor in said interim.
(Ord. No. 2022-017, § 1, 1-25-22)

Sec. 2-69. Citizens' participation and petitions and memorials.

Members of the public who want to address the city council at a city council meeting shall sign up before the start of the meeting in accordance with the instructions provided on the city council agenda, whether it be virtually, by phone, email or in-person. Public participation during citizens' participation shall be limited to the first thirty (30) citizens who have signed-up and shall be no longer than thirty (30) minutes in total unless extended for a time certain by the mayor or by a majority vote of the city council. If there are more speakers signed up to address the city council than time will allow; citizens may provide a written copy of the comments to be included in the public records. The individual requesting to speak shall identify themselves by providing their name, address, and zip code and shall conduct themselves in accordance with the rules of decorum in section 2-28. Additionally, speakers and members of the audience agree to adhere to the following rules:

(a) Speakers residing in or maintaining a business license with the City of Charleston and speaking on items on that meeting's agenda shall speak first. Speakers who sign-up to speak that do not specify which agenda item their remarks are related to will be treated as speaking on remarks unrelated to any agenda item.

(b) Speakers shall limit their remarks to no more than the time limit set by the mayor at the beginning of citizens' participation.

(c) Speakers may not pass his or her allotted time to another speaker.

(d) Upon expiration of the allotted time, speakers shall stop speaking unless additional time is granted.

(e) Groups of speakers should, whenever possible, consolidate their comments and avoid repetition through the use of representative speakers.

(f) Speakers shall address their remarks to the city council as a whole and not to any individual councilmembers.

(g) Speakers shall not ask questions of individual councilmembers or a member of the city staff.

(h) Speakers shall not harass or make direct threats or personal attacks at councilmembers, staff, other speakers or members of the audience.

(i) Members of the audience shall maintain decorum and refrain from noisy outbursts or other distracting actions such as applauding, cheering, or booing during or at the conclusion of any remarks made by the speaker, staff member or councilmember.

(j) All communications to the city council shall be by petition or memorial. Only members of council shall be heard on any petition or memorial without the unanimous consent of council, except that during a period of thirty (30) minutes of each regular meeting the mayor may recognize citizens of Charleston who wish to address council on matters of city business. City council shall be provided, by the office of the clerk of council, with a published agenda the Thursday before each regular meeting. The deadline for submitting items to be considered at the city council and ways and means committee shall be noon on the Monday of the week prior

to the scheduled meetings. A two-thirds (⅔) vote of the council members present shall be required for a matter to be added to the agenda after it has been closed.

(Ord. No. 2022-017, § 1, 1-25-22; Ord. No. 2024-042, § 1, 3-12-24)

Sec. 2-70. Ways and means committee and public works and utilities to hold meetings every month to carry out the provisions of section 2-52(a).

The ways and means committee of city council and the public works and utilities committee of city council shall hold at least one (1) meeting every month for the purpose of carrying out the provisions of section 2-52(a). Meetings of the public works and utilities committee shall be called at the discretion of the committee chairman or when at least one-third (⅓) of the committee requests a meeting in writing.

(Ord. No. 2022-017, § 1, 1-25-22; Ord. No. 2024-042, § 1, 3-12-24)

Sec. 2-71. Rescission, suspension or alteration of rules.

Any of the foregoing rules, except those requiring unanimous consent, can be rescinded, suspended, or altered by a majority of three-fourths (¾) of the members present.

(Ord. No. 2022-017, § 1, 1-25-22)

Sec. 2-72. Procedure upon absence of quorum.

(a) No member of council shall absent himself/herself from the service of city council without leave. If at any time during the sessions of city council, a question shall be raised by any councilmember, as to the presence of a quorum, or if needed, a money quorum, the mayor or presiding officer shall forthwith direct the clerk of council to call the roll, and shall announce the result, and these proceedings shall be without debate.

(b) Whenever upon such roll call it shall be ascertained that a quorum, or if needed, a money quorum, is not present a majority of the members of council present may direct the sergeant-at-arms to request and when necessary, to compel, the attendance of the absent members of council, which order shall

be determined without debate; and, pending its execution, and until a quorum or, if needed, a money quorum, shall be present, no motion, except to adjourn, shall be in order.

(c) The clerk of council, or any proper person deputized by the clerk shall be the sergeant-at-arms.
(Ord. No. 2022-017, § 1, 1-25-22)

Sec. 2-73. Audit committee.

(a) *Composition.* The audit committee shall consist of all councilmembers and the mayor, and shall be a review, oversight and advisory body to consider the city's annual fiscal audit referenced in Code section 2-332, other annual compliance, financial, or operational audits performed by the city's internal auditor and matters related thereto.

(b) *Quorum.* A quorum shall be seven (7) members.
(Ord. No. 2024-050, § 1, 3-26-24)

Secs. 2-74—2-85. Reserved.

ARTICLE III. OFFICERS AND EMPLOYEES

DIVISION 1. GENERALLY

Sec. 2-86. Conflict of interest.

Any municipal officer or employee who has a substantial financial interest in any business which contracts with the municipality for sale or lease of land, materials, supplies, equipment or services, or who personally engages in such matters shall make known that interest and refrain from voting upon or otherwise participating in his capacity as a city officer or employee in matters related thereto. Any city officer or employee who willfully conceals such a substantial financial interest or willfully violates the requirements of this section shall be guilty of malfeasance in office and upon conviction shall forfeit his office or position. Violations of this section with the

knowledge express or implied of the person or corporation contracting with or making a sale to the city shall render the contract or sale voidable by the municipal governing body.
(Code 1975, § 1-9; Ord. No. 1977-71, § 1(1-9), 11-8-77)

State law reference—Similar provisions, S.C. Code 1976, § 5-7-130.

Sec. 2-87. Employment procedures.

City employees shall be employed in accordance with the current classification and compensation plan of the city and with the approval of the mayor; provided, however, that the mayor is empowered in any emergency or for increased efficiency in government to refrain from filling any vacancy in any department or division, or to transfer any individual on the payroll from one department or division to another; provided, however, the mayor may delegate this authority as he may deem appropriate.
(Code 1975, § 2-25)

Sec. 2-88. Medical examination prerequisite to employment.

Each employee shall submit to medical examination by the city physician prior to his or her employment. Employment shall be contingent upon the medical report as approved by the city physician and personnel director. These reports shall remain in the custody of the personnel director and shall not be released to others without written authorization from the employee. All files are subject to review as requested by the employer; this is to include committee functioning as a part of the city.

Sec. 2-89. Political campaigns.

No city employee shall participate in a city election campaign during paid working hours, and no city employee shall identify himself or herself as a city employee if otherwise participating in a city election campaign. Nothing herein shall be construed to apply to elected officials of the city.
(Ord. No. 1999-75, § 1, 5-18-99)

Sec. 2-90. Selective Service System registration.

(a) *Findings.* Federal law requires all male citizens and all male immigrant non-citizens living in the United States to register with the Selective Service System upon the attainment of eighteen (18) years of age. While the all-volunteer military force policy has proven successful, registration with the Selective Service System remains a vital component of national security strategy. Should a draft be required in the future, such draft must be as fair as possible, and fairness dictates that all eligible persons be appropriately registered with the Selective Service System. Further, registration with the Selective Service System has value as it is a prerequisite for federal student aid, job training, government employment and U.S. citizenship. City council has determined it to be fair, reasonable and in furtherance of federal policy to require, as a condition of employment, that any male job applicant between the ages of eighteen (18) and twenty-six (26) provide proof of registration with the Selective Service System or appropriate deferment credentials.

(b) From and after the effective date hereof [Oct. 24, 2000], every male between the ages of eighteen (18) and twenty-six (26) who seeks employment with the City of Charleston shall submit documentation evidencing registration with the Selective Service System or documentation evidencing exemption from such registration.
(Ord. No. 2000-247, § 1, 10-24-00)

Secs. 2-91—2-95. Reserved.

DIVISION 2. MAYOR*

Sec. 2-96. Powers and duties.

(a) The mayor shall be the chief administrator of and executive officer of the city. He shall be responsible to the city council for the administration of all city affairs and the execution of all laws and ordinances.

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*__State law references—__Appointment by mayor of member of county boxing commission, S.C. Code 1976, § 52-3-30; appointment by mayor of commissioners of housing authority, S.C. Code 1976, § 31-3-340.

(b) The mayor shall have the following powers and duties:

(1) To appoint and, when he deems it necessary for the good of the municipality, suspend or remove all municipal employees and appointive administrative officers, except as otherwise provided by law or personnel rules adopted pursuant to state law. He may authorize any administrative officer who is subject to his direction and supervision to exercise these powers with respect to subordinates in that officer's department, office or agency;

(2) To direct and supervise the administration of all departments, offices and agencies of the municipality except as otherwise provided by state law;

(3) To preside at meetings of the city council and vote as other council members;

(4) To act to ensure that all laws, provisions of state law and ordinances of the council, subject to enforcement by him or by officers subject to his direction and supervision, are faithfully executed;

(5) To prepare and submit the annual budget and capital program to the city council;

(6) To submit to the council and make available to the public a complete report on the finances and administrative activities of the municipalities at the end of each fiscal year;

(7) To make such other reports as the city council may require concerning the operations of municipal departments, offices and agencies subject to his direction and supervision.

(8) To call special meetings of the city council; and

(9) To fill vacancies on committees, boards and commissions appointed by him.

(Code 1975, § 2-1; Ord. No. 1977-71, § 1(2-1), 11-8-77)

Sec. 2-97. Compensation; holding other office.

The mayor shall devote his full time and efforts to serving as mayor, and shall receive such compensation as the city council

shall from time to time provide, but no ordinance changing such compensation shall become effective until the date of commencement of the term of the mayor elected in the next general election following the change. The mayor may also receive payment for actual expenses incurred in the performance of his official duties within limitations prescribed by ordinance. Except where authorized by law, no mayor shall hold any other municipal office or municipal employment while serving the term for which he was elected.

(Code 1975, § 2-3; Ord. No. 1977-71, § 1(2-3), 11-8-77)

State law reference—Similar provisions, S.C. Code 1976, §§ 5-7-170, 5-7-180.

Sec. 2-98. Mayor pro tempore.

At the first regular meeting of council in January of each year there shall be elected by ballot from the board of council members, a mayor pro tempore who for the ensuing year, shall act as mayor, during the sickness or temporary absence of the mayor, and who shall not be reelected to such office during the term, and in the event of the sickness or temporary absence of the mayor pro tempore, while acting as mayor, then and in that event, the chairman of the first standing committee in the order named in section 2-50, who shall be in the city and available, shall be acting mayor in such interim.

(Code 1975, § 2-4; Ord. No. 1977-71, § 1(2-4), 11-8-77; Ord. No. 1980-32, § 1(XXIX), 1-22-80)

State law reference—Similar provisions, S.C. Code 1976, § 5-7-190.

Sec. 2-99. Vacancy.

Vacancy in office of the mayor shall be filled for the remainder of the unexpired term at the next regular election or at a special election if the vacancy occurs one hundred eighty (180) days or more prior to the next general election.

(Code 1975, § 2-5; Ord. No. 1977-71, § 1(2-5), 11-8-77)

State law reference—Similar provisions, S.C. Code 1976, § 5-7-200(b).

Sec. 2-100. Forfeiture of office.

The mayor shall forfeit his office if he

(1) Lacks at any time during his term of office any qualification for the office prescribed by the general law and Constitution;

(2) Violates any expressed prohibition of Chapters 1 through 17 of Title 5 of the South Carolina Code of Laws of 1976; or

(3) Is convicted of any crime involving moral turpitude.

(Code 1975, § 2-6; Ord. No. 1977-71, § 1(2-6), 11-8-77)

State law reference—Similar provisions, S.C. Code 1976, § 5-7-200(a).

Secs. 2-101—2-105. Reserved.

DIVISION 3. CORPORATION COUNSEL*

Sec. 2-106. Department established.

There is hereby established a department to be known as the office of the corporation counsel.

(Code 1975, § 2-28; Ord. No. 1978-7, § 1, 1-24-78)

Sec. 2-107. Appointment.

The corporation counsel shall be appointed by the mayor, with the approval of city council.

(Code 1975, § 2-29; Ord. No. 1978-7, § 1, 1-24-78)

Sec. 2-108. Duties and responsibilities of department.

(a) The office of the corporation counsel shall advise the city council, the mayor, and city departments in all matters of a legal nature, shall act as prosecutor in municipal court, shall make appearances in all courts when required to do so, and shall draft such instruments of a legal nature as may be required by his office.

(b) Corporation counsel shall consult with the mayor as to the best method of handling all matters referred to him by the mayor and shall conduct and dispose of all cases placed in his hands by the mayor in such manner as the mayor shall direct. The corporation counsel shall attend all meetings of council.

(Code 1975, § 2-30; Ord. No. 1978-8, § 1, 1-24-78)

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*__State law reference—__Appointment of municipal attorney, S.C. Code 1976, § 5-7-230.

Sec. 2-109. Administration of department.

The management, direction, and control of the department shall be under the supervision of the corporation counsel.
(Code 1975, § 2-31; Ord. No. 1978-8, § 1, 1-24-78)

Sec. 2-110. Same—Appointment of personnel.

The corporation counsel shall have the power to hire, with the approval of the mayor, such personnel in such positions as are provided for in the budget of the department as approved by the city council.
(Code 1975, § 2-32; Ord. No. 1978-8, § 1, 1-24-78)

Sec. 2-111. Private legal practice.

The corporation counsel and such members of his staff as are hired on a part-time basis shall be allowed to continue in the private practice of law, but they shall be prohibited from representing clients in and before the city council, the municipal court or before any boards or commissions of the city.
(Code 1975, § 2-33; Ord. No. 1978-8, § 1, 1-24-78; Ord. No. 2003-09, § 1, 1-28-03)

Sec. 2-112. Same—Employment of additional counsel.

The mayor, in his discretion, shall be authorized, on particular occasions, to engage the services of additional counsel, the compensation for such services to be provided by the city council.
(Code 1975, § 2-34; Ord. No. 1978-8, § 1, 1-24-78)

Secs. 2-113—2-120. Reserved.

DIVISION 4. CLERK OF COUNCIL*

Sec. 2-121. Office established.

There is hereby established the office of the clerk of council.
(Code 1975, § 2-22; Ord. No. 1978-9, § 1, 1-24-78)

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*__State law references__—Clerk of municipality as secretary of commissioners of the public works, S.C. Code 1976, § 5-31-240; municipal clerk, 5-7-220.

Sec. 2-122. Appointment.

The clerk of council shall be appointed by the mayor, with the approval of the city council.
(Code 1975, § 2-23; Ord. No. 1978-9, § 1, 1-24-78)

Sec. 2-123. Duties and responsibilities.

(a) The clerk of council shall be the custodian of the seal of the city and official records of the city council, and shall provide administrative research and clerical support services to the city council. The clerk of council shall attend all meetings of the city council and its committees.

(b) The clerk of the city council shall have the journals of the city council printed in pamphlet form, make an index thereto, and have them bound periodically.

(c) The clerk of council shall have all ordinances to be presented to the council prepared in proper form for ratification, and shall see that the ordinances are codified.

(d) The clerk of council shall be the custodian of all documents, books, records and papers of the city government and shall be responsible for the establishment and maintenance of a citywide records management program to maintain, protect, retain or dispose of city records in accordance with government regulations, legal requirements and city historical and reference needs. Duties and responsibilities include, but are not limited to, the creation of city records, filing and housing of active records, preparation and issuance of approved records retention schedules, establishment and operation of a centralized records storage facility, management of centralized microfilming and the establishment of appropriate procedures and practices to carry out these functions.

(e) The clerk of council shall have oversight responsibilities for the history commission.
(Ord. No. 1978-9, § 1, 1-24-78; Ord. No. 1990-7, § 1, 1-23-90; Ord. No. 2015-164, § 8, 11-10-15; Ord. No. 2025-018, § 1, 2-25-25)

Sec. 2-124. Administration of office.

The management, direction, and control of the office shall be under the supervision of the clerk of council.
(Code 1975, § 2-25; Ord. No. 1978-9, § 1, 1-24-78)

Sec. 2-125. Appointment of personnel.

The clerk of council shall have the power to hire, with the approval of the mayor, such deputy clerks or other personnel in such positions as are provided for in the budget of the office of the clerk of council as approved by city council.
(Code 1975, § 2-26; Ord. No. 1978-9, § 1, 1-24-78)

Sec. 2-126. Clerk pro tempore; appointment.

In case of the unavoidable absence or sickness of the clerk, the mayor shall appoint a clerk pro tempore, who, during such appointment, shall perform all duties of the clerk.
(Code 1975, § 2-27; Ord. No. 1978-9, § 1, 1-24-78)

Secs. 2-127—2-135. Reserved.

DIVISION 5. BONDS

Sec. 2-136. Required; conditions.

Except as otherwise provided, such city officers and employees as shall be designated by the committee on ways and means shall be bonded in such amounts as required by the committee on ways and means. All bonds shall be payable to the city council and conditioned for the faithful performance of all the duties of the respective officers or employees, as defined and set forth by the provisions of the Code.
(Code 1975, § 2-32)

DIVISION 6. MUNICIPAL COURT OPERATIONS

Sec. 2-137. Division responsibilities.

With the exception of those powers and duties set forth in chapter 20 of this Code, the division shall be responsible for the

management and proper administration of all facets of the city's municipal court operations in support of the city's chief municipal judge and other municipal judges who serve the municipal court.
(Ord. No. 2010-38, § 3, 3-9-10)

Sec. 2-138. Duties of administrator.

The administration and control of the division shall be under the supervision of the municipal court administrator. The municipal court administrator shall be under the direct supervision of and responsible to the chief administrative judge for matters concerning legal processes and issues within the court.
(Ord. No. 2010-38, § 4, 3-9-10; Ord. No. 2012-240, § 2, 5-8-12; Ord. No. 2025-019, § 1, 2-25-25)

Secs. 2-139—2-150. Reserved.

ARTICLE IV. BOARDS AND COMMISSIONS*

DIVISION 1. GENERALLY

Sec. 2-151. Organizational meetings upon election by council; notice.

(a) Upon their election by the city council, the members of the respective commissions, boards and committees shall meet for purposes of organization, within forty-five (45) days from the date of their election, and for this purpose they shall be called together by the clerk of council, who shall give to each member of such boards, written notice of the time and place thereof five (5) days previous to such meeting.

***Cross references—**Yacht basin commission, § 2-235; board of commissioners of Colonial Common and Ashley River Embankment, § 9-16 et seq.; board of commissioners of Cypress Gardens, § 10-16 et seq.; board of firemasters, § 13-41 et seq.; board of trustees of firemen's insurance and inspection fund, § 13-51; bureau of inspection of oil burning equipment, § 13-146 et seq.; tourism commission, § 29-31 et seq.; administrative relationship of chief building official to department of public service, § 7-5; obstructing or interfering with public service facility personnel, § 21-195.

(b) At such organizational meeting, commissions and boards shall elect a chairman and may elect a member or employee as secretary or treasurer or secretary and treasurer, to serve without compensation. Thereafter boards and commissions shall meet at such time and place as each shall elect.
(Code 1975, § 2-11)

Sec. 2-152. Term(s) of office.

(a) Terms of boards and commissions shall commence on the date of appointment unless noted otherwise below. Appointments shall also comply with any requirements as established in chapter 54, Zoning Code of the City of Charleston.

(b) On the following boards and commissions the members shall serve for one (1) year, as determined by city council, to wit:

Accommodations Tax Advisory Committee

Bicycle and Pedestrian Advisory Committee

Colonial Common and Ashley River Embankment

Commission on History

Community Development Advisory Committee

Health and Wellness Advisory Committee (city councilmember seats)

Home Ownership Initiative Commission

Redevelopment and Preservation Commission

All members appointed shall serve one-year terms, or until their successors are appointed.

(c) On the following boards and commissions, members shall serve for two (2) years, as determined by city council, to wit:

Commission on the Arts

Health and Wellness Advisory Committee (institutional representatives)

Minority Women Business Enterprise Advisory Board

Municipal Golf Course Commission (With the option to extend to an additional one-year term; term limits shall not apply to councilmembers or the member who is the nominee of the Edisto Realty Company.)

Resiliency and Sustainability Advisory Committee

Peninsula Protection Advisory Committee (No member shall serve more than two consecutive terms.)

All members shall serve two-year terms, or until their successors are appointed.

(d) On the following boards and commissions, appointments made shall serve for three (3) years, as determined by city council, to wit:

Board of Architectural Review—Large (No member shall serve more than two (2) successive terms and each term will start March 1 of the calendar year.)

Board of Architectural Review—Small (No member shall serve more than two (2) successive terms and each term will start March 1 of the calendar year.)

Board of Zoning Appeals—Site Design (Each term will start March 1 of the calendar year.)

Board of Zoning Appeals—Zoning (Each term will start March 1 of the calendar year.)

Commission on Women

Health and Wellness Advisory Committee (categorial representatives and experts)

Human Affairs and Racial Conciliation Commission

Planning Commission (Each term will start March 1 of the calendar year.)

Recreation Commission

Tourism Commission (No member shall serve more than two (2) consecutive terms.)

Town and Gown Committee

West Ashley Revitalization Commission

Citizen Police Advisory Council (No member shall serve more than two (2) consecutive terms.)

Commission on Disability Issues

All members shall serve three-year terms, or until their successors are appointed.

(e) On the following boards and commissions, appointments shall serve for four (4) years, as determined by city council, to wit:

Design Review Board (Each term will start March 1 of the calendar year.)

All members appointed shall serve four-year terms, or until their successors are appointed.

(f) On the following boards and commissions, appointments shall serve for five (5) years, as determined by city council, to wit:

Building Codes Board of Appeals (BCBOA)

Housing Authority of the City of Charleston

All members appointed shall serve five-year terms, or until their successors are appointed.

(g) If at any time a councilmember seat on a city board and commission cannot be filled, a citizen who is not a councilmember may be appointed to fill the vacant seat.
(Code 1975, § 2-12; Ord. No. 2017-009, § 1, 1-24-17; Ord. No. 2019-061, §§ 1, 2, 7-16-19; Ord. No. 2024-052, § 3(b), 3-26-24; Ord. No. 2024-149, § 1, 9-10-24; Ord. No. 2025-017, §§ 1, 2, 2-25-25)

Secs. 2-153, 2-154. Reserved.

DIVISION 2. TOWN AND GOWN COMMITTEE

Sec. 2-155. Creation of town and gown committee; purposes; duties.

(a) The council of the City of Charleston hereby creates the City of Charleston Town and Gown Committee, hereinafter called the committee. The committee's purpose shall be to

provide counsel on matters concerning the relationship between the City of Charleston and the College of Charleston. In carrying out its purpose, the committee may consider the following:

(1) Programs and policies to limit the impact of campus and off-campus student housing on nonstudent residents;

(2) Programs and policies to improve the relations between city residents and the college;

(3) Other projects and tasks consistent with the purposes of the committee.

(Ord. No. 1993-283, § 2, 8-10-93)

Sec. 2-156. Composition, appointments, terms, rules and procedures.

(a) The committee shall consist of nineteen (19) members, including the mayor.

(b) Of the nineteen (19) members, the committee shall consist of sixteen (16) voting members, and the mayor shall appoint the voting members with the approval of city council. In addition to the mayor, the voting members shall be the following:

(1) A representative of the College of Charleston's office of the president;

(2) A representative from the College of Charleston's dean of student affairs;

(3) A representative from the College of Charleston's student government association;

(4) Two (2) members of city council;

(5) A representative from the city police department;

(6) Four (4) city residents owning and occupying homes in the college impact zone more fully shown on Exhibit A, attached hereto and incorporated by reference herein;

(7) A manager of rental property in said college impact zone more fully shown on Exhibit A, attached hereto and incorporated by reference herein;

(8) A resident owning and occupying a home in the Elliotborough/Cannonborough districts;

(9) A representative of the bicycle/pedestrian community;

(10) A representative of the King Street Corridor area; and

(11) A representative of the ecumenical community.

(c) Of the nineteen (19) members, the committee shall consist of three (3) non-voting members appointed by the mayor. The nonvoting members shall be the following:

(1) A representative from the city's department of traffic and transportation;

(2) A representative from the city's department of planning and preservation who is responsible for neighborhood services; and

(3) A representative from the city's livability code enforcement division.

(d) Members of the committee shall serve for three-year terms.

(Ord. No. 1993-283, § 3, 8-10-93; Ord. No. 1993-389, § 3, 10-12-93; Ord. No. 1996-238, § 1, 12-3-96; Ord. No. 1997-450, § 1, 11-11-97; Ord. No. 2010-95, § 1, 5-25-10; Ord. No. 2025-024, § 1, 2-25-25)

Note—Exhibit A to Ord. No. 2010-95 is not set out herein but is available in the office of the clerk of council.

DIVISION 2.5. COMMISSION ON DISABILITY ISSUES

Sec. 2-157. Establishment.

There is hereby established a commission for persons with disabilities to be known as the City of Charleston Commission on Disability Issues.

(Ord. No. 1999-64, § 1, 5-18-99)

[The next page is 91]

Sec. 2-158. Purpose.

The purpose of the City of Charleston Commission on Disability Issues shall be:

(1) To support the city's efforts to comply with federal and state laws preventing discrimination against persons with disabilities.

(2) To educate city staff, policy makers and the general public about the needs and the potential contributions of persons with disabilities in the City of Charleston.

(3) To educate the disabled population about its rights and capabilities.

(Ord. No. 1999-64, § 2, 5-18-99)

Sec. 2-159. Organization.

The organization of the City of Charleston Commission on Disability Issues shall be:

(1) Membership. The commission on disability issues shall be comprised of fifteen (15) members who shall be appointed by the mayor subject to the approval of city council.

(2) The commission membership shall be primarily persons with disabilities.

(3) The commission membership shall be representative of different disability groups, including physical, sensory, and mental disability and shall be representative of gender, age, and racial groups in the community.

(4) The mayor and/or his designee shall serve as an ex officio member of the commission.

(5) The city shall provide accommodations for the known physical, sensory, or mental disabilities of the commission members during its meetings, including, but not limited to assistance with reading, writing, communicating, and aides such as tape recorded, Braille or large print material. All meetings shall be held in a location that is wheelchair accessible.

(6) The commission shall annually elect one of its members to be chairperson and one of its members to be vice chairperson.

(7) The commission shall establish a regular time and place of meeting and shall hold one regular meeting each month. Special meetings may be called by the chairperson, or by the majority of the members of the Commission, upon written notice received by each member at least twenty-four (24) hours prior to such meetings. For purpose of commission action, a quorum of the Commission on Disability Issues shall consist of five (5) members of the commission in attendance.

(8) The commission shall make and alter rules governing its organization and procedures which are not inconsistent with any city ordinance or Robert's Rules of Order.

(9) The commission shall keep a record of its proceedings and transactions and shall submit an annual report to the city council.

(Ord. No. 1999-64, § 3, 5-18-99; Ord. No. 2001-42, § 1, 4-24-01)

Sec. 2-160. Terms of membership.

The original terms of five (5) members, to be appointed by the mayor subject to the approval of city council, shall expire at the first meeting of city council in January 2001; the original terms of five (5) members, to be appointed by the mayor subject to the approval of city council, shall expire at the first meeting of city council in January, 2002; and the original terms of the remaining five (5) members shall expire at the first meeting of city council in January, 2003. Terms for other than original appointees shall be for three (3) years.

(Ord. No. 1999-64, § 4, 5-18-99)

Sec. 2-160.1. Intragovernmental relations.

The commission shall have the full cooperation of all departments of the City of Charleston in the performance of its duties,

and all departments shall supply the commission with all information and reports requested in order that the goals of this commission may be realized.
(Ord. No. 1999-64, § 5, 5-18-99)

Sec. 2-160.2. Funding.

(a) The commission may, with the approval of the mayor, apply for any federal, state, local or private funds consistent with its purposes.

(b) The commission may, with the approval of the mayor, accept on behalf of the city any gifts, donations, grants, bequests, or assistance consistent with its purposes.
(Ord. No. 1999-64, § 6, 5-18-99)

Sec. 2-160.3. Attendance requirements for members.

In the event a member of the commission shall fail to either attend three (3) consecutive meetings or six (6) meetings per year without written justification for said absence that is approved by a vote of a majority of the members of the commission, such member shall be removed from the commission and a new member shall be appointed in his or her place and stead.
(Ord. No. 2000-54, § 1, 4-11-00)

Editor's note—Ord. No. 2000-54, § 1, April 11, 2000, amended the Code by adding provisions as a new section 2-157. In order to avoid conflicts in section numbering, the provisions of Ord. No. 2000-54 have added as section 2-160.3.

DIVISION 3. CHARLESTON MUSEUM BOARD OF TRUSTEES

Sec. 2-161. Board of trustees.

By agreement with the Charleston Museum, there shall be appointed by the mayor on the second Tuesday in January, 1928, and on the same day in every fourth year thereafter, two (2) councilmembers who, with the mayor, ex officio, shall be members of the board of trustees of the Charleston Museum.
(Code 1975, § 9-1)

Secs. 2-162—2-165. Reserved.

DIVISION 4. COMMISSION ON WOMEN*

Sec. 2-166. Establishment.

There is hereby established a commission for women to be known as the "City of Charleston Commission on Women." (Ord. No. 1976-41, § 1, 12-14-76; Ord. No. 2018-050, § 2, 4-10-18)

Sec. 2-167. Purpose.

The purpose of the City of Charleston Commission on Women is to work to eliminate barriers and reduce gender based inequalities to assure the full opportunity of economic, educational, social, health, legal and political equality for the women of Charleston,

The City of Charleston Commission on Women shall have the following roles and responsibilities:

(a) Assess and evaluate the needs and issues of women in the city in order to inform and advise the mayor, city council, city departments, and other community agencies and organizations of those needs and issues.

(b) Recommend programs or ordinances to the mayor and city council to promote and ensure equal rights and opportunities to and for women in the city.

(c) Promote education on issues regarding matters involving the needs of women and to prepare and disseminate such information.

(d) Provide outreach information and education that empowers women to achieve self- sufficiency and self-esteem.

(e) Maintain an active liaison with groups, organizations, agencies, and individuals in regard to issues related to women.

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*__Editor's note—__Retitled from "Commission for Women" by Ord. No. 2018-050, § 1, 4-10-18.

(f) Perform other duties as may be assigned to it by the mayor or city council.

(Ord. No. 1976-41, § 2, 12-14-76; Ord. No. 2018-050, § 3, 4-10-18)

Sec. 2-168. Organization.

The organization of the City of Charleston Commission on Women shall be:

(a) *Membership.* The commission shall be comprised of thirteen (13) members who shall be appointed by the mayor with the advice and consent of city council, one (1) of whom shall be a member of city council.

(b) The commission membership shall include: citizens at large concerned with women's issues; members with specialized knowledge and experience regarding the needs of women; neighborhood advocates concerned with women's issues; representatives of women's advocacy or membership organization.

(c) Commission members who are citizens at large, neighborhood advocates, or representatives of women's advocacy or membership organizations shall be residents of the city and/or own or work for a business, nonprofit, or other entity within the city limits throughout the terms of their positions.

(d) The city shall provide accommodations for the known physical, sensory, or mental disabilities of the commission members during its meetings, including, but not limited to assistance with reading, writing, communicating, and aides such as tape recorded, Braille or large print material. All meetings shall be held in a location that is wheelchair accessible.

(e) The commission shall be chaired by a member appointed by the mayor and approved by city council, and annually one (1) of its members shall be elected vice chairperson and one (1) of its members shall be elected secretary.

(f) The commission shall establish a regular time and place of meeting and shall hold one (1) regular meeting every month. Special meetings may be called by the chairperson,

or by the majority of the members of the commission, upon written notice received by each member at least twenty-four (24) hours prior to such meetings. For purpose of commission action, a quorum of the commission shall consist of seven (7) members of the commission in attendance.

(g) The commission shall make and alter rules governing its organization and procedures that are not inconsistent with any city ordinance or Roberts Rules of Order.

(h) The commission shall keep a record of its proceedings and transactions and shall submit an annual report to the city council.

(i) The commission shall have the authority to create advisory groups comprising organizations that reflect and/or advocate the goals and objectives set forth in subsection 2-168(b).
(Ord. No. 1976-41, § 3, 12-14-76; Ord. No. 1985-133, § 1, 11-12-85; Ord. No. 2018-050, § 4, 4-10-18; Ord. No. 2019-101, § 2, 10-8-19; Ord. No. 2023-179, § 1, 9-12-23; Ord. No. 2024-161, § 1, 10-8-24)

Sec. 2-169. Terms of membership.

The term for committee members shall be three (3) years. Any member who has more than two (2) consecutive unexcused absences from scheduled meetings shall be subject to automatic removal from the commission.
(Ord. No. 1976-42, § 4, 12-14-76; Ord. No. 2018-050, § 5, 4-10-18; Ord. No. 2024-161, § 2, 10-8-24)

Sec. 2-170. Reserved.

Editor's note—Ord. No. 2018-050, § 6, adopted April 10, 2018, repealed § 2-170, which pertained to funding for the commission on women and derived from Ord. No. 1976-42, § 5, adopted Dec. 14, 1976.

DIVISION 5. COMMISSION ON THE ARTS*

Sec. 2-171. Title.

This division shall be known as and may be cited as the Commission on the Arts.
(Ord. No. 2026-065, § 1, 3-24-26)

Sec. 2-172. Findings.

The City Council of the City of Charleston recognizes the benefits of art and the role the arts play in defining a community's unique identity and civic pride. The City further recognizes that research has shown that the arts foster economic development, improve the local business climate, enhance the image of the community and promote cultural tourism. Additionally, artwork viewable by the public enhances aesthetics and complements scenic, natural, and landscape features in a built environment, providing psychological advantages to citizens and visitors. Furthermore, art, in all of its varied forms and styles, expresses the confidence, vitality and optimism of the community and its goal of enhancing livability for all its citizens.
(Ord. No. 2017-061, § 2, 5-30-17; Ord. No. 2026-065, § 1, 3-24-26)

Sec. 2-173. Commission on the Arts; created; membership; terms of office; powers.

(a) *Purpose.* To promote public participation in, and appreciation of, the visual, performing, and literary arts, as well as, to support and participate in the presentation of exhibitions, performances, lectures and symposia and to cooperate with and assist public and private educational institutions, the media, and other private and governmental entities involved in artistic and cultural promotion.

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*__Editor's note—__Ord. No. 2017-061, §§ 1, 2, adopted May 30, 2017, repealed the former Div. 5, §§ 2-171—2-175, and enacted a new Div. 5 as set out herein. The former division pertained to the arts and history commission and derived from Ord. No. 1984-64, §§ 1—7, 6-12-84; Ord. No. 2002-66, §§ 1—4, 4-30-02; Ord. No. 2015-164, § 9, 11-10-15.

(b) *Created.* There is hereby created the Commission on the arts.

(c) *Membership.* The Commission shall be appointed by the mayor with the advice and consent of City Council and shall consist of twenty (20) members, two (2) of whom shall be members of City Council, one of whom shall be a City of Charleston employee, up to thirteen (13) members representing the local arts organizations, to include but not limited to: The Gaillard Center, Charleston Symphony Orchestra, The Gibbes Museum of Art, Spoleto Festival USA, MOJA Arts Festival, Charleston Literary Festival, Charleston Stage, Footlight Players, Charleston Jazz Festival, and the Charleston Library Society, and four (4) at large members. In making appointments of at large members, consideration shall be given to professionals in, and to persons demonstrating knowledge of and appreciation for, the arts. The membership of the Commission should represent the broad arts constituency. The members of the Commission shall serve for two-year terms or until their successors have been appointed and qualified. For members representing the local arts organizations, service on this Commission will end if no longer employed by the represented organization, and a new member will be appointed. The mayor shall annually appoint one (1) of the Commission's members to be chairperson.

(d) *Powers.* The Commission shall serve as an advisory body to the mayor and City Council in all arts-related matters, including long range planning, public art, and City-sponsored cultural programs and events. The Commission shall promote close cooperation between the City and all private citizens, institutions, and agencies interested in or conducting activities relating to the arts in the City, so that all art resources within the City may be coordinated to maximize promotion and support of the arts in the City. The Commission shall encourage communication between arts organizations; and foster and assist the continued development of the arts in the City. The Commission shall also annually recommend to the mayor a minimum of three (3) citizens to act as an ambassador to the arts. The mayor may select an ambassador to the arts from the

recommendations. Annually, the Commission shall file or make a report to City Council, summarizing the activities of the Commission.
(Ord. No. 2026-065, § 1, 3-24-26)

Sec. 2-174. Art.

No painting, picture, sculpture or other work of art ("public art") shall hereafter be permanently displayed or erected on any public street or park unless it first has been approved by the Commission, subject to final approval by City Council.
(Ord. No. 2026-065, § 1, 3-24-26)

Sec. 2-175. Reserved.

DIVISION 6. BICYCLE AND PEDESTRIAN ADVISORY COMMITTEE

Sec. 2-176. Establishment.

There is hereby established a committee for bicycle and pedestrian issues to be known as the City of Charleston Bicycle and Pedestrian Advisory Committee.
(Ord. No. 2006-490, § 1, 10-24-06)

Sec. 2-177. Purpose.

The City of Charleston Bicycle and Pedestrian Advisory Committee shall have the following roles and responsibilities:

(a) Assist city staff in an inventory of existing bicycle and pedestrian facilities;

(b) Advise city council and staff regarding the implementation of the Citywide Transportation Plan, the People Pedal Plan, or any bicycle/pedestrian matters related to policy and planning;

(c) Establish a list of recommended bicycle and pedestrian facility priorities using the "People Pedal Plan" and the Berkeley-Charleston-Dorchester Council of Governments (BCDCOG) Regional Bicycle and Pedestrian Plan "Walk Bike BCD" as guides;

(d) Develop methodologies for measuring bicycle and pedestrian activity and demand;

(e) Review preliminary project designs related to proposed bicycle and pedestrian improvements and provide comments to city staff related to qualitative improvements;

(f) Assist in identifying alternative funding sources for bicycle and pedestrian projects, facilities and services;

(g) Review city ordinances related to pedestrian and bicycle requirements and recommend enhancements or changes;

(h) Facilitate cooperation between the City of Charleston and local and regional citizenry, user advocacy groups and businesses;

(i) Promote the importance of bicycling and walking within an overall transportation network;

(j) Promote education and safety programs for cyclists, pedestrians and motorists;

(l) Provide a forum for citizen bicycle and pedestrian concerns.

(Ord. No. 2006-490, § 1, 10-24-06; Ord. No. 2017-112, § 1, 9-13-17)

Sec. 2-178. Organization.

The organization of the City of Charleston Bicycle & Pedestrian Advisory Committee shall be:

(a) Membership. The committee shall be comprised of thirteen (13) members who shall be appointed by the mayor with the advice and consent of the city council, two (2) of whom shall be members of city council.

(b) The committee membership shall include: citizens at large concerned with bicycle and pedestrian issues; members with specialized knowledge and experience regarding the transportation needs of persons with physical and/or sensory disabilities; neighborhood advocates concerned with traffic and safety issues; representatives of bicycling, running or walking advocacy or membership organizations, representatives of organizations concerned with non-motorized and public transportation issues; representatives from the bicycle or recreation dealership industry.

(c) Committee members who are neighborhood advocates or citizens at large shall be residents in the city and/or own a business entity within the3 city limits throughout the terms of their positions.

(d) The city shall provide accommodations for the known physical, sensory, or mental disabilities of the committee members during its meetings, including, but not limited to assistance with reading, writing, communicating, and

aides such as tape recorded, Braille or large print material. All meetings shall be held in a location that is wheelchair accessible.

(e) The committee shall annually elect co-chairs (one (1) citizen at large and one (1) councilmember) and one (1) of its members shall also be elected vice chairperson.

(f) The committee shall establish a regular time and place of meeting and shall hold one (1) regular meeting every two (2) months. Special meetings may be called by the chairperson, or by the majority of the members of the committee, upon written notice received by each member at least twenty-four (24) hours prior to such meetings. For purpose of committee action, a quorum of the bicycle & pedestrian advisory committee shall consist of seven (7) members of the committee in attendance.

(g) The committee shall make and alter rules governing its organization and procedures that are not inconsistent with any city ordinance or Roberts Rules of Order.

(h) The committee shall keep a record of its proceedings and transactions and shall submit an annual report to the city council.

(Ord. No. 2006-490, § 1, 10-24-06; Ord. No. 2017-112, § 1, 9-13-17)

Sec. 2-179. Terms of membership.

The original term for the first seven (7) members appointed shall expire March 1. 2019; and the original term for the remaining six (6) members appointed shall expire on March 1, 2020. Terms for other than original appointees shall be for two (2) years. Members of the committee filling a vacancy shall serve for the balance of the unexpired term.

(Ord. No. 2006-490, § 1, 10-24-06; Ord. No. 2017-112, § 1, 9-13-17)

Sec. 2-180. Attendance requirements for members.

In the event a member of the committee shall fail to either attend three (3) consecutive meetings or four (4) meetings per

year without written justification for said absence that is approved by a vote of a majority of the members of the committee, such member shall be removed from the committee and a new member shall be appointed in his or her place and stead.
(Ord. No. 2006-490, § 1, 10-24-06)

Sec. 2-181. lntragovernmental relations.

The committee shall have the full cooperation of all departments of the city in the performance of its duties, and all departments shall supply the committee with all information and reports requested in order that the goals of this committee may be realized.
(Ord. No. 2006-490, § 1, 10-24-06)

Sec. 2-182. Funding.

(a) The committee may, with the approval of the mayor, apply for any federal, state, local or private funds consistent with its purposes.

(b) The committee may, with the approval of the mayor, accept on behalf of the city any gifts, donations grants, bequests, or assistance consistent with its purposes.
(Ord. No. 2006-490, § 1, 10-24-06)

DIVISION 7. RESILIENCY AND SUSTAINABILITY ADVISORY COMMITTEE*

Sec. 2-183. Created; membership; terms of office; powers.

(a) *Created.* There is hereby created the resiliency and sustainability advisory committee.

(b) *Membership and terms.* The commission shall be appointed by the mayor with the approval of council. The committee shall be comprised of thirteen (13) voting members consisting of three (3) members of city council, the mayor, one representative of the

*__Editor's note—__Retitled by Ord. No. 2018-102, § 1, adopted Aug. 21, 2018, and formerly titled as the "City Council/Citizen Sustainability Advisory Committee.

metro chamber of commerce, one representative of South Carolina Electric & Gas Company, one representative of the South Carolina State Ports Authority, one person selected to represent the collective group of the home builders association, the Trident Board of Realtors and the real estate development community, one representative of the Berleley-Charleston-Dorchester Council of Governments, one technical expert on resilience, one technical expert on sustainability, one representative of a higher education institution committed to advancing resiliency and/or sustainability, and one community member who shall be a resident in the City of Charleston and be representative of community interests conducive to promoting and enabling resiliency and sustainability in Charleston. The mayor shall be a permanent member of the committee. Members of city council on the committee shall serve for a term of two (2) years. The community member shall serve for a term of two (2) years and all other members shall serve for terms of three (3) years, or until their successors have been appointed and qualified. For appointments of councilmembers made between January 1, 2023 and February 1, 2024, including those that may be appointed to fill any vacancies, two (2) councilmembers so appointed shall serve for two (2) years, and one (1) councilmember so appointed shall serve for one (1) year. The purpose of the foregoing is to ensure that the terms of the councilmembers are staggered. Should the terms of the three (3) councilmembers become simultaneous in the future, the mayor shall have the authority to make one-year appointments as needed so that the councilmember terms are staggered going forward.

(c) *Powers.* The committee shall act as an advisory board to city council on all matters related to resiliency and sustainability, and shall consider and discuss resiliency and sustainability proposals which may be considered by city council.

(d) *Election of chair.* The committee shall annually elect one (1) of its members to be chairperson and one of its members to be vice-chairperson.

(e) *Meetings.* The committee shall establish a regular time and place of meeting. For purpose of committee action, a quorum of the resiliency and sustainability advisory committee shall consist of seven (7) voting members of the committee in attendance.

(f) *Records.* The committee shall keep a record of its proceedings.

(g) *Alternates.* Members, other than elected city officials, may select one (1) alternate to serve as proxy if a member is unable to attend. Alternates shall be approved in advance by the mayor's office of resiliency.

(h) *Attendance requirements.* In the event a member of the committee shall fail to either attend three (3) meetings per year without providing a proxy (as stated above) or written justification for said absence that is approved by a vote of a majority of the members of the committee, such member shall be removed from the committee and the mayor may nominate a new member for council consideration to be appointed in his or her place and stead.

(Ord. No. 2010-83, § 1, 4-27-10; Ord. No. 2013-13, § 1, 1-22-13; Ord. No. 2018-102, § 1, 8-21-18; Ord. No. 2023-052, § 1, 3-14-23)

DIVISION 7.5. WEST ASHLEY REVITALIZATION COMMISSION*

Sec. 2-184. Created; membership; terms of office; powers.

(a) *Created.* There is hereby created the West Ashley Revitalization Commission.

(b) *Mission.* The West Ashley Revitalization Commission shall work to assure the long-term economic stability of West Ashley by revitalizing the unique character of the district and supporting values that assure West Ashley is a great place to live, work, play, invest and do business.

(c) *Membership.* The commission shall consist of nineteen (19) voting members, one (1) of whom shall be the mayor; three (3) members of city council who represent a district or portion

*__Editor's note—__Ord. No. 2016-091 §§ 1, 2, adopted Aug. 16, 2016, amended former Div. 7.5, § 2-184, in its entirety to read as herein set out. Former Div, 7.5 pertained to the same subject matter and derived from Ord. No. 2016-064, § 1, adopted May 10, 2016. Ord. No. 2016-091 added provisions numbered as Div. 8, § 2-184. In order to avoid conflicts in division numbering the editor has renumbered this new division as Div. 7.5.

thereof in West Ashley appointed by the mayor; the chairman of the St. Andrews Public Services District appointed by the mayor; the member of county council who represents District 7, appointed by the mayor, and the remaining members who shall be appointed by the mayor and be representative of various disciplines, professional, business and community interests conducive to promoting and enabling the revitalization of West Ashley, all subject to approval by city council. The mayor shall also appoint the chairperson of the commission.

(d) *Terms of office.* The mayor, the chairman of the St. Andrew's Public Services District and the member of county council who represents District 7 shall be permanent members of the commission. All other members of the commission shall serve for terms of three (3) years or until their successors have been appointed and qualified; provided however, notwithstanding the foregoing, five (5) of the original members of the commission shall serve for a term of one (1) year, five (5) of the original members shall serve for a term of two (2) years; and six (6) of the original members shall serve for a term of three (3) years, all as recommended by the mayor and approved by city council. Members appointed after expiration of the initial terms of the original members shall serve terms of three (3) years.

(e) *Powers and duties.* The commission shall have the following powers and duties:

(1) Be charged with the duties of establishing goals, policies and procedures for the implementation of revitalization efforts in West Ashley on behalf of the city.

(2) Initiate a major study of needs of West Ashley and aid in the procurement of the necessary funds for such study.

(3) Study and recommend financial and organizational techniques to effectuate the revitalization of West Ashley by the joint efforts of public and private entities.

(4) Seek out and recommend early action improvements for West Ashley.

(5) Assist private businesses in improvements in conjunction with the West Ashley revitalization efforts.

(6) Assist the business community and the city to work together in the most cooperative and supportive manner possible.

(7) Seek funds and resources from private and public sources to promote and market West Ashley.

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(8) In its discretion, create committees to participate in the planning or effectuation of the West Ashley revitalization efforts; provided, however, that any such councils or committees shall require the approval of the mayor and the commission.

(f) *Meetings.* The commission shall establish a regular time and place of meeting. For purposes of commission action, a quorum of the West Ashley Revitalization Commission shall consist of ten (10) voting members of the commission in attendance.

(g) *Records.* The commission shall keep a record of its proceedings.
(Ord. No. 2016-091, § 2, 8-16-16)

DIVISION 8. SPECIAL EVENTS COMMITTEE*

Sec. 2-185. Title.

This division shall be known as and cited as the "special events ordinance."
(Ord. No. 2021-107, § 2, 7-29-21)

Sec. 2-186. Purpose.

The city council finds and declares that it is in the public interest to regulate events on the public streets, public property and events held on private property under certain circumstances pursuant to the police powers of the city in order to maintain, protect and promote the public health, safety and welfare of the citizens, residents and visitors of the City of Charleston.
(Ord. No. 2021-107, § 2, 7-29-21)

Sec. 2-187. Definitions.

The following words and phrases when used in the special events ordinance shall have the following meanings:

Annual event means an event recurring each year at approximately the same date which has previously complied with the permit requirements of the special events ordinance.

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*__Editor's note—__Ord. No. 2021-107, § 2, adopted July 29, 2021, amended former Div. 8, §§ 2-185—2-190, in its entirety to read as herein set out. Former Div. 8 pertained to similar subject matter and derived from Ord. No. 2010-114, § 1, 7-20-2010)

Applicant means the sponsor or authorized agent of the sponsor who completes the special event or temporary use event application, as applicable, and acts as primary contact for the special event or temporary use event, as applicable.

Application means a written request on a form or forms that sets forth the information required to be provided by the special events ordinance.

Chief of police shall mean the chief of police or the chief's designee.

Commercial film/photographic event means movies, commercials, or fashion industry photography on public property, including public streets, sidewalks, trails and/or other public place.

First Amendment demonstration means any demonstration, assembly, picketing, speechmaking, marching, protesting, vigil or religious service, and all other like forms of conduct, in or upon any street, including the sidewalk area thereof, park or other public place in the city, that involve the communication or expression of views or grievances, engaged in by one or more persons, the conduct of which is reasonably likely to draw a crowd or onlookers. (See Chapter 25, Article III). First Amendment demonstration shall not include a parade as defined below in this section.

Festival means a stationary event on public property, including public streets, sidewalks, trails and/or other public place, held one day or more and includes fairs, carnivals, rallies, concerts, and sporting events.

General liability insurance means a form of business liability insurance to protect a business or entity from injury or death claims, property damages and advertising claims.

Liquor liability insurance means a form of business liability insurance to protect a business or entity from injury or death claims or property damages from distribution or sale of alcoholic beverages.

Major event means an event which impacts multiple city departments, has one thousand (1,000) or more people in attendance, and has an impact on a public street, right-of-way, and/or a city-owned or managed park or facility.

Medium event means an event which impacts multiple city departments, has more than five hundred (500) and less than one thousand (1,000) people in attendance, and has an impact on a public street, right-of-way, and/or a city-owned or managed park or facility.

Parade means any organized group, formation or procession consisting of persons on foot, animals, vehicles and conveyances of any sort, or any combination thereof, moving in unison upon any public street or sidewalk of the city which does not comply with normal traffic regulations or controls. A parade is a special event as defined below in this section.

This definition does not include:

(1) Funeral processions;

(2) Students going to and from school classes or participating in educational activities, providing such conduct is under the immediate direction and supervision of the proper school authorities;

(3) A governmental agency acting within the scope of its functions; and

(4) First Amendment demonstrations as defined above in this section.

Small event means an event which impacts multiple city departments, has less than five hundred (500) and people in attendance, and has an impact on a public street, right-of-way, and/or a city- owned or managed park or facility.

Special event means a pre-planned activity sponsored by an individual, group, organization or entity proposed to be held on public property, including public streets, sidewalks, trails, facilities, parks, or other property owned or managed by the city which would significantly impact either public property and/or normal vehicular and pedestrian traffic requiring the use of city services, and which shall include but not be limited to a parade,

foot race, bike or wheeled race, celebration, amusement event, cultural recognition, sporting event, First Amendment demonstration referred by the police department, competition, commercial movie or television production, photography shoot, commercial for-profit event, charitable cause, or other similar activity.

A special event shall also include events at the VRTC bus shed and events on private property at which members of the public pay to attend and alcohol is to be served or at which members of the public can purchase alcoholic beverages for onsite consumption.

A special event shall not include the following:

(a) An event confined exclusively within the interior areas of the Old Exchange Building, the Charleston Maritime Center and that portion of the open area adjacent to the Charleston Maritime Center, the historic VRTC building and the Gaillard Auditorium and its terrace as identified in such facilities' annual approved operations plan as set forth in section 2-189(q), provided these facilities operate in compliance with their approved annual operations plan during any special event.

(b) A news broadcast.

(c) An event that is held on private property in a residential neighborhood that is not required to obtain a temporary use event permit as defined herein.

(d)A First Amendment demonstration for which a valid First Amendment demonstration permit has been issued by the police department pursuant to Chapter 25, Article III. The chief of police may require a person seeking a First Amendment demonstration permit to obtain a special events permit issued pursuant to section 2-189 when the duration of the demonstration is proposed to be more than three (3) hours, when a request is made to reserve a particular public area for use, when frequent requests are made for a particular public area, when the demonstration will require any use of city resources, staffing or departments beyond the scope of the police

department, and when the city finds that requiring such special events permit is in the best interest of the public health, safety, and welfare of the city and its citizens.

A special event may not include a private event at a city park, playground or recreation facility where no alcohol is served; however, such an event may require a park permit, the requirements of which are set forth in section 22-4 of this Code.

Special event permit is a permit issued by the special events committee of the City of Charleston pursuant to section 2-189 of this division.

Temporary use event means an event that requires a temporary use event permit.

Temporary use event permit means a permit required when an event is held on private property in a residential neighborhood in which members of the public are not permitted but at which two hundred fifty (250) or more persons are anticipated to be in attendance, sound [is] to be amplified which carries beyond the boundaries of such private property, and the event is anticipated to impact available on-street parking and city service responses. (Ord. No. 2021-107, § 2, 7-29-21)

Sec. 2-188. Created; membership; powers; duties and responsibilities.

(a) *Created.* There is hereby created the special events committee (the "committee").

(b) *Membership.* The committee shall be appointed by the mayor and shall consist of eleven (11) members, one (1) of whom shall be the special events manager of the department of livability and tourism who shall serve as the committee chair; one (1) of whom shall be an employee of the department of parks or his designee; one (1) of whom shall be an employee of the department of recreation—recreation facilities division or his designee; one (1) of whom shall be an employee of the department of traffic and transportation—parking meters division or his designee; one (1) of whom shall be an employee of the police department—special operations division or his designee; one (1) of whom shall be an employee of the department of planning and

preservation—business and neighborhood services division or his designee; three (3) of whom shall be employees of the executive department—one (1) from cultural affairs division or his designee, one (1) shall be the ADA coordinator or his designee, and one (1) from mayor's office or his designee; one (1) of whom shall be an employee of the office of livability and tourism—tourism division or his designee; and one (1) of whom shall be an employee of the fire department—fire marshal division or his designee. All members shall be voting members with the exception of the employee of the mayor's office who will vote if needed as a tie breaker and the chair who is a non-voting member. The members of the committee shall serve until their successors have been appointed and qualified. For purpose of committee action, a quorum of the committee shall consist of five (5) voting members of the committee in attendance.

(c) *Powers.* The committee shall act as an administrative board and have authority to approve and issue special events and temporary use event permits upon the terms and conditions as set forth in the special events ordinance; coordinate with city departments and other governmental agencies for the provision of governmental services as needed to support special events and temporary use event permit events; collect special event permit fees and discharge such other duties as may be assigned by the mayor.

(Ord. No. 2021-107, § 2, 7-29-21; Ord. No. 2025-024, § 1, 2-25-25)

Sec. 2-189. Application; processing of special event and temporary use event permits and conducting special event and temporary use event permit evaluations.

Special event and temporary use event permits shall be obtained from the committee prior to hosting, conducting, holding or staging a special event or a temporary use event. Prior to a special event or temporary use event permit being issued, the following procedure shall be followed:

(a) An application shall be submitted to the city by the special events or temporary use event permit applicant accompanied by the applicable city special events or temporary use event permit processing fee as set forth

on the city special events fee schedule, as approved by city council and amended from time to time, a copy of which may be obtained from the committee. The application shall list the location and/or route, date, and time of the proposed special event or event requiring a temporary use event permit. For a major event, the application shall be filed at least one hundred twenty (120) days prior to the date of the proposed special event; for a medium event, the application shall be filed at least ninety (90) days prior to the date of the proposed special event; for a small event, the application shall be filed at least sixty (60) days prior to the date of the proposed special event; for a temporary use permit, the application shall be filed at least sixty (60) days prior to the date of the proposed event requiring a temporary use event permit, and for a commercial film and photography event, the application shall be filed at least three (3) days or seventy-two (72) hours prior to the proposed special event to allow adequate review of the application by the committee. First time events are encouraged to list several options for location, route, date, and time. Notwithstanding the foregoing, the city reserves the right to: (i) process and approve a special event application for a major or medium event at a city-owned facility in less than sixty (60) days prior to the date of the proposed special event if exigent circumstances exist in the sole opinion of the city; and (ii) issue an annual temporary use event permit to private property owners who routinely host events that require a temporary use event permit provided the private property owner has submitted and received an approved operations plan from the special events committee on an annual basis, said operations plan to include but are not be limited to acceptable alcohol management and security measures governing its events.

(b) The special events committee shall review the application to determine if the proposed special event or temporary use event can be approved. The committee shall meet with the applicant to review and evaluate the application for compliance with the requirements herein

and prioritize locations and/or routes, if necessary (the "meeting"). Prior to the meeting, the applicant shall be required to provide the committee with a complete package of information on the proposed special event or temporary use event at least ten (10) business days prior to the meeting including, but not limited to the following information:

(1) Description of the proposed special event or temporary use event, as applicable.

(2) A tentative site plan which may include designating the location of entrances and exits, retail, food, and alcoholic beverage vendors, tents, stages, bleachers, signs or banners, portable restrooms and sinks, electric and water hookups, first aid stations, fire extinguishers, garbage and recycling receptacles, barricades, hazardous materials, and security.

(3) A security plan.

(4) A sanitation plan which includes provisions for trash removal and recycling removal.

(5) A traffic control plan.

(6) An alcohol plan.

(7) An amplified sound plan.

(8) The time of all activities associated with the proposed special event or temporary use event.

(9) For a parade, include the approximate number of persons who, and animals and vehicles which, will constitute such parade; and the type of animals and description of vehicles, if applicable; the location of any assembly areas needed; whether the parade will occupy all or only a portion of the width of the streets or sidewalks proposed to be traversed; the interval of space to be maintained between units of the parade; the length of the parade in miles or fractions thereof; and proposed speed of parade.

(c) The meeting shall also include a discussion of the committee's comments and possible conditions and fees.

(d) Once a special event or temporary use event permit application is approved, the committee shall send a notification letter to the applicant listing fees and special conditions. Special event fees shall be paid by the applicant thirty (30) days prior to the date of the special event or temporary use event, as applicable, and a stamped permit is given to applicant within five (5) days of the committee's receipt of payment of the required fees and any other documentation required by the committee, or as soon thereafter as is reasonably possible.

(e) The applicant shall provide written notification to: (i) the city councilmember in whose district the special event or temporary use event, as applicable, shall occur; and (ii) the impacted neighborhood president(s) and business(es) advising of the approval of the special event or temporary use event, as applicable, and listing date(s), time(s), and location/route thereof no later than thirty (30) days prior to the date of the special event or temporary use event, as applicable. A reminder notice to: (i) the city councilmember in whose district the special event or temporary use event, as applicable, shall occur; and (ii) the impacted neighborhood president(s) and business(es) shall also be sent by the applicant fifteen (15) days prior to the date of the special event or temporary use event, as applicable, and which shall contain all of the information required in the initial notice as specified above.

(f) A post special event or temporary use event, as applicable, evaluation shall be conducted by the committee or its chair. The evaluation may include a survey of impacted residents and/or businesses, a meeting with the applicant and feedback from the committee.

(g) Events subject to alcohol policy requirements.

(1) A temporary use event on private property in a residential neighborhood in which the members of the public are not permitted but at which two hundred fifty (250) or more persons are anticipated

to be in attendance, sound is to be amplified, the event is anticipated to require on-street parking and alcohol is to be served. A temporary use event shall be exempt from the requirements of subsections (h)(2)a. and (h)(2)c. below.

(2) A special event on private property at which members of the public pay to attend and alcohol is to be served or at which members of the public can purchase alcoholic beverages for onsite consumption.

(3) A special event in/on city-owned and/or operated facilities, including city parks, where alcohol is to be served.

(h) Requirements of alcohol policy.

(1) *Certification/training.* The special event permittee or temporary use event permittee, as applicable, shall be required to utilize at least one bartender and/or floor/door monitor with certification from a smart serve or servers intervention program or an equivalent alcohol server training program as approved by the city. The city reserves the right to increase the number of bartenders and floor/door monitors as required to satisfy public safety.

(2) *Controls.*

a. The special event permittee shall be required to establish a controlled entrance and exit location by the posting of signage stating that alcoholic beverages are prohibited beyond the permitted area. As required by the chief of police or his designee, a controlled area for the serving and consumption of alcoholic beverages during the event may be required.

b. No alcoholic beverages shall be served within thirty (30) minutes of the conclusion of the special event or temporary use event, as applicable. No more than two (2) alcoholic

beverages shall be served to any person at any one time during a special event or temporary use event, as applicable.

c. No alcoholic beverages shall be served to any person at a special event unless such person has been issued a wristband by the special event permittee which indicates that the person has shown valid proof of being at least twenty-one (21) years of age.

d. The special event permittee or temporary use event permittee, as applicable, and its invitees shall be in compliance with all applicable federal, state, local statutes, ordinances, rules, regulations, licenses and permits, including permits required by the South Carolina Alcohol Beverage Commission, governing the special event or temporary use event, as applicable.

e. No alcoholic beverages other than those alcoholic beverages served by the special event permittee or the temporary use event permittee, as applicable, shall be permitted within the controlled area as described in section 2-189(h)(2)a. for special events or within the temporary use event, as applicable.

(i) Security. The special event permittee or temporary use event permittee, as applicable, shall be required to provide adequate security for its special event or temporary use event, as applicable, as directed by the chief of police, including the hiring of off-duty police officers and/or security enforcement officers as approved by the chief of police or his designee.

(j) Considerations in granting a special event permit or temporary use event permit, as applicable. In deciding whether to approve, approve with conditions, or deny a special event permit or temporary use event permit, as applicable, the committee shall determine whether:

(1) The proposed special event or a temporary use event, as applicable, can function safely.

(2) The use of police and fire resources to support the proposed special event or temporary use event, as applicable, shall not deny reasonable police and fire protection to the city.

(3) The proposed special event or temporary use event, as applicable, shall not cause irreconcilable interference with previously approved and/or scheduled construction, maintenance, another special event, another event that has been granted a temporary use event permit or other activity or activities.

(4) The proposed special event or temporary use event, as applicable, can provide an adequate traffic control plan for traffic control and parking management and which may require accommodating transportation and parking demand management measures.

(5) The location and route plan of the proposed special event or temporary use event, as applicable, meets the criteria established in the special events ordinance.

(6) The special event or temporary use event will not substantially interrupt the safe and orderly movement of other traffic, pedestrian and vehicular, contiguous to its route.

(7) The special event or temporary use event is not reasonably likely to cause injury to persons or property, or to provoke disorderly conduct.

(k) Conditions authorized and additional permits and licenses. The committee may include in a special event permit or temporary use event pennit, among other provisions:

(1) Reasonable terms and/or conditions as to the time, place, and manner of the special event or temporary use event permit, as applicable.

(2) Compliance with health and sanitary regulations, emergency services, and security.

(3) Additional permits and/or licenses as are required to meet the conditions established by the special event permit or temporary use event permit, as

applicable, and/or other city ordinances, including but not limited to city business licenses, building permits, and county or state code permits.

(4) In order to accommodate other concurrent special events or temporary use events, as applicable, the rights of adjacent property owners and the needs of the public to use streets or parks, additional conditions may be imposed on the applicant which may include, but not be limited to, reasonable adjustments in the date, time, route or location of the proposed special event or temporary use event, as applicable, as well as accommodations for pedestrian and/or vehicular traffic using public right-of-ways and limitations on the duration of the special event or temporary use event, as applicable.

(l) Alternates. The committee, in denying an application for a special events permit, shall be empowered to authorize the conduct of the special event on a day, at a time, or over a route different from that named by the applicant. An applicant desiring to accept an alternate permit shall file a written notice of acceptance with the committee within ten (10) days or a reasonable time period as determined by the special events manager or committee chair. An alternate special events permit shall conform to the requirements of and shall have the effect of a special events permit under this division.

(m) Application and permit fees.

(1) All special events and events that require a temporary use event pennit shall be subject to the payment of all applicable fees set forth in the city special events fee schedule as approved by city council.

(2) Additional fees may include department of parks user fees and deposits enumerated in the park permit fee structure as set forth in section 22-4(l) of this Code ("park permit fees"). Park permit fees associated with permit conditions, including but not limited to electrical, security, meter bags or fire

permits are in addition to the above special events fee schedule and are the sole responsibility of the applicant.

(3) All fees and deposits are due thirty (30) days prior to the date of the special event or temporary use event, as applicable. Subject to the city's authority as set forth in section 2-194, deposits shall be refunded within fourteen (14) business days following the special event or temporary use event, as applicable, if all conditions are followed, and with respect to a special event, public property on which the special event is held is left in good condition and without damage. Failure to comply with restrictions and conditions of a special events permit or temporary use event permit, as applicable, shall cause an automatic forfeiture of the security deposit(s).

(4) Subject to the city's authority as set forth in section 2-194, refunds for fees and deposits charged pursuant to the special events fee schedule are refundable (minus the application fee), if the special event or temporary use event, as applicable, is canceled after such permit is issued, and written notice is received by the special events committee five (5) business days prior to the date of the special event or temporary use event, as applicable.

(n) Hold harmless. As a condition to the issuance of any special events permit or temporary use event permit, as applicable, the permittee of a special event or temporary use event permit, as applicable, shall agree to defend, indemnify and hold harmless the city, its officers, employees and agents, for and against any and all suits, claims, damages, costs or liabilities caused by or arising out of any use authorized by the permittee of the special event or temporary use event, as applicable.

(o) Insurance requirements. The permittee of a special event or temporary use event, as applicable, shall provide general liability insurance insuring the special event or

temporary use event, as applicable, and shall name the city as an additional insured on such general liability insurance policy. Certificates of insurance shall be submitted to the city for approval at least fifteen (15) working days prior to the date of the special event or temporary use event, as applicable. The following limits of insurance are required per individual occurrence:

(1) General liability of one million dollars ($1,000,000.00).

(2) Liquor liability of one million dollars ($1,000,000.00), if alcohol is served.

(p) Promulgation of procedures. The committee, with the approval of the mayor and corporation counsel, may promulgate procedures for the purpose of implementing the special events ordinance or to carry out other responsibilities as may be required by the special events ordinance or other codes, ordinances of the city or other agencies.

(q) Requirements for certain city-owned facilities. Events which are exclusively confined within the interior areas of the Old Exchange Building, the Charleston Maritime Center, the historic VRTC building and the Gaillard Auditorium shall not be required to obtain a special events permit provided:

(1) Each facility has an annual approved operations plan, which shall include but not limited to acceptable alcohol management and security measures, which is approved by the committee.

(2) Each facility complies with its approved operations plan while hosting events which are exclusively confined within the defined interior areas of such facility.

Notwithstanding the foregoing, events at the VRTC bus shed shall require a special events permit.

(r) First Amendment demonstrations for which a special events permit has been issued pursuant to this section shall comply with all regulations, conditions and requirements provided in Chapter 25, Article III.

(Ord. No. 2021-107, § 2, 7-29-21)

Sec. 2-190. Revocation.

The committee shall have the authority to revoke a special events permit issued hereunder upon the violation of the standards for issuance as set forth in this division.

(Ord. No. 2021-107, § 2, 7-29-21)

Sec. 2-191. Appeal.

See Chapter 25, Article III for appeals of denials of special events permits issued for First Amendment demonstrations.

(Ord. No. 2021-107, § 2, 7-29-21)

Sec. 2-192. Special events permit required.

No person shall engage in, participate in, aid, form or start any special event as defined in this division unless a special events permit shall have been obtained from the special events committee of the City of Charleston pursuant to section 2-189. Any person engaging in any special event for which a special events permit has been issued shall not violate any of the conditions or provisions of such permit.

(Ord. No. 2021-107, § 2, 7-29-21)

Sec. 2-193. Safety restrictions and prohibitions

(a) *Threats to safety.*

(1) It shall be unlawful for any person to point or present a firearm (as defined in S.C. Code § 16-25-10(7)), or to brandish a weapon (as defined in City Code § 21-219), while participating in or attending a special event as defined in this division.

(2) For purposes of this division, brandish shall mean to wave or flourish menacingly, to display ostentatiously, threateningly, angrily or aggressively.

(3) For purposes of this division to present a firearm shall mean to offer to view in a threatening manner, or to show in a threatening manner.

(b) *Open carry prohibited.* It shall be unlawful for any person(s) participating in a special event to openly carry a firearm. The person or entity hosting the event must post signs as approved and directed by the special events committee to indicate the specific area where the open carry of firearms are prohibited.

(c) *Driving through parades.* No driver of a vehicle shall drive between the vehicles or persons comprising a parade when such vehicles or persons are in motion or conspicuously designated as a parade, except that this portion shall not apply to single file parades on the sidewalk areas of the city, where vehicular traffic and those constituting the parade shall be required to obey all traffic control signals unless otherwise directed by a police officer.

(d) *Parking on parade route.* The chief of police shall have the authority, when reasonably necessary, to prohibit or restrict parking of vehicles along a street or part thereof constituting a part of the route of a parade. The chief of police shall post signs to such effect, and it shall be unlawful for any person to park or leave unattended any vehicle in violation thereof. No person shall be liable for parking on a street unposted in violation of this section.

(e) *Obstructing or interfering with parades.* No person shall unreasonably hamper, obstruct, impede or interfere with any parade or parade assembly or with any person, vehicle or animal participating or used in a parade.

(f) *Hours for conducting parade restricted.* No special events permit shall be granted for a parade to convene before 8:00 a.m. or terminate after 8:00 p.m.
(Ord. No. 2021-107, § 2, 7-29-21)

Sec. 2-194. Penalty and retention of deposits.

Any person violating any provision of the special events ordinance, to include any conditions or provisions of a special events permit, shall be subject to the general penalty set forth in section 1-16 of this Code. In addition, the special events committee shall have the authority to retain deposit(s) in the event a permittee of a special event or temporary use event, as applicable, causes the city to incur costs or damage(s) as a result of permittee's special event or temporary use event, as applicable, and to pursue any other remedy against a permittee of a special event or temporary use event, as applicable, available to the city at law or in equity for a violation of any provision of this special events ordinance.
(Ord. No. 2021-107, § 2, 7-29-21)

DIVISION 9. THE COMMISSION ON HISTORY*

Sec. 2-195. Title.

This division shall be known as and may be cited as the "Commission on History."
(Ord. No. 2017-061, § 3, 5-30-17; Ord. No. 2021-107, § 2, 7-29-21)

Sec. 2-196. Findings.

The city council finds and declares that the City of Charleston has a rich historical heritage which should be protected and preserved, and that it is in the public interest that historical monuments, markers, and plaques be regulated under the police power of the City in order to maintain, protect and promote historical accuracy and preservation for the well-being and welfare of the citizens, residents and visitors of the city.
(Ord. No. 2017-061, § 3, 5-30-17; Ord. No. 2021-107, § 2, 7-29-21)

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*__Editor's note—__In order to expand Div. 8 above by provisions added by Ord. No. 2021-107, § 2, adopted July 29, 2021, the editor has renumbered the provisions of former Div. 9, §§ 2-190.1—2-290.3 as §§ 2-195—2-197.

Sec. 2-197. Commission on history; created; membership; terms of office; powers.

(a) *Purpose.* To discover, and as appropriate, circulate information pertinent to the historical identity of the City of Charleston; to cooperate with other persons, groups, organizations and agencies in preserving the history and heritage of the City; and to identify, document, interpret, and preserve the history of Charleston, South Carolina.

(b) *Created.* There is hereby created the "Commission on History."

(c) *Membership.* The commission shall be appointed by the mayor with the advice and consent of city council and shall consist of thirteen (13) members, two (2) of whom shall be members of city council. In making appointments, consideration shall be given to professionals in, and to persons demonstrating knowledge of and appreciation for, the fields of history, preservation, and historical curatorship. The mayor and city council shall consider, but shall not be required to appoint, persons familiar with or associated with the cultural, historical, and related institutions within the City of Charleston. Members of the commission shall serve for a term of one (1) year or until their successors have been appointed and qualified. For purpose of commission action, a quorum of the commission on history shall consist of five (5) members of the commission in attendance. Any member who has more than three (3) consecutive absences from scheduled meetings without written request or exception being approved by the chair shall be subject to automatic removal from the commission.

(d) *Powers.* The commission shall act as an advisory board in promoting the collection and preservation of historical data, publicizing and commemorating persons, deeds, events and things of historical interest, through publication, erection of monuments, markers and otherwise. The commission may also serve as a resource for the verification of information to be included on city historical plaques, markers, publications and monuments, and shall further report to the council, at least

annually, the condition of city statues and other monuments, and make recommendations to the council concerning the proper conservation thereof.
(Ord. No. 2017-061, § 3, 5-30-17; Ord. No. 2021-107, § 2, 7-29-21; Ord. No. 2025-138, § 1, 10-14-25)

Secs. 2-198—2-200. Reserved.

DIVISION 10. HEALTH AND WELLNESS ADVISORY COMMITTEE*

Sec. 2-201. Establishment.

There is hereby established an advisory committee for community health and wellness issues to be known as the "City of Charleston Health and Wellness Advisory Committee."
(Ord. No. 2016-148, § 3, 11-10-16)

Sec. 2-202. Purpose.

The City of Charleston Health and Wellness Advisory Committee shall have the following roles and responsibilities:

(a) To make recommendations and advise city council and staff on all community health and wellness issues;

(b) Increase public awareness of community health and wellness issues;

(c) Educate citizens on healthy lifestyle choices including, but not limited to: nutrition, physical activity, and safety;

(d) Provide recommendations for a healthy environment to combat childhood and adult obesity;

(e) Provide recommendations for creating and promoting healthy workplaces in the community; and

*__Editor's note—__Ord. No. 2016-148, § 3, adopted Nov. 10, 2016, amended the Code by adding provisions numbered as Div. 9 to Art. IV. In order to avoid conflicts in numbering the editor has redesignated these added provisions as Div. 10.

(f) Make recommendations on city partnerships with private and public organizations to create, support, and encourage community programs and activities benefiting health and wellness; and

(Ord. No. 2016-148, § 3, 11-10-16)

Sec. 2-203. Organization.

The organization of the City of Charleston Health and Wellness Advisory Committee shall be:

(a) Membership. The committee shall be comprised of twenty (20) members, seventeen (17) voting and three (3) ex-officio. The members of the committee shall be appointed by the mayor subject to the approval of city council.

(b) The committee membership shall include the mayor, two (2) city council members appointed by the mayor, and a representative from each of the following:

Institutional representation:

(1) Medical University of South Carolina

(2) Roper St. Francis

(3) Charleston County School District

(4) Charleston County Medical Society

(5) Fetter Healthcare

(6) College of Charleston or the Citadel

(7) SCDHEC Lowcountry District

Categorical Representation:

(8) Local expert on agriculture/food advocacy

(9) Expert in nutrition/weight management

(10) Expert in active living/built environment

(11) Expert in mental health

(12) Expert in children/adolescent health

(13) Faith-based community wellness leader

(14) Neighborhood advocate

(15) Director of recreation—ex officio

(16) Director of parks—ex officio

(17) Wellness coordinator—ex officio

(c) The mayor shall annually appoint one of the committee's members to be chairperson.

(d) The terms for institutional representatives shall be two (2) years. The term for categorical representatives and experts shall be three (3) years with the exception of city council members who shall serve for one (1) year. No member shall serve more than two (2) consecutive terms. Members of the committee filling a vacancy shall serve for the balance of the unexpired term.

(e) The committee shall establish a regular time and place for its meetings and shall hold at least one (1) regular meeting bi-monthly. For purpose of committee action, a quorum of the health and wellness advisory committee shall consist of eight (8) members of the committee in attendance.

(f) The committee shall make and alter rules governing its organization and procedures that are not inconsistent with any city ordinance or Robert's Rules of Order.

(g) The committee shall keep a written record of its proceedings and file the record with the clerk or council after the completion of any meeting.

(Ord. No. 2016-148, § 3, 11-10-16)

Sec. 2-204. Attendance requirements for members.

In the event a member of the committee shall fail to either attend two (2) consecutive meetings or three (3) meetings per year without written justification for said absence that is approved by a vote of a majority of the members of the committee, such member shall be removed from the committee and a new member shall be appointed in his or her place and stead.

(Ord. No. 2016-148, § 3, 11-10-16)

Sec. 2-205. lntragovernmental relations.

The committee shall have the full cooperation of all departments of the city in the performance of its duties, and all departments shall supply the committee with all information and reports requested in order that the goals of this committee may be realized.
(Ord. No. 2016-148, § 3, 11-10-16)

DIVISION 11. RESERVED*

Secs. 2-206—2-211. Reserved.

DIVISION 12. CHARLESTON BASIN FLOOD ACTION COMMITTEE†

Sec. 2-212. Charleston Basin Flood Action Committee.

(a) *Establishment.* There is hereby established a City of Charleston's Basin Flood Action Committee which shall be referred to as the basin flood action committee.

(b) *Purpose.* Charleston Basin Flood Action Committee shall have the following roles and responsibilities:

(1) Review the city's basin flood action program (BFAP) in coordination with the Charleston Integrated Water Plan (CIWP) and the city's ongoing studies and projects with the U.S. Army Corps of Engineers, make recommendations related to the projects and plans, and advise the mayor, city council, committee members, and staff on the findings of the committee; and

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***Editor's note—**Ord. No. 2025-189, § 9, adopted Dec. 16, 2025, repealed Div. 11, §§ 2-206—2-210, which pertained to human affairs and racial conciliation commission and derived from Ord. No. 2022-018, §§ 2—4, adopted Feb. 9, 2022; and Ord. No. 2022-148, § 1, adopted Oct. 11, 2022.

†**Editor's note—**Ord. No. 2024-171, § 1, adopted Oct. 22, 2024, repealed the former Div. 12, § 2-212, and enacted a new Div. 12 as set out herein. The former Div. 12 pertained to the peninsula perimeter protection advisory committee and derived from Ord. No. 2021-023, §§ 1, 2, adopted 2-23-2021; Ord. No. 2023-106, § 1, adopted 5-23-2023; and Ord. No. 2023-204, § 1, adopted 9-26-2023.

(2) Focus on the protection of life, property, and the natural environment in the City of Charleston in the face of rising sea levels and more severe flooding events, including the impacts of tidal, storm surge, rainfall, groundwater, and compound flooding; and

(3) Review, study, and provide comment on certain current and planned projects related to flooding, including ongoing partnership with the Army Corps of Engineers for the Tidal and Inland Flood Risk Management Study and the Charleston Peninsula Coastal Storm Risk Management project; and

(4) Utilize the BFAP and CIWP, to identify, discuss, and promote city-wide strategies, including coordination with regional governments, agencies, and entities, for addressing storm surge protection and flooding from all causes; and

(5) Identify and expand communication opportunities between city residents, the community, and strategic partners.

(c) *Composition.* The organization of the basin flood action committee.

(1) *Membership.* The committee shall be comprised of twelve (12) members, one (1) position to be held by the mayor. The remaining eleven (11) members of the committee shall be appointed by the mayor after consultation with the members of city council.

(2) *Member appointments.*

- Two (2) members of city council.
- One (1) business community leader.
- A member of the conservation or historic preservation community.
- A member from the environmental justice community.
- An engineer or architect.
- One (1) city resident who resides on the peninsula.
- One (1) city resident who resides in West Ashley.

- One (1) city resident who resides in James Island.
- One (1) city resident who resides in Johns Island.
- One (1) city resident who resides in Daniel Island.

(d) *Organization and operation.*

(1) The advisor for resilience or designee shall serve as the coordinator between the committee and the city.

(2) The mayor shall annually appoint one (1) of the committee members to be chairperson.

(3) The terms of the committee member shall be two (2) years. No member shall serve more than two (2) consecutive terms. Members of the committee filling a vacancy shall serve for the balance of the unexpired term.

(4) The committee shall hold bi-monthly meetings dependent upon project development. Meeting frequency can be increased at the discretion of the chair and/or as requested in writing by a majority of the committee. The committee shall establish a regular time and place for its meetings.

(5) Committee member input is necessary for proper function of the committee. Committee members who miss three (3) or more consecutive meetings without a reasonable explanation and request to the chairman may be removed from the committee and a new member will be appointed to fill that vacancy by the mayor.

(Ord. No. 2024-171, § 1, 10-22-24)

Secs. 2-213—2-119. Reserved.

ARTICLE V. DEPARTMENT OF HUMAN RESOURCES AND ORGANIZATIONAL DEVELOPMENT*

Sec. 2-220. Establishment.

There is hereby established a department to be known as the department of human resources and organizational development.
(Ord. No. 2006-598, § 2, 12-19-06; Ord. No. 2016-148, § 1, 11-10-16)

Sec. 2-221. Duties and responsibilities of department.

The department shall be responsible for the development and enforcement of employment related policy, procedure, and developmental programs and shall advise, direct and monitor employee relations, benefits, wellness, training, grievances, job requirements and employee services or such other duties as may be delegated to it by the mayor or city council.
(Ord. No. 2006-598, § 2, 12-19-06; Ord. No. 2016-148, § 1, 11-10-16)

Sec. 2-222. Administration; duties of director.

(a) The administration, direction and control of the department shall be under the supervision of the director of human resources and organizational development, who shall be appointed by the mayor with the approval of the council.

(b) The director of the department of human resources and organizational development shall be responsible for the management and administration of employee services of department by developing and enforcing employment-related policy and organizational development programs. The director of the department of human resources and organizational development acts as the city's equal employment opportunity officer and is responsible for the administration and enforcement of EEO activity and compliance. The director of the department of human resources and organizational development advises, directs

*__Editor's note—__Ord. No. 2016-145, § 1, adopted Nov. 10, 2016, renumbered former §§ 2-191—2-193 of Art. V as §§ 2-220—2-222.

and monitors human resources activities, such as employment, compensation, employee relations, benefits, wellness, training, grievances and shall be responsible for such other duties and responsibilities as may be delegated to him or her from time to time by the mayor or city council.
(Ord. No. 2006-598, § 2, 12-19-06; Ord. No. 2016-148, § 1, 11-10-16)

Secs. 2-223—2-230. Reserved.

ARTICLE VI. DEPARTMENT OF PUBLIC SERVICE

Sec. 2-231. Establishment and organization.

The department of public service is hereby established and shall consist of the following divisions:

(1) Engineering;

(2) Inspections;

(3) Streets and sidewalks;

(4) Environmental services;

(5) Fleet services.

(Code 1975, § 22-1; Ord. No. 1979-18, § 2, 2-27-79; Ord. No. 2000-18, § 1, 2-8-00; Ord. No. 2010-111, § 5, 7-20-10; Ord. No. 2018-149, §§ 2, 3, 11-27-18)

Sec. 2-232. Duties and responsibilities.

The department of public service shall have the responsibility for the upkeep and maintenance of the streets and sidewalks, and other physical facilities of the city except where such responsibilities are delegated by the city council to other departments of city government. It shall have the overall responsibility for the environmental services of garbage collection, trash collection, street sweeping, and rodent control. It shall provide such engineering, building plan review, permitting and inspections or similar in-house-technical services as are required by the city. It shall have the responsibility for the enforcement of such ordinances or codes relating to housing and

building construction and environmental control as are adopted by the council. It shall provide fleet support to the city's motor vehicles to include the responsibility for the management, maintenance and repair of the city's fleet of motor vehicles and titled equipment.
(Code 1975, § 22-2; Ord. No. 1979-18, § 2, 2-27-79; Ord. No. 2000-18, § 1, 2-8-00; Ord. No. 2018-149, § 3, 11-27-18)

Sec. 2-233. Administration.

The administration, direction and control of the department of public service shall be under the supervision of a director who shall be appointed by the mayor with the approval of the council.
(Code 1975, § 22-3; Ord. No. 1979-18, § 2, 2-27-79)

Secs. 2-234—2-245. Reserved.

Editor's note—Ord. No. 2000-18, § 1, adopted Feb. 8, 2000, repealed § 2-234, which pertained to responsibilities of the department of public service for the municipal marina and derived from Code 1975, § 22-11A; Ord. No. 1979-18, § 2, adopted Feb. 27, 1979; Ord. No. 1980-67, § 3, adopted May 27, 1980.

Ord. No. 1997-37, § 1, adopted Jan. 28, 1997, repealed § 2-235, which pertained to the yacht basin commission and derived from Ord. No. 1979-15, § 5(II)(B)—(D), adopted Feb. 27, 1979, and Ord. No. 1986-103, § 1, adopted Sept. 9, 1986.

ARTICLE VII. DEPARTMENT OF SPECIAL FACILITIES*

Sec. 2-246. Established.

There is hereby established a department to be known as the department of special facilities.
(Ord. No. 1979-15, § 2, 2-27-79)

***Editor's note—**Ord. No. 1999-09, § 1, adopted Feb. 9, 1999, repealed §§ 2-249 and 2-250, and renumbered former § 2-252 as § 2-249. Former §§ 2-249 and 2-250 pertained to management of the municipal golf course and the municipal golf course commission, respectively, and derived from Ord. No. 1979-15, § 5, adopted Feb. 27, 1979.

Sec. 2-247. Duties and responsibilities of department.

The department of special facilities shall have the responsibility of maintaining, managing and operating the Gaillard Municipal Auditorium, the Garden Theater, and such other facilities as may be assigned to the department by the city council.
(Ord. No. 1979-15, § 3, 2-27-79; Ord. No. 1980-67, § 1, 5-27-80; Ord. No. 1999-09, § 1, 2-9-99)

Sec. 2-248. Administration.

The administration, direction and control of the department of special facilities shall be under the supervision of the director of the department of special facilities who shall be appointed by the mayor with the approval of the council.
(Ord. No. 1979-15, § 4, 2-27-79)

Sec. 2-249. Gaillard Municipal Auditorium.

(a) *Management.* The facilities of the Gaillard Municipal Auditorium shall be managed, operated, and supervised by the auditorium director who shall be appointed by the mayor. The auditorium director shall be under the direction and supervision of the director of the department of special facilities.

(b) *The Garden Theater.* The facilities of the Garden Theater shall be managed, operated, and supervised by the director of the Gaillard Municipal Auditorium.
(Ord. No. 1979-15, § 5III(A), (B), 2-27-79; Ord. No. 1999-09, § 1, 2-9-99)

Note—Formerly numbered as § 2-252.

Secs. 2-250—2-265. Reserved.

ARTICLE VIII. FINANCE AND FISCAL PROCEDURES*

Sec. 2-266. Sale of property.

The city council shall not offer for sale or sell any piece or parcel of real estate owned by the city, except:

(1) By advertising the real estate in a newspaper of general circulation in the city, calling for sealed bids on the same, and reserving the right to reject any or all bids or to accept any bid most advantageous to the city; such sale may be at an upset price and may contain such conditions as deemed appropriate.

(2) This section shall not apply to sales of city-owned real estate to agencies possessing the power of condemnation, to sales to public agencies for public purposes, and to sales where, because of the value of the property, public advertising would not be cost effective.

(3) The provisions of this section shall also apply to any lease of real estate owned by the city when the proposed lease term is greater than one (1) year in duration.

(4) The city council shall have the right to waive any provisions of this section where, by a vote of two-thirds of the council members present, city council determines that the provisions herein are not in the public interest.

(Ord. No. 1985-108, § 1, 9-10-85)

Sec. 2-267. Reserved.

Editor's note—Ord. No. 2014-10, §§ 1, 2, adopted Jan. 30, 2014, transferred the office of minority business development, formerly part of the department of economic development, to the department of budget, finance and revenue collections. The editor has transferred the provisions of former § 2-267, as amended, to § 2-344 of this Code.

***Editor's note—**Ord. No. 1985-108, § 1, adopted Sept. 10, 1985, amended the 1975 Code by adding provisions intended for use as § 1-14. Said provisions have been included herein as § 2-266 at the editor's discretion.

Cross references—Administration, Ch. 2; planning, Ch. 23.

Sec. 2-268. Plan for the utilization of minority business enterprises (MBEs) and women business enterprises (WBEs).

(a) City council finds and declares it to be in furtherance of sound procurement practices that all business entities be accorded a real and equitable opportunity to participate in city procurements. City council further finds that it is in the best interests of the city and its residents that a program be developed to ensure that businesses owned and controlled by minorities and women have a real opportunity to compete for city purchases to provide for a balanced and healthy economy and to foster open and competitive procurement within the city.

(b) There is hereby established a plan for the utilization of minority business enterprises (MBE) and women business enterprises (WBE), which plan shall be administered by the manager of the office of minority business enterprise (hereinafter the "manager") in conjunction with the director of procurement or by such other individual(s) as the mayor may, from time to time, appoint. It shall be the responsibility of the manager to formulate and publish the necessary rules, guidelines and to implement this plan, including but not limited to rules and regulations regarding the certification of MBEs and WBEs so as to ensure that the benefits of this plan inure to businesses owned and controlled by minorities and women, provided however, that such rules and regulations shall be submitted to city council for approval. The manager shall also be charged with compiling, updating and distributing a directory of available MBEs and WBEs for use by city personnel in achieving the goals of this plan, and further, shall formulate and publish guidelines to be utilized by the city in assessing whether a procurement qualifies as a MBE or WBE procurement. Further, the manager shall compile data regarding the level of participation in city procurements by MBEs and WBEs and present them to council for analysis of the program.

(c) As utilized herein, the following terms shall have the meaning as designated, to wit:

(1) *Controllable dollars* means funds other than those budgeted for salaries of employees, fringe benefits, utility expenses, rents, taxes and any items which may be procured only from special identified sources.

(2) *Construction* means the process of building, altering, repairing, improving or demolishing any public structure, building or roadway, or any other improvement of any kind to any public real property. Construction does not include the routine operation, repair or maintenance of existing structures, buildings or real property or any such routine work undertaken by city employees on public property.

(3) *A minority business enterprise (MBE)* is a business concern which: (a) is at least fifty-one (51) percent owned by one (1) or more minority individuals, or in the case of the publicly owned business, at least fifty-one (51) percent of the stock of which is owned by one (1) or more minority individuals; and (b) the management and daily business operations of which are controlled by one (1) or more of the minority individuals who own it.

(4) An *emergency purchase* is a procurement undertaken from a sole source where circumstances require an immediate procurement to protect the physical well-being of the public or of any city employee, or where the appropriate and efficient functioning of government is threatened without such purchase.

(5) *Procurement* means buying, purchasing, renting, leasing or otherwise acquiring any supplies, services or construction.

(6) *Services* means furnishing of labor, time or effort by one who is not under the regular employ of the city. This term includes "professional services," but does not include employment agreements or collective bargaining agreements.

(7) *Minority individual* is presumed to include, which presumption may be rebutted, a citizen of the United States (or lawfully admitted permanent residents) who is a Black African American, Hispanic American, Native American, Asian American, or Indian American; provided however, that the city may, on a case-by-case basis, determine that an individual who is not a member of any of the aforementioned groups is a minority.

(8) *Supplies* means property including, but not limited to, equipment, materials, printing, and the like, but excluding land or a permanent interest in land.

(9) A *women business enterprise (WBE)* is a business concern (1) which is at least fifty-one (51) percent owned by women, or in the case of any publicly owned business, at least fifty-one (51) percent of the stock is owned by women, and (2) the daily management and business operations of which are controlled by women.

(d) On an annual basis, the mayor shall recommend to the city council for its approval program goals, targeting the percentage of city procurements sought to be awarded to MBEs and WBEs during a given fiscal year; provided however, that minimum goals for participation by MBEs and WBEs in procurements obtained with controllable dollars are hereby established, if the same can be justified on an annual basis as being fiscally responsible and feasible, to wit:

		Combined MBE/WBE
(1)	Construction	20%
(2)	Services	20%
(3)	Supplies	12%

Methodology used in establishing such goal(s) on a year to year basis shall include a projection of the number and type of procurements to be made by the city during such fiscal year, a projection of the number and type of MBEs and WBEs certified to compete for such procurements and the experience of the city in attaining, or failing to attain, previous MBEs and WBE goals in light of the reasons for attaining or not attaining such goals.

(e) (1) In any procurements sought through public advertisement other than construction procurements, the procurement director, in conjunction with the mayor and the manager of minority business enterprise, shall determine the combined percentage of the procurement, if any, that the bidder should attempt to allocate to MBEs and or WBEs, and shall cause this determination to be set forth

in the bid specifications along with the necessary directions to the bidder for compliance with such goals. In setting a particular procurement goal, consideration shall be given to such factors as the ability of the procurement to be broken down into component parts which would allow for contracting and procurement opportunities to MBEs and WBEs and resources available from known MBEs and or WBEs.

(2) In construction procurements sought through public advertisement, the minimum construction goals as set forth in subsection (d) shall be incorporated into bid specifications utilizing the city's Good Faith Effort Program unless the manager of minority business enterprise certifies to the mayor and the procurement division that the nature or size of the procurement does not lend itself to being feasibly broken down into component parts that would allow for MBEs and or WBE subcontracting opportunities.

(3) In all other procurements, except emergency procurements, it shall be the responsibility of the procurement director to make affirmative efforts to ensure that MBEs and WBEs are provided an equal opportunity to compete for, or participate in city procurements. On at least a quarterly basis, the procurement director, other than for emergency procurements, shall submit to the manager of minority business enterprises, in such format as he may establish, the following information:

a. The total number of procurements awarded;

b. The total monetary value of procurements awarded;

c. The type of procurements awarded;

d. The total monetary amount of the procurements awarded to MBEs and WBEs;

e. The percentage of total combined city procurements awarded to MBEs and WBEs.

(f) The manager of minority business enterprises shall report to city council, no less than quarterly, the percentage of total combined city procurements awarded to MBEs and WBEs and a

description of the procurement categories represented thereby. Such reports shall be utilized to assist city council in evaluating the effectiveness of its attempts to ensure that all businesses have an opportunity to participate in the city's procurement program and in establishing reasonable and realistic annual goals for the program.

(g) Nothing herein shall be construed as having established any set-aside for any group for any procurement or as having bound the city or any department thereof to accept any procurement offer not in its best interests.

(Ord. No. 1987-162, § 1, 9-22-87; Ord. No. 1993-484, § 1, 12-28-93; Ord. No. 1999-07, § 1, 1-26-99; 2008-65, § 1, 4-8-08)

Editor's note—Formerly numbered as § 2-267.

Sec. 2-269. Touring fee.

(a) *Findings.* City council finds and declares that visitors to the city utilizing the public streets and sidewalks for purposes of touring constitute a viable component to the economic well being of the city. At the same time, the influx of visitors touring the city on public streets and sidewalks has necessitated that certain regulations be put in place to balance the needs and comfort of the visitors with those of residents. These regulations include the implementation of a tourist management program, the implementation of regulations governing the use of streets by tourist operations and the employment of personnel to secure the safety, comfort and well being of visitors, all of which has burdened the general fund of the city, and but for which the same would not be required to the extent necessary. City council finds it to be in the interest of the public and in furtherance of the general welfare that a reasonable fee be imposed upon those touring the city via public streets and sidewalks to assure a means by which the city and its environs may be enjoyed by the touring public in a safe, clean and efficient manner, without undue burden on the general public. The purpose of this section is established a mechanism by which certain funds may be collected from those participating in tours conducted on public streets and sidewalks to assist in the costs of providing those services which make the City of Charleston such a desirable place to visit.

(b) There is hereby imposed a fee of fifty cents ($0.50) on every ticket or admission to a tour conducted on the public streets and sidewalks of the City of Charleston.

(c) Each tour operator shall collect the fee imposed by this section from any patron when he or she pays the admission charge. Every tour operator shall hold the fee imposed by this section in trust until the same is paid to the director as herein after provided. For purposes hereof, "tour operator" shall mean the entity or individual which or who possesses a business license to conduct tours in the City of Charleston or which or who sponsors tours conducted on the streets or sidewalks of the city, and "tour" means the conduct of a sightseeing venture, for hire, in the city from the streets and/or sidewalks of the city, unless exempt by the provisions of subsection (g) hereof.

(d) Prior to conducting, operating or maintaining any tour on the public streets and sidewalks of the city, which is subject to this section, each tour operator shall register with the director of revenue collections and obtain a tourism fee collection certificate. The certificate shall include, among other things, the name of the tour operator, the permanent address of the tour operator, the date upon which the certificate was issued and the statement that by obtaining a certificate, the operator agrees to collect the touring fee for the city and to comply with the city's rules and regulations for the collection of the fees. No tourism fee collection certificate may be transferred or assigned without permission of the director of business license, nor may the controlling interest in a corporation which holds a collection certificate be sold or assigned without such permission.

(e) Each operator shall, on the date or within the time period hereinafter prescribed, make a return to the director of revenue collections on forms provided by the director of the total number of tours conducted and the total number of tickets sold or distributed and the amount of fees collected from the patrons. At the time the return is filed, the full amount of any touring fees shall be remitted to the director. Tourism fees and required

reports shall be remitted to the director of revenue collections on or before the fifteenth (15th) day of the month and shall include all fees collected the previous month. If the due date for reporting and payment falls on a Saturday or Sunday, or a federal, state, or City of Charleston observed holiday then reporting and payment are considered timely on the following business day. Furthermore, if the due date for reporting and payment falls during the period of a natural disaster which directly precluded the responsible party from timely submitting the reports and payments, an additional ten (10) day extension may be granted upon written request by the taxpayer to the director of the revenue collections division. A natural disaster is defined as a hurricane, earthquake, flood, or tornado. The responsible party is considered directly precluded from timely submitting reports and payments if their offices are deemed by emergency officials to be damaged to the extent of being unsafe or unavailable for use due to the disaster or postal service to the immediate area is suspended during the due date. Operators who averaged less than six hundred dollars ($600.00) annually in tourism fees over the previous twelve-month period are allowed to file on a quarterly basis with the required reports and fees due on or before the fifteenth (15th) day of the following month after the quarter. The quarters are defined as January—March, April—June, July—September, and October— December. New operators are required to file monthly until a twelve-month history of tour fee filings has occurred. The failure of a tour operator to collect from patrons the fee imposed by this section shall not relieve the operator from making the required remittance to the director of revenue collections.

(f) There is hereby established a special account, to be known as the touring fee account, into which all monies remitted to the city under this section shall be deposited. Any and all funds in the touring fee account, including any interest as may accrue thereon, shall be used only for the purpose of offsetting, to the extent possible, the costs to the city in providing tourism management services, including but not limited to, costs necessary to provide safe travel to the touring public along streets and sidewalks, costs necessary to assure a clean and inviting appearance to the touring public, costs necessary to implement, manage and over-

see the tourism industry within the city and any such other costs as may be reasonably incurred in providing for the safety, comfort and well being of tourists on the public streets and sidewalks.

(g) The fee imposed by this section shall not apply to tours comprised of children under the age of eighteen (18) who tour the city as part of a school or organized group activity or to tours conducted in vehicles described in section 29-173 of the Code of the City of Charleston.

(h) Failure to file the required reports and fees as required by this section will subject the operator to a ten dollar ($10.00) penalty or a penalty of ten (10) percent of the tourism fee due, whichever is higher.The failure of a tour operator to remit to the city the fees required by this section, as and when due, shall constitute a misdemeanor, punishable by a fine of not more than five hundred dollars ($500.00) or imprisonment for up to thirty (30) days, or both. Notwithstanding the foregoing, any misrepresentation of the information required by returns as set forth in subsection (e) hereof, shall subject the town operator to suspension and/a revocation of his business license and/or tour guide certificate as may be determined, after a hearing, by the business license committee. At least ten (10) days' notice of any such hearing shall be provided by the director of revenue collections to the applicable tour operator.

(i) If any provision of this section or application thereof to any circumstance is held to be invalid, such invalidity shall not affect other provisions of this section or applications of this section which can be given effect without the unvalid provisions or applications, and to this end the provisions and applications of this section are severable.
(Ord. No. 1993-455, § 1, 12-21-93; Ord. No. 2001-131, §§ 1—4, 12-18-01; Ord. No. 2004-127, § 1, 11-09-04)

Sec. 2-270. Municipal hospitality tax.

(a) *Municipal hospitality tax.* There is hereby imposed a uniform tax of two (2) percent on the gross proceeds derived from the sales of prepared meals, food, and beverages sold in or by

establishments, or sales of prepared meals, food and beverages sold in or by establishments licensed for on-premises consumption of alcoholic beverages, beer or wine.

(b) *Payment of municipal hospitality tax.* The tax imposed by this section shall be collected from any patron when he tenders payment for his meal, food, or beverage and shall be held in trust for the benefit of the city until the same is paid to the director of the revenue collections division as hereinafter provided. Every establishment subject to this section shall, on the date or within the time period hereinafter prescribed, make a return to the revenue collections division of the city on forms provided by the office delineating gross proceeds of sales of prepared meals, food, and beverages for the previous month, and the amount of any tax due by virtue of this section. At the time the return is filed, the full amount of any tax due hereunder shall be remitted. Taxes and required reports shall be submitted to the Revenue Collections Division by the twentieth (20) day of the month and shall cover sales of the previous month. If the due date for reporting and payment falls on a Saturday or Sunday, or a federal, state, or City of Charleston observed holiday then reporting and payment are considered timely on the following business day. Furthermore, if the due date for reporting and payment falls during the period of a natural disaster which directly precluded the responsible party from timely submitting the reports and payments, an additional ten (10) day extension may be granted upon written request by the taxpayer to the director of the revenue collections division. A natural disaster is defined as a hurricane, earthquake, flood, or tornado. The responsible party is considered directly precluded from timely submitting reports and payments if their offices are deemed by emergency officials to be damaged to the extent of being unsafe or unavailable for use due to the disaster or postal service to the immediate area is suspended during the due date. Any taxes not timely remitted shall be subject to a penalty of twenty-five (25) percent. The failure to collect from patrons the tax imposed by this section shall not relieve any establishment subject to this section from making the required remittance.

(c) *Hospitality tax account.* There is hereby established a special account, to be known as the hospitality tax account, into which all monies remitted to the city under this section shall be

deposited. Any and all funds in the hospitality tax account, including any interest as may accrue thereon, shall be used only for the purposes as set forth in S.C. Code Ann. Sec. 6-1-730, as the same may from time to time be amended, subject to city council approval.

(d) *Inspections, audits and administration.* For the purpose of enforcing this section, the director of the revenue collections division or other authorized agent of the city is empowered to enter upon the premises of any person or entity subject to this section and to make inspections, and examine and audit books and records. It shall be unlawful for any person or entity to fail or refuse to make available the necessary books and records during normal business hours upon twenty-four (24) hours' written notice. In the event an audit reveals that false information has been filed by the remitter, the cost of the audit shall be added to the correct amount of fees determined to be due. The director of the revenue collections division or other authorized agent may make systematic inspections of all establishments within the city to ensure compliance with this section. The director of the revenue collections division shall administer the provisions of this section and make reasonable regulations relating to its administration.

(e) *Violations.* It shall be a violation of this section to:

(1) Fail to collect the municipal hospitality tax in connection with the sale of meals, food, and beverages;

(2) Fail to remit to the city the taxes collected pursuant to this section on a monthly basis;

(3) Provide false information on the form of return submitted to the city;

(4) Fail to provide or make available books and records to the director of revenue or other authorized agent for the purpose of an audit upon twenty-four (24) hours' written notice; or,

(5) Fail to comply with any other specific provision/ requirement of this section.

The failure of an establishment subject to this section to remit to the city the taxes required by this section, as and when due, shall constitute a misdemeanor, punishable by a fine of not more than five hundred dollars ($500.00) or imprisonment for up to thirty (30) days, or both. Notwithstanding the foregoing, any misrepresentation of the information required by return(s) as set forth in subsection (b) hereof or the failure to collect or timely remit to the city the taxes imposed by this section shall result in the suspension and/or revocation of the business license of the offending establishment, or the business license of the offending establishment shall not be renewed, as may be determined, after a hearing by the business license committee. At least ten (10) days' notice of such hearing shall be provided to the owner of the applicable establishment.

(f) *Severability.* If any section, phrase, sentence or portion of this section is for any reason held invalid or unconstitutional by any court of competent jurisdiction, such portion shall be deemed a separate, distinct, and independent provision, and such holding shall not affect the validity of the remaining portions herein.

(Ord. No. 1993-450, § 1, 12-7-93; Ord. No. 1997-367, § 2, 8-19-97; Ord. No. 2002-153, § 1, 12-17-02; Ord. No. 2004-126, § 1, 11-9-04; Ord. No. 2005-19, § 1, 1-25-05; Ord. No. 2019-001, § 2, 1-8-19)

Sec. 2-271. Impact fees.

(a) *Findings.* S.C. Code § 6-1-910, et. seq. (Supp. 2001), the South Carolina Development Impact Fee Act (Act), authorizes the imposition of impact fees to fund the cost of system improvements to public facilities that are necessitated by new growth and development. The Act requires, as a condition precedent to the imposition of impact fees, that the city must have in place a comprehensive plan as set forth in Chapter 29 of Title 6 of the South Carolina Code and otherwise comply with the Act. The city has adopted a comprehensive plan in accordance with Chapter 29 or Title 6 of the

[The next page is 111]

South Carolina Code and otherwise comply with the Act. The city has adopted a comprehensive plan in accordance with Chapter 29 or Title 6 of the South Carolina Code, and in accordance with the Act, has made available to the planning commission assistance to enable it to study and review the issue of impact fees. The planning commission has recommended that impact fees be imposed to fund certain capital improvements that are necessitated by new growth and development, and city council deems it in the interest of the public that such recommendation be adopted and enacted as law.

(b) Impact fees are hereby imposed in the city to fund the share of capital improvements necessitated by new growth and development as follows:

(1) *Definitions.*

a. *Affordable housing* means housing affordable to families whose incomes do not exceed eighty (80) percent of the median income for the service area or areas within the jurisdiction of the city.

b. *Building permit* means a permit issued for construction on or development of land.

c. *Capital improvements* means improvements with a useful life of five (5) years or more, by new construction or other action, which increase or increased the service capacity of a public facility.

d. *Developer* means an individual or corporation, partnership, or other entity undertaking development.

e. *Development* means construction or installation of a new building or structure, or a change in use of a building or structure, any of which creates additional demand and need for public facilities designated to be funded, in whole or in part, by impact fees. A building or structure shall include, but not be limited to, modular buildings and manufactured housing. "Development" does not include alterations made to existing single-family homes.

f. *Development approval* means a document that authorizes the commencement of a development.

g. *Environmental services impact fee* means a payment of money imposed as a condition of development approval to pay a proportionate share of system improvements to environmental facilities attributable to the applicable development. The term does not include:

1. A charge or fee to pay the administrative, plan review, or inspection costs associated with permits required for development;

2. Amounts collected from a developer in a transaction in which the city has incurred expenses in constructing capital improvements for the development if the owner or developer has agreed to be financially responsible for the construction or installation of the capital improvements;

3. Fees authorized by Article 3, of Chapter 1 of Title 6 of the South Carolina State Code of Laws.

j. *Feepayer* means the individual or legal entity that pays or is required to pay an impact fee.

k. *Incidental benefits* are benefits which accrue to a property as a secondary result or as a minor consequence of the provision of public facilities to another property.

l. *Land use assumptions* means the description of a service area and projections of land uses, densities, intensities, and population in the service area over at least a ten-year period.

m. *Level of service* means a measure of the relationship between service capacity and service demand for public facilities.

n. *Project* means a particular development on an identified parcel of land.

o. *Proportionate share* means that portion of the system improvement costs determined pursuant to Sec-

tion 6-1-990 of the South Carolina Code of Laws that reasonably relate to the service demands and needs of the project.

p. *Public facilities* means public safety facilities, including law enforcement and fire stations, and capital equipment and vehicles having an individual unit price in excess of one hundred thousand dollars ($100,000.00) used in the delivery of public safety services and the collection and disposal of solid waste.

q. *Public safety impact fee* means a payment of money imposed as a condition of development approval to pay a proportionate share of system improvements to public safety facilities attributable to the development. The term does not include:

1. A charge or fee to pay the administrative, plan review, or inspection costs associated with permits required for development;

2. Amounts collected from a developer in a transaction in which the city has incurred expenses in constructing capital improvements for development if the owner of developer has agreed to be financially responsible for the construction or installation of the capital improvements;

3. Fees authorized by Article 3 of Chapter 1 of Title 6 of the South Carolina Code of Laws.

r. *Service area* means the defined geographic area(s) specified in Part 3, Section E-1 of the Charleston Century V City Plan, as amended, provided however, that effective as of September 1, 2005, the Daniel Island/Cainhoy/Thomas Island area of the city is excluded from the service area for the collection of the environmental services impact fee.

s. *Service unit* means the standardized measure of consumption, use, generation or discharge attributable to an individual unit of development calculated

in accordance with generally accepted engineering or planning standards for a particular category of capital improvements.

t. *System improvements* mean capital improvements to public facilities that are designed to provide service to a service area.

u. *System improvement costs* mean costs incurred for construction or reconstruction of system improvements, including design, acquisition, engineering, and other costs attributable to the improvements, and also including the cost of providing additional public facilities needed to serve new growth and development. System improvement costs do not include:

1. Construction, acquisition, or expansion of public facilities other than capital improvements identified in the Charleston Century V City Plan;

2. Repair, operation, or maintenance of existing or new capital improvements;

3. Upgrading, updating, expanding, or replacing existing capital improvements to serve existing development in order to meet stricter safety, efficiency, environmental, or regulatory standards;

4. Upgrading, updating, expanding, or replacing existing capital improvements to provide better service to existing development;

5. Governmental administrative and operating costs; or

6. Principal payments and interest or other finance charges on bonds or other indebtedness except financial obligations issued by or on behalf of the city to finance capital improvements identified in the Charleston Century V City Plan.

(2) *Affordable housing.*

a. The city has prepared a report that estimates the effect of recovering capital costs through impact fees on the availability of affordable housing within the city, and incorporated it in Part 3, Section E-1 of the Charleston Century V City Plan.

(3) *Annual report and termination of fees.* The city shall prepare and publish an annual report describing the amount of impact fees collected, appropriated or spent during the preceding year. The public safety impact fees provided for herein shall terminate when sufficient funds to pay for the system improvements identified in Part 3, Section E-1 of the Charleston Century V City Plan to be paid for through the use of impact fees have been collected or December 31, 2015, whichever shall first occur. The environmental service impact fees provided for herein shall terminate on May 19, 2015.

(4) *Impact fees.*

a. In environmental service impact fee is set at eighty-two dollars ($82.00) per residential dwelling unit, and eighty-two ($82.00) per city container used by nonresidential development. The fee shall be adjusted on an annual basis through the year 2015 based on the Consumer Price Index.

The fee was calculated using the whole of the city as the service area, maintaining the current, acceptable level of service of once a week pickup over four (4) days, the number of units served by an average truck route, the estimated number of users to be added to the system through the year 2015 and the number and costs of new trucks that will be needed to serve those units. Cost estimates were based on city departmental experience.

The improvements to be purchased with the environmental impact fees are seven trucks, to be acquired as the number of new units necessitating an additional route come on line, anticipated to be one

truck in 2004, one truck in 2005, one truck in 2006, one truck in 2008, one truck in 2010, one truck in 2012 and one truck in 2014.

b. A public safety impact fee is set at seventy-nine dollars ($79.00), per dwelling unit and four cents ($0.04) per square foot of nonresidential development. The fee shall be adjusted on an annual basis through the year 2015 based on the Consumer Price Index. Cost estimates were based on city departmental experience.

The fees were calculated using the whole of the city as the service area, maintaining the current, acceptable level of service of one (1) equipped fire station within five (5) miles of a potential call and one police substation per twenty thousand (20,000) people or per geographically distinct area of the city. Applying these criteria to anticipated growth through the year 2015 demonstrated that new public safety facilities to serve the growth would be required. The type and amount of growth was estimated on the basis of land use assumptions, including zoning, building permit and census data. The cost of public safety facilities and equipment was apportioned between residential sixty-two (62) percent and nonresidential thirty-eight (38) percent, based on departmental experience as to the source and frequency of service calls. A cost per dwelling unit was derived by dividing sixty-two (62) percent of the costs of facility improvements by the estimated number of residential units to be in the city through the year 2015. A cost per square foot of nonresidential development was derived by dividing thirty-eight (38) percent of the costs of facility improvements by the estimated number of nonresidential square footage to be in the city through the year 2015.

System improvements to be made with the public safety impact fees are a fire station and police team station for the Bees Ferry area, and a pumper truck

and a ladder truck, with an estimated completion date of 2006; a fire station and police team station for the Daniel Island area, and a pumper truck and a portion of the cost of a ladder truck, with an estimated completion date of 2004; and a fire station and police substation for the Cainhoy area, and a pumper truck and a portion of the cost of a ladder truck, with an estimated completion date of 2007.

c. The payment of a development's proportionate share of system improvement costs by payment of the impact fees as set forth herein constitutes full and complete payment of the new development's proportionate share of those system improvements costs;

d. An impact fee payer:

1. May negotiate and contract with the city to provide facilities or services, in lieu of the impact fees;

2. Has the right of appeal, as hereafter set forth;

3. Shall not be required to pay any impact fee until the issuance of the building permit or development permit when no building permit is required.

(5) *Exemptions from impact fees.* Any claim for exemption from an impact fee must be made no later than when the applicant applies for the first building permit, or development permit if no building permit is sought, for the proposed development that creates the obligation to pay the fees. Notwithstanding any other provision of this ordinance, only the following development shall be exempt from payment of impact fees:

a. Rebuilding the same amount of floor space of a structure that was destroyed by fire or other catastrophe;

b. Remodeling or repairing a structure that does not result in an increase in the number of service units;

c. Replacing a residential unit, including a manufactured home, with another residential unit on the same lot, if the number of service units does not increase;

d. Placing a construction trailer or office on a lot during the period of construction on the lot;

e. Constructing an addition on a residential structure which does not increase the number of service units;

f. Adding uses that are typically accessory to residential uses, such as a tennis court or a clubhouse, unless it is demonstrated clearly that the use creates a significant impact on the system's capacity;

g. The residential units in a development project if:

1. The development project creates affordable housing units; and

2. The impact fee for the residential affordable housing units is funded through a revenue source other than impact fees; and

3. If the revenue source to fund the fees is provided by the city, the developer has consented to submit the development to the program established to monitor creating and maintaining affordable housing, as hereafter set forth.

h. A development that does not utilize the service for which the impact fee was imposed, provided however, the fee shall be imposed should the development subsequently utilize the service.

(6) *Affordable housing [requirements].* Because all or part of any particular development project may be exempt from impact fees, the following sets forth the procedures for exemption from the fees, when the funding source for the fees is provided by the city:

a. As to rental units, the owner and/or developer shall be required to submit to the department of housing and community development verified income reports of household income of all rental occupants at the inception of each tenancy and on an annual basis thereafter for a period of three (3) years. If during this timeframe the units are rented to households whose income exceeds the definition of affordable housing as provided herein, the then owner of the units, as a condition of continues occupancy, shall be required to reimburse the city for the impact fees paid for those units.

b. As to owner occupied units, each owner, prior to initial occupancy, shall be required to submit to the department of housing and community development a verified income report of household income of all members of the household, and continue to do so on an annual basis thereafter for a period of three (3) years. If during this timeframe a unit is owned or occupied by persons, other than the initial owner(s), whose household income exceeds the definition of affordable housing as provided herein, the then owner of that unit shall be required to reimburse the city for the impact fees paid for the unit.

c. For purposes hereof, household income shall include all sources of financial support, both cash and in kind, of all adult members of the household, to include wages, salaries, tips, commissions, all forms of self-employment income, interest, dividends, net rental income, income from estates or trusts, social security benefits, railroad retirement benefits, Supplemental Security benefits, Aid to Families with Dependant Children or other public assistance or public welfare programs, other sources of income regularly received, including Veterans'(VA) payments, unemployment compensation and alimony, awards, prizes, government or institutional or eleemosynary loans, grants or subsidies and contributions made by the members' families for medical, personal or educational needs.

d. The owner and/or developer shall be required to execute a memorandum of use with the city acknowledging the use of the unit(s) for affordable housing in accordance with the provisions hereof, which memorandum shall be in a form acceptable for recording in the record office of the applicable county and which shall be recorded in the record office of the applicable county.

(7) *Independent calculations.* A developer may submit an independent calculation of the applicable impact fee representing the fair share of system improvements necessi-

tated by his development project pursuant to the provisions of section (viii), or he may enter into an agreement in lieu of the payment of impact fees as provided in section (xiv).

(8) *Provisions for independent calculations of impact fees.*

a. Independent calculations for the determination of impact fees must be performed by qualified professionals based upon sound studies utilizing accepted engineering practices and planning principles.

b. The independent calculation shall be subject to review and approval of the capital projects committee and the mayor. In the case of large projects involving multiple uses and complex calculations the committee may seek the additional assistance of qualified consultants at the expense of the developer.

c. The committee shall either approve or provide in writing the reasons for disapproval of the independent calculation study within sixty (60) days of its submittal for review.

d. Prior to commencing the study, the developer's professional consultant and the appropriate city staff shall agree upon the relevant factors that will be utilized in the independent fee calculation.

(9) *Credits.*

a. Should the city elect to accept a contribution, payment, construction or dedication of land for system improvements, a developer may apply for a credit against the applicable impact fee imposed herein.

b. The determination of the amount of any credit shall be undertaken through the submission of an application for credit agreement, which shall be submitted to the director of planning and neighborhoods.

c. The application for a credit agreement shall include the following information:

1. If the proposed application involves a credit for any contribution, the following documentation must be provided:

(i) A certified copy of the development approval in which the contribution was agreed;

(ii) If payment has been made, proof of payment; or

(iii) If payment has not been made, the proposed method of payment.

2. If the proposed application involves credit for the dedication of land:

(i) A drawing and legal description of the land;

(ii) The appraised fair market value of the land at the date a building permit is proposed to be issued for the development, prepared by a professional real estate appraiser who is a member of the Member Appraisal Institute (MAI) or who is a member of Senior Residential Appraisers (SRA), and if applicable, a certified copy of the development permit in which the land was agreed to be dedicated.

3. If the proposed application for credit agreement involves construction:

(i) The proposed plan of the specific construction prepared and certified by a duly qualified and licensed engineer or contractor;

(ii) The projected costs for the suggested improvement, which shall be based on local information for similar improvements, along with the construction timetable for the completion thereof. Such estimated cost shall include the cost of construction

or reconstruction, the cost of all labor and materials, the cost of all lands, property, rights, easements and franchises acquired, financing charges, interest prior to and during construction and for one (1) year after completion of construction, costs of plans and specifications, surveys of estimates of costs and of revenues, costs of professional services, and all other expenses necessary or incident to determining the feasibility or practicability of such construction or reconstruction.

(iii) Within ten (10) days of receipt of the proposed application for credit agreement, the director of planning and neighborhoods shall determine if the application is complete. If it is determined that the proposed Agreement is not complete, the director shall send a written statement to the applicant outlining the deficiencies. The director shall take no further action on the proposed application for credit agreement until all such deficiencies have been corrected or otherwise settled.

(iv) Once the director determines the proposed application for credit agreement is complete, the capital projects committee and the mayor shall review it within thirty (30) days.

(v) If the application for credit agreement is approved, a credit agreement shall be prepared and signed by the applicant and the city. It shall specifically outline the contribution, payment, construction or land dedication, the time by which it shall be completed, dedicated, or paid, and any extensions thereof, and the dollar credit the applicant shall receive for the contribution, payment or construction.

(vi) Appeal of credit decision. A feepayer aggrieved by the decision of the committee and mayor regarding credits may appeal such decision pursuant to the appeals provisions herein.

(10) *Accounting; expenditures.*

a. Revenues from all impact fees shall be maintained in interest-bearing accounts. Accounting records shall be maintained for each system improvement. Interest earned on impact fees shall be considered funds of the account on which it is earned, and must be subject to all restrictions placed on the use of impact fees pursuant to the provisions of this section.

b. Expenditures of impact fees shall be made only for the system improvements for which the impact fee was imposed as shown by the capital improvements plan set forth in Part 3, Section E-1 of the Charleston Century V City Plan and as authorized in this section. Impact fees may not be used for:

1. A purpose other than system improvement costs to create additional improvements to serve new growth;

2. A category of system improvements other than that for which they were collected; or

3. The benefit of service areas other than the area for which they were imposed.

(11) *Refunds of impact fees.*

a. All impact fees collected shall be refunded to the owner of record of property on which a development impact fee has been paid if:

1. The impact fees have not been expended within three (3) years of the date they were scheduled to be expended on a first-in, first-out basis; or

2. A building permit or permit for installation of a manufactured home is denied.

b. When the right to a refund exists, the city shall send a refund to the owner of record within ninety days after it is determined by the city that a refund is due.

c. The refund shall include the pro-rata portion of interest earned while on deposit in the impact fee account.

d. A person entitled to a refund has standing to sue if there has not been a timely payment of a refund pursuant to subsection (b) of this section.

(12) *Appeals.*

a. A feepayer aggrieved by an administrative decision regarding the payment of impact fees or independent calculations or credits may appeal to the committee of public works and utilities, utilizing such forms as may be provided by the department of planning and neighborhoods. The appeal must be taken within fifteen (15) days of receipt of written notice of the decision. The committee shall conduct a hearing and render a decision, which shall be final. A party aggrieved by the decision of the committee may appeal to the circuit court for the applicable county within thirty (30) days of receipt of written notice of the committee.

b. A feepayer may pay an impact fee under protest. A feepayer making the payment is not estopped from exercising the right of appeal nor is the feepayer estopped from receiving a refund of an amount considered to have been illegally collected. In lieu of making a payment of an impact fee under protest, a feepayer, at his option, may post a bond or submit an irrevocable letter of credit for the amount of impact fees due, pending the outcome of an appeal.

c. The city shall provide for mediation by a qualified independent party, upon voluntary agreement by both the feepayer and the city, to address a disagreement related to the impact fee for proposed develop-

ment. Participation in mediation does not preclude the pursuit of other remedies provided for herein or that are otherwise available by law.

(13) *Collection of impact fees.*

a. Impact fees due according to the provisions contained herein shall be collected at the time a building permit, or development permit if no building permit is required, is sought.

b. Should the feepayer elect to post a financial guarantee as provided in (12)b. above, rather than pay the impact fee at the time of issuance of a building permit, the city may impose the following additional requirements, including, but not limited to:

1. Additions to the fee for reasonable interest and penalties for nonpayment or late payment;

2. Withholding of the certificate of occupancy until the impact fee is paid;

3. Withholding of utility services until the impact fee is paid; and

4. Imposing liens for failure to pay timely a impact fee.

(14) *Agreement.* A feepayer and/or developer may enter into an agreement with the city, including an agreement entered into pursuant to the South Carolina Local Government Development Agreement Act, or other such mutually acceptable agreement, providing for payments instead of impact fees for facilities or services.

(15) *Liberal construction.* The provisions of this impact fee ordinance shall be liberally construed to effectively carry out its stated purposes, which are found and declared to be in the furtherance of the public health, safety, economy, good order, appearance, convenience and general welfare for the harmonious, orderly, and progressive development of land within the city.

(16) *Severability.* If any provision of this section is held invalid, the invalidity shall not affect other provisions or

applications of the ordinance which can be given effect without the invalid provision or application, and to this end the provisions hereof are severable.

(Ord. No. 2003-38, § 1, 4-22-03; Ord. No. 2015-089, §§ 1, 2, 7-21-15)

Sec. 2-272. Debt collection set off program.

(a) *Findings.*

(1) Whereas, the City of Charleston is a claimant agency as defined in the Setoff Debt Collection Act, S.C. Code Ann. § 12-56-10, et seq. (the Act) and is therefore entitled to utilize the procedures set out in the Act to collect delinquent debts owed to the City of Charleston;

(2) And whereas, "delinquent debt" is defined in the Act to include "collection costs, court costs, fines, penalties, and interest which have accrued through contract, subrogation, tort, operation of law, or any other legal theory regardless of whether there is an outstanding judgment for that sum which is legally collectible and for which a collection effort has been or is being made;

(3) And whereas, the City of Charleston has contracted with the Municipal Association of South Carolina to submit claims on its behalf to the SC Department of Revenue pursuant to the Act;

(4) And whereas, the Municipal Association of South Carolina charges a fee for the services it provides pursuant to the Act;

(5) And whereas, the fee charged by the Municipal Association of South Carolina is a cost of collection incurred by the City of Charleston that arises through contract, and is therefore properly considered as a part of the delinquent debt owed to the City of Charleston as that term is defined in the Act;

(6) And whereas, the City of Charleston also incurs internal costs in preparing and transmitting information to the

Municipal Association, which costs are also collection costs that are a part of the delinquent debt owed to the City of Charleston;

(7) And whereas, the City of Charleston desires to recover its internal costs of collection by charging a fee that will be added to the delinquent debt.

(b) *Fees for debt collection set off program.*

(1) The city hereby imposes an administrative fee in the amount of ten dollars ($10.00) to defray its internal costs of collection for any delinquent debts that are sought to be collected pursuant to the provisions of the Setoff Debt Collection Act, S.C. Code Ann. § 12-56-10 et. seq. This fee is hereby declared to be a collection cost that arises by operation of law and shall be added to the delinquent debt and recovered from the debtor.

(2) The city hereby declares that the administrative fee charged by the Municipal Association of South Carolina is also a collection cost to the city, which shall also be added to the delinquent debt and recovered from the debtor.

(Ord. No. 2006-430, § 1, 9-26-06)

Sec. 2-273. Fairness in Lodging Act.

(a) The city hereby adopts and implements the provisions of the South Carolina Fairness in Lodging Act, as found in Article 7 of Title 6 of the South Carolina Code of Laws; and

(b) Further the city sets, pursuant to the Act, a one-time civil penalty in an amount not less than five hundred ($500.00) nor more than two thousand dollars ($2,000.00) for failure to collect and remit local accommodations tax for each seven (7) days a single rental property was rented.

(Ord. No. 2018-122, § 1, 9-18-18)

Sec. 2-274. Waiver of permitting fees.

(a) The city chief financial officer, or his or her designee, may authorize and issue a waiver letter for certain application, plan review, and permitting fees associated with city-owned projects

or priority status affordable housing projects, as those terms are defined pursuant to this section, when the chief financial officer or his or her designee determines, in his or her sole discretion, that such waiver will improve the city's efficiency and effectiveness, is deemed to be fiscally responsible, and is in the best interest of the city and its citizens.

(b) For purposes of this section, "city-owned project" means a project that is funded wholly or substantially by city funds, including city-administered grant funds, where the city contracts directly with the contractor and/or subcontractor for the work or utilizes city employees to do the work.

(c) For purposes of this section, "priority status affordable housing projects" means projects, including new construction or rehabilitation, that meet the definition of affordable housing as that term is defined in chapter 54 of the Code of the City of Charleston (zoning ordinance), that are certified as such by the city's department of housing and community development, and that meet one (1) of the below criteria:

(1) The project designates fifty (50) percent or more units "affordable housing";

(2) The project receives funding from a public agency for affordable housing production;

(3) The city contracts directly with the contractor and/or subcontractor for project work; or

(4) The city utilizes city employees to do project work.

The priority status affordable housing designation can only be certified by the department of housing and community development. The certification process may require that the recipient of the priority status affordable housing designation enter an agreement with the City of Charleston if no public funding is being provided for the project.

(d) For purposes of this section, the term "contractor" shall include contractors, consultants, engineers, and architects who contract directly with the city on a city-owned project.

"Subcontractors" shall include subcontractors, subconsultants, or other entities contracting directly with the city or the city's contractor for a portion of the work on a city-owned project.

(e) Permitting fees for city-owned projects that may be waived in accordance with this section include, but are not limited to:

(1) Fees for approvals related to the department of planning and preservation, including, but not limited to, application and review fees for staff review and review by the board of zoning appeals, planning commission, technical review committee, board of architectural review, design review board, and/or plat review committee.

(2) Fees for building permits issued by the building inspections division of the department of public service, including, but not limited to, initial application, initial plan review, and permit fees for new construction, alterations and repairs, and/or demolition projects.

(3) Fees for trade permits and sub permits issued by the building inspections division of the department of public service, including, but not limited to, application and permit fees for electrical, plumbing, fuel gas, and/or mechanical permits.

(4) Fees for permits issued by the fire marshal division of the fire department, including, but not limited to, initial application, initial plan review, and initial inspection fees for fire permits.

(5) Fees for permits issued by the engineering division of the department of public service, including, but not limited to, application and permit fees associated with roadway inspections, encroachment permits, and utility permits.

(6) Fees for permits issued by the department of traffic and transportation, including, but not limited to, application and permit fees associated with construction parking, meter bags, traffic management, street/sidewalk blocking, and dumpsters.

(7) Other miscellaneous administrative and/or permitting fees may be waived as deemed necessary by the chief financial officer.

(f) Permitting fees for priority status affordable housing projects that may be waived in accordance with this section may include, but are not limited to:

(1) Fees for approvals related to the department of planning and preservation, including, but not limited to, application and review fees for staff review and review by the board of zoning appeals, planning commission, technical review committee, board of architectural review, design review board, and/or plat review committee.

(2) Fees for building permits issued by the building inspections division of the department of public service, including, but not limited to, initial application, initial plan review, and permit fees for new construction, alterations and repairs, and/or demolition projects.

(3) Other miscellaneous administrative and/or permitting fees may be waived as deemed necessary by the chief financial officer.

(g) The following fees shall not be waived, and shall be the sole responsibility of the applicant and/or permit holder:

(1) Fees for permits or approvals related to the department of storm water management, including, but not limited to, application, plan review, and inspection fees for construction activities.

(2) Fees associated with additional plan reviews required as a result of incomplete submittals, failure to correct items previously noted during the initial plan review, plan revisions, or similar circumstances caused by the applicant and/or permit holder.

(3) Fees associated with re-inspections required as a result of inspection requests made prematurely, failure to correct previously cited violations, failure to meet

applicable requirements after the initial inspection, or similar circumstances caused by the applicant and/or permit holder.

(4) Fines, fees, or citations that are issued for violation of any city ordinance.

(5) Fines, fees, or penalties that are assessed for commencing work without appropriate permits or approvals.

(h) City-owned projects and priority status affordable housing projects shall be subject to all applicable review, approval and permitting requirements referenced in the City Code and nothing herein shall be construed to waive, relieve, or otherwise exempt any contractor, subcontractor and/or city employee from applying for and obtaining such approvals and permits.
(Ord. No. 2019-064, § 1, 7-16-19; Ord. No. 2024-007, § 1, 1-10-24; Ord. No. 2025-024, § 1, 2-25-25)

Secs. 2-275—2-280. Reserved.

ARTICLE IX. DEPARTMENT OF HOUSING AND COMMUNITY DEVELOPMENT*

Sec. 2-281. Establishment.

There is hereby established a department of housing and community development.
(Ord. No. 1996-189, § 1, 10-15-96)

Sec. 2-282. Duties and responsibilities.

The department shall be charged with the duties of creating, facilitating and implementing programs that stimulate community development, neighborhood revitalization and the expansion of jobs and economic opportunities in accordance with local, state and federal legislation. The department shall also administer

*__Editor's note—__Ord. No. 1996-189, § 1, adopted Oct. 15, 1996, amended the Code by adding §§ 2-271—2-279. In order to reserve sections for future use, these provisions have been included herein as §§ 2-281—2-289 at the discretion of the editor.

housing rehabilitation programs, housing development programs and enterprise community activities as established by city council.
(Ord. No. 1996-189, § 1, 10-15-96)

Sec. 2-283. Administration.

The management, direction and control of the department of housing and community development shall be under the supervision of the director of housing and community development, who shall be appointed by the mayor with the approval of council.
(Ord. No. 1996-189, § 1, 10-15-96)

Sec. 2-284. Appointment of personnel.

The director of housing and community development shall have the power to hire, with the approval of the mayor, such personnel in such positions as are provided for in the budget of the department of housing and community development as approved by city council.
(Ord. No. 1996-189, § 1, 10-15-96)

Sec. 2-285. Redevelopment and preservation commission established.

There is hereby established a commission of redevelopment and preservation.
(Ord. No. 1996-189, § 1, 10-15-96)

Sec. 2-286. Membership; terms.

The redevelopment and preservation commission shall be comprised of thirteen (13) members consisting of the mayor and twelve (12) members appointed by the mayor, subject to the approval of city council, two (2) of whom shall be members of the community development committee of city council. Members shall be appointed annually at the first meeting of council in January from year to year.
(Ord. No. 1996-189, § 1, 10-15-96; Ord. No. 2020-037, § 1, 3-10-20)

Sec. 2-287. Purpose.

The purpose of the redevelopment and preservation commission shall be to assist the department of housing and community development in creation and implementation of programs and policies to administer housing rehabilitation and housing development programs and stimulate community development and neighborhood revitalization programs in accordance with local, state and federal legislation.
(Ord. No. 1996-189, § 1, 10-15-96)

Sec. 2-288. Duties.

The redevelopment and preservation commission shall establish goals, policies, and procedures for revitalizing neighborhoods and promoting community development and implementing public related redevelopment and preservation projects on behalf of the city's housing rehabilitation loan and Charleston housing trust programs and all such related programs as are assigned to the commission by the mayor or city council. The commission shall study new legislation, both local and statewide, to promote the housing and community development goals of the city and shall propose new legislation to the mayor and city council for its consideration if the commission deems it desirable. The commission shall cooperate in the exercise of its duties with other governmental and private bodies.
(Ord. No. 1996-189, § 1, 10-15-96)

Sec. 2-289. Administrative support.

The administrative support for the redevelopment and preservation commission, in establishing its goals, policies and procedures and in exercising its duties, will be the responsibility of the department of housing and community development.
(Ord. No. 1996-189, § 1, 10-15-96)

Sec. 2-290. Homeownership initiative commission established.

There is hereby established a homeownership initiative commission.
(Ord. No. 2002-47, § 1, 3-26-02)

Sec. 2-291. Membership terms.

The commission shall be comprised of nine (9) members who are citizens of the City of Charleston who do not hold any other public office or position in the city and are appointed by the mayor, subject to the approval of city council. Of the members appointed, one (1) shall be in real estate, one (1) an attorney, two (2) in banking, one (1) an appraiser, one (1) a contractor and three (3) peninsular residents. The original terms of all members shall expire at the first meeting of city council in January, 2004, and thenceforth members shall be appointed at the first annual meeting of council from year to year.

For purposes of commission action, a quorum of the homeownership initiative commission shall consist of five (5) members of the commission in attendance.
(Ord. No. 2002-47, § 1, 3-26-02)

Sec. 2-292. Duties.

(a) The commission shall be charged with the duties of advising the mayor, city council, and the department of housing and community development as to appropriate policies and procedures in implementing the City of Charleston's Homeownership Initiative Program (the "Initiative").

(b) The commission shall also serve as the Initiative's loan review committee in advising the department of housing and community development as to the approval or disapproval of requests for construction or renovation financing for units to be developed and requests for permanent subsidy funding for units sold to eligible buyers under the initiative.

(c) The commission shall also serve as the decision-making body in the consideration of requests from buyers of Initiative-assisted units regarding subordination and/or assumptions of loans or any other requests concerning modifications to or deviations or variances from Initiative policy, covenants or other legal requirements associated therewith.

(d) The commission shall be charged with the duty of advising the mayor, city council and the department of housing and community development as to the appropriate policies and

procedures in implementing the City of Charleston's employer assisted housing program and shall also serve as the decision-making body in consideration of requests from employees who have applied to participate in the employer assisted housing program in compliance with the written policies and procedures as approved by the mayor.
(Ord. No. 2002-47, § 1, 3-26-02; Ord. No. 2003-04, § 1, 1-14-03)

Secs. 2-293—2-299. Reserved.

ARTICLE X. DEPARTMENT OF INFORMATION TECHNOLOGY*

DIVISION 1. GENERALLY

Sec. 2-300. Establishment.

There is hereby established a department to be known as the Department of Information Technology.
(Ord. No. 2006-597, § 1, 12-19-06)

Sec. 2-301. Duties and responsibilities of department.

The department shall be responsible for the development and support of the city's strategic information planning, policies and procedures; establishment and maintenance of the city WEB sites; providing training, product demonstrations and research and development activities to city employees and officials; providing technical assistance for all information systems within the city; the design, development, implementation and administra-

*__Editor's note—__Ord. No. 2006-597, §§ 1, 2, adopted Dec. 19, 2006, and Ord. No. 2006-610, § 1(a), adopted Dec. 19, 2006, repealed former Div. 1 of Art. X, §§ 2-300—2-312, and enacted a new Art. X as herein set out. As former Div. 2, of former Art. X relates to different subject matter, the editor has redesignated this former division as Art. X.I. Repealed former Div. 1 pertained to the department of Economic Development and derived from Ord. No. 1996-190, § 1, adopted Oct. 15, 1996.

tion of the city's data and voice network infrastructure; and development, maintenance and implementation of the city's geographic information system (GIS).
(Ord. No. 2006-597, § 1, 12-19-06; Ord. No. 2014-101, § 2, 7-15-14)

Sec. 2-302. Administration; duties of director.

(a) The administration, direction and control of the department shall be under the supervision of the chief information officer (CIO), who shall be appointed by the mayor with the approval of city council.

(b) The CIO shall serve as the chief information advisor of the City and shall be responsible for the management and administration of the city's information services and telecommunication services. The CIO provides coordination and general oversight of information technology policies, programs and resources for the city and performs such other duties and responsibilities as may be delegated to him or her from time to time by the mayor or city council.
(Ord. No. 2006-597, § 1, 12-19-06)

Sec. 2-303. Divisions.

The department of information technology shall be comprised of the information services division and the telecommunications services division.
(Ord. No. 2006-597, § 1, 12-19-06)

DIVISION 2. INFORMATION SERVICES DIVISION

Sec. 2-304. Division responsibilities.

The information services division is responsible for providing and maintaining technical assistance for all information systems within the city; providing services to city employees and officials that include hardware selection, software selection and development; and providing network communications maintenance and

training. The information services division shall be managed by an information services director, who shall be appointed by the CIO, with the approval of the mayor.
(Ord. No. 2006-597, § 1, 12-19-06)

DIVISION 3. TELECOMMUNICATIONS SERVICES DIVISION

Sec. 2-305. Division responsibilities.

The telecommunications services division is responsible for managing the city's communications operations, which include its telephones, cellular phones, pagers and data lines, and installs, repairs and maintains all telephone services used by the city. The telecommunications services division shall be managed by a telecommunications services director, who shall be appointed by the CIO, with the approval of the mayor.
(Ord. No. 2006-597, § 1, 12-19-06)

Secs. 2-306—2-320. Reserved.

ARTICLE X.I. ADMISSIONS TAX DISTRICTS*

Sec. 2-321. Calhoun-King designated development area.

There is hereby established the Calhoun-King Designated Development Area, which shall include the area bounded to the north by the right-of-way of U.S. Highway 17, to the east by the rear lot lines of all properties abutting the eastern side of Meeting Street between U.S. Highway 17 and the southern boundary of Calhoun Street, to the south on Calhoun Street, and to the west on the rear lot lines of all properties abutting the western side of King Street between the southern boundary of Calhoun Street and U.S. Highway 17.
(Ord. No. 1995-374, § 1, 8-15-95)

*__Note—__See editor's note to Art. X.

Sec. 2-322. Ashley River designated development area.

There is hereby established the Ashley River Designated Development Area, which shall include an area bounded to the North on Grove Street and an extension thereof to Interstate Highway I-26, thence along I-26 to the intersection of Huger Street, thence along Huger Street to King Street, thence along King Street to Moultrie Street, thence along Moultrie Street to President Street, thence along President Street to Spring Street, thence along Spring Street to Lockwood Drive, thence along Lockwood Drive to the foot of Broad Street, thence in a westerly direction across the Ashley River to a point on Albemarle Point, thence to a point on the Highway 61 Connector, thence along the Connector to S.C. Highway 17, thence along Highway 17 to the eastern bank of the Ashley River, thence along such bank to the point of beginning, included in the district as outlined on the map attached hereto and made a part of this section.
(Ord. No. 1997-117, § 1, 3-31-97)

Editor's note—The map of the Ashley River designated development area has not been set out herein but is available at the office of the clerk of council.

Sec. 2-323. Cooper River designated development area.

There is hereby established the Cooper River Designated Development District to include an area of the Dockside condominium property, consisting of the easternmost ten (10`) feet of high ground and all submerged areas between Dockside and the Pierhead Line, as well as all properties of the City of Charleston bounded by Dockside to the north, the Pierhead Line to the east, the property of Whitestack Towing Company to the south and Concord Street to the west, as shown on a map, attached hereto, and made a part of this section.
(Ord. No. 1997-219, § 1, 6-17-97)

Editor's note—The map of the Cooper River Designated Development District has not been set out herein but is available in the office of the clerk of council.

ARTICLE XI. DEPARTMENT OF BUDGET, FINANCE AND REVENUE COLLECTIONS

DIVISION 1. GENERALLY

Sec. 2-324. Establishment.

There is hereby established a department to be known as the Department of Budget, Finance and Revenue Collections.
(Ord. No. 1998-162, § 1, 9-8-98)

Sec. 2-325. Duties and responsibilities of the department.

The department shall have the general responsibility for the administration, supervision and management of the city's financial affairs including: budget preparation and administration; management improvement initiatives; enterprise contract administration and oversight; capital improvement plan development and oversight; accounting; cash flow and investment strategy; payroll preparation and reporting, revenue forecasting, collections and reporting; risk management; debt management; fixed asset management; the city municipal court administration with the exception of those powers and duties set forth in Chapter 20 herein, all city procurement; management of all city-owned and city-leased property; on and off-street parking program and facilities; special facilities management to include the Gaillard Auditorium, the Dock Street Theatre, the Visitors' Reception and Transportation Center and the Charleston Maritime Center; and safety management for city employees, including the administration of the city's workers' compensation program, the establishment and compliance of written safety procedures, conducting and coordinating safety training; regulatory compliance for safety management; and minority business enterprise.
(Ord. No. 1998-162, § 1, 9-8-98; Ord. No. 2000-19, § 1, 2-8-00; Ord. No. 2003-22, § 3, 2-11-03; Ord. No. 2006-596, § 1(a), 12-19-06; Ord. No. 2014-10, § 3, 1-30-14)

Sec. 2-326. Administration; duties of director; bonds; vouchers.

(a) The administration, direction and control of the department shall be under the supervision of the chief financial officer who shall be appointed by the mayor with the approval of council. In the absence of the chief financial officer ("CFO"), assistant CFOs assume the direction and control of the department. Two (2) assistant CFOs shall be appointed by the CFO with the approval of the mayor.

(b) The chief financial officer (CFO) serves as chief financial advisor of the city, and shall be responsible for the management and administration of all city finances, attend to the proper compilation and disbursement of the city payroll, be the custodian of all contracts, insurance policies, cancelled bonds or cancelled coupons, or other appropriate evidence thereof, formulate and oversee implementation of all policies and practices related to budget, finance and revenue decisions affecting the city, shall prepare and submit to the city council an annual budget of all city operations, and attend to such other duties and responsibilities as may be delegated from time to time by the mayor and city council.

(c) The chief financial officer shall be required to give the city council a bond of not less than five hundred thousand ($500,000.00) dollars and shall also require a bond in a like amount of the two (2) assistant CFOs, the finance director and the assistant finance director. The CFO shall further see that all other employees of the department of BFRC who handle cash receipts are bonded in an amount not less than twenty-five thousand ($25,000.00) dollars.

(d) The chief financial officer shall sign all orders, vouchers, accounts and authorizations for payments thereof and is vested with the authority to delegate to the two (2) assistant CFOs or director of finance the authority to sign such orders, vouchers, accounts or authorization for the payment thereof as he or she deems appropriate. In the absence of the CFO or his or her designee, the mayor, or in his/her absence, the chairman of the ways and means committee or in his/her absence any member of the ways and means committee in the order of his/her rank of

appointment, according as his/her immediate superior may be absent, is hereby authorized to sign in the place and stead of the CFO or his/her designee.
(Ord. No. 1998-162, § 1, 9-8-98; Ord. No. 2003-22, §§ 4, 5, 2-11-03; Ord. No. 2014-10, § 4, 1-30-14)

Sec. 2-327. Divisions.

The department of budget, finance and revenue collections shall be comprised of the budget and management division, the finance division, the revenue collections division, the procurement division, the special facilities division, and the safety management division.
(Ord. No. 1998-162, § 1, 9-8-98; Ord. No. 2000-19, § 2, 2-8-00; Ord. No. 2003-22, § 6, 2-11-03; Ord. No. 2006-596, § 1(b), 12-19-06; Ord. No. 2014-10, § 5, 1-30-14; Ord. No. 2025-020, § 1, 2-25-25)

DIVISION 2. BUDGET AND MANAGEMENT DIVISION

Sec. 2-328. Division responsibilities.

This division is responsible for the preparation of the annual budget and for providing assistance to city departments in departmental budget preparation, process analyses, and cost-benefit analyses. This division shall also be responsible for enterprise contract management within the city. The budget and management division shall be managed by the budget director, who shall be appointed by the CFO, with approval of the mayor.
(Ord. No. 1998-162, § 1, 9-8-98; Ord. No. 2003-22, § 7, 2-11-03)

Sec. 2-329. Duties of the director.

The budget director shall be responsible for directing the compilation of the city's annual general fund budget, shall assist departments in budget formulation, track revenues and expenditures, assist in development of trend analyses for recurring expenses and for all revenue sources, administer enterprise activity contracts, and evaluate organization structures and

operations for sound management practices that improve efficiency and effectiveness, and shall perform any other duties and responsibilities delegated by the CFO.
(Ord. No. 1998-162, § 1, 9-8-98; Ord. No. 2003-22, § 8, 2-11-03)

DIVISION 3. FINANCE DIVISION

Sec. 2-330. Division responsibilities.

This division is responsible for the accounting and reporting of all city revenue collections and expenditure disbursements. The division is also responsible for cash management, fixed asset accounting, and preparation of the annual external audit report. The finance division shall be managed by a finance director, who shall be appointed by the CFO, with the approval of the mayor.
(Ord. No. 1998-162, § 1, 9-8-98; Ord. No. 2003-22, § 9, 2-11-03)

Sec. 2-331. Duties and responsibilities of director.

The finance director shall be responsible for the prompt and accurate collection of all monies owed the city and the proper disbursement of the same pursuant to the direction of the CFO, depositing the monies of the city in appropriate accounts, establishing and maintaining records of all monies collected and disbursed including any uncollected taxes or special assessments made by or to the city, in accordance with generally accepted accounting, attending to and assuring that all properties within the city are properly listed and assessed and that all taxes owing to the city thereon are collected, acting as the custodian of investment securities of the city and submitting to the CFO, the mayor and city council from time to time and as requested but at least annually, an accounting of city monies received, collected and disbursed. The finance director shall be entitled to make all refunds of monies received but not due to the city up to five thousand ($5,000.00) without the approval of the city council.
(Ord. No. 1998-162, § 10, 9-8-98; Ord. No. 2014-10, § 6, 1-30-14)

Sec. 2-332. Annual audit.

The books and accounts of the finance division shall be audited at the close of each fiscal year by an independent certified public accountant approved by the audit committee of the city council for that purpose.
(Ord. No. 1998-162, § 1, 9-8-98; Ord. No. 2024-050, § 1, 3-26-24)

DIVISION 4. REVENUE COLLECTIONS DIVISION

Sec. 2-333. Division responsibilities.

The revenue collections division shall be responsible for the revenue collection pursuant to the direction of the chief financial officer, including depositing the monies of the city in the appropriate accounts. This division shall include such activities as the collection of business license fees, hospitality tax fees, parking and parking ticket fees and other fees, permitting fees or special fees as directed by the ordinance. The division shall also have responsibility for the enforcement of the city's business license ordinance or other ordinances related to the collection of city revenues. The revenue collection division shall be managed by the revenue collections director, who shall be appointed by the CFO with approval of the mayor.
(Ord. No. 1998-162, § 1, 9-8-98; Ord. No. 2003-22, § 11, 2-11-03; Ord. No. 2014-10, § 7, 1-30-14)

Sec. 2-334. Duties of the director.

The revenue collections director shall be responsible for directing the collection of all city revenues as assigned by the chief financial officer, the business license committee, or the ways and means committee in an efficient, effective and customer focused manner, shall recommend potential revenue sources, shall implement procedures to comply with the city's business license ordinance and other revenue collection ordinances, shall develop operating procedures to ensure adequate cash management controls and shall perform any other responsibilities delegated by the CFO.
(Ord. No. 1998-162, § 1, 9-8-98; Ord. No. 2003-22, § 12, 2-11-03)

DIVISION 5. PROCUREMENT DIVISION

Sec. 2-335. Director.

The procurement division of the department of budget, finance and revenue collection shall be managed by the director of procurement who shall be appointed by the CFO, with the approval of the mayor.
(Ord. No. 2000-19, § 3, 2-8-00; Ord. No. 2003-22, § 13, 2-11-03)

Sec. 2-336. Duties, responsibilities of director.

The director of procurement shall be responsible for making all city purchases of commodities, supplies and technical services to be utilized by the departments under the jurisdiction of the city council, implementing a standard procedure to be utilized by city departments and agencies in ordering supplies of commodities, properly storing, maintaining and otherwise protecting such supplies or commodities and maintaining an accurate accounting of orders from departments and agencies which shall be turned over to the director of budget, finance and revenue collection to be credited to the proper accounts.
(Ord. No. 2000-19, § 3, 2-8-00)

Sec. 2-337. Guidelines for acquisition and storage of goods and supplies.

The director of procurement shall prescribe guidelines for use by the departments of the city in the ordering, storage, maintenance and inventory control of city goods and supplies.
(Ord. No. 2000-19, § 3, 2-8-00)

Sec. 2-338. Purchases to be let in fair and impartial manner, protection of city interests.

The director of procurement shall see that all city purchases are let in a fair and impartial manner and in accordance with such procurement policies as may, from time to time, be adopted by the city council, and shall work with the appropriate city departments to assure that the interests of the city are duly protected.
(Ord. No. 2000-19, § 3, 2-8-00)

Sec. 2-339. Approval of purchases over $40,000.00 required.

Any purchase, as provided for in section 2-336, except purchases budgeted by the council and not exceeding forty thousand dollars ($40,000.00) shall be submitted to the committee on ways and means for approval of such committee before such purchase shall be made.
(Ord. No. 2000-19, § 3, 2-8-00; Ord. No. 2003-22, § 14, 2-11-03; Ord. No. 2010-269, § 2, 12-21-10; Ord. No. 2014-10, § 8, 1-30-14)

DIVISION 6. SPECIAL FACILITIES

Sec. 2-340. Director.

The special facilities division of the department of budget, finance and revenue collections shall be managed by the director of special facilities who shall be appointed by the CFO with the approval of the mayor. The director shall have responsibility for all special facilities of the City of Charleston.
(Ord. No. 2000-19, § 4, 2-8-00; Ord. No. 2003-22, § 16, 2-11-03; Ord. No. 2014-10, § 9, 1-30-14)

Sec. 2-341. Bond required.

The manager of the municipal auditorium box office shall give bond in a sum determined by the director of budget, finance and revenue collection and subject to the approval of the mayor.
(Ord. No. 2000-19, § 4, 2-8-00)

DIVISION 7. SAFETY MANAGEMENT DIVISION*

Sec. 2-342. Safety management division responsibilities.

The division shall be responsible for establishing and ensuring regulatory compliance with written safety procedures, conducting and coordinating safety training, and administering the

*__Editor's note—__Ord. No. 2006-596, § 1(c), adopted Dec. 19, 2006, repealed former Div. 7, §§ 2-342, 2-343, which pertained to the human resources division and derived from Ord. No. 2003-22, §§ 19, 20, adopted Feb. 11, 2003. Section 1(e), (f) created a new Div. 7 as herein set out.

city's workers' program as may be established or amended by city council from time to time, and such other duties as may be assigned to it by the CFO, mayor or city council.
(Ord. No. 2006-596, §§ 1(e), (f), 12-19-06)

Sec. 2-343. Reserved.

DIVISION 8. SMALL BUSINESS ENTERPRISE*

Sec. 2-344. Establishment of the office of small business development.

(a) *Establishment.* There is hereby established the office of small business development (also referred to as "SBD") that shall be a division of the division of economic development and neighborhood services. The small business development program is intended to be a race and gender-neutral program.

(b) *Duties and responsibilities of director.* The SBD director shall be responsible for administering the minority business development plan as adopted by city council, from time to time, to increase participation of disadvantaged and women business enterprises. The director shall also establish programs, subject to the approval of the mayor, to assist potential entrepreneurs and existing small business owners through the following:

(1) Assisting potential entrepreneurs to identify and evaluate resources related to the startup of his or her small business;

(2) Aiding existing small business owners in the capacity of business growth and expansion;

(3) Providing access to potential economic and financial opportunities through the use of business databases;

***Editor's note—**Ord. No. 2014-10, §§ 1, 2, adopted Jan. 30, 2014, retitled Div. 8, formerly reserved, as herein set out. The editor has renumbered the provisions of former 2-267, pertaining to the office of minority business development, as § 2-344.

Subsequently, Ord. No. 2025-189, § 2, adopted Dec. 16, 2025, changed the title of Div. 8 from Minority Business Enterprise to read as herein set out. Said ordinance also changed the title of § 2-344 from Establishment of the Office of Minority Business Development to read as herein set out.

(4) Providing guidance and counsel to assist businesses become more efficient by improving management skills and operational effectiveness;

(5) Conducting and co-sponsoring workshops on topics related to starting and operating a small business in South Carolina;

(6) Administer a small business certification program per section 2-346.

(c) *Duties of the office.*

(1) Financial assistance. The office shall provide financial planning and technical assistance to businesses by evaluating and analyzing financial records. The office shall also assist in the preparation of business loan proposals.

(2) *Loan programs.* The director is hereby authorized, subject to review and approval of the mayor, to create, administer, and manage loan programs. All loan programs shall have strict guidelines, lending limits, and require a governing board review for approval. The governing board shall be appointed by the mayor and shall consist of seven (7) members as follows: one (1) member from the enterprise community board, the enterprise community coordinator of the department of housing and community development, one (1) accountant, one (1) member from the business community, and three (3) members who possess lending experience.

(Ord. No. 1999-07, § 1, 1-26-99; Ord. No. 2014-10, §§ 1, 2, 1-30-14; Ord. No. 2025-021, § 1, 2-25-25; Ord. No. 2025-189, § 2, 12-16-25)

Sec. 2-345. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Commercially useful function shall mean a function performed by a business enterprise when it is responsible for supplying

goods or for execution of a distinct element of the work of a contract and carrying out its responsibilities by actually performing, managing, and supervising the work involved. To determine whether an SBE is performing a commercially useful function, the amount of work subcontracted, industry practices, and other relevant factors shall be evaluated.

Conduit shall mean a small business enterprise (SBE) that knowingly agrees to pass the scope of work, for which it is listed for participation and is scheduled to perform or supply on the contract, to a non-SBE firm.

Eligible owner shall mean an individual that must be involved in the daily management and operations of the business concerned and is:

(1) An individual who owns at least fifty-one (51) percent of the equity of a business enterprise, or

(2) An individual who owns at least fifty-one (51) percent of all classes of voting stock of a corporation, or

(3) An individual who owns at least fifty-one (51) percent of a partnership interest.

Good faith effort is action taken by a vendor to meet the contract requirements set forth in the good faith effort policy.

Small business enterprise (SBE) shall mean a business enterprise that is verified by the SBD, or his or her designee, as meeting all of the requirements for certification under the SBE program. These requirements shall include, but are not limited to, the financial ability, skill levels, experience levels, and access to necessary staff, facilities, and equipment needed to complete or fulfill a particular contract, subcontract, or procurement.

SBE certification shall mean completion, by a business enterprise, of the application process and subsequent approval by the SBD for participation of the business enterprise in the SBE program. Additionally, certification through the South Carolina Department of Transportation will be accepted by the SBE program.
(Ord. No. 2025-189, § 2, 12-16-25)

Sec. 2-346. Program eligibility and certification.

The SBD shall determine the certification of applicant business enterprises as SBEs in order to implement the purposes of this program based on the following requirements:

(1) Gross sales receipts do not exceed seven million five hundred thousand dollars ($7,500,000.00) annually as averaged over the preceding three-year period.

(2) The eligible owner is actively involved in the day-to-day management and control of the business enterprise and the delivery of its products and services,

(3) The enterprise has been actively in operation, providing goods and/or services, for at least the preceding twelve-month period.

(4) The enterprise has a current business license and is current on all county taxes and fees.

(Ord. No. 2025-189, § 2, 12-16-25)

Sec. 2-347. Business graduation from SBE program.

Certification of a business enterprise as an SBE will be re-evaluated every two (2) years through the application renewal process. An SBE that desires to maintain its certification will be required to renew their application every two (2) years. An SBE who does not renew their application will be ineligible to participate in the SBE program until renewal is complete. Once the gross annual receipts of a business enterprise exceed seven million five hundred thousand dollars ($7,500,000.00), as averaged over the previous three-year period, then that business enterprise will no longer be eligible to participate in the City of Charleston SBE program. An SBE shall supply two (2) years' annual business income tax returns or other information required by the city to verify gross annual receipts. This information will be kept strictly confidential.

(Ord. No. 2025-189, § 2, 12-16-25)

Sec. 2-348. Good faith effort policy.

In all contract procurements for services and construction, the good faith effort policy will be required of all prime

contractors submitting a bid. The good faith effort policy requires prime contractors to make a documented effort to provide contract opportunities to small business enterprises. The prime contractor is required to make documented contacts to certified firms for contracting opportunities as set forth in solicitations. Noncompliance with the policy, or failure to document compliance with the policy, will result in a bid or proposal being deemed nonresponsive.
(Ord. No. 2025-189, § 2, 12-16-25)

Sec. 2-349. Forming of conduit arrangement with a small business enterprise for the purpose of securing contracts and procurements.

Where an SBE serves as a conduit, the SBE has not performed a commercially useful function. This arrangement does not meet the commercially useful function requirement, and therefore the SBE's participation does not count toward the SBE goal. Commercially useful function is measured for purposes of determining securing contracts and procurements, not for determination of certification eligibility.
(Ord. No. 2025-189, § 2, 12-16-25)

DIVISION 9. RESERVED*

Secs. 2-350—2-360. Reserved.

DIVISION 10. MUNICIPAL AD VALOREM TAX ABATEMENT†

Sec. 2-361. General provisions.

(a) An exemption granted under this division shall not result in any refund of taxes.

***Editor's note—**Ord. No. 2010-38, § 1, adopted March 9, 2010, repealed former Div. 9, §§ 2-346 and 2-347, which pertained to municipal court operations and derived from Ord. No. 2003-22, §§ 24 and 25, adopted Feb. 11, 2003.

†**Editor's note—**Ord. No. 1999-88, § 1, adopted July 20, 1999, set out provisions intended for use as Div. 5, §§ 2-335—2-337. Inasmuch as there were already provisions so designated, said ordinance has been codified herein as Div. 10, §§ 2-361—2-363, at the discretion of the editor.

(b) An exemption granted under this division shall begin with the tax year in which the facility is placed on the assessment rolls and run for that tax year plus four (4) additional tax years.

(c) Any company availing itself of the exemption granted under this division shall submit a letter confirming its compliance with this division to the department of budget, finance and revenue collections by July 31 in each of the five (5) years in which the exemption applies. Failure to comply with this provision shall invalidate any tax abatement for the given year in which the abatement is sought.
(Ord. No. 1999-88, § 1, 7-20-99)

Sec. 2-362. Manufacturing and research and development incentives.

(a) There is hereby established an exemption from municipal ad valorem taxation for a period of five (5) years for all new manufacturing establishments and the facilities of all new enterprises engaged in research and development activities located in the City of Charleston and for all additions, including additional machinery and equipment, to existing manufacturing establishments located in the city costing fifty thousand ($50,000.00) dollars or more.

(b) An exemption shall only be available pursuant to this section for location of or additions to manufacturing establishments and enterprises engaged in research and development activities where ten (10) or more new jobs that are full-time are created in the city offering its employees a comprehensive health benefit package and pays an average wage rate of ten dollars and fifty-four cents ($10.54) per hour.

(c) For purposes of this section:

(1) *New job* means any job created by an employer in the City of Charleston at the time a new facility or an expansion is initially staffed, but does not include a job created when an employee is shifted from an existing location in Charleston, Berkeley or Dorchester counties to work in a new or expanded facility;

(2) *Full-time* means a job requiring a minimum of thirty-five (35) hours of an employee's time a week for the entire normal year of company operations or a job requiring a minimum of thirty-five (35) hours of an employee's time for a week for a year in which the employee was initially hired for or transferred to the Charleston facility and worked at a rented facility pending construction of a new or expanded Charleston facility;

(Ord. No. 1999-88, § 1, 7-20-99)

Sec. 2-363. Corporate headquarters and distribution facilities incentives.

(a) For the purposes of this section, the term:

(1) *New job* means any job created by an employer in the City of Charleston at the time a new facility or an expansion is initially staffed, but does not include a job created when an employee is shifted from an existing location in Charleston, Berkeley, or Dorchester counties to work in a new or expanded facility;

(2) *Full-time* means a job requiring a minimum of thirty-five (35) hours of an employee's time a week for the entire normal year of company operations or a job requiring a minimum of thirty-five (35) hours of an employee's time for a week for a year in which the employee was initially hired for or transferred to the Charleston facility and worked at a rented facility pending construction of a new or expanded Charleston facility;

(3) *Corporate headquarters* means the location where corporate staff members or employees are domiciled and employed, and where the majority of the company's financial, personnel, legal, planning, or other business functions are handled either on a regional or national basis and must be the sole such corporate headquarters within the region or nation.

(4) *Staff employee* or *staff member* means executive, administrative or professional worker. At least eighty

(80) percent of an executive employee's business function must involve the management of the enterprise and directing the work of at least two (2) employees. An executive employee has the authority to hire and fire or has the authority to make recommendations related to hiring, firing, advancement and promotion decisions, and an executive employee must customarily exercise discretionary powers. An administrative employee is an employee who is not involved in manual work and whose work is directly related to management policies or general business operations. An administrative employee must customarily exercise discretion and independent judgment. A professional employee is an employee whose primary duty is work requiring knowledge of an advanced type in a field of science or learning. This knowledge is characterized by a prolonged course of specialized study. The work must be original and creative in nature, and the work cannot be standardized over a specific period of time. The work must require consistent exercise of discretion:

(5) *Region* or *regional* means a geographic area comprised of either:

a. At least five (5) states, including South Carolina; or

b. Two (2) or more states, including South Carolina, if the entire business operations of the corporation are performed within fewer than five (5) states;

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(6) *Corporate office facility* means the location where corporate managerial, professional, technical, and administrative personnel are domiciled and employed, and where corporate financial, personnel, legal, technical, support services, and other business functions are handled. Support services include, but are not limited to, claims processing, data entry, word processing, sales order processing, and telemarketing;

(7) *Distribution facility* means an establishment where shipments of tangible personal property are processed for delivery to customers, but the term ("distribution facility") does not include an establishment which operates as a location where retail sales of tangible personal property are made to customers. A distribution facility includes establishments which process customer sales orders by mail, telephone, or electronic means, if the establishment also processes shipments of tangible personal property to customers. The terms "retail sale" and "tangible personal property", for purposes of this definition, have those meaning as contained in Chapter 35 of Title 23 of the South Carolina Code 1976, as amended. Certification of the required investment and the number of new jobs which are full-time and which are created must be provided by the South Carolina Department of Revenue and Taxation to the appropriate local tax officials.

(b) There is hereby established an exemption from municipal ad valorem taxation for a period of five (5) years for all new corporate headquarters, corporate office facilities, distribution facilities and all additions to existing corporate headquarters, corporate office facilities, or distribution facilities located in the City of Charleston for a period of five (5) years from the time of establishment, construction or being placed in service if the cost of the new construction or additions is fifty thousand dollars ($50,000.00) or more and seventy-five (75) or more new jobs that are full-time are created in the city, has a comprehensive health benefit package and pays an average wage rate of seven dollars ($7.00) per hour.
(Ord. No. 1999-88, § 1, 7-20-99)

Secs. 2-364—2-390. Reserved.

ARTICLE XII. DEPARTMENT OF LIVABILITY AND TOURISM

DIVISION 1. GENERALLY

Sec. 2-391. Establishment.

There is hereby established a department to be known as the department of livability and tourism.
(Ord. No. 2015-164, § 2, 11-10-15)

Sec. 2-392. Duties and responsibilities of department.

The department shall be charged with providing direction, leadership and general oversight and enforcement of property maintenance within the city, including substandard structures, code enforcement programs and the enforcement of the city's tourism and special events activities, and shall interpret and ensure compliance with a variety of municipal codes and state statutes by performing the following duties:

(a) Facilitate the development of strategy and policy in collaboration with the mayor's office and other city departments to protect the safety, health, welfare and quality of life for its citizens.

(b) Provide leadership on a broad range of quality of life and tourism ordinances, community organizing and revitalization efforts that impact the city.

(c) Exercise the authority to enforce the Code of the City of Charleston and state statutes enforceable by the city, including overseeing the enforcement of the provisions of chapter 29.

(d) Implement the activities subscribed by the tourism commission with related commercial activities, neighborhood organizations and appropriate civic groups.

(e) Make an annual report to city council, the mayor and the tourism commission on the activities of this office regarding tourism, the tourism commission and the state of tourism in the city.

(f) Mitigate code violations, including but not limited to, substandard or unsafe structures, trash and garbage violations, overgrown lots, abandoned vehicles, graffiti, tourism and special events.

(g) Coordinate with the city's special events committee to ensure that the requirements outlined on approved special events permits are carried out in accordance with the city ordinance and enforced as necessary.

(h) Advise the mayor on tourism, tourism management and special events-related issues and with the mayor's input, advise city council and the tourism commission on matters that affect tourism management in the city.

(i) Oversee the enforcement of tourism-related ordinances as set forth in chapter 29 of the Code of the City of Charleston.

(j) Proactively identify neighborhoods and communities where the physical environment can be improved through a unified approach to code enforcement.

(k) Ensure that department staff is adequately trained and is consistently enforcing the Code of the City of Charleston.

(1) Increase citizen participation in neighborhood revitalization through community outreach and education of the public.

(m) Develop and ensure proper execution of the department's budget.

(n) Provide direction in the day-to day administration of the department, including the budget, personnel management, employee development and growth.

(o) Prepare reports and communicate the results of code enforcement violations and neighborhood revitalization efforts to the mayor and the public.

(p) Supervise all assigned full and part-time department personnel.

(q) Operate computer and use applicable software to perform research, identify trends and report on code enforcement activities.

(r) Ensure quality service to customers through a user-friendly notification and remediation process.

(s) Oversee the identification, research and application of potential grant opportunities.

(t) Collect and analyze pertinent data, identify trends and formulate strategies to improve compliance with community standards.

(u) Oversee the economic development and business and neighborhood services division to provide business services, including the fostering of business and job development, expansion of the city's economic base through the local development corporation activities, central business district projects, suburban projects and industrial and corporate recruitment, business recruitment services; and

(v) Provide support to the neighborhood councils throughout the city.

(Ord. No. 2015-164, § 3, 11-10-15; Ord. No. 2025-022, § 1, 2-25-25)

Sec. 2-393. Administration; duties of director.

The management, administration, direction and control of the department of livability and tourism shall be under the supervision of the director of livability and tourism, who shall be appointed by the mayor with the approval of city council.

(Ord. No. 2015-164, § 4, 11-10-15)

Sec. 2-394. Appointment of personnel.

The director of livability and tourism shall have the power to hire, with the approval of the mayor, such personnel in such positions as are provided for in the budget of the department of livability and tourism as approved by city council.
(Ord. No. 2015-164, § 5, 11-10-15)

DIVISION 2. LIVABILITY DIVISION

Sec. 2-395. Livability division responsibilities.

The livability division is responsible for:

(a) Effectively and efficiently enforcing applicable city ordinances to improve the livability and quality of life of all citizens, residents and visitors of the City of Charleston.

(b) Investigating nuisance complaints regarding overgrowth, litter and other types of unsightly debris on commercial and residential properties.

(c) Investigating complaints of unregistered and inoperable vehicles on private property.

(d) Enforcing nuisance violations as set forth in the Code of the City of Charleston regarding the standards for vacant structures.

(e) Responding to graffiti complaints and removing graffiti from public property.

(Ord. No. 2015-164, § 6, 11-10-15)

DIVISION 3. TOURISM DIVISION

Sec. 2-396. Tourism division responsibilities.

The tourism division is responsible for:

(a) Serving as a liaison between the tourism industry and the city's residents.

(b) Issuing transportation and tour permits for motor coaches and tour buses.

(c) Issuing tour medallions, T-tags and tour zone assignments for carriage operators and carriages.

(d) Enforcing tourism code violations as set forth in the Code of the City of Charleston.

(Ord. No. 2015-164, § 7, 11-10-15)

ARTICLE XIII. POET LAUREATE

Sec. 2-397. Establishment of position of poet laureate.

The position of poet laureate is hereby established in the City of Charleston. The title of the position shall be "The Poet Laureate of the City of Charleston." The administration of the position of poet laureate shall be under the direction of the mayor's office of cultural affairs.

(Ord. No. 2016-065, § 1, 5-24-16)

Sec. 2-398. Purpose.

The poet laureate shall have the following roles and responsibilities:

(a) Implement in conjunction with the mayor's office of cultural affairs a community outreach and education program to encourage the writing, reading and performance of poetry within the city.

(b) Participate in civic events each year to encourage the writing, reading and performance of poetry by providing public poetry readings, workshops, lectures and/or presentations.

(c) Promote literacy through poetry in schools and foster the development of a youth poetry initiative, with the goal of providing a system and platform for emerging young poets to present their works in conjunction with city sponsored events.

(d) Commemorate the City of Charleston by composing poetry that speaks to, for and of our region which works will be presented at an annual City of Charleston sponsored event.

(e) When appropriate, collaborate with the City of Charleston's annual poetry festival.
(Ord. No. 2016-065, § 2, 5-24-16; Ord. No. 2020-148, § 1, 10-27-20)

Sec. 2-399. Qualifications; term; stipend.

(a) The poet laureate shall meet the following eligibility requirements:

(1) Be at least eighteen (18) years old and a legal resident of the City of Charleston for at least one year.

(2) Demonstrate the following:

a. Excellence as evidenced by submitted poetry samples.

b. Excellence in his/her profession as evidenced by a history of publications in journals and books, awards, honors, fellowships, and/or recognition.

c. Advancement of poetry in the Charleston area as demonstrated by a history of activity in the area's literary community through teaching, readings, publications and/or public presentations.

(b) The poet laureate shall serve a term of two (2) years, and can serve more than one (1) two-year term upon the approval of city council.

(c) The position of poet laureate shall receive and annual stipend of five thousand dollars ($5,000.00), from public and private sources. Nothing in this section should prohibit or limit the poet laureate from receiving additional compensation from private sources for appearances at events not related to his public responsibilities.

(d) The City of Charleston shall retain the license to use, reproduce, and compile the work created for the city by the poet laureate in his/her official capacity.
(Ord. No. 2016-065, § 2, 5-24-16; Ord. No. 2020-148, §§ 2, 3, 10-27-20)

Sec. 2-400. Selection.

The selection of the poet laureate shall be made based on the qualifications set forth in section 2-399(a).

The first poet laureate shall be appointed by the mayor, with the recommendation of the South Carolina Poet Laureate and the director of the office of cultural affairs. Subsequent appointments shall be made by the mayor, with the recommendation of the South Carolina Poet Laureate, the then City of Charleston Poet Laureate and the director of cultural affairs.
(Ord. No. 2016-065, § 4, 5-24-16)

Sec. 2-401. Implementation.

The mayor is authorized to implement such administrative procedures as may be necessary to carry out the provisions of this article.
(Ord. No. 2016-065, § 5, 5-24-16)

Secs. 2-402—2-420. Reserved.

ARTICLE XIV. DEPARTMENT OF STORMWATER MANAGEMENT

Sec. 2-421. Establishment and organization.

There is hereby established a department to be known as the department of stormwater management and shall consist of the following divisions:

(1) Administration;

(2) Stormwater project and floodplain management;

(3) Stormwater management system maintenance.
(Ord. No. 2018-149, § 6, 11-27-18)

Sec. 2-422. Duties and responsibilities of the department.

The department shall:

(1) Provide direction, leadership, administration, general oversight, and enforcement of stormwater infrastructure and water quality projects including planning, design, and construction of new and existing development;

(2) Manage the city's floodplain management program;

(3) Maintain the city's stormwater drainage system;

(4) Provide education on corrective and preventative measures for reducing flood damage;

(5) Manage the city's stormwater user fees.

In carrying out these duties and responsibilities, the Department shall coordinate with the Departments of Planning and Public Service and the Division of Resiliency & Emergency Management and shall collaborate with such departments to develop strategies and policies to protect the public health, safety, welfare, and quality of life for the city's citizens.
(Ord. No. 2018-149, § 7, 11-27-18)

Sec. 2-423. Administration; duties of director.

The administration, management, direction, and control of the department of stormwater management shall be under the supervision of the director of the department of stormwater management who shall be appointed by the mayor with the approval of city council.
(Ord. No. 2018-149, § 8, 11-27-18)

Sec. 2-424. Appointment of personnel.

The director of the department of stormwater management shall have the power to hire, with the approval of the mayor, such personnel in such positions as are provided for in the budget of the department of stormwater management as approved by city council.
(Ord. No. 2018-149, § 9, 11-27-18)

Secs. 2-425—2-430. Reserved.

ARTICLE XV. DEPARTMENT OF DEVELOPMENT SERVICES*

Sec. 2-431. Establishment and organization.

There is hereby established a department to be known as the department of development services, which shall comprise divisions necessary for efficient land development review, permitting, and inspections.
(Ord. No. 2025-053, § 1, 3-25-25)

Sec. 2-432. Duties and responsibilities.

The department of development services shall be responsible for functions associated with land development review, engineering regulations, public infrastructure and rights-of-way, permitting, and building construction, ensuring the City of Charleston's development review processes are highly coordinated, efficient, and navigable.

The department, and its associated divisions, will provide engineering, building plan review, permitting and inspections and/or similar in-house technical services as are required by the city. It will be responsible for the enforcement of such ordinances or codes relating to housing and building construction and environmental control as are adopted by city council.

In carrying out these duties and responsibilities, the department shall coordinate with other departments to develop strategies and policies to improve the development review process and the built environment while also protecting public health, safety, welfare, and quality of life for the city's citizens.
(Ord. No. 2025-053, § 1, 3-25-25)

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*__Editor's note—__Ord. No. 2025-053, § 1, adopted March 25, 2025, set out provisions intended for use as Art. XV, §§ 2-246—2-248. Inasmuch as there were already provisions so designated, said ordinance has been codified herein as Art. XV, §§ 2-431—2-433, at the discretion of the editor.

Sec. 2-433. Administration.

The administration, management, direction, and control of the department of development services shall be under the supervision of a director who shall be appointed by the mayor with the approval of the council.
(Ord. No. 2025-053, § 1, 3-25-25)

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Chapter 3

ALCOHOLIC BEVERAGES*

Art. I.	**In General, §§ 3-1—3-15**
Art. II.	**Wine and Beer, §§ 3-16—3-30**
Art. III.	**Transportation of Beverages in Open Containers and Public Consumption, §§ 3-31—3-60**
Art. IV.	**Reserved, §§ 3-61—3-63**

ARTICLE I. IN GENERAL†

Sec. 3-1. Beer, ale, porter and wine defined.

Beer, ale, porter and *wine* shall be defined for purposes of this section as stated in Section 61-4-10 of the Code of Laws of South Carolina 1976, as amended from time to time.
(Ord. No. 2000-165, § 2, 7-18-00)

Sec. 3-2. Prohibited operation.

Commercial establishments which allow for the on-premises consumption of beer, ale, porter and/or wine shall be prohibited from operating between the hours 2:00 a.m. and 6:00 a.m. on Mondays through Saturdays.
(Ord. No. 2000-165, § 3, 7-18-00)

Secs. 3-3—3-15. Reserved.

***Cross references—**Licenses, permits and miscellaneous business regulations, Ch. 17; drunkenness in public, § 21-163.

State law references—Preemption of field as to alcoholic beverages, suspension of certain local ordinances, S.C. Code 1976, § 61-13-760; municipal police officers' powers as to enforcement of alcoholic beverage laws, S.C. Code 1976, § 61-13-780.

†**Editor's note—**Ord. No. 2000-165, §§ 1—3, adopted July 18, 2000, amended former Art. I, §§ 3-1—3-5, in its entirety to read as herein set out. Former Art. I pertained to general provisions relating to alcoholic beverages and derived from the Code of 1975; this codification; Ord. No. 1982-38, § 1, 4-27-82; Ord. No. 1983-10, § 2, 9-28-82.

ARTICLE II. WINE AND BEER

Sec. 3-16. Hours of sale restricted.

It shall be unlawful within the city for the owner or person in charge of any store, beer parlor or other place of business or commercial establishment to sell, give away or, in any manner, dispense or permit the consumption of any wines or malt liquors in such store, beer parlor or other place of business or commercial establishment between the hours of 1:30 a.m. and 7:00 a.m.; provided, however, that, any establishment licensed pursuant to S.C. Code 1976, section 61-5-10 et seq., shall be authorized to sell such products during those hours in which the sale of alcoholic beverages in containers of two (2) ounces or less is lawful.
(Code 1975, § 3-9)

Sec. 3-17. Sunday sales prohibited.

It shall be unlawful for any person to sell, or offer for sale, any wine or beer in the city between the hours of 12:00 midnight Saturday night and sunrise on Monday morning; provided, however, that any establishment licensed pursuant to S.C. Code 1976, section 61-5-10 et seq. shall be authorized to sell such products during those hours in which the sale of alcoholic beverages in containers of two (2) ounces or less is lawful.
(Code 1975, § 3-10)

Secs. 3-18—3-30. Reserved.

ARTICLE III. TRANSPORTATION OF BEVERAGES IN OPEN CONTAINERS AND PUBLIC CONSUMPTION*

Sec. 3-31. Restricted.

No person shall transport or possess on his person or in a motor vehicle any beer, wine, or alcoholic beverage in an open container,

*__State law reference—__Authority to adopt, S.C. Code 1976, § 61-13-760.

nor consume any beer, wine, or alcoholic beverage in or upon the streets, sidewalks, alleys, or public ways of the city, except as provided in this article.
(Ord. No. 1977-86, § 1, 12-20-77; Ord. No. 1983-15, § 1, 3-22-83)

Sec. 3-32. Permit for transporting, etc., beverages in open containers and consumption at group functions—Required.

(a) No person shall possess, carry, or transport any beer, wine, or alcoholic beverage in an open container, nor consume any beer, wine, or alcoholic beverage in or upon streets, sidewalks, parks, playgrounds, alleys, public ways, or upon any private parking lot that is open for the public's use, except with the permission or consent of the owner, or at a group function, a permit for which has been obtained from the chief of police as provided in this article.

(b) It shall be unlawful for any person to possess alcoholic beverages, beer or wine, upon the premises of the Gaillord Municipal Auditorium, unless the same has been obtained on or brought to the premises under a permit from the city. The director of special facilities may refuse a permit for the use of alcoholic beverages, beer or wine upon the premises of the auditorium where it can be reasonably expected that a large portion of the audience will be below the legal drinking age or when public safety requirements justify careful control of alcohol consumption upon the premises.
(Ord. No. 1977-86, § 2, 12-20-77; Ord. No. 1983-42, §§ 1, 2, 8-16-83; Ord. No. 2014-15, § 1, 1-30-14)

Cross reference—Licenses, permits and miscellaneous business regulations, Ch. 17.

Sec. 3-33. Same—Application generally.

(a) A person seeking issuance of a permit to consume or possess alcoholic beverages required by section 3-32 of this article shall file an application with the chief of police on forms provided by him. An application for a permit shall be filed with the chief of police not less than three (3) days nor more than thirty (30) days before the date on which the proposed activity is to take place.

(b) The chief of police, where good cause is shown therefor, shall have the authority to consider any application hereunder which is filed less than three (3) days before the date such activity is proposed to be conducted.
(Ord. No. 1977-86, §§ 3, 5, 12-20-77)

Sec. 3-34. Same—Application contents.

The application for a permit required by section 3-32 of this article shall set forth the following information:

(1) The name, address, and telephone number of the person seeking the permit.

(2) The name, address, and telephone number of the headquarters of the organization or association requesting

permit and of the authorizing and responsible head of such organization or association.

(3) The name, address, and telephone number of the person who will be the chairman and who will be responsible for the conduct of the activity.

(4) The date when the activity is to be conducted.

(5) The specific location of the activity proposed.

(6) The approximate number of persons who will participate in the activity.

(7) The hours when such activity will start and terminate.

(8) Any additional information which the chief of police shall find reasonably necessary to a fair determination as to whether a permit should be issued.

(Ord. No. 1977-86, § 4, 12-20-77)

Sec. 3-35. Same—Action upon application.

The chief of police shall act upon the application for a permit required by section 3-32 of this article within two (2) days after the filing thereof. If the chief of police disapproves the application, he shall mail to the applicant within two (2) days after the date upon which the application was filed a notice of his action, stating the reasons for his denial of the permit.

(Ord. No. 1977-86, § 6, 12-20-77)

Sec. 3-36. Same—Issuance upon certain findings.

The chief of police shall issue a permit as provided for under section 3-32 of this article when, from a consideration of the application and from such other information as may otherwise be obtained, he finds that:

(1) The conduct of the activity proposed will not substantially interrupt the safe and orderly activity of the park and playground in question or the safe and orderly movement of traffic, pedestrian and vehicular.

(2) The conduct of the activity will not require the diversion of so great a number of police officers of the city to properly

police the activity so as to prevent normal police protection to the city.

(3) The concentration of persons at the activity will not unduly interfere with proper utilization of the parks and playgrounds or with proper fire and police protection of the parks and playgrounds and areas contiguous to such areas.

(4) The conduct of the activity is not reasonably likely to cause injury of persons or property, to provoke disorderly conduct or create a disturbance.

(5) The conduct of the activity is not reasonably likely to cause littering or a health hazard to the citizens of the city.

(Ord. No. 1977-86, § 7, 12-20-77)

Sec. 3-37. Same—Issuance for activity during certain times prohibited.

No permit shall be granted under this article for an activity to convene before 9:00 a.m. or terminate after 8:00 p.m.
(Ord. No. 1977-86, § 8, 12-20-77)

Sec. 3-38. Same—Appeal from denial.

Any person aggrieved shall have the right to appeal the denial of a permit required by section 3-32 of this article to city council. The appeal shall be taken within forty-eight (48) hours after notice. The city council shall act upon the appeal at its next regularly scheduled meeting, but no later than twenty (20) days from the time of receipt of the appeal.
(Ord. No. 1977-86, § 9, 12-20-77)

Sec. 3-39. Same—Chief of police's authority to offer alternative permit.

The chief of police, in denying an application for a permit required by section 3-32 of this article, shall be empowered to authorize the activity on a day, at a time, or at a different location from that named by the applicant. An applicant desiring to accept an alternate permit shall, within two (2) days after notice of the action of the chief of police, file a written notice of acceptance with the chief of police. An alternate permit shall

conform to the requirements of and shall have the effect of a permit required by such section 3-32.
(Ord. No. 1977-86, § 10, 12-20-77)

Sec. 3-40. Same—Notice to other city officials upon issuance.

Immediately upon the issuance of a permit the chief of police shall send a copy thereof to the mayor, the fire chief, the director of the department of leisure services, and any other city officials affected thereby.
(Ord. No. 1977-86, § 11, 12-20-77)

Sec. 3-41. Same—Revocation.

The chief of police shall have the authority to revoke a permit required by section 3-32 of this article upon violation of the standards for issuance as set forth in section 3-36 of this article.
(Ord. No. 1977-86, § 12, 12-20-77)

Sec. 3-42. Same—Activity chairman or leader to have permit upon person during conduct of activity.

The activity chairman or other person heading or leading an activity for which a permit is required by section 3-32 of this article shall carry the permit upon his person during the conduct of the activity.
(Ord. No. 1977-86, § 13, 12-20-77)

Sec. 3-43. Same—Permittees required to comply with terms of permit and applicable laws and ordinances.

A permittee under section 3-32 of this article shall comply with all permit directions and conditions and with all applicable laws and ordinances.
(Ord. No. 1977-86, § 14, 12-20-77)

Secs. 3-44—3-60. Reserved.

ARTICLE IV. RESERVED*

Secs. 3-61—3-63. Reserved.

*Editor's note—Ord. No. 2004-109, § 1, adopted October 12, 2004, repealed former Art. IV, §§ 3-61—3-63, in its entirety. Former Art. IV pertained to the prohibition of sidewalk cafes, and derived from Ord. No. 1996-100, adopted May 28, 1996.

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Chapter 4

AMUSEMENTS*

Sec. 4-1. Disturbing audience at place of amusement.

It shall be unlawful for any person to interrupt or disturb any audience who may be assembled in any place of amusement within the city, by any noise or loud talking, indecent behavior or other annoyance, which may in any manner interfere with good order and decorum.
(Code 1975, § 4-1)

*Cross references—Licenses, permits and miscellaneous business regulations, Ch. 17; parks and recreation, Ch. 22.

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Chapter 5

ANIMALS*

Article I. In General

Sec. 5-1. Definitions.
Sec. 5-2. Inspections and right of entry.
Sec. 5-3. Impounding; duty of division members.
Sec. 5-4. Animals at large prohibited.
Sec. 5-5. Restraint of animals.
Sec. 5-6. Setting animals free for chase prohibited.
Sec. 5-7. Keeping and displaying regulated.
Sec. 5-8. Keeping of livestock and poultry prohibited without permit.
Sec. 5-9. Animal owner identification requirements.
Sec. 5-10. Reckless riding and driving.
Sec. 5-11. Animal cruelty or neglect.
Sec. 5-12. Tethering of animals.
Sec. 5-13. Squirrels and song birds protected.
Sec. 5-14. Dead animals.
Sec. 5-15. Sale or gift of animals under certain conditions prohibited; changing their natural color also prohibited.
Sec. 5-16. Acts deemed public nuisance.
Sec. 5-17. Keeping of stray animals; requirements; failure to surrender.
Sec. 5-18. Keeping of dogs which disturb the peace.
Sec. 5-19. Vicious animals and animals deemed public safety risk.
Sec. 5-20. Teasing and molesting.
Sec. 5-21. Injuring animals; notice required.
Sec. 5-22. Establishment of bird sanctuary; exceptions for hunting.
Sec. 5-23. Injury of certain birds or nests.
Sec. 5-24. Exemptions to certain chapter provisions.
Sec. 5-25. Notice of violations; procedure; punishment.
Sec. 5-26. Confinement to motor vehicles.
Sec. 5-27. Animal abandonment.
Sec. 5-28. Poisoning an animal.
Secs. 5-29—5-35. Reserved.

Article II. Division of Animal Control

Sec. 5-36. Created; animal control division.
Sec. 5-37. Duties.
Sec. 5-38. Division members as peace officers.

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*__Cross references—__Health and sanitation, Ch. 15; speed restrictions for animals ridden on streets, § 19-207; transportation by animal-drawn vehicles for purposes of touring, § 29-202; hitching animals to hydrants or drinking fountains, § 30-198.

Sec. 5-39. Interfering with animal control officer; authorized representative.
Secs. 5-40—5-50. Reserved.

Article III. Impoundment

Sec. 5-51. Impounding of animals.
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ARTICLE I. IN GENERAL

Sec. 5-1. Definitions.

For the purposes of this chapter, the following words and phrases are hereby defined:

Abandonment shall mean deserting, forsaking, or intending to give up absolutely an animal without making reasonable arrangements for providing adequate care, or by not securing another owner or caregiver for the animal, including if left at or near an animal shelter, veterinary clinic, or other recognized place of shelter without reasonable arrangements for the animal's continued minimum care. An animal shall be considered abandoned if left without adequate care, as defined herein, for at least twenty-four (24) hours.

Adequate care shall mean exhibiting attention to the needs of an animal, including but not limited to, the provision of food, water, shelter; sanitary, safe and healthy conditions free of ticks and fleas; and adequate and timely veterinary medical attention necessary to maintain good health for the specific age, size, species, and breed of animal: or to prevent suffering.

Adequate food shall mean sufficient quantity of non-contaminated and nutritionally healthy sustenance that is appropriate to the species, breed, size, age and health of the animal, or nourishment at the direction of a licensed veterinarian, which is sufficient to prevent starvation, malnutrition, or risk to the animal's health. Garbage, spoiled, expired, rancid, or contaminated food is not considered adequate food under the provisions of this chapter.

Adequate outdoor shelter shall mean shelter which will keep a non-aquatic animal dry, out of the direct path of winds, shaded and out of direct sun, and at a temperature that is suitable for the health and well-being of the animal based on the animal's species, age, and physical condition. The containment area for the animal shall be free of accumulated waste and debris so that the animal shall be free to walk or lie down without coming in contact with waste or debris; shall be free of unsanitary conditions or is dangerous to the animal or to public health,

welfare or safety; and shall be free of ticks and fleas. A suitable method of drainage shall be provided to rapidly eliminate any excess water or moisture. Aquatic and semi-aquatic animals shall have an adequate amount of clean water in which to move. For dogs outside and unattended as defined herein, adequate shelter shall mean a waterproof and windproof structure made of durable material with a solid waterproof floor that is either raised from the ground or has a lip to prevent water intrusion, with one (1) entryway that provides protection from physical suffering and impairment of health due to exposure to the elements or adverse weather, and that has quick-drying bedding like hay or straw in temperatures below fifty (50) degrees to promote comfortable body temperatures and a form of body padding.

Adequate water shall mean constant access to a supply of potable water provided in a clean bowl or other by sanitary manner suitable for the species that is free of algae, dirt, leaves, insect eggs, or other debris.

Animal shall mean any creature, living or dead, both domestic and wild, except humans (*Homo sapiens*). "Animal" includes mammals, birds, fish, amphibians, and reptiles.

Animal control officer shall mean an employee or agent of the city designated by the chief of police to administer and enforce the requirements contained within this chapter.

Animals running at large or *stray animals* shall mean any animal that is off the premises of its owner or keeper, and not on a leash or otherwise under the immediate physical control of a person physically capable of restraining the animal.

Animal shelter shall mean any facility used for the care, impounding or inoculation of any animal and designated as an animal shelter, and any premises designated by the chief of police or the mayor for the purpose of impounding, caring for, or the destruction of animals held pursuant to this chapter.

Authorized representative shall mean any person, group or association, or employee of such person, group or association designated by the mayor or chief of police to perform any duty under this chapter.

Caregiver shall mean a person authorized by an animal's owner, court order, by law or other legal means to temporarily provide care and shelter to such animal.

Control or *under restraint.* An animal shall be deemed under control or under restraint if it is on the premises of its owner or keeper or, if not on such premises, is under physical control of its owner or keeper by means of a leash not more than eight (8) feet in length unless physically posted by the city that the animal is in an off-leash or voice control area. An electric collar is not a form of restraint unless it is used in connection with a functional electric fence used to keep an animal contained to its owner's or keeper's premises.

Cruelty or *neglect* shall mean any act of omission or commission whereby physical pain, suffering or death of an animal is caused or permitted, including failure to provide proper water, air, space, shelter or protection from the elements, a sanitary and safe living environment, veterinary care or nutritious food in siphoned quantity. In the case of activities where physical pain is necessarily caused, such as accepted veterinary and agricultural husbandry practices, or pest elimination, in compliance with state and federal law, "cruelty" shall mean a failure to employ the most humane method reasonably available.

Division shall mean the division of animal control unless otherwise specifically designated.

Domesticated. Except for free roaming cats, any animal kept, cared for, sheltered, fed or harbored for use as a pet, for work, or as a source of food, raw materials or income.

Excessive noise shall mean, for purposes of this chapter only, sound produced by an animal that occurs consistently and exceeds twenty (20) minutes.

Free roaming cat shall mean any cat that is not owned, that is wild and undomesticated, or otherwise considered feral.

Harbor shall mean providing shelter, food, or general care to a domestic animal. A domestic animal shall be deemed to be harbored if it is fed or sheltered for five (5) or more consecutive days.

Impounded shall mean having been received into custody of the division, any member thereof or any authorized representative thereof.

Inoculation or *inoculation against rabies* shall mean the vaccination or inoculation of a dog, cat, ferret, or horse with an antirabic vaccine approved by the state board of health at such time or times as shall be required by the general statutes of South Carolina in accord with S.C. Code 1976 § 47-5-60, as amended.

Livestock shall mean cattle, goats, sheep, swine, and similar animals kept for domestic use.

Owner shall mean any person, groups of persons or entity possessing, keeping, having temporary or permanent charge of, sheltering, feeding, harboring or taking care of any animal covered by this chapter. In the case of an animal owned by a minor, the term "owner" includes the parents or person(s) in loco parentis with custody of the minor.

Poultry and fowl shall mean any domestic fowl, such as but not limited to chickens, turkeys, ducks, guinea, pheasants, pigeons, and geese.

Sterilize or *sterilization* shall mean a surgical or chemical procedure performed by a licensed veterinarian that renders an animal permanently incapable of reproducing.

Strict voice control shall mean demonstrable control or governance of the behavior of any animal as if such animal were controlled by a leash.

Tethered or *tethering* shall mean attaching an animal to a stationary object by a means of a cable, rope running line, harness, or similar device.

Unattended. An animal shall be considered unattended when it is beyond the visual sight and physical control of its owner, keeper, or caretaker.

Unprovoked means that the animal was not hit, kicked, verbally or physically teased, or struck by a person with any object or part of a person's body, nor was any part of the animal's body pulled, pinched, or squeezed by a person or object.

Unsanitary conditions shall mean an animal's living space, shelter, or exercise area contaminated by health hazards, irritants, pollutants, items, or conditions that endanger or pose a risk to an animal's health.

Veterinary medical attention shall mean care or supervision by a properly licensed practitioner of veterinary medicine as defined by South Carolina law, sufficient to maintain an animal in a state of good health and prevent pain and suffering by the animal.

Wild animal shall mean an animal that is not naturally domesticated or native to the local ecosystem. The definition of wild animal shall not apply to exotic birds or animals that may be purchased at a pet store or commercial locations. Animals that would be considered exotic or wild include but are not limited to the following:

Anteaters,

Apes,

Baboons,

Bears,

Bison,

Cheetahs,

Coyotes,

Crocodilians,

Elephants,

Kangaroos,

Kinkajous,

Monkeys,

Owls,

Ostriches,

Sloths,

Venomous snakes.

(Code 1975, § 5-4; Ord. No. 1976-29, § 1, 9-14-76; Ord. No. 2009-235, § 1, 11-16-09; Ord. No. 2025-110, § 1, 8-19-25)

Cross reference—Rules of construction and definitions generally, § 1-2.

Sec. 5-2. Inspections and right of entry.

(a) Whenever it is necessary to make an inspection to enforce any of the provisions of or perform any duty imposed by this chapter, or other applicable law, or whenever an authorized law enforcement officer, code enforcement officer, or animal control officer has probable cause to believe that there exists in any building or upon any premises any violation of the provisions of this chapter or other applicable law, the authorized officer is hereby empowered to enter such property at any reasonable time and to inspect the same and perform any duty imposed by this chapter or other applicable law, but only if the consent of the occupant or owner of the property is freely given or a search warrant is obtained as hereinafter provided:

(1) If such property is occupied, the officer shall first present proper credentials to the occupant and request entry, explaining their reasons therefor; and

(2) If such property is unoccupied, the officer shall first make a reasonable effort to locate the owner or other persons having charge or control of the property, present proper credentials and request entry, explaining their reasons therefor; and

(3) If such entry is refused or cannot be obtained because the owner or other person having charge or control of the property cannot be found after due diligence, an authorized member of the division shall contact a sworn member of the department to obtain a warrant to conduct a search of the property.

(Code 1975, § 5-5; Ord. No. 1976-29, § 1, 9-14-76; Ord. No. 2025-110, § 2, 8-19-25)

Sec. 5-3. Impounding; duty of division members.

It shall be the duty of any authorized member of the division to secure and impound in the animal shelter, to take up and immediately deliver to the division or to notify the division of the presence of those animals which are authorized and directed to be taken up and impounded by this chapter, or which are found or kept contrary to the provisions of this chapter.
(Code 1975, § 5-6; Ord. No. 1976-29, § 1, 9-14-76; Ord. No. 2025-110, § 3, 8-19-25)

Sec. 5-4. Animals at large prohibited.

(a) No person owning or having possession, charge, custody or control of any animal shall cause, permit or allow the animal to stray or in any manner to run at large in or upon any public street, sidewalk, athletic field, athletic facility, or park or upon the property of another, if such animal is not under physical control of a person using a leash so as to allow the animal to be controlled by said person. The length of a leash shall not be more than eight (8) feet long.

(b) Animals may be permitted to occupy a city park or an area of a city park under sufficient strict voice control without physical restraint or a leash when the director of the department of parks determines that during certain hours or under certain conditions animals may be permitted to occupy a city park or an area of a city park under strict voice control and posts the city park accordingly.

(c) No animal of any kind shall be permitted on any tennis court, fenced recreation field, or athletic field at any time, even if such animal is physically restrained, leashed or otherwise controlled, unless otherwise permitted by rules governing such areas.
(Code 1975, § 5-7; Ord. No. 1976-29, § 1, 9-14-76; Ord. No. 2002-76, § 1, 5-28-02; Ord. No. 2009-01, § 1, 2-13-09; Ord. No. 2025-110, § 4, 8-19-25)

Sec. 5-5. Restraint of animals.

(a) Every person owning or having possession, charge, care, custody, or control of any animal shall keep such animal exclusively upon their own premises; provided, however, that,

any such animal may be off such premises if the animal is restrained by a leash no longer than eight (8) feet, provided, however, that, when any animal destroys or damages any property, attacks, threatens to attack, or interferes with any person in any manner, becomes a nuisance, or strays onto the private property of another, there shall be a presumption of law that the animal was not restrained by a leash or other means of adequate physical control.

(b) Any owner of or any person having possession, charge, care, custody, or control of any animal shall not tie or otherwise physically fasten such animal to any object on a public way and depart from such animal, unless the animal is within one hundred fifty (150) feet from and visible to said person.
(Code 1975, § 5-8; Ord. No. 1976-29, § 1, 9-14-76; Ord. No. 2009-01, § 2, 2-13-09; Ord. No. 2025-110, § 5, 8-19-25)

Sec. 5-6. Setting animals free for chase prohibited.

It shall be unlawful for any person to set free any rabbit, hare or other animals in the streets of the city for the purpose of chasing or having a race thereafter.
(Code 1975, § 5-9; Ord. No. 1976-29, § 1, 9-14-76)

Sec. 5-7. Keeping and displaying regulated.

(a) It shall be unlawful for any person in the city to exhibit, keep, or display pets, animals, birds or fowl of any kind in show windows for a period longer than six (6) hours per day.

(b) It shall be unlawful for any person in the city to exhibit, keep or display pets, animals, birds, or fowl of any kind in any manner without shading such animals from the sun, and providing adequate food, water, and ventilation for their use.
(Code 1975, § 5-10; Ord. No. 1976-29, § 1, 9-14-76; Ord. No. 2025-110, § 6, 8-19-25)

Sec. 5-8. Keeping of livestock and poultry prohibited without permit.

(a) It shall be unlawful for any person to keep or maintain livestock within the corporate limits of the city without the issuance of a livestock permit and after paying a permit fee as

required by the division. To keep, lodge or maintain livestock, the lot or land parcel must contain one (1) or more acres and there shall be a distance of at least one hundred fifty (150) feet from any dwelling other than the dwelling of the person so keeping such animals.

(b) It shall be unlawful for any person to keep, lodge, or maintain poultry or fowl within the corporate limits of the city without the issuance of a poultry or fowl permit and after paying a permit fee as required by the division. To keep, lodge, or maintain poultry or fowl, there must be at least a distance of fifty (50) feet or more between where the poultry or fowl are being housed and any dwelling, other than the dwelling of the person so keeping such animals, unless written permission is obtained from the residents of such dwellings that are within fifty (50) feet of the place where such animals are to be housed or maintained. Free-roaming poultry or fowl are not permitted. It shall be unlawful for any person to own, keep, possess, or lodge any rooster (male chicken) within the corporate limits of the city. (Code 1975, § 5-11; Ord. No. 1976-29, § 1, 9-14-76; Ord. No. 1987-160, § 1, 9-22-87; Ord. No. 2025-110, § 7, 8-19-25)

Sec. 5-9. Animal owner identification requirements.

(1) All dogs and cats over the age of four (4) months that live within the City of Charleston must either (a) be implanted with an identifying microchip with the owner's most accurate and current contact information by a person authorized to perform microchipping pursuant to state law, or (b) wear a durable tag or other form of durable identification with the owner's name, address, and phone number on a collar or harness at all times.

(2) This requirement shall not apply to dogs or cats whose owner has resided within the city for fewer than thirty (30) days, or to a nonresident of the city keeping a dog or cat in the city for fewer than sixty (60) days.

(3) Transfer, sale of dogs and cats.

(a) An owner who offers any dog or cat over the age of four (4) months for sale, trade, or adoption must provide, if applicable, the microchip identification number with the

offer of sale, trade or adoption. The microchip number, if applicable, must appear on a document transferring the dog to the new owner.

(b) A person purchasing, adopting, or acquiring a dog or cat from a previous owner must then register their current information with the appropriate microchip company, if applicable, within thirty (30) days of purchasing, adopting, or acquiring the dog or cat from a previous owner.

(Ord. No. 2025-110, § 8, 8-19-25; Ord. No. 2025-141, § 1, 10-28-25)

Editor's note—Ord. No. 2025-110, § 8, adopted Aug. 19, 2025, repealed the former § 5-9, and enacted a new § 5-9 as set out herein. The former section pertained to keeping swine and poultry prohibited and derived from Code 1975, § 5-12; Ord. No. 1976-29, § 1, adopted Sept. 14, 1976; and Ord. No. 1987-160, § 2, adopted Sept. 22, 1987.

Sec. 5-10. Reckless riding and driving.

It shall be unlawful for any person to run, drive or ride any animal in a reckless, disorderly or careless manner through or over any of the streets of the city.

(Code 1975, § 5-13; Ord. No. 1976-29, § 1, 9-14-76)

Sec. 5-11. Animal cruelty or neglect.

(a) It shall be unlawful for any person owning or keeping an animal within any building or on any premises to subject that animal to any form of cruelty or neglect. For the purposes of this section, "cruelty or neglect" shall be defined as in section 5-1.

(b) It shall be unlawful for any person owning or keeping an animal within any building or on any premises to subject that animal to filthy and dirty confinement, exposure to excessive animal waste, garbage, dirty water, noxious odors, dangerous objects that could injure or kill an animal or other circumstances that would therefore withhold or prevent the animal from receiving adequate care as defined in section 5-1.

(c) It shall be unlawful for any person in possession, custody, or control of an animal to not provide the animal adequate shelter, adequate water at all times, or adequate food as defined in section 5-1 of this chapter.

(d) All pens, yards, runs, or other structures wherein any animal is kept shall be of such construction so as to be easily cleaned and kept in good repair. Fences which are intended as enclosures for any animal shall be securely constructed, shall be adequate for the purpose, and kept in good repair.

(e) It shall be unlawful to confine an animal in a storage room, shed, or other building that does not have windows and proper ventilation as to prevent physical suffering.

(Ord. No. 2025-110, § 9, 8-19-25)

Editor's note—Ord. No. 2025-110, § 9, adopted Aug. 19, 2025, repealed the former § 5-11, and enacted a new § 5-11 as set out herein. The former section pertained to driving loose or unhaltered horse, mule or cow on streets and derived from Code 1975, § 5-14; and Ord. No. 1976-29, § 1, adopted Sept. 14, 1976.

Sec. 5-12. Tethering of animals.

It shall be unlawful for any person to tether, fasten, tie, restrain or otherwise affix an animal to any tree, garage, house, post, swivel, fence, trolley system or any other stationary object, except in circumstances where are all of the following are met:

(1) The animal must be over the age of twelve (12) months.

(2) The tether must be at least twelve (12) feet in length, cannot exceed one-eighth (⅛) of the animal's body weight, and is positioned so that at its greatest length it prevents injury, or entanglement with any object other than the animal's shelter.

(3) The animal must not be tethered during its estrous cycle.

(4) The tethering occurs within the hours of 6:00 a.m. to 10:00 p.m.

(Ord. No. 2025-110, § 10, 8-19-25)

Editor's note—Ord. No. 2025-110, § 10, adopted Aug. 19, 2025, repealed the former § 5-12, and enacted a new § 5-12 as set out herein. The former section pertained to stallion, jackass and bull exhibitions regulated and derived from Code 1975, § 5-15; and Ord. No. 1976-29, § 1, adopted Sept. 14, 1976.

Sec. 5-13. Squirrels and song birds protected.

It shall be unlawful for any person to willfully or wantonly kill or maim any squirrel or song bird, or rob the nest of either; provided, however, they are doing so with permitting or licensing authorized by South Carolina state law.
(Code 1975, § 5-16; Ord. No. 1976-29, § 1, 9-14-76; Ord. No. 2025-110, § 11, 8-19-25)

Sec. 5-14. Dead animals.

No person shall place or leave the carcass of any dead animal on their property, the property of another, or in any street or right-of-way. Further, it shall be the property owner's responsibility to dispose of said carcass.
(Code 1975, § 5-17; Ord. No. 1976-29, § 1, 9-14-76; Ord. No. 2025-110, § 12, 8-19-25)

Sec. 5-15. Sale or gift of animals under certain conditions prohibited; changing their natural color also prohibited.

(a) It shall be unlawful for any person to sell, offer for sale, barter, or give away baby chickens, ducklings, or other fowl under three (3) weeks of age, or rabbits under two (2) months of age, as pets, toys, premiums or novelties; provided, however, that, this section shall not be construed to prohibit the sale or display of such baby chickens, ducklings, or other fowl, or such rabbits, in proper facilities by breeders or stores engaged in the business of selling for purposes of commercial breeding and raising.

(b) It shall also be unlawful to color, dye, stain or otherwise change the natural color of animals.

(c) It shall be unlawful to sell, or offer for sale, trade, barter, auction, lease, rent, give away, or display for commercial purpose any live pet on any roadside, public right-of-way, or public property.
(Code 1975, § 5-18; Ord. No. 1976-29, § 1, 9-14-76; Ord. No. 2025-110, § 13, 8-19-25)

Sec. 5-16. Acts deemed public nuisance.

It shall be unlawful for any person owning, keeping, possessing, or having custody of an animal within the city that habitually or repeatedly: chases, snaps at, or barks at pedestrians, bicyclists or vehicles; turns over garbage pails; damages gardens, personal property, flowers or vegetables; or conducts itself so as to be a public nuisance. Conduct constituting a public nuisance for purposes of this section includes but is not limited to habitual or repeated:

(1) Interference with the freedom of movement of persons in a public right-of-way; and

(2) Unlawful entry by the animal upon the premises of another.

(Code 1975, § 5-24; Ord. No. 1976-29, § 1, 9-14-76; Ord. No. 2025-110, § 14, 8-19-25)

Sec. 5-17. Keeping of stray animals; requirements; failure to surrender.

(a) It shall be unlawful for any person in the city to knowingly and intentionally harbor, feed, keep in possession by confinement, or otherwise, any animal which does not belong to them unless they have, within twenty-four (24) hours from the time such animal came into their possession, notified the division. Upon receiving such notice, the division shall take such animal and place it in the animal shelter and shall deal with it as provided in section 5-51 of this chapter.

(b) It shall be unlawful for any person to refuse to surrender any such stray animal to the division, any authorized member of the division or the authorized representative thereof, upon demand.

(Code 1975, § 5-27; Ord. No. 1976-29, § 1, 9-14-76; Ord. No. 2025-110, § 15, 8-19-25)

Sec. 5-18. Keeping of dogs which disturb the peace.

It shall be unlawful for any person to own, possess, harbor, control, or keep on any premises any dog that barks or howls so as to cause excessive noise as defined in section 5-1, which disturbs the peace of the neighborhood.
(Code 1975, § 5-29; Ord. No. 1976-29, § 1, 9-14-76; Ord. No. 2025-110, § 16, 8-19-25)

Sec. 5-19. Vicious animals and animals deemed public safety risk.

(a) It shall be unlawful for any person to allow or cause to allow any animal that they own, are keeping, or have charge of, to attack or bite any human or animal causing punctures or minor lacerations to the skin. For the purposes of this section, an animal engaged in such conduct shall be deemed a public safety risk. After three (3) separate occasions of the foregoing conduct within a period of five (5) years, as evidenced by both medical records and animal control records, the animal control authority shall seize and hold the animal pending an order by the magistrate judge.

(b) It shall be unlawful for any person to own, keep, have charge of, shelter, feed, harbor or take care of any vicious animal within the city limits. For the purposes of this section, a vicious animal means any animal that:

(1) Has killed a human being;

(2) Has inflicted serious bodily injury on a human being; or

(3) Has killed an animal without provocation in which the other animal was not in violation of any other city ordinances;

(4) Any animal found to be a vicious animal pursuant to this section shall be seized and held by the animal control authority pending an order by the magistrate judge. For purposes of this section, serious bodily injury shall mean bodily injury which causes a substantial risk of death or

which causes serious, permanent disfigurement or protracted loss or impairment of the function of a bodily member or organ.

(Code 1975, § 5-31; Ord. No. 1976-29, § 1, 9-14-76; Ord. No. 2015-027, § 1, 3-24-15; Ord. No. 2025-110, § 17, 8-19-25)

Sec. 5-20. Teasing and molesting.

(a) It shall be unlawful for any person to tease, molest, bait, or in any way bother any animal not belonging to them or legally under their control.

(b) It shall be unlawful for any person to willfully or maliciously tease, molest, bait, touch, harass or approach a working animal while the working animal is contained and/or actively working within the city's tourism district on the peninsula Charleston without explicit permission given by the handler or driver of the carriage. Harassment may include, but is not limited to the following:

(1) Following a working animal by non-motorized vehicle or motorized vehicle, as it moves from location to location, at a distance of less than one hundred (100) feet;

(2) Following a working animal on foot at a distance of less than five (5) feet;

(3) Screaming at, yelling at, or taunting a working animal as it performs its duties;

(4) Causing an obstruction by means of an object or oneself that would prevent a working animal from passing freely through the street;

(5) Physical contact that is initiated, maintained, or repeated by a person after the handler, tourism officer, carriage driver or authorized representative has provided oral or written notice to such person that the contact is unwanted, or after the handler, tourism officer or carriage driver has filed an incident report against such person with a law enforcement agency.

(Code 1975, § 5-32; Ord. No. 1976-29, § 1, 9-14-76; Ord. No. 2025-110, § 18, 8-19-25)

Sec. 5-21. Injuring animals; notice required.

It shall be unlawful for any person injuring an animal by running over or into the same or coming into contact with the same with an automobile, motorcycle, bicycle, or other vehicle, to fail to notify immediately the owner of such animal, the division of animal control or the police department of the city.
(Code 1975, § 5-33; Ord. No. 1976-29, § 1, 9-14-76; Ord. No. 2025-110, § 19, 8-19-25)

Sec. 5-22. Establishment of bird sanctuary; exceptions for hunting.

The territory embraced within the corporate limits of the City of Charleston is hereby declared to be a bird sanctuary; provided however that nothing herein shall be construed to prohibit the lawful hunting of game birds, as defined by S.C. Code § 50-1-30(1), as amended, on lands within the city that are zoned to permit such use.
(Ord. No. 1996-86, § 1, 4-23-96; Ord. No. 2025-110, § 20, 8-19-25)

Sec. 5-23. Injury of certain birds or nests.

It shall be unlawful for any person to kill, maim or injure any wild or migratory bird, or to destroy, rob or molest the eggs or nests and breeding places of any birds.

Sec. 5-24. Exemptions to certain chapter provisions.

The provisions of this chapter requiring certain animals to be licensed or inoculated shall not apply to those animals owned by or in charge or care of persons who are non-residents of this city traveling through the city or temporarily sojourning herein for a period not exceeding thirty (30) days; nor to animals temporarily brought into this city for the exclusive purpose of entering the same in a show or other exhibition and entered for and kept at such show or exhibition.
(Code 1975, § 5-34; Ord. No. 1976-29, § 1, 9-14-76)

Sec. 5-25. Notice of violations; procedure; punishment.

(a) In discharging their duties under this chapter, authorized members of the division of animal control are hereby empowered to issue citations to any person if there is probable cause to believe that they have violated any of the provisions of this chapter. Citations so issued may be delivered in person to the violator by the animal control officer or any other authorized law enforcement officer, or they may be mailed to the person so charged via certified mail, if they cannot be readily found. Any notice of citation so delivered or mailed shall direct the alleged violator to appear at the municipal court on a specific day and hour named in the notice. The chief judge of the municipal court may set a bond which may be forfeited by the violator in lieu of an appearance in court.

(b) Violation of any section of this chapter or any subsection of this chapter shall be punishable as provided in section 1-16 of this Code.
(Code 1975, § 5-39; Ord. No. 1976-29, § 1, 9-14-76; Ord. No. 1978-31, § 1, 3-28-78; Ord. No. 2012-406, § 1, 11-27-12; Ord. No. 2025-110, § 21, 8-19-25)

Sec. 5-26. Confinement to motor vehicles.

(a) Unless the air-conditioning is running and provides a cool interior environment, no person shall leave or confine an animal in a motor vehicle in outside temperatures exceeding seventy-five (75) degrees, or under such conditions that could reasonably be expected by the responding officer to cause suffering, disability, or death to the animal. Partially open windows are not considered adequate ventilation.

(b) An animal removed from a motor vehicle by animal control, the police department, and/or the fire department must be immediately taken to the animal shelter facility or veterinary hospital to be evaluated by a licensed veterinarian. Authorized law enforcement members who remove an animal from a vehicle pursuant to this section must leave within the vehicle a written notice giving their name, position, and address where the animal may be redeemed.

(c) The owner of an animal removed from a motor vehicle pursuant to this section is responsible for all medical and housing expenses incurred as a result of the removal.

(d) This section does not prohibit the transportation of horses, cattle, sheep, poultry or other agricultural livestock in trailers or other vehicles designed and constructed for that purpose.
(Ord. No. 2025-110, § 22, 8-19-25)

Sec. 5-27. Animal abandonment.

No person owning or having custody or care of an animal shall abandon such animal as defined in section 5-1.
(Ord. No. 2025-110, § 23, 8-19-25)

Sec. 5-28. Poisoning an animal.

No person shall knowingly expose or attempt to expose an animal to any known poisonous or toxic substance, whether mixed with food or not, provided that it shall not be unlawful for a person to expose on their own property common rat or vermin poison for the express purpose of rat or vermin control.
(Ord. No. 2025-110, § 24, 8-19-25)

Secs. 5-29—5-35. Reserved.

ARTICLE II. DIVISION OF ANIMAL CONTROL*

Sec. 5-36. Created; animal control division.

The presence of any stray animal, as hereinafter defined, within the corporate limits of the city is hereby declared to be a public nuisance. The city council finds that such animals are a threat to the health of the community and to the safety of persons and property alike. In order to abate this problem there is hereby created within the police department a division of

*__Cross reference—__Administration generally, Ch. 2.

animal control which shall be composed of a designee appointed by the chief of police to serve as head of the division, and such other employees as the city council shall deem necessary.
(Code 1975, § 5-1; Ord. No. 1976-29, § 1, 9-14-76; Ord. No. 2025-110, § 25, 8-19-25)

Sec. 5-37. Duties.

The division of animal control shall be charged with the responsibility of:

(1) Seeing that all dogs, cats, ferrets, and horses in the city are adequately inoculated against rabies;

(2) Cooperating with the health officers of the various state governmental units and assisting in the enforcement of the laws of the state with regard to the control of animals, and especially with regard to the vaccination of dogs, cats, ferrets, and horses against rabies;

(3) Investigating all complaints with regard to animals covered by this chapter;

(4) Making such canvasses of the city and keeping such records thereof as it deems necessary for the purpose of ascertaining that all dogs, cats, ferrets, and horses are vaccinated against rabies;

(5) Enforcing within the city all of the state laws, ordinances enacted by the city, and contracts entered into by the city for the care, control and custody of animals covered by this chapter;

(6) Supervising and being in charge of a city-owned animal shelter, if any;

(7) Receiving applications for and issuing permits for livestock, poultry, and exotic animals.

(Code 1975, § 5-2; Ord. No. 1976-29, § 1, 9-14-76; Ord. No. 2025-110, § 26, 8-19-25)

Sec. 5-38. Division members as peace officers.

(a) Each person while performing their respective duties shall wear a uniform and carry identification of a size and design to be determined by the chief of police.

(b) Authorized members of the division may store at the police department or carry in division vehicles, tranquilizer guns approved for use by the chief of police and use such tranquilizer guns when necessary to enforce sections of this chapter or other applicable law for the control of wild animals, diseased animals, or animals deemed a public safety risk; provided, however, that, since the use of a tranquilizer gun may endanger an animal's life, tranquilizer guns shall be used only when the need for apprehension of wild animals, diseased animals, or animals deemed a public safety risk is sufficient to risk fatal injury to the animal.
(Code 1975, § 5-3; Ord. No. 1976-29, § 1, 9-14-76; Ord. No. 2025-110, § 27, 8-19-25)

Sec. 5-39. Interfering with animal control officer; authorized representative.

No person shall interfere with, hinder, provide false information for the purpose of avoiding criminal charges or molest the duly authorized animal control officer of the city in the performance of their duty and investigations, or any such authorized representative, or seek to release animals in the custody of the duly authorized animal control officer of the city or any authorized representative of the city, except as provided in this chapter.
(Ord. No. 2025-110, § 28, 8-19-25)

Secs. 5-40—5-50. Reserved.

ARTICLE III. IMPOUNDMENT*

Sec. 5-51. Impounding of animals.

(a) An animal control officer is authorized to capture and impound, in a place maintained or designated for that purpose by the mayor or chief of police, any animal that is stray, free roaming, at-large or as otherwise authorized by this chapter.

(b) Impounded dogs and cats not identifiable pursuant section 5-9 shall be sheltered and cared for five (5) working days, excluding the day of release (disposition) and official holidays recognized by the city.

(c) Impounded dogs and cats identifiable by a microchip or tag shall be sheltered and cared for fourteen (14) days, excluding the day of release (disposition) and official holidays recognized by the city. Notice shall be provided to the owner of such animal if available on microchip or tag. Once an owner has verbally acknowledged or provided written acknowledgement that their animal has been impounded in the shelter, they will have seventy-two (72) hours to redeem such animal or pay to surrender their animal to the shelter if the shelter is in agreement to accept the surrender.

(d) All other animals shall be sheltered and cared for in the same manner as dogs and cats, with the exception of a wild animal that is endangered or threatened or otherwise protected from destruction by law.
(Ord. No. 2009-235, § 2, 11-16-09; Ord. No. 2025-110, § 29, 8-19-25)

Sec. 5-52. Voluntary surrender by owner.

(a) Every owner who voluntarily surrenders an animal must provide photo identification and sign a form acknowledging that the surrender is voluntary and acknowledging the discretion of

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*__Editor's note—__Ord. No. 2009-235, § 2, adopted Nov. 16, 2009, repealed the former Art. III, §§ 5-51—5-56, and enacted a new Art. III as set out herein. The former Art. III pertained to similar subject matter and derived from Code 1975, §§ 5-19—5-23, 5-38; Ord. No. 1976-29, § 1, adopted Sept. 14, 1976; Ord. No. 2004-59, §§ 1—3, adopted June 15, 2004 and Ord. No. 2009-22, § 1, adopted Jan. 27, 2009.

the animal shelter to dispose of the animal. Neither the city nor the animal shelter shall be liable for the disposition of any voluntarily surrendered animal after receipt of the animal from its owner.

(b) The animal control division will not be responsible for pick up, transport, or accepting any animal that is voluntarily surrendered by its owner.
(Ord. No. 2009-235, § 2, 11-16-09; Ord. No. 2025-110, § 30, 8-19-25)

Sec. 5-53. Animals without adequate care due to neglect.

Whenever any animal is kept within any building or on any premises without food, water, or proper care and attention due to neglect by the owner, it shall be the duty of any animal control officer to enter such building or premises to take possession of and remove such animal so abandoned or neglected.
(Ord. No. 2009-235, § 2, 11-16-09; Ord. No. 2025-110, § 31, 8-19-25)

Sec. 5-54. Animals without adequate care due to incapacity or involuntary absence of owner.

Whenever the division or authorized representative finds that any animal is or will be without proper care because of injury, illness, incarceration or other involuntary absence of the person responsible for the care of such animal, the division or authorized representative may impound such animal until reclaimed by its owner. The owner must pay the applicable fees in the same manner as any other owner would redeem an impounded animal prior to the release of such animal by the animal shelter. Any animal which has been impounded and not reclaimed following fourteen (14) days, or any longer than seventy-two (72) hours after the condition which caused the impoundment ceases to exist, may be disposed of by the division or authorized representative pursuant to section 5-60.
(Ord. No. 2009-235, § 2, 11-16-09; Ord. No. 2025-110, § 32, 8-19-25)

Sec. 5-55. Notice to owner of impoundment.

Upon impounding an animal that is microchipped, tagged, or otherwise identifiable pursuant to section 5-9, the animal shelter shall make a good faith effort to promptly notify the owner by telephone, mail or in person. Such notice shall advise the owner of the period for impoundment. Animal control officers, at their discretion, may make a reasonable inquiry in the immediate vicinity in which a stray is picked up in order to locate the owner, if any, of a stray animal.
(Ord. No. 2009-235, § 2, 11-16-09; Ord. No. 2025-110, § 33, 8-19-25)

Sec. 5-56. Redemption by owner.

(a) Except as otherwise provided in this chapter, the owner of any impounded animal may redeem the animal, upon payment to the city or its authorized agent of the following:

(1) An impound fee for each animal redeemed;

(2) A boarding fee per animal, per day;

(3) All outstanding fines, except for any fine of which a timely appeal is pending;

(4) All veterinary charges, drug and other medical expenses;

(5) The cost of sterilization, as applicable;

(6) The cost of rabies vaccinations, if applicable; and

(7) Any other necessary fees reasonably incurred.

At the request of the owner, the animal shelter shall provide an itemized list of charges.

(b) Any animal that is impounded more than three (3) times within a year shall not be allowed to remain in the city and a judge may be petitioned for permanent custody to be given to the division to do with such animal as the division deems appropriate.
(Ord. No. 2009-235, § 2, 11-16-09; Ord. No. 2025-110, § 34, 8-19-25)

Sec. 5-57. Sterilization.

(a) *Sterilization; intact redemption fee.* No impounded fertile dog or cat may be redeemed intact without first having been surgically sterilized and a fee paid therefor, which fee shall not exceed the then existing sterilization fee charged by the shelter, unless:

(1) It is the first time the dog or cat has been impounded and the owner of the dog or cat pays a redemption fee of two hundred dollars ($200.00) to redeem the dog or cat intact. If an intact dog or cat is impounded for a second time in a calendar year, the dog or cat may not be redeemed intact unless the owner pays a redemption fee of three hundred dollars ($300.00). If an intact dog or cat is impounded for a third time in a calendar year, it may not be redeemed intact unless the owner pays a redemption fee of five hundred dollars ($500.00). If an intact dog or cat is impounded for a fourth time in a calendar year, it may not be redeemed without first having been surgically sterilized and a fee paid therefor, which fee shall not exceed the then existing sterilization fee charged by the shelter; or

(2) The owner of the dog or cat, or person entitled to custody thereof, can furnish a statement by a licensed veterinarian that for medical reasons, the spay or neuter procedure is not advisable at this time.

(b) The above provisions shall only apply to animals whose owner's residence is within the City of Charleston. Sterilization under this section shall not take place sooner than after the fifth working day following the animal's impoundment, or when the owner consents in writing to the sterilization, whichever is sooner.

(Ord. No. 2009-235, § 2, 11-16-09; Ord. No. 2025-110, § 35, 8-19-25)

Sec. 5-58. Proper identification and address verification.

In order to redeem or adopt an animal, a person must be at least eighteen (18) years of age, provide photo identification and a recent utility bill or other proof of legitimate residency. The

animal shelter may require verification of the address prior to adoption or redemption. If the person attempting to redeem or adopt an animal is using the address of another person, that person must cosign and consent to housing the animal at that address.
(Ord. No. 2009-235, § 2, 11-16-09)

Sec. 5-59. Reserved.

Editor's note—Ord. No. 2025-110, § 36, adopted Aug. 19, 2025, repealed § 5-59, which pertained to conditions preventing redemption or adoption and derived from Ord. No. 2009-235, § 2, adopted Nov. 16, 2009.

Sec. 5-60. Disposition of unredeemed and surrendered animals.

The animal shelter at its discretion, may adopt, place for adoption, medically treat and/or place with an appropriate facility or agency equipped for care of such animals, or humanely dispose of any impounded animal that is not redeemed by the owner, if any, after the time period provided in section 5-51, and any animal that is voluntarily surrendered, after the time period provided in section 5-51. No unredeemed animal or voluntarily surrendered animal may be disposed of by selling or giving such animal to any person or entity for the purpose of using the animal for experimentation, for medical or other research, or for food or other commercial processing. No member of the city's animal control division shall directly, or indirectly, impound an animal for the purpose of personally adopting said animal.
(Ord. No. 2009-235, § 2, 11-16-09; Ord. No. 2025-110, § 37, 8-19-25)

Sec. 5-61. Disposition of free roaming cats.

(a) *Findings of fact.*

(1) City council finds that free roaming cats may be in violation of law and constitute a public safety and health threat to the citizens of the City of Charleston; and

(2) City council finds that intact free roaming cats contribute to the problem of strays and animal overpopulation and

the city seeks to reduce the free roaming cat population by instituting a program that will reduce free roaming cat populations in the long term; and

(3) City council finds that it is the goal of city council for this program to ensure that yearly vaccinations of the free roaming cats will occur when possible; and

(4) City council finds that it is in the best interests of the city and its citizens to amend the Code of Ordinances for the city to add a section establishing a free roaming cat program.

(b) *Free roaming cats.*

(1) Free roaming cats shall be allowed in the city as long as all of the following requirements are met:

a. Cat must be assessed by a veterinarian and deemed healthy.

b. Cat must be spayed or neutered.

c. Cat must be microchipped

d. Cat must be vaccinated for rabies, feline viral rhinotracheitis, calicivirus, and panleukopenia.

e. Cat must be ear tipped.

(2) Free roaming cats shall only be allowed as long as they do not create a safety concern, such that, for the purposes of this program only, a safety concern shall mean a feral cat that attacks unprovoked, tries to attack, scratches, or bites a human or domestic animal. When a feral cat becomes a safety concern, the animal control division shall attempt, for five (5) days, to re-trap the cat to be brought to the shelter for humane euthanasia. After such time, if the cat has not been trapped, the division must move on to other areas awaiting cat trapping.

(3) A free roaming cat shall be returned to the area where it was trapped, unless a request from the property owner or the caretaker of the property where the cat is trapped, requests that the cat be relocated to a location other

than where it was trapped. In such instances, then the cat will be released within one hundred fifty (150) yards of the locations where the cat was trapped.

(4) The city shall have no liability for the disposition of any cat entered into a free roaming cat program.

(5) The city may review any free roaming cat program two (2) years after its inception to assess its functionality and success.

(Ord. No. 2009-235, § 2, 11-16-09; Ord. No. 2025-110, § 38, 8-19-25)

Sec. 5-62. Records of impounded animals.

The animal shelter shall keep a record of each animal impounded by it, the date of receipt of such animal, the date and manner of its disposition, and if redeemed, reclaimed, or adopted, the name of the person by whom redeemed, reclaimed, transferred, or adopted, the address of such person and the amounts of all fees received or collected for or because of the impounding, or reclaiming thereof, upon the redemption or adoption of any such animal.

(Ord. No. 2009-235, § 2, 11-16-09; Ord. No. 2025-110, § 39, 8-19-25)

Sec. 5-63. Severability.

If, for any reason, any part of this article is invalidated by a court of competent jurisdiction, the remaining portions of this article shall remain in full force and effect.

(Ord. No. 2009-235, § 2, 11-16-09)

Secs. 5-64—5-70. Reserved.

ARTICLE IV. REGISTRIES*

Sec. 5-71. Animal rescue registration.

Any person who operates, facilitates, or provides for an animal rescue is subject to registration with the division of

*__Editor's note—__Ord. No. 2025-110, § 40, adopted Aug. 19, 2025, changed the title of Art. IV from "Licenses and Tags" to read as herein set out.

animal control. For the purposes of this section, animal rescue will mean any person or persons who organizes the saving, rehabilitating, fostering, or the adoption of any animal commonly associated with being a domestic pet, reptiles, or livestock.

(1) Upon filing with the division, the division will inspect the facility, residence, or property at which the animals are kept and;

(2) The animal rescue shall be subject to random, unannounced inspections by the division to ensure compliance with state and municipal animal welfare laws and;

(3) The animal rescue will maintain the names, phone numbers, and addresses of all fosters to whom they provide an animal for purposes of fostering and;

(4) The animal rescue will be required to keep record of all animals they intake into their rescue to include the animal's physical description, originating location or transferring facility, and disposition of said animal and;

(5) Animal rescues will be subject to City Code section 5-17 regarding keeping of stray animals and;

Any person or persons found in violation of any of the above provisions for animal rescues are subject to penalties set forth by section 1-16 of the City Code of Ordinances.
(Ord. No. 2025-110, § 41, 8-19-25)

Editor's note—Ord. No. 2025-110, § 41, adopted Aug. 19, 2025, repealed the former § 5-71, and enacted a new § 5-71 as set out herein. The former section pertained to tags and licenses and derived from Code 1975, § 5-25; Ord. No. 1976-29, § 1, adopted Sept. 14, 1976; and Ord. No. 1988-88, § 1, adopted Sept. 13, 1988.

Sec. 5-72. Replacing tags.

If the owner of any animal required to have a license tag has paid for and procured the license tax tag and/or the rabies vaccination tag and the animal has been taken to the animal shelter by reason of the loss of either of such tags, the owner of such animal shall have the privilege of identifying his animal and proving the payment for and procurement of such tags prior to the date such animal was taken up and, in that event, such

animal shall be returned to the rightful owner upon the payment of the redemption fee as the cost of taking such animals to the shelter.
(Code 1975, § 5-26; Ord. No. 1976-29, § 1, 9-14-76)

Secs. 5-73—5-85. Reserved.

Editor's note—Ord. No. 2025-110, §§ 42, 43, adopted Aug. 19, 2025, repealed §§ 5-73 and 5-74 which pertained to issuance of license to repeat violators restricted; and licenses; right to sue for recovery or penalty; and derived from Code 1975, §§ 5-30, 5-37; and Ord. No. 1976-29, § 1, adopted Sept. 14, 1976.

ARTICLE V. RABIES CONTROL

Sec. 5-86. Duty of owner or custodian and procedure in bite cases; penalty.

(a) Any dogs, cats, ferrets, or horses that show symptoms of rabies, or which have bitten anyone, shall be quarantined immediately in accordance for the period set forth in S.C. Code § 47-5-100 by its owners, or by the person having charge of the animal, or by the person sheltering, feeding, harboring, or taking care of such animal, who shall immediately notify the health department (HD).

(b) If rabies does not develop within such period, then the animal shall be released from quarantine, but if rabies does develop, the animal shall be destroyed by the division or its authorized representative in a humane manner and under the auspices of a veterinarian if an owner cannot be located to perform the humane euthanasia through a licensed veterinarian of their choice.
(Code 1975, § 5-28; Ord. No. 1976-29, § 1, 9-14-76; Ord. No. 2025-110, § 44, 8-19-25)

Sec. 5-87. Inoculation against rabies virus.

It shall be unlawful for any person to own or possess a dog, cat, ferret, or horse over the age of four (4) months that is not inoculated against rabies within the city.
(Ord. No. 2025-110, § 45, 8-19-25)

Secs. 5-88—5-100. Reserved.

ARTICLE VI. WILD ANIMALS

Sec. 5-101. Permit for keeping—Required.

No person shall have, keep or maintain any wild, exotic, or non-domestic animal without first applying to and receiving from the division a permit to do so; provided, however, that, the keeping or maintenance of such animals shall conform to any applicable zoning regulations and state law.
(Code 1975, § 5-35; Ord. No. 1976-29, § 1, 9-14-76; Ord. No. 2025-110, § 46, 8-19-25)

Cross reference—Licenses, permits and miscellaneous business regulations, Ch. 17.

Sec. 5-102. Same—Authority of division.

(a) The division is hereby invested with the authority to issue permits to any person for the keeping or maintaining of any wild, exotic, or non-domestic animal when, in the opinion of the division, any such animal may be kept or maintained without menacing the safety of any person or property; provided, however, that, the division may require any such animal to be properly caged or secured or may make additional rules or regulations regulating the keeping or maintaining of any such animal, and may revoke any such permit for any violation of any of the provisions of this chapter or of any of the rules and regulations of the division, or when, in the opinion of the division, the safety of any person or property is menaced by the keeping of any such animal.

(b) The division shall also have authority to issue permits for the keeping or maintaining, on a temporary basis, of all types of wild animals in connection with a circus, amusement enterprise or animal exhibition when located in a zone wherein such uses are permitted.
(Code 1975, § 5-36; Ord. No. 1976-29, § 1, 9-14-76; Ord. No. 2025-110, § 47, 8-19-25)

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Chapter 6

AUCTIONS AND AUCTIONEERS*

Art. I. In General, §§ 6-1—6-15
Art. II. Closing Out Auction Sales, §§ 6-16—6-30

ARTICLE I. IN GENERAL

Sec. 6-1. Hours of sale restricted.

All sales of goods at public auction in the city, by an auctioneer, shall be made in the daytime, between sunrise and sunset.
(Code 1975, § 7-1)

Sec. 6-2. Puffing, misrepresenting or misleading schemes prohibited.

It shall be unlawful for any auctioneer or person licensed to hold an auction to engage in the practice of having false bids presented to the auctioneer commonly known as "puffing" or to use other devices and schemes to mislead the bidders at the auction.
(Code 1975, § 7-5)

Sec. 6-3. Purpose of chapter.

This chapter is enacted for the purpose of raising revenue and for the regulation and control of certain kinds of auction sales of merchandise.
(Code 1975, § 7-9)

Secs. 6-4—6-15. Reserved.

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*Cross reference—Licenses, permits and miscellaneous business regulations, Ch. 17.

State law references—Authority of municipalities to regulate auction sales of personalty, S.C. Code 1976, § 39-1-60; local licensing of auctioneers prohibited, S.C. Code 1976, § 40-6-190.

ARTICLE II. CLOSING OUT AUCTION SALES

Sec. 6-16. License—Required; filing of inventory.

It shall be unlawful for any person to advertise or conduct any sale of goods, wares or merchandise at auction that is represented as a bankrupt, insolvent, assignees, adjusters, trustees, executors, administrators, receivers, wholesalers, jobbers, manufacturers, closing out, liquidation, closing stock, fire or water damage auction, going out of business auction or dissolution of partnership auction or pawnbrokers pledge auction, or any other auction which is by representation or advertisement intended to lead the public to believe that the person conducting such auction is selling out or closing out the goods, wares or merchandise of any business for less than the current or going retail price thereof in the city, without first filing with the business license inspector the inventory provided for in this article and obtaining from him a license to do so, to be known as a "closing out auction sale license."
(Code 1975, § 7-10)

Sec. 6-17. Same—Fee schedule.

(a) The fee for a license, as required in section 6-16, shall be as established by the city council from time to time.

(b) The license fee referred to in paragraph (a) of this section shall be paid to the finance division.
(Code 1975, §§ 7-12, 7-13)

Sec. 6-18. Same—Number restricted.

Only one license, as required in section 6-16, shall be issued to any one person within a twelve (12) month period.
(Code 1975, § 7-15)

Sec. 6-19. Same—Display.

The license required in section 6-16 shall be on display at all times at the place designated in the application for such license.
(Code 1975, § 7-16)

Sec. 6-20. Same—Not transferable.

The license, as required in section 6-16, issued under the provisions of this article shall not authorize any person except the designated licensee to engage in business under such license. Such license shall not be transferable from the person to whom issued to any other person.
(Code 1975, § 7-22)

Sec. 6-21. Same—Term.

No license, as required in section 6-16, shall be issued for more than thirty (30) days.
(Code 1975, § 7-14)

Sec. 6-22. Inventory; contents and form.

The inventory required by section 6-16 shall contain a complete and accurate list of the stock of goods, wares and merchandise to be sold at any auction sale for which a license is hereby required, together with the wholesale price thereof, which inventory or list shall be signed by the person seeking the license, or by a resident agent thereunto authorized, and by affidavit at the foot thereof. He or such agent shall swear or affirm that the information therein given is full and true, and known by him or such agent to be so.
(Code 1975, § 7-11)

Sec. 6-23. Only goods in regular stock of licensee may be sold.

It shall be unlawful to auction, offer or expose for sale at any action for which a license is required by this article, or list on the inventory referred to in section 6-16, any goods, wares or merchandise which are not the regular stock of the person licensed to carry on such auction under this article.
(Code 1975, § 7-17)

Sec. 6-24. Replenishment of stock.

It shall be unlawful to make any replenishments or additions to the regular stock, as referred to in section 6-23, for the purpose of sale in question or during the time thereof.
(Code 1975, § 7-18)

Sec. 6-25. Accurate sales records required.

It shall be unlawful for any person to fail, neglect or refuse to keep accurate records of the articles or things sold at a sale held pursuant to a license as required in section 6-16, from which records the business license inspector or his duly authorized agent may ascertain the kind and quantity or number sold.
(Code 1975, § 7-19)

Sec. 6-26. Verification of inventory or items sold during sale.

The business license inspector or his agent may, in his discretion, verify the details of an inventory filed pursuant to section 6-16, or he or his agent may make a check and verify the items of merchandise sold during the sale, held pursuant to a license as required in such section 6-16.
(Code 1975, § 7-20)

Sec. 6-27. Licensee to give information on stock and sales to business license inspector.

It shall be unlawful for any person to whom a license, as required in section 6-16, has been issued to fail or refuse to give the business license inspector or any person designated by him for that purpose all the facts connected with the stock on hand or the proper information of goods sold, or any other information that he may require in order to make a thorough investigation of all phases connected with the sale.
(Code 1975, § 7-21)

Sec. 6-28. Exemptions from article.

This article shall not apply to auction sales which do not last more than five (5) days or to auction sales made in conformity with the orders or decrees of courts of competent jurisdiction, or sales made by railroad or express companies, nor shall this article apply to trustees in bankruptcy, executors, administrators, receivers acting under orders of the court, or public officers acting under judicial process.
(Code 1975, § 7-23)

Sec. 6-29. Article provisions to be cumulative.

The remedies and provisions of this article shall be cumulative and in addition to all other remedies and provisions of this Code. (Code 1975, § 7-24)

Sec. 6-30. Compliance with food provisions of Code.

Nothing in this article contained shall be construed to relieve any person from complying with the provisions of this Code or of any ordinance of the city relating to the manufacture, sale, distribution or handling of food, food products or merchandise. (Code 1975, § 7-25)

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Chapter 7

BUILDINGS AND BUILDING REGULATIONS*

Article I. In General

Sec. 7-1. Fire district designated.
Sec. 7-1.1. Building restrictions within the fire district.
Sec. 7-2. Appeals from officials responsible for enforcement of technical codes to be referred to building code board of appeals.
Sec. 7-3. Chief building official; appointment; duties.
Sec. 7-4. Administrative relationship to department of public service.
Sec. 7-5. Inspection of buildings.
Sec. 7-6. Who may enforce building laws.
Sec. 7-7. Notification of chief building official prior to construction; submission of plans and specifications.
Sec. 7-8. Building site to be on accepted street with drain or sewer; exception.
Sec. 7-9. Grading requirements.
Sec. 7-10. Site clearing permit required.
Sec. 7-11. South Carolina Contractors and Residential Builders Licenses.
Sec. 7-12. Building contractor license review procedures.
Sec. 7-13. General contractor license identification decal display requirements.
Sec. 7-14. Livability review board; hearing.
Secs. 7-15—7-25. Reserved.

Article II. South Carolina Building Code

Sec. 7-26. South Carolina Residential and Building Code—Adopted.
Sec. 7-27. Amendments.
Secs. 7-28—7-45. Reserved.

Article III. Building Utility Services Interrupted

Sec. 7-46. Building utility services interrupted.
Secs. 7-47—7-70. Reserved.

Article IV. Housing

Division 1. Generally

Sec. 7-71. Legislative findings; declaration of intent to repair, close or demolish unfit dwellings.

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*__Cross references—__Fire prevention and protection, Ch. 13; planning, Ch. 23; streets and sidewalks, Ch. 28; utilities, Ch. 30.

Sec. 7-72. Definitions.
Sec. 7-73. Construction of article.
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ARTICLE I. IN GENERAL*

Sec. 7-1. Fire district designated.

The fire district of the city shall consist of the business and industrial districts and delineated on the zoning map of the city and as the zoning map may hereafter be amended by the ordinances of the city.
(Code 1975, § 10-1)

State law reference—Fire limits and construction therein, S.C. Code 1976, § 5-25-20.

Sec. 7-1.1. Building restrictions within the fire district.

7.1.1 Types of construction permitted: Within the fire district, every building hereafter erected shall be either Type I, II, III, or IV, except as permitted in section 7.1.4.

7.1.2 Other specific requirements:

7.1.2.1 Exterior walls of buildings located in the fire district shall comply with the requirements in Table 601 of the International Building Code adopted in section 7-26 of the Code of the City of Charleston, except as required in section 7.1.2.6.

7.1.2.2 Every Group H occupancy shall be prohibited from location within the fire district.

7.1.2.3 Every building shall be fire protected throughout as specified for the various types of construction in Chapter 6 of the International Building Code.

7.1.2.4 Roof covering in the district shall conform to the requirements of Class A or B roof covering as defined in Section 1505 of the International Building Code.

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*__Editor's note—__Ord. No. 2001-54, § 1—4, adopted May 29, 2001, substantially amended and renumbered the provisions of Art. I. Section 4 of Ord. No. 2001-54 repealed former section 7-4 in its entirety which pertained to the plumbing inspector. Section 5 of this ordinance renumbered former sections 7-5—7-15 as 745—7-14.

7.1.2.5 Walls, floors, roofs and their supporting structural members shall be a minimum of 1-hour fire resistance rated construction.

Exceptions:

1. Buildings of type IV construction.
2. Buildings equipped throughout with an automatic sprinkler system in accordance with section 903.3.1.1 of the International Building Code.
3. Automobile parking structures.
4. Buildings surrounded on all sides by a permanently open space of not less than 30 feet.
5. Partitions complying with Section 603.1(8) of the International Building Code.

7.1.2.6 Exterior load bearing walls of Type II buildings shall have a fire resistance rating of two (2) hours or more where such walls are located within thirty (30) feet (9144 mm) of a common property line or an assumed property line. Exterior non-load bearing walls of Type II buildings located within thirty (30) feet (9144mm) of a common property line or assumed property line shall have fire resistance ratings as required by Table 601 of the Inter-

national Building Code, but not less than 1 hour. Exterior walls located more than thirty (30) feet (9144mm) from a common property line or an assumed property line shall comply with Table 601 of the International Building Code.

Exception: In the case of one story buildings that are 2,000 square feet or less in area, exterior walls located more than 15 feet from a common property line or an assumed property line need only comply with Table 601 of the International Building Code.

7.1.2.7 Architectural trim on buildings located in the fire district shall be constructed of approved noncombustible materials or fire retardant treated wood.

7.1.2.8 Permanent canopies may extend over adjacent open spaces provided:

1. The canopy and its supports shall be of noncombustible material, fire retardant treated wood, Type IV construction, or of one (1) hour fire resistant rated construction.

   Exception:

   1. Any textile covering for the canopy shall be flame resistant as determined in accordance with NFPA 701 after both accelerated water leaching and accelerating weathering.
   2. Any canopy covering, other than textiles, shall have flame spread Index not greater than 25 when tested in accordance with ASTM E 84 in the form intended for use.
   3. The canopy shall have at least one (1) long side open.
   4. The maximum horizontal width of the canopy shall not exceed fifteen (15') feet (4572mm).
   5. The fire resistance of exterior walls shall not be reduced.

7.1.2.9 Structures, except aerial supports twelve (12') feet (3658mm) high, or less, flag poles, water tanks and cooling towers, placed above the roof of any building

within the fire district shall be of noncombustible material and shall be supported by construction of noncombustible material.

7.1.2.10 The use of plastics complying with Section 2611 of the International Building Code for signs is permitted provided the structure of the sign in which the plastic is mounted or installed is noncombustible.

7.1.2.11 Exterior plastic veneer is not permitted in the fire district.

7.1.3 Changes to buildings:

7.1.3.1 Existing buildings within the fire district: An existing building shall not hereafter be increased in height or area unless it is of a type of construction permitted for new buildings within the fire district or is altered to comply with the requirements of such type of construction. Nor shall any existing building be hereafter extended on any side, nor square footage or floors added within the existing building unless such modifications are of a type of construction permitted for new buildings within the fire district.

7.1.3.2 Other Alterations. Nothing in 7.1.3.1 shall prohibit other alterations within the fire district provided there is no change of occupancy that is otherwise prohibited and provided the fire hazard is not increased by such alteration.

7.1.3.3 Moving Buildings. Buildings shall not hereafter be moved into the fire district or to another lot in the fire district unless the building is of a type of construction permitted in the fire district.

7.1.4 Buildings located partially in the Fire District: Any building located partially in the fire district shall be of a type of construction required for the fire district, unless the major portion of such building lies outside of the fire district and no part is more than ten (10') feet (3048mm) inside the boundaries of the fire district.

7.1.5 Exceptions to restrictions in the Fire District: The preceding provisions of this section shall not apply in the following instances:

1. Temporary buildings used in connection with duly authorized construction.
2. A private garage used exclusively as such, not more than one (1) story in height, nor more than six hundred fifty (650 sq. ft.) square feet ($60m^2$) in area, located on the same lot with a dwelling.
3. Fences not over eight (8) feet (2438mm) high.
4. Coal tipples, material bins, trestles constructed of Type IV construction.
5. Water tanks and cooling towers conforming to 1509.3 and 1509.4 of the International Building Code.
6. Greenhouses less than fifteen (15) feet (4572mm) high.
7. Porches on dwellings not over one (1) story in height, and not over ten (10) feet (3048mm) wide from the face of the building, provided such porch does not come within five (5) feet (1524mm) of any property line.
8. Sheds open on a long side not over fifteen (15) feet (4572mm) high and five hundred (500) square feet ($46m^2$) in area.
9. One- and two-family dwellings when of a type of construction not permitted in the fire district may be extended twenty-five (25%) percent of the floor area existing at the time of inclusion in the fire district by any type of construction permitted by this Code.
10. Wood decks less than six hundred (600) square feet ($56m^2$) when constructed of two (2″) inch nominal wood, pressure treated for exterior use.
11. Wood veneers on exterior walls conforming to 1405.4 of the International Building Code.
12. Exterior plastic veneer complying with Section 2605.2 of the International Building Code where installed on exterior walls required to have a fire resistance rating not less

than one (1) hour, provided the exterior plastic veneer does not exhibit sustained flaming as defined in NFPA 268.

7.1.6 Referenced standards:

ASTM E 84 Test Methods for Surface Burning Characteristics of Building Materials.

NFPA 268 Standard Test Method for Determining Ignitability of Exterior Wall Assemblies Using a Radiant Heat Energy Source.

NFPA 701 Methods of Fire Test for Flame-resistant Textiles and Films.

The above referenced standards are from latest editions of the following recognized codes within the City of Charleston as adopted and amended from time to time by the South Carolina Building Codes Council: International Building Code, International Fire Code, International Plumbing Code, International Mechanical Code, International Energy Conservation Code, and International Fuel Gas Code, International Residential Code, as published by the International Code Council, the National Electrical Code, as published by the National Fire Protection Association, and the Building Energy Efficiency Standards Act as adopted by statute.
(Ord. No. 1994-420, § 1, 12-6-94; Ord. No. 1999-186, § 1, 12-21-99; Ord. No. 2001-54, § 1, 5-29-01; Ord. No. 2015-126, § 1, 9-22-15)

Sec. 7-2. Appeals from officials responsible for enforcement of technical codes to be referred to building code board of appeals.

Any appeal from the official responsible for enforcement of a technical code adopted by the city shall be referred to the building board of adjustment and appeals provided for in the International Building Code adopted by the city.
(Ord. No. 2001-54, § 2, 5-29-01)

Sec. 7-3. Chief building official; appointment; duties.

There shall be a chief building official. The chief building official also shall serve as public safety and housing officer, as provided in section 7-92.
(Code 1975, § 10-2; Ord. No. 1975-5, § 2, 3-25-75)

Sec. 7-4. Administrative relationship to department of public service.

The chief building official and his assistants and employees shall function as the inspections division of the department of public service.
(Code 1975, § 10-4; Ord. No. 1975-5, § 2, 3-25-75; Ord. No. 2001-54, § 4, 5-29-01)

Cross reference—Department of public service, § 2-231 et seq.

Sec. 7-5. Inspection of buildings.

The chief building official shall personally inspect or cause to be inspected all buildings erected throughout the city, and also all buildings now standing in the city which to him appear to be in a dangerous, dilapidated, unhealthy or unsanitary condition.
(Code 1975, § 10-5; Ord. No. 2001-54, § 4, 5-29-01)

Sec. 7-6. Who may enforce building laws.

The chief building official shall have the jurisdiction in the enforcement of the building laws of the city.
(Code 1975, § 10-6; Ord. No. 1989-61, § 11, 7-18-89; Ord. No. 2001-54, § 4, 5-29-01)

Sec. 7-7. Notification of chief building official prior to construction; submission of plans and specifications.

Before the erection, construction or alteration of any building or part of a building in the city is commenced, the owner, architect or builder shall notify the chief building official, and shall submit to him a statement in writing of the specifications

and plans of such erection, construction or alteration or otherwise, and a record of such statement shall be kept in the office of the chief building official.
(Code 1975, § 10-7; Ord. No. 2001-54, § 4, 5-29-01)

Sec. 7-8. Building site to be on accepted street with drain or sewer; exception.

No lot shall be used for building purposes unless the street on which it is located has been accepted as a public street and provided with a drain or sewer or both. The chief building official shall withhold a permit for any construction contrary to this section. However, a permit may be granted for the construction of buildings on accepted streets where no drains or sewers have yet been laid, if the plans of the disposal of water and sewage are approved by both the Engineering Division and the health department.
(Code 1975, § 10-8; Ord. No. 2001-54, § 4, 5-29-01; Ord. No. 2025-025, § 1, 2-25-25)

Sec. 7-9. Grading requirements.

No lot shall be used for building purposes in the city until the city engineer has determined that such lot is filled above the level of pavement and graded so as to be effectively drained.
(Code 1975, § 10-9; Ord. No. 2001-54, § 4, 5-29-01)

Sec. 7-10. Site clearing permit required.

No land within the city shall be cleared of vegetation unless a site clearing permit has been issued by the chief building official. For purposes of this section, site clearing shall mean any activity which alters the contour of land or any trees or shrubs located thereon, excluding, however, routine maintenance of trees or shrubs and routine sodding. Site clearing shall be accomplished in compliance with Article 16 of the zoning ordinance; tree protection and landscaping; and such other regulation as city council may, from time to time, enact.

Utility companies, electric suppliers and governmental agencies constructing or maintaining easements for water, sewer, electricity, gas, drainage, telephone or television transmission or

rights-of-way shall be exempt from the provisions of this section if the applicable company, supplier or agency has executed an agreement with the city which, at a minimum:

1. Recognizes the need to minimize the cutting or trimming of grand trees which do not frustrate or substantially interfere with the intended purpose of construction or maintenance;

(2) Establishes, to the extent feasible, design guidelines for construction and maintenance which identifies the saving of grand trees as a factor to be considered in the design process;

(3) Allows for a consultation process with the city prior to the commencement of major construction or maintenance or the removal of grand trees; and

(4) Provides that a breach of such agreement constitutes a violation of this section and a loss of exemption from the requirements of this section.

(Ord. No. 1988-125, § 1, 11-22-88; Ord. No. 2001-54, § 4, 5-29-01)

Cross references—Building permits, § 7-171 et seq.; trees and shrubs, § 22-61 et seq.

Sec. 7-11. South Carolina Contractors and Residential Builders Licenses.

No person shall engage in the business of construction, reconstruction, alteration, and repairs in or to any building or structure in the city, on or after January 1, 1991, unless he shall have first secured a license as required by South Carolina and provided proof of such licensure to the city. Nothing herein shall preclude an owner of residential property from improving the property pursuant to applicable state law.

(Ord. No. 1990-170, § 1, 12-18-90; Ord. No. 2001-54, § 4, 5-29-01; Ord. No. 2015-126, § 2, 9-22-15; Ord. No. 2022-162, § 1, 11-8-22)

Sec. 7-12. Building contractor license review procedures.

Any licensed building contractor who violates any of the rules, regulations or ordinances relating to building contracting may be referred to the Department of Labor, Licensing and Regulation for action.
(Ord. No. 1991-93, § 1, 9-10-91; Ord. No. 2001-54, § 4, 5-29-01; Ord. No. 2015-126, § 3, 9-22-15)

Sec. 7-13. General contractor license identification decal display requirements.

General contractor license holders shall provide proof of their registry with the city when requested.
(Ord. No. 1991-157, § 1, 12-10-91; Ord. No. 2001-54, § 4, 5-29-01; Ord. No. 2015-126, § 4, 9-22-15)

Sec. 7-14. Livability review board; hearing.

(a) *Livability review board.*

(1) There is hereby established a livability review board that shall consist of five (5) members and two (2) alternates. Such board shall be composed of two (2) city staff members from the city's preservation and housing divisions, respectively, who are appointed by the mayor and three (3) city citizens appointed by the mayor, which shall include: one (1) general contractor; one (1) attorney engaged in practices of probate, estate planning, and/or real property transactions; and one (1) layperson who is a member of the City of Charleston Neighborhood Council. The chairperson shall be appointed by the mayor. The alternates shall be staff members from the city's preservation, housing, and/or building inspections divisions.

(2) The members of the livability review board shall be appointed for a term of one (1) year.

(3) Three (3) members of the board shall constitute a quorum. All recommendations of the board shall require a majority vote. No board member shall act in a case in which said board member has a personal interest.

(4) The board shall meet at regular intervals to be determined by the chairperson, but no less than once per month.

(5) In matters concerning violations under chapter 7 of article IV, chapter 14 of article IV, and chapter 21 of article III, the board shall function as an advisory board to the director of livability and tourism, building official, preservation official, the director of planning preservation and economic innovation, and any of their respective designees (collectively, the "referring officials").

(6) The board shall function as an advisory board to the municipal court for such pending uniform ordinance summons as the municipal court may refer to the board for abatement plan recommendations. The municipal court shall retain jurisdiction of such referred matters for final adjudication.

(7) The livability review board shall, in every case referred by the municipal court or referring official, reach a decision without unreasonable or unnecessary delay. If a decision of the livability review board is a recommendation of a dismissal or amendment of the uniform ordinance summons, as applicable, the referring official shall be bound by such decision. The municipal court shall not be bound by such decision.

(8) The board shall identify issues and make recommendations in writing to the referring officials or municipal court, as applicable, within ten (10) days after the conclusion of its last meeting.

(b) *Hearings.*

(1) A hearing on matters referred to the livability review board by the municipal court or referring officials shall be held as soon as practical but in any event no later than thirty (30) calendar days following referral to the board.

(2) The board shall advise the property owner and/or occupant of the referral, and at least ten (10) days' notice of the time and location of the hearing.

(3) The board shall further advise the property owner and/or occupant of the right to present evidence, and the right to be represented by counsel.

(c) *Voluntary appearances.*

(1) Individuals may voluntarily appear before the livability review board without need for a referral from the municipal court or referring officials.

(2) Staff within the community services division and planning, permitting, and engineering division are authorized to contact individuals to who may be interested in voluntary appearances before the livability review board.

(3) Voluntary appearances may be scheduled with matters referred to the livability review board or separately based upon availability of board members. Any recommendations of the board for volunteer appearances shall be for informational purposes only and shall not be binding.

(Ord. No. 1996-183, § 1, 9-24-96; Ord. No. 1997-88, § 1, 3-12-97; Ord. No. 2001-54, § 4, 5-29-01; Ord. No. 2023-048, § 1, 3-14-23; Ord. No. 2024-178, § 1, 11-26-24)

Secs. 7-15—7-25. Reserved.

ARTICLE II. SOUTH CAROLINA BUILDING CODE*

Sec. 7-26. South Carolina Residential and Building Code—Adopted.

(a) The latest edition of the South Carolina Residential Code and Building Code, as adopted by the state and published by the International Code Council, Inc., is hereby adopted so that hereafter all building construction, reconstruction, alteration and repairs; including all building materials, electrical systems, gas systems, mechanical systems, plumbing systems and appliances used in connection with building shall conform thereto.

*__Cross reference—__Fire prevention code, § 13-76 et seq.

(b) The latest edition of the following permissive codes published by the International Code Council, Inc. is hereby adopted pursuant to S.C. Code § 6-9-60:

(1) International Existing Building Code.

(2) International Swimming Pool and Spa Code.

(Code 1975, § 10-18; Ord. No. 1977-2, § 1, 1-11-77; Ord. No. 1980-73, § 1, 6-24-80; Ord. No. 1984-55, § 2, 6-12-84; Ord. No. 1986-97, § 1, 9-9-86; Ord. No. 1989-61, § 1, 7-18-89; Ord. No. 1991-93, § 2, 9-10-91; Ord. No. 1994-420, § 2, 12-6-94; Ord. No. 1999-186, § 2, 12-21-99; Ord. No. 2001-54, § 5, 5-29-01; Ord. No. 2022-162, § 2, 11-8-22; Ord. No. 2023-098, § 1, 5-23-23)

Sec. 7-27. Amendments.

The codes adopted by section 7-26 of this article are hereby amended as follows:

South Carolina Building Code Section 101.1. Insert: *City of Charleston.*

South Carolina Building Code Section 103.1: Insert: *Building Inspections Division.*

South Carolina Building Code Section 1612.3. Insert: *Charleston County.* Insert: *January 29, 2021.* and; Insert: *Berkeley County.* Insert: *December 17, 2018.*

South Carolina Residential Code Section R101.1. Insert: *City of Charleston.*

South Carolina Residential Code Section Table R301.2. Insert: *Building Inspections Division.*

South Carolina Residential Code Section P2603.5.1. Insert: *12 inches,* and; Insert: *12 inches.*

(Code 1975, § 10-18; Ord. No. 1977-2, § 1, 1-11-77; Ord. No. 1979-7, § 1, 1-23-79; Ord. No. 1986-97, § 2, 9-9-86; Ord. No. 1989-61, § 12, 7-18-89; Ord. No. 1991-93, § 3, 9-10-91; Ord. No. 1991-157, §§ 5, 6, 12-10-91; Ord. No. 1994-420, § 3, 12-6-94; Ord. No. 1999-186, § 3, 12-21-99; Ord. No. 2001-54, § 6, 5-29-01; Ord. No. 2017-131, § 1, 10-10-17; Ord. No. 2021-118, § 3, 8-17-21; Ord. No. 2024-026, § 1, 2-27-24)

Secs. 7-28—7-45. Reserved.

Editor's note—Ord. No. 2024-026, §§ 2—5, adopted Feb. 27, 2024, repealed §§ 7-28—7-31, which pertained to adoption of residential code; reroofing of existing structures; compliance with new buildings standards required; walls between townhouse units; masonry construction required; and adoption of standard existing buildings code; and derived from Code 1975, §§ 10-27, 10-29; Ord. No. 1980-78, § 1, 6-24-80; Ord. No. 1986-97, § 3, 9-9-86; Ord. No. 1989-61, § 10, 7-18-89; Ord. No. 1991-93, § 4, 9-10-91; Ord. No. 1992-295, § 1, 12-15-92; Ord. No. 1995-568, § 1, 12-19-95; Ord. No. 1999-186, § 10, 12-21-99; Ord. No. 2001-54, §§ 7, 8, 5-29-01.

ARTICLE III. BUILDING UTILITY SERVICES INTERRUPTED*

Sec. 7-46. Building utility services interrupted.

When building fuel gas and/or electrical utility service has been interrupted for a period of more than one (1) year, a city permit and an inspection of the building fuel gas and/or electrical system shall be required prior to the reestablishment of fuel gas and/or electrical building service.
(Ord. No. 2022-162, § 3, 11-8-22)

Secs. 7-47—7-70. Reserved.

*__Editor's note—__Ord. No. 2022-162, § 3, adopted Nov. 8, 2022, repealed the former Art. III, §§ 7-46—7-50, and enacted a new Art. III, § 7-46, as set out herein. The former Art. III pertained to gas and derived from Code 1975, §§ 27-9, 27-10, 27-12; Ord. No. 1980-75, § 1, 6-28-80; Ord. No. 1984-57, § 2, 6-12-84; Ord. No. 1986-97, § 4, 9-9-86; Ord. No. 1989-61, § 2, 7-18-89; Ord. No. 1991-93, § 5, 6, 19, 9-10-91; Ord. No. 1994-420, § 4, 12-6-94; Ord. No. 1999-186, § 4, 12-21-99; Ord. No. 2001-54, §§ 10, 15, 5-29-01; Ord. No. 2017-131, § 2, 10-10-17.

Cross references—Building codes, § 7-26 et seq.; fire prevention code, § 13-76 et seq.

ARTICLE IV. HOUSING*

DIVISION 1. GENERALLY

Sec. 7-71. Legislative findings; declaration of intent to repair, close or demolish unfit dwellings.

The city council hereby finds that dwellings exist within the city which are unfit for human habitation due to dilapidation, defects increasing the hazards of fire, accidents or other calamities, lack of ventilation, light or sanitary facilities, or due to other conditions rendering such dwellings unsafe or unsanitary, or dangerous or detrimental to the health, safety or morals, or otherwise inimical to the welfare of the residents of the city. The city council hereby declares its intent to exercise its police powers to repair, close or demolish such dwellings.
(Ord. No. 2010-110, § 1, 7-20-10)

Sec. 7-72. Definitions.

The following words and terms wherever used and referred to in this article shall have the following respective meanings for the purpose of the article, unless a different meaning clearly appears in the context:

Authorized officer. The term "authorized officer" shall be taken to mean the public safety and housing officer or their designee.

Dwelling. The word "dwelling" shall be taken to mean any building, structure or part thereof, used and occupied for human

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*__Editor's note—__Ord. No. 2010-110, § 1, adopted July 20, 2010, repealed divs. 1 and 2 of art. IV, and added new divisions as set out herein. The former div. 1, §§ 7-71—7-83, and div. 2, §§ 7-91—7-106, pertained to housing generally and administration and derived from Code 1975, § 10-32, 10-33, 10-35, 10-36, 10-38, 10-40—10-54, 10-65—10-79, 10-169—10-172; Ord. No. 1980-79, § 1, adopted June 24, 1980; Ord. No. 1984-59, §§ 2, 3, adopted June 12, 1984; Ord. No. 1986-97, § 5, adopted Sept. 9, 1986; Ord. No. 1989-61, §§ 3—5, adopted July 18, 1989; Ord. No. 1991-93, §§ 7, 8, adopted Sept. 10, 1991; and Ord. No. 1999-186, § 9, adopted Dec. 21, 1999.

Cross references—Building codes, § 7-26 et seq.; fire prevention code, § 13-76.

habitation or intended to be so used, and includes any outhouses and appurtenances belonging thereto or usually enjoyed therewith.

Governing body. The term "governing body" shall mean the city council.

Living room. The term "living room" shall be taken to mean a room or enclosed floor space used or intended to be used for living, sleeping, or cooking purposes, excluding bathroom, toilet-room, laundries, pantries, foyers or community corridors, closets and storage spaces.

Municipality. The word "municipality" shall be taken to mean the city.

Occupant. The word "occupant" shall be taken to mean any person(s) living and sleeping, either or both, in a dwelling or rooming unit.

Operator. The word "operator" shall be taken to mean any person who has charge, care or control of a building or part thereof in which dwelling units and/or rooming units are let.

Owner. The "owner" shall be taken to mean the holder of the title in fee simple and every mortgagee of record.

Parties in interest. The term "parties in interest" shall be taken to mean all individuals, associations, corporations and others who have interest of record in a dwelling and any who are in possession thereof.

Public authority. The term "public authority" shall be taken to mean any housing authority or any officer who is in charge of any department or branch of the government of the city or the state relating to health, fire, building regulations, or to other activities concerning dwellings in the city.

Public officer. The term "public officer" shall be taken to mean the public safety and housing officer who is authorized by this article to exercise the power prescribed by this article and by S.C. Code 1976, §§ 31-15-10 through 31-15-120, and any amendments thereto.

Unsafe equipment. The term "unsafe equipment" shall be taken to mean any boiler, heating equipment, elevator, moving stairway, electrical wiring or device, flammable liquid containers or other equipment on the premises or within the dwelling which is in such disrepair or condition that such equipment is a hazard to life, health, property or safety of the public or occupants of the premises or dwelling.

Unsafe dwelling. The term "unsafe dwelling" shall be taken to mean a dwelling that is found to be dangerous to the life, health, property or safety of the public or the occupants of the dwelling by not providing the minimum safeguards to protect or warn occupants in the event of fire, or because such dwelling contains unsafe equipment or is so damaged, decayed, dilapidated, structurally unsafe or of such faulty construction or unstable foundation, that partial or complete collapse is possible.

Where terms are not defined in this article and are defined in the building code as adopted pursuant to state law, they shall have the meanings ascribed to them as in the building code.

Where terms are not defined under the provisions of this article or under the provisions of the building code, they shall have ascribed to them their ordinarily accepted meanings or such as the context herein may imply.
(Ord. No. 2010-110, § 1, 7-20-10)

Sec. 7-73. Construction of article.

Nothing in this article shall be construed to abrogate or impair the powers of the court or of any department of the city to enforce any provisions of its chapter or its ordinances or regulations, nor to prevent or to punish violations thereof; and the powers conferred by this article shall be in addition and supplemental to the powers conferred by any other ordinance or law.
(Ord. No. 2010-110, § 1, 7-20-10)

Sec. 7-74. Public safety and housing officer—Designated.

The chief building official shall be the public safety and housing officer. The fact that the designated person might also serve the city in some other capacity shall not, in itself, disqualify

that person from otherwise serving as the public safety and housing officer. It shall be the duty and responsibility of the public safety and housing officer to enforce the provisions of this article.
(Ord. No. 2010-110, § 1, 7-20-10)

Sec. 7-75. Same—Powers and duties generally.

The public safety and housing officer is hereby authorized to exercise such powers as may be necessary or convenient to carry out and effectuate the purposes and provisions of this article, including the following powers in addition to others hereinbefore and hereinafter granted:

(1) To investigate the dwelling conditions in the city in order to determine which dwellings therein are unfit for human habitation;

(2) To administer oaths, affirmations, examine witnesses, and receive evidence;

(3) To enter upon premises for the purpose of making examinations, provided that such entries shall be made in such manner as to cause the least possible inconvenience to the persons in possession;

(4) To appoint and fix the duties of such officers, agents, and employees as he deems necessary to carry out the purposes of this article; and

(5) To delegate any of his functions and powers under this article to such officer and agents as he may designate.

(Ord. No. 2010-110, § 1, 7-20-10)

Sec. 7-76. Funds for examination and investigation; examination, investigations and enforcement; appropriations, grants and donations.

The city council shall prepare an estimate of the annual expenses or costs to provide the equipment, personnel and supplies necessary for periodic examinations and accept and apply grants or donations to assist it in carrying out the provisions of this article.
(Ord. No. 2010-110, § 1, 7-20-10)

Sec. 7-77. Failure to comply with lawful notice or order.

It shall be unlawful for the owner of any dwelling unit unfit for human habitation under the provisions of this article to fail to comply with any notice or order to repair, vacate or demolish such dwelling issued by any person authorized by this article to issue such notice or order.
(Ord. No. 2010-110, § 1, 7-20-10)

Sec. 7-78. Injuring, removing, or defacing posted notices.

It shall be unlawful for any person to remove or deface any notice posted on any dwelling by any authorized officer under the terms of this article.
(Ord. No. 2010-110, § 1, 7-20-10)

Sec. 7-79. Receipt of rental payments after expiration of time limit in notice or order.

It shall be unlawful for any person, individually or as the representative of any person, to demand or receive rent payments after the expiration of any time limit set forth in any notice or order issued by the public safety and housing officer for any period during which a dwelling has been declared unfit for human habitation.
(Ord. No. 2010-110, § 1, 7-20-10)

Sec. 7-80. Interference with enforcement of article.

(a) It shall be unlawful for any person, individually or as the representative of any person, to interfere in any way with the enforcement of any of terms or provisions of this article.

(b) It shall be unlawful for any person, individually or as the representative of any person, to cause a reduction in services or utilities, to increase rents or cause rents to be increased, in retaliation for any tenant's reporting of a violation of this article.

(c) It shall be unlawful for any person, individually or as the representative or agent of any person, to allow a vacant dwelling which has been declared unfit for human habitation to be used or occupied during any period in which the public safety and

housing officer has found such vacant dwelling to be unfit for human habitation and of which notice is given to the owner or his agent.

(d) It shall be unlawful for any person, individually or as the representative of any person, to evict or cause to be evicted any inhabitant or tenant in retaliation for reporting a violation of this article to the public safety and housing officer or any other public authorities.

(e) It shall be unlawful for any person to enter a dwelling unit which has been declared unfit for human habitation except for the purpose of making the required repairs or demolishing such structure.
(Ord. No. 2010-110, § 1, 7-20-10)

Sec. 7-81. Damaging facilities in unfit dwellings.

It shall be unlawful for any person individual, or as the representative of any person, to damage, mutilate or remove, or cause to be damaged, mutilated or removed, any of the facilities in a dwelling, as referred to in this article or the code adopted by this article.
(Ord. No. 2010-110, § 1, 7-20-10)

Sec. 7-82. Violations.

It shall be unlawful for any person, individually or as the representative of any person, to violate any of the terms or provisions of this article.
(Ord. No. 2010-110, § 1, 7-20-10)

Secs. 7-83—7-90. Reserved.

DIVISION 2. PROCEDURE FOR DETERMINING HABITABILITY

Sec. 7-91. Minimum standards, generally.

(a) A dwelling shall be determined to be unfit for human occupancy whenever it is found that such dwelling is to be an unsafe dwelling, or unlawful, or because of the degree to which

the dwelling is in disrepair or lacks maintenance, is unsanitary, vermin or rat infested, contains filth and contamination, or lacks ventilation, illumination, sanitary or heating facilities or other essential equipment required by the International Residential Building Code, or because the location of the dwelling constitutes a hazard to the occupants of the dwelling or to the public.

(b) At a minimum all dwelling structures shall have:

(1) Access to a code compliant exit from the building and every room used for sleeping;

(2) Fresh water from a South Carolina Department of Health and Environmental Control approved well or from a public water system supplied to the individual building through an on site water meter;

(3) On-site sanitary waste disposal provided by a South Carolina Department of Health and Environmental Control approved septic system or from an approved private or public waste water system;

(4) Electricity from the public utility company provided through an on site electric meter or a city-approved alternative power source;

(5) An approved source of heat from October 1st through May 1st; and

(6) A lock for all exterior doors.

(Ord. No. 2010-110, § 1, 7-20-10)

Sec. 7-92. Complaint of building unfit for human habitation; notice of hearing thereon.

Whenever a petition is filed with the public safety and housing officer by a public authority or by at least five (5) residents of the city charging that any dwelling is unfit for human habitation or whenever it appears to the public safety and housing officer (on his own motion) that any dwelling is unfit for human habitation, the public safety and housing officer shall, if his preliminary investigation discloses a basis for such charges, issue and cause to be served upon the owner of and parties in interest in such dwelling, a complaint stating the charges in that respect and

containing a notice that a hearing will be held before the public safety and housing officer (or his designated agent) at a place therein fixed not less than ten (10) days nor more than thirty (30) days after the serving of such complaint.
(Ord. No. 2010-110, § 1, 7-20-10)

Sec. 7-93. Right to answer.

The owner and parties in interest shall be given the right to file an answer to the complaint and to appear in person, or otherwise, and give testimony at the time and place fixed in the complaint; and that the rules of evidence prevailing in courts of law or equity shall not be controlling in hearings before the public safety and housing officer.
(Ord. No. 2010-110, § 1, 7-20-10)

Sec. 7-94. Determination of unfitness for human habitation; order to repair, alter, improve or demolish.

If, after notice and hearing, as provided for in section 7-92, the public safety and housing officer determines that the dwelling under consideration is unfit for human habitation he shall state in writing his findings of fact in support of such determination and shall issue and cause to be served upon the owner thereof an order:

(1) If the repair, alteration or improvement of the dwelling can be made at a reasonable cost in relation to the value of the dwelling, requiring the owner, within the time specified in the order, to repair, alter, or improve such dwelling to render it fit for human habitation or to vacate and close the dwelling as a human habitation; or

(2) If the repair, alteration or improvement of such dwelling cannot be made at a reasonable cost in relation to the value of the dwelling, requiring the owner, within the time specified in the order, to remove or demolish such dwelling.

(Ord. No. 2010-110, § 1, 7-20-10)

Sec. 7-95. Repair or vacation and closing of building when owner fails to comply with order; posting of placard indicating that building is closed.

If the owner fails to comply with an order to repair, alter or improve or to vacate and close the dwelling, as provided in section 7-94, the public safety and housing officer may cause such dwelling to be repaired, altered, or improved or to be vacated and closed; and the public safety and housing officer may cause to be posted on the main entrance of any dwelling so closed, a placard with the following words: "This building is unfit for human habitation; the use or occupation of this building for human habitation is prohibited and unlawful."
(Ord. No. 2010-110, § 1, 7-20-10)

Sec. 7-96. Removal or demolition of building when owner fails to comply with order.

If the owner fails to comply with an order to remove or demolish the dwelling, as provided in section 7-94, the public safety and housing officer may cause such dwelling to be removed or demolished.
(Ord. No. 2010-110, § 1, 7-20-10)

Sec. 7-97. Cost of demolition or repair as lien; sale of material upon demolition of building; council's powers to declare nuisance.

The amount of the cost of repairs, alterations, or improvements, or vacating and closing, or removal and demolition by the public safety and housing officer, under sections 7-94 and 7-95 shall be a lien against the real property upon which such cost was incurred. If the dwelling is removed or demolished by the public safety and housing officer, he shall sell the materials of such dwelling and shall credit the proceeds of such sale against the cost of the removal and demolition and any balance remaining shall be deposited in the circuit court by the public safety and housing officer, shall be secured in such manner as may be directed by such court, and shall be disbursed by such court to the person found to be entitled thereto by final order or decree of such court; provided, however, that nothing in this article shall be

construed to impair or limit in any way the power of the city council to define and declare nuisances and to cause their removal or abatement, by summary proceedings or otherwise.
(Ord. No. 2010-110, § 1, 7-20-10)

Sec. 7-98. Service of complaints and orders; posting of copy of complaint or order; copy of complaint or order to be filed with clerk of county; effect of such filing as lis pendens.

Complaints or orders issued by the public safety and housing officer pursuant to this article shall be served upon persons either personally or by registered mail, but if the whereabouts of such persons is unknown and the same cannot be ascertained by the public safety and housing officer in the exercise of reasonable diligence, and the public safety and housing officer shall make an affidavit to that effect, then the serving of such complaint or order upon such persons may be made by publishing the same once each week for two (2) consecutive weeks in a newspaper printed and published in the city. In addition to publication, a copy of such complaint or order shall be posted in a conspicuous place on the premises affected by the complaint or order. A copy of such complaint or order shall also be filed with the clerk of the county and the Register Mesne Conveyance Office and such filing of the complaint or order shall have the same force and effect as other lis pendens notices provided by law.
(Ord. No. 2010-110, § 1, 7-20-10)

Sec. 7-99. Injunctive relief against public officer; damages not to flow from order of public safety and housing committee.

(a) Any person affected by an order issued by the public safety and housing officer may petition the circuit court for an injunction restraining the public safety and housing officer from carrying out the provisions of the order, and the court may, upon such petition, issue a temporary injunction restraining the public safety and housing officer pending the final disposition of the cause; provided, however, that within sixty (60) days after the posting and service of the order of the public safety and housing

officer such persons shall petition such court. Hearings shall be had by the court on such petitions within twenty (20) days or as soon thereafter as possible.

(b) The court shall hear and determine the issues raised and shall enter such final order or decree as law and justice may require. In all such proceedings the findings of the public safety and housing officer as to facts, if supported by evidence, shall be conclusive. Costs shall be in the discretion of the court. The remedies herein provided shall be exclusive remedies and no person affected by an order of the public safety and housing officer shall be entitled to recover any damages for action taken pursuant to any order of the public safety and housing officer, or because of compliance by the chief building official, the director of code enforcement, or the fire chief with any order of the public safety and housing officer.
(Ord. No. 2010-110, § 1, 7-20-10)

Sec. 7-100. Immunity of enforcement personnel from liability.

Except as may otherwise be provided by statute or local law or ordinance, no officer, agent or employee of the municipality charged with the enforcement of this article shall render himself personally liable for any damage that may accrue to persons or property as a result of any act required or permitted in the discharge of his duties under this article. No person who institutes, or assists in the prosecution of, a criminal proceeding under this article shall be liable to damages hereunder unless he acted with actual malice and without reasonable grounds for believing that the person accused or prosecuted was guilty of an unlawful act or omission. Any suit brought against any officer, agent, or employee of the municipality, as a result of any act required or permitted in the discharge of his duties under this article, shall be defended by the legal representative of the municipality until the final determination of proceedings therein.
(Ord. No. 2010-110, § 1, 7-20-10)

Sec. 7-101. Article provisions are cumulative.

Nothing in this article shall be construed to abrogate or impair the powers of the courts or of any department of any municipality

to enforce any provisions of its charter or its ordinances or regulations, or to prevent or punish violations thereof and the powers conferred by this article shall be in addition and supplemental to the powers conferred by any other law.
(Ord. No. 2010-110, § 1, 7-20-10)

Sec. 7-102. Severability.

It is declared the intent of city council that the sections, subsections, paragraphs, sentences, clauses and phrases of this article are severable; and if any such provision shall be declared unconstitutional or otherwise invalid or unenforceable by a court of competent jurisdiction, it shall not affect the validity or enforceability of any remaining provisions of this article, and it is the intent of city council that such provisions shall continue in full force and affect.
(Ord. No. 2010-110, § 1, 7-20-10)

Secs. 7-103—7-113. Reserved.

DIVISION 3. MINIMUM STANDARDS

Sec. 7-114. Property maintenance code adopted.

A certain document, three (3) copies of which are on file in the office of the clerk of council, building inspection division, livability division and fire marshal division of the City of Charleston, being marked and designated as the International Property Maintenance Code, current version as referenced by the State of South Carolina, as published by the International Code Council, and is hereby adopted as the property maintenance code of the City of Charleston, in the State of South Carolina for regulating and governing the conditions and maintenance of all property, buildings and structures; by providing the standards for supplied utilities and facilities and other physical things and conditions essential to ensure that structures are safe, sanitary and fit for occupation and use; and the condemnation of buildings and structures unfit for human occupancy and use, and the demolition of such existing structures as herein provided; providing for the issuance of permits and collection of fees

therefor; and each and all of the regulations, provisions, penalties, conditions and terms of said property maintenance code on file in the above offices of the City of Charleston are hereby referred to, adopted in its entirety, inclusive of Chapter 1, and made a part hereof, as if fully set out in this legislation, with the additions, insertions, deletions and changes, if any, prescribed in section 7-115.
(Ord. No. 2021-118, § 1, 8-17-21)

Sec. 7-115. Amendments.

The following sections of the property maintenance code adopted in section 7-114 are hereby revised:

Section 101.1. Insert City of Charleston

Section 103 shall read: Enforcement.

Section 103.1 shall read: The enforcement of the provisions of this code may be carried out by the Livability Director, the Chief Fire Marshal, the Chief Building Official, or their designee. Generally, the Livability Division will regulate elements related to quality of life and nuisance violations, the Fire Marshal Division will regulate elements of fire and life safety, and the Building Inspection Division will regulate matters affecting structural safety and integrity.

Section 103.5 shall read: The fees for activities and services performed by the departments in carrying out its responsibilities under this code shall be as established by the applicable governing body.

Section 103.6 shall read: Fees, when applicable, shall be charged in accordance with the fee schedule established and reviewed from time to time by the Council. A schedule of the associated fees shall be made available to the public online at the city's website, at the clerk of council's office, or through the associated department.

Section 111.1 shall read: Any person directly affected by a decision of Livability Director, the Chief Fire Marshal, the Chief Building Official, or their designee, or a notice or order issued under this code shall have the right to appeal to and are subject

to the rules and procedures of the Building Board of Adjustments and Appeals, provided that a written application for appeal is filed within 30 days after the day the decisions, notice or order was served. An application for appeal shall be based on a claim that the true intent of this code or the rules legally adopted thereunder have been incorrectly interpreted, the provisions of this code do not fully apply, or the requirements of this code are adequately satisfied by other means.

Sections 111.2—111.6. Delete all sections in their entirety.

Section 112.4 shall read: *Failure to comply.* Any person who shall continue any work after having been served with a stop-work order, except such work as that person is directed to perform to remove a violation or unsafe condition, shall be liable to penalties established by Section 1-16 of the City Code of Ordinances of the City of Charleston.

Section 302.4 shall read: Premises and exterior property shall be maintained free from weeds or plant growth in excess of twelve inches on the average.

Section 304.14 shall read: During the period from January 1st to December 31st, every door, window and other outside opening required for ventilation of habitable rooms, food preparation areas, food service areas or any areas where products to be included or utilized in food for human consumption are processed, manufactured, packaged or stored shall be supplied with approved tightly fitting screens of minimum 16 mesh per inch (16 mesh per 25 mm), and every screen door used for insect control shall have a self-closing device in good working condition.

Exception: Screens shall not be required where other approved means, such as air curtains or insect repellent fans, are employed.

Section 602.3 shall read: Every owner and operator of any building who rents, leases or lets one or more dwelling units or sleeping units on terms, either expressed or implied, to furnish heat to the occupants thereof shall supply heat during the period from January lst to December 31st to maintain a minimum temperature of 68 degrees Fahrenheit in all habitable rooms, bathrooms and toilet rooms.

Section 602.4 shall read: Indoor occupiable work spaces shall be supplied with heat during the period from January 1st to December 31st to maintain a minimum temperature of 65 degrees Fahrenheit during the period the spaces are occupied. (Ord. No. 2021-118, § 2, 8-17-21)

Sec. 7-116. Sanitation and environmental standards.

(a) *Scope of section.* The provisions of this section shall govern the minimum conditions of property and buildings to be used for human occupancy. Every building or structure occupied by humans, except as otherwise exempted, and the premises on which it stands, shall comply with the conditions herein prescribed as they may apply thereto.

(b) *Compliance with exterior property area standards required for occupancy.* No person shall occupy as owner-occupant or let to another for occupancy any dwelling unit for the purpose of living therein, or premises, which does not comply with the requirements of the property maintenance code adopted by this article and paragraph (c) of this article. The public safety and housing officer shall cause periodic inspections to be made of dwelling premises to secure compliance with these requirements.

(c) *Grading and drainage.* All premises shall be graded and maintained so as to prevent the accumulation of stagnant water thereon, or within any building or structure located thereon.

(d) *Compliance with exterior structure standards required for occupancy.* No person shall occupy as owner-occupant, or let to another for occupancy, any dwelling or multi-family dwelling, dwelling unit, rooming house, rooming unit, or portion thereof for the purpose of living therein, which does not comply with the requirements of the exterior structure standards the property maintenance code and paragraphs (e) and (f) of this section.

(e) *Basement hatchways.* Every basement hatchway shall be so constructed and maintained as to prevent the entrance of rodents, rain, and surface drainage water into the dwelling or multi-family dwelling.

(f) *Exit doors.* Every door available as an exit shall be capable of being opened from the inside, easily and without the use of a key.

(g) *Compliance with interior structure standards required.* No person shall occupy as owner-occupant, or let to another for occupancy, any dwelling, multi-family dwelling, dwelling unit, rooming house, rooming unit, or portion thereof, for the purpose of living therein which does not comply with the requirements of paragraphs (h) through (j) of this section and the interior structure standards of the property maintenance code.

(h) *Freedom from dampness.* In every dwelling, multi-family dwelling, dwelling unit, rooming house, and rooming unit, cellars, basements and crawl spaces shall be maintained reasonably free from dampness to prevent conditions conducive to decay or deterioration of the structure, as required by the building code.

(i) *Interior stairs and railings required.* Stairs shall be provided in every dwelling, multi-family dwelling, rooming and boarding house as required by the building code.

(j) *Maintenance of stairs.* All interior stairs of every structure used for human habitation shall be maintained in sound condition and good repair by replacing treads and risers that evidence excessive wear or are broken, warped or loose. Every inside stair shall be so constructed and maintained as to be safe to use and capable of supporting a load as required by the provisions of the building code.

(k) *Responsibility of owner to exterminate rodents.* Notwithstanding the provisions of section 307.5 of the Code adopted by section 7-71 of this article, whenever infestation of rodents is caused by failure of the owner to maintain any dwelling or multi-family dwelling in a rodent-proof condition, extermination of such rodents shall be the responsibility of the owner.

(Code 1975, §§ 10-80, 10-81, 10-83, 10-87, 10-102, 10-103, 10-107, 10-108, 10-110, 10-111, 10-118; Ord. No. 2021-118, § 3, 8-17-21)

Sec. 7-117. Responsibility of owner to remove lead-based paints from exposed surfaces.

(a) For the purpose of this section, the following definitions shall apply:

Exposed surface. An "exposed surface" is any interior surface of a dwelling, dwelling unit or child care facility and any exterior surface of such a structure, such as stairs, porches, railings, windows, doors and siding from ground level to a vertical distance of at least five (5) feet, which are readily accessible to children six (6) years of age or younger, especially those surfaces where peeling or chipping of paint or other surface-coating material occurs.

Lead base substance. A "lead-base substance" is any paint, lacquer, putty, plaster glaze or other similar surface-coating material containing lead in the dried paint film of paint already applied as measured positive by an in-site analyzer device.

(b) It shall be the responsibility of the owner to provide for the removal or permanent covering of exposed surfaces of public or private premises on which a lead-base substance has been applied whenever the board of health determines that the presence of such substances constitutes a danger to health. The public safety and housing officer shall report any apparent violations to the board of health.
(Code 1975, § 10-118A; Ord. No. 1980-83, § 1, 6-24-80)

Sec. 7-118. Facilities—Requirements.

(a) *Compliance with section required.* No person shall occupy as owner-occupant, or let to another for occupancy, any dwelling unit for the purpose of living, sleeping, cooking, or eating therein which does not comply with the requirements of facilities requirements of the property maintenance code and this section.

(b) *Kitchen sink.* Every dwelling unit shall contain a kitchen sink apart from the lavatory required under section 302.1 of the property maintenance code adopted by this article.

(c) *Rubbish storage facilities.* Every dwelling, multi-family dwelling and dwelling unit shall be supplied with approved containers and covers for storage of rubbish, and the occupant or occupants of such dwelling or multi-family dwelling shall be responsible for the removal of such rubbish.
(Code 1975, §§ 10-119, 10-124, 10-129; Ord. No. 2021-118, § 3, 8-17-21)

Sec. 7-119. Same—Installation and maintenance.

(a) *Compliance with section required.* No person shall occupy as owner-occupant, or let to another for occupancy, any dwelling, multi-family dwelling, dwelling unit, rooming house, or rooming unit for the purpose of living, sleeping, cooking, or eating therein which does not comply with the requirements of this section and the provisions of the National Electrical Code and the property maintenance code relating to installation and maintenance of facilities.

(b) *Facilities and equipment.* All required equipment and all building space and parts in every dwelling and multi-family dwelling shall be constructed and maintained so as to properly and safely perform their intended function in accordance with the provisions of the building code.

(c) *Sanitation of facilities.* All housing facilities shall be maintained in a clean and sanitary condition by the occupant so as not to breed insects and rodents or produce dangerous or offensive gases or odors.

(d) *Plumbing fixtures.* In buildings and structures used for human habitation, water lines, plumbing fixtures, vents and drains shall be properly installed, connected and maintained in working order and shall be kept free from obstructions, leaks and defects and capable of performing the function for which they are designed. All repairs and installations shall be made in accordance with the provisions of the plumbing code.

(e) *Plumbing systems.* In buildings and structures used for human habitation, every plumbing stack, waste and sewer line shall be so installed and maintained as to function properly and shall be kept free from obstructions, leaks and defects to prevent

structural deterioration or health hazards. All repairs and installations shall be made in accordance with the provisions of the plumbing code.
(Code 1975, § 10-131—10-135; Ord. No. 2021-118, § 3, 8-17-21)

Sec. 7-120. Space and occupancy requirements.

(a) *Compliance with section required.* No person shall occupy or let to another for occupancy, any dwelling unit for the purpose of living therein which does not comply with the requirements of this section and the property maintenance code.

(b) *Access to dwelling units from commercial uses prohibited.* No habitable room, bathroom or water closet compartment which is accessory to a dwelling unit shall open directly into or shall be used in conjunction with a food store, barber or beauty shop, doctor's or dentist's examination or treatment room, or similar room used for public purposes.

(c) *Location of bath and second sleeping room.* No residence building or dwelling unit hereafter constructed containing two (2) or more sleeping rooms shall have such room arrangements that access to a bathroom or water closet compartment intended for use by occupants of more than one sleeping room can be had only by going through another sleeping room; nor shall the room arrangement be such that access to a sleeping room can be had only by going through another sleeping room or a bathroom or water closet compartment. No bathroom shall be so located that access thereto is solely through a kitchen.
(Code 1975, §§ 10-139, 10-143, 10-144; Ord. No. 2021-118, § 3, 8-17-21)

Sec. 7-121. Light and ventilation.

(a) *Compliance with section required.* No person shall occupy as owner-occupant, or let to another for occupancy, any dwelling, multi-family dwelling, dwelling unit, rooming house or rooming unit for the purpose of living therein which does not comply with the requirements of this section and the property maintenance code.

(b) *Lighting in non-habitable work spaces.* Every laundry, furnace room, and all similar non-habitable work spaces located in a dwelling or multi-family dwelling shall have one supplied electric light fixture available at all times.
(Code 1975, §§ 10-146, 10-148; Ord. No. 2021-118, § 3, 8-17-21)

Sec. 7-122. Fire safety requirements.

No person shall occupy as owner-occupant, or shall let to another for occupancy, any dwelling, multi-family dwelling, dwelling unit, rooming house, rooming unit, lodging house or lodging unit which does not comply with the applicable provisions of the fire prevention ordinances of the municipality.
(Code 1975, § 10-153)

Sec. 7-123. Maintenance responsibility.

(a) *Scope of subdivision.* Occupants of dwellings, multi-family dwelling and dwelling units, and owners or operators of rooming houses shall be responsible for maintenance thereof as provided in this section and the property maintenance code.

(b) *Rubbish disposal.* Every occupant of a dwelling unit shall dispose of all his rubbish in a clean and sanitary manner by placing it in the rubbish containers required by section 7-118(c) of this article.

(c) *Installation and maintenance of plumbing fixtures furnished by occupant.* Every plumbing fixture furnished by the occupant of a dwelling unit shall be properly installed and shall be maintained in good working condition, kept clean and sanitary, and free of defects, leaks or obstructions.
(Code 1975, §§ 10-156, 10-158, 10-161; Ord. No. 2021-118, § 3, 8-17-21)

Sec. 7-124. Rooming houses.

(a) *Applicability of article; exception.* Every person who operates a rooming house, or who occupies or lets to another for occupancy any rooming unit in any rooming house, shall comply with the provisions of every section of this article, except as provided in this section and the property maintenance code.

(b) *Bed linen and towels.* The operator of every rooming house shall supply bed linen and towels therein at least once each week, and prior to the letting of any room to another occupant. The operator shall be responsible for the maintenance of all supplied bedding in a clean and sanitary manner.

(c) *Shades or drapes required.* Every window of every rooming unit shall be supplied with shades, drawn drapes, or other devices or material which, when properly used, will afford privacy to the occupant of the rooming unit.

(d) *Sanitary facilities.* Every water closet, flush urinal, lavatory basin and bathtub or shower required by the property maintenance code shall be located within the rooming house and within a room or rooms which:

(1) Afford privacy and are separate from the habitable rooms;

(2) Are accessible from a common hall and without going outside the rooming house or through any other room therein.

(Code 1975, §§ 10-162, 10-165, 10-166, 10-168; Ord. No. 1991-93, § 9, 9-10-91; Ord. No. 2021-118, § 3, 8-17-21)

DIVISION 4. RESIDENTIAL RENTAL REGISTRATION PILOT PROGRAM

Sec. 7-125. Purpose.

(a) It is the city's charge to support, protect, and promote safe, clean, and peaceful neighborhoods for all its citizens.

(b) City records indicate there is a greater incidence of violations of city's livability and nuisance ordinances in areas with a high percentage of residential rental units, compounded with the city's challenges in enforcing code violations due to absentee landlords. These challenges put public health and safety of all city residents at risk.

(c) The city desires to implement a residential rental registration program that maximizes the effectiveness of code enforcement for residential rental properties and economically focuses city resources toward chronic offenders, by identifying all residential rental units in the city and their landlords.

(d) The neighborhood association for Cannonborough/Elliott requested that this neighborhood be selected for the pilot program, based on it having experienced the greatest number of disturbance calls in 2021 of any residential neighborhood on the peninsula. In an effort to address these concerns, the city will conduct a pilot program applicable to the residential rental units in the Cannonborough/Elliott neighborhood during its first phase, as shown on the map attached hereto as exhibit A (and as may be amended to reflect expansion of the program); and

Based upon the number of college rental properties within the Radcliffeborough and Mazyck-Wraggborough neighborhoods and their proximity to Cannonborough/Elliot, together with current city staff resources, the city has approved the expansion of the pilot program to the residential rental units therein as shown on the map attached hereto as exhibit A;

(e) Staff will report quarterly to city council on the effectiveness and administration of the pilot program with the expectation that it shall be expanded as deemed appropriate by city council in terms of time, place, scope, and resources. City council shall retain the discretion to determine when and where to expand the pilot program, including whether to continue, modify, or discontinue the pilot program.
(Ord. No. 2022-159, § 1, 11-8-22; Ord. No. 2023-279, § 1, 12-19-23)

Sec. 7-126. Definitions.

Unless otherwise expressly stated, the following terms shall, for the purposes of this division, have the meanings shown in this section. Where terms are not defined, through the methods authorized by this section, such terms shall have ordinarily accepted meaning such as the context implies.

Citation means a charge or formal written accusation of violation of a municipal, state or federal law, regulation or ordinance.

Dwelling means any building, structure or part thereof, used and occupied for human habitation or intended to be so used, and includes any outhouses and appurtenances belonging thereto or usually enjoyed therewith.

Dwelling unit means any one (1) or more rooms arranged for the use of one (1) or more individuals living together as a single housekeeping unit, with cooking, living, sanitary and sleeping facilities.

Family means:

(1) An individual;

(2) One (1) or more persons related by blood or marriage with any number of natural children, foster children, stepchildren or adopted children, plus not more than two (2) unrelated persons living together as a single housekeeping unit; or

(3) A group of not more than four (4) persons not related by blood, marriage, adoption, or guardianship, living together as a single housekeeping unit, except that for properties in non-residential zoning districts containing twenty (20) or more dwelling units the maximum number of unrelated persons allowed in a single housekeeping unit shall be six (6).

Landlord means owner, lessor, or sublessor of the premises, whether a person, firm or corporation, including any professional management company or other agent of the landlord exercising control over the premises.

Occupant means any person(s) living and sleeping, either or both, in a dwelling or dwelling unit. A family shall be counted as one (1) occupant.

Offense means any violation of local, state, or federal statutes or ordinances which results in a forfeiture of bond, plea of guilty, no contest, acceptance into pre-trial intervention, alcohol education program or a determination of guilt by a court or a jury. For

purposes of this division, all violations for which charges are made during one (1) response by law enforcement officers which result in a forfeiture of bond, acceptance into a pre-trial intervention program, alcohol education program, conviction, or a plea of guilty or no contest collectively shall be deemed one (1) offense.

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Owner means any means one (1) or more persons, jointly or severally, in whom is vested (i) all or part of the legal title to real property, as may be shown of record in the land records of this state or (ii) all or part of the beneficial ownership and a right to present use and enjoyment of the premises.

Organization includes a corporation, government, governmental subdivision or agency, business trust, estate, trust, partnership or association, two (2) or more persons having a joint or common interest, and any other legal or commercial entity.

Person includes an individual or organization.

Premises means a residential rental unit and the structure of which it is a part and facilities and appurtenances therein and grounds, areas, and facilities held out for the use of tenants generally or whose use is promised to the tenant.

Professional management company means any company licensed by state department of labor, licensing and regulation as a real estate broker or property manager.

Residential rental permit district shall mean an area subject to the provisions of this division 4 upon designation by city council.

Residential rental unit or *rental unit* means a room or group of related rooms within a dwelling or dwelling unit, held out for use and occupancy as a living facility for tenants generally, or whose use is promised to the tenant for use and occupancy as a living facility, for a period exceeding twenty-nine (29) consecutive days. Whenever the words residential rental unit or rental unit are stated in this Code, they shall be construed as though they were followed by the words "or any part thereof." Exceptions shall be the following:

(1) Dwelling units occupied by individuals who were under a written contract, prior to a citation for violation(s) of this division, to purchase the residence after the contract has been reviewed for validity of purchase by the city attorney; or

(2) Dwelling units owned and operated by the United States of America, the State of South Carolina, or any agency thereof, including the Housing Authority of the City of Charleston;

(3) Dwelling units owned and operated by any institution of higher learning which operates housing for its faculty, staff or students; and

(4) Short term rentals or STRs, as defined in section 54-120.

Responsible local representative means a person having his or her primary place of residence or business office within thirty (30) miles of the premises and designated by the landlord as the agent responsible for operating the premises in compliance with the ordinances adopted by the city. The responsible local representative may be a professional management company. For the purposes of this division, the term "agent" shall also include responsible local representatives.

Rent means the consideration, whether pursuant to a written or oral agreement, statute, or ordinance, embodying the terms and conditions concerning the use and occupancy by a tenant of the premises.

Rental agreement means all agreements, whether pursuant to a written or oral agreement, statute, or ordinance, embodying the terms and conditions concerning the use and occupancy of the premises.

Tenant means a person entitled under a rental agreement to occupy the premises to the exclusion of others.
(Ord. No. 2022-159, § 1, 11-8-22)

Sec. 7-127. Residential rental registration district.

Whenever the city council shall determine a particular residential area of the city is negatively impacted by livability and related issues associated with residential rental units, it shall have the discretion to expand this pilot registration program to such area and will consider the city's capacity and resources in making such determination. Once council has determined to extend this program to an area, it shall provide

all owners of dwelling units located within the area at least sixty (60) days' written notice via regular mail of the commencement date of the program.
(Ord. No. 2022-159, § 1, 11-8-22)

Sec. 7-128. Registration requirements.

(a) No landlord shall operate any residential rental unit within a residential rental registration district unless that landlord has registered the residential rental unit with the city.

(b) Each individual residential rental unit requires its own registration. Registrations are not transferable.

(c) The registration shall be valid for twelve (12) months following the date of registration, with January 1, 2023 being the first date on which applications for registration may be submitted during the pilot program. Registrations between January 1, 2023 and April 30, 2023 shall be valid until May 1, 2024. When a business license is required pursuant to chapter 17, article II, the registrations for applicable residential rental units shall be valid for the twelve-month period of May 1 to April 30.

(d) Registration renewals after sixty (60) days of the expiration date will be assessed a late penalty fee of five (5) percent of the unpaid fee per month.

(e) For every registered residential rental unit, the landlord or its agent must be able to service tenant and emergency calls within a reasonable time upon dispatch.

(f) For every registered residential rental unit, the landlord shall be responsible to post, in plain view and in a conspicuous place within the residential rental unit the names, addresses, and telephone numbers of the landlord and/or responsible local representative for the residential rental unit.
(Ord. No. 2022-159, § 1, 11-8-22; Ord. No. 2023-008, § 1, 1-24-23)

Sec. 7-129. Registration fee.

(a) The annual registration fee for each residential unit shall be computed in accordance with the current fee schedule, as approved by city council, which may be amended from time to time by the council. The fee schedule shall be made available to the public online at the city's website.

(b) All required fees shall be paid before a residential rental unit is registered.
(Ord. No. 2022-159, § 1, 11-8-22; Ord. No. 2023-008, § 2, 1-24-23)

Sec. 7-130. Application for registration.

(a) The director of livability and tourism shall register a residential rental unit to the applicant upon attestation by the landlord that (1) the premises are safe, sanitary, and fit for human occupation and use; (2) the landlord is in compliance with the provisions of this division with respect to any other residential rental unit owned or managed by the landlord; and proof that all required registration fees have been paid as required by section 7-129 of this division.

(b) Residential rental units shall not be registered to a landlord who does not reside within a thirty-mile radius of the city, unless a responsible local representative who resides or has an office within a thirty-mile radius of the city is designated by the landlord in its registration application. The director of livability and tourism shall be notified in writing if there is a change of landlord or responsible local representative within fourteen (14) days of the change.

(c) The city will maintain an electronic database containing the registration information listed in section 7-131(a) for every rental unit registered.
(Ord. No. 2022-159, § 1, 11-8-22; Ord. No. 2023-008, § 3, 1-24-23)

Sec. 7-131. Application.

(a) Applications for a residential rental registration and renewals thereof shall be on a form provided by the city. Such form shall set forth the landlord's name, address, and telephone

number, the residential rental unit address(es), name, address, and telephone number of the responsible local representative, and additional information as outlined on the registration application. A responsible local representative need not be listed where the landlord submitting the application resides within a thirty-mile radius of the city.

(b) Registrations for multiple residential rental units can be requested on one (1) application when they are owned or managed by the same landlord. An application may be submitted either by the landlord or its agent.
(Ord. No. 2022-159, § 1, 11-8-22; Ord. No. 2023-008, § 4, 1-24-23)

Sec. 7-132. Consequences of operating without registration; other Code violations.

(a) Operating an unregistered residential rental unit in a residential rental registration district is a misdemeanor punishable by fine and/or incarceration. Each day the unregistered rental under this section continues is considered a separate offense. Failure to comply with the requirements of this section shall result in the issuance of a municipal summons.

(b) Landlords, responsible local representatives, occupants, and tenants of a registered residential rental unit are subject to citations for violations of the Charleston City Code occurring at such premises within their control or which they occupy.

(c) A landlord convicted three (3) or more times within a five-year period for operating an unregistered residential rental unit pursuant to this division may subject the landlord to proceedings for revocation of their business license. Such revocation proceedings will be governed by section 17-30 of chapter 17, article II of the Charleston City Code.

(d) A landlord convicted five (5) or more times within a five-year period for violations of the Charleston City Code with respect to residential rental units owned or managed by the landlord may subject the landlord to proceedings for revocation

of their business license. Such revocation proceedings will be governed by section 17-30 of chapter 17, article II of the Charleston City Code.
(Ord. No. 2022-159, § 1, 11-8-22)

Sec. 7-133. Severability.

The provisions of this division are severable, and if any section, sentence, clause, part, or provision thereof shall be held illegal, invalid, or unconstitutional by any court of competent jurisdiction, such decision of the court shall not affect or impair the remaining sections, sentences, clauses, parts, or provisions of this division. It is hereby declared that the intent of the council is that this division would have been adopted as if such illegal, invalid, or unconstitutional section, sentence, clause, part, or provision had not been included herein.
(Ord. No. 2022-159, § 1, 11-8-22)

Sec. 7-134. Existing rights unaffected.

Nothing contained in this division is intended to affect the rights and responsibilities of property owners or tenants under the law of the United States of America or the State of South Carolina as outlined by the South Carolina Landlord Tenant Act, the Americans with Disabilities Act, the Violence Against Women Act, the Fair Housing Act or any other provision of federal or state law regulating housing.
(Ord. No. 2022-159, § 1, 11-8-22)

Secs. 7-135—7-140. Reserved.

ARTICLE V. RESERVED*

Secs. 7-141—7-155. Reserved.

*__Editor's note—__Ord. No. 2022-162, § 4, adopted Nov. 8, 2022, repealed Art. V, §§ 7-141—7-144, which pertained to the mechanical code and derived from Ord. No. 1980-76, § 1, 6-24-80; Ord. No. 1984-58, § 2, 6-12-84; Ord. No. 1986-97, § 7, 9-9-86; Ord. No. 1989-61, § 6, 7-18-89; Ord. No. 1990-70, § 2, 12-18-90; Ord. No. 1991-93, §§ 10, 11, 9-10-91; Ord. No. 1991-157, § 3, 12-10-91; Ord. No. 1994-420, § 5, 12-6-94; Ord. No. 1999-186, § 5, 12-21-99; Ord. No. 2001-54, § 16, 5-29-01; Ord. No. 2017-131, § 3, 10-10-17.

ARTICLE VI. RESERVED*

Secs. 7-156—7-170. Reserved.

ARTICLE VII. BUILDING PERMITS†

Sec. 7-171. Statement of total cost of construction required.

Before granting a permit, as required in the city building code, the chief building official shall require the applicant for such permit to state in writing, under oath, the total cost of construction, erection, alteration, repair, removal or wrecking, including cost of materials and supplies, as well as labor and services. For the purposes of verifying this statement, the chief building official may require the applicant to submit for his inspection the contracts, bills, estimates, plans, specifications, or other documents pertaining to the work.
(Code 1975, § 10-13; Ord. No. 2001-54, § 20, 5-29-01)

Sec. 7-172. Signature of fire official required on permit application.

No permit for any building or other construction intended for the storage of gasoline or other flammable liquids or for any building of other construction which for any reason is especially

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*__Editor's note—__Ord. No. 2022-162, § 5, adopted Nov. 8, 2022, repealed Art. VI, §§ 7-156 and 7-157, which pertained to the swimming pool code and derived from Ord. No. 1980-77, § 1, 6-24-80; Ord. No. 1984-60, § 2, 6-12-84; Ord. No. 1986-97, § 8, 9-9-86; Ord. No. 1991-93, §§ 12, 20, 9-10-91; Ord. No. 1999-186, § 8, 12-21-99.

†__Editor's note—__Ord. No. 20001-54, §§ 19, 20, adopted May 29, 2001, amended former Art. VIII, §§ 7-171, 7-181—183, to read as herein set out by repealing former section 7-171, by amending former section 7-183 and by renumbering former sections 7-181—7-183 as 7-171—7-173. Repealed former section 7-171 pertained to the display of building permits and derived from the Code of 1975.

__Cross reference—__Licenses, permits and miscellaneous business regulations, Ch. 17.

__State law reference—__Building permits, etc., S.C. Code 1976, §§ 5-25-310—5-25-480.

hazardous from the standpoint of fire shall be issued until the fire official shall have signed or otherwise affixed his name upon the face of the permit in question.
(Code 1975, § 10-15; Ord. No. 1989-61, § 7, 7-18-89; Ord. No. 2001-54, § 20, 5-29-01)

Sec. 7-173. Cash bond required from owner for demolition permit of building with uncapped sewer or stormwater facility.

Before any permit, as provided for in the city building code, is issued for the wrecking or removal of any building which has an uncapped sewer or stormwater facility connection, the owner shall be required by the chief building official to deposit a cash bond of five hundred dollars ($500.00), which bond shall be refunded to the owner only after the sewer or stormwater facility connections shall have been capped in a manner satisfactory to the chief building official. Should the owner fail to so cap a sewer or stormwater facility connection within sixty (60) calendar days after issuance of the permit, the chief building official shall be authorized to arrange to cap the sewer or stormwater facility connection and the bond shall be forfeited to the city. In addition to forfeited bond, any additional expenses shall also be the responsibility of the owner.
(Code 1975, § 10-16; ; Ord. No. 2001-54, §§ 19, 20, 5-29-01; Ord. No. 2007-158, § 1, 8-21-07)

Secs. 7-174—7-195. Reserved.

ARTICLE VIII. RESERVED*

Secs. 7-196—7-257. Reserved.

*__Editor's note—__Ord. No. 2022-162, § 6, adopted Nov. 8, 2022, repealed Art. VIII, § 7-196, which pertained to roofing contractor license and display of decal and derived from Ord. No. 1991-157, § 4, 12-10-91.

ARTICLE IX. RESERVED*

Secs. 7-258, 7-259. Reserved.

*__Editor's note—__Ord. No. 2000-54, §§ 21—23, adopted May 29, 2001, repealed former Art. X, §§ 7-258, 7-259, which pertained to the amusement device code and derived from Ord. No. 1986, § 12, 9-9-86; Ord. No. 1999-186, § 11, 12-21-99.

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Chapter 7.5

CEMETERIES*

Sec. 7.5-1. Establishment and use of burial places.

It shall be unlawful for any person to establish or use within the limits of the city any place for the burial of any dead human body, except such as were established prior to January 1, 1975 for these purposes. Provided, that the expansion of a burial place existing before January 1, 1975 may be allowed if the expansion occurs on a contiguous site to the existing burial place and such expansion is approved by the board of adjustment.
(Code 1975, § 8-2; Ord. No. 1994-435, § 1, 12-6-94)

Sec. 7.5-2. Burials restricted to established burial grounds.

No person shall bury any dead human body in any burial ground or place within the limits of the city except in such burial ground or place as were set apart and devoted to such purposes prior to January 1, 1975.
(Code 1975, § 8-3)

Sec. 7.5-3. Burial permit required.

No person shall bury any dead human body in any cemetery, vault or burial ground within the city until thee shall have been obtained a permit therefor from the board of health.
(Code 1975, § 8-4)

Sec. 7.5-4. Gravesite protection.

(a) Known or probable gravesites in the City of Charleston are protected pursuant to S.C. Code of Laws Section 16-17-600, and any violators of Section 16-17-600 are subject to the penalties provided for therein.

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*__State law reference—__Authority to acquire and operate, S.C. Code 1976, § 5-29-10.

(b) It is unlawful for a person to destruct or desecrate a burial ground where human skeletal remains are buried, a grave, graveyard, tomb, mausoleum, or other repository of human remains without property legal authority. It is unlawful for a person to desecrate a gravestone, memorial monument, marker, park or area commemorating a deceased person or group of persons.

(c) During any construction, development, re-development, or ground disturbing activity, if a person discovers or is otherwise put on notice of any known or probable gravesites on the subject lot, including but not limited to human remains, grave stones, grave markers, ground depressions, historical markers, historic maps, plats or surveys, photographs, or other indicators of probable gravesites, the person must immediately cease any ground disturbing work and report such notice to the city building official, as well as the county coroner and the appropriate state agencies including the state historic preservation office and the South Carolina Department of Health and Environmental Control. No further ground disturbing activities shall commence until authorization to proceed is issued by the state or county and the city building official in accordance with state law.
(Ord. No. 2021-126, § 1, 9-14-21)

Sec. 7.5-5. Penalties.

Any person who violates any provision of this chapter shall be subject to the penalties set forth in section 1-16 of the Code of the City of Charleston. Each day any violation of this chapter shall continue shall constitute a separate offense.
(Ord. No. 2021-126, § 2, 9-14-21)

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Chapter 8

CHARITABLE INSTITUTIONS*

Art. I. In General, §§ 8-1—8-15
Art. II. Charleston Home for Children, §§ 8-16—8-30
Art. III. Charleston Orphan House Funds and Estate, §§ 8-31—8-45
Art. IV. William Enston Home, §§ 8-46—8-54

ARTICLE I. IN GENERAL

Secs. 8-1—8-15. Reserved.

ARTICLE II. CHARLESTON HOME FOR CHILDREN

Sec. 8-16. Establishment.

There is hereby established an orphan asylum to be known as "The Charleston Home for Children."
(Code 1975, § 12-2)

Sec. 8-17. Election and appointment of commissioners.

The Commission of the Charleston Home for Children shall consist of the Bishop of the Catholic Diocese of Charleston, the Director of Catholic Charities of the Diocese of Charleston, the attorney of the Catholic Diocese of Charleston, two (2) sisters appointed by the Mother General of the Sisters of Charity of Our Lady of Mercy, eight (8) citizens to be elected by city council, and seven (7) citizens to be appointed by the Bishop of the Catholic Diocese of Charleston. The term of office of the commissioners appointed subsequent to the initial commissioners shall be three (3) years. A vacancy occurring during the respective terms shall

*Cross references—Charleston museum board of trustees, § 2-161 et seq.; department of public service, § 2-231 et seq.; department of special facilities, § 2-246 et seq.; Colonial Common and Ashley River Embankment, § 9-1 et seq.; Cypress Gardens, § 10-1 et seq.; human relations, Ch. 16; Marion Square, Ch. 18; department of recreation, § 22-16 et seq.; planning, Ch. 23.

be filled in the same manner as the original election or appointment, but only for the unexpired term.
(Code 1975, § 12-3)

Sec. 8-18. Eligibility for admission.

All such poor orphan children and children of poor, distressed or disabled parents as shall be deemed proper objects of admission by the commissioners of the Charleston Home for Children shall be admitted into the Charleston Home for Children and shall be supported, educated and maintained during such terms and under such regulations as the city council shall, from time to time, prescribe or sanction.
(Code 1975, § 12-4)

Secs. 8-19—8-30. Reserved.

ARTICLE III. CHARLESTON ORPHAN HOUSE FUNDS AND ESTATE*

Sec. 8-31. Trustees of orphan house created.

The mayor, the president of Charleston Orphan House, Inc., and the director of the department of administrative services for the time being, and their successors in office forever, shall be, and they are hereby, constituted and declared trustees for the Charleston Orphan House funds and estate; to be by them invested, from time to time, in such stock, bank shares, or other estate, as they may deem most beneficial to the institution; and to be by them held in trust for the use and benefit of the Charleston Orphan House.
(Code 1975, § 12-10)

***Editor's note**—By order of the Court of Common Pleas, dated June 13, 1979, in an action entitled *Charleston Orphan House, Inc. v. Daniel R. McLeod, etc., et al*, Case No. 79-CP-10-205, the Charleston Orphan House was transferred to Charleston Orphan House, Inc.

Cross reference—General provisions applying to boards and commissions, § 2-151 et seq.

Sec. 8-32. Property transferred to trustees; powers and duties of trustees; investments.

(a) All the specialties, stock, money on hand, and other property or estate, of right belonging to the Charleston Orphan House, shall be, and are hereby directed to be assigned, transferred or paid over to the trustees for the purposes aforesaid; and the same, together with all future donations, devises and bequests, to or for the benefit of the institution; and, also, all moneys or other estate, which may arise to the same from escheated property, are hereby placed under the special charge of the trustees, who are directed and required to pursue all lawful ways and means for the recovery of all such property, real or personal, as may be so given, devised, bequeathed, or which shall result from escheated property, and when recovered, to invest the same in such stock, bank shares or other estate, as may be most beneficial to the Charleston Orphan House.

(b) All investments made as aforesaid shall be in the official name and character of such trustees and the same are hereby declared to be sacred, and shall be forever kept apart and distinct from all other city funds. The principal sums of such investments shall not on any consideration be expended, but shall be preserved whole and entire for the benefit of the Charleston Orphan House.
(Code 1975, § 12-10)

Sec. 8-33. Annual statement of trustees.

The trustees of the Charleston Orphan House shall render to the city council an annual statement of the funds entrusted to them, distinguishing the amount of each donation, devise or bequest, and the name of each donor or devisor; and also all moneys or other estate arising to the institution from escheated property, and showing the amount of the annual income, and the manner of the expenditure thereof, so that the citizens may see that a faithful application is made of the funds aforesaid.
(Code 1975, § 12-12)

Secs. 8-34—8-45. Reserved.

ARTICLE IV. WILLIAM ENSTON HOME

Sec. 8-46. Establishment.

There shall be established as hereinafter provided, with the funds devised and bequeathed to the city by the late William Enston, a home for old and infirm persons.
(Code 1975, § 12-13(1))

Sec. 8-47. Site.

The premises known as late as Storen's Farm, situate in the city and lying on the east side of King Street (and more particularly described in the deed thereof of Michael Storen to City Council of Charleston), containing eight (8) acres, are hereby set apart and dedicated by the city council as a site for the home established by this article, and the premises shall be known and designated as the William Enston Home, and the same are hereby vested in the board of trustees for the use and benefit of the home.
(Code 1975, § 12-13(6))

Sec. 8-48. Qualifications of trustees; filling of vacancies.

The mayor of the city shall always be ex officio a member of the board of trustees of the home established by this article and the twelve (12) other trustees shall be residents of the city, and shall be chosen to serve perpetually and without compensation. Upon the death, resignation or removal from the city of any one of the trustees, the vacancy shall be filled by the remaining trustees.
(Code 1975, § 12-13(3))

Sec. 8-49. Persons eligible for admission.

(a) All such old and infirm persons in poverty of good, honest character and decent life and conduct as shall be deemed proper objects of admission by the trustees may be admitted into the home, and the board of trustees shall at all times have power to remove any person so admitted.

(b) No person under the age of forty-five (45) years shall be admitted, unless in the case of some great physical infirmity, such as lameness.

(c) No lunatic person shall be admitted or allowed to remain therein.

(d) There shall always remain in the gift of any of the family of William Enston six (6) gifts or appointments in the home to be enjoyed by six (6) individuals.
(Code 1975, § 12-13(4))

Sec. 8-50. Employees.

The board of trustees of the home established by this article shall have power to appoint such officers, physician or physicians, nurses and servants as they may deem necessary, and to allow them such compensation for their services as shall be reasonable, and shall also have power to remove them or any of them at their will and pleasure, and shall and may exercise such other powers and authorities for the well governing and ordering of the affairs of the home as shall not be repugnant to or inconsistent with the true intent and meaning of the provisions of the last will and testament of William Enston, deceased.
(Code 1975, § 12-13)

Sec. 8-51. Memorial.

In improving and laying out the grounds of the William Enston Home, the board of trustees is hereby required to reserve and set apart a space of one hundred (100) feet square at or near the center of the grounds, or at some other suitable point therein as they may determine, which spot is hereby dedicated for the erection thereon of a perpetual memorial by the city to William Enston, her large-hearted, noble benefactor.
(Code 1975, § 12-13(7))

Sec. 8-52. Property received under William Enston will vested in board of trustees.

All the money, stock, securities, investments and estate of every kind and description, with the increment thereon, which has heretofore come and which hereafter shall come into the possession of the city, or which is now held by any agent or officer of the city, or trustees on behalf of the city, which has been or may hereafter be received by the city under the bequests and

devises contained in the will of the late William Enston, and the articles of agreement and deeds and instruments executed by and between the parties in interest under such will in settlement of such estate of William Enston, shall pass to and be vested in such board of trustees for the use and benefit of the home established by this article.
(Code 1975, § 12-13(8))

Sec. 8-53. Trustees' power to dispose of property.

The board of trustees of the home established by this article shall have power to sell, at public or private sale, and transfer and convey any and all of the property, real or personal, applying the proceeds of such sale to the use of such home. All funds held by them shall be invested in such public securities or other estate, real and personal, as they may deem most beneficial. All such investments shall be made in the name of the trustees of the William Enston Home. No investment or change of investment of such property shall be made unless by the vote of three-fourths (¾) of the members of the board of trustees.
(Code 1975, § 12-13(9))

Sec. 8-54. Annual report of trustees.

It shall be the duty of the board of trustees of the home established by this article to make in writing annually to the mayor and city council a full report of their proceedings during the year, and of the state of the home, showing the number and condition of the cottages, inmates, and all matters necessary to a full understanding of the affairs of the home, which shall be certified by the president and secretary of such board. There shall be rendered with such report annually an account or statement, certified in like manner, showing the receipts and expenditures for the year and the assets and pecuniary condition of the home, and such reports shall be addressed to the mayor before the tenth day of January in each year for the preceding fiscal year.
(Code 1975, § 12-13(12))

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Chapter 9

COLONIAL COMMON AND ASHLEY RIVER EMBANKMENT*

Art. I. In General, §§ 9-1—9-15
Art. II. Board of Commissioners, §§ 9-16—9-18

ARTICLE I. IN GENERAL

Secs. 9-1—9-15. Reserved.

ARTICLE II. BOARD OF COMMISSIONERS†

Sec. 9-16. Created; composition, appointment; vacancies.

In pursuance of the decree of the Court of Common Pleas for Charleston County, dated July 5, 1881, decreeing that all remaining marsh lands on each side of Broad Street should forever after be held and kept as a common for the use of the people of Charleston and that the city council was to provide for a board of commissioners, to be known as "Commissioners of The Colonial Common and Ashley River Embankment" is hereby constituted, to consist of the mayor, ex officio, and ten (10) citizens to be appointed by nomination of the mayor and confirmed by the city council. All vacancies therein shall be filled in like manner.
(Code 1975, § 15-2)

Sec. 9-17. Duties of board.

It shall be the duty of the board of commissioners provided for in section 9-16, to carry into effect the decree referred to in such section, and to have the care and administration of The Colonial

*Cross references—Charitable institutions, Ch. 8; Cypress Gardens, Ch. 10; Marion Square, Ch. 18; parks and recreation, Ch. 22; planning, Ch. 23; streets and sidewalks, Ch. 28.

†Cross reference—Boards and commissions generally, § 2-151 et seq.

Common and Ashley River Embankment, and of all funds to be expended upon its improvement.
(Code 1975, § 15-3)

Sec. 9-18. Chairman and secretary; appointment; duties; reports; bylaws.

The board of commissioners provided for in section 9-16 shall keep in writing regular minutes of their proceedings, and shall report annually, or oftener, if required by the city council, their acts and doings, and shall have power to make all proper bylaws necessary or convenient for conducting their business and advancing the purposes of their creation.
(Code 1975, § 15-4)

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Chapter 10

RESERVED*

*Editor's note—Ord. No. 1996-221, § 1, adopted Oct. 29, 1996, repealed former Ch. 10, §§ 10-16—10-18, in its entirety which pertained city-owned property in Berkely County, known as Cypress Gardens. Former Ch. 10 derived from Code of 1975, §§ 16-2—16-4.

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Chapter 11

ELECTIONS*

Article I. In General

Sec. 11-1. General elections.
Sec. 11-2. Method of election.
Sec. 11-3. Terms of office.
Sec. 11-4. Method of election and determination of results.
Sec. 11-5. Filing for election.
Sec. 11-6. Notice of election.
Sec. 11-7. Hours polls open.
Secs. 11-8—11-20. Reserved.

Article II. Reserved

***Cross reference—**Administration generally, Ch. 2.

State law reference—Nominations and elections for municipal offices, S.C. Code 1976, § 5-15-10 et seq.

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ARTICLE I. IN GENERAL*

Sec. 11-1. General elections.

General elections in the city shall be held every two (2) years, in November of odd-numbered years, on the first Tuesday following the first Monday of November. The clerk of the city council shall give public notice of the general election at least sixty (60) days prior to such election.
(Ord. No. 1979-10, § 1, 2-13-79; Ord. No. 2011-14, § 1, 2-22-11)

Sec. 11-2. Method of election.

The city shall be divided into districts, and each district shall be represented on the council by one (1) member, who is elected by the qualified electors of the district and who must be a resident of the district during the entire term of office. The mayor shall be elected at large.
(Ord. No. 2000-212, § 1, 8-15-00)

Sec. 11-3. Terms of office.

The mayor and councilmembers shall be elected for a term of four (4) years. Terms of councilmembers shall be staggered, with districts bearing even numbers being scheduled for the general election of November, 2001, and districts bearing odd numbers being scheduled for the next general election thereafter.
(Ord. No. 2000-212, § 1, 8-15-00)

Sec. 11-4. Method of election and determination of results.

The method of electing candidates for mayor and council shall be pursuant to the nonpartisan election and runoff method as specified by S.C. Code Ann., § 5-15-60(2) (Supp. 1999). Determina-

*__Editor's note—__Ord. No. 2000-212, § 1, adopted Aug. 15, 2000, amended former §§ 11-2—11-7 of Art. I in their entirety to read as herein set out, pending approval by the voters by referendum held on Nov. 7, 2000. Former §§ 11-2—11-7 pertained to similar subject matter and derived from Ord. No. 1998-159, § 1, 8-18-98; and Ord. No. 1999-25, § 1, 2-9-99.

tion of the results of the nonpartisan general election and runoff method shall be made in accordance with S.C. Code Ann., § 5-15-62 (Supp. 1999).
(Ord. No. 2000-212, § 1, 8-15-00)

Sec. 11-5. Filing for election.

(a) The filing period for general elections in the City of Charleston shall commence at 12:00 noon on the first Monday of August and close at 12:00 noon on the third Monday of August.

(b) A candidate seeking a municipal office or seat on the commissioners of public works of the City of Charleston ("CPW") must file with the Board of Elections and Voter Registration for Charleston County within the filing period as herein defined, a statement of candidacy, along with a filing fee of one hundred fifty dollars ($150.00) for a council seat or CPW seat, or one thousand dollars ($1,000.00) for the office of mayor. A candidate filing for a seat on city council must be a registered voter residing in the district for which he or she files, at the time of filing. A candidate for the office of mayor or a seat on the commissioners of public works must be a registered voter residing in the City of Charleston at the time of filing. The candidate shall offer proof of such residency as may be required by the Board of Elections and Voter Registration for Charleston County at the time of filing. If the residency requirements are met, the Board of Elections and Voter Registration for Charleston County shall place the name of the candidate on the ballot.

(c) In lieu of a candidate filing fee as set forth in subsection (b), the Board of Elections and Voter Registration for Charleston County shall accept the application of any indigent person if said application is accompanied by a notarized affidavit establishing the applicant's indigent status. For purposes of this subsection, an indigent person is defined as a person who has gross income less than the most recently published federal poverty guidelines published by the U.S. Department of Health and Human Services and who has net assets, including any campaign contributions on hand, of less than five thousand dollars ($5,000.00).
(Ord. No. 2000-212, § 1, 8-15-00; Ord. No. 2003-58, § 1, 6-17-03; Ord. No. 2005-313, § 1, 7-19-05; Ord. No. 2005-607, §§ 1, 2,

10-18-05; Ord. No. 2007-87, § 1, 4-10-07; Ord. No. 2009-121, § 1, 7-21-09; Ord. No. 2011-53, § 1, 7-19-11; Ord. No. 2013-72, § 1, 7-16-13; Ord. No. 2015-050, § 1, 5-12-15; Ord. No. 2024-052, § 3(b), 3-26-24)

Sec. 11-6. Notice of election.

The Charleston County Board of Voter Registration and Elections shall give public notice of the election pursuant to state law.
(Ord. No. 2000-212, § 1, 8-15-00; Ord. No. 2025-114, § 1, 8-19-25)

Sec. 11-7. Hours polls open.

On the day of the election or any runoff, the polls shall be open for voting from 7:00 a.m. to 7:00 p.m.
(Ord. No. 2000-212, § 1, 8-15-00)

Secs. 11-8—11-20. Reserved.

ARTICLE II. RESERVED*

*__Editor's note—__Ord. No. 2024-052, § 3(a), adopted March 26, 2024, repealed Art. II, §§ 11-21—11-23, which pertained to the municipal election committee and derived from Ord. No. 1979-9, §§ 1—3, adopted Feb. 13, 1979.

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Chapter 12

RESERVED*

*__Editor's note—__Ord. No. 2022-162, §§ 7, 8, adopted Nov. 8, 2022, repealed Ch. 12, Arts. II, III, §§ 12-16, 12-18, 12-19, 12-21—12-29, 12-31—12-39, which pertained to the electrical code and derived from Code 1975, § 18-28, 18-30—18-34, 18-40, 18-53; Ord. No. 1978-55, § 3, 9-12-78; Ord. No. 1977-82, § 1, 12-20-77; Ord. No. 1985-116, § 1, 9-24-85; Ord. No. 1987-67, §§ 1, 2, 5-26-87; Ord. No. 1991-93, §§ 13, 14, 18, 9-10-91; Ord. No. 1991-157, § 2, 12-10-91; Ord. No. 1992-295, § 2, 12-15-92; Ord. No. 1995-568, § 1, 12-19-95; Ord. No. 2017-131, § 4, 10-10-17.

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Chapter 13

FIRE PREVENTION AND PROTECTION*

Article I. In General

Sec. 13-1. Compliance with chapter required.
Sec. 13-2. False alarms; interfering with or damaging alarm boxes or equipment.
Sec. 13-3. Unauthorized persons to remain outside fire line.
Sec. 13-4. Command at scene of fire.
Sec. 13-5. Interfering with directions of fire officer.
Sec. 13-6. Turning off gas in event of fire.
Sec. 13-7. Obstructing operation of fire engines or engine house.
Sec. 13-8. Fires on vessels.
Sec. 13-9. Spark arresters on ships in port and steam apparatus near wharves.
Sec. 13-10. Open burning prohibited.
Secs. 13-11—13-25. Reserved.

Article II. Fire Department

Division 1. Generally

Sec. 13-26. Established.
Sec. 13-27. Duties and responsibilities of department.
Sec. 13-28. Administration of department.
Sec. 13-29. Appointment of personnel.
Sec. 13-30. Promulgation of special rules and regulations.
Sec. 13-31. Special or auxiliary firemen.
Secs. 13-32—13-40. Reserved.

Division 2. Board of Firemasters

Sec. 13-41. Established.
Sec. 13-42. Composition, membership of commission.
Sec. 13-43. Duties.
Secs. 13-44—13-50. Reserved.

Division 3. Firemen's Insurance and Inspection Fund

Sec. 13-51. Board of trustees; creation; composition; appointment; terms; compensation; officers.

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*__Cross references—__Committee on public safety, § 2-56; buildings and building regulations, Ch. 7.

Sec. 13-52. Use of funds.
Sec. 13-53. Acceptance by city of benefits of Act of March 7, 1910.
Sec. 13-54. Clerk of the council; annual report to state fire marshal.
Secs. 13-55—13-60. Reserved.

Division 4. Inspections

Sec. 13-61. Duty of fire chief as to origin of fires; duty of hotel or rooming house owner to report fire.
Secs. 13-62—13-75. Reserved.

Article III. Codes

Sec. 13-76. Adopted.
Sec. 13-77. Modification.
Sec. 13-78. Appeals.
Sec. 13-79. Compliance with code required; penalties.
Sec. 13-80. Licensing.
Sec. 13-81. Permit and plan review fees.
Secs. 13-82—13-95. Reserved.

Article IV. Reserved

Secs. 13-96—13-130. Reserved.

Article V. Reserved

Secs. 13-131—13-172. Reserved.

Article VI. Reserved

Secs. 13-173—13-190. Reserved.

Article VII. Fireworks

Sec. 13-191. Possession, sale, discharge; sparklers excepted.
Sec. 13-192. Public exhibitions.
Sec. 13-193. Use of signal fireworks.
Secs. 13-194—13-205. Reserved.

Article VIII. Reserved

ARTICLE I. IN GENERAL*

Sec. 13-1. Compliance with chapter required.

No person shall oppose, interfere with or refuse to obey any of the regulations prescribed in this chapter.
(Code 1975, § 24-1)

Sec. 13-2. False alarms; interfering with or damaging alarm boxes or equipment.

It shall be unlawful for any person to give, or cause to be given, a false alarm of fire, with intent to deceive, or to pull the slide of any station or signal box, except in case of fire, or to tamper, meddle or interfere in any way with such boxes, or any part thereof, or to cut, break, injure, deface or remove any of the boxes, or any of the wires or supports thereof, connected with any part of such fire alarm, or to make any connection or communication therewith, so as to interrupt or interfere with the proper working of the same, or with evil intent to injure, break or destroy any machinery or fixtures connected with it.
(Code 1975, § 24-3)

Sec. 13-3. Unauthorized persons to remain outside fire line.

As far as may be practicable, no person whatever, not connected with the fire department, police department, public service department or underwriters' agents, shall be allowed to

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*__Editor's note—__Ord. No. 2001-54, §§ 24—28, adopted May 29, 2001, amended former Art. I, §§ 13-1—13—14, to read as herein set out. Section 24 of Ord. No. 2001-54 repealed former section 13-8 which pertained to sprinkler systems in certain buildings and derived from the Code of 1975 and Ord. No. 1981-4, § 1, 2-17-81.

Sections 25—27 of said ordinance repealed former sections 13-11—13-13 which pertained to inspections by the fire official and derived from the Code of 1975 and Ord. No. 1987-66, §§ 1—3; 5-26-87.

Section 28 of Ord. No. 2001-54 renumbered former sections 13-9, 13-10 and 13-14 as 13-8—13-10.

remain within the line of operations unless actually employed. For this purpose, a cordon shall be drawn around the fire, within which no person shall enter unless his services are required.
(Code 1975, § 24-7)

Sec. 13-4. Command at scene of fire.

All the operations at a fire shall be considered as under the direction and control of the chief of the department and the officers of the fire department.
(Code 1975, § 24-8)

Sec. 13-5. Interfering with directions of fire officer.

No person shall oppose, interfere with or refuse to obey the directions of the chief of the fire department and the officers of the fire department. Any person in any way interfering with the fire department shall be guilty of a misdemeanor and may be arrested and removed beyond the line of operations, provided for in section 13-3, or committed, as the case may be.
(Code 1975, § 24-9)

Sec. 13-6. Turning off gas in event of fire.

Whenever a fire occurs within the city, it shall be the duty of the chief officers of the fire department, or any of their assistants, who may be on duty at such fire, to give directions for shutting off gas from any house on fire, or about to take fire. No person other

than the occupant of the house, shall shut off the gas, except by the express order of such officers or assistants. Before any such order shall be given, full and sufficient notices shall be given to the occupants of the house, to enable them to make such arrangements as the urgency of circumstances will permit. Any person who shall shut off the gas from a house on fire, or in the neighborhood of a fire, without the order of the chief of the fire department, or one of his assistants, or of the occupants of the premises, shall be guilty of a misdemeanor. Should the chief of the fire department, or his assistants, order the gas to be shut off from any house not actually on fire without first giving full notice of such order to the inmates of the house, and in time for them to make such preparation and arrangements as circumstances will admit, he shall be guilty of a misdemeanor.
(Code 1975, § 24-10)

Sec. 13-7. Obstructing operation of fire engines or engine house.

It shall be unlawful for any person to obstruct the working of the fire engines or trucks, or the front of any engine or truck house, whereby the free ingress and egress of the engine or truck may be prevented.
(Code 1975, § 24-11)

Sec. 13-8. Fires on vessels.

In the event of a vessel entering the port of Charleston on fire, or a vessel taking fire in the stream after having hauled out from the wharf, the chief of the fire department is empowered to negotiate for the service of the fire department in extinguishing such fires.
(Code 1975, § 24-77; Ord. No. 2001-54, § 28, 5-29-01)

Sec. 13-9. Spark arresters on ships in port and steam apparatus near wharves.

All ships and vessels now in the port of Charleston, or which may hereafter come to the port of Charleston, using a donkey or any other engine for the purpose of loading, and all steam apparatus of every kind including locomotives, steamboats or

stationary engines, employed or used on or near any of the wharves of the city, shall provide and use, so long as such steam engines or apparatus may be employed on or near the wharves, proper and sufficient spark arresters. All ships and vessels shall use such spark arresters also on their galley stove pipes. Any captain or master of any ship, vessel or steamboat, or the owner or person in charge of any steam apparatus, locomotive or stationary engine, used or employed on or near any of the wharves of the city, who shall refuse or fail to provide and use such spark arresters shall be guilty of a misdemeanor.
(Code 1975, § 24-78; Ord. No. 2001-54, § 28, 5-29-01)

Sec. 13-10. Open burning prohibited.

(a) "Open burning" means the intentional burning of materials wherein products of combustion are emitted directly into the ambient air without passing through a stack or chimney from an enclosed chamber. For the purpose of this definition, a chamber shall be regarded as enclosed when, during the time combustion occurs, only apertures, ducts, stacks, flues or chimneys necessary to provide combustion air and permit the escape of exhaust gas are open.

(b) A person shall not kindle, maintain, or authorize to be kindled or maintained any open burning unless allowed below.

(c) Open burning is prohibited except as provided as follows:

(1) Fires set for the cooking of food for human consumption if:

a. Contained within a device designed for the purposes of cooking food over open flame;

b. Kept from beneath or under a residence (or eaves);

c. Kept three (3) feet from any combustible material;

d. If the cooking fire is constantly attended until extinguished; and

e. A minimum of one portable fire extinguisher with a minimum 4-A rating or other approved on-site fire-extinguishing equipment, such as dirt, sand, water barrel, garden hose, shall be available for immediate utilization.

(2) Fires set for recreational purposes if:

a. Contained within a device designed for the purpose of containing recreational fires to include: portable fire places, chimeras, grills, woodstoves, etc.;

b. Kept twenty-five (25) feet from any structure or combustible material;

c. If the recreational fire is constantly attended until extinguished; and

d. A minimum of one portable fire extinguisher with a minimum 4-A rating or other approved on-site fire-extinguishing equipment, such as dirt, sand, water barrel, garden hose, shall be available for immediate utilization.

(3) Fires set in a pit for the cooking of food for human consumption if:

a. The total fuel area is three (3) feet or less in diameter and two (2) feet or less in height;

b. Kept twenty-five (25) feet from any structure or combustible material; and

c. A minimum of one portable fire extinguisher with a minimum 4-A rating or other approved on-site fire-extinguishing equipment, such as dirt, sand, water barrel, garden hose, shall be available for immediate utilization.

(4) Fires set for the purpose of backfiring to contain previously ignited fires if performed by the organization responsible for fighting and containing the fire.

(5) Fires set for the purpose of heating, construction or maintenance activities that use propane, acetylene, natural gas, gasoline or kerosene in a device intended for such use.

(6) Fires set for the purpose of instruction and/or training of firefighters.

(7) Fires set for the removal of hurricane debris or other debris generated by a natural disaster if performed by or authorized by an organization responsible for fighting and containing the fire.

(d) The fire department, police department, and fire code officials are authorized to order the extinguishment of any fire that violates the provisions of this ordinance or creates a public nuisance as defined in Chapter 21.

(e) Violation of this section shall be punishable by a fine up to five hundred dollars ($500.00).
(Code 1975, § 24-82; Ord. No. 2001-54, § 28, 5-29-01; Ord. No. 2010-113, § 1, 7-20-10)

Secs. 13-11—13-25. Reserved.

ARTICLE II. FIRE DEPARTMENT*

DIVISION 1. GENERALLY

Sec. 13-26. Established.

There is hereby established a department to be known as the fire department.
(Code 1975, § 24-4; Ord. No. 1978-11, § 1, 1-24-78)

Sec. 13-27. Duties and responsibilities of department.

The fire department shall have the responsibility of enforcing the laws, ordinances and regulations of the state and the city relating to fire control.
(Code 1975, § 24-4.1; Ord. No. 1978-11, § 1, 1-24-78; Ord. No. 1987-66, § 4, 5-26-87)

*__Cross reference—__Administration generally, Ch. 2.

Sec. 13-28. Administration of department.

The management, direction, and control of the department shall be under the supervision of the chief of the fire department who shall be appointed by the mayor, with the approval of city council.
(Code 1975, § 24-4.2; Ord. No. 1978-11, § 1, 1-24-78)

Sec. 13-29. Appointment of personnel.

The chief of the fire department shall have the power to hire, with the approval of the mayor, such personnel in such positions as are provided for in the budget of the department as approved by city council.
(Code 1975, § 24-4.3; Ord. No. 1978-11, § 1, 1-24-78)

Sec. 13-30. Promulgation of special rules and regulations.

The chief of the fire department or the fire official shall have authority to make, promulgate and enforce special rules and regulations for the purpose of preventing fire and safeguarding persons and property, including rules and regulations restricting storage, transfer or use of any inflammable material, or any gas, or the installation, operation or use of any type of machinery or equipment which may endanger life or property, or the congregation of persons under hazardous conditions; provided, that such special regulations shall not conflict with the provisions of this Code and other ordinances of the city. Such special regulations shall be entered in the official records of the board of firemasters and shall not become effective until the same shall have been advertised three (3) times in a newspaper of general circulation in the city.
(Code 1975, § 24-4.5; Ord. No. 1978-11, § 1, 1-24-78; Ord. No. 1987-66, § 5, 5-26-87)

Sec. 13-31. Special or auxiliary firemen.

Special or auxiliary firemen may be appointed by the chief of the fire department, subject to the approval of the mayor. Such firemen shall be subject to the orders of the fire chief and the

rules and regulations of the fire department, and shall possess all powers of a fireman. Persons so appointed may be suspended or dismissed by the fire chief, subject to the approval of the mayor.
(Code 1975, § 24-89; Ord. No. 1977-32, § 1, 7-19-77)

Secs. 13-32—13-40. Reserved.

DIVISION 2. BOARD OF FIREMASTERS*

Sec. 13-41. Established.

There is hereby established a board of firemasters.
(Code 1975, § 24-12; Ord. No. 1978-11, § 1, 1-24-78)

Sec. 13-42. Composition, membership of commission.

The board of firemasters of the city shall be composed of the mayor and twelve (12) citizens appointed by him and confirmed by the city council. At least two (2) members of the board shall be members of the city council and, if possible, one member of the board shall be a retired fireman of the city fire department.
(Code 1975, § 24-13; Ord. No. 1978-11, § 1, 1-24-78)

Sec. 13-43. Duties.

The board of firemasters shall be charged with the responsibility of recommending policies and procedures for the operation of the department to the chief of the fire department and city council.
(Code 1975, § 24-14; Ord. No. 1978-11, § 1, 1-24-78)

Secs. 13-44—13-50. Reserved.

DIVISION 3. FIREMEN'S INSURANCE AND INSPECTION FUND†

Sec. 13-51. Board of trustees; creation; composition; appointment; terms; compensation; officers.

The board of trustees of the firemen's insurance and inspection fund shall consist of the following members, who shall serve

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*__Cross reference—__Boards and commissions generally, § 2-151 et seq.

†__Cross reference—__Police relief and pension fund, § 25-36 et seq.

__State law reference—__Firemen's insurance and inspection fund, S.C. Code 1976, § 38-57-10 et seq.

without pecuniary compensation: The chairman of the board of firemasters, the city treasurer, the chief of the fire department and two (2) citizens, one to be appointed by the chief of the fire department and one to be appointed by the mayor, the appointments to be confirmed by city council. The two (2) citizen members shall be appointed on the second Tuesday in January every four (4) years and serve until their successors are confirmed and qualified. The board shall select from their number a president and a secretary, who shall serve without compensation. The city treasurer shall be the treasurer of the board and of such fund.
(Code 1975, § 24-18)

Cross reference—City boards and commissions generally, § 2-151 et seq.

Sec. 13-52. Use of funds.

No part of the firemen's insurance and inspection fund shall be used except for the benefit of the fire department of the city or the members thereof.
(Code 1975, § 24-19)

Sec. 13-53. Acceptance by city of benefits of Act of March 7, 1910.

The city council hereby accepts the benefits of an Act of the General Assembly of this state, entitled "An Act to declare and define the conditions upon which foreign fire insurance corporations may engage in and carry on business in this state, and to provide for the distribution of the fund arising from the compliance with such conditions," approved March 7, 1910, and amendments thereto.
(Code 1975, § 24-20)

State law reference—License fee on fire insurance companies or agents, S.C. Code 1976, § 38-5-490.

Sec. 13-54. Clerk of the council; annual report to state fire marshal.

The clerk of council shall on or before the thirty-first of October in each year make and file with the state fire marshal his certificate, stating the existence in the city of a regularly organized fire department under the control of the mayor and

city council, the number of steam, hand or other engines, hook and ladder trucks and hose wagons in actual use, together with the value of the fire apparatus and necessary equipments belonging to the fire department in serviceable condition for fire duty, the number of organized companies and the system of water supply in use for such department, together with such other facts as the state fire marshal may require on a blank to be furnished by him.
(Code 1975, § 24-21)

Secs. 13-55—13-60. Reserved.

DIVISION 4. INSPECTIONS

Sec. 13-61. Duty of fire chief as to origin of fires; duty of hotel or rooming house owner to report fire.

It shall be the duty of the chief of the fire department to inquire into the origin of every fire that occurs in the city, and to keep a record of the same in proper books for that purpose. He is hereby authorized and empowered to summon, through the chief of police, and examine such persons as witnesses, as he may think proper. He shall report to the board of firemasters, when requested, the cause and locality of all fires, the amount and character of property destroyed, and the amount of insurance thereon. In all cases where the circumstances indicate that the fire is the act of an incendiary, he shall take the necessary steps to bring the offender to punishment.
(Code 1975, § 24-22)

Secs. 13-62—13-75. Reserved.

ARTICLE III. CODES*

Sec. 13-76. Adopted.

(a) Except insofar as in conflict with the laws of the state, the latest edition of the South Carolina Fire Code, as adopted by the State of South Carolina and published by the International Code Council, Inc., thereof including Chapter 1 and Appendices B, C, D, F, and H only, shall govern the conditions hazardous to life and property from fire and life safety or explosion.

(b) The Code adopted by Section 13-76 of this article is hereby amended by the State of South Carolina as authorized by Section 9-60 (C) of the South Carolina Code of Laws, 1976 as amended, as set out in this section, which are incorporated by reference herein:

SC Amendment Number: IFC 2000-01

To replace section 508.5.1 of the International Fire Code with section 603.1.3.1 and 603.1.3.2 of the 1997 Standard Fire Prevention Code.

(Code 1975, § 24-26; Ord. No. 1980-72, § 1, 6-24-80; Ord. No. 1982-62, § 1, 8-17-82; Ord. No. 1987-65, § 1, 5-26-87; Ord. No. 1989-61, § 9, 7-18-89; Ord. No. 1991-93, § 15, 9-10-91; Ord. No. 1994-420, § 6, 12-6-94; Ord. No. 1999-186, § 6, 12-21-99; Ord. No. 2001-54, § 29, 5-29-01; Ord. No. 2017-131, § 5, 10-10-17; Ord. No. 2022-094, § 1, 7-19-22)

Sec. 13-77. Modification.

The fire official shall have power to modify any of the provisions of the fire prevention code, adopted by section 13-76, upon application in writing by the owner or lessee, or his duly authorized agent, when there are practical difficulties in the way of carrying out the strict letter of the fire prevention code; provided that, the spirit of the fire prevention code shall be observed, public safety secured and substantial justice done.

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*__Editor's note—__Ord. No. 2000-54, § 30, adopted May 29, 2001, renumbered former sections 13-79—13-82 as 13-77—13-80 in order to consolidate the provisions of this article. Sections 13-77 and 13-78 were formerly reserved.

__Cross references—__Building codes, § 7-26 et seq.; housing code, § 7-71 et seq.

The particulars of such modification when granted or allowed and the decision of the fire official thereon shall be entered upon the records of the fire official and a signed copy shall be furnished the applicant.
(Code 1975, § 24-29; Ord. No. 1987-66, § 6, 5-26-87; Ord. No. 2001-54, § 30, 5-29-01)

Sec. 13-78. Appeals.

Whenever the fire official shall disapprove an application or refuse to grant a license or permit applied for, or when it is claimed that the provisions of the fire prevention code, adopted by section 13-76, do not apply or that the true intent and meaning of the fire prevention code have been misconstrued or wrongly interpreted, the applicant may appeal to the board of adjustment and appeals as established by the building code within thirty (30) days from the date of the decision in question of the fire official.
(Code 1975, § 24-30; Ord. No. 1987-66, § 7, 5-26-87; Ord. No. 2001-54, § 30, 5-29-01)

Sec. 13-79. Compliance with code required; penalties.

(a) Any person who shall violate any of the provisions of the fire prevention code, adopted by section 13-76 including amendments, or fail to comply therewith, or who shall violate or fail to comply with any order made thereunder or who shall build in violation of any detailed statement of specifications or plans submitted and approved thereunder, or any certification or permit issued thereunder, and from which no appeal has been taken, or who shall fail to comply with such an order as affirmed or modified by persons responsible for adoption or administration of the fire prevention code, or by a court of competent jurisdiction, within the time fixed herein, shall severally for each and every such violation and noncompliance, respectively, be guilty of a misdemeanor punishable as provided in section 1-16 of this Code.

(b) The imposition of one penalty for any violation shall not excuse the violation or permit it to continue and all such persons shall be required to correct or remedy such violations or defects

within a reasonable time. When not otherwise specified, each ten (10) days that prohibited conditions are maintained shall constitute a separate offense.

(c) The application of any such penalty shall not be held to prevent the enforced removal of prohibited conditions.
(Code 1975, § 24-31; Ord. No. 2001-54, § 30, 5-29-01)

Sec. 13-80. Licensing.

No person shall engage in the business of installation, alteration or repair of fire protection systems in the city unless he shall have first secured an installation of fire protection

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systems license and shall have otherwise complied with the requirements for securing such license as the same may, from time to time, be promulgated by the city council.
(Ord. No. 1991-93, § 21, 9-10-91; Ord. No. 2001-54, § 30, 5-29-01)

Sec. 13-81. Permit and plan review fees.

(a) The code adopted by section 13-76 of this article identifies operational and construction permits required by the Fire Code, these permits may be instituted by the chief fire marshal as necessary to provide for fire prevention and safety.

(b) Additional permits or plan review requirements may be established by chief fire marshal as necessary to protect life and property.

(c) Fees shall be charged in accordance with the fee schedule established and reviewed from time to time by the council. A schedule of permit and plan review fees shall be made available to the public online at the city's website, at the clerk of council's office, or at the fire marshal's office of the fire department.

(d) Re-inspection fees shall be charged in accordance with the fee schedule established and reviewed from time to time by the council. The fee schedule shall be made available to the public online at the city's website, at the clerk of council's office, or at the fire marshal's office of the fire department. A re-inspection fee may be charged when re-inspection is required as a result of the permit holder having failed to meet the requirements of the applicable code during initial inspection, failing to properly prepare for the requested inspection, or failure to correct items cited during a previous inspection.
(Ord. No. 2017-131, § 6, 10-10-17)

Secs. 13-82—13-95. Reserved.

ARTICLE IV. RESERVED*

Secs. 13-96—13-130. Reserved.

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*__Editor's note—__Ord. No. 1987-65, § 3, adopted May 26, 1987 repealed Art. IV, garages, §§ 13-96—13-108, 13-116, derived from Code 1975, §§ 24-32—24-46.

ARTICLE V. RESERVED*

Secs. 13-131—13-172. Reserved.

ARTICLE VI. RESERVED†

Secs. 13-173—13-190. Reserved.

ARTICLE VII. FIREWORKS‡

Sec. 13-191. Possession, sale, discharge; sparklers excepted.

It shall be unlawful for any person to use, fire, shoot, discharge, sell, offer for sale, store, exchange, give away or possess any fireworks within the corporate limits of the city except for use in public display or exhibit under the provisions of section 13-192, except as provided by section 13-193, and except that the provisions of this article shall not include nor prevent the sale, possession, or use of toy cap pistols and toy pistol paper caps which contain not more than twenty hundredths (.20) of a grain of explosive mixture and fireworks known as "sparklers." The sale, use and possession of such toy cap pistols, toy pistol paper caps and sparklers shall be permitted at all times.
(Code 1975, § 24-72)

Sec. 13-192. Public exhibitions.

It shall be lawful for any person to use fireworks and public displays or exhibits provided that such displays or exhibits of fireworks shall be lawful only where the person desiring to give the same shall have first obtained written approval therefor from the chief fire official for the City of Charleston who may in

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***Editor's note—**Ord. No. 1987-65, § 3, adopted May 26-1987, repealed Art. V, oil-burning equipment, §§ 13-131—13-138, 13-146—13-151, 13-161—13-165, derived from Code 1975, §§ 24-42—24-65.

†**Editor's note—**Ord. No. 1987-65, § 3, adopted May 26, 1987, repealed Art. VI, hazardous heating equipment or appliances, §§ 13-173—13-178, derived from Code 1975, §§ 24-66—24-71.

‡**State law reference—**Fireworks, S.C. Code 1976, § 23-35-10 et seq.

his absolute discretion, grant or refuse to grant the permission so applied for, or may grant the same subject to such restrictions and limitations as he may, in his absolute discretion, deem to be in the interest of public safety in connection with such display or exhibit.
(Code 1975, § 24-73; Ord. No. 1993-415, § 1, 11-23-93; Ord. No. 2001-54, § 31, 5-29-01)

Sec. 13-193. Use of signal fireworks.

Nothing contained in this article shall be construed as prohibiting the use of signals necessary for the safe operation of railroads, buses, trucks or boats within this city, nor shall the provisions of this article apply to any common carrier, while acting as such, lawfully transporting or having custody of fireworks in interstate commerce or for delivery within this city for use as provided in this article.
(Code 1975, § 24-74)

Secs. 13-194—13-205. Reserved.

ARTICLE VIII. RESERVED*

*__Editor's note—__Ord. No. 1987-65, § 3, adopted May 26, 1987, repealed Art. VIII, fire escapes, §§ 13-206—13-211, derived from Code 1975, §§ 24-83—24-88.

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Chapter 14

GARBAGE, TRASH AND REFUSE*

Article I. In General

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Article III. Abandoned Motor Vehicles

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Article IV. Collection And Disposal

Sec. 14-46. Residential.
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Sec. 14-48. Provision for material disposal and storage facilities for new or renovated buildings.
Sec. 14-49. Construction, renovation or demolition projects.

***Editor's note—**During the preparation of this 1985 codification of the Code of the City of Charleston the codifier included the provisions of Ch. 26 of the former 1975 Code as Ch. 14 of this 1985 Code. Sections of this chapter which still derive from former Ch. 26 of the 1975 Code are denoted by parenthetical history notes which include the language, "Code of 1975, § 26- . . . " following the appropriate sections of this chapter.

Cross references—Buildings and building regulations, Ch. 7; health and sanitation, Ch. 15; utilities, Ch. 30.

Sec. 14-50. Hazardous and electronic waste.
Sec. 14-51. Removal of contractor and builder refuse.
Sec. 14-52. Tires or automotive parts.

Article V. Environmentally Acceptable Packaging And Products

Sec. 14-53. Definitions.
Sec. 14-54. Regulations.
Sec. 14-55. Exemptions.
Sec. 14-56. Requests for exemption.
Sec. 14-57. Enforcement and penalties.
Sec. 14-58. Effective date.

ARTICLE I. IN GENERAL

Sec. 14-1. Definitions.

The following words and terms when used in this chapter shall have the meanings respectively ascribed to them in this section:

Bulk consists of bulky wastes, including furniture, mattresses and large nonmetal items except as provided herein.

Charleston County recycling container is a curbside container made of plastic that is provided by Charleston County for county residents to dispose of all recyclable items deemed appropriate by the county.

Container is a watertight receptacle made of metal, heavy-duty plastic or material of similar strength with a tight-fitting cover for storage and disposal of solid waste.

Contractor and builder refuse consists of construction debris, including but not limited to bricks, lumber, mortar, plaster, roofing material, gutterings or shavings, stones and dirt.

Garbage consists of all perishable refuse, household rubbish, including paper, boxes, rags, plastic and cloth, glass, bottles, cans and any similar waste, and small dead animals.

Hazardous waste consists of materials containing environmental contaminants as defined by the South Carolina Department of Health and Environmental Control.

Litter is any quantity of solid waste which is not properly disposed of.

Private property includes, but is not limited to, the following exterior locations owned by private individuals, firms, corporations, institutions or organizations: yards, grounds, driveways, entranceways, passageways, parking areas, working areas, storage areas, vacant lots and recreation facilities.

Public property includes, but is not limited to, the following locations: streets, street medians, roads, road medians, catch basins, sidewalks, strips between sidewalk and streets, lanes, alleys, public rights-of-way, public buildings, public parking lots,

school grounds, municipal housing project grounds, municipal vacant lots, parks, beaches, playgrounds, other publicly-owned recreation facilities and municipal waterways and bodies of water.

Solid waste consists of all refuse including bulk, debris, garbage, rubbish and trash.

Trash consists of all ashes, yard rubbish, such as leaves, grass, bushes, vines, large pieces of metal, trees, branches and stumps, white goods as hereinafter defined and nonperishable refuse excluding automotive parts, tires and contractor and builder refuse as hereinafter defined.

Unsightly growth on property is an unsightly, unhealthy, unsanitary growth of grass, bushes, shrubs, trees, weeds, vines, leaves, etc.

White goods consists of bulk metal objects, including but not limited to refrigerators, stoves, washing machines, dryers, water heaters and window air conditioners.

(Code 1975, § 26-1; Ord. No. 1982-52, § 1, 6-8-82; Ord. No. 1993-107, § 1, 4-27-93; Ord. No. 1996-222, § 1, 10-29-96)

Cross reference—Rules of construction and definitions generally, § 1-2.

Sec. 14-2. Littering regulations—Pedestrians and motorists.

(a) It shall be unlawful for any person to throw, discard, place or deposit solid waste in any manner or amount on any public or private property within the corporate limits of the city, except in containers or areas lawfully provided therefor.

(b) In the prosecution charging a violation of paragraph (a) of this section from a motor vehicle, proof that the particular vehicle described in the complaint was the origin of the solid waste, together with proof that the defendant named in the complaint was at the time of such violation the registered owner of such vehicle, shall constitute in evidence a presumption that the registered owner was the person who committed the violation.

(c) It shall be the duty of every person distributing commercial handbills, leaflets, posters, flyers or any other advertising and information material to take whatever measures that may be necessary to keep such materials from littering public or private property.

(d) To help prevent or reduce litter by pedestrians, motorists and owners, such publicly patronized or used establishments and institutions as may be designated by the city sanitation division shall provide, regularly empty and maintain in good condition adequate containers that meet standards prescribed by the sanitation division. This requirement shall be applicable to, but not limited to, fast-food outlets, shopping centers, convenience stores, supermarkets, service stations, commercial parking lots, mobile canteens, motels, hospitals, schools and colleges.

(e) It shall be unlawful for any person to place or post bills on any pole, street sign, fence, structure, fixture or public property. Posting on private property requires the permission of the owner of such property.

(f) It shall be unlawful for any owner, keeper or walker of any dog or cat to permit his or her dog or cat to discharge its excreta upon any public or private property except upon the property of the owner of the animal or upon the property of one who has

assented thereto unless such owner, keeper, or walker immediately thereafter removes such animal's excreta from the public or private property in question.
(Code 1975, § 26-2; Ord. No. 1982-52, § 1, 6-8-82)

Sec. 14-3. Same—Control of loose materials.

(a) It shall be unlawful for any person to transport any loose materials by truck or other motor vehicle within the corporate limits of the city unless such material is covered and secured in such a manner as to prevent litter on public and private property.

(b) The duty and responsibility imposed by paragraph (a) of this section shall be applicable alike to the owner of the truck or other vehicle, the operator thereof or the person from whose residence or establishment the materials originated.

(c) In a prosecution charging a violation of paragraph (a) of this section, lack of adequate covering and securing shall in itself constitute proof a violation has been committed.
(Code 1975, § 26-3; Ord. No. 1982-52, § 1, 6-8-82)

Sec. 14-4. Same—Loading and unloading operations.

(a) Any owner or occupant of any establishment or institution where packing and unpacking, and/or loading and unloading of materials at exterior locations take place, shall provide suitable containers there for the disposal and storage of such materials and shall make appropriate arrangements for the collection and disposal thereof.

(b) It shall also be the duty of the owner or occupant to remove at the end of each working day any materials that have not been containerized at these locations.
(Code 1975, § 26-4; Ord. No. 1982-52, § 1, 6-8-82)

Sec. 14-5. Duty of owners, etc., to keep property clean.

(a) It shall be the duty of the owner, agent, occupant or lessee to keep exterior private and public property free of litter and unsightly growth. This requirement applies not only to removal of

loose litter, but to materials that already are, or become, trapped at such locations as fences and wall bases, grassy and planted areas, borders, embankments and other lodging points.

(b) Owners, agents, occupants or lessees whose properties face on a city right-of-way shall be responsible for keeping up to, and including, the curb, gutter or street line free of litter and unsightly growth.

(c) It shall be unlawful to sweep or push litter from buildings, property, sidewalks and strips into streets, sidewalks and the storm drainage system. Sidewalk and strip sweepings must be picked up and put into household or commercial material containers.

(d) It shall be the duty of every non-resident owner of a vacant lot or other vacant property to appoint a resident agent who shall have responsibility for keeping that lot or other property free of litter and unsightly growth.

(e) If an owner, agent, occupant or lessee fails to remove litter or unsightly growth from any private and public property, the city sanitation division shall be authorized to serve written notice to the owner or appointed agent to correct such violation within five (5) days. Failure to comply shall constitute grounds for prosecution.

(f) It shall be unlawful for the owner of any property in the city to disobey or fail to comply with any provisions of this chapter. (Code 1975, § 26-9; Ord. No. 1982-52, § 1, 6-8-82)

Sec. 14-6. Rummaging, scattering and scavenging through solid waste containers; depositing hot or burning materials therein.

(a) Definitions. For purposes of this section:

Law enforcement purposes shall mean government directed or sanctioned investigatory searches consistent with the requirements of the Fourth Amendment to the United States Constitution.

Solid waste container shall mean any garbage, solid waste, recycling, swap shop container, bag, box or other container which is capable or does contain solid waste.

(b) Except as shall be necessary for law enforcement purposes, it shall be unlawful for any person to rummage through, remove, salvage items from or otherwise scavenge from or tamper with any solid waste container, whether located curbside or at designated drop-off or collection points, whether located temporarily or permanently. The scattering of any of the contents of any solid waste container is also prohibited.

(c) It shall be unlawful for any person to deposit or place hot ashes or similar refuse or any burning matter in any solid waste container.
(Ord. No. 2013-19, § 1, 2-12-13)

Sec. 14-7. Scavenging electronic waste and cardboard materials.

(a) Definitions. For purposes of this section:

Cardboard means pasteboard or materials similar to thick, stiff paper that is made of pressed pulp or pasted sheets of paper commonly used for making signs, cartons, boxes or other like containers.

Electronic waste or *e-waste* means televisions and any computer products, to include desktop computers, notebook computers and computer monitors and printers.

Law enforcement purposes shall mean government directed or sanctioned investigatory searches consistent with the requirements of the Fourth Amendment to the United States Constitution.

(b) Except as shall be necessary for law enforcement purposes, it shall be unlawful for any person to remove, salvage parts from, scavenge or otherwise tamper with any cardboard materials or electronic waste (sometimes referred to as e-waste) whether located in or outside of a solid waste container or at a curbside or at designated drop-off or collection points, whether located tem-

porarily or permanently. The scattering of any cardboard materials or electronic waste, within or without a solid waste container, is also prohibited.
(Ord. No. 2013-19, § 2, 2-12-13)

Secs. 14-8—14-15. Reserved.

ARTICLE II. ADMINISTRATION AND ENFORCEMENT*

Sec. 14-16. Notices, citations, penalties, liens.

(a) The mayor is hereby empowered to issue administrative regulations empowering specified employees of the city to issue notices or citations to any person if there is probable cause to believe he has violated this chapter. Notices and citations so issued shall be personally delivered to the alleged violator, or sent by certified mail if he cannot be found, and shall direct the alleged violator to take such correction action as may be necessary and to appear at the municipal court at a specified day and time, not less than ten (10) days from the date of the notice or citation. The chief judge of the municipal court is empowered to set bonds for violations of the provisions of this chapter, which bonds may be forfeited by the violator in lieu of an appearance in court, provided that nothing herein shall preclude the city's taking appropriate action if the violation charged hereunder is not timely corrected or is repeated.

(b) All notice and citation forms are to be serially numbered in triplicate and the records with respect to the said forms and the disposition of the same shall be maintained by the city sanitation division.

(c) The citation shall contain:

(1) The identification of the violator and the violation committed;

(2) The procedure to follow if violator elects to appear in court;

(3) The bond set by the municipal court for each violation and the procedure for posting and forfeiting the bond;

(4) A description of the action necessary to correct the violation and a direction to take such action before a specified date; and

(5) A warning of the city's powers under (d) of this section.

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*__Cross reference—__Administration generally, Ch. 2.

(d) If the required bond is not posted, or action taken to correct a violation of section 14-5 or court appearance made, according to the terms of the citation, then the city shall have the right immediately to issue an arrest warrant and/or to enter onto the premises and take the necessary corrective action, charging the costs thereof as a lien against the property.

(e) In the event that criminal sanctions are invoked hereunder, violation of any section of this chapter shall be punishable by a fine not exceeding five hundred dollars ($500.00) or imprisonment not to exceed thirty (30) days as provided in section 1-16.

(f) In the event that the city, by its agents or employees, enters onto the property to take corrective action, the amount of the cost of correcting the conditions on said property, or of the removal of any litter, or other unhealthy or unsightly material, or of any other actions reasonably taken by the City of Charleston to abate the same or to remove the threat to the public's health and safety, shall be a lien against the real property upon which such cost was incurred. All costs incurred by the city in preparing, recording, collecting and defending such lien shall be included therein including, but not limited to, reasonable attorney's fees, costs and disbursements.

(g) Nothing herein shall prevent the city from taking such other action as may be necessary and lawful to protect the public health, safety, or welfare when emergency conditions obtain, and nothing herein shall be construed to prevent the establishment of administrative procedures concerning the issuance of courtesy notices in an effort to encourage voluntary compliance with the terms and provisions of this chapter.
(Code 1975, §§ 26-11, 26-12; Ord. No. 1982-52, § 1, 6-8-82; Ord. No. 1984-160, § 2, 11-13-84; Ord. No. 2013-131, § 1, 11-26-13)

Sec. 14-17. Reserved.

Editor's note—Ord. No. 1984-160, § 2, adopted Nov. 13, 1984, repealed 1975 Code § 26-12, codified herein as § 14-17. Substantially similar provisions to former § 14-17 are included in § 14-16 as amended by the above ordinance.

Secs. 14-18—14-30. Reserved.

ARTICLE III. ABANDONED MOTOR VEHICLES

Sec. 14-31. Determination of abandonment.

For the purposes of this article, a vehicle shall be determined to have been abandoned if:

(1) The vehicle fails to display a current license plate, and it is partially dismantled or wrecked or incapable of self-propulsion or of being moved in the manner for which it was originally intended; or

(2) The vehicle is left on private property without the consent of the owner, occupant or lessee thereof for a period of time exceeding twenty-four (24) consecutive hours; or

(3) The vehicle is left on any public street or highway or in any parking garage of the city for a period of time greater than seven (7) consecutive days; or

(4) The vehicle is left on any property owned or operated by the city other than that as described in subsection (3) hereof for a period of time greater than twenty-four (24) consecutive hours.

(Code 1975, § 26-10(b); Ord. No. 1982-52, § 1, 6-2-82; Ord. No. 1984-160, § 1(26-10(b)), 11-13-84; Ord. No. 1988-59, § 1, 7-13-88)

Sec. 14-32. Abandonment prohibited.

No person shall abandon any motor vehicle on any public street or public grounds or upon any privately owned property. No person controlling privately owned property shall permit any abandoned or unsafe vehicle to remain thereupon.

(Code 1975, § 26-10(b); Ord. No. 1982-52, § 1, 6-8-82; Ord. No. 1984-160, § 1(26-10(a)), 11-13-84)

Sec. 14-33. Removal; notice to owner.

(a) Any abandoned motor vehicle may be removed to a storage area for safekeeping by or at the direction of the police department or such other person charged with enforcing the provisions hereof.

(b) Notwithstanding subsection (a) hereof, a vehicle determined to be abandoned only because it meets the criteria of subsection

14-31(2) shall not be removed from a privately owned premises unless the written request by, or the written consent of, the owner, lessee or occupant of the premises has been received.

(c) Nothing herein shall be construed to prohibit the right of city council to find and declare a vehicle to be a health or safety hazard and to order its removal, provided, however, before city council shall declare any vehicle on private property to be a health or safety hazard, the owner, lessee, or occupant of the premises shall be afforded notice and an opportunity to be heard before the council committee on public works and utilities or such other committee of council to which the matter may be referred, which committee shall report its recommendations to council.

(Code 1975, § 26-10(d); Ord. No. 1982-52, § 1, 6-8-82; Ord. No. 1984-160, § 1(26-10(d)(3)—(5)), 11-13-84; Ord. No. 1988-59, § 2, 7-13-88)

Sec. 14-34. Redemption of removed vehicles.

(a) The owner of any removed vehicle, before obtaining possession thereof, shall pay to the city or, as appropriate, its agent storing said vehicle, all reasonable costs incidental to the removal and storage [of the vehicle] and locating of the owner.

(b) Should such owner fail or refuse to pay the costs, or should the owner's identity or whereabouts be unknown and unascertainable after a diligent search and after notice as herein prescribed, the stored vehicle may be sold after twenty (20) days' notice has been given to the department of motor vehicles before the date of sale, and after the vehicle has been held for not less than thirty (30) days.

(c) The vehicle may be sold by public or private sale, but no vehicle may be sold until its value has been determined by three (3) disinterested dealers or garagemen.

(Code 1975, § 26-10(d); Ord. No. 1982-52, § 1, 6-8-82; Ord. No. 1984-160, § 1(26-10(d)(3)—(5)), 11-13-84)

Secs. 14-35—14-45. Reserved.

ARTICLE IV. COLLECTION AND DISPOSAL

Sec. 14-46. Residential.

(a) All residences, excluding residential multi-family complexes located in the city, shall use sufficient containers so as to accommodate the normal volume of solid waste generated therein between collections, unless otherwise specified. The type, size and number of containers allowed shall be as follows:

(1) *Type.* Watertight metal or heavy-duty plastic or material of similar strength with handles and tight-fitting cover.

(2) *Size.* Maximum of forty (40) gallons in volume and fifty (50) pounds or less when loaded per can, unless otherwise specified in writing by the city sanitation division.

(3) *Number.* Maximum of three (3) per household or dwelling unit.

(b) Bulk, including white goods, shall be disposed of only in accordance with the following policy:

(1) Free bulk pickup shall be available for residents, provided the city sanitation division is notified.

(2) Residents shall place bulk pickup with all doors and drawers removed, if applicable at the curb or edge of pavement only on the date and time assigned by the city sanitation division.

(3) No white goods shall be picked up by the city unless all doors or drawers shall have been removed from same prior to the goods being placed at the curb or edge of pavement for disposal.

(c) All leaves and grass shall be placed in brown paper bags designed for the purpose of leaf and clippings disposal and placed at the curb. It shall be the responsibility of the resident to provide the necessary bags. Loose leaves and grass placed at the curb in piles will not be collected. No household garbage may be placed in with leaves or grass. Such mixtures shall be separated by the resident or the city will not collect them. Home composting of leaves and grass is encouraged for all residents.

(d) Logs, limbs, brush and stumps shall be placed at the curb in the following manner:

(1) Length of material shall be limited to four (4) feet;

(2) Diameter of material shall be limited to four (4) inches;

(3) Material shall not be placed on top of water meters, adjacent to fire hydrants, on top of sprinkler heads or close to any object or material that may be damaged by mechanical loading devices.

No materials listed in (1), (2) or (3) above which are generated by contractors or landscapers shall be collected by the city.

(e) Containers shall be tightly covered when placed for pickup.

(f) Any container which violates prescribed standards or which has defects likely to hamper collection or injure collection personnel or the public or any violation of this section shall be promptly remedied by the resident upon notification of such violation from the city sanitation division. If not remedied by the resident after the resident has received notice, the city sanitation division shall remove such unsafe or unauthorized container from the premises.

(g) In placing containers and other solid waste for collection and removing containers after collection, all residents shall follow these practices:

(1) *Days.* Monday through Friday, except holidays, as assigned by the city sanitation division.

(2) *Hours.* All solid waste, excluding bulk for collection by the city environmental services division shall be placed at the curb before 6:30 a.m. during daylight savings time and before 7:00 a.m. during Eastern Standard Time on the scheduled pickup days only. Garbage shall not be placed before 6:00 p.m. the day before scheduled pickup. Trash shall not be placed earlier than two (2) days before scheduled pickup. Containers, including county curbside recycling containers, shall be removed as soon as possible after pickup, but no later than 6:00 p.m. on the scheduled pickup days. The city environmental services division shall not be responsible for the pickup of refuse not placed by the prescribed time.

(3) *Location.* All containers and excess solid waste for collection shall be placed at the curb or edge of pavement and visible to the collection personnel.

(h) It shall be unlawful for any resident to deposit residential material in any receptacle maintained on a sidewalk, at any other location for control of litter by pedestrians or motorists, or at any other unauthorized disposal site.

(i) Grass and leaves, brush and tree parts, white goods, furniture and other bulk trash shall be placed for collection pursuant to section 14-46 herein in the following manner:

(1) The aforesaid materials shall be separated at the curb in such a way as to allow for easy access from the street by collection crews;

(2) Any of the aforesaid materials which are mixed together shall not be collected by the city. It shall be the responsibility of the owner or resident to separate these materials at the curb.

(j) All trash shall be piled in compact piles at the curb or edge of pavement. Boxes and paper shall be bundled and tied securely. (Code 1975, § 26-6; Ord. No. 1982-52, § 1, 6-8-82; Ord. No. 1993-107, §§ 2—5, 4-27-93; Ord. No. 1996-222, § 2, 10-29-96; Ord. No. 2007-101, § 1, 5-1-07; Ord. No. 2011-30, § 1, 4-12-11)

Sec. 14-47. Commercial.

(a) All establishments, businesses and institutions such as, but not limited to, restaurants, schools, apartments and condominium complexes, which generate materials for collection by the city shall use containers to accommodate the normal volume of materials generated therein between collections, unless otherwise specified. The type, size and number of containers allowed shall be as follows:

(1) *Type.* Watertight metal or heavy-duty plastic or material of similar strength with handles and tight-fitting cover. All containers must be lined with heavy-duty plastic bags.

(2) *Size.* Maximum of forty (40) gallons in volume and fifty (50) pounds or less when loaded per can, unless otherwise specified in writing by the city sanitation division.

(3) *Number.* Maximum of five (5) per establishment.

(4) *Content.* The contents of any container utilized by a commercial establishment shall be thoroughly drained and substantially void of any liquids.

(b) In placing containers and other solid wastes for collection and removing containers after collection, all establishments shall follow these practices:

(1) *Days and collection frequency.* As scheduled by the city sanitation division. Requests for any additional service must be made in writing to the city sanitation division.

(2) *Hours.* All solid waste shall be placed for collection at a time designated by the city sanitation division on the scheduled pickup days only. Containers shall be removed from the curb within an hour after pickup.

(3) *Location.* All containers and excess materials for collection shall be placed at the curb or in a designated pick up area, provided however, should the city determine that there exists an off-street location within one hundred fifty (150) yards of the establishment to which the establishment and/or the city sanitation division has legal access, then such establishment shall not be entitled to place any containers or excess materials at the curb or otherwise on, or within, the public right-of-way.

(c) It shall be the responsibility of an establishment, institution or business to make appropriate arrangements for collection and disposal of all bulk and quantity items except as herein provided and to transport such items to a state permitted landfill site.

(d) Boxes and paper shall be bundled and tied securely.

(e) Containers shall be tightly covered when placed for pickup.

(f) Any container which violates prescribed standards or which has defects likely to hamper collection or injure collection personnel or the public or any violation of this section shall be promptly remedied by the establishment upon notification of such violation from the city sanitation division. If not remedied by the establishment, after receiving notice, the city sanitation division shall remove such unsafe or unauthorized container from the premises.

(g) It shall be unlawful for any owner, manager, employee, agent or independent contractor, who works for a commercial or institutional establishment (such persons include solicitors, newspaper carriers, vendors, etc.) to deposit materials from that business in any receptacle maintained on a sidewalk, at any other location for disposal of litter by pedestrians or motorists, or at any other unauthorized disposal site.

(h) Effective April 1, 1988, any proposed new restaurant establishment, prior to receiving a certificate of occupancy, shall submit a plan for refuse disposal that complies with the requirements of this section.

(i) Any establishment or institution which cannot meet any of the prescribed requirements of this section shall make appropriate arrangements for collection and disposal thereof or transport to a state permitted landfill site.

(j) Grass and leaves, brush and tree parts, white goods, furniture and other bulk trash shall be placed for collection pursuant to section 14-47 herein in the following manner:

(1) The aforesaid material shall be separated at the curb in such a way as to allow for easy access from the street by collection crews;

(2) Any of the aforesaid materials which are mixed together shall not be collected by the city. It shall be the responsibility of the commercial establishment, institution or business to separate these materials at the curb.

(k) Ashes shall be placed in sealed metal containers.

(Code 1975, § 26-7; Ord. No. 1982-52, § 1, 6-8-82; Ord. No. 1988-25, §§ 1—4, 3-8-88; Ord. No. 1993-107, §§ 6—8)

Sec. 14-48. Provision for material disposal and storage facilities for new or renovated buildings.

(a) Before building permits shall be issued for construction or renovation of commercial or institutional buildings, and multiple-dwelling units, plans for the adequacy, location and accessibility of material containerization and storage facilities must be approved by the city inspections and sanitation divisions.

(b) No certificate of occupancy shall be issued for such premises until authorized approval of these facilities has been obtained.
(Code 1975, § 26-8; Ord. No. 1982-52, § 1, 6-8-82)

Sec. 14-49. Construction, renovation or demolition projects.

(a) It shall be unlawful for the owner, agent or contractor in charge of any construction, renovation or demolition site to cause, maintain, permit, or allow to be caused, maintained or permitted, the accumulation of any construction debris or wastes on the site before, during, or after completion of the construction, renovation or demolition project.

(b) It shall be the duty and responsibility of the owner, agent or contractor to have on the side adequate containers for the disposal of construction debris or wastes and to make appropriate arrangements for collection and disposal, or, if transported by himself, for final disposition at a state permitted landfill site.

(c) The owner, agent or contractor may be required at any time to show proof of appropriate collection and disposal, or, if transported by himself, of final disposition at a state permitted landfill site.
(Code 1975, § 26-5; Ord. No. 1982-52, § 1, 6-8-82)

Sec. 14-50. Hazardous and electronic waste.

(a) No waste identified by the South Carolina Department of Health and Environmental Control as hazardous waste and no waste defined as electronic waste in subsection 14-7(a) of this

Code shall be collected by the city. The identification of hazardous waste may vary or change pursuant to state law and will not require individual identification in the City Code.

(b) Syringe and sharp disposal.

(1) Syringes and other sharps shall be disposed of in accordance with South Carolina Department of Health and Environmental Control's (SCDHEC) recommended procedures for syringe and sharp disposal as amended from time to time.

(2) Sharps shall mean any discarded article that may compromise intact skin by causing punctures or cuts, including but not limited to, needles, syringes, Pasteur pipettes, lancets, broken glass, razor blades and scalpel blades.

(3) All syringes and sharps shall be placed in an empty bleach, detergent, or other hard plastic or metal bottle or container and labeled with either a premade label that can be obtained for free from SCDHEC or the City of Charleston Environmental Services, or a homemade label with at least three-eighths-inch lettering stating: "WARNING: NEEDLES!"

(4) Labels shall be affixed on the front and back of the container.

(5) All containers shall be filled with at least a minimum of two (2) to three (3) inches of free space between syringes and lancets and the top of the container.

(6) All containers shall have their original cap tightly sealed with tape.

(7) Containers shall be the last item placed in the garbage container and be clearly visible to collection crews.

(c) All human and animal waste should be disposed of through the sanitary sewage system or a septic tank. Diapers, incontinence products, and animal excreta, shall be placed in a sealed separate bag before being placed inside another bag containing household garbage.

(Ord. No. 1993-107, § 9, 4-27-93; Ord. No. 2009-90, § 1, 6-16-09; Ord. No. 2017-022, § 1, 3-14-17)

Sec. 14-51. Removal of contractor and builder refuse.

The city shall not collect refuse, bricks, lumber, mortar, plaster, roofing, guttering, shavings, tree debris and all other like material which is generated by a contractor or builder on behalf of an owner or resident, or by an owner or resident except as hereinafter provided. The same shall be removed by the contractor or builder, or owner or resident of the premises having hired the contractor or builder, each being jointly and severally responsible for such removal. This section shall apply to all residential and/or commercial construction, renovation or demolition projects.

Contractor and builder refuse which is generated exclusively by an owner or resident on a residential and/or commercial construction, renovation or demolition project shall be collected by the city when the volume of the said material does not exceed ninety (90) gallons per trash collection cycle.
(Ord. No. 1993-107, § 10, 4-27-93; Ord. No. 1994-173, § 1, 5-10-94)

Sec. 14-52. Tires or automotive parts.

No tires or automotive parts of any kind shall be collected by the city. Disposal of same shall be the responsibility of the owner, commercial establishment, individual, or individual in possession of the same.
(Ord. No. 1993-107, § 11, 4-27-93)

ARTICLE V. ENVIRONMENTALLY ACCEPTABLE PACKAGING AND PRODUCTS

Sec. 14-53. Definitions.

Unless otherwise expressly stated, whenever used in this Article the following terms shall have the meanings set forth below:

Affordable shall mean that a compostable or recyclable product may cost up to fifteen (15) percent more than the

purchase cost of the non-compostable or nonrecyclable alternative(s) and not be regarded, on balance, as exorbitant, overpriced, unreasonable or invaluable.

ASTM standard shall mean meeting the standards of the American Society for Testing and Materials (ASTM) international Standards D6400 or D6868 for compostable plastics, as those standards may be amended.

Business establishment shall mean any commercial enterprise that provides carryout bags to its customers through its employees or independent contractors associated with the business. The term includes sole proprietorships, joint ventures, partnerships, corporations, or any other legal entity whether for profit or not for profit. This term is inclusive of any store or business which sells or offers goods or merchandise, located or operating within the City, including those referenced in "food or grocery establishment" and "food provider."

City of Charleston facility shall mean any building, structure or vehicle owned and operated by the City of Charleston, its agents, agencies, and departments.

Compostable shall mean all the materials in the product or package, when composted in an industrial or municipal compost operation, will break down, or otherwise become part of, usable compost (e.g. soil-conditioning material, mulch) in a safe and timely manner. Compostable food service ware must meet ASTM-Standards for composability and any bio-plastic or plastic-like product must be clearly labeled, preferably with a color symbol, to allow proper identification such that the collector and processor can easily distinguish the ASTM standard compostable plastic from non-ASTM standard compostable plastic. Compostable products are considered compostable under this section only if a business establishment or food or grocery establishment using the products is composting them with an industrial or municipal compost operation.

Disposable food service ware. Interchangeable with to go packaging and food packaging material and includes, but is not limited to: all containers, clamshells, bowls, plates, trays, cartons, cups, straws, stirrers, napkins, cutlery and other items designed

for one-time use associated with prepared foods, including without limitation, service ware for takeout foods and/or leftovers from partially consumed meals prepared by food providers.

Events promoter shall mean an applicant for any event permit issued by the city.

Food or grocery establishment shall mean all sales outlets, stores, shops, vehicles or other places of business located within the city which operate to sell or convey foods, or beverages, which foods or beverages are predominantly contained, wrapped or held in or on packaging. Food establishment shall include, but not be limited to, any place where food is prepared, mixed, cooked, baked, smoked, preserved, bottled, packaged, handled, stored, manufactured and sold or offered for sale, including, but not limited to, any fixed or mobile restaurant, drive-in, convenience store, coffee shop, cafeteria, short-order cafe, delicatessen, luncheonette, grill, sandwich shop, soda fountain, hotel, motel, movie house, theatre, bed and breakfast inn, tavern, bar, cocktail lounge, nightclub, roadside stand, takeout prepared food place, industrial feeding establishment, catering kitchen, mobile food preparation unit, commissary, event, grocery store, public food market, produce stand, food stand, or similar place in or at which food or drink is prepared for sale, or for service, on the premises or elsewhere, and any other establishment or operation where food is processed, prepared, stored, served, sold, or provided for the public and any organization, group or individual which provides food as part of its service.

Food provider shall mean any vendor, business, organization, entity, group, or individual, including food establishments, as defined herein, located in the city that offers food or beverage to the public.

Person shall mean an individual, business, event promoter, trust, firm, joint stock company, corporation, non-profit, partnership, or association.

Polystyrene/plastic foam shall mean blown expanded and extruded polystyrene (sometimes called Styrofoam™) or other plastic foams which are processed by any number of techniques including, but not limited to, fusion of monomer spheres (expanded

bead plastic), injection molding, foam molding, and extrusion-blown molding (extruded foam plastic). Polystyrene and other plastic foam is generally used to make cups, bowls, plates, trays, clamshell containers, meat trays, egg cartons, coolers, ice chests, shipping boxes, packing peanuts, and beach or pool toys. The term polystyrene also includes clear or solid polystyrene which is known as oriented polystyrene.

Polystyrene/plastic foam products shall mean any item such as coolers, ice chests, cups, bowls, plates, clamshells, shipping boxes, containers, cutlery, or any other merchandise containing polystyrene/plastic foam that is not wholly encapsulated or encased by a more durable material.

Prepared food shall mean food or beverages, which are served, packaged, cooked, chopped, sliced, mixed, brewed, frozen, squeezed or otherwise prepared within the city. Prepared food does not include raw, butchered meats, fish and/or poultry sold from a butcher case or similar food establishment.

Recyclable shall mean any material that is accepted by the Charleston County recycling program, including, but not limited to, paper, glass, aluminum, cardboard and plastic bottles, jars and tubs. This also means any approved alternative products which are accepted by the county recycling centers.

Reusable carryout bag shall mean a carryout bag that is specifically designed and manufactured for multiple reuse, and meets the following criteria:

(1) Displays in a highly visible manner on the bag exterior language describing the bag's ability to be reused and recycled:

(2) Has a handle which is stitched and not heat-fused;

(3) Is constructed out of any of the following materials:

a. Cloth, other machine-washable fabric, or other durable materials whether woven or nonwoven capable of being cleaned and disinfected; or

b. Plastic film with a minimum thickness of four (4.0) mils and capable of being cleaned and disinfected.

(4) Has a minimum lifetime of one hundred twenty-five (125) uses, which for purposes of this section means the capability of carrying a minimum of twenty-two (22) pounds one hundred twenty-five (125) times over a distance of at least one hundred seventy-five (175) feet.

Single-use plastic carryout bag. A bag provided by a business establishment to a customer typically at the point of sale for the purpose of a onetime use to transport purchases, which is made predominantly of plastic derived from either petroleum or a biologically-based source.
(Ord. No. 2018-146, § 1, 11-27-18; Ord. No. 2023-274, § 1, 12-5-23)

Sec. 14-54. Regulations.

(a) No business establishment or food or grocery establishment may provide single-use plastic carryout bags at any City of Charleston facility, city sponsored event, or any event held on city owned property.

(b) No business establishment or food or grocery establishment within the city limits may provide single-use plastic carryout bags to its customers. All business establishments shall provide or make available to a customer reusable carryout bags or recyclable paper bags.

(c) Food providers within the city may not provide food in any disposable food service ware that contains polystyrene/plastic foam.

(d) Disposable food service ware that contains polystyrene/plastic foam is prohibited from use in all city facilities.

(e) All food or grocery establishments, food providers and event promoters within the city of Charleston utilizing, selling or otherwise providing disposable food service ware shall use recyclable or compostable products, subject to the provisions of sections 14-55 and 14-56.

(f) No business establishment or event promoter or food or grocery establishment within the city may sell, rent, or otherwise provide any polystyrene/plastic foam product which is not

wholly encapsulated or encased within a more durable material, except as exempted in this article. This specifically includes, but is not limited to, cups, plates, bowls, clamshells, bags, and other products intended primarily for food service use, as well as coolers, containers, ice chests, shipping boxes, or packing peanuts.

(g) Business establishments within the city limits are strongly encouraged to provide prominently displayed signage advising customers of the benefit of reducing, reusing and recycling and promoting the use of reusable carryout bags by customers.

(h) While cutlery is considered exempt pursuant to section 14-55(i), food providers in the city shall only provide, distribute or deliver disposable to-go cutlery (i.e., forks, spoons, knives) for prepared food upon the request or affirmative response of a customer or person being provided the prepared food or beverage, or in a self-service area or dispenser.
(Ord. No. 2018-146, § 1, 11-27-18; Ord. No. 2023-274, § 2, 12-5-23)

Sec. 14-55. Exemptions.

Although the city encourages the use of recyclable or compostable products throughout, the following shall be exempt from the provisions of this article:

(a) Products made from polystyrene/plastic foam which is wholly encapsulated or encased by a more durable material are exempt from the provisions of this article. Examples include surfboards, boats, life preservers, and craft supplies which are wholly encapsulated or encased by a more durable material, and durable coolers not principally composed of polystyrene/plastic foam;

(b) Construction products made from polystyrene/plastic foam are exempted from this article if the products are used in compliance with the City of Charleston Code and used in a manner preventing the polystyrene/plastic foam from being released into the environment;

(c) During a declared state of emergency or in an emergency situation where the immediate preservation of the public

peace, health or safety is involved, any organization providing emergency services shall be exempt from the provisions of this article;

(d) Laundry dry cleaning bags, door-hanger bags, newspaper bags, or packages of multiple bags intended for use as garbage, recycling, pet waste, yard waste or similar use; although the city encourages the use of recyclable or compostable products throughout;

(e) Bags provided by physicians, dentists, pharmacists or veterinarians to contain prescription drugs or other medical necessities;

(f) Bags used by a customer or an employee of a business establishment to:

(1) Contain bulk items, such as produce, nuts, grains, candy, or small hardware items;

(2) Contain or wrap raw or frozen foods, any meat product, (i.e. beef, pork or poultry, whether seasoned or otherwise processed), or any seafood product, whether or not prepackaged;

(3) Contain or wrap flowers, potted plants or other items to prevent moisture damage to other purchases; or

(4) Contain unwrapped prepared foods or bakery goods;

(g) Bags used by a non-profit corporation or other hunger relief charity to distribute food, grocery products, clothing, or other household items;

(h) Bags of any type that the customer brings to the store for their own use for carrying away from the store goods that are not placed in a bag provided by the store;

(i) Meat and seafood trays, egg cartons, plastic lids used to contain foods and liquids, to-go condiment packages and cutlery (i.e., forks, spoons, knives) are exempt from the provisions of this article;

(j) Plastic drinking straws when needed by customers due to medical or physical conditions and for whom other straws are unsuitable are exempt from the provisions of this article.

(k) Any product purchased, prepared or packaged outside the City of Charleston and thereafter sold in or delivered into the city are exempt from the provisions of this article.

(l) Any packaging used by food or grocery establishments that is required in order to comply with South Carolina Department of Health and Environmental Control Retail Food Establishment Regulation 61-25 or similar food safety regulation, or with federal food safety laws or regulations.

(m) Packaging used by food or grocery establishments that are predominantly made of paper, including wax paper products, paper products that have a clear plastic window and paper products, like paper cups or soup bowls that are lined in plastic, which are used to package ready-to-eat foods.

(Ord. No. 2018-146, § 1, 11-27-18; Ord. No. 2019-087, § 1, 9-24-19)

Sec. 14-56. Requests for exemption.

{a) The director of public service, or the director's designee, may exempt a food or grocery establishment or food provider from the requirements set forth in this article for up to a one-year period upon the food provider showing, in writing, that this article would create an undue hardship or practical difficulty not generally applicable to other persons in similar circumstances. The director of public service, or the director's designee, shall put the decision to grant or deny up to a one-year exemption in writing, and the decision may be appealed to the public works and utilities committee.

(b) Exemptions to allow for the sale or provision of polystyrene/plastic foam products may be granted by the director of public service, or the director's designee, if the food or grocery establishment or food provider can demonstrate in writing a public

health and safety requirement or medical necessity to use the product. The director of public service, or the director's designee, shall put the decision to grant or deny the exemption in writing and the decision may be appealed to the public works and utilities committee.

(c) An exemption application shall include all information necessary for the director of public service, or the director's designee, to make a decision, including but not limited to documentation showing factual support for the claimed exemption. The director of public service, or the director's designee, may require the applicant to provide additional information.

(d) The director of public service, or the director's designee, may approve the exemption application in whole or in part, with or without conditions.

(e) Any person aggrieved by the decision of the director of public service or the director's designee may appeal the decision to the city's public works and utilities committee within thirty (30) days of the director's or designee's issuance of the written decision. In evaluating the appeal, the public works and utilities committee shall determine whether the decision of the director of public service or the director's designee was made in compliance with the standards, policies, and criteria of this article. The decision of the public works and utilities committee shall be final.
(Ord. No. 2018-146, § 1, 11-27-18)

Sec. 14-57. Enforcement and penalties.

(a) The livability and tourism department has primary responsibility for enforcement of this article. The livability and tourism department is authorized to take any and all other actions reasonable and necessary to enforce this article, including, but not limited to, investigating violations, entering the premises of any business establishment during business hours.

(b) If a code enforcement officer determines that a violation of this article has occurred, he/she will issue a written warning notice to the owner or operator of the business establishment that a violation has occurred and the potential fines that will apply for future violations.

(c) Any business establishment that violates or fails to comply with any of the provisions of this article after a written warning notice has been issued for that violation shall be subject to a fine that shall not exceed two hundred dollars ($200.00) for a first violation; three hundred fifty dollars ($350.00) for a second violation within any twelve-month period; and five hundred dollars ($500.00) for each additional violation within any twelve-month period. Every thirty (30) days that a violation continues will constitute a separate offense.

(d) In addition to the penalties set forth in this section, repeated violations of this article by a person who owns, manages, operates, is a business agent of, or otherwise controls a business establishment may result in the suspension or revocation of the business license issued to the premises on which the violations occurred. No City of Charleston business license shall be issued or renewed until all fines outstanding against the applicant for violations of this article are paid in full.

(e) Violation of this article is hereby declared to be a public nuisance, which may be abated by the city by restraining order, preliminary and permanent injunction, or other means provided for by law, and the City may take action to recover the costs of the nuisance abatement.
(Ord. No. 2018-146, § 1, 11-27-18)

Sec. 14-58. Effective date.

All of the requirements set forth in this article shall take effect and become operative and enforceable on January 1, 2020.
(Ord. No. 2018-146, § 1, 11-27-18)

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Chapter 15

HEALTH AND SANITATION*

Article I. In General

Secs. 15-1—15-15. Reserved.

Article II. Transportation of Nuclear Material

Sec. 15-16. Definition.
Sec. 15-17. Notification of police prerequisite to shipment; required information.
Sec. 15-18. Shipment of certain materials prohibited.
Sec. 15-19. Exemptions.

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*__Cross references—__Animals, Ch. 5; garbage, trash and refuse, Ch. 14; offenses against public health, § 21-126 et seq.; utilities, Ch. 30.

__State law reference—__Power of city council relative to ordinances, etc., as to health, S.C. Code 1976, § 5-7-30.

ARTICLE I. IN GENERAL

Secs. 15-1—15-15. Reserved.

ARTICLE II. TRANSPORTATION OF NUCLEAR MATERIAL

Sec. 15-16. Definition.

For the purposes of this article, the term "radioactive material" shall not include:

(1) Radiation sources defined by the Department of Transportation in 49 CFR Section 173.391, as being a "limited quantity";

(2) Radiation sources used in radiography and other nondestructive testing procedures, when used by persons or firms duly licensed by the state;

(3) Radiation sources shipped by or for the United States government for military or national defense purposes;

(4) Teletherapy sources or radioactive materials employed in therapeutic radiology, in biomedical research or in educational endeavors, or medical devices designed for individual application (e.g., cardiac pacemakers) containing plutonium-238, promethium-147 or other radioactive material.

(Ord. No. 1979-42, § 3, 6-26-79)

Cross reference—Rules of construction and definitions generally, § 1-2.

Sec. 15-17. Notification of police prerequisite to shipment; required information.

It shall be unlawful to transport radioactive material in any quantity or form within or through the city unless, no later than forty-eight (48) hours prior to the commencement of such

shipment, notification of shipment has been submitted to the chief of police. Such notification shall include at least the following information:

(1) Identification of all radioactive elements contained in such shipment by name, atomic numbers and weight; if such shipment consists of spent reactor fuel or mixed fission products associated with such spent fuel elements, it shall be identified as "SPENT REACTOR FUEL";

(2) Identification of the radioactive level of each element or shipment, in curies;

(3) Identification of the transportation route, date and approximate time of such transport into or out of the city;

(4) Name, address and telephone number of the person, association, partnership or corporation submitting the notice and his, her or its relationship to the shipment (e.g., consignee, shipper, transporter) and the name of the shipper, the name of the carrier, and the name of the person or firm to whom the shipment is being sent.

(Ord. No. 1979-42, § 1, 6-26-79)

Sec. 15-18. Shipment of certain materials prohibited.

It shall be unlawful to transport within or through the city any of the following radioactive materials:

(1) Plutonium isotopes in any quantity and form exceeding two (2) grams or twenty (20) curies, whichever is less;

(2) Uranium enriched in the isotope U-235 exceeding twenty-five (25) atomic per cent of the total uranium content in quantities where the U-235 content exceeds one kilogram;

(3) Any of the actinides (i.e., elements with atomic number 89 or greater), the activity of which exceeds twenty (20) curies;

(4) Spent reactor fuel elements or mixed fission products associated with such spent fuel elements the activity of which exceeds twenty (20) curies; or

(5) Any quantity of radioactive material specified as a "Large Quantity" by the Nuclear Regulatory Commission in 10 CFR Part 71, entitled "Packaging of Radioactive Material for Transport."

(Ord. No. 1979-42, § 2, 6-26-79)

Sec. 15-19. Exemptions.

(a) Nothing in this article shall be construed to require the disclosure of any defense information or restricted data as defined in the Atomic Energy Act of 1954 and the Energy Reorganization Act of 1974, as amended.

(b) This article shall not apply to radioactive material shipped by or for the United States government for national security, military purposes or national defense purposes.

(Ord. No. 1979-42, § 4, 6-26-79)

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Chapter 16

HUMAN RELATIONS*

Art. I.	**In General, §§ 16-1—16-15**
Art. II.	**Fair Housing Practices, §§ 16-16—16-25**
Art. III.	**Termination of Assisted Housing Developments, §§ 16-26, 16-27**
Art. IV.	**Equal Enjoyment and Privileges to Public Accommodations, §§ 16-28—16-34**

ARTICLE I. IN GENERAL

Secs. 16-1—16-15. Reserved.

ARTICLE II. FAIR HOUSING PRACTICES

Sec. 16-16. Title.

This article shall be known and may be cited as the "Fair Housing Ordinance."
(Ord. No. 1980-127, § 1, 11-11-80; Ord. No. 2006-168, § 1, 5-2-06)

Sec. 16-17. Declaration of policy.

It shall be the policy of the city to eliminate discrimination in housing based on race, color, religion, sex, sexual orientation, age, disability, familial status or national origin.
(Ord. No. 1980-127, § 2, 11-11-80; Ord. No. 2006-168, § 5-2-06; Ord. No. 2009-239, § 1, 11-24-09)

Sec. 16-18. Definitions.

Except where the context clearly indicates otherwise, the following terms, as used in this article, shall have the following meanings:

Board means that body of citizens duly appointed by the city council to hear, make determinations and issue findings in all cases of discriminatory practices in housing.

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*__Cross reference—__Committee on human resources, § 2-60.

Discrimination means any direct or indirect act or practice of exclusion, distinction, restriction, segregation, limitation, refusal, denial, or any other act or practice of differentiation or preference in the treatment of a person or persons because of race, color, religion, sex, sexual orientation, age, disability, familial status or national origin, or the aiding, abetting, inciting, coercing or compelling thereof.

Familial status includes one (1) or more individuals (who have not attained the age of eighteen (18) years) being domiciled with:

(1) A parent or another person having legal custody of such individual or individuals; or

(2) The designee of such parent or other person having such custody, with the written permission of such parent or other person.

The protections afforded against discrimination on the basis of familial status shall apply to any person who is pregnant or is in the process of securing legal custody of any individual who has not attained the age of eighteen (18) years.

Housing, housing accommodations or dwelling means any building, mobile home or trailer, structure, or portion thereof which is occupied as, or designed or intended for occupancy as a residence by one or more families, and any vacant land which is offered for sale or lease for the construction or location thereon of any such building, mobile home or trailer, structure, or portion thereof or any real property, as defined herein, used or intended to be used for any of the purposes set forth in this definition.

Lending institution or financial institution includes any person, as defined herein, engaged in the business of lending money or guaranteeing loans.

Owner includes a lessee, sublessee, co-tenant, assignee, managing agent, or other person having the right of ownership or possession, or the right to sell, rent or lease any housing accommodation.

Person includes one or more individuals, governments, governmental agencies, governmental departments, governmental pro-

grams, political subdivisions, labor unions, firms, associations, joint ventures, partnerships, estates, trusts, fiduciaries, corporations, and all other groups or combinations.

Real estate broker or real estate salesman includes any individual, who for a fee, commission, salary or for other valuable consideration, who with the intention or expectation of receiving or collecting same, lists, sells, purchases, rents or leases any housing accommodations, including options thereupon or who negotiates or attempts to negotiate such activities; or who advertises or holds himself out as engaged in such activities; or who negotiates or attempts to negotiate a loan, secured by a mortgage or other encumbrance, upon transfer of any housing accommodation, or who is engaged in the business of charging an advance fee or contracting for collection of a fee in connection with a contract whereby he undertakes to promote the sale, purchase, rental or lease of any housing accommodation through its listing in a publication issued primarily for such purpose; or an individual employed by or acting on behalf of any of these.

Real property includes buildings, structures, or portions thereof which is occupied as, or designated or intended for occupancy, as a residence by one (1) or more families, lands, mobile homes, tenements, leaseholds, cooperatives and condominiums or any interest in the above.

Sexual orientation means a person's real or perceived heterosexuality, homosexuality or bisexuality, or gender identity or expression.

To rent includes to lease, to sublease, to let and otherwise grant for a consideration the right to occupy premises not owned by the occupant.

(Ord. No. 1980-127, § 3, 11-11-80; Ord. No. 2006-168, § 3, 5-2-06; Ord. No. 2009-239, §§ 2, 3, 11-24-09)

Cross reference—Rules of construction and definitions generally, § 1-2.

Sec. 16-19. Purposes of article.

The general purposes of this article are:

(1) To provide for execution within the city of the policies embodied in Title VIII of the Federal Civil Rights Act of 1968 as amended.

(2) To safeguard all individuals within the city from discrimination in housing opportunities because of race, color, religion, sex, sexual orientation, age, disability, familial status or national origin, thereby to protect their interest in personal dignity and freedom from humiliation; to secure the city against domestic strife and unrest which would menace its democratic institutions; to preserve the public health and general welfare; and to further the interests, rights, and privileges of individuals within the city.

(Ord. No. 1980-127, § 4, 11-11-80; Ord. No. 2006-168, § 4, 5-2-06; Ord. No. 2009-239, § 4, 11-24-09)

Sec. 16-20. Unlawful housing practices.

It shall be an unlawful practice for a real estate owner or operator, a real estate broker, a real estate salesman, a financial institution, an employee of any of these, or any other person to:

(a) Refuse to sell, purchase, rent or lease, or otherwise deny to or withhold any housing accommodation from a person, or to evict a person because of race, color, religion, sex, sexual orientation, age, disability, familial status or national origin; or

(b) To discriminate against a person in the terms, conditions or privileges of the sale, purchase, rental or lease of any housing accommodation, or in the furnishing of facilities or services in connection therewith; or

(c) To refuse to receive or transmit a bona fide offer to sell, purchase, rent or lease any housing accommodation from or to a person because of race, color, religion, sex, sexual orientation, age, disability, familial status or national origin; or

(d) To evict or refuse to negotiate for the sale, purchase, rental or lease of any housing accommodation to a person because of race, color, religion, sex, sexual orientation, age, disability, familial status or national origin; or

(e) To represent to a person that any housing accommodation is not available for inspection, sale, purchase, rental or

lease when in fact it is so available, or to refuse to permit a person to inspect any housing accommodation, because of race, color, religion, sex, sexual orientation, age, disability, familial status or national origin when such dwelling is in fact available to persons who are financially qualified; or

(f) To make, publish, print, circulate, post or mail, or cause to be made, published, printed, circulated, posted or mailed, any notice, statement or advertisement, or to announce a policy, or to sign or to use a form of application for the sale, purchase, rental, lease or financing of any housing accommodation, or to make a record of inquiry in connection with the prospective sale, purchase, rental, lease or financing of any housing accommodation, which indicates any discrimination or any intent to discriminate; or

(g) To offer, solicit, accept or use a listing of any housing accommodation for sale, purchase, rental or leasing, knowing that a person may be subjected to discrimination in connection with such sale, purchase, rental or lease, or in the furnishing of facilities or services in connection therewith; or

(h) To induce or discourage, or to attempt to induce or discourage:

(1) The sale,

(2) The purchase,

(3) The rental,

(4) The lease, or

(5) The listing for subparagraphs (a), (b), (c) or (d) of this section, of any housing accommodations in an area, by means of:

a. Causing panic,

b. Inciting unrest, or

c. Creating or playing upon fear, by representing that the presence or anticipated presence in that area of persons of any particular race,

color, religion, sex, sexual orientation, age, disability, familial status or national origin, will or may result in:

i. The lowering of property values in the area;

ii. The increase in criminal or antisocial behavior in the area;

iii. A decline in the quality of the school serving the area; or

(i) For any bank, building and loan association, insurance company or other corporation, association, firm or enterprise whose business consists in whole or in part in the making of commercial real estate loans, to deny a loan or other financial assistance to a person applying there for the purpose of purchasing, construction, improving, repairing or maintaining a dwelling, or to discriminate against him in the fixing of the amount, interest rate, duration, or other terms or conditions of such loans or other financial assistance, because of race, color, religion, sex, sexual orientation, age, disability, familial status or national origin of such person or of any person associated with him in connection with such loan or other financial assistance or the purposes of such loan or other financial assistance, or of the present or prospective owners, lessees, tenants, or occupants of the dwelling or dwelling in relation to which such loan or other financial assistance is to be made or given; or

(j) To deny any person, who is otherwise professionally qualified by state law, access to, or membership or participation in, any multiple listing service, real estate brokers' organization, or other service, organization or facility relating to the business of selling or renting dwellings, or to discriminate against him in the terms or conditions of such access, membership or participation, on account of race, color, religion, sex, sexual orientation, age, disability, familial status or national origin.

(Ord. No. 1980-127, § 5, 11-11-80; Ord. No. 2006-168, § 5, 5-2-06; Ord. No. 2009-239, §§ 5—11, 11-24-09)

Sec. 16-21. Exemptions from article.

The provisions of this article shall not apply:

(1) To the rental of housing accommodations in a building which contains housing accommodations for not more than four (4) families living independently of each other, if the owner or member of his family resides in one of the housing accommodations;

(2) To the rental of one (1) room or one (1) rooming unit in a housing accommodation by an individual if he or a member of his family resides therein;

(3) To a religious organization, association, or society, or any non-profit institution or organization operated, supervised or controlled by or in conjunction with a religious organization, association or society, from limiting the sale, rental or occupancy of dwellings which it owns or operates for other than commercial purpose to persons of the same religion or from giving preference to such persons, unless membership in such a religion is restricted on account of race, color, sex or national origin.

(Ord. No. 1980-127, § 6, 11-11-80; Ord. No. 2006-168, § 6, 5-2-06)

Sec. 16-22. Enforcement.

(a) The city may bring a civil action to enjoin an illegal act under this article.

(b) In addition to appropriate civil and/or equitable remedies, a violation of this article shall constitute a misdemeanor, punishable as provided in section 1-16 of this Code.

(Ord. No. 1980-127, § 7, 11-11-80; Ord. No. 2006-168, § 7, 5-2-06)

Sec. 16-23. Establishment of procedures for conciliation.

The mayor may establish procedures for investigation of complaints and conciliation of apparent violations of this article.

(Ord. No. 1980-127, § 8, 11-11-80; Ord. No. 2006-168, § 8, 5-2-06)

Sec. 16-24. Investigations, powers, records.

(a) In connection with an investigation of a complaint filed under this article, the enforcing agent(s) at any reasonable time may request voluntary access to premises, records and documents relevant to the complaints and may request the right to examine, photograph, and copy evidence.

(b) Every person subject to this article shall make, keep and preserve records relevant to the determination of whether unlawful practices have been or are being committed, such records maintained and preserved in a manner and to the extent required under the Civil Rights Act of 1968 and any regulations promulgated thereunder.
(Ord. No. 1980-127, § 9, 11-11-80; Ord. No. 2006-168, § 9, 5-2-06)

Sec. 16-25. Conspiracy to violate article unlawful.

It shall be an unlawful practice for a person, or for two (2) or more persons to conspire:

(1) To retaliate or discriminate in any manner against a person because he or she has opposed a practice declared unlawful by this article, or because he or she has made a charge, filed a complaint, testified, assisted or participated in any manner in any investigation, or proceeding, or hearing under this article; or

(2) To aid, abet, incite, compel or coerce a person to engage in any of the acts or practices declared unlawful by this article; or

(3) To obstruct or prevent a person from complying with the provisions of this article or any order issued thereunder; or

(4) To resist, prevent, impede, or interfere with the enforcing agent(s), housing board, or any of its members or representatives in the lawful performance of duty under this article.

(Ord. No. 1980-127, § 10, 11-11-80; Ord. No. 2006-168, § 10, 5-2-06)

ARTICLE III. TERMINATION OF ASSISTED HOUSING DEVELOPMENTS

Sec. 16-26. Definitions.

Affordable housing development means a rental housing development of sixteen (16) or more units that markets to or leases to low income families earning eighty (80) percent or below the median income for Charleston County based on the Standard Metropolitan Statistical Area (SMSA).

Assisted housing development means a multifamily rental housing development that receives governmental assistance under any of the following federal programs:

(1) New construction, substantial rehabilitation, moderate rehabilitation, property disposition, and loan management set-aside programs, or any other program providing project-based assistance, under Section 8 of the United States Housing Act of 1937, as amended (42 U.S.C. Sec. 1437f).

(2) The following federal programs:

a. The Below-Market-Interest-Rate Program under Section 221(d)(3) of the National Housing Act (12 U.S.C. Sec. 17151(d)(3) and (5)).

b. Section 236 of the National Housing Act (12 U.S.C. Sec. 1715z-1).

c. Section 202 of the Housing Act of 1959 (12 U.S.C. Sec. 1701q).

(3) Programs for rent supplement assistance under Section 101 of the Housing and Urban Development Act of 1965, as amended (12 U.S.C. Sec. 1701s).

(4) Programs under Section 515 of the Housing Act of 1949, as amended (42 U.S.C. Sec. 1485).

(5) Section 42 of the Internal Revenue Code.

City means the City of Charleston.

Prepayment means the payment in full or refinancing of the federally insured or federally held mortgage indebtedness prior to

its original maturity date, or the voluntary cancellation of mortgage insurance, on an assisted housing development as defined herein that would have the effect of removing the current low-income affordability restrictions contained in the applicable laws and the regulatory agreement.

Termination means an owner's decision not to extend or renew its participation in a federal subsidy program for an assisted housing development as defined herein, either at or prior to the scheduled date of the expiration of the contract, or a decision to terminate the rental restrictions for an assisted housing development provided for in 26 U.S.C. §42 (Internal Revenue Code), that may result in an increase in tenant rents or a change in the form of the subsidy from project-based to tenant-based.
(Ord. No. 2000-227, § 1, 9-25-00)

Sec. 16-27. Notice required.

(a) At least six (6) months prior to the anticipated date of termination of a subsidy contract, termination of rental restrictions, or prepayment on an assisted housing development or an affordable housing development, the owner proposing the termination or prepayment of governmental assistance shall provide a written notice of the proposed change to the city. The notice to the city shall contain information regarding:

(1) The number of affected tenants in the project;

(2) The number of units that are government assisted and the type of assistance;

(3) The number of the units that are not government assisted;

(4) The number of bedrooms in each unit that is government assisted; and

(5) The ages and income of the affected tenants.

(b) The notice shall briefly describe the owner's plans for the project, including any timetables or deadlines for actions to be taken and specific governmental approvals that are required to be obtained, the reason the owner seeks to terminate the subsidy

contract or prepay the mortgage, and any contacts the owner has made or is making with other governmental agencies or other interested parties in connection with the notice.

(c) The owner shall also attach a copy of any federally required notice of the termination of the subsidy contract or prepayment that was provided with the proposed change. The information contained in the notice required under this section shall be based on data that is reasonably available from existing written tenant and project records.
(Ord. No. 2000-227, § 1, 9-25-00)

ARTICLE IV. EQUAL ENJOYMENT AND PRIVILEGES TO PUBLIC ACCOMMODATIONS

Sec. 16-28. Title.

This article shall be known and may be cited as the City of Charleston Public Accommodations Ordinance.
(Ord. No. 2009-240, § 2, 11-24-09)

Sec. 16-29. Declaration of policy.

It is the policy of the City of Charleston, South Carolina, that no person shall be discriminated against in the full and equal enjoyment of the goods, services, facilities, privileges, advantages and accommodations of any place of public accommodation on the basis of race, color, religion, sex, age, national origin, familial status, disability or sexual orientation.
(Ord. No. 2009-240, § 3, 11-24-09)

Sec. 16-30. Definitions.

Except where the context clearly indicates otherwise, the following terms as used in this article shall have the following meanings:

Disability means a physical or mental impairment that substantially limits one (1) or more of the major life activities of the individual, a record of such an impairment or being regarded as having such an impairment.

Discrimination means any direct or indirect act or practice of exclusion, distinction, restriction, segregation, limitation, refusal, denial, or any other act or practice of differentiation or preference in the treatment of a person or persons because of race, color, religion, national origin, age, sex, familial status, disability or sexual orientation in the aiding, abetting, inciting, coercing or compelling thereof.

Person means any individual or corporation, firm, partnership, association, organization, any other group acting as a unit.

Place of public accommodation means any place which serves the public and requires a license or permit issued by the State of South Carolina, its agencies or the City of Charleston to operate, including, but not limited to:

(1) Any inn, hotel, motel, or other establishment which provides lodging to transient guests, other than an establishment located within a building which contains not more than three (3) bed and breakfast units and which is actually occupied by the proprietor of such establishment as his residence;

(2) Any restaurant, cafeteria, lunchroom, lunch counter, soda fountain, or other facility principally engaged in selling food for consumption on the premises, including, but not limited to, any such facility located on the premises of any retail establishment, or any gasoline station;

(3) Any hospital, clinic, or other medical facility which provides overnight accommodations;

(4) Any retail or wholesale establishment;

(5) Any motion picture house, theater, concert hall, billiard parlor, saloon, barroom, golf course, sports arena, stadium, or other place of amusement, exhibition, recreation, or entertainment; and

(6) Any establishment which is physically located within the premises of any establishment otherwise covered by this subsection, or within the premises of

which is physically located any such covered establishment, and which holds itself out as serving patrons of such covered establishment.

(e) *Sexual orientation* means a person's real or perceived heterosexuality, homosexuality or bisexuality or gender identity or expression.
(Ord. No. 2009-240, § 4, 11-24-09)

Sec. 16-31. Exemption from public accommodation provisions.

The provisions of this article do not apply to a private club or other establishment not in fact open to the general public, unless the establishment is being used by a third party.
(Ord. No. 2009-240, § 5, 11-24-09)

Sec. 16-32. Purpose of law; construction; effect.

The general purpose of this article is to safeguard all individuals within the city from discrimination in the equal enjoyment and privileges to public accommodations because of race, color, religion, age, national origin, sex, familial status, disability or sexual orientation; thereby to protect their interest in personal dignity and freedom from humiliation; to secure the city against domestic strife and unrest which would menace its democratic institutions; to preserve the public health and general welfare; and to further the interests, rights, and privileges of individuals within the city.
(Ord. No. 2009-240, § 6, 11-24-09)

Sec. 16-33. Prohibition of discrimination.

It shall be unlawful for any person serving the public as defined in section 16-30 to discriminate because of race, color, religion, age. national origin, sex, familial status, disability or sexual orientation.
(Ord. No. 2009-240, § 7, 11-24-09)

Sec. 16-34. Penalties; exclusive remedy.

(a) A violation of this article shall constitute a misdemeanor, punishable as provided in section 1-16 of this Code.

(b) There is no private right of action that is created by this section or money damages available to any person based on this section.

(Ord. No. 2009-240, § 8, 11-24-09)

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Chapter 17

LICENSES, PERMITS AND MISCELLANEOUS BUSINESS REGULATIONS*

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Sec. 17-17. Definitions.
Sec. 17-18. Purpose and duration.
Sec. 17-19. Business license tax, refund.
Sec. 17-20. Registration required.

***Cross references—**Permit for transporting, etc., beverages in open containers and consumption at group functions, § 3-32 et seq.; animal licenses and tags, § 5-71 et seq.; permit required for keeping of wild animals, § 5-101 et seq.; auctions and auctioneers, Ch. 6; license required for closing auction sales, § 6-16 et seq.; building permits, § 7-171 et seq.; bicycle license tags, § 19-102; visitor parking permits for residential parking district, § 19-271; special permits for residential parking districts, § 19-272 et seq.; parade permits, § 19-326 et seq.; permit for excessive size or weight of vehicles, § 19-392; registration statement required for sound-amplifying equipment, § 21-27; permit required to cut or prune tree, § 22-67; permit required for devices protecting trees in highways, § 22-68; permit required to place wire or poster on tree in highway, § 22-69; permit required to place stones impeding passage of water to trees in highway, § 22-70; permit required for disturbing surface or opening street or taking up sidewalk, § 28-21; street opening permit required, § 28-22; permission required for encroachments and obstructions of streets, § 28-36 et seq.; license required for tour guides, § 29-58 et seq.; certificate of appropriateness required for small buses, § 29-109; certificate of appropriateness required for charter buses, § 29-125; special permits required for large buses, § 29-142; certificates of appropriateness of transportation by motor vehicle for purposes of touring, § 29-185 et seq.; permit required to locate meter box in sidewalk or roadway, § 30-36; permit required to erect public utility pole or run wires in street, § 30-78 et seq.; permit required for connection with sanitary sewer, § 30-117 et seq.; permit required for more than one connection to sanitary sewers, § 30-125; permit required to lay underground utility conduits, § 30-147; permit required to turn water curb cock on and off, § 30-193 et seq.; permit required to open or interfere with water hydrants or mains, § 30-194; licenses for public cars, § 31-41 et seq.; certificate of public convenience and necessity for taxicabs, § 31-101 et seq.; annual license required for taxicab owners, § 31-104; taxicab driver's permit, § 31-121 et seq.; registration and licensing of taxicabs generally, § 31-141.

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ARTICLE I. IN GENERAL

Secs. 17-1—17-15. Reserved.

ARTICLE II. BUSINESS LICENSES*

Sec. 17-16. License required.

Every person engaged or intending to engage in any business, calling, occupation, profession, or activity engaged in with the object of gain, benefit, or advantage, in whole or in part within the limits of the City of Charleston, South Carolina, is required to pay an annual license tax for the privilege of doing business and obtain a business license as herein provided.
(Ord. No. 2021-158, § 1, 11-9-21)

Sec. 17-17. Definitions.

The following words, terms, and phrases, when used in this ordinance, shall have the meaning ascribed herein. Defined terms are not capitalized when used in this ordinance unless the context otherwise requires.

Business means any business, calling, occupation, profession, or activity engaged in with the object of gain, benefit, or advantage, either directly or indirectly.

Business license committee means the City of Charleston Business License Committee, designated by the City Council of the City of Charleston to hear appeals of any determination, denial, or suspension and proposed revocation of a business license under this article.

Charitable organization means an organization that is determined by the Internal Revenue Service to be exempt from federal income taxes under 26 U.S.C. Section 501(c)(3), (4), (6), (7), (8), (10) or (19).

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*__Editor's note—__Ord. No. 2021-158, § 1, adopted Nov. 9, 2021, amended former Art. II, § 17-16 in its entirety to read as herein set out. Former Art. II pertained to similar subject matter and derived from Ord. No. 1998-164, § 1, adopted Sept. 8, 1998.

Charitable purpose means a benevolent, philanthropic, patriotic, or eleemosynary purpose that does not result in personal gain to a sponsor, organizer, officer, director, trustee, or person with ultimate control of the organization.

Classification means that division of businesses by NAICS codes subject to the same license rate as determined by a calculated index of ability to pay based on national averages, benefits, equalization of tax burden, relationships of services, or other basis deemed appropriate by the council.

Council means the City Council of the City of Charleston.

Domicile means a principal place from which the trade or business of a licensee is conducted, directed, or managed. For purposes of this article, a licensee may be deemed to have more than one domicile.

Gross income means the gross receipts or gross revenue of a business, received or accrued, for one calendar or fiscal year collected or to be collected from business done within the municipality. If the licensee has a domicile within the municipality, business done within the municipality shall include all gross receipts or revenue received or accrued by such licensee. If the licensee does not have a domicile within the municipality, business done within the municipality shall include only gross receipts or revenue received or accrued within the municipality. In all cases, if the licensee pays a business license tax to another county or municipality, then the licensee's gross income for the purpose of computing the tax within the municipality must be reduced by the amount of revenues or receipts taxed in the other county or municipality and fully reported to the municipality. Gross income for business license tax purposes shall not include taxes collected for a governmental entity, escrow funds, or funds that are the property of a third party. The value of bartered goods or trade-in merchandise shall be included in gross income. The gross receipts or gross revenues for business license purposes may be verified by inspection of returns and reports filed with the Internal Revenue Service, the South Carolina Department of Revenue, the South Carolina Department of Insurance, or other government agencies. In calculating gross income for certain businesses, the following rules shall apply:

(1) Gross income for agents shall be calculated on gross commissions received or retained, unless otherwise speci-

fied. If commissions are divided with other brokers or agents, then only the amount retained by the broker or agent is considered gross income.

(2) Except as specifically required by S.C. Code § 38-7-20, gross income for insurance companies shall be calculated on gross premiums written.

(3) Gross income for manufacturers of goods or materials with a location in the Municipality shall be calculated on the lesser of (i) gross revenues or receipts received or accrued from business done at the location, (ii) the amount of income allocated and apportioned to that location by the business for purposes of the business's state income tax return, or (iii) the amount of expenses attributable to the location as a cost center of the business. Licensees reporting gross income under this provision shall have the burden to establish the amount and method of calculation by satisfactory records and proof. Manufacturers include those taxpayers reporting a manufacturing principal business activity code on their federal income tax returns.

License official means the City of Charleston Director of Revenue Collections Division or such other person designated to administer this article. Notwithstanding the designation of a primary license official, the municipality may designate one or more alternate license officials to administer particular types of business licenses, including without limitation for business licenses issued to businesses subject to business license taxes under Article 20, Chapter 9, Title 58, and Chapters 7 and 45, Title 38, of the South Carolina Code.

Licensee means the business, the person applying for the license on behalf of the business, an agent or legal representative of the business, a person who receives any part of the net profit of the business, or a person who owns or exercises control of the business.

Municipality means the City of Charleston, South Carolina.

NAICS, means the North American Industry Classification System for the United States published under the auspices of the Federal Office of Management and Budget.

Person means any individual, firm, partnership, limited liability partnership, limited liability company, cooperative nonprofit membership, corporation, joint venture, association, estate, trust, business trust, receiver, syndicate, holding company, or other group or combination acting as a unit, in the singular or plural, and the agent or employee having charge or control of a business in the absence of the principal.
(Ord. No. 2021-158, § 1, 11-9-21)

Sec. 17-18. Purpose and duration.

The business license required by this article is for the purpose of providing such regulation as may be required for the business subject thereto and for the purpose of raising revenue for the general fund through a privilege tax. The license year ending on April 30, 2022, shall commence on January 1, 2021 and shall run for a 16-month period. Thereafter, the license periods shall be established as follows. Except as set forth below for business licenses issued to contractors with respect to specific construction projects, each yearly license shall be issued for the twelve-month period of May 1 to April 30. A business license issued for a construction contract may, at the request of the licensee, be stated to expire at the completion of the construction project; provided, any such business license may require that the licensee file, by each April 30 during the continuation of the construction project, a statement of compliance, including but not limited to a revised estimate of the value of the contract. If any revised estimate of the final value of such project exceeds the amount for which the business license was issued, the licensee shall be required to pay a license fee at the then-prevailing rate on the excess amount. The provisions of this article and the rates herein shall remain in effect from year to year as amended by the council.
(Ord. No. 2021-158, § 1, 11-9-21)

Sec. 17-19. Business license tax, refund.

(a) The required business license tax shall be paid for each business subject hereto according to the applicable rate classification on or before the due date of the 30th day of April in

each year, except for those businesses in rate class 8 for which a different due date is specified. Late payments shall be subject to penalties as set forth in section 17-27 hereof, which will accrue after 30 days from the due date, except that admitted insurance companies may pay before June 1 without penalty.

(b) A separate license shall be required for each place of business and for each classification or business conducted at one place. If gross income cannot be separated for classifications at one location, the business license tax shall be computed on the combined gross income for the classification requiring the highest rate. The business license tax must be computed based on the licensee's gross income for the calendar year preceding the due date, for the licensee's twelve-month fiscal year preceding the due date, or on a twelve-month projected income based on the monthly average for a business in operation for less than one year. The business license tax for a new business must be computed on the estimated probable gross income for the balance of the license year. The initial business license tax for an annexed business shall be prorated for the number of months remaining in the license year. A business license related to construction contract projects may be issued on a per-project basis, at the option of the taxpayer. No refund shall be made for a business that is discontinued.

(c) A licensee that submits a payment greater than the amount owed may request a refund. To be considered, a refund request must be submitted in writing to THE Municipality before the June 1 immediately following the April 30 on which the payment was due and must be supported by adequate documentation supporting the refund request. The municipality shall approve or deny the refund request, and if approved shall issue the refund to the business, within thirty days after receipt of the request.
(Ord. No. 2021-158, § 1, 11-9-21)

Sec. 17-20. Registration required.

(a) The owner, agent, or legal representative of every business subject to this article, whether listed in the classification index or not, shall register the business and make application

for a business license on or before the due date of each year; provided, a new business shall be required to have a business license prior to operation within the municipality, and an annexed business shall be required to have a business license within thirty (30) days of the annexation. A license for a bar (NAICS 722410) must be issued in the name of the individual who has been issued the corresponding state alcohol, beer, or wine permit or license and will have actual control and management of the business. Before a new business license may be issued to a business physically located within the municipal limits of the City of Charleston, the owner, agent, or legal representative shall procure a certificate of occupancy, occupancy permit, or a certificate of operation for each location proposed to be operated by that business before commencing business operations. Applicants shall apply for a new business license within five (5) days after the certificate of occupancy, occupancy permit, or a certificate of operation has been issued.

(b) Application shall be on the then-current standard business license application as established and provided by the Director of the South Carolina Revenue and Fiscal Affairs Office and shall be accompanied by all information about the applicant, the licensee, and the business deemed appropriate to carry out the purpose of this article by the license official. Applicants may be required to submit copies of portions of state and federal income tax returns reflecting gross receipts and gross revenue figures.

(c) The applicant shall certify under oath that the information given in the application is true, that the gross income is accurately reported (or estimated for a new business) without any unauthorized deductions, and that all assessments, personal property taxes on business property, and other monies due and payable to the municipality have been paid.

(d) The municipality shall allow application, reporting, calculation, and payment of business license taxes through the business license tax portal hosted and managed by the South Carolina Revenue and Fiscal Affairs Office, subject to the availability and capability thereof. Any limitations in portal

availability or capability do not relieve the applicant or Licensee from existing business license or business license tax obligations.
(Ord. No. 2021-158, § 1, 11-9-21)

Sec. 17-21. Deductions, exemptions, and charitable organizations.

(a) No deductions from gross income shall be made except income earned outside of the municipality on which a license tax is paid by the business to some other municipality or county and fully reported to the municipality, taxes collected for a governmental entity, or income which cannot be included for computation of the tax pursuant to state or federal law. Properly apportioned income from business in interstate commerce shall be included in the calculation of gross income and is not exempted. The applicant shall have the burden to establish the right to exempt income by satisfactory records and proof. A separate itemized listing showing and explaining all deductions must accompany the license application or no deductions will be allowed.

(b) No person shall be exempt from the requirements of the article by reason of the lack of an established place of business within the municipality, unless exempted by state or federal law. The license official shall determine the appropriate classification for each business in accordance with the latest issue of NAICS. No person shall be exempt from this article by reason of the payment of any other tax, unless exempted by state law, and no person shall be relieved of liability for payment of any other tax or fee by reason of application of this article.

(c) Wholesalers are exempt from business license taxes unless they maintain warehouses or distribution establishments within the municipality. A wholesale transaction involves a sale to an individual who will resell the goods and includes delivery of the goods to the reseller. It does not include a sale of goods to a user or consumer.

(d) A charitable organization shall be exempt from the business license tax on its gross income unless it is deemed a business subject to a business license tax on all or part of its

gross income as provided in this section. A charitable organization, or any affiliate of a charitable organization, that reports income from for-profit activities or unrelated business income for federal income tax purposes to the Internal Revenue Service shall be deemed a business subject to a business license tax on the part of its gross income from such for-profit activities or unrelated business income.

(e) A charitable organization shall be deemed a business subject to a business license tax on its total gross income if (1) any net proceeds of operation, after necessary expenses of operation, inure to the benefit of any individual or any entity that is not itself a charitable organization as defined in this ordinance, or (2) any net proceeds of operation, after necessary expenses of operation, are used for a purpose other than a charitable purpose as defined in this article. Excess benefits or compensation in any form beyond fair market value to a sponsor, organizer, officer, director, trustee, or person with ultimate control of the organization shall not be deemed a necessary expense of operation.
(Ord. No. 2021-158, § 1, 11-9-21)

Sec. 17-22. False application unlawful.

It shall be unlawful for any person subject to the provisions of this ordinance to make a false application for a business license or to give or file, or direct the giving or filing of, any false information with respect to the license or tax required by this article.
(Ord. No. 2021-158, § 1, 11-9-21)

Sec. 17-23. Display and transfer.

(a) All persons shall display the license issued to them on the original form provided by the License Official in a conspicuous place in the business establishment at the address shown on the license. A transient or non-resident shall carry the license upon his person or in a vehicle used in the business readily available for inspection by any authorized agent of the municipality.

(b) A change of address must be reported to the license official within ten (10) days after removal of the business to a new location and the license will be valid at the new address upon written notification by the License Official and compliance with zoning and building codes. Failure to obtain the approval of the License Official for a change of address shall invalidate the license and subject the licensee to prosecution for doing business without a license. A business license shall not be transferable, and a transfer of controlling interest shall be considered a termination of the old business and the establishment of a new business requiring a new business license, based on old business income.
(Ord. No. 2021-158, § 1, 11-9-21)

Sec. 17-24. Administration of article.

The license official shall administer the provisions of this article, collect business license taxes, issue licenses, make or initiate investigations and audits to ensure compliance, initiate denial or suspension and revocation procedures, report violations to the municipality's attorney, assist in prosecution of violators, produce forms, undertake reasonable procedures relating to the administration of this article, and perform such other duties as may be duly assigned.
(Ord. No. 2021-158, § 1, 11-9-21)

Sec. 17-25. Inspection and audits.

(a) For the purpose of enforcing the provisions of this article, the license official or other authorized agent of the municipality is empowered to enter upon the premises of any person subject to this ordinance to make inspections and to examine and audit books and records. It shall be unlawful for any such person to fail or refuse to make available the necessary books and records. In the event an audit or inspection reveals that the licensee has filed false information, the costs of the audit shall be added to the correct business license tax and late penalties in addition to other penalties provided herein. Each day of failure to pay the proper amount of business license tax shall constitute a separate offense.

(b) The license official shall have the authority to make inspections and conduct audits of businesses to ensure compliance with the article. Financial information obtained by inspections and audits shall not be deemed public records, and the license official shall not release the amount of business license taxes paid or the reported gross income of any person by name without written permission of the licensee, except as authorized by this article, state or federal law, or proper judicial order. Statistics compiled by classifications are public records.
(Ord. No. 2021-158, § 1, 11-9-21)

Sec. 17-26. Assessments, payment under protest, appeal.

(a) Assessments, payments under protest, and appeals of assessment shall be allowed and conducted by the Municipality pursuant to the provisions of S.C. Code § 6-1-410, as amended. In preparing an assessment, the license official may examine such records of the business or any other available records as may be appropriate and conduct such investigations and statistical surveys as the license official may deem appropriate to assess a business license tax and penalties as provided herein.

(b) The License Official shall establish a uniform local procedure consistent with S.C. Code § 6-1-410 for hearing an application for adjustment of assessment and issuing a notice of final assessment; provided that for particular types of business licenses, including without limitation for business licenses issued to businesses subject to business license taxes under Article 20, Chapter 9, Title 58, and Chapters 7 and 45, Title 38, of the South Carolina Code, the municipality, by separate ordinance, may establish a different procedure and may delegate one (1) or more rights, duties, and functions hereunder to the Municipal Association of South Carolina.
(Ord. No. 2021-158, § 1, 11-9-21)

Sec. 17-27. Delinquent license taxes, partial payment.

(a) For non-payment of all or any part of the correct business license tax, the license official shall impose and collect a late penalty of five (5) percent of the unpaid tax for the first month or portion thereof after the due date and an additional twenty (20)

percent for the second month or portion thereof after the due date, for a total of twenty-five (25) percent, and an additional ten (10) percent for the third month, for a total of thirty-five (35) percent of the correct license tax. For non-payment by insurance companies of all or any part of the correct business license tax, the license official shall impose and collect a late penalty of five (5) percent of the unpaid tax for each month or portion thereof after the due date until paid. Penalties shall not be waived. If any business license tax remains unpaid for sixty (60) days after its due date, the license official shall report it to the municipality's attorney for appropriate legal action.

(b) Partial payment may be accepted by the license official to toll imposition of penalties on the portion paid; provided, however, no business license shall be issued or renewed until the full amount of the tax due, with penalties, has been paid.
(Ord. No. 2021-158, § 1, 11-9-21)

Sec. 17-28. Notices.

The license official may, but shall not be required to, mail written notices that business license taxes are due. If notices are not mailed, there shall be published a notice of the due date in a newspaper of general circulation within the municipality three (3) times prior to the due date in each year. Failure to receive notice shall not constitute a defense to prosecution for failure to pay the tax due or grounds for waiver of penalties.
(Ord. No. 2021-158, §1, 11-9-21)

Sec. 17-29. Denial of license.

The license official may deny a license to an applicant when the license official determines:

(a) The application is incomplete or contains a misrepresentation, false or misleading statement, or evasion or suppression of a material fact;

(b) The activity for which a license is sought is unlawful or constitutes a public nuisance per se or per accidens;

(c) The applicant, licensee, prior licensee, or the person in control of the business has been convicted within the

previous ten years of an offense under a law or ordinance regulating business, a crime involving dishonest conduct or moral turpitude related to a business or a subject of a business, or an unlawful sale of merchandise or prohibited goods;

(d) The applicant, licensee, prior licensee, or the person in control of the business has engaged in an unlawful activity or nuisance related to the business or to a similar business in the municipality or in another jurisdiction;

(e) The applicant, licensee, prior licensee, or the person in control of the business is delinquent in the payment to the municipality of any tax or fee, unless a payment plan has been approved by the license official;

(f) The applicant, licensee, prior licensee, or the person in control of the business fails to permit inspections or audits by the license official pursuant to section 17-25;

(g) The applicant has not been issued a certificate of occupancy, occupancy permit, or a certificate of operation for the operation of the applicant's business that is physically located in the city.

(h) A licensee has actual knowledge or notice, or based on the circumstances reasonably should have knowledge or notice, that any person or employee of the licensee has committed a crime of moral turpitude on the business premises, or has permitted any person or employee of the licensee to engage in the unlawful sale of merchandise or prohibited goods on the business premises and has not taken remedial measures necessary to correct such activity; or

(i) The license for the business or for a similar business of the licensee in the municipality or another jurisdiction has been denied, suspended, or revoked in the previous license year.

A decision of the license official shall be subject to appeal as herein provided. Denial shall be written with reasons stated. (Ord. No. 2021-158, § 1, 11-9-21)

Sec. 17-30. Suspension or revocation of license.

When the license official determines:

(a) A license has been mistakenly or improperly issued or issued contrary to law;

(b) A licensee has breached any condition upon which the license was issued or has failed to comply with the provisions of this article;

(c) A licensee has failed to permit inspections or audits by the license official pursuant to section 17-25;

(d) A licensee has obtained a license through a fraud, misrepresentation, a false or misleading statement, or evasion or suppression of a material fact in the license application;

(e) A licensee has been convicted within the previous ten (10) years of an offense under a law or ordinance regulating business, a crime involving dishonest conduct or moral turpitude related to a business or a subject of a business, or an unlawful sale of merchandise or prohibited goods;

(f) A licensee has engaged in an unlawful activity or nuisance related to the business; or

(g) A licensee is delinquent in the payment to the municipality of any tax or fee.

The license official may give written notice to the licensee or the person in control of the business within the municipality by personal service or mail that the license is suspended pending a single hearing before the business license committee for the purpose of determining whether the suspension should be upheld and the license should be revoked.

The written notice of suspension and proposed revocation shall state the time and place at which the hearing is to be held, and shall contain a brief statement of the reasons for the suspension and proposed revocation and a copy of the applicable provisions of this article.
(Ord. No. 2021-158, § 1, 11-9-21)

Sec. 17-31. Appeals to business license committee.

(a) Except with respect to appeals of assessments under Section 17-26 hereof, which are governed by S.C. Code § 6-1-410, any person aggrieved by a determination, denial, or suspension and proposed revocation of a business license by the license official may appeal the decision to the business license committee by written request stating the reasons for appeal, filed with the license official within ten (10) days after service by mail or personal service of the notice of determination, denial, or suspension and proposed revocation.

(b) A hearing on an appeal from a license denial or other determination of the license official and a hearing on a suspension and proposed revocation shall be held by the business license committee within ten (10) business days after receipt of a request for appeal or service of a notice of suspension and proposed revocation. The hearing shall be held upon written notice at a hearing to be scheduled by the business license committee. The hearing may be continued to another date by agreement of all parties. At the hearing, all parties shall have the right to be represented by counsel, to present testimony and evidence, and to cross-examine witnesses. The proceedings shall be recorded and transcribed at the expense of the party so requesting. The rules of evidence and procedure prescribed by the business license committee shall govern the hearing. Following the hearing, the business license committee by majority vote of its members present, shall render a written decision based on findings of fact and conclusions on application of the standards herein. The written decision shall be served, by personal service or by mail, upon all parties or their representatives and shall constitute the final decision of the municipality.

(c) Any person aggrieved by a final decision of the business license committee regarding a suspension or revocation of a business license, or a decision by the business license committee on a matter appealed to it in accordance with the procedures outlined in this section may appeal the decision of the business license committee to the circuit court in and for the county by filing with the clerk of court a petition in writing setting forth plainly, fully, and distinctly why the decision is contrary to law.

The appeal must be filed within thirty (30) days after the affected party receives actual notice of the decision of the business license committee. Timely appeal of a decision of the business license committee does not effectuate a stay of that decision. The decision of the business license committee shall be binding and enforceable unless overturned by an applicable appellate court after a due and timely appeal.

(d) For business licenses issued to businesses subject to business license taxes under Article 20, Chapter 9, Title 58, and Chapters 7 and 45, Title 38, of the South Carolina Code, the municipality may establish a different procedure by article.
(Ord. No. 2021-158, § 1, 11-9-21)

Sec. 17-32. Consent, franchise, or license required for use of streets.

(a) It shall be unlawful for any person to construct, install, maintain, or operate in, on, above, or under any street or public place under control of the municipality any line, pipe, cable, pole, structure, or facility for utilities, communications, cablevision, or other purposes without a consent agreement or franchise agreement issued by the council by ordinance that prescribes the term, fees, and conditions for use.

(b) The annual fee for use of streets or public places authorized by a consent agreement or franchise agreement shall be set by the ordinance approving the agreement and shall be consistent with limits set by state law. Existing franchise agreements shall continue in effect until expiration dates in the agreements. Franchise and consent fees shall not be in lieu of or be credited against business license taxes unless specifically provided by the franchise or consent agreement.
(Ord. No. 2021-158, § 1, 11-9-21)

Sec. 17-33. Confidentiality.

Except in accordance with proper judicial order or as otherwise provided by law, no official or employee of the municipality may divulge or make known in any manner the amount of income or any financial particulars set forth or disclosed in any report or return required under this article. Nothing in this section shall

be construed to prohibit the publication of statistics so classified as to prevent the identification of particular reports or returns. Any license data may be shared with other public officials or employees in the performance of their duties, whether or not those duties relate to enforcement of this article.
(Ord. No. 2021-158, § 1, 11-9-21)

Sec. 17-34. Violations.

Any person violating any provision of this article shall be deemed guilty of an offense and shall be subject to a fine of up to five hundred dollars ($500.00) or imprisonment for not more than thirty (30) days or both, upon conviction. Each day of violation shall be considered a separate offense. Punishment for violation shall not relieve the offender of liability for delinquent taxes, penalties, and costs provided for in this article.
(Ord. No. 2021-158, § 1, 11-9-21)

Sec. 17-35. Severability.

A determination that any portion of this article is invalid or unenforceable shall not affect the remaining portions. To the extent of any conflict between the provisions of this article and the provisions of the South Carolina Business License Tax Standardization Act, as codified at S.C. Code §§ 6-1-400 et seq., the Standardization Act shall control.
(Ord. No. 2021-158, § 1, 11-9-21)

Sec. 17-36. Classification and rates.

(a) The business license tax for each class of businesses subject to this ordinance shall be computed in accordance with the current business license rate schedule, designated as Appendix A to this article, which may be amended from time to time by the council.

(b) The current business license class schedule is attached hereto as Appendix B. Hereafter, no later than December 31 of each odd year, the municipality shall adopt, by article, the latest standardized business license class schedule as recommended by the Municipal Association of South Carolina and adopted by the Director of the South Carolina Revenue and Fiscal Affairs

Office. Upon adoption by the municipality, the revised business license class schedule shall then be appended to this article as a replacement Appendix B.

(c) The classifications included in each rate class are listed with NAICS codes, by sector, subsector, group, or industry. The business license class schedule (Appendix B) is a tool for classification and not a limitation on businesses subject to a business license tax. The classification in the most recent version of the business license class schedule adopted by the council that most specifically identifies the subject business shall be applied to the business. The license official shall have the authority to make the determination of the classification most specifically applicable to a subject business.

(d) A copy of the class schedule and rate schedule shall be filed in the clerk of council's office and the office of the license official.
(Ord. No. 2021-158, § 1, 11-9-21)

Sec. 17-37. Drainage fund.

Two (2) percent of the business license taxes collected are hereby authorized to be transferred to the drainage fund to be utilized for drainage improvements.
(Ord. No. 2021-158, § 1, 11-9-21)

APPENDIX A: BUSINESS LICENSE RATE SCHEDULE—2022
(Adopted Nov. 9, 2021)

	Income: $0—$2,000	*Income Over $2,000*
Rate Class Thereof	*Base Rate*	*Rate per $1,000 or Fraction*
1	$32.00	$1.55
2	$37.00	$1.95
3	$43.00	$2.35
4	$49.00	$2.80
5	$55.00	$3.15
6	$60.00	$3.50
7	$64.00	$3.90

	Income: $0—$2,000	*Income Over $2,000*
Rate Class Thereof	*Base Rate*	*Rate per $1,000 or Fraction*
8	See individual businesses in Class 8 listed below in Appendix A.	
9	See individual businesses in Class 9 listed below in Appendix A.	

NON-RESIDENT RATES

Unless otherwise specifically provided, all taxes and rates shall be doubled for nonresidents and itinerants having no fixed principal place of business within the municipality.

DECLINING RATES

Declining rates apply in all classes for gross income in excess of $1,000,000.00 unless otherwise specifically provided for in this article.

Gross Income in $ Millions	*Percent of Class Rate for Each Additional $1,000*
0—1	100%
1—2	95%
2—3	90%
3-4	85%
4—5	80%
Over 5	75%

CLASS 8 RATES

Each NAICS number designates a separate sub classification. The businesses in this section are treated as separate and individual subclasses due to provisions of state law, regulatory requirements, service burdens, tax equalization considerations, and other factors that are deemed sufficient to require individually determined rates. In accordance with state law, the Municipality also may provide for reasonable subclassifications for rates, described by an NAICS sector, subsector, or industry, that are

based on particularized considerations as needed for economic stimulus or for the enhanced or disproportionate demands on municipal services or infrastructure.

Non-resident rates do not apply except where indicated.

8.1 NAICS 230000 - Contractors, Construction, All Types: [Non-resident rates apply].
Resident rates, for contractors having a permanent place of business within the municipality:

Minimum on first $2,000.00 ..... $40.00 plus

Each additional 1,000.00 ..... $1.65

Non-resident rates apply to contractors that do not have a permanent place of business within the municipality. A trailer at the construction site or structure in which the contractor temporarily resides is not a permanent place of business under this article.

Minimum on first $2,000.00 ..... $80.00 plus

Each additional $1,000.00 ..... $3.30

No contractor shall be issued a business license until all state and municipal qualification examination and trade license requirements have been met. Each contractor shall post a sign in plain view on each job identifying the contractor with the job.

Sub-contractors shall be licensed on the same basis as general or prime contractors for the same job. No deductions shall be made by a general or prime contractor for value of work performed by a sub-contractor.

No contractor shall be issued a business license until all performance and indemnity bonds required by the Building Code have been filed and approved. Zoning permits must be obtained when required by the Zoning Ordinance.

Each prime contractor shall file with the license official a list of sub-contractors furnishing labor or materials for each project.

For licenses issued on a per-job basis, the total tax for the full amount of the contract shall be paid prior to commencement of work and shall entitle the contractor to complete the job without

regard to the normal license expiration date. An amended report shall be filed for each new job and the appropriate additional license fee per $1,000.00 of the contract amount shall be paid prior to commencement of new work. Only one base tax shall be paid in a license year. Licensees holding a per-job license shall file, by each April 30 during the continuation of the construction project, a statement of compliance, including but not limited to a revised estimate of the value of the contract. If any revised estimate of the final value of such project exceeds the amount for which the business license was issued, the licensee shall be required to pay a license fee at the then-prevailing rate on the excess amount.

8.2 NAICS 482 - Railroad Companies: Set by statute; see S.C. Code § 12-23-210.

8.3 NAICS 517311, 517312 - Telephone Companies:

The business license tax for "retail telecommunications services," as defined in S.C. Code Section 58-9-2200 shall be at the maximum rate authorized by S.C. Code Section 58-9-2220, as may be amended. The business license tax year shall begin on January 1 of each year. Declining rates shall not apply.

In conformity with S.C. Code Section 58-9-2220, the business license tax for "retail telecommunications services" shall apply to the gross income derived from the sale of retail telecommunications services for the preceding calendar or fiscal year which either originate or terminate in the Municipality and which are charged to a service address within the Municipality regardless of where these amounts are billed or paid and on which a business license tax has not been paid to another municipality. The measurement of the amounts derived from the retail sale of mobile telecommunications services shall include only revenues from the fixed monthly recurring charge of customers whose service address is within the boundaries of the municipality. For a business in operation for less than one year, the amount of business license tax shall be computed on a twelve-month projected income.

The business license tax for "retail telecommunications services" shall be due on January 1 of each year and payable by January 31 of that year without penalty.

The delinquent penalty shall be five (5) percent of the tax due for each month, or portion thereof, after the due date until paid.

Nothing in this article shall be interpreted to interfere with continuing obligations of any franchise agreement or contractual agreement in the event that the franchise or contractual agreement should expire after December 31. All fees collected under such a franchise or contractual agreement expiring after December 31 shall be in lieu of fees or taxes which might otherwise be authorized by this article.

As authorized by S.C. Code Section 5-7-300, the Agreement with the Municipal Association of South Carolina for collection of current and delinquent business license taxes from telecommunications companies pursuant to S.C. Code Section 58-9-220 shall continue in effect.

8.4 NAICS 5241, 5242 - Insurance Companies:

Except as to fire insurance, "gross premiums" means gross premiums written for policies for property or a risk located within the Municipality. In addition, "gross premiums" shall include premiums written for policies that are sold, solicited, negotiated, taken, transmitted, received, delivered, applied for, produced or serviced by (1) the insurance company's office located in the Municipality, (2) the insurance company's employee conducting business within the municipality, or (3) the office of the insurance company's licensed or appointed producer (agent) conducting business within the municipality, regardless of where the property or risk is located, provided no tax has been paid to another municipality in which the property or risk is located based on the same premium. As to fire insurance, "gross premiums" means gross premiums (1) collected in the municipality, and/or (2) realized from risks located within the limits of the municipality.

Solicitation for insurance, receiving or transmitting an application or policy, examination of a risk, collection or transmitting of a premium, adjusting a claim, delivering a benefit, or doing any act in connection with a policy or claim shall constitute conducting business within the municipality, regardless of whether or not an office is maintained in the municipality.

Gross premiums shall include all business conducted in the prior calendar year. Gross premiums shall include new and renewal business without deductions for any dividend, credit, return premiums or deposit. Declining rates shall not apply.

NAICS 524113, 524114 - Life, Health and Accident	0.75% of gross premiums
NAICS 524126, 524128 - Fire and Casualty.	2% of gross premiums
NAICS 524127 Title Insurance.	2% of gross premiums
NAICS 524210 Brokers for non-admitted insurance carriers.	2% of gross premiums

The business license tax for insurance companies shall be due and payable by May 31 in each year without penalty. The penalty for delinquent payments shall be five (5) percent of the unpaid tax for each month or portion thereof after the due date until paid.

Pursuant to S.C. Code Aim. §§ 38-7-160 and 38-45-60, the Municipal Association of South Carolina is designated the municipal agent for purposes of administration of the municipal broker's premium tax. The Agreement with the Municipal Association of South Carolina for the administration and collection of current and delinquent business license taxes from insurance companies as authorized by S.C. Code § 5-7-300 and the municipal broker's premium tax shall continue in effect.

8.51 NAICS 713120 - Amusement Machines, coin operated (except gambling):

Music machines, juke boxes, kiddy rides, video games, pin tables with levers, and other amusement machines with or without free play feature licensed by SC Department of Revenue pursuant to S.C. Code § 12-21-2720(A)(1) and (A)(2) [Type I and Type II].

For operation of all machines (not on gross income), pursuant to S.C. Code § 12-21-2746:

Per machine ..... $12.50 plus

Business license $12.50

Distributors that sell or lease machines and are not licensed by the state as an operator pursuant to § 12-21-2728 are not subject to subclass 8.51.

8.52 NAICS 713290 - Amusement Machines, coin operated, non-payout:

Amusement machines of the non-payout type or in-line pin game licensed by SC Department of Revenue pursuant to S.C. Code § 12-2l-2720(A)(3) [Type III],

For operation of all machines (not on gross income), pursuant to S.C. Code § 12-21-2720(B):

Per machine ..... $180.00 plus

Business license $12.50

Distributors that sell or lease machines and are not licensed by the state as an operator pursuant to § 12-21-2728 are not subject to Subclass 8.52.

8.6 NAICS 713990 - Billiard or Pool Rooms, all types:

(A) Pursuant to SC Code § 12-21-2746, license tax of $5.00 per table measuring less than 3% feet wide and 7 feet long, and $12.50 per table longer than that; plus, (B) with respect to gross income from the entire business in addition to the tax authorized by state law for each table:

Minimum on first $2,000.00 ..... $43.00 plus

Per $1,000, or fraction, over $2,000.00..... $2.35

CLASS 9 RATES

9.3 NAICS 4411, 4412 - Automotive, Motor Vehicles, Boats, Farm Machinery or Retail: (except auto supply stores - see 4413)

Minimum on first $2,000.00 ..... $32.00 plus

Per $1,000.00, or fraction, over $2,000.00 . . . . . $1.10

One sales lot not more than 400 feet from the main showroom may be operated under this license provided that proceeds from sales at the lot are included in gross receipts at the main office when both are operated under the same name and ownership.

Gross receipts for this classification shall include value of trade-ins. Dealer transfers or internal repairs on resale items shall not be included in gross income.

9.7 NAICS 722410, 722511 - Drinking Places, bars, lounges, cabarets: (alcoholic beverages consumed on premises).

(a) License must be issued in the name of the individual who has been issued a state alcohol, beer or wine permit or license and will have actual control and management of the business. Night clubs, cabarets, taverns, restaurants, or other similar establishments, which sell or serve beer or wine or permit the consumption of alcoholic beverages on the premises after midnight and which derive thirty-five (35) percent or more of their gross income from the sale of beer, wine and/or alcoholic beverages.

Minimum on first $25,000.00 . . . . . $610.50 plus

Per $1,000.00, or fraction, over $25,000.00 . . . . . $7.90

(b) Restaurants which derive less than thirty-five (35) percent of their gross income from the sale of beer, wine and/or alcoholic beverages and are open after midnight.

Minimum on first $2,000.00 . . . . . $46.26 plus

Per $1,000.00, or fraction, over $2,000.00 . . . . . $2.30

An addendum to the business license application with a breakdown of total gross income and gross income derived from the sale of beer, wine and/or alcoholic beverages is required. If an establishment fails to submit an addendum or the addendum fails to separate total gross income from gross income derived from the sale of beer, wine and/or alcoholic beverages, the license fee shall be computed under the rate in paragraph (a) above.

9.8 NAICS 541511, 511210, 334611 - Computer Programming Design, Prepackaged Software Design:

Minimum on first $2,000.00	$10.00
$2,000.00—$1 million	$0.55 per $1,000.00
$1 million—$2 million	$0.10 per $1,000.00
$2 million $10 million	0.05 per $1,000.00
Over $10 million	$0.0025 per $1,000.00

9.9 NAICS 485310 - Taxis and other Vehicles for Hire:

Per decal	$6.44 per year plus
Minimum on first $2,000.00	$37.00 plus
Per $1,000.00, or fraction, over $2,000.00	$1.95

(Ord. No. 2021-158, § 1, 11-9-21)

APPENDIX B: BUSINESS LICENSE CLASS SCHEDULE
(Adopted Nov. 9, 2021)

NAICS	*Industry Sector*
RATE CLASS 1	
42	Wholesale trade
44	Retail trade
45	Retail trade
722	Food services and drinking places
RATE CLASS 2	
11	Agriculture, forestry, hunting and fishing
31	Manufacturing
32	Manufacturing
33	Manufacturing
48	Transportation and warehousing
49	Transportation and warehousingTransportation and warehousing
RATE CLASS 3	
71	Arts, entertainment, and recreation
721	Accommodation
RATE CLASS 4	
21	Mining
51	Information
56	Administrative and support, waste management and remediation services
61	Educational services
62	Health care and social assistance
RATE CLASS 5	
54	Professional, scientific, and technical services
81	Other services
812	Personal and laundry services, salon
RATE CLASS 7	
52	Finance and insurance
53	Real estate, rental and leasing

NAICS	*Industry Sector*
53110	Lessors of Residential Buildings and Dwellings (Owners of fewer than five (5) residential units that are not permitted for short term rental use pursuant to City Code sections 54-208 through 54-209 are exempt)
55	Management of companies
RATE CLASS 8	
23	Construction
482	Rail transportation
517311	Wired telecommunications carriers
517312	Wireless telecommunications carriers (except satellite)
5241	Insurance carriers
5242	Insurance brokers for non-admitted insurance carriers
7131120	Amusement parks and arcades
713290	Non payout amusement machines
713990	All Other Amusement and Recreational Industries (pool tables)
RATE CLASS 9	
4411	Automobile dealers
4412	Other motor vehicle dealers
722410	Drinking places (alcoholic beverages) (after midnight)
722511	Food Services (after midnight) computer programming design
541511	Prepackaged software design
485310	Taxis, other vehicles for hire

BUSINESS LICENSE CLASS SCHEDULE BY NAICS CODE

NAICS Code	*Industry Sector*	*Class*
11	Agriculture, forestry, hunting and fishing	2
21	Mining	4
23	Construction	8.1

NAICS Code	*Industry Sector*	*Class*
31	Manufacturing	2
32	Manufacturing	2
33	Manufacturing	2
334611	Computer Programming Design, Prepackaged Software Des	9.8
42	Wholesale trade	1
423930	Recyclable Material Merchant Wholesalers (Junk)	1
44—45	Retail trade	1
441	Motor vehicle and parts dealers	1
4411	Automobile dealers	9.3
4412	Other Motor vehicle dealers	9.3
442	Furniture and home furnishing stores	1
443	Electronic and appliance stores	1
444	Building material and garden equipment and supplies dealers	1
445	Food and beverage stores	1
446	Health and personal care stores	1
447	Gasoline stations	1
448	Clothing and accessories stores	1
451	Sporting goods, hobby, book, and music stores	1
452	General merchandise stores	1
453	Miscellaneous store retailers	1
454	Non-store retailers	1
454390	Other direct selling establishments (peddlers)	1
48—49	Transportation and warehousing	2
482	Rail transportation	8.2
485310	Taxis and other vehicles for hire	9.9
51	Information	4
511	Publishing industries (except 511210)	4
511210	Software publishers	9.8
512	Motion picture and sound recording	4
515	Broadcasting (except internet) and telecommunications	4
517311	Wired telecommunications carriers	8.3

NAICS Code	*Industry Sector*	*Class*
517312	Wireless telecommunications carriers (except satellite)	8.3
518	Internet service providers, web search portals, and data processing	4
52	Finance and insurance	7
522	Credit intermediation and related activities	7
523	Securities, commodity contracts, and other financial investment	7
524	Insurance agents, brokers, and related activities	7
5241	Insurance carriers	8.4
5242	Insurance brokers for non-admitted insurance carriers	8.4
525	Funds, trusts and other financial vehicles	7
53	Real estate and rental and leasing	7
54	Professional, scientific, and technical services	5
541511	Computer programming design, prepackaged software design	9.8
55	Management of companies	7
56	Administrative and support and waste management and remediation services	4
61	Educational services	4
62	Health care and social assistance	4
71	Arts, entertainment, and recreation	3
713120	Amusement Parks and Arcades	8.51
713290	Nonpayout Amusement Machines	8.52
713990	All other Amusement and Recreational Industries (pool table;	8.6
721	Accommodation	3
722	Food services and drinking places	1
722410	Drinking places (alcoholic beverages) (after midnight)	9.7
722511	Food services (after midnight)	9.7
81	Other services	5
811	Repair and maintenance	5

NAICS Code	*Industry Sector*	*Class*
8111	Auto repair and maintenance	5
812	Personal and laundry services	5
813	Religious, grant making, civic, professional, and similar organizations	5

This Appendix will be updated every odd year based on the latest available IRS statistics.

The 2022 Business License Class Schedule may be accessed online at:

https://www.charleston-sc.gov/136/New-Business-Licenses

or in person at:

City of Charleston Revenue Collections Office
2 George Street, Suite 1700
Charleston, SC 29401
(Ord. No. 2021-158, § 1, 11-9-21)

Secs. 17-38—17-50. Reserved.

ARTICLE III. JUNK SHOPS AND PAWNBROKERS*

Sec. 17-51. Bond required.

The keeper of any junk shop or pawnbroker's establishment within the limits of the city shall file such bond as may be required under the state statutes.
(Code 1975, § 45-1)

Sec. 17-52. Display of sign required.

Every person receiving a license as a keeper of a junk shop or pawnbroker's establishment pursuant to the provisions of the annual license ordinance shall put up over the principal entrance to his shop a sign designating that he is licensed and containing his name.
(Code 1975, § 45-2)

Sec. 17-53. Record of purchasers, etc., to be kept; inspection of such record.

Every person receiving a license as a keeper of a junk shop or pawnbroker's establishment pursuant to the provisions of the annual license ordinance shall keep a book in which shall be written, at the time of every purchase or barter, a description of the article or articles purchased or bartered for, the name and residence of the person from whom received, and the day and hour when such purchase or exchange was made. Such book shall be at all times open to the inspection of the mayor of the city, the chief of police or any person duly authorized by them or either of them to inspect the same.
(Code 1975, § 45-3)

Sec. 17-54. Inspection of shops or establishments.

Junk shops and pawnbrokers' establishments shall be open at all times to the inspection of the mayor of the city, the chief of police or any person duly authorized by them or either of them.
(Code 1975, § 45-6)

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*__State law references__—Junk dealers, S.C. Code 1976, § 40-27-10 et seq.; pawnbrokers generally, S.C. Code 1976, § 40-39-10 et seq.; pawnbroker's annual report to county auditor of average monthly value of property pledge during preceding year, S.C. Code 1976, § 12-37-1330.

Sec. 17-55. Dealing with minors restricted.

No keeper of any junk shop or pawnbroker's establishment shall himself, or through any other person, either directly or indirectly, purchase or receive, by way of pledge or barter or exchange, any kind of old articles, junk, old metals or other like commodities from any minor without the written permission of the parent or guardian of any such minor, which written permission shall be filed and produced whenever required by anyone authorized to inspect such shops or establishments.
(Code 1975, § 45-7)

Sec. 17-56. Pawnbrokers' daily reports to police.

All pawnbrokers doing business in the city shall make daily reports to the chief of police of the city, and within twenty-four (24) hours from the reception of any pawn or of all pawns deposited with them, giving the number of the ticket and such description of the personal property as will make its identification easy, and in case the pawn is of watches or other articles having a number, the description shall state among other things, such number.
(Code 1975, § 45-8)

Secs. 17-57—17-70. Reserved.

ARTICLE IV. DEALERS IN SECONDHAND GOODS

Sec. 17-71. Daily report to police.

Every person purchasing or dealing in any secondhand goods, including jewelry, except precious metals as defined in Title 40, chapter 54, South Carolina Code 1976, shall make daily report to the chief of police of the city, within twenty-four (24) hours from the time of the purchase, giving such description of the property purchased as will make its identification easy.
(Code 1975, § 45-9)

Sec. 17-72. Dealing with minors restricted.

No purchase of secondhand goods, including jewelry, except precious metals, as defined in Title 40, chapter 54, South Carolina Code 1976, shall be made from any minor without the written permission of the parent or guardian of any such minor, which written permission shall be held and produced whenever required by anyone authorized by the chief of police and the burden of proof shall be upon the purchaser of any such article to show that such written permission was the bona fide act of the parent or guardian.
(Code 1975, § 45-10)

Sec. 17-73. Goods to be held thirty days before resale.

Secondhand goods, including jewelry, except precious metals as defined in Title 40, chapter 54, South Carolina Code 1976, must be held in the possession of the purchaser, before being resold, for a period of thirty (30) days.
(Code 1975, § 45-11)

Secs. 17-74—17-90. Reserved.

ARTICLE V. GENERAL—PEDDLERS, CHARITABLE SOLICITORS, PALMETTO ARTISANS, BUSKERS, PANHANDLERS, AND VENDORS*

DIVISION 1. FINDINGS

Sec. 17-91. Findings.

The streets of the peninsula area of the city, south of Carolina Street, are the traditional city center where major institutional

*__Editor's note—__Ord. No. 2014-40, § 1, adopted March 25, 2014, repealed former Art. V, §§ 17-91—17-122, in its entirety and enacted new provisions as herein set out. Former Art. V pertained to similar subject matter and derived from Ord. No. 2007-43, § 2, 2-13-07; Ord. No. 2007-231, § 1, 12-6-07; 2008-118, § 1, 8-19-08; 2010-118, § 1, 7-20-10; Ord. No. 2011-52, §§ 1—4, 7-19-11.

uses are located, where professional, retail and tourism commerce is conducted and where the city's oldest and most significant architecture is located.

The revitalization of this area of the city has taken hold and continues, as evidenced, in recent years, by the addition of lodging, restaurant and related hospitality uses, new office and retail complexes and the expansion of the technology-based digital corridor. Successful revitalization has resulted in an infusion of people in this area of the city, both during and after normal business hours.

Some four (4) million tourists now visit the city on an annual basis. The vast majority of these visitors frequent the peninsula area of the city, particularly the King and Market Street shopping districts and the peninsula neighborhoods graced with grand architecture.

The built environment and development pattern of the peninsula area of the city is old, and established. The streets and sidewalks in this area of the city are narrow and are often crowded. The structures in this area of the city are typically sited at the front property line, leaving little, if any, space to accommodate outdoor vending or performing on private property, thus placing further demands on the sidewalks and other public spaces on the peninsula for these purposes.

A diversity of uses in the peninsula area of the city is critical to maintaining its vibrancy and its desirability as a place to work, live and recreate. It is vital that the streets, sidewalks and other public places in the peninsula area of the city be able to accommodate varied uses by pedestrian and vehicular traffic. It is in the interests of the public health, safety and welfare that reasonable measures be enacted to maintain safety and accommodate a free flow and exchange of ideas and goods along and on the streets, sidewalks and other public places in the peninsula area of the city.
(Ord. No. 2014-40, § 1, 3-25-14)

Sec. 17-92. Definitions.

The following words and terms when used in this article shall have the meaning respectively ascribed to them in this section.

Aggressive manner shall mean any of the following:

(1) Approaching or speaking to a person, or following a person before, during or after soliciting if that conduct is intended or is likely to cause a reasonable person to fear bodily harm to oneself or to another, damage to or loss of property, or to otherwise be intimidated into giving money or other thing of value;

(2) Intentionally touching or causing physical contact with another person or an occupied vehicle without that person's consent in the course of soliciting;

(3) Intentionally blocking or interfering with the safe or free passage of a pedestrian or vehicle by any means, including unreasonably causing a pedestrian or vehicle operator to take evasive action to avoid physical contact with the solicitor;

(4) Using violent or threatening gestures toward a person before, during, or after soliciting;

(5) Persisting in closely following or approaching a person, after the person has informed the solicitor by words or conduct that such person does not want to be solicited or does not want to give money or any other thing of value to the solicitor; or

(6) Using profane, offensive or abusive language which is likely to cause the person solicited to be intimidated by such language before, during, or after the solicitation.

Aquarium District shall mean the area bounded on the north by Charlotte Street; on the east by the Cooper River; on the south by Laurens Street; and on the west by East Bay Street, said area to include all rights-of-way and sidewalks lying within and adjacent to said district and that portion of the city's riverwalk located within said district.

Battery shall mean the elevated sidewalk adjacent to the Cooper River and Ashley River between the intersections of East Bay Street and Water Street and Murray Boulevard and King Street.

Busker is a person who plays music or performs for entertainment on the public rights-of-way and other publically owned places.

Charitable organization shall mean any person, organization, rescue squad, volunteer fire department or any other charitable or eleemosynary organization that holds itself out to be established for any benevolent, educational, philanthropic, humane, scientific, patriotic, social welfare or advocacy, public health, environmental conservation, civic or eleemosynary purpose, or for the benefit of law enforcement officers, firefighters or other persons who protect the public safety.

Charitable soliciting shall mean any person on behalf of a charitable organization is traveling by foot or any type of conveyance, from place to place, from house to house, or from street to street, requesting, directly or indirectly, money, credit, property, financial assistance, remuneration, or other thing of value.

City of Charleston's Youth Palmetto Art and Business Program shall mean the program^ administered by the City of Charleston's Recreation Department for youths between the ages of nine (9) and eighteen (18) or the completion of high school, whichever occurs first, for the purposes of teaching youth entrepreneurial skills using palmetto art products.

Dangerous materials, objects or actions includes, but is not limited to, pyrotechnics, fireworks, knives, animals, fire, projectiles or any other prop, device, or material or action which could cause harm to or endanger the public, the busker, or property.

King Street District shall mean that section of King Street between Carolina Street and Broad Street and all rights-of-way and sidewalks lying within and adjacent to said district.

Market District shall mean the area bounded on the north by Hasell and Beaufain Streets; on the east by the Cooper River; on the south by Cumberland, Horlbeck Alley and Clifford Streets; and on the west by Archdale Street, excepting from said district the Market Head Hall, four (4) market sheds and the sidewalks abutting the sheds which are adjacent to the blocks of Church, Anson, and State Streets running between said sheds and that

portion of Anson Street lying between south and north Market Streets in said district, said district to include all right-of ways and sidewalks lying within and adjacent to said district.

Old and Historic District shall mean that portion of the city that is so designated from time to time on the official zoning map of the city.

Palmetto artisan shall mean any person who is enrolled in the City of Charleston's Youth Palmetto Art and Business Program, who are traveling by foot or any type of conveyance, from place to place, house to house, or from street to street, attempting to sell palmetto bud fronds that have been physically altered from their natural state into a palmetto art product. Individuals, who are eighteen (18) or older and not in high school, that are selling palmetto art products shall be considered peddlers for the purpose of this chapter.

Palmetto art products shall mean palmetto bud fronds that have been physically altered from their natural state into tangible items being offered for sale or donation.

Panhandling shall mean the solicitation of alms whether by offering something of nominal value in exchange for a donation or not.

Peddling shall mean any person traveling by foot or any type of conveyance, from place to place, from house to house, or from street to street, taking or attempting to take refundable security or seat deposits, or requesting a person's commitment of time, or orders for the sale of goods, wares, and merchandise, or other personal property of any nature whatsoever for immediate or future delivery provided no alcohol shall be contained therein, or for services to be furnished immediately or performed in the future, whether or not such individual has, carries or exposes for sale a sample of the subject of such sale or whether he is collecting advance payments on such sales or not.

Peddler shall mean any individual, whether a resident of the city or not, who engages in the business of peddling as defined above.

Perform includes, but is not limited to, the following activities: acting, singing, playing musical instruments, pantomiming, painting, juggling, magic, dancing, reading, puppetry, sidewalk art (working with non-permanent, water-soluble media, i.e., chalk, pastels, or watercolors directly on the pavement), and reciting. Perform shall not include the production of or the offer of items for sale at the location of the performance.

Person shall mean an applicant, individual, corporation, limited liability company, association, partnership, trust, foundation or any other entity however styled.

Right-of-way or *Rights-of-way* means a public road over which a person or entity has the legal right to access.

Selling of palmetto art products shall mean the activities engaged in by palmetto artisans when they are attempting to sell or give for donation palmetto bud fronds that have been physically altered from their natural state into a palmetto art product.

Soliciting shall mean peddling, charitable soliciting, selling of palmetto art products, busking, panhandling, and vending as herein defined.

Solicitor means a person who solicits.

South of Broad District shall mean the area bounded on the north by Broad Street; on the east by the Cooper River; on the south by the Ashley and Cooper Rivers; and on the west by the Ashley River, said district to include Broad Street and all rights-of-way and sidewalks lying within and adjacent to said district except the portion of Meeting Street lying between St. Michael's Alley and Broad Street and the portion of the sidewalk directly in front of 93 Broad Street.

Special event shall mean a pre-planned activity sponsored by an individual, group, organization or entity proposed to be held on public property, including public streets, sidewalks, trails, facilities, parks, or other property owned or managed by the city which would significantly impact either public property and/or normal vehicular and pedestrian traffic requiring the use of city services, and which shall include but not be limited to a parade,

foot race, bike or wheeled race, celebration, amusement event, cultural recognition, sporting event, demonstration, competition, commercial movie or television production, photography shoot, commercial for-profit event, charitable cause, or other similar activity.

Vending shall mean any person engaged in the business of selling food or drink provided no alcohol shall be contained therein and/or reading material from a stationary cart or any other stationary vehicle or device that is placed, parked or stopped in or upon any city street or in any public parking space, public right-of-way, public sidewalk next to any city street or on any other public property in the Old and Historic District of the City of Charleston, except in such area as may be designated and marked by the department of traffic and transportation for such purpose and as is approved by city council.

Vendor shall mean any individual, whether a resident of the city or not, who engages in the business of vending as defined above.

Vendor space shall mean area as shall be designated and marked by the department of traffic and transportation for such purpose and as is approved by city council.

Visitor reception and transportation district shall mean the area bounded on the north by Ann Street and the northern boundary of Wragg Square; on the east by Elizabeth Street; on the south by Hutson and Charlotte Streets; and on the west by King Street, said district to include all rights-of-way and sidewalks lying within and adjacent to said district.

Waterfront Park District shall mean the area bounded in a northerly direction along Concord Street from the intersection of S. Adgers Wharf to the intersection of Concord Street and Mid-Atlantic Wharf; thence turning and running in a westerly direction on Mid-Atlantic Wharf to the intersection of Mid-Atlantic Wharf and Prioleau Street; thence turning and running in a northerly direction on Prioleau Street to the intersection of Prioleau Street and Vendue Range; thence turning and running in an easterly direction on Vendue Range to the intersection of

Vendue Range and Concord Street to the intersection of Concord and Cumberland Streets, said area to include all rights-of-way and sidewalks lying within and adjacent to said district.

White Point Garden shall mean the park area bounded on the west by King Street, on the north by South Battery Street, the east by East Battery Street, and the south by Murray Boulevard. (Ord. No. 2014-40, § 1, 3-25-14; Ord. No. 2015-134, § 1, 9-22-15; Ord. No. 2016-076, § 1, 6-21-16; Ord. No. 2019-014, § 1, 2-26-19)

DIVISION 2. GENERAL RULES APPLICABLE TO PEDDLERS, CHARITABLE SOLICITORS, PALMETTO ARTISANS, BUSKERS, AND PANHANDLERS

Sec. 17-93. Obstructing public ways and means of ingress to and egress from private property.

(1) Solicitors shall not obstruct or otherwise inhibit the free, safe and efficient flow of vehicular or pedestrian traffic on any public rights-of-way or public property even when transacting a sale.

(2) Solicitors shall not obstruct or otherwise inhibit the free, safe and efficient flow of vehicular or pedestrian traffic into and out of private property adjacent to any public right-of-way. (Ord. No. 2014-40, § 1, 3-25-14)

Sec. 17-94. Conducting of business during certain hours prohibited.

(1) No person shall engage in peddling or charitable soliciting, as defined in section 17-92, between the hours of 8:00 p.m. and 8:00 a.m.

(2) No palmetto artisan shall engage in the selling of palmetto art products during school hours while school is in session, including summer school and mandatory after school programs, if applicable. While school is in session, Palmetto artisans are permitted to sell palmetto art products on Friday afternoons after school from 4:00 p.m. until 8:00 p.m., and on weekends and

holidays from 8:00 a.m. until 8:00 p.m. When school is out of session, Palmetto Artisans are permitted to sell palmetto art products daily from 8:00 a.m. until 8:00 p.m.

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(3) No person shall engage in busking between the hours of 11:00 p.m. and 8:00 a.m.
(Ord. No. 2014-40, § 1, 3-25-14)

Sec. 17-94.5. Sale of food or drink with any alcohol contained therein prohibited.

No person shall engage in the sale or selling of food or drink with any alcohol contained therein. Notwithstanding the foregoing, the mayor may authorize the sale of food or drink containing alcohol during a city-sponsored event, including Piccolo Spoleto and MOJA Festivals, and a permitted special event as set forth in section 2-185, et. seq. of the Code of the City of Charleston.
(Ord. No. 2015-134, § 2, 9-22-15)

Sec. 17-95. Approaching vehicular traffic prohibited.

Under no circumstances shall any moving vehicle be approached by a person soliciting.
(Ord. No. 2014-40, § 1, 3-25-14)

Sec. 17-96. Use of traffic islands, medians or other traffic control devices for storage of sale of tangible property prohibited.

Solicitors shall not store, keep or offer for sale any tangible property or service on any traffic island, median or other traffic control device located within the corporate limits of the city.
(Ord. No. 2014-40, § 1, 3-25-14

Sec. 17-97. Peddling, charitable soliciting, busking and the selling of palmetto art products unlawful on private property.

It shall be unlawful to engage in soliciting on any property where a sign is posted that states "No Trespassing," "No Peddlers," "No Solicitors, "No Buskers" or words of similar import.
(Ord. No. 2014-40, § 1, 3-25-14)

Sec. 17-98. Blocking rights-of-way.

Solicitors shall not block roadways, fire apparatus access roads, sidewalks, crosswalks, driveways, doors, stairways, curb cuts, handicapped access ramps or block access to buildings, parks, conveyances, businesses, traffic control poles containing pedestrian crosswalk button(s), or be within twenty (20) feet of a fire hydrant, fire department connection (FDC), or within twenty (20) feet of any fire alarm or other emergency communication device, either by their location, or by the location of any crowd that they may draw.

Solicitors shall not attract a crowd sufficient to obstruct the public right-of-way; a police officer may disperse the portion of the crowd that is creating the obstruction. At a minimum there shall be at least a five-foot passageway on the sidewalk as required by the Americans with Disabilities Act.

Personal property used for soliciting shall not be left unattended on any public rights-of-way or other publically owned places.
(Ord. No. 2014-40, § 1, 3-25-14)

Sec. 17-99. Noise.

The conduct and behavior of all Solicitors shall otherwise comply in all respects with existing noise ordinances at all times. Solicitors or groups of these shall not interfere with a special event.
(Ord. No. 2014-40, § 1, 3-25-14)

Sec. 17-100. Littering.

Solicitors shall remove all trash and debris from the publicly owned rights-of-way and publically owned property in the vicinity of their activities immediately after their activities have ended.
(Ord. No. 2014-40, § 1, 3-25-14)

Sec. 17-101. Aggressive solicitation prohibited.

No person shall solicit in an aggressive manner on the public rights-of-way or other publically owned property.
(Ord. No. 2014-40, § 1, 3-25-14)

Sec. 17-102. Prohibited areas for solicitors.

(1) Peddling, selling of palmetto art products, and charitable soliciting may take place on all sidewalks, streets or other publicly owned properties in the city except in the following districts:

(a) The Market District;

(b) South of Broad District;

(c) King Street District;

(d) Waterfront Park District;

(e) Aquarium District, and,

(f) Marion Square.

(2) The selling of palmetto art products by palmetto artisans shall be permitted in the above restricted areas when the selling of palmetto art products is carried out from city of Charleston designated palmetto artisan kiosks in accordance with the City of Charleston's Youth and Palmetto Art and Business Program.

(3) There shall be no soliciting in the Visitor Reception and Transportation Center District, or within fifty (50) feet of the perimeter of a(n):

(a) Automatic teller machine;

(b) Church grounds, while in session;

(c) School grounds, while in session;

(d) Library;

(e) Hospital;

(f) Funeral home;

(g) Bank;

(h) Hotel;

(i) Outdoor dining area;

(j) Entrance or exit of a performance venue; or

(k) A special event.

(4) During times of construction work on the streets, sidewalks and public infrastructure, the city may from time to time temporarily prohibit solicitors in the area near the construction work.
(Ord. No. 2014-40, § 1, 3-25-14; Ord. No. 2016-076, § 2, 6-21-16)

Sec. 17-103. Fees.

The fees, if any, for a peddler's permit, charitable solicitation permit, and Palmetto artisan permit shall be set by city council.
(Ord. No. 2014-40, § 1, 3-25-14)

Sec. 17-104. Permit—Expiration.

Permits issued under the provisions of this article shall expire on the thirty-first day of December in the year when issued or on the date specified on the permit, whichever date occurs first.
(Ord. No. 2014-40, § 1, 3-25-14)

Sec. 17-105. Permit—Possession.

Peddlers, charitable solicitors, and palmetto artisans are required, while engaged in peddling, charitable soliciting, or selling palmetto art products to have on their persons their permit.
(Ord. No. 2014-40, § 1, 3-25-14)

Sec. 17-106. Transfer of permits prohibited.

No permit issued under the provisions of this article is transferable. The authority granted in the permit shall be conferred only on the permittee named in said permit(s).
(Ord. No. 2014-40, § 1, 3-25-14)

DIVISION 3. PEDDLERS

Sec. 17-107. Peddling.

(1) No person shall engage in peddling within the corporate limits of the city without first obtaining a peddler's permit in compliance with the provisions of this article. Any peddler working for a corporation or other legally recognized organization shall individually obtain a peddler's permit.

(2) *Application for a peddler's permit.* Applicants for a peddler's permit under this article shall file with the chief of police an application in writing on a form to be furnished by the city's revenue collections department, which shall give the following information:

(a) Name and description of the applicant including the full name of the applicant as it appears on the applicant's birth certificate or court order if such court order was issued after the issuance of the applicant's birth certificate and the name of the applicant on the subsequently-issued court order is different from the name on the applicant's birth certificate;

(b) Permanent home and local address of the applicant;

(c) A brief description of the nature of the business and the goods and/or services to be sold;

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(d) A description of any vehicle to be used and its license number;

(e) If the applicant is employed, the name and address of the employer, together with credentials establishing the exact relationship between the applicant and his employer;

(f) Proposed area where the sales or providing of services will occur;

(g) The duration of the permit and the hours of operation for which applicant is seeking a permit;

(h) A statement indicating whether or not the applicant has been convicted of a felony or misdemeanor. If so, the nature of the offense, the date and place of the offense, and the punishment imposed;

(i) A statement indicating whether or not a civil judgment has ever been entered against the applicant for fraud, deceit, or misrepresentation. If so, the nature of the action, the location of the court that heard the matter, the approximate date and amount of the judgment;

(j) A recent photograph of the applicant showing the head and shoulders of the applicant in a clear and distinguishing manner;

(k) Applicants under the age of eighteen (18), who are not married or emancipated, may apply for a permit with the signed consent of their parent or legal guardian.

(3) *Investigation of peddling applicant; issuance.* The chief of police, in conjunction with the director of the department of revenue collections, shall issue a peddler's permit within seven (7) days as provided for hereunder when, from a consideration of the application and from such other information as may otherwise be obtained, they find that:

(a) The applicant has not had a permit suspended or revoked within twelve (12) months immediately preceding the date of the application for a permit.

(b) There are no material omissions, untrue or misleading information contained in or omitted from the permit application;

(c) The applicant has not been convicted of a felony or misdemeanor involving a sex offense, controlled substances, or any violent acts against person or property;

(d) The applicant has not had a civil judgment or criminal conviction entered against him based upon fraud, deceit or misrepresentation; and

(e) There are no warrants outstanding against the applicant.

If as a result of such investigation, the applicant's application for a permit is denied, the individual denying the permit shall endorse on such application his disapproval and notify the applicant of their reasons for denial.

If as a result of such investigation, the application is granted, both the Charleston police department and the city revenue collections division shall endorse on the application their approval, and the city revenue collections division shall execute a permit addressed to the applicant. The director of revenue collections shall inquire into the nature of the business, the anticipated volume of sales and other details necessary to determine the amount of any business license fee required by the annual city business license ordinance. Upon payment of such prescribed business license fee and permit fee by the applicant, the director of revenue collections shall deliver to the applicant his permit and license.

(4) *Revocation of peddler's permit.* Peddler's permits issued under the provisions of this article may be revoked by the committee on business licenses after notice and hearing, for any of the following causes:

(a) Fraud, misrepresentation, or false statement contained in the application for the permit;

(b) Fraud, misrepresentation or false statement made in the course of carrying on the activity allowed under the permit;

(c) Any violation of this article;

(d) A conviction of a felony or misdemeanor involving a sex offense, a controlled substance, or any violent acts against person or property;

(e) A civil judgment or criminal conviction for fraud, deceit, or misrepresentation;

(f) Conducting the permitted activity in an unlawful manner or in such a manner as to constitute a breach of the peace or to constitute a menace to the health, safety or general welfare of the public; or

(g) Failure to possess the identification required section 17-105.

Notice of the hearing for a revocation of a peddler's permit shall be given in writing, setting forth specifically the grounds for the revocation, and the time and place of the revocation hearing. Such notice shall be mailed, postage prepaid, to the permitee at the address listed on the permit application, at least ten (10) days prior to the date set for the revocation hearing.

(5) *Appeals.* Any person aggrieved by the action of the chief of police or the revenue collections director in the denial of a permit as provided in this section shall have the right to appeal to the City of Charleston's Committee on Business Licenses by filing with the city's clerk of council a statement in writing setting forth plainly and fully the grounds for the appeal. The appeal shall be filed within thirty (30) days after the aggrieved person receives actual notice of the decision of the chief of police or the revenue collections director.

Any person aggrieved by the action of the committee on business licenses in the revocation of a permit as provided in this section shall have the right to appeal to the circuit court in and for the County of Charleston by filing with the clerk of court a petition in writing setting forth plainly and fully why the decision is contrary to law. The appeal must be filed within thirty (30) days after the aggrieved person receives actual notice of the decision of the committee on business licenses.

(Ord. No. 2014-40, § 1, 3-25-14)

DIVISION 4. RESERVED

DIVISION 5. CHARITABLE SOLICITING

Sec. 17-108. Charitable soliciting permit.

(1) No person shall engage in charitable soliciting within the corporate limits of the city without first obtaining a charitable solicitor's permit in compliance with the provisions of this article.

Any charitable solicitor working for a corporation or other legally recognized organization shall individually obtain a charitable solicitor's permit.

(2) *Application for a charitable soliciting permit.* Applicants for a charitable soliciting permit under this article shall file with the chief of police an application in writing on a form to be furnished by the revenue collections department, which shall give the following information:

(a) The purpose of the charitable soliciting;

(b) The name and description of the applicant including the full name of the applicant as it appears on the applicant's birth certificate or court order if such court order was issued after the issuance of the applicant's birth certificate and the name of the applicant on the subsequently-issued court order is different from the name on the applicant's birth certificate;

(c) Permanent home and local address of the applicant;

(d) The name of the charitable organization and its address along with the names, addresses, and telephone numbers of its principal officers;

(e) A description of any vehicle to be used and its license number;

(f) The location(s) where the charitable solicitation is to occur;

(g) The date(s) of the charitable solicitation;

(h) The approximate number of persons to be engaged in the charitable soliciting; and the times of day when the charitable soliciting is to occur;

(i) A statement indicating whether or not the applicant has been convicted of a felony or misdemeanor. If so, the nature of the offense, the date and place of the offense, and the punishment imposed;

(i) A statement indicating whether or not a civil judgment has ever been entered against the applicant for fraud,

deceit, or misrepresentation. If so, the nature of the action, the location of the court that heard the matter, the approximate date and amount of the judgment;

(j) A recent photograph of the applicant showing the head and shoulders of the applicant in a clear and distinguishing manner; and

(k) Applicants under the age of eighteen (18), who are not married or are not emancipated, may apply for a permit with the signed consent of their parent or legal guardian.

(3) *Investigation of charitable soliciting applicant; issuance.* The chief of police, in conjunction with the director of the department of revenue collections, shall issue a charitable solicitor's permit within seven (7) days as provided for hereunder when, from a consideration of the application and from such other information as may otherwise be obtained, they find that:

(a) The applicant has not had a permit suspended or revoked within the twelve (12) months immediately preceding the date of the application for a permit.

(b) There are no material omissions, untrue or misleading information contained in or omitted from the permit application;

(c) There has not been another soliciting permit issued for the same location as the location being applied for;

(d) The applicant has not been convicted of a felony, or misdemeanor involving a sex offense, controlled substances, or any violent acts against person or property;

(e) The applicant has not had a civil judgment or criminal conviction entered against them based upon fraud, deceit or misrepresentation;

(f) There are no warrants outstanding against the applicant; and

(g) The conduct of the charitable soliciting will not substantially interrupt the safe and orderly movement of pedestrian and vehicular traffic, contiguous to the location requested on the permit application.

If as a result of such investigation, the application for a permit is denied, the individual denying the permit shall endorse on such application his disapproval and notify the applicant of the reasons for denial.

If as a result of such investigation, the application is granted, both the Charleston police department and the city revenue collections division shall endorse on the application their approval, and the city revenue collections division shall execute a permit addressed to the applicant. The director of revenue collections shall inquire into the nature of the business, the anticipated volume of sales and other details necessary to determine the amount of any business license fee required by the annual city business license ordinance. Upon payment of any such prescribed business license fee and permit fee by the applicant, the director of revenue collections shall deliver to the applicant his permit and license, if required.

(4) *Revocation of charitable solicitor's permit.* Charitable solicitor permits issued under the provisions of this article may be revoked by the committee on business licenses after notice and hearing, for any of the following causes:

(a) Fraud, misrepresentation, or false statement contained in the application for the permit;

(b) Fraud, misrepresentation or false statement made in the course of carrying the activity allowed under the permit;

(c) Any violation of this article;

(d) Conviction of a felony or misdemeanor involving a sex offense, controlled substances, or any violent acts against person or property;

(e) A civil judgment or criminal conviction for fraud, deceit, or misrepresentation;

(f) Conducting the permitted activity in an unlawful manner or in such a manner as to constitute a breach of the peace or to constitute a menace to the health, safety or general welfare of the public; or

(g) Failure to possess the identification required by the following Section 17-105.

Notice of the hearing for a revocation of a charitable solicitation permit shall be given in writing, setting forth specifically the grounds for the revocation, and the time and place of the revocation hearing. Such notice shall be mailed, postage prepaid, to the permittee at the address listed on their permit application at least ten (10) days prior to the date set for the revocation hearing.

(5) *Appeals.* Any person aggrieved by the action of the chief of police or the revenue collections director in the denial of a permit as provided in this section shall have the right to appeal to the City of Charleston's committee on business licenses by filing with the city's clerk of council a statement in writing setting forth plainly and fully the grounds for the appeal. The appeal shall be filed within thirty (30) days after the aggrieved person receives actual notice of the decision of the chief of police or the revenue collections director.

Any person aggrieved by the action of the committee on business licenses in the revocation of a permit as provided in this section shall have the right to appeal to the circuit court in and for the County of Charleston by filing with the clerk of court a petition in writing setting forth plainly and fully why the decision is contrary to law. The appeal must be filed within thirty (30) days after the aggrieved person receives actual notice of the decision of the committee on business licenses.
(Ord. No. 2014-40, § 1, 3-25-14)

DIVISION 6. PALMETTO ARTISANS

Sec. 17-109. Palmetto artisan permit—Required.

(1) No person between the ages of nine (9) and eighteen (18), unless still enrolled in high school, shall engage in the selling of palmetto art products within the corporate limits of the city without first obtaining a palmetto artisan permit in compliance with the provisions of this article and the rules and regulations of the City of Charleston's Youth Palmetto Art and Business Program. Copies of the program rules and regulations shall be made available to the public by the city's recreation department.

Individuals over the age of eighteen (18) who are not still in high school who sell palmetto art products shall be considered peddlers for the purposes of this chapter.

(2) *Application for a palmetto artisan permit.*

Applicants for a palmetto artisan's permit under this article shall complete an application for a Palmetto Artisan's permit and file it with the city's revenue collections department, which shall give the following information:

(a) Name and proof of age of the applicant;

(b) Permanent home and local address of the applicant;

(c) Name and contact information for parent or legal guardian;

(d) Name of School and location;

(e) Date of city of Charleston's Youth Palmetto Art and Business Program orientation attendance;

(f) A statement that the applicant will abide by all of the rules and regulations of the city of Charleston's Youth Palmetto Art and Business Program;

(g) A statement indicating whether or not the applicant has been convicted of a felony or misdemeanor. If so, the nature of the offense, the date and place of the offense, and the punishment imposed;

(h) A recent photograph of the individual showing the head and the shoulders of the applicant in a clear and distinguishing manner; and

(i) Applicants must apply for the permit with the signed consent of their parent or legal guardian.

(3) *Investigation of palmetto artisan applicant; issuance.* The Recreation Department in conjunction with the Charleston Police Department shall issue a palmetto artisan's permit

within fourteen (14) days as provided for hereunder when, from a consideration of the application and from such other information as may otherwise be obtained, they find that:

(a) The applicant has not had a permit suspended or revoked within the twelve (12) months immediately preceding the date of the application for a permit;

(b) There are no material omissions, untrue or misleading information contained in or omitted from the permit application;

(c) The applicant is between the ages of nine (9) and seventeen (17) or is eighteen (18) and still in high school;

(d) The applicant has successfully completed the City of Charleston's Youth Palmetto Art and Business Program orientation;

(e) The applicant has not received six (6) or more Palmetto Artisan Program violations in the past twelve (12) months.

(f) The applicant has not been convicted of a felony or a misdemeanor involving a sex offense, controlled substances, or any violent acts against person or property;

(g) There are no warrants outstanding against the applicant; and

(h) The applicant's parent or guardian has signed the application.

If as a result of such investigation, the application for a permit is denied, the individual denying the permit shall endorse on such application his disapproval and notify the applicant of the reasons for denial.

If as a result of such investigation, the application is granted, both the Charleston police department and the city revenue collections division shall endorse on the application their approval, and the city revenue collections division shall execute a permit addressed to the applicant. The director of revenue collections shall inquire into the nature of the business, the anticipated volume of sales and other details necessary to determine the amount of any business license fee required by the annual city

business license ordinance. Upon payment of such prescribed business license fee and permit fee by the applicant, the director of revenue collections shall deliver to the applicant his permit and license.

(4) *Palmetto artisan's permit—Revocation.* Palmetto artisan's permits issued under the provisions of this article may be revoked by the committee on business licenses after notice and hearing, for any of the following causes:

(a) Fraud, misrepresentation, or false statement contained in the application for the permit;

(b) Fraud, misrepresentation or false statement made in the course of carrying on the activity allowed under the permit;

(c) Any violation of this article;

(d) Conviction of a felony, misdemeanor or ordinance violation involving a sex offense, controlled substances, fraud, deceit or misrepresentation or any violent acts against person or property;

(e) Conducting the permitted activity in an unlawful manner or in such a manner as to constitute a breach of the peace or to constitute a menace to the health, safety or general welfare of the; or

(f) Failure to possess the identification required by section 17-105.

Notice of the hearing for a revocation of a palmetto artisan's permit shall be given in writing, setting forth specifically the grounds for the revocation, and the time and place of the revocation hearing. Such notice shall be mailed, postage prepaid, to the permittee at the address listed on their permit application at least ten (10) days prior to the date set for the revocation hearing.

(5) *Appeals.* Any person aggrieved by the action of the chief of police or the revenue collections director in the denial of a permit as provided in this Section shall have the right to appeal to the city of Charleston's Committee on Business Licenses by filing with the city's clerk of council a statement in writing

setting forth plainly and fully the grounds for the appeal. The appeal shall be filed within thirty days after the aggrieved person receives actual notice of the decision of the chief of police or the revenue collections director.

Any person aggrieved by the action of the committee on business licenses in the revocation of a permit as provided in this section shall have the right to appeal to the circuit court in and for the County of Charleston by filing with the clerk of court a petition in writing setting forth plainly and fully why the decision is contrary to law. The appeal must be filed within thirty (30) days after the aggrieved person receives actual notice of the decision of the committee on business licenses.
(Ord. No. 2014-40, § 1, 3-25-14; Ord. No. 2016-076, § 3, 6-21-16; Ord. No. 2019-014, § 2, 2-16-19)

Secs. 17-110—7-120. Reserved.

DIVISION 7. RESERVED

DIVISION 8. VENDING

Sec. 17-121. Vending of food, drink or reading material.

(a) *Vending of food or drink within public rights-of-way.*

(1) It shall be unlawful for any person to engage in the business of selling food or drink with any alcohol contained therein and reading material from a stationary cart or any other stationary vehicle or device that is placed, parked or stopped in or upon any city street or in any public parking space, public right-of-way or sidewalk next to any city street or on any other public property in the Old and Historic District of the City of Charleston except in such area as shall be designated and marked by the department of traffic and transportation for such purpose and as is approved by city council.

(2) The director of traffic and transportation shall survey the Old and Historic District and report to city council, on at least an annual basis, those areas in the

nonresidential portions of the Old and Historic District which are appropriate for accommodating the location of stationary vendors selling food or drink with any alcohol contained therein and reading material, taking into consideration factors such as vehicular and pedestrian circulation, access, availability of parking, street and/or sidewalk width and such other factors as he may deem necessary to protect the public health, welfare and safety; provided, however, that under no circumstances shall a vendor space designated for the sale of food or drink with any alcohol contained therein and reading material be located within one hundred (100) feet of the entrance to a church or within one hundred (100) feet of a residentially designated district; and provided further that when the director of traffic md transportation annually surveys the nonresidential portions of the Old and Historic District to determine the appropriate location of any vendor space, he shall seek to avoid locating stationary street vendors who sell food or drink with any alcohol contained therein and reading material unreasonably close to existing restaurants or to other designated vendor spaces.

(3) Vendor spaces designated for the sale of food or drink with any alcohol contained therein and reading material from stationary carts or other vehicles or devices shall be available to interested vendors on a daily basis, 7:00 a.m. to 7:00 p.m., on a first come, first serve basis unless such spaces are franchised or unless designated by city council as not being available to interested vendors on a daily basis, 7:00 a.m. to 7:00 p.m. on a first come, first serve basis if not franchised in accordance with this section.

(4) No person shall engage in the sale of food or drink with any alcohol contained therein and reading material from a stationary cart or other vehicle or device from a vendor space unless:

a. He has secured a business license, a peddler's permit for himself and any employee who shall operate his stationary cart or other vehicle or

device approved by the police department and issued by the business license division, and a decal from the business license division displayed as follows:

1. The decal shall be prominently displayed on the stationary cart or other vehicle or device from which food or drink with any alcohol contained therein and reading material is dispensed; and

2. The peddler's permit issued to the vendor or his employee operating the stationary cart or other vehicle or device and the vendor's business license shall either be prominently displayed on the vendor's stationary cart or other vehicle or device or available from the vendor or his employee operating the stationary cart or other vehicle or device on demand; and

b. He can and does confine all operations incident to the sale of food or drink with any alcohol contained therein and reading material within the perimeter of the vendor space; and

c. He has paid such fees as may be set by city council for the privilege of utilizing such vendor space(s); and

d. He has filed with the director of traffic and transportation a duly executed idemnification/hold harmless agreement with the city concerning the use of the designated vendor space.

(5) Nothing herein shall be construed to prevent the director of traffic and transportation, at the direction of city council, from designating vendor spaces on a temporary basis as and when city council may deem appropriate.

(6) Authority of the director of traffic and transportation regarding bidding and franchising procedures for all

vendor spaces designated for the sale of food or drink with any alcohol contained therein and reading material is delineated as follows:

a. The director of traffic and transportation shall have the authority to recommend to the committee on traffic and transportation that any or all vendor spaces designated for the sale of food or drink with any alcohol contained therein and reading material be made available only pursuant to a competitive bidding process and the execution of a franchise agreement with the successful bidder. The city may reject any or all bids.

b. In determining whether such a recommendation is warranted, the director of traffic and transportation shall consider whether the demand for any vendor space from competing vendors is, or could be, disruptive to the public order or has resulted, or could result, in undue burden on enforcement officials.

c. Upon the committee on traffic and transportation approving the franchising of certain vendor spaces, the director of traffic and transportation, with input from corporation counsel, shall draft bid specifications, which shall include, at a minimum:

    1. The location of the vendor space proposed to be franchised;

    2. A requirement of such minimum bid as shall be approved by the ways and means committee;

    3. A provision to allow for the payment of the franchise fee on at least a semiannual basis;

    4. A limitation on the term of the franchise agreement to no more than one (1) year;

    5. A requirement for the acquisition of public liability insurance in such amounts as shall be recommended by corporation counsel;

6. A prohibition against the assigning or subletting of any vendor space or franchise agreement;
7. A requirement that the successful bidder acquires and maintains a current City of Charleston business license;
8. A provision requiring the successful bidder to comply and maintain compliance with applicable rules and regulations as may be promulgated by the South Carolina Health Department; except is prohibited by subsection 17-121(3) a limitation on the hours of operation from 7:00 a.m. to 7:00 p.m., with a provision allowing for the franchised vendor space to be available to other licensed vendors for any day during the term of the franchise agreement that the successful bidder s not open for business in the franchised vendor space by 11:00 a.m., or if he thereafter vacates he franchised vendor space during the day;
9. A requirement that the successful bidder remove all vending apparatus from the vendor space it the end of each day and to otherwise maintain the area in and around the vendor space in a clean condition, free of trash and rubbish;
10. A requirement forbidding meter feeding or encroaching on any property outside the vendor space;
11. Provisions for the suspension or cancellation of the franchise agreement;
12. A provision requiring the use of recyclable or biodegradable containers; and
13. A provision allowing the city to reject any or all bids not deemed by it to be in the best interest of the city.

d. No bid specifications shall be put out for bid until they have first been approved by the committee on ways and means.

(7) Authority of the department of traffic and transportation regarding the lawful and/or appropriate placement of stationary carts for the sale of food or drink with any alcohol contained herein and reading material in areas outside of the Old and Historic District is delineated as follows:

a. In areas outside the Old and Historic District, the sale of food or drink with any alcohol contained therein and reading material from stationary carts or other stationary vehicles that are laced, parked or stopped in or upon any other public property shall be unlawful, except in such areas as may be designated and marked by the department of traffic and transportation for such purposes.

b. In determining whether a location outside the Old and Historic District is appropriate to accommodate a stationary cart or stationary vehicle selling food or drink with any alcohol contained therein and reading material, the director of traffic and transportation shall consider the vehicular and pedestrian circulation around the proposed space, the availability of parking, street and/or sidewalk width, access and such other factors as he may deem necessary to protect the public health, safety and welfare; provided however, that the director of traffic and transportation shall not designate a space for the sale of food or drink with any alcohol contained therein and reading material within one hundred (100) feet of the entrance to a church or within one hundred (100) feet of a residentially designated district; and provided further, the director of traffic and transportation shall seek to avoid having stationary street vendors selling food or drink with any alcohol contained therein and reading material unreasonably close to existing restaurants or other designated street vending spaces.

c. The director of traffic and transportation shall have the authority to recommend to the committee

on traffic and transportation that any of the spaces designated for the sale of food or drink with any alcohol contained therein and reading material pursuant to the provisions of this section be made available only pursuant to a competitive bidding process and the execution of a franchise agreement with the successful bidder. The city may reject any or all bids. In determining whether such a recommendation is warranted, the director of traffic and transportation shall consider whether the demand for the space or spaces is, or could be, disruptive to the public order or has resulted, or could result, in undue burden on enforcement officials. If such a recommendation is made, and thereafter approved by the committee on traffic and transportation, he director of traffic and transportation, with input from corporation counsel, shall prepare bid specifications incorporating the provisions of this section.

d. No bid specifications shall be put out for bid until they have first been approved by the committee on ways and means.

e. Any spaces not franchised shall be available to licensed vendors pursuant to the criteria set forth in this section except as prohibited by subsection 17-121(a)(3).

(b) *Vending of food or drink within the central business district.*

(1) Any sale of food, drink or alcoholic beverages from a mobile food vendor that is placed, marked or stopped on private property in the Central Business District of the City of Charleston shall be subject to the following regulations in their operation:

a. No person shall engage in a mobile food vendor operation unless they have obtained a valid business license, a peddler's permit for himself and any employee operating at the location, and one (1) current mobile food vendor operational permit from the fire marshal division. Required documentation

will be readily displayed and made available upon request, including written permission from the property owner.

b. No mobile food vendor may operate outside the hours of 8:00 a.m. to 1:30 a.m. At the end of each business day's operation, the vendor shall remove from the parcel the mobile food vendor operation and all materials associated with the business.

c. No mobile food vendor shall sound any device or play music which produces an offensive or oud noise to attract customers, and vendors shall not use any public address system on the vehicle to broadcast or advertise products. All mobile food vendors to which this section applies shall also comply with the noise restrictions in the late night entertainment establishment operational regulations listed in section 17-126.

d. It shall be the responsibility of the mobile food vendor to position their operation, vehicle, and equipment, in such a manner to reduce or eliminate interruptions of the public way. Operations shall not block or obstruct the public way, generate patron lines that obstruct sidewalks, streets, or public ways, or similar. The vendor shall locate at least 10' from the public way, or further, to reduce the potential for obstructions.

e. For purposes of this section, mobile food vendor may include a truck, cart, trailer, vehicle or similar temporary configurations to provide food or beverage service.

(Ord. No. 2014-40, § 1, 3-25-14; Ord. No. 2015-134, § 3, 9-22-15; Ord. No. 2021-89, § 1, 6-30-21)

DIVISION 9. PENALTY

Sec. 17-122. Penalties.

(1) *Penalty.* Any person who is convicted of any violation of Chapter 17, Article V, may be sentenced to pay a fine not exceeding the maximum fine permitted by law or serve a term

not exceeding thirty (30) days in jail, or both. Each day any violation of this article shall continue shall constitute a separate offense.

[The next page is 1072.3]

(2) *Court order on jurisdictional limits.* In addition to the penalty that may be imposed pursuant to subsection (a) immediately above, any person who is arrested for and/or convicted of violating any provision of this article may be subject to an order of the court which shall impose a jurisdictional limit on said person prohibiting his presence in a specific geographic area of the City of Charleston. Failure to comply with the court order shall constitute a violation of the court order and shall result in the following:

(a) In the case of a bond where jurisdictional limits have been imposed, the bond may be revoked and the person shall be incarcerated until trial; and/or

(b) In the case of a sentence where jurisdictional limits have been imposed, the suspended sentence may be revoked and the person shall be incarcerated until he has served the original sentence imposed by the court without any portion thereof suspended.

(Ord. No. 2014-40, § 1, 3-25-14)

Sec. 17-122.5. Severability.

In the event any part of this article is found by a court of competent jurisdiction to be invalid or otherwise unenforceable, such finding shall not affect the remaining provisions of this article, which shall remain in full force and effect to this end the provisions of this article are deemed severable.

(Ord. No. 2014-40, § 1, 3-25-14)

ARTICLE VI. NEWSRACKS

Sec. 17-123. Newsracks.

(a) *Definitions.*

Distributor means the person or entity that owns, is responsible for or directs the placing, installation, or maintenance of a newsrack in the public right-of-way.

Intersection means that portion of the public right-of-way which surrounds the intersecting portion of two (2) or more roadways, extended along each roadway to the midpoint of each block.

Multiple newsrack means a newsrack designed to dispense two (2) or more different publications.

Newsrack means any freestanding self-service or coin-operated box, container, storage unit or other dispenser installed, used, or maintained in the public right-of-way, including a public sidewalk, for the display, sale or distribution of newspapers, periodicals or other publications.

Public right-of-way means land, which by deed, conveyance, agreement dedication, usage or process of law is used or reserved for use as a public roadway, including the sidewalk as hereinafter defined, in the City of Charleston (the "right-of-way").

Sidewalk means the area of the public right-of-way which is designated or ordinarily used for pedestrian travel.

(b) *Prohibition.*

(1) No person or entity shall place, install, use or maintain any newsrack which rests in whole or in part upon, in, or on any portion of the right-of-way in the city, or that projects onto, into, or over any part of the right-of-way or which attempts to utilize or take advantage of the right-of-way in the city except in compliance with the provisions of this article.

(2) All newsracks shall comply with federal, state and other local laws and regulations, as applicable, and shall be approved by the city prior to their installation as provided herein.

(c) *Standards for newsracks placed in the right-of-way.*

(1) No newsrack shall exceed fifty (50) inches in height, twenty-seven (27) inches in width, or twenty (20) inches in thickness.

(2) No newsrack shall be placed, installed or maintained within five (5) feet of any marked or unmarked crosswalk,

fire hydrant, driveway, alley, loading zone, handicapped ramp or curb cut, on any grating or manhole cover, on any surface where the newsrack shall cause damage to or interfere with the use of any pipes, vault areas, telephone or electrical cables and wires, or within the initial twenty (20) feet of any area used by the Charleston Area Regional Transit Authority ("CARTA") for loading and unloading passengers at a bus stop, measured from the front position of the bus.

(3) No newsrack shall be placed, installed or maintained within two (2) feet of a curb face.

(4) A single or multiple newsrack shall be permitted in a right-of-way of the city on the Charleston peninsula generally from Spring Street to the north; from Concord Street to the east; from Broad Street to the south; and from Lockwood Boulevard to the west and specifically at the locations more fully described on Exhibit A, attached to Ordinance No. 2012-239 and incorporated by reference herein (the "permitted spaces"). In the event the distributor of a single or multiple newsrack desires its newsrack to be located in an area other than a permitted space as set forth on Exhibit A due to a compelling hardship, the distributor shall suffer as a result of its newsrack being located in a permitted space, the distributor may seek permission from the city to locate its newsrack on an alternative right-of-way and shall set forth the reasons why an alternative right-of-way for the placement of the distributor's newsrack is necessary. Any alternative right-of-way location request may only be approved by the city in its sole discretion based upon the following considerations:

i. The current number of newsracks that are located within or near the proposed area shall not create undue concentration of newsracks in such proposed area.

ii. The impact on pedestrian and vehicular traffic and accessibility to public transportation shall not be impacted by the addition of a newsrack in such proposed area.

iii. The impact on and proximity to buildings used for residential purposes shall not be impacted by the addition of a newsrack in such proposed area.

iv. No inconsistency of newsracks and the character of the surrounding streetscape shall occur by virtue of the presence of a newsrack in such proposed area.

v. In determining alternative location requirements, the city shall establish objective criteria relating to the surrounding uses likely to generate a demand for periodicals and other material customarily supplied through newsracks, distances between locations, and the visual compatibility of newsracks with surrounding facades and streetscape improvements. The criteria shall be nondiscriminatory among distributors, but may make reasonable limitations on the number of publications that any one distributor, publisher or its affiliates, may have at any one location when spaces at that location are limited in number. The city may also implement reasonable regulations to promote the full utilization of spaces and to require the forfeiture of spaces when they are not fully utilized. The city may make limitations on the lettering, logos, and graphics that appear on the newsracks, but shall allow a reasonable basis for publications contained within spaces to be readily identified.

(5) Newsracks, whether single or multiple, shall be painted in accordance with Sherwin Williams specifications Historic Charleston Green, PMS #DCR099, exterior Corothane I-Alphatic moisture cure urethane or its equivalent as approved by the City of Charleston.

(6) A newsrack shall exhibit only one graphic comprised of white lettering and/or numbering and covering a surface area no larger than the size of a rack card on the front of the newsrack only and in the same place on the front of the newsrack where a rack card would be inserted. A rack card may also be used in the same place. The one rack card may include a registered trademark and be of any design or color combination.

(7) Excepting the white lettering and/or rack card described in this section, no advertising signs or material shall be displayed on the outside of the newsrack other than signs or material dealing with the name, address and telephone number of the publication contained within the newsrack.

(8) Each newsrack shall be sufficiently weighted and bolted to the sidewalk to provide stability and safety in accordance with the newsrack manufacturer's recommended specifications which shall be submitted to the city with the newsrack encroachment permit application as set forth in subsection (e)(2) of this section. No newsrack shall be chained, tied or otherwise fastened to a tree, signpost, streetlight, telephone pole or other fixture on the right-of-way.

(9) Each newsrack shall be equipped with a coin-return mechanism to permit a person using the machine to secure an immediate refund in the event the person is unable to receive the purchased publication paid for. The coin-return mechanism shall be maintained in good working order. Newsracks dispensing free publications are exempt from this subsection.

(10) Each newsrack shall be made of a metallic or other material as approved by the city and the size, shape, color as set forth in subsections (1) and (5) of this subsection (c), and other design features, including orientation at the site, have been approved by the city. In determining design requirements, the city shall consider compatibility of design features with prevailing facade treatments and with streetscape improvements to the full extent newsracks having such features are reasonably available on the market.

(11) Each newsrack shall be maintained in a neat and clean condition and in good repair at all times. Without limiting the generality of the foregoing, each newsrack shall be serviced and maintained so that:

i. It is reasonably free of dirt and grease;

ii. It is reasonably free of chipped, faded, peeling and cracked paint in the visible painted areas thereof;

iii. It is reasonably free of rust and corrosion in the visible unpainted metal areas thereof;

iv. The clear plastic or glass parts thereof, if any, through which the publications therein are viewed, are unbroken and reasonably free of cracks, dents, blemishes and discoloration;

v. The structural parts thereof are not broken or unduly misshapen; and

vi. It is free of graffiti.

(12) Provided the newsracks which are located in the city on the effective date of the ordinance from which this article is derived are not determined to be a public nuisance or dangerous to the public safety, or its health or general welfare, such newsracks lawfully in existence as of the effective date of the ordinance shall be allowed to remain at the same location for a period not to exceed three (3) months from the effective date of the ordinance.

(13) During the three (3) months after the ratification of this article, nine (9) of the thirty-three (33) locations where newsracks currently exist shall be disassembled and permanently removed by the city or its designee. The nine (9) locations of the newsracks that shall be removed during this three-month period are more fully set forth in Exhibit B, attached to Ordinance No. 2012-239, and incorporated by reference herein.

(d) *Removal.*

(1) If the city determines that a newsrack has been placed, installed or maintained on a right-of-way in violation of this article, the director of livability, a division of the department of planning and preservation (the "department"), shall cause to be placed a notice of violation upon the newsrack. The notice of violation shall state that the newsrack shall be removed and destroyed unless the newsrack is brought into compliance with this article within ten (10) business days of the date of the notice. If

the newsrack is not removed or brought into compliance within such ten-day period, and if no hearing has been requested under this section within such period, the department may remove and destroy the newsrack at the expense of the distributor. The notice given under this section shall also state that the distributor may, within ten (10) days of the date of the notice, request a hearing before the committee of traffic and transportation at which time the distributor shall be given an opportunity to contest the allegations of the complaint or to demonstrate that the conditions constituting a violation of this article have been remedied. If, after the hearing, the department determines that a violation of this article continues to occur, the department shall order the distributor to remove the newsrack from the right-of-way no later than five (5) days from the date of the written determination by the committee of traffic and transportation.

(2) Any newsrack that remains on the right-of-way for more than ten (10) days after it has been ordered removed pursuant to subsection (1) above shall be removed and destroyed by the city at the expense of the distributor.

(3) Notwithstanding any other provision of this section, the city may require a distributor to remove or relocate a newsrack when such removal or relocation is necessary to accommodate a public or private construction or repair project or similar activity. In cases where immediate removal of the newsrack is necessary to protect the health or safety of the public, the city may remove or relocate the newsrack at the distributor's expense and promptly give written notice to the distributor at the address identified on the newsrack of such removal or relocation thereafter. In all other cases, the city shall cause a notice to be placed upon the newsrack, or shall give written notice to the distributor at the address identified on the newsrack, stating that the newsrack must be removed or relocated within ten (10) days of the date of the notice and the reason for the removal or relocation. If the newsrack is not removed or relocated

within the time specified by the city, the city shall remove and destroy or relocate the newsrack at the distributor's expense. The city may return a newsrack not previously destroyed if the distributor reimburses the city for its costs associated with its removal.

(e) *Insurance required: encroachment permit required; encroachment permit not a property right.*

(1) Any publisher or distributor wishing to place a newsrack on the public right-of-way shall provide a certificate of insurance to the city which shall evidence a minimum of three hundred thousand dollars ($300,000.00) per person and six hundred thousand dollars ($600,000.00) per occurrence in public liability coverage on the newsrack permitted by the city to be placed on the public right-of-way and which shall name the City of Charleston as an additional insured thereon.

(2) Prior to the placement of a newsrack on the public right-of-way, a publisher or distributor shall obtain an encroachment permit from the city by submitting a newsrack encroachment permit application and a nonrefundable twenty-five-dollar application fee to the city's department of engineering at 75 Calhoun Street, 3rd floor.

All newsracks which are issued a newsrack encroachment permit as set forth in subsection (2) above shall display the name of the publisher or distributor and provide a telephone number to call with any complaints, including problems with maintenance, operation, or location on the outside of each newsrack on a label on the front of the newsrack not to exceed three (3) square inches. Any permit for the use of public space as provided for under this section are not property rights or entitlements of any newsrack owner, publisher or distributor of material found in them.

(f) *Penalty for violation.* Any person or entity that violates this article shall be subject to section 1-20, General penalty, of this Code.

(Ord. No. 2012-239, § 1, 5-8-12; Ord. No. 2025-023, § 1, 2-25-25)

ARTICLE VII. RESERVED

ARTICLE VIII. LATE NIGHT ENTERTAINMENT ESTABLISHMENTS*

Sec. 17-124. Findings.

Successful communities are those that provide desirable atmospheres for living, working, and recreating. To foster strong neighborhoods and a healthy economy, it is vital that a balance between these sometimes competing interests be achieved and maintained. Viable, well-managed nightlife activities are crucial elements to the success of the city, as they provide needed recreational opportunities to visitors and residents alike.

To strike that balance, council adopts a repeal and replacement of the prior late night establishment (LNE) ordinance, which will require a permit to be obtained for any establishment that desires to remain open beyond the hours of 12:00 a.m. in certain circumstances.

The ability of a late night establishment to sell, offer for sale, deliver, or permit to be consumed upon the premises any alcoholic beverage between the hours of 12:00 midnight and 2:00 a.m. on any day of the week is hereby declared to be and is a privilege subject to suspension, and no person may reasonably rely upon a continuation of that privilege. As a condition of the continuation of the privilege, LNEs are provided the framework to establish minimum actions and steps necessary to promote a safe community. City staff remain committed to implementing a successful program and partnering with the LNE community. Generally, violations are discussed and reviewed with the late night establishment and notices are issued to educate and clarify expectations; however, failure to comply will subject the late night establishment to a tiered penalty process.
(Ord. No. 2022-112, § 1, 9-13-22)

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*__Editor's note—__Ord. No. 2022-112, § 1, adopted Sept. 13, 2022, repealed the former Art. VIII, §§ 17-124—17-135, and enacted a new Art. VIII, §§ 17-124—17-133, as set out herein. The former Art. VIII pertained to similar subject matter and derived from Ord. No. 2013-55, § 1, 5-28-13; Ord. No. 2014-38, §§ 1—4, 3-25-14; Ord. No. 2016-084, §§ 1, 2, 7-19-16.

Sec. 17-125. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Designated security staff means an individual selected by the LNE who has appropriate training in safety management to facilitate safe practices in accordance with the LNE's safety plan. This can be employees of the company or third-party contracted security personnel.

Late night establishment means any bar, restaurant, venue, or commercial establishment, approved to operate as such, that currently allows on-premises consumption of beer, wine, or alcohol, and remains open after midnight, regardless of zoning designation located within the city.

Maximum occupant load means the maximum number of people allowed in accordance with the approved certificate of occupancy issued for the facility and/or pursuant to the International Fire Code or other fire code in effect in the city, all as the same may, from time to time, be amended by the city.
(Ord. No. 2022-112, § 1, 9-13-22)

Sec. 17-126. Late night entertainment establishment operational regulations.

(a) *Security and safety measures.*

(1) All LNEs must provide adequate staffing to ensure public safety. The LNE businesses should consider their occupancy, day of the week, events, and holidays during planning. It is the responsibility of each LNE location to review, schedule and provide personnel, if needed, to include presence at each public entrance, to be present on and around the exterior premises of the business, providing security and ensuring the safety of the employees and patrons of the business. Minimum ratio of staff assigned to security will be considered at the following ratios:

LNE Actual Occupancy Load Ratio to Designated Security Staff	
Actual Occupant Load at any Time	*Security*
50 people	1
51—150 people	2
151—250 people	3
251—350 people	4
Each additional 100 people	(+)1 per 100

(2) LNEs must install and/or maintain exterior lighting and video surveillance equipment, on property owned or legally controlled by it, if required, by the city during the LNE application review.

(3) It shall be the responsibility of the LNE owner or his/her designee to create and maintain on-site an emergency action plan (as outlined in section 17-127) for the establishment and train its staff and security personnel as to its details.

(4) It shall be the responsibility of the LNE owner or his/her designee to implement an approved security plan (as outlined in section 17-127) by 10:00 p.m. to provide for the safety of patrons and employees. That security plan should detail the following:

a. Security person(s) or designated security staff shall:

1. Be readily identifiable through standardized clothing and/or clear identification to assist patrons and public safety officers.

2. Maintain a presence at each public entrance, if required, to be present on or around exterior premises of the business from 10:00 p.m. to closing, assist with ID checks, and assist with crowd management.

3. Employ crowd management techniques to manage crowds and assure that patrons are adequately disbursed throughout the establish-

ment and in compliance with the maximum occupant load of the specific area or areas of the establishment.

4. Ensure that the maximum occupant load is not exceeded and must heed any instruction or warning of a City Code enforcement official, police officer, or fire marshal.

5. Maintain a line of persons adjacent to the outside of the LNE so they are not blocking the sidewalk, street or public ways or entrances to other establishments to allow for free and safe flow of pedestrian activity.

6. Routinely monitor all on-site areas used for parking by the LNE or its patrons to prevent such areas from becoming outdoor gathering places.

7. Assist persons in entering and leaving the LNE in an orderly manner. In the event any person is disorderly or otherwise is engaged in illegal conduct that the staff cannot contain, then the LNE owner or his/her designee shall contact law enforcement.

(5) It shall be the responsibility of the LNE to not knowingly, or recklessly allow any specified criminal activity to occur in or on the premises of the establishment;

(b) *Preventing underaged drinking.*

(1) Any LNE open past midnight shall provide adequate staffing and implement a plan by 10:00 p.m. to ensure appropriate ID checks are conducted to verify patrons are twenty-one (21) years of age or older, with the addition of all LNEs serving food past 10:00 p.m. who allow patrons under twenty-one (21) years of age into the facility shall establish a method to identify the underaged patrons.

(2) The facility will ensure staff members have received appropriate training to check IDs.

(3) At a minimum, the responsibility for ID verification shall be assigned and conducted by security person(s) or staff as outlined above in section 17-126(b)(1).

(4) ID scanners are encouraged but not required. Facilities who fail to adhere to their written plan may be required to implement additional measures, including ID scanners.

(c) *Other conditions.*

(1) All LNEs must cease all sales in accordance with City Code section 3-16.

(2) All LNEs shall be held to the requirements dictated by the city's noise ordinance, Code section 21-16.

(3) It shall be the responsibility of LNE personnel to comply with City Code regarding waste management, littering, and property maintenance.

(4) It shall be the responsibility of LNE personnel to, at all times, operate and maintain the premises in accordance with all requirements of this article and all other applicable city ordinances, including but not limited to zoning, building and fire codes.

(5) Additional provisions may be required, based on the facility, size, type, location, and occupancy type, by the police department and/or fire marshal based upon a site visit, security and management plan, and past violations of this article and/or citations.

(6) In addition to the general penalty provisions of this Code, the failure to abide by the provisions of this section may result in reporting to the department of revenue collection for possible business license suspension or revocation or the chief fire marshal or chief building official for possible suspension or revocation of the LNE's certificate of occupancy.

(Ord. No. 2022-112, § 1, 9-13-22)

Sec. 17-127. Application for permit.

Any business intending to operate as a LNE must apply for and obtain, in addition to its certificate of occupancy and business license, a LNE permit, and provide proof of compliance when renewing. Once approved, permits shall be valid for up to two (2) years unless revoked or suspended. To obtain a permit to operate as a LNE, the applicant must supply the following information with its application and submit all the documents identified on the LNE permit application or additional documents as requested by city staff:

(1) Floor plans, drawn to scale, showing the interior of the structure to be occupied by the establishment, to include the designation and square footage of patron use areas (customer circulation, standing, dancing, seating and wait areas), stage areas for entertainment, and non-patron use areas (restrooms, kitchen, office, storage, etc.). All marked or required exits shall be noted and identify existing safety systems such as fire sprinkler or fire alarms systems. When an establishment will not occupy the entire structure, the plans must identify other uses in the structure at the time of application.

(2) A site plan, drawn to scale, showing the entire exterior of the premises to include the locations of all buildings on the premises, parking areas, refuse collection areas, the main entrance to the establishment, emergency exits from the establishment, all means of ingress and egress to the premises, lighting locations and the location and dimensions of existing and proposed trees, plantings and landscaping, if necessary.

(3) A copy of the current business license and a copy of the current certificate of occupancy, if issued. If not issued at the time of application, then the LNE permit cannot be approved until the business license and certificate of occupancy have been approved and reviewed.

(4) A written plan identifying the methods that will be implemented to prevent underaged drinking.

(5) A security and management plan describing with particularity the days and hours of operation, crowd management measures to be taken, ratio of security personnel to occupants, both in and outside the premises and any parking areas under the control of the establishment, and means of controlling access, and underage drinking and serving.

(6) An emergency action plan describing with particularity how and under what circumstances the establishment would manage crowds, curb fire hazards, manage an emergency, to include evacuation techniques and the respective responsibilities of on-duty personnel in a manner prescribed by the fire marshal division, and proof that a copy of this plan is on site and reviewed by personnel.

(7) The applicant has a duty to provide honest and accurate information in the LNE permit application and has a duty to supplement information in the LNE application, even after permit has been approved, if circumstances related to information provided in the application change. Failure to do so could result in the suspension or revocation of the permit.

(Ord. No. 2022-112, § 1, 9-13-22)

Sec. 17-128. Conditions for approval and renewal of permit.

(a) Any fee that may, from time to time, be established by city council.

(b) The provisions set out in an approved LNE application shall constitute conditions of the establishment's ability to operate as an LNE, in addition to conditions of the certificate of occupancy and business license, in addition to those that may be imposed by applicable ordinances and standard codes in effect. Failure to follow code, conditions of this permit, warning or direction of a city code enforcement official, police officer, or fire marshal may result in immediate closure. Continued failure to

comply may also result in multiple-day closures, and up to suspension and/or revocation of the LNE privileges, business license, and/or certificate of occupancy.

(c) The approved, current permit, and application packet must be readily available on site.

(d) *Renewals.* The LNE is eligible to complete a renewal request as long as the facility ownership, occupancy, configuration, or tenant has not changed, and the LNE is in good standing with the city, otherwise a full application will be required. Permits will be issued for a duration not to exceed two (2) years. Renewal applications may be submitted up to ninety (90) days but not less than thirty (30) days before the permit expiration date so staff may review and evaluate the request to renew the permit.

(e) LNE permit is not transferable to new ownership or new locations.
(Ord. No. 2022-112, § 1, 9-13-22)

Sec. 17-129. Emergency temporary suspension of LNE activities.

An emergency suspension may be invoked if a situation arises that is determined by a fire marshal, a police officer, or code enforcement officer to require immediate action to eliminate a situation that poses imminent threat to persons or property, to preserve the public health, safety, and welfare of the public, or to restore public peace and order. This suspension will last for the duration of that day's LNE operations and will be reported promptly to the department of revenue collections for review of further action.
(Ord. No. 2022-112, § 1, 9-13-22)

Sec. 17-130. Violations.

(a) All violations of this article may result in the issuance of a municipal ordinance summons. Violation of any section of this article shall be punishable by a fine not exceeding five hundred dollars ($500.00) and/or imprisonment not to exceed thirty (30) days as provided by section 1-16.

(b) In addition to the issuance of a municipal ordinance summons for any violation of this article, the following administrative remedies shall be taken:

(1) *First issuance of municipal ordinance summons.* Upon issuance of the first summons within the two-year permit period there will be a mandatory remediation meeting between the LNE and city staff to review the LNE permit, the violation, and discuss strategies to prevent future violations.

(2) *Second issuance of municipal ordinance summons.* Upon issuance of the second summons within the two-year permit period, there will be a mandatory remediation meeting between the LNE and city staff to review the LNE permit, the violation, and discuss strategies to prevent future violations. The director of revenue collections may, in his or her discretion after considering the facts of both violations, issue a written notice of intent to suspend a late-night establishment permit for a period of time up to ninety (90) days.

(3) *Third issuance of municipal ordinance summons.* Upon issuance of the third summons within the two-year permit period, the director of revenue collections will use his or her discretion after considering the facts of the violations to issue a written notice of intent to suspend a late-night establishment permit for a period of time up to one (1) year.

(c) The fact that any relevant conviction is being appealed shall have no effect on the suspension or revocation of the LNE permit, provided that, if any conviction which serves as a basis of an LNE permit suspension revocation is overturned or reversed on appeal, that conviction shall be treated as null and of no effect for suspension or revocation purposes.

(d) When a notice of intent to revoke an LNE permit has been issued, the recipient shall not apply for or be issued any new license or permit under City Code chapter 17, article VIII until such notice has been withdrawn or, if revocation has become effective, until three (3) years after the effective date of revocation.

(e) When any person listed on an LNE permit application is arrested for conduct alleged to have occurred at the late-night establishment, no person listed on the establishment's permit application may apply for or be issued any new license or permit for that location under City Code chapter 17, article VIII, until the arrestee is cleared or until ninety (90) days following the arrest have passed, whichever occurs sooner.

(f) Prior to suspension or revocation, the city has elected to use progressive remediation. Provided, however, the director of revenue collections or designee, in his or her discretion, reserves the right to immediately seek to suspend or revoke such LNE permit in accordance with this article in cases where the action that is the basis for the revocation:

(1) Resulted in great bodily harm or the loss of life to any person; or

(2) Resulted in the damage or loss of property in an aggregate amount of one-hundred thousand dollars ($100,000.00) or more.

(Ord. No. 2022-112, § 1, 9-13-22)

Sec. 17-131. Hearing; permit denial; revocation; appeal.

(a) When the director of revenue collections or his or her designee issues a written notice of intent to deny, suspend, or revoke an LNE permit, the director of revenue collections or his or her designee shall send such notice, which shall include the specific grounds under this article for such action, to the applicant or recipient (appellant) by personal delivery or certified mail. The notice shall be directed to the most current business address or other mailing address on file with the director of revenue collections for the appellant(s). The notice shall also set forth the following: The appellant shall have ten (10) days after the delivery of the written notice to submit, at the office of the director (or such office as the director may designate), a written request for a hearing, accompanied by any processing fees as required by the business license committee. If the appellant does not request a hearing within the said ten (10) days, accompanied by the required processing fee, the director

(or designee's) written notice shall become a final denial or revocation, as the case may be, on the eleventh day after it is issued.

(b) If the appellant does make a written request for a hearing within the said ten (10) days, then a hearing will be held in accordance with the policies, procedures, and processes of the business license committee, as outlined in section 17-31.

(c) Any person aggrieved by a final decision of the business license committee regarding a suspension or revocation of a late night establishment permit, or a decision by the business license committee on a matter appealed to it in accordance with the procedures outlined in section 17-31 may appeal the decision of the business license committee to the circuit court in and for the county by filing with the clerk of court a petition in writing setting forth plainly, fully, and distinctly why the decision is contrary to law. The appeal must be filed within thirty (30) days after the affected party receives actual notice of the decision of the business license committee. Timely appeal of a decision of the business license committee does not effectuate a stay of that decision. The decision of the business license committee shall be binding and enforceable unless overturned by an applicable appellate court after a due and timely appeal.
(Ord. No. 2022-112, § 1, 9-13-22)

Sec. 17-132. Late night establishment reporting.

The director of business and neighborhood services shall make an annual report to the business license committee any findings or recommendations on the activities of late night establishments within the city.
(Ord. No. 2022-112, § 1, 9-13-22)

Sec. 17-133. Effective date.

The provisions of this article shall become effective three (3) months following ratification. LNEs in existence as of the effective date of this article shall come into compliance within five (5) months of the date of ratification or upon any expansion

of the floor area of the establishment, whichever shall first occur. All LNE will be required to affirm compliance with these regulations annually with its business license renewal.
(Ord. No. 2022-112, § 1, 9-13-22)

Secs. 17-134—17-150. Reserved.

[The next page is 1093]

ARTICLE IX. FRANCHISE AGREEMENT FOR INSTALLATION AND CONSTRUCTION OF FIBER OPTICS IN THE PUBLIC RIGHTS-OF-WAY

Sec. 17-151. Findings.

(a) Whereas, it is in the interests of the city to require a non-exclusive franchise agreement to regulate the incremental installation of fiber optic cable within property owned by the city or otherwise within public rights-of-way or easements to assist in expediting the implementation of a fiber optic network within the city, decrease the costs associated with the construction and creation of such a system, allow the city to control use of these public ways and to meet the needs of city departments, public safety organizations, and other publicly owned and operated facilities;

(b) Whereas, the regulation of the incremental installation of fiber optic cable by a nonexclusive franchise agreements will protect the public rights-of-ways or easements by improving both the management and regulation of competing demands through the elimination of duplicate fiber optic facilities within public property, easements, and rights-of-way; protect the economic vitality of the city by providing the broadband transport service and fiber facilities leasing required by broadband service providers; and manage traffic disruption that occurs whenever excavation occurs within or around these areas.
(Ord. No. 2018-114, § 1, 9-18-18)

Sec. 17-152. Non-exclusive franchise agreement required.

No person or entity shall install and construct fiber optics cable within property owned by the city or otherwise within public rights-of-way or easements without first entering into a non-exclusive franchise agreement with the city. Such franchise agreement shall be granted for an initial period of five (5) years commencing on the date of the last signature placed on this agreement and shall be automatically renew for two (2) additional five-year periods provided upon compliance with the provisions of the franchise agreement.
(Ord. No. 2018-114, § 1, 9-18-18)

Sec. 17-153. Contents of franchise agreement.

The franchise agreement shall contain the following provisions:

NON-EXCLUSIVE FRANCHISE AGREEMENT

This non-exclusive Franchise Agreement ("Agreement") is made as of the _____day of _____, 2018, by and between the City of Charleston, South Carolina, (the "City"), and ("_____"), a limited liability company authorized to do business within the State of South Carolina, and being incorporated in the State of _____.

RECITALS

WHEREAS, _____ is a limited liability company duly organized and existing under the laws of the State of _____, which has been issued a Certificate of Convenience and Necessity from the Public Service Commission of South Carolina; and

WHEREAS, _____ desires to construct, install and maintain Facilities within certain portions of the Public Rights-of-Way in portions of the City of Charleston; and

NOW, THEREFORE, in consideration of the recitals and the mutual promises contained herein, the City and _____ agree as follows:

DEFINITIONS

"Fiber Optic Facilities" means approved fiber optic cables, conduits, converters, splice boxes, cabinets, handholes, manholes, vaults, equipment, drains, surface location markers, appurtenances, and related facilities to be located by in the Public Rights-of-Way of the City as defined below.

"Law" means any local, South Carolina or federal legislative, judicial or administrative order, certificate, decision, statute, constitution, ordinance, resolution, regulation, rule, tariff, guideline, standards or other requirement, as amended, now in effect or subsequently enacted or issued during the term of this Agreement, including, but not limited to, the Communications

Act of 1934, as amended by the Telecommunications Act of 1996, Pub. L. No. 104-104 § 101(a), 110 Stat. 70 codified at 47 U.S.C. § 151, et seq., and all orders, rules, tariffs, guidelines and regulations issued by the Federal Communications Commission or the governing state authority pursuant thereto as applicable, all laws regulations and rules of the South Carolina Department of Transportation, and all rules, regulations and guidelines issued by the City.

"Public Rights-of-Way" means the surface and the area across, in, over, along, upon and below the surface of the public streets, roads, sidewalks, lanes, courts, ways, alleys, and boulevards, but shall not include other public property used for parks, offices, libraries and other non-traffic, non-pedestrian purposes without the express written consent of the City.

"Small Cell Facilities" or "**DAS Facilities**" means equipment installed in the public rights-of-way, other than Fiber Optic Facilities, including but not limited to electronic equipment, optical converters, power amplifiers, radios, multiplexers, micro-cells, remote radio units, antennas, related fiber optic and coaxial cables, wires, meters, pedestals, power switches, and related equipment.

"Telecommunications Facilities" or "**Facilities**" means all facilities installed by to support the provision of Telecommunications Services, including Fiber Optic Facilities and Small Cell Facilities.

"Telecommunications Services" means all telecommunications services that may provide under Law.

CONSTRUCTION, MAINTENANCE AND OPERATION OF THE SYSTEM

1. Access. Subject to the provisions of this Agreement, and all applicable Law, the City hereby grants to the non-exclusive right to construct, install, maintain, locate, move, operate, place, protect, reconstruct, reinstall, relocate, remove and replace the Facilities in, under, and along all certain Public Rights-of-Way and only in the non-vehicular portions of the Rights-of-Way and as pursuant to permits issued pursuant to paragraphs 5 and 6 below.

2. Term. The term of this Agreement shall be for an initial period of five (5) years commencing on the date of the last signature placed on this Agreement. This Agreement shall automatically renew for two (2) additional five (5) year periods, unless gives ninety (90) days' notice of intent to terminate prior to the end of the applicable five (5) year period.

3. No Interference. Except as permitted by applicable Law or this Agreement, in the performance and exercise of its rights and obligations under this Agreement, shall not interfere in any manner with the existence and operation of any and all existing public and private Rights-of-Way, sanitary sewers, water mains, storm drains, gas mains, poles, overhead and underground electric and telephone wires, electronics, cable televisions, and other telecommunications, utility and municipal property without the approval of the owner(s) of the affected property or properties.

4. No Property Interest. This Agreement is not a grant by the City of any fee simple or other property interest of any kind and is made subject and subordinate to the prior and continuing right of the City to use the Public Rights-of-Way for any purposes allowed by law, including but not limited to streets and sidewalks and for the purpose of laying, installing, maintaining, repairing, protecting, replacing and removing sanitary sewers, water mains, storm drains, gas mains, poles and for other municipal uses and with right of ingress and egress, along, over, across and in said Public Rights-of-Way.

5. Application for Fiber Optic Permits. Prior to installing any Fiber Optic Facilities, shall file an engineering permit for approval of all work proposed (covering and showing all Fiber Optic Facilities) and engineering permits seeking approval of each job (covering all details of all sections or phases of the installation of the Fiber Optic Facilities, including the location of all borings, the size, type and location of equipment, and all lines and their encasement) within the Public Rights-of-Way. _____ shall furnish detailed plans of the work and other such information as required by the City of Charleston's Department of Public Service and shall pay all required permit and inspection fees prior to issuance of general job permits and

phase or section permits in accordance with the rates and standards in effect at the time of payment. Improvements shall be constructed and installed in accordance with applicable Law and plans approved by the City.

_____ shall have obtained any other necessary permits from the South Carolina Department of Transportation, the County of Charleston, or any other governmental entity having jurisdiction over any applicable Rights-of-Way and provide copies of such permits to the City at the time of applying for the City general permit. Likewise, shall provide written certification that has permission from the owner of the pole in issue to attach to or otherwise modify it consistent with the plans and permit application(s) filed with the City.

6. Issuance of Permits. Upon execution of this Agreement, satisfaction of all applicable requirements and 's performance of the obligations in Section 5, the City will issue all permits necessary from the City to install 's Fiber Optic Facilities, in accordance with the City's standard permitting procedures.

7. DAS or Small Cell Permits. The parties agree that the installation of DAS or Small Cell Facilities shall be governed by a separate ordinance adopted by the City and generally applicable to all entities installing DAS or Small Cell Facilities in the public Rights-of-Way in the City. Prior to installing DAS or Small Cell Facilities, will first apply for and obtain all necessary permits or licensing agreements required by the City's Small Cell ordinances.

8. Manner of Construction. The construction, installation, operation, maintenance, and removal of its Facilities shall be accomplished without cost or expense to the City and in such a manner so as not to endanger persons or property, or unreasonably obstruct travel on the Public Rights-of-Way. In the event the use of any portion of the Facilities has been discontinued for a period of 180 consecutive days, such portion of the Facilities shall be deemed to have been abandoned and the City may execute against any required bonds to remove such Facilities and restore all locations as necessary. Any amount not covered by performance or other bonds shall be the sole responsibility of.

9. Condition of Facilities. _____ agrees to keep its Facilities in compliance with the Law. _____ shall inspect, on a periodic basis, their Facilities, and initiate repairs to any part of their Facilities not in compliance with the Law. If the City determines Facilities do not meet the requirements of this Ordinance, or any permits issued pursuant to this Ordinance, it shall provide thirty (30) days' notice before seeking the issuance of a summons.

10. Relocation for City Purposes. _____ shall relocate, at _____'s expense, unless otherwise provided for by Law, in cooperation with the City, any Facilities installed, used and maintained under this Agreement if and when made necessary by a City Public Works Project and/or the construction, maintenance or operation of any of the City's properties or facilities including without limitation, underground or above- ground facilities such as roads, sidewalks, water and sewer. The City will use its best efforts to identify any reasonable options for relocation, consistent with identification of the most cost- effective solution to the City for completion of a City Project.

11. Removal and Abandonment.

(a) Upon the expiration of this Agreement, _____ agrees to promptly vacate and remove its Facilities at its own expense and restore all locations as required by the City, provided that the City's Director of the Department of Public Service may, at that time, agree in writing, upon the written request of _____, to allow abandonment of some or all of its Facilities in place, if _____ will transfer ownership of any abandoned Facilities to the City.

12. Undergrounding of Facilities Where Required.

(a) During any initial construction, _____ shall place its Fiber Optic Facilities underground if required by the City pursuant to Law; provided, however, that if within the immediate area (determined on a block by block basis) other telecommunications and/or cable television companies have their facilities located above

ground, shall have the option to place its Facilities above ground and later move the same underground when such other companies are required by the City to place their Facilities underground. After _____ has installed any above ground Facilities, _____ shall at _____'s expense place its Facilities underground contemporaneously with any City required undergrounding of all telecommunications and cable television cables in the designated area.

13. Restoration of Public Rights-of-Way. After the construction, removal or relocation of any Facilities, _____ shall, at its own cost, repair and return the Public Rights-of-Way to the same condition existing before such construction, removal, or relocation as determined by the City. shall be responsible for damage to street pavements, existing utilities, curbs, gutters, sidewalks and any other public or private property due to _____'s installation, maintenance, repair or removal of its Fiber Optic Network Facilities in Public Rights-of-Way, and shall repair, replace, and restore in kind to the same or better condition, any damaged property at its sole expense.

COMPENSATION

14. Franchise/Consent Fee. _____ shall pay the City an annual franchise/consent fee at the maximum rate presently or hereafter specified in § 58-9-2230 of the Code of Laws of South Carolina, commencing on _____, and on _____ of each year thereafter.

15. Business License Fee. _____ shall pay the City an annual business license fee at the maximum rate specified in the City's business license ordinance, the first payment being due on or before January 31, 20____.

16. Nondiscriminatory Fees. Notwithstanding anything included in this Agreement to the contrary, in no event shall be required to pay any fee, charge, cost, expense or compensation, or be subject to any obligations that would be a violation of Law.

17. Other Fees. shall pay all permit, inspection and user fees to the City in accordance with Law, as well as any other taxes or fees allowed to be imposed by § 58-9-2230(C) of the Code of Laws of South Carolina.

GENERAL TERMS

18. Indemnification. _____ agrees to indemnify, defend and hold harmless the City, its officers, employees and agents from and against any and all claims, demands, losses, damages, liabilities, fines, and penalties, excepting Acts of God, and all costs and expenses incurred in connection therewith, including reasonable attorneys' fees and costs of defense (collectively, the "Losses") arising out of this Agreement or any breach by _____ of its obligations described in this Agreement or any careless, negligent or willful act or omission of _____, its officers, employees and agents or its independent contractors, except to the extent any Losses arise from the willful misconduct or negligent acts or omissions of the City, its officers, employees or agents. This indemnification provision does not abrogate or waive any defense(s) available to the City under the *South Carolina Tort Claims Act,* S.C. Code Ann. § 15-78-10, et seq.

19. Insurance. shall procure and maintain for the duration of the Agreement with the City insurance against claims for injuries to persons or damages to property which may arise from or in connection with work performed by its agents, representatives, employees or subcontractors. The cost of such insurance shall be the responsibility of _____.

a. General Liability—public liability, including premises, products and complete operations.

(1) Bodily injury liability	$1,000,000 each person $1,200,000 each occurrence
(2) Property damage liability	$1,200,000 each occurrence, or
(3) Bodily injury and property damage combined	$1,200,000 single limit

b. Comprehensive—Automobile Liability Insurance, including owned, non-owned and hired vehicles.

(1) Bodily injury liability	$1,000,000 each person $1,200,000 each occurrence
(2) Property damage liability	$1,200,000 each occurrence, or
(3) In lieu of (1) and (2) Bodily injury and property damage combined	$1,200,000 single limit

c. _____ agrees that with respect to the above-required insurance as well as insurance of any contractor, subcontractor or agent, will contain the following required provisions.

(1) the City shall be named as additional insured, and

(2) thirty (30) days' notice shall be provided to the City prior to cancellation, except for non-payment of premium to any policy of insurance required by this Agreement.

d. Required policies are to contain, or be endorsed to contain, the following provisions:

_____'s insurance coverage shall be primary insurance with respect to the City, its officials, employees and volunteers. Any insurance or self-insurance maintained by the City, its officials, employees, or volunteers shall be in excess of _____'s insurance and shall not be required to contribute. To accomplish this objective, the proceeding terms should be incorporated in the previously referenced additional insured endorsement.

e. Any deductibles or self-insured retentions larger than $25,000 must be reported to and approved by the City's Budget and Finance Department and corporation counsel.

f. Insurance must be placed with an approved insurance company with current Best's rating of A+, A, or A- and minimum Financial Size Category (FSC) of VIII or greater. Exceptions to this requirement must be approved in writing by the City's corporation counsel.

g. _____ shall furnish the City with Certificates of Insurance noting the coverage and endorsements. The certificates and endorsements for each insurance policy are to be signed by a person authorized by that insurer to bind coverage on its behalf. All certificates and endorsements are to be received and approved by the City before work commences. The City reserves the right to require complete, certified copies of all required insurance policies, at any time.

Required certificates and requested policies should be mailed to:

_____

_____

_____

_____

20. Construction Bond. Upon commencement of construction of the Facilities, _____ shall deposit with the City a surety bond naming the City as an obligee in the amount of One Hundred Thousand Dollars ($100,000.00). _____'s obligation to maintain the surety bond shall terminate thirty (30) days following completion of construction of the initial Facilities. The City may draw against the surety bond, up to its full face amount, for any loss or damage to or failure of completion of _____'s Facilities within the Public Rights-of-Way utilized by _____ during construction of the initial Facilities to the extent the City previously has not been otherwise compensated through a withdrawal from the surety bond or payment by _____.

21. Force Majeure. In no event shall or the City have any claim or right against the other for any failure of performance if such failure is caused by or the result of causes beyond the

reasonable control of the party having the duty of performance, including but not limited to: any Act of God, fire, flood or other natural catastrophe; any Law or other action of governmental authorities having civil or military jurisdiction; any national emergency, insurrection, riot or war, or any other similar occurrence (hereinafter, a "Force Majeure Event"). Delay in performance of an obligation under this Agreement shall be excused for the duration of the Force Majeure Event.

22. Assignment. Except as provided below, _____ shall not assign this Agreement without the prior written consent of the City. Notwithstanding the foregoing, _____ may assign this Agreement without City consent to any corporation that is controlled by _____, that controls _____ or that is under common control with _____, provided that no assignment, with or without City consent, shall release _____ from liability for all of the terms and conditions of this Agreement. _____will provide the City with notice of any assignment.

23. Reservation of Rights. Both the City and _____ reserve and may seek any and all remedies available at law. Neither the City nor _____ shall be deemed to have waived any rights or remedies at law by virtue of executing this Agreement; provided, however, that _____ expressly waives any rights, remedies, credits or set-offs available to it with respect to any payments to the City made within thirty (30) business days of the effective date of this Agreement. Notwithstanding anything to the contrary in this paragraph 22 or elsewhere in this Agreement, in no event shall either party be liable to the other party for any consequential or punitive damages arising out of or in connection with this Agreement.

24. Notices. All notices required or permitted to be given under this Agreement shall be in writing, addressed as set forth below, and shall be hand-delivered to the addressee, sent by Federal Express or similar overnight delivery service, or sent by U.S. Mail, certified restricted delivery with return receipt requested.

To the City: Mayor

City of Charleston
P.O. Box 304
Charleston, South Carolina 29403-0304

With Copy to: Corporation Counsel
City of Charleston
P.O. Box 304
Charleston, South Carolina 29402-0304

Director
Department of Public Service
2 George Street, Suite 2100
Charleston, SC 29401

To _____: _____
_____
_____
_____

With a copy (which shall not constitute legal notice) to:

_____
_____
_____
_____

25. Default. A party shall be in default of this Agreement if it breaches any term or condition hereof and fails to cure such breach within thirty (30) days after receipt of written notice , provided that if the breach is of such a nature that it cannot be cured within thirty (30) days, then a default shall not exist so long as the party has commenced the cure within thirty (30) days and is thereafter diligently pursuing the cure to completion. Upon a default, the non- defaulting party may exercise any and all available legal and/or equitable remedies. Notwithstanding the foregoing, the City may not terminate this Agreement pursuant to this paragraph unless the _____ default involves a material breach of a provision hereof.

26. Conflicts of Law and Venue. This Agreement shall be governed by the laws of the State of South Carolina and the City of Charleston, provided that any such laws do not conflict with any applicable federal law. Federal law shall govern if a conflict of law arises. The venue for any dispute arising out of the Agreement shall be in the State of South Carolina, Charleston County, or in the federal court in the District of South Carolina, Charleston Division.

IN WITNESS WHEREOF, the parties have duly executed this Agreement as of the date first above-written, and shall be effective as of final adoption by the City.

WITNESS:	CITY OF CHARLESTON
_____	By: _____
_____	Mayor, City of Charleston
Date:	Date:

WITNESS:

_____

_____ By:_____

Its:

Date:_____

Date:_____

(Ord. No. 2018-114, § 3, 9-18-18)

Sec. 17-154. Administration.

The franchise agreements entered into pursuant to the ordinance from which this article derives shall be administered by the director of public service.
(Ord. No. 2018-114, § 3, 9-18-18)

Sec. 17-155. Execution of agreement.

City council, by adoption of the ordinance from which this article derives, authorizes the mayor to enter into a franchise agreement with any and all persons who desire to install and construct fiber optics on the public rights-of-way in the city. (Ord. No. 2018-114, § 5, 9-18-18)

Chapter 18

MARION SQUARE*

Art. I. In General, §§ 18-1—18-15
Art. II. Board of Commissioners, §§ 18-16—18-19

ARTICLE I. IN GENERAL

Sec. 18-1. Boundaries and designation.

The grounds bounded on the north by the building formerly known as and used by the South Carolina Military Academy, east on Meeting Street, south on Calhoun Street and west on King Street, held in trust, as of October 24, 1882, by the city council and a board of officers of the South Carolina National Guard, in the city, for the use of the National Guard as a parade ground, and for the citizens of the city as a public mall, shall be hereafter known as Marion Square.
(Code 1975, § 32-1)

Secs. 18-2—18-15. Reserved.

ARTICLE II. BOARD OF COMMISSIONERS*

Sec. 18-16. Management and control of Marion Square; composition; election and term of members.

The management and control of Marion Square shall be, and is hereby, vested in a board of seven (7) commissioners. The commissioners shall hold office for one year from the date of their

*Cross references—Department of administrative services, § 2-176 et seq.; department of public service, § 2-231 et seq.; department of special facilities, § 2-246 et seq.; Colonial Common and Ashley River Embankment, Ch. 9; Cypress Gardens, Ch. 10; department of recreation and department of parks, Ch. 22; planning, Ch. 23; streets and sidewalks, Ch. 28; tourism, Ch. 29.

*Cross references—City boards and commissions generally, § 2-151 et seq.; board of commissioners of Colonial Common and Ashley River Embankment, § 9-16 et seq.; board of commissioners of Cypress Gardens, § 10-16.

election and until their successors are elected and qualified. The superintendent of the South Carolina Military Academy, now known as The Citadel, the Military College of South Carolina, shall be ex officio a member and chairman of such board; of the other six (6) members of such board, three (3) shall be elected by the city council. The remaining three (3) members shall be elected by the board of officers of the South Carolina National Guard, in the city, at its first meeting in January.
(Code 1975, § 32-2)

Sec. 18-17. Vacancies.

If there should be a vacancy in the membership of the board of commissioners of Marion Square, such vacancy shall be filled by a new election of another person in the manner prescribed for the expired term.
(Code 1975, § 32-3)

Sec. 18-18. Authority to adopt rules and regulations.

The board of commissioners of Marion Square shall have power to make all such rules and regulations as may be necessary for their own government, and for the use, improvement and preservation of the square; provided, however, that such rules and regulations shall be approved by the city council and the board of officers of the South Carolina National Guard, in the city.
(Code 1975, § 32-4)

Sec. 18-19. Management and expenditure of appropriations; reports.

The board of commissioners of Marion Square shall have the management and expenditure of all moneys which may be appropriated for the improvement and preservation of the square, and shall annually, or oftener if required by the city council, report their actings and doings to the city council and the board of officers of the South Carolina National Guard, in the city, with a statement of all moneys received and expended by them.
(Code 1975, § 32-5)

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Chapter 19

MOTOR VEHICLES AND TRAFFIC*

Article I. In General

Sec. 19-1. Definitions.
Sec. 19-2. Drivers of governmental vehicles not excepted from chapter.
Sec. 19-3. Authority of police chief to make special traffic regulations.
Sec. 19-4. Removal of vegetation obstructing view of traffic.
Sec. 19-5. Unnecessary use of signaling devices.
Sec. 19-6. Riding on outside of vehicle.
Sec. 19-7. Boarding or alighting from moving vehicles prohibited.
Sec. 19-8. Opening doors of vehicles.
Sec. 19-9. Possession of vehicle without manufacturer's trade number prohibited.
Sec. 19-10. Inspection of vehicles; enforcement of chapter.
Sec. 19-11. Powers, duties and jurisdiction of municipal court.
Sec. 19-12. The passing of items to or from the occupant of a motor vehicle on a roadway.
Secs. 19-13—19-25. Reserved.

Article II. Administration and Enforcement

Division 1. Generally

Sec. 19-26. Applicability of federal regulations on federal property under city jurisdiction.
Secs. 19-27—19-35. Reserved.

Division 2. Department of Traffic and Transportation

Sec. 19-36. Creation.
Sec. 19-37. Supervision of department by director of traffic and transportation.
Sec. 19-38. Qualification of director; appointment by mayor.
Sec. 19-39. Duties of director generally.
Sec. 19-40. Specific duties of director; approval by committee on public safety and traffic.
Sec. 19-41. Cooperation of department with other departments.
Secs. 19-42—19-55. Reserved.

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*__Cross references—__General penalty for Code violations, § 1-16; committee on traffic and transportation, § 2-58; municipal court, Ch. 20; offenses, Ch. 21; planning, Ch. 23; police, Ch. 25; streets and sidewalks, Ch. 28; tourism, § 29-1 et seq.

Article III. Abandoned Vehicles

Sec. 19-56. Definition.
Sec. 19-57. Notice of determination of abandonment to be placed on vehicle; removal by city upon failure of vehicle to be moved.
Sec. 19-58. Notice to owner after removal.
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Sec. 19-92. Reserved.
Sec. 19-93. Skateboard regulations on the peninsula.
Secs. 19-94—19-100. Reserved.

Division 2. Bicycle Registration

Sec. 19-101. Registration.
Sec. 19-102. License tags; issuance; attachment to bicycle.
Sec. 19-103. Fee for registration and issuance of license tag.
Secs. 19-104—19-119. Reserved.

Division 3. Regulations Applicable to Bicycles and E-Bikes

Sec. 19-120. Definitions, for purposes of this section.
Sec. 19-121. Traffic laws apply to persons riding bicycles and e-bikes.
Sec. 19-122. Prohibited parking.
Sec. 19-123. Abandoned bicycles or e-bikes.
Sec. 19-124. Riding on sidewalks, on-road bike facilities, multi-use or shared-use paths.
Sec. 19-125. Enforcement.
Secs. 19-126—19-130. Reserved.

Division 4. Reserved

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Article VI. Mopeds

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Sec. 19-136. Definitions.
Sec. 19-137. Licensing requirement.
Sec. 19-138. Traffic laws apply to persons riding or operating mopeds.
Sec. 19-139. Limitations as to operating, speed, riding position, and number of riders.
Sec. 19-140. Required equipment.
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Division 3. Reserved

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Sec. 19-176. Obstructing intersection with vehicle.
Sec. 19-177. Driving on sidewalk.
Sec. 19-178. Careless operation of a vehicle.
Sec. 19-179. Limitations on backing; signal of intent to back.
Sec. 19-180. Driving in funeral procession.
Sec. 19-181. Driving through funeral procession.
Sec. 19-182. Unlawful use of a handheld electronic communication device.
Sec. 19-183. Operation on flooded or closed streets, roads, highways, bridges or alleys.
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Sec. 19-207. Animals ridden or driven on streets; human-powered vehicles.
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Secs. 19-209—19-215. Reserved.

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Sec. 19-216. "U" turns.
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Sec. 19-231. Impounding unoccupied and unattended vehicles.
Sec. 19-232. Emergency removal of vehicles.
Sec. 19-233. Driving on through highways.
Sec. 19-234. Area where stopping or parking prohibited.
Sec. 19-235. Parking prohibited for certain purposes.
Sec. 19-236. Parking within lines indicating parking space.
Sec. 19-237. Trucks or vehicles more than twenty feet long.
Sec. 19-238. Camping, sleeping, residing, etc., in parked motor vehicles, etc.
Sec. 19-239. Unattached trailers.
Sec. 19-240. Minimum width of roadway required to be free for traffic; blocking public or private driveway prohibited.
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Sec. 19-242. Passenger loading zones and commercial loading zones.
Sec. 19-243. Loading and unloading passengers.
Sec. 19-244. Running engines or other equipment while stopped or standing on street.
Sec. 19-245. Owner's responsibility for illegal parking.
Sec. 19-246. Bus stops.
Sec. 19-247. Rules of conduct for city parking garages.
Sec. 19-248. Unlawful acts; penalties.
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Sec. 19-256. Duty to deposit payment; overtime parking.
Sec. 19-257. Meter feeding.
Sec. 19-258. Occupancy of two metered spaces by one vehicle.
Sec. 19-259. Use of meter revenue.
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Division 3. Residential Parking Districts

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Sec. 19-267. Purpose.
Sec. 19-268. When district may be established.
Sec. 19-269. Procedure for designation.
Sec. 19-270. Issuance of resident and tenant decals.
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Sec. 19-272. Special permits.
Sec. 19-273. Fees.
Sec. 19-274. Permits property of city.
Sec. 19-275. Denial or cancellation of permit.
Sec. 19-276. Appeal from a denial or cancellation of permit.
Sec. 19-277. Permit parking districts; boundary descriptions.
Sec. 19-278. Parking limitations in districts.
Sec. 19-279. Obedience to parking regulations.
Sec. 19-280. Parking permit violations.
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Division 4. Traffic Citations

Sec. 19-291. Issuance of traffic citations.
Sec. 19-292. Consequences of failure to comply with parking citation.
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Secs. 19-294—19-305. Reserved.

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Article X. Pedestrians

Sec. 19-351. Obedience of pedestrians to bridge and railroad signals.
Sec. 19-352. Climbing upon or jumping off bridges prohibited.
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Article XI. Traffic-Control Signs, Signals and Markings

Sec. 19-366. Traffic-control signal legend.
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Sec. 19-393. Vehicles in tow.

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Sec. 19-394. Findings of council.
Sec. 19-395. Definitions.
Sec. 19-396. Towing permit required.
Sec. 19-397. Tow record/invoice.
Sec. 19-398. Marking of towing vehicles.
Sec. 19-399. Towing from private property.
Sec. 19-400. Maximum charge for nonconsensual tow.
Sec. 19-401. Payment methods for nonconsensual tows.
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Sec. 19-416. Booting license required.
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Sec. 19-419. Maximum charge for nonconsensual boot.
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Article XV. Political Signs in Public Rights-of-Way

Sec. 19-441. Political signs in public rights-of-way unlawful.
Secs. 19-442—19-460. Reserved.

Article XVI. Pedicabs

Sec. 19-461. The operation of pedicabs regulated.
Sec. 19-462. Definitions.
Sec. 19-463. Operating a pedicab.
Sec. 19-464. Number of pedicab operating decals permitted; restriction on monopolies.
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Sec. 19-467. Application process.
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Sec. 19-492. Definitions.
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Article XVIII. Vehicle, Pedestrian and Bicycle Traffic on the Ravenel/Cooper River Bridge

Sec. 19-497. Purpose.
Sec. 19-498. Vehicular and pedestrian/bicycle traffic.
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Article XIX. Valet Parking

Sec. 19-510. Valet parking.
Secs. 19-511—19-519. Reserved.

Article XX. Right-of-Way Obstruction Fees

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Sec. 19-521. Jurisdiction.
Sec. 19-522. Purpose.
Sec. 19-523. Definitions.
Sec. 19-524. Fees.

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ARTICLE I. IN GENERAL

Sec. 19-1. Definitions.

The following words and terms when used in this chapter shall for the purpose of this chapter have the meanings respectively ascribed to them in this section. Whenever any words or phrases used in this chapter are not herein defined but are defined in state statutes regulating operation of vehicles, any such statute definition shall apply:

Bus stop shall be taken to mean an area immediately adjacent to a curb designated by appropriate sign or marking for the loading or unloading of passengers by buses.

Chauffeur shall be taken to mean any person, other than a person licensed as a taxicab operator under article IV of chapter 31 of this Code, who earns a substantial part of his livelihood by driving a motor vehicle for himself or another, or who at any time drives a motor vehicle used as a public or common carrier of persons or property.

Commercial loading zone shall be taken to mean an area immediately adjacent to a curb designated by appropriate sign or marking for the loading or unloading of commercial materials or merchandise from 5:00 a.m. to 7:00 p.m., unless otherwise designated by sign or marking.

Curbing shall be taken to mean the lateral boundaries of that portion of the street designed for the use of vehicles, whether marked by curbstones or not so marked.

Food delivery service means a third party engaged for the purpose of transporting food from a restaurant or other similar establishment to a consumer for payment.

Food delivery vehicle means a vehicle engaged in loading or unloading in connection with the operations of a food delivery service.

Moped shall be taken to mean any pedal bicycle which is equipped with a pedal-activated helper motor with a

manufacturer's certified maximum rating of one (1.0) brake horsepower which produces only ordinary pedaling speeds up to a maximum of twenty (20) miles per hour.

Parking meter zone shall be taken to mean an area immediately adjacent to a curb, which the parking of vehicles is controlled, regulated and inspected with the aid of timing devices or meters, commonly known as parking meters.

Passenger loading zone shall mean an area immediately adjacent to a curb designated by appropriate sign or marking for the loading or unloading of passengers by vehicles twenty-four (24) hours per day, unless otherwise designated by sign or marking.

Public car shall mean any motor vehicle engaged in transporting passengers for hire that conforms to Federal Motor Vehicle Safety Standards for such vehicle and is equipped for operation on all public streets, roads, and interstate and other highways; however, such term shall not be construed to include buses, taxicabs or low speed vehicles.

(Code 1975, § 33-1; Ord. No. 1978-71, § 1, 11-21-78; Ord. No. 2004-135, § 1, 11-23-04; Ord. No. 2024-066, § 1, 4-23-24; Ord. No. 2025-064, § 1, 4-22-25)

Cross reference—Rules of construction and definitions generally, § 1-2.

Sec. 19-2. Drivers of governmental vehicles not excepted from chapter.

The provisions of this chapter shall apply to the driver of any vehicle owned by or used in the service of the United States government, this state, county or city, and it shall be unlawful for any such driver to violate any of the provisions of this chapter, except as otherwise permitted in this chapter or by state statute.

(Code 1975, § 33-6)

Cross reference—Administration, Ch. 2.

Sec. 19-3. Authority of police chief to make special traffic regulations.

The chief of police, with the approval of the mayor, shall have authority to make, promulgate and enforce special or emergency

traffic regulations, including the designation of one-way streets, dangerous intersections where traffic shall be required to slow or stop, school zones, safety zones, parking meter zones and regulations as to parking, nonparking and time limits for parking and cause to be erected or placed signs, signals, and other traffic-control devices and restrict parking for the purpose of enforcing the same. Any person failing or refusing to obey any such regulation shall be guilty of a misdemeanor.
(Code 1975, § 33-9)

Cross reference—Police department, § 25-16 et seq.

Sec. 19-4. Removal of vegetation obstructing view of traffic.

Every bush, tree, plant or other article which obstructs clear view of traffic is hereby declared to be a public nuisance and the city engineer is hereby empowered and directed to remove or trim the same to alleviate the nuisance, without notice.
(Code 1975, § 33-10)

Sec. 19-5. Unnecessary use of signaling devices.

No signaling device shall be sounded except as a necessary warning of danger, and then only by giving a short blast and not more often than is necessary.
(Code 1975, § 33-13)

Sec. 19-6. Riding on outside of vehicle.

No person shall ride on the outside of any vehicle nor anywhere except within the body thereof.
(Code 1975, § 33-14)

Sec. 19-7. Boarding or alighting from moving vehicles prohibited.

No person shall board or alight from any vehicle while such vehicle is in motion and in accordance with section 19-243.
(Code 1975, § 33-15)

Sec. 19-8. Opening doors of vehicles.

No person shall open the door of a vehicle unless and until such movement can be made with reasonable safety.
(Code 1975, § 33-16)

Sec. 19-9. Possession of vehicle without manufacturer's trade number prohibited.

No person shall have in his possession any motor vehicle on which the manufacturer's trade or distinguishing number or identification mark has been removed, defaced, covered or destroyed. Any person having in his possession any motor vehicle so defaced shall be deemed guilty of a misdemeanor; provided, that anyone acquiring in good faith a vehicle with numbers so mutilated shall be relieved of liability under this provision by reporting the circumstances to the police department upon discovery and making satisfactory provision for some other permanent means of identifying such vehicle.
(Code 1975, § 33-18)

Sec. 19-10. Inspection of vehicles; enforcement of chapter.

All officers of the police department or other officials of the city may stop and examine and inspect any vehicles which they may have reasonable cause to believe to be violating any of the terms of this chapter, and to require the vehicles to be measured and weighed, or such other examination as may be proper or necessary to be made and to compel immediate compliance with all the provisions of this chapter.
(Code 1975, § 33-19)

State law reference—Inspection of vehicles, S.C. Code 1976, §§ 56-5-5310—56-5-5440.

Sec. 19-11. Powers, duties and jurisdiction of municipal court.

Nothing contained in this chapter shall serve to prevent the municipal court of the city from exercising the powers, duties and jurisdiction conferred by state statutes and the provisions of this Code and other ordinances of the city.
(Code 1975, § 33-20)

State law reference—Trial jurisdiction of municipal court with reference to state traffic regulations, S.C. Code 1976, § 56-5-6150.

Sec. 19-12. The passing of items to or from the occupant of a motor vehicle on a roadway.

(1) *Intent of section.* This section is intended to provide for the free flow of motor vehicle traffic on roadways in the city. The city council finds that persons who distribute any item to, receive any item from or exchange any item with the occupant of a motor vehicle upon a roadway present a threat to the free and safe flow of motor vehicle traffic. By this section, the city council intends to promote the health, safety and welfare of the citizens traveling by vehicle or on foot in the city.

(2) *Definitions.* For purposes of this section, the following definitions apply:

(a) *Pass/passing.* Distributing any item to, receiving any item from, or exchanging any item with the occupant of a motor vehicle that is located in a lane of travel the roadway.

(b) *Roadway.* All public roads open to motorized vehicles within the city. This definition excludes private roads and private property. This definition also excludes areas in which parking is permitted in the city.

(c) *Item.* Any physical object.

(3) *Prohibition on roadways.* It shall be unlawful to violate any of the prohibitions set forth below in the city.

(a) No person shall knowingly distribute any item to, receive any item from, or exchange any item with the occupant of any motor vehicle when the vehicle is located in a lane of travel on the roadway.

(b) This section shall not apply to the distribution, receipt or exchange of any item with the occupant of a motor vehicle on private property or in a permitted parking area.

(c) This section shall not apply to any law enforcement officer acting in the scope of his/her official duty.

(d) This section shall not apply to the distribution, receipt or exchange of any item with the occupant of a motor vehicle located in the roadway in order to assist the

occupant after a motor vehicle accident, with a disabled motor vehicle or where the occupant is experiencing a medical emergency.

(4) *Severability.* If any provision of this section is declared invalid or unconstitutional by any court of competent jurisdiction, the remaining provisions shall be severable and shall continue in full force and effect.
(Ord. No. 2015-092, § 1, 8-18-15)

Secs. 19-13—19-25. Reserved.

ARTICLE II. ADMINISTRATION AND ENFORCEMENT

DIVISION 1. GENERALLY

Sec. 19-26. Applicability of federal regulations on federal property under city jurisdiction.

Whoever within or upon any of the places now existing or acquired hereafter by the federal government within the corporate limits of this municipality over which concurrent or proprietary jurisdiction is obtained, is guilty of any motor vehicle violation which, although not made punishable by any enactment of city council, would be punishable by the laws and regulations of the federal government in force thereon at the time of such violation, shall be guilty of a like offense and subject to a like punishment, provided that police jurisdiction is properly acquired under section 23-1-15, South Carolina Code of Laws 1976, and is not in conflict with the general penalty provision provided in section 1-16 of this Code.
(Code 1975, § 33-197; Ord. No. 1977-37, § 1, 8-16-77)

Secs. 19-27—19-35. Reserved.

DIVISION 2. DEPARTMENT OF TRAFFIC AND TRANSPORTATION*

Sec. 19-36. Creation.

There is hereby established a department of traffic and transportation.
(Code 1975, § 23-1; Ord. No. 1986-113, § 1, 9-23-86)

Sec. 19-37. Supervision of department by director of traffic and transportation.

The department of traffic and transportation shall be under the direction and supervision of the director of traffic and transportation.
(Code 1975, § 23-2)

Sec. 19-38. Qualification of director; appointment by mayor.

The director of traffic and transportation shall be an engineering graduate in the field of traffic and transportation or a person who has a minimum of five (5) years' full-time employment in traffic engineering and planning. He shall be appointed by the mayor with the approval of city council.
(Code 1975, § 23-3; Ord. No. 1986-113, § 2, 9-23-86)

Sec. 19-39. Duties of director generally.

The director of traffic and transportation shall plan the operation of traffic on the streets and public property of the city, conduct engineering investigations of traffic conditions, analyze traffic accidents and devise remedial measures, cooperate with other officers and agencies in developing ways and means of improving traffic conditions, and exercise any additional duties imposed on him by ordinances or resolutions of the city council.
(Code 1975, § 23-4)

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*__Cross references—__Department of administrative services, § 2-176 et seq.; department of public service, § 2-231 et seq.; department of special facilities, § 2-246 et seq.; fire department, § 13-26 et seq.; department of recreation, § 22-16 et seq.; department of parks, § 22-46 et seq.; department of planning and urban development, § 23-16 et seq.; police department, § 25-16 et seq.

Sec. 19-40. Specific duties of director; approval by committee on public safety and traffic.

Without limiting the general duties described in section 19-39, the director of traffic and transportation specifically shall have the power and responsibility, on the basis of engineering and traffic investigations:

(1) To determine the installation, timing and location of traffic-control devices and to provide for their maintenance and testing under actual traffic conditions;

(2) To determine the location of traffic signs, signals, buttons, markers and devices and to arrange for their installation, maintenance and protection;

(3) To determine locations of crosswalks, safety zones, parking and no-parking zones, curb loading zones, bus stops, bus stands, stands for common carrier vehicles transporting passengers, stop or yield intersections, play streets, skating zones and bicycle routes, and to install appropriate signs or signals to designate the same;

(4) To restrict or prohibit the movement or the direction of movement of all vehicles or certain vehicles at all hours or certain hours in specific areas, and to erect and maintain signs, signals, markers or devices to instruct or warn traffic;

(5) To plan, design and manage a comprehensive parking system in the city for both on-street parking spaces and off-street parking facilities in a manner that will facilitate the flow of traffic in the streets, minimize the number of non-residential vehicles parking in residential neighborhoods and maximize the use of on-street spaces and city-owned and operated off-street facilities so as best to serve the public; to plan, design and manage the location and timing of on-street parking, utilizing meters, where required; to plan, manage and operate city-owned or operated off-street parking facilities with the use of meters, attendants or other measures and to set the hours of operation, the number, term of occupancy, location and size of spaces and to develop circulation within such facilities so as to maximize their use, and to make such changes in the management of

operation of such facilities from time to time as the public need may dictate or as city council may direct;

(6) To mark roadways, curbs and sidewalks and install and maintain signs designating traffic lanes, one-way streets, angle-parking zones and directions in which pedestrian or vehicular traffic shall be required or prohibited to move;

(7) To determine areas in which traffic shall be required to maintain minimum speeds and areas in which traffic shall be allowed to travel at greater speed, or required to travel at lower speed, than the standards set in section 19-206, and to install and maintain appropriate signs marking the same; and

(8) When required by state statutes, to consult with and obtain any necessary approvals from the state highway department.

(9) Notwithstanding any other provision of this Code, and regardless of the number of streets upon which a parcel of property may abut, to regulate, limit or condition the number or location of curb cuts or points of vehicular access to streets within the city, both existing and proposed, in order (1) to provide a free, safe and efficient flow of traffic, vehicular and/or pedestrian, or (2) to assure protection to neighboring developments or residents from safety, noise or traffic hazards that may be, or are, created by proposed or existing vehicular accesses. The authority granted by this subsection shall be exercised in consultation with the technical review committee, after the director has taken into consideration factors concerning the width of the street where the access is to be regulated, the existence of sidewalks thereon, the distance of such access from vehicles utilizing the access and such intersections, the character of the neighborhood(s) served by the street where the access is located and such other factors as are reasonable and pertinent in effecting the intent of this provision.

(Code 1975, § 23-5; Ord. No. 1980-108, §§ 1, 2, 9-23-80; Ord. No. 1986-113, § 3, 9-23-86)

Sec. 19-41. Cooperation of department with other departments.

The department of transportation, the department of public service, the police department and other city departments shall work cooperatively in studies of accidents, traffic and highway improvement, and municipal planning and the records of the respective departments shall be available to each other for these purposes.
(Code 1975, § 23-6)

Secs. 19-42—19-55. Reserved.

ARTICLE III. ABANDONED VEHICLES

Sec. 19-56. Definition.

As used in this article, an "abandoned vehicle" means a motor vehicle that is inoperable or left unattended in a legal parking space on a street or road in the city for a period of more than seven (7) days.
(Code 1975, § 33-69.1(a); Ord. No. 1981-64, § 1, 10-27-81; Ord. No. 1996-223, § 1, 10-29-96)

Cross reference—Rules of construction and definitions generally, § 1-2.

Sec. 19-57. Notice of determination of abandonment to be placed on vehicle; removal by city upon failure of vehicle to be moved.

Whenever the city determines that a vehicle is an abandoned vehicle a notice so stating shall be attached to the car in a prominent place. If the vehicle is not moved within twenty-four (24) hours it will be removed by the city.
(Code 1975, § 33-69.1(b); Ord. No. 1981-64, § 1, 10-27-81)

Sec. 19-58. Notice to owner after removal.

After removing a car pursuant to section 19-57, the department shall notify the registered owner of the vehicle giving the grounds for removal and the name of the garage or place where the vehicle is stored. If the vehicle is not registered in this state,

the vehicle is stored. If the vehicle is not registered in this state, the department shall make a reasonable effort to notify the registered owner or any lienholder of the removal and the location of the vehicle. The department shall forward a copy of the notice to the owner or person in charge of the garage or place where the vehicle is stored.
(Code 1975, § 33-69.1(c); Ord. No. 1981-64, § 1, 10-27-81)

Secs. 19-59—19-70. Reserved.

ARTICLE IV. ACCIDENTS*

Sec. 19-71. Report of accident or collision required.

(a) The driver of a vehicle involved in an accident or collision resulting in injury to or death of any person or damage to any vehicle driven or attended by a person or other device driven or attended by a person in, upon or by which any person or property is or may be transported or drawn upon a highway, including devices moved by human power, immediately shall stop the vehicle at the scene of the accident or collision or as close to it as possible, but shall return to and in every event shall remain at the scene of the accident or collision until law enforcement arrives and he or she has given information and rendered aid consistent with what is required by South Carolina Code § 56-5-1230.

(b) The provisions of this section shall not be applicable when the accident or collision has been investigated at the scene by a police officer while such driver was present there at.
(Code 1975, § 33-91; Ord. No. 2019-111, § 1, 11-12-19)

Sec. 19-72. Supplemental reports may be required.

The police department may require any driver of a vehicle involved in an accident to file supplemental reports whenever the original report is insufficient in the opinion of the police department.
(Code 1975, § 33-93)

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*__State law references__—Authority of city to require accident reports, S.C. Code 1976, § 56-5-1360; accident reports, S.C. Code 1976, § 56-5-1270.

Sec. 19-73. Reports from witnesses may be required.

The police department may require witnesses of accidents to render reports to the police department.
(Code 1975, § 33-94)

Secs. 19-74—19-90. Reserved.

ARTICLE V. BICYCLES, MOTORCYCLES AND CERTAIN VEHICLES*

DIVISION 1. GENERALLY†

Sec. 19-91. Regulation of use of roller skates, in-line skates, toy scooters, coasters, motorized toy vehicles, and motorized scooters.

(a) *Roller skates, in-line-skates, toy scooters, coasters, and motorized toy vehicles.*

(1) It shall be unlawful for any person upon roller skates, in-line skates, or any coaster, toy scooter, motorized toy vehicle or other similar device to:

a. Go upon any roadway designed for vehicular traffic posted more than twenty-five (25) miles per hour except while crossing a street at a crosswalk;

b. Use these devices in a city-owned or leased parking garage or surface lot;

c. Unless designated otherwise, use these devices upon a city-owned or leased athletic field or tennis court;

***Editor's note—**Ord. No. 2014-68, § 1, adopted May 13, 2014, retitled former Art. V from "Bicycles, Motorcycles and Toy Vehicles" to "Bicycles, Motorcycles and Certain Vehicles."

†**Editor's note—**Ord. No. 2009-236, § 2, adopted Nov. 16, 2009, repealed the former div. 1, §§ 19-91, 19-92, and enacted a new div. 1 as set out herein. The former div. 1 pertained to similar subject matter and derived from Code 1975, §§ 22-169 and 22-170.

d. Unless designated otherwise, go upon any sidewalk or roadway in a school overlay zone or in a commercially zoned area on the peninsula as delineated on the zoning map of the city and as the zoning map may hereafter be amended by the ordinances of the city;

e. Use these devices in a reckless manner. Persons operating these devices on a sidewalk shall exercise due care for the safety of others using the sidewalk and yield the right-of-way to pedestrians; or

f. Operate these devices in a manner which causes damage to public or private property.

(2) For purposes of this section a motorized toy vehicle shall mean any toy vehicle which is powered by a twelve-volt battery and when operated at full throttle does not exceed fifteen (15) miles per hour. Any scooter, motorized toy vehicle, coaster, or other similar device which can be operated at a speed greater than fifteen (15) miles per hour shall not be operated on a public sidewalk.

(b) *Motorized scooters.*

(1) It shall be unlawful for any person to operate a motorized scooter:

a. Upon any roadway designed for vehicular traffic;

b. Upon any public sidewalk;

c. In a city-owned or leased parking garage or surface lot;

d. Upon a city-owned or leased athletic field or tennis court;

(2) Motorized scooters are permitted on multi-use paths, on-road bike facilities, and roads that have a posted speed limit of less than twenty-five (25) miles per hour.

(3) It shall be unlawful to use a motorized scooter on private property in a reckless manner. Persons operating these devices on private property shall exercise due care for the safety of others using the property and yield the right-of-way to pedestrians or other vehicular traffic.

(4) It shall be unlawful to rent, offer, or make available a motor scooter for the use on a public right-of-way.

(5) Any motor scooter left physically unattended on the public property may be removed and held by the city for twenty-four (24) hours. A confiscated motorized scooter shall be released upon proof of ownership and payment of a forty-five dollar ($45.00) fee for removal and storage. Motorized scooters held for over twenty-four (24) hours may be disposed of by discarding, donation, auction, or any other manner deemed appropriate by the city. The city shall bear no responsibility to a motorized scooter owner or operator for loss of or damage to a confiscated motor scooter, including any chain or locking mechanism, in its enforcement of this section.

(6) Any person permitted in the above subsections to ride or operate upon a sidewalk, on-road bike facility, shared-use or multi-use path shall not operate in a reckless manner, as defined herein, and shall at all times exercise due care and yield the right-of-way to pedestrians and other vehicular traffic. For purposes of this section, reckless manner means operating with a conscious, willful, or wanton disregard for the safety of persons or property. It involves behavior that creates a substantial and unjustifiable risk to the rider, pedestrians, or other road users. This includes, but is not limited to excessive speed, dangerous maneuvers, disregard for rules, and impaired riding.

(7) For purposes of this section a motorized scooter shall mean a two-wheeled device that has handlebars, a floorboard that is designed to be stood upon when riding, or a removeable seat and is powered by a motor.

(c) Any person violating this section shall be guilty of a misdemeanor and upon conviction, shall be subject to a maximum fine of fifty dollars ($50.00).

(Ord. No. 2009-236, § 1, 11-16-09; Ord. No. 2010-231, § 1, 8-17-10; Ord. No. 2010-271, § 1, 12-21-10; Ord. No. 2013-35, § 1, 3-12-13; Ord. No. 2014-43, § 1, 3-25-14; Ord. No. 2019-104, § 1, 10-22-19; Ord. No. 2026-089, § 3, 5-12-26)

Sec. 19-92. Reserved.

Editor's note—Ord. No. 2019-104, § 2, adopted Oct. 22, 2019, repealed former § 19-92, which pertained to the operation of motorized scooters and derived from Ord. No. 2018-116, § 2, adopted Sept. 18, 2018.

Sec. 19-93. Skateboard regulations on the peninsula.

(a) The city shall create a committee containing community and neighborhood representatives affected by this section to study, review, and comment on this and any future skateboard ordinance amendments.

(b) The provisions of this section are applicable to the use of skateboards within the municipal limits of the city.

(c) Every person riding a skateboard upon a roadway shall be granted all of the rights and shall be subject to all of the duties applicable to the driver of a vehicle by the laws of this state declaring rules of the road applicable to vehicles or by the traffic regulations of this city applicable to the driver of a vehicle, except as to special regulations in this section and except as to those provisions of laws and regulations which by their nature can have no application.

(d) Every skateboarder operating a skateboard upon a roadway shall ride as near to the right side of the roadway as practicable. A skateboarder may, but is not required to, ride on the shoulder of the roadway in order to comply with the requirements of this subsection. A skateboarder may ride in a lane other than the right-hand lane if only one (1) lane is available that permits the skateboarder to continue on his intended route.

(e) A driver of a motor vehicle must at all times maintain a safe operating distance between the motor vehicle and a skateboard.

(f) A skateboard may not be used to carry more persons than the number for which it is designed and equipped.

(g) Footwear shall be worn at all times while operating a skateboard.

(h) A person may not operate a skateboard while intoxicated or consuming alcohol.

(i) It is unlawful to harass, taunt, or maliciously throw an object at or in the direction of any person riding a skateboard.

(j) A person riding upon a skateboard may not attach it or himself to a vehicle, or any device which is used or may be used for propulsion.

(k) Skateboarders must be visible from both a minimum distance of five hundred (500) feet and a height of at least three (3) feet through the use of reflective clothing, lights, or other visible gear.

(l) *Hand signals.* A skateboarder shall indicate a right turn by extending the left arm upward, by raising the left arm to the square. A skateboarder shall indicate a left turn by extending the left arm horizontally. A skateboarder shall indicate stopping or decreasing speed by extending the left arm or the right arm downward.

(m) A skateboarder must be able to brake within a five-foot stopping distance.

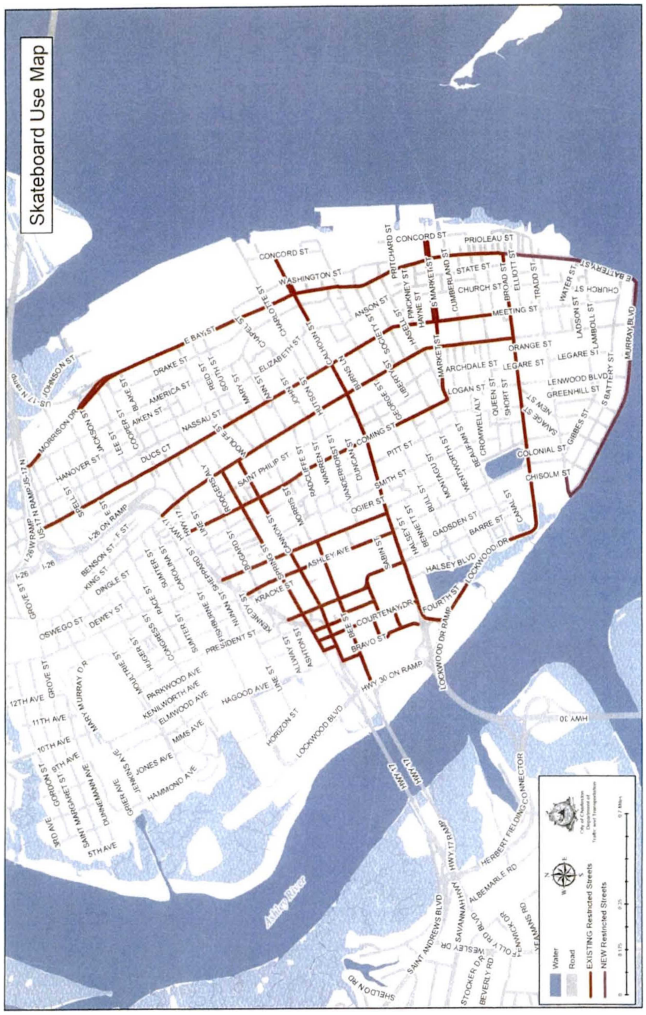
(n) It shall be unlawful for any person upon a skateboard or other similar device to:

(1) Use these devices in a city-owned or leased parking garage or surface lot;

(2) Unless designated otherwise, use these devices upon a city-owned or leased athletic field or tennis court; or

(3) Operate these devices in a manner which causes damage to public or private property.

(o) The use of skateboards is prohibited on the streets and sidewalks identified on Exhibit A to Ordinance No. 2024-096 which is set out below.



(Ord. No. 2013-35, § 2, 3-12-13; Ord. No. 2014-43, § 2, 3-25-14; Ord. No. 2018-116, § 1, 9-18-18; Ord. No. 2024-096, § 1, Exh. A, 7-16-24)

Secs. 19-94—19-100. Reserved.

DIVISION 2. BICYCLE REGISTRATION*

Sec. 19-101. Registration.

The owner or operator of every bicycle operated or furnished for operation or use, or which is used by either the owner or any other person on the streets or public places in the city may cause such bicycle to be registered at the police department, giving the make, model, number and such other description as may be feasible, on a form to be furnished by the police department. Bicycle registrations shall be valid for a period of three (3) years from the date of registration.
(Code 1975, § 33-157; Ord. No. 2010-231, § 2, 8-17-10)

Sec. 19-102. License tags; issuance; attachment to bicycle.

There shall be issued for each bicycle registered, as provided in this division, a decal license tag containing a number and other appropriate identification information. This decal license tag shall be attached to the bicycle for which it was issued.
(Code 1975, § 33-158; Ord. No. 2010-231, § 2, 8-17-10)

Cross reference—Licenses, permits and miscellaneous business regulations, Ch. 17.

Sec. 19-103. Fee for registration and issuance of license tag.

The fee for registration and issuance of the license tag, as provided in this division, shall be set by city council and collected by the city police department.
(Code 1975, § 33-159; Ord. No. 2010-231, § 2, 8-17-10)

Secs. 19-104—19-119. Reserved.

*__Editor's note—__**Ord. No. 2010-231, § 2, adopted Aug. 17, 2010, repealed §§ 19-104—19-109 of div. 2. Said sections pertained to bicycle registration and derived from §§ 33-160—33-165 of the 1975 Code.

Cross reference—Moped registration, § 19-156 et seq.

DIVISION 3. REGULATIONS APPLICABLE TO BICYCLES AND E-BIKES*

Sec. 19-120. Definitions, for purposes of this section.

(a) *Assistive technology device* means any piece of equipment, including, but not limited to, manual wheelchairs, motorized wheelchairs, and other mobility aids for moving, walking, standing, sitting, and positioning.

(b) *Bicycle* means a device propelled solely by pedals, operated by one (1) or more persons, and having two (2) or more wheels, except children's tricycles.

(c) *On-road bike facilities* means infrastructure improvements within the street right-of-way designed to support, separate, and enhance the safety of bicyclists. They provide dedicated space—via striping, barriers, or signage—to reduce conflicts with motorists. Types include bike lanes, buffered lanes, paved shoulders, and bicycle boulevards.

(d) *E-bikes*, also referred to as *"electric-assist bicycles"* and *"bicycles with helper motors"* means low-speed electrically assisted bicycles with two or more wheels, each having fully operable pedals and an electric motor of no more than seven hundred fifty (750) watts, or one horsepower. (See. S.C. Code §; 56-1-10).

(e) *E-moto:* This term is not officially recognized in the South Carolina law; however, as it relates to this section. E-Moto applies to all electric powered devices built on a bicycle-style frame equipped with one or more operating modes and a throttle, having an electric motor with a power output exceeding seven hundred and fifty (750) watts, and is capable of exceeding twenty (20) mph using only the throttle. While these types of devices are not specifically defined by state law, depending on their design and motor size, they would be classified as either

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*__Editor's note—__Ord. No. 2026-089, § 1, adopted May 12, 2026, repealed the former Div. 3, §§ 19-121—19-125, and enacted a new Div. 3 as set out herein. The former Div. 3 pertained to regulations applicable to bicycles and derived from Code 1975, § 33-176, 33-177; Ord. No. 2009-236, § 2, 11-16-09; Ord. No. 2010-231, §§ 3—7, 8-17-10; Ord. No. 2013-111, 10-8-13; Ord. No. 2014-134, § 1, 10-14-14; Ord. No. 2010-231, §§ 5—7, 8-17-10; Ord. No. 2025-026, § 1, 2-25-25.

mopeds or motorcycles and subject to all state and federal laws and regulations related to mopeds or motorcycles. Some examples of E-Motos would be electric dirt bikes and electric mini bikes.

(f) *Reckless manner* means operating with a conscious, willful, or wanton disregard for the safety of persons or property. It involves behavior that creates a substantial and unjustifiable risk to the rider, pedestrians, or other road users. This includes, but is not limited to excessive speed, dangerous maneuvers (ie: wheelies), disregard for rules, and impaired riding.

(g) *Shared-use path* means a sidewalk designated by the Traffic and Transportation Department as a shared-use path measuring at least eight (8) feet in width (section 19-125).

(h) *Multi-use path* means a bikeway physically separated from motorized vehicular traffic by an open space or barrier and either within the highway right-of-way or within an independent right-of-way. Multi-use paths may also be used by pedestrians, skaters, wheelchair users, joggers, and other non-motorized users (section 54-120).
(Ord. No. 2026-089, § 1, 5-12-26)

Sec. 19-121. Traffic laws apply to persons riding bicycles and e-bikes.

(a) Every person riding a bicycle or E-bike upon a roadway shall be granted all of the rights and shall be subject to all of the duties applicable to the driver of a vehicle by the laws of this state declaring rules of the road applicable to vehicles or by the traffic regulations of this city applicable to the driver of a vehicle, except as to special regulations in this article and except as to those provisions of laws and regulations which by their nature can have no application.

(b) Any person operating a bicycle or E-bike shall obey the instructions of official traffic control signals, signs and other control devices applicable to vehicles, unless otherwise directed by a police officer.

(c) Whenever authorized signs are erected indicating that no right or left or U-turn is permitted, no person operating a bicycle or E-bike may disobey the direction of any such sign, except

where such person dismounts from the bicycle or E-bike to make any such turn, in which event such person shall then obey the regulations applicable to pedestrians.
(Ord. No. 2026-089, § 1, 5-12-26)

Sec. 19-122. Prohibited parking.

(a) *Parking prohibited:*

(1) A bicycle or E-bike may not be secured or otherwise locked to street trees, street lights, stop signs, parking meters, boat docks, legal encroachments, or public property located in the public right-of-way of King Street between Spring Street and Market Street.

(2) Bicycles or E-bikes may not be secured or otherwise locked or placed on private property in a manner where any portion of the bicycle or E-bike intrudes into the public right-of-way on King Street between Spring Street and Market Street.

(3) City police or parking enforcement officers on bicycles or E-bikes ("enforcement officers") shall be exempt from the above-described restriction when in the course and scope of their duties they determine that parking in such a manner is necessary to perform their official duties.

(b) *Penalties for parking violations:*

(1) Owners or operators of bicycle or E-bike parked in violation of paragraph (a) shall be subject to the following infractions:

i. A police officer, code enforcement officer or parking enforcement officer may confiscate by removal or by adding a city lock to the illegally parked bicycle or E-bike.

ii. A confiscated bicycle or E-bike shall be released upon proof of ownership and the payment of a forty-dollars ($45.00) fee for removal and storage.

iii. Bicycles or E-bikes remaining in the city's custody without identification of ownership and the payment of the fee as set forth above after a period of

thirty (30) days, shall be deemed to be abandoned and shall be disposed of in accordance with the law.

(2) The city shall bear no responsibility to the owner or operator for loss of or damage to a confiscated bicycle or E-bike, including any chain or locking mechanism, in its enforcement of this section.

(Ord. No. 2026-089, § 1, 5-12-26)

Sec. 19-123. Abandoned bicycles or e-bikes.

(a) It shall be unlawful for any person to abandon any bicycle or E-bike on any public right-of-way or on any public property within the city. A bicycle or E-bike shall be deemed abandoned if it:

(1) Is in such a state of disrepair as to be incapable of being operated in its present condition; or

(2) Has not been moved or used in more than seven (7) days and bears physical indicia of having been abandoned.

(b) Any bicycle or E-bike deemed abandoned pursuant to subsection (a) of this section shall have a notice affixed to it which informs the owner that the bicycle or E-bike appears to be abandoned. The notice shall indicate: (1) a telephone number for the owner to call to inform the city that the bicycle or E-bike is not abandoned; and (2) the date after which the bicycle or E-bike may be removed if it is not claimed by its owner. The owner has seven (7) days of the affixing of a notice of abandonment, to notify the city; otherwise, the property will be considered abandoned and disposed of by discarding, donation, auction or any other manner deemed appropriate by the city.

(Ord. No. 2026-089, § 1, 5-12-26)

Sec. 19-124. Riding on sidewalks, on-road bike facilities, multi-use or shared-use paths.

(a) *On-road bike facilities:* E-bikes, or any similar devices, are allowed on all on-road bike facilities in the city.

(b) *Sidewalks:* E-bikes, or any similar devices, are not allowed on sidewalks in the city.

(c) *Multi-use and shared-use paths:* E-bikes, or any similar devices, are allowed on muti-use and shared-use paths, in the city, except on Daniel Island.

(d) Assistive technology devices are allowed on sidewalks, multi-use and shared-use paths in the city.

(e) Pedicabs (section 19-462) are not allowed on any sidewalk, on-road bike facilities, multiuse or shared-use path in the city.

(f) Bicycles are allowed on on-road bike facilities, shared-used and multi-use paths in the city. No person shall ride or operate a bicycle upon any sidewalk in the city except in the following circumstances:

(1) Children the age of twelve (12) and under may ride a bicycle having a wheel diameter of twenty-four (24) inches or less on any sidewalk except as otherwise herein prohibited.

(2) Where the sidewalk is designated by the traffic and transportation department as a shared-use path measuring at least eight (8) feet in width; however, this exemption does not apply to the elevated sidewalk sections of Murray Blvd. and East Battery Streets, also known as the battery seawall, where bicycle traffic is prohibited.

(3) Where the adjacent highway has a posted speed limit of thirty-five (35) miles per hour or more, adults and children may ride a bicycle on the adjacent sidewalk except as otherwise herein prohibited or if there is a dedicated bicycle lane on the adjacent highway.

(g) A police or code enforcement officer may operate a bicycle or E-bike on the sidewalk, shared-use or multi-use paths when in the course and scope of their duties they determine in good faith that riding or operating a bicycle or E-bike on the sidewalk is necessary to perform their official duties.

(h) Any person permitted in the above subsections to ride or operate upon a sidewalk, on-road bike facility, shared-use or multi-use path shall not operate in a reckless manner, as defined herein, and shall at all times exercise due care and yield the right-of-way to pedestrians and other vehicular traffic.
(Ord. No. 2026-089, § 1, 5-12-26)

Sec. 19-125. Enforcement.

(a) Upon violation of any provision of this section, the officer has the discretion to contact the parent, legal guardian or other responsible adult if such offender is under the age of 17 years, and, if practicable, allow them to take custody of the E-bike, or other similar device. If the parent, guardian or other responsible adult does not opt to take custody, or it is not practicable, then the officer may have the E-bike, or other similar device towed. at the expense of the parent, guardian or other responsible adult.

(b) Any person violating this section shall be guilty of a misdemeanor and upon conviction, shall be subject to fines of up to five hundred dollars ($500.00) or thirty (30) days in jail.
(Ord. No. 2026-089, § 1, 5-12-26)

Secs. 19-126—19-130. Reserved.

Cross references—Streets and sidewalks, Ch. 28.; motorized scooters, mopeds, Ch. 19.

DIVISION 4. RESERVED*

Secs. 19-131—19-135. Reserved.

*__Editor's note—__Ord. No. 2026-089, § 1, adopted May 12, 2026, repealed §§ 19-131—18-135, which pertained to regulation of certain vehicles and derived from Ord. No. 2014-68, § 1, 5-13-14; Ord. No. 2014-68, § 1, 5-13-14; Ord. No. 2021-117, § 1, 8-17-21.

ARTICLE VI. MOPEDS

DIVISION 1. GENERALLY*

Sec. 19-136. Definitions.

For purposes of this article:

"Moped" means a cycle, defined as a motor vehicle, with or without pedals, to permit propulsion by human power, that travels on not more than three wheels in contact with the ground whether powered by gasoline, electricity, alternative fuel, or a hybrid combination thereof. Based on the engine or fuel source, the moped must be equipped not to exceed the following limitations: a motor of fifty cubic centimeters; or designed to have an input exceeding seven hundred fifty (750) watts and no more than one thousand five hundred (1,500) watts. If an internal combustion engine is used, the moped must have a power drive system that functions directly or automatically without clutching or shifting by the operator after the drive system is engaged. (See S.C. Code § 56-1-10(26)).
(Ord. No. 2026-089, § 2, 5-12-26)

Sec. 19-137. Licensing requirement.

No person may operate a moped unless that person possesses a valid driver's license or a valid moped operator's license as required by state law.
(Ord. No. 2026-089, § 2, 5-12-26)

Sec. 19-138. Traffic laws apply to persons riding or operating mopeds.

Pursuant to state law, every person operating a moped upon a roadway shall be granted all of the rights and shall be subject to all of the duties applicable to the driver of a vehicle by the laws of this state declaring rules of the road applicable to vehicles or

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*__Editor's note—__Ord. No. 2026-089, § 2, adopted May 12, 2026, amended division 1 in its entirety to read as herein set out. Former division 1, §§ 19-136—19-140, pertained to similar subject matter, and derived from Ord. No. 2012-376, §§ 1—7, 9-25-12; Ord. No. 2014-135, § 1, 10-14-14.

by the traffic regulations of this city applicable to the driver of a vehicle, except as to special regulations in this article and except as to those provisions of laws and regulations which by their nature can have no application.
(Ord. No. 2026-089, § 2, 5-12-26)

Sec. 19-139. Limitations as to operating, speed, riding position, and number of riders.

Pursuant to state law:

(a) No person shall operate a moped at a speed in excess of thirty-five (35) miles an hour.

(b) No person shall ride upon a moped other than upon or astride a permanent and regular seat attached to the moped. A passenger on a moped shall not ride other than astride a permanent and regular seat attached thereto. All persons riding as a passenger must be able to keep his or her feet firmly on the foot boards or foot pegs while sitting comfortably on the seat.

(c) No person shall operate a moped carrying more persons at one time than the number for which it is designed and equipped.

(d) No person shall operate a moped while engaged in an activity that is not necessary to the operation of the moped which impairs, or would reasonably be expected to impair, the ability of the person to safely operate the moped.

(e) No person shall operate a moped while transporting a passenger under the age of five (5).

(f) No person shall park a moped, powered scooter, motorized bike at a bicycle rack, bicycle stand, or any other designated bicycle parking area.

(g) A person may not operate a moped on a public highway that has a speed limit of greater than fifty-five (55) miles per hour. A person operating a moped may cross an intersection at a public highway that has a speed limit of greater than fifty-five (55) miles per hour.

(Ord. No. 2026-089, § 2, 5-12-26)

Sec. 19-140. Required equipment.

Mopeds shall be equipped with all equipment required by state law.
(Ord. No. 2026-089, § 2, 5-12-26)

Secs. 19-141—19-150. Reserved.

DIVISION 2. RESERVED*

Secs. 19-151—19-155. Reserved.

DIVISION 3. RESERVED†

Secs. 19-156—19-175. Reserved.

ARTICLE VII. OPERATION OF VEHICLES GENERALLY

DIVISION 1. GENERALLY

Sec. 19-176. Obstructing intersection with vehicle.

No driver shall enter an intersection or a marked crosswalk unless there is sufficient space on the other side of the intersection or crosswalk to accommodate the vehicle he is operating without obstructing the passage of other vehicles or pedestrians, notwithstanding any traffic-control signal indication to proceed.
(Code 1975, § 33-28)

***Editor's note—**Ord. No. 2012-376, § 9, adopted Sept. 25, 2012, repealed Div. 2, §§ 19-151 and 19-152, which pertained to insurance and derived from §§ 33-206 and 33-307 of the 1975 Code; and Ord. No. 1978-71, § 2, adopted Nov. 21, 1978.

†**Editor's note—**Ord. No. 2012-376, § 10, adopted Sept. 25, 2012, repealed Div. 3, §§ 19-156—19-164, which pertained to registration and derived from §§ 33-197—33-205 of the 1975 Code; and Ord. No. 1978-71, § 2, adopted Nov. 21, 1978.

Sec. 19-177. Driving on sidewalk.

The driver of a vehicle shall not drive within any sidewalk area, except at a permanent or temporary driveway.
(Code 1975, § 33-29)

Sec. 19-178. Careless operation of a vehicle.

It shall be unlawful for any person to operate any vehicle without care and caution and full regard for the safety of persons and property. Any person failing so to do shall be guilty of careless driving or riding. The operation of any vehicle when the same or any of its appliances is not in proper or safe condition shall be prima facie evidence of careless driving or riding.
(Code 1975, § 33-32)

Sec. 19-179. Limitations on backing; signal of intent to back.

The driver of a vehicle shall not back the same into an intersection or over a crosswalk and shall not in any event or at any place back a vehicle unless such a movement can be made in safety. Any driver intending to back a vehicle shall signal his intention to pedestrians and other traffic and shall proceed with caution.
(Code 1975, § 33-109)

State law reference—Limitations on backing, S.C. Code 1976, § 56-5-3810.

Sec. 19-180. Driving in funeral procession.

Each driver in a funeral procession shall drive as near to the right-hand edge of the roadway as practical and follow the vehicle ahead as close as is practical and safe. Each vehicle in such funeral procession shall have its headlights turned on during the procession.
(Code 1975, § 33-178)

Cross reference—Funeral procession does not constitute parade, § 19-326.

Sec. 19-181. Driving through funeral procession.

No driver of a vehicle shall drive between the vehicles comprising a funeral procession.
(Code 1975, § 33-179)

Sec. 19-182. Unlawful use of a handheld electronic communication device.

(a) Whereas, in 2010, 3,267 people were killed in crashes involving a distracted driver, and in 2011, the number of persons killed was 3,331. An additional 416,000 persons were injured in 2010 and 387,000 people were injured in 2011 in motor vehicle crashes involving a distracted driver.

Whereas, the U.S. Department of Transportation reported that at any given daylight moment across America, approximately 660,000 drivers are using cell phones or manipulating electronic devices while driving, a number that has held steady since 2010.

Whereas, Distraction.gov, the U.S. Department of Transportation official website for distracted driving, recently reported that sending or receiving a text takes a driver's eyes from the road for an average of 4.6 seconds; at 55 mph of driving, that is the equivalent of driving the length of an entire football field, blind.

Whereas, city council finds that it is in the best interest of the citizens, visitors, and residents using the city's public rights-of-way to take action to improve the safety of our streets by prohibiting the use of handheld electronic communication devices for texting and other visual-manual subtasks such as emailing by those operating a vehicle in the City of Charleston.

Whereas, city council finds that the dangers associated with texting and performing other visual-manual subtasks such as emailing are similar for operators of motor vehicles and operators of other types of vehicles such as skateboards, scooters, golf carts, bicycles, and mopeds.

(b) Offense. Except as otherwise provided in subsection (c) of this section, no person shall operate a vehicle on a public street or highway within the city limits while using a handheld electronic communication device.

(c) Exceptions. The provisions of this section shall not apply to the following:

(1) Any person using a handheld electronic communication device while maintaining a vehicle in a stationary and parked position;

(2) Any person using a handheld electronic communication device for voice communication while operating or using the vehicle;

(3) Any of the following persons while in the performance of their official duties: a law enforcement officer, a firefighter, emergency medical technician, or other public safety official while in the performance of the person's official duties;

(4) Any person using a handheld electronic communication device to call 911 or other emergency telephone numbers to contact public safety forces.

(d) Definitions. For the purposes of this section, the following terms shall be applicable:

(1) *Handheld electronic communication device* shall mean an electronic device including, but not limited to a telephone, cell phone, personal digital assistant, text messaging device, email messaging device, a computer, or other such instrument that allows a person to wirelessly communicate with another while holding or operating such with the hand.

(2) *Vehicle* shall mean every device in, upon or by which any person or property is or may be transported or drawn upon a street or highway.

(3) *On-board communications device* shall mean a communications systems or device that is hard-wired into the motor vehicle.

(4) *Use* shall mean holding a portable electronic communication device while viewing, taking, or transmitting images, playing games, or composing, sending, reading, viewing, accessing, browsing, transmitting, saving or retrieving email, text messages, or other electronic data.

(e) Penalty. A violation of this section shall be an infraction and shall be punishable by a fine of one hundred dollars ($100.00) plus the costs assessed to the court. No driver's license points shall be assessed as a result of a violation of this section.

(f) Law enforcement officers must not:

(1) Stop a person for violating this section unless the officer has probable cause that a violation has occurred based on the officer's clear and unobstructed view of a person's use of the handheld electronic communication device while driving or operating a vehicle upon the public streets and highways of the city. If an arresting officer has probable cause to believe that the vehicle driver has violated this section, the officer may subpoena the telephone records of that device. The arresting officer or the defendant may admit as evidence, without providing a chain of custody, the telephone number or texting information, or both, that are relevant to a violation of this section.

(2) Seize or require the forfeiture of a handheld electronic communication device because of a violation of this section.

(Ord. No. 2013-107, § 1, 10-8-13

Sec. 19-183. Operation on flooded or closed streets, roads, highways, bridges or alleys.

(a) It shall be unlawful for any person to operate any motor vehicle, power boat or watercraft on any street, road, highway, bridge, or alley which is flooded or inundated with water exceeding six (6) inches within the city either:

(1) In excess of a speed of five (5) miles per hour: or

(2) In such a manner so as to cast or discharge water, waves, or wakes that carry beyond the edge of the street, road, highway, bridge, alley or curbline.

(b) Consistent with S.C. Code § 56-5-950, and subject to the requirements, exceptions and presumptions contained therein, it shall be unlawful for the driver of any vehicle to drive around a barricade or operate such vehicle on any street, road, highway, bridge, or alley where barricades are in place indicating that such street, road, highway, bridge or alley is closed to traffic.

(c) Consistent with S.C. Code § 56-5-1030, it is a violation of state law for any person to willfully and without lawful authority attempt to or in fact alter, deface, injure, knock down, or remove a barricade placed or held, and any person who violates this law may be found guilty of a felony and prosecuted in the Court of General Sessions.

(d) The provisions set forth in subsections (a) through (c) shall not apply to authorized emergency vehicles as defined in S.C. Code § 56-5-170 while such vehicles are engaged in emergency operations.

(e) Any person who violates sections (a) or (b) of this section shall be subject to a penalty of up to one hundred dollars ($100.00), up to thirty (30) days in jail, or both.
(Ord. No. 2024-140, § 1, 9-10-24)

Secs. 19-184—19-190. Reserved.

DIVISION 2. RESERVED*

Secs. 19-191—19-205. Reserved.

DIVISION 3. SPEED RESTRICTIONS†

Sec. 19-206. General rule; maximum speed; further reduction of maximum speed limit in residential neighborhoods.

(a) *Generally.* Where no special hazard requiring lower speed exists, the maximum speed shall be twenty-five (25) miles per hour on any street, unless otherwise posted, and no person shall drive a vehicle at a speed in excess of such maximum limit.

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*__Editor's note—__Ord. No. 2011-21, § 8, adopted March 22, 2011, repealed Div. 2, §§ 19-191—19-199, which pertained to chauffeur and public car (other than taxicab) licenses and derived from §§ 33-125—33-133 of the 1975 Code.

†__Cross reference—__Speed limit for trains, § 26-7.

(b) *When the maximum speed limit in a residential neighborhood can be further reduced.*

(1) Whenever the city council shall determine, after receipt of a petition signed by fifteen (15) percent of the residents of a particular neighborhood and after the Director of Traffic and Transportation directs a traffic engineering study of the particular residential neighborhood and the traffic and transportation committee makes a favorable recommendation, it may further lower the maximum speed limit on the street(s) in said neighborhood in accordance with S.C. Code § 56-5-1540.

(2) *Procedure.*

a. Upon receipt of a petition signed by at least fifteen (15) percent of the residents in a particular residential neighborhood, the department of traffic and transportation shall conduct a traffic engineering study.

b. Upon the completion of the traffic engineering study, the director of traffic and transportation shall report his findings and recommendations to the traffic and transportation committee. If the traffic and transportation committee finds in favor of the petition, the committee shall forward its recommendation to city council. City council may by ordinance designate the street(s) in such residential neighborhood as having a maximum speed limit lower than twenty-five (25) miles per hour.

(Code 1975, § 33-34; Ord. No. 1998-38, §§ 1—3, 2-24-98; Ord. No. 2022-150, § 1, 10-25-22)

Sec. 19-207. Animals ridden or driven on streets; human-powered vehicles.

No person shall drive or ride an animal or operate a vehicle propelled by human power at such a speed or under such conditions that the animal or vehicle shall not at all times be under full control and capable of being brought to a full stop if circumstances require. In making a turn or crossing an intersection, no such animal shall be ridden or driven and no such vehicle shall be propelled at a speed in excess of five (5) miles per hour.
(Code 1975, § 33-35)

Cross reference—Animals generally, Ch. 5.

Sec. 19-208. When decrease in speed required.

The fact that the speed of a vehicle is within the limits set out in the foregoing sections of this division shall not relieve the driver from the duty to decrease speed when approaching and crossing an intersection, when approaching and going around a curve, or when a special hazard exists with respect to pedestrians or other traffic or by reason of weather or highway conditions. Speed shall be decreased as may be necessary to avoid colliding with any person, vehicle or other conveyance on or entering the street in compliance with legal requirements and the duty of all persons to use due care.
(Code 1975, § 33-36)

Secs. 19-209—19-215. Reserved.

DIVISION 4. STARTING, STOPPING AND TURNING

Sec. 19-216. "U" turns.

No "U" turn shall be made on any street except where authorized by an official sign, and only when such movement can be made with safety and without interfering with other traffic.
(Code 1975, § 33-48)

State law reference—Turning vehicle in opposite direction, S.C. Code 1976, § 56-5-2140.

Secs. 19-217—19-230. Reserved.

ARTICLE VIII. STOPPING, STANDING AND PARKING*

DIVISION 1. GENERALLY

Sec. 19-231. Impounding unoccupied and unattended vehicles.

Any unoccupied and unattended vehicle found violating the terms of this chapter may be removed and impounded by any police officer or duly authorized person and shall be surrendered to the duly identified owner thereof only upon payment of cost of impounding.
(Code 1975, § 33-61)

Sec. 19-232. Emergency removal of vehicles.

If an emergency arises which, in the opinion of the city, necessitates the removal of legally parked vehicles, the city shall remove such vehicles at its own expense and notify the owners of the place where their vehicles can be claimed.
(Code 1975, § 33-69.2; Ord. No. 1981-64, § 1, 10-27-81)

Sec. 19-233. Driving on through highways.

Vehicles moving along any through highways shall be considered through traffic and need not stop at any intersection, unless traffic lights or traffic signs so require or unless otherwise provided herein.
(Code 1975, § 33-63)

Sec. 19-234. Area where stopping or parking prohibited.

(a) No person shall stop, stand or park a vehicle, except when necessary to avoid conflict with other traffic or in compliance with the directions of a police officer or traffic-control device, or where curbs are painted yellow.

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*__Cross references—__Special parking regulations for small buses, § 29-113; special parking regulations for charter buses, § 29-129; special parking regulations for extra large buses, § 29-161.

(b) When signs are erected in each block giving notice thereof, it shall be unlawful to park a vehicle as prohibited by such signage between the hours on the days so designated.

(c) When signs, curb painting, pavement markings, or other approved notices or markings are installed giving notice thereof, it shall be unlawful to park a vehicle in a marked fire lane.
(Code 1975, § 33-64; Ord. No. 2017-135, § 1, 10-24-2017; Ord. No. 2019-041, § 1, 5-28-19)

Sec. 19-235. Parking prohibited for certain purposes.

No person shall stand or park a vehicle in such manner as to create a public or private nuisance upon any roadway for the purpose of:

(1) Displaying it for sale.

(2) Advertising of any nature whatsoever.

(3) Washing, greasing or repairing such vehicle except repairs necessitated by an emergency.

(Code 1975, § 33-66)

Sec. 19-236. Parking within lines indicating parking space.

Wherever lines have been painted to indicate parking space, vehicles shall be parked entirely within those lines.
(Code 1975, § 33-69)

Sec. 19-237. Trucks or vehicles more than twenty feet long.

No person shall stop, stand or park a truck or other vehicle having an overall length of more than twenty (20) feet at any point upon any street for a period of more than one hour, except that such bus, truck or other vehicle may be stopped or parked for such length of time as may be necessary for the pickup and

loading or unloading and delivery of passengers or materials. For the purpose of this section, a trailer and its tractor unit shall be considered one vehicle.
(Code 1975, § 33-70)

Cross reference—School buses, church buses and recreational vehicles, § 29-173.

Sec. 19-238. Camping, sleeping, residing, etc., in parked motor vehicles, etc.

No person shall camp, camp out, sleep, lodge, or take up residence in any camper, van, bus, or other motor vehicle on the public streets or in any park or public place; provided, however, that the city's special events committee may authorize such activity so long as the activity shall not constitute a nuisance and adequate measures shall be taken to ensure the safety of campers, preserve the cleanliness of the immediate and surrounding areas, and minimize adverse impacts on the community.
(Code 1975, § 33-70.1; Ord. No. 1977-85, § 2, 12-20-77; Ord. No. 1984-128, § 2, 9-11-84; Ord. No. 2010-111, § 6, 7-20-10)

Sec. 19-239. Unattached trailers.

No person shall park a trailer or allow the same to stand at any point upon any street unless the motor vehicle unit is at all times attached to such trailer.
(Code 1975, § 33-71)

Sec. 19-240. Minimum width of roadway required to be free for traffic; blocking public or private driveway prohibited.

(a) No person shall stop, stand or park any vehicle upon a street in such a manner as to leave available less than ten (10) feet of the width of the roadway for the free movement of vehicular traffic, except that a driver shall stop when necessary in obedience to traffic regulations or traffic signs or signals or a police officer.

(b) No person shall stand, stop or park any vehicle in front of a public or private driveway or within three (3) feet of either side thereof, or on the opposite side of any public or private driveway in such a manner as to inhibit the entry or departure from the driveway. A police officer or code enforcement officer, prior to issuing a uniform ordinance summons for a violation of this subsection, shall determine that the vehicle is inhibiting the entry or departure from such driveway.
(Code 1975, § 33-72; Ord. No. 2009-122, §§ 1—3, 7-21-09)

State law reference—Unobstructed width of highway opposite standing vehicle to be left free of passage, S.C. Code 1976, § 56-5-2510.

Sec. 19-241. Animals and animal-drawn vehicles.

No animal or animal-drawn vehicle shall be parked unattended upon any street; however, a horse-drawn vehicle may be securely fastened to a hitching post or safe anchor block briefly for the purpose of making deliveries.
(Code 1975, § 33-73)

Sec. 19-242. Passenger loading zones and commercial loading zones.

(a) No person shall stop, stand or park a vehicle for any purpose or period of time other than for the expeditious loading or unloading of passengers in any place marked as a passenger loading zone.

(b) Only commercial vehicles identified by commercial markings and bearing a commercial license plate, shall stop, stand or park for expeditious unloading and delivery or pick-up and loading of materials in any place marked as a commercial loading zone during the hours posted on the loading zone sign when the regulations applicable to such loading zone are in effect. In no case shall the unloading and delivery or pick-up and loading of materials from commercial vehicles in commercial loading zones exceed thirty (30) minutes.

(c) Commercial vehicles shall not block lanes of travel for the purpose of loading or unloading or materials, and shall be limited exclusively to commercial parking zones for such activity.

(d) For the purposes of this section a vehicle shall be defined as every device in, upon, or by which any person or property is or may be transported or drawn upon a highway.
(Code 1975, § 33-74; Ord. No. 2009-41, § 1, 3-24-09; Ord. No. 2017-134, § 1, 10-24-17; Ord. No. 2024-066, § 2, 4-23-24)

Sec. 19-243. Loading and unloading passengers.

No operator of a vehicle shall load or unload passengers, except when the vehicle is stopped at the curb, and then only when such movement can be made with safety.
(Code 1975, § 33-75)

Sec. 19-244. Running engines or other equipment while stopped or standing on street.

No person shall allow the engine or other mechanical equipment on a motor vehicle stopped or standing on a public street to continue to operate longer than five (5) minutes, unless movement of such vehicle is prevented by traffic-control signals or is physically blocked by other vehicles.
(Code 1975, § 33-76)

Sec. 19-245. Owner's responsibility for illegal parking.

No person shall allow, permit or suffer any vehicle registered in his name to stand or park in any street in the city in violation of any of the provisions of this Code or other ordinances of this city regulating the standing or parking of vehicles.
(Code 1975, § 33-70)

Sec. 19-246. Bus stops.

(a) The driver of a bus shall not stand or park upon any street at any place other than at a bus stop, except that this provision shall not prevent the driver of any such vehicle from temporarily stopping in accordance with other stopping or parking regulations for the purpose of and while actually engaged in loading or unloading passengers.

(b) No person shall stop, stand or park a vehicle other than a bus in a bus stop when any such stop has been officially designated and appropriately signed.
(Code 1975, § 33-78; Ord. No. 2024-066, § 3, 4-23-24)

Sec. 19-247. Rules of conduct for city parking garages.

(a) No person shall violate federal, state, or city law.

(b) No person shall enter or remain for any purpose other than to park or retrieve a motor vehicle, do business with a city parking garage retail tenant or CARTA, or to utilize a public restroom.

(c) No person shall possess any weapon or any similar instrument that can be used to inflict injury upon a person or damage to property, except to the extent permitted by South Carolina law.

(d) No person shall use city parking garages for the purpose of housing or camping, including but not limited to, sleeping, bathing, cooking, or use as a restroom.

(e) No person shall deface, damage, or destroy city parking garages.

(f) No person shall abandon any motor vehicle, bicycle, trailer, camper, or any other generally operated on the public right-of-way in a city parking garage. Abandonment shall be determined pursuant to chapter 14, section 14-31 of this Code.

(g) No person shall park a golf cart in a city parking garage unless authorized by the mayor during a weather event or another type of emergency event.

(h) No person shall park and unattached trailer in a parking garage.

(i) Unless authorized by the City of Charleston, no person shall post or place on cars any handbills, flyers, or posters of any kind within city parking garages.

(j) No person shall post, place, display, fly, or hang in or on any portion of the parking garage and its physical structure flyers, posters, flags, advertisements, commercial advertisements, or any other materials not approved and produced by the city.

(k) Other than at City of Charleston authorized events, no person shall possess an open container of alcohol or consume alcoholic beverages.

(l) Other than at City of Charleston authorized events, no person shall play or use amplified or audio equipment at a level that disturbs others.

(m) Other than at City of Charleston authorized events, no person shall participate in parties, rave parties, or other similar gatherings.

(n) No person shall use city parking garages and/or their structures and fixtures, including but not limited to, walls, railings, banisters, stairs, or ventilation fixtures, in ways they were not intended to be used, including but not limited to, sitting, standing, lying kneeling, skating, or skateboarding.

(o) No person shall smoke or carry any lighted smoking instrument while in the elevator or any enclosed portion of city parking garages.

(p) No person shall engage in conduct that disrupts or interferes with normal operations of city parking garages, or any tenant of a city parking garage, or that disturbs employees or patrons of city parking garages, including but not limited to, conduct that involves the use of abusive or threatening language or gestures, conduct that creates unreasonable noise, or conduct that consists of loud or boisterous physical behavior.

(q) No person shall interfere with free passage of patron or employees of city parking garages, including but not limited to, placing objects such as bicycles, backpacks, carts or other items in a manner that interferes with free passage.

(r) No person shall refuse to obey any posted parking signs or any reasonable direction of a parking garage employee.
(Ord. No. 2019-054, § 2, 6-18-2019)

Sec. 19-248. Unlawful acts; penalties.

It is unlawful to park any vehicle in a parking place clearly designated for handicapped persons unless the vehicle bears the distinguishing license plate or placard as provided in Section 56-3-1960 of the South Carolina Code of Laws 1976, as amended.

It is unlawful for any person who is not handicapped or who is not transporting a handicapped person to exercise the parking privileges granted handicapped persons pursuant to Section 56-3-1960 of the South Carolina Code of Laws 1976, as amended.

Any person violating the provisions of this section is guilty of a misdemeanor and, upon conviction, must be fined not less than one hundred dollars ($100.00) nor more than two hundred dollars ($200.00) or imprisoned for not more than thirty (30) days for each offense.

For purposes of this section "handicapped" shall be defined as any person who: (a) has an obvious physical disability that impairs the ability to walk or requires the use of a wheelchair, braces, walkers or crutches; (b) has lost the use of one or both legs; (c) suffers from lung disease to such an extent that he is unable to walk without the aid of a respirator; (d) is disabled by an impairment and mobility; or (e) is determined by the Social Security Administration or the Veteran's Administration to be totally and permanently disabled.
(Ord. No. 1992-162, § 1, 9-22-92; Ord. No. 2019-054, § 1, 6-18-2019)

Editor's note—Formerly numbered as § 19-247.

Secs. 19-249—19-255. Reserved.

DIVISION 2. PARKING METERS

Sec. 19-256. Duty to deposit payment; overtime parking.

(a) No person shall stop, stand, or park a vehicle within a parking meter space adjacent to any parking meter unless he shall immediately deposit in such meter payment for the use of the parking space in accordance with the instructions on the meter.

(b) No person shall stop, stand, or park a vehicle in a parking meter space for longer than the period designated on such meter for the payment which he shall have placed in such meter. If a vehicle shall remain stopped, standing, or parked in any such parking meter space beyond the parking time limit, the parking meter shall display a sign or signal showing illegal parking, and in that event such vehicle shall be considered as parked overtime and beyond the period of legal parking time. The stopping, standing, or parking of vehicle overtime or beyond the period of legal parking time shall be a violation of this section.

(c) No person shall continuously stop, stand, or park a vehicle in a parking meter space longer than the maximum limit of parking time obtainable by the single operation of such meter, nor shall such person deposit or cause to be deposited in a meter payment for the purpose of extending indicated parking time beyond such maximum limit. The penalty for violating this provision shall be the same as that for overtime parking.

(d) (1) It shall be unlawful for more than six (6) motorcycles, mopeds or scooters to park in one (1) parking meter space.

(2) No motorcycle, moped or scooter parking in such parking meter space shall protrude beyond the marking designating such metered parking space.

(3) Payment shall be deposited in the meter as required by the instructions on such meter. In the event a parking meter space is occupied pursuant to this subsection and the parking meter expires, each motorcycle, moped or scooter in such parking meter space shall be issued a parking citation for a meter violation.

(e) Unless authorized herein, No person shall stop, stand, or park more than one vehicle in a parking meter space.
(Code 1975, § 33-79; Ord. No. 2003-80, § 1, 8-19-03; Ord. No. 2017-134, § 2, 10-24-17)

Sec. 19-257. Meter feeding.

No person shall continuously park a vehicle in any on-street parking meter zone longer than the maximum limit of parking

time obtainable by the single operation of such meter, nor shall such person deposit or cause to be deposited in an on-street parking meter a coin for the purpose of extending indicated parking time beyond such maximum limit. The penalty for violating this provision shall be the same as that for overtime parking.

(Code 1975, § 33-79.1; Ord. No. 1981-6, § 1, 3-31-81)

[The next page is 1182.1]

Sec. 19-258. Occupancy of two metered spaces by one vehicle.

No vehicle shall protrude beyond the marking designating a metered parking space, except that a vehicle too large to be parked within a single metered parking space may occupy two (2) adjacent parking meter spaces when coins have been deposited in both meters as required by the lettering on such meters.
(Code 1975, § 33-80)

Sec. 19-259. Use of meter revenue.

The coin or coins specified in the first paragraph of section 19-256 are required to regulate, control and inspect traffic and parking and to purchase, supervise, protect, inspect, install, operate, maintain and control parking meters and parking meter zones.
(Code 1975, § 33-81)

Sec. 19-260. Depositing slugs prohibited.

No person shall deposit or attempt to deposit or cause to be deposited in any parking meter any slug, device or substitute for a lawful coin of the United States.
(Code 1975, § 33-82)

Secs. 19-261—19-265. Reserved.

DIVISION 3. RESIDENTIAL PARKING DISTRICTS

Sec. 19-266. Definitions.

The following words and terms are defined for the purpose of this division only:

Company vehicle shall mean a vehicle which is owned by an employee's employer that is provided to the employee for the employee's use. Satisfactory proof of company car may be required.

Decal or *residential parking decal* shall mean the adhesive sticker issued by the parking ticket revenue collections division

indicating the applicable permit parking district. The decal shall be displayed by attaching the adhesive side of the decal to the lower right front passenger side of the windshield of the car. No taping or other method of securing the decal to the vehicle window shall be allowed. The decal shall be clearly visible and unobstructed.

Multiple dwelling unit shall mean a unit inside of a building designed or occupied otherwise than as a one-family dwelling or a two-family dwelling. The term "multiple dwelling" shall be understood to include apartment houses, tenement houses, residential condominiums and similar multi-family buildings exclusive of hotels, apartment hotels, motels, inns, boarding or rooming houses, bed and breakfasts, and timesharing facilities.

Owned vehicles shall mean vehicles registered to, leased to or assigned to residents of residential units within a permit parking district.

Permit shall mean a special permit, decal, or residential parking decal.

Permit parking district shall mean a residential district in which certain parking is limited to a specified time period, except to vehicles displaying a permit as provided in this division.

Property owner shall mean the owners of record for each property having a TMS number filed with the Charleston County Register Mesne Conveyance office.

Residential unit shall mean a structure which contains a separate electrical meter and whose use shall be as a home by one or more individuals or families in accordance with the city's zoning ordinance where the duration of occupancy is for a period of not less than six (6) months. Motels, hotels, inns, bed and breakfasts, rooming or boarding houses, or timesharing uses shall not be defined as a residential unit, but shall be defined as a commercial use.

Tenant shall mean a person who pays rent or other remuneration to the property owner(s) for use of a residential unit as his primary residence at least six (6) months a year.

Unauthorized decal shall mean a decal issued by the revenue collections—parking division which is displayed on a vehicle other than the one listed in the application for a residential parking decal. An expired decal shall not be considered as an unauthorized decal.

Vehicle shall mean every device in, upon or by which any person or property is or may be transported upon a street, except devices moved by human power or used exclusively upon stationary rails or tracks, is a "vehicle."

Visitors shall include only social guests and shall not include persons who are guests of hotels, motels, guest homes, bed and breakfasts, rooming or boarding houses, or short term rentals, or who otherwise pay for accommodations.

(Code 1975, § 33-197; Ord. No. 1979-49, § 1, 8-21-79; Ord. No. 1998-24, § 1, 2-10-98; Ord. No. 1998-187, § 1, 11-10-98; Ord. No. 2006-554, § 1, 11-28-06; Ord. No. 2017-134, § 3, 10-24-17)

Cross reference—Rules of construction and definitions generally, § 1-2.

Sec. 19-267. Purpose.

The purpose of this division is to reduce hazardous traffic conditions resulting from the use of streets within areas zoned for residential uses for the parking of vehicles by persons utilizing adjacent commercial, industrial, educational, recreational, governmental or institutional uses; to protect such districts from polluted air, excessive noise, litter and refuse caused by the entry of such vehicles; to protect the residents of such districts from unreasonable burdens in gaining access to their residences; to preserve the character of such districts as residential districts; to promote efficiency in the maintenance of residential streets in a clean and safe condition; to preserve the value of the property in such districts; and to preserve the safety of children, other pedestrians and traffic, as well as the peace, good order, comfort, convenience and welfare of the inhabitants of the city.

(Code 1975, § 33-198; Ord. No. 1979-49, § 1, 8-21-79; Ord. No. 2017-134, § 3, 10-24-17)

Sec. 19-268. When district may be established.

Whenever the city council shall determine, after a traffic survey of a particular residential area of the city and after a public hearing, that such an area is severely impacted by nonresidential on-street parking by reason of adjacent commercial, industrial, or institutional uses, it may designate such residential area as a permit parking district.
(Code 1975, § 33-199; Ord. No. 1979-49, § 1, 8-21-79)

Sec. 19-269. Procedure for designation.

(a) *Petition; survey.* Upon receipt of a petition signed by more than fifty (50) per cent of the residents of a contiguous area, the department of traffic and transportation shall conduct an engineering survey to determine whether such area should be designated as a permit parking district.

(b) *Adjustment of proposed area.* The director of traffic and transportation may adjust the boundaries of the proposed area if in his opinion the purposes of this division will be best served by such adjustment.

(c) *Conduct of survey; designation when no petition is filed.* The department of traffic and transportation will conduct a block-by-block survey of the proposed area on a weekday. If more than seventy-five (75) per cent of the parking spaces are occupied by vehicles, fifty (50) per cent of which are not owned or regularly operated by persons who reside in the area, then the director of traffic and transportation shall certify the district as a proposed permit parking district and report his findings and recommendations to city council. However, if the area fails to qualify, the director may order additional surveys, if in his opinion the area is sufficiently impacted by nonresidential uses and further counts may be reasonably warranted. However, should the director of traffic and transportation determine that an area in the city is sufficiently impacted by nonresidential, on-street parking, and should no petition be submitted by the residents of such area under the provisions of this section, then the director of traffic and transportation may designate such areas as a proposed permit parking district for consideration by city council.

(d) *Hearing.* Upon receipt of the findings and recommendations of the director of the department of traffic and transportation, city council shall set a public hearing and may by ordinance designate such area as a permit parking district.
(Code 1975, § 33-200; Ord. No. 1979-49, § 1, 8-21-79; Ord. No. 1980-107, § 1, 9-23-80)

Sec. 19-270. Issuance of resident and tenant decals.

(a) When an area has been designated as a residential permit parking district, the director of traffic and transportation or his designee shall authorize the issuance of the appropriate residential parking decals for that district.

(1) No more than two (2) residential parking decals shall be issued to each residential unit, and no more than six (6) residential parking permits shall be issued per Charleston County TMS Number.

(2) No vehicle, resident, tenant, or property owner shall receive a decal for more than one (1) residential permit parking district at the same time.

(3) Before a decal shall be issued to a resident, tenant or property owner, the resident, tenant or property owner shall provide proof of the applicant's residency in the parking district.

a. Proof of residency shall consist of the following documents:

(i) A property tax receipt, deed, or mortgage documents for the property; or

(ii) Valid identification card.

(ii) A valid South Carolina vehicle registration, or proof of payment of Charleston County vehicle registration fee, or a valid active student identification card or valid active military identification card; and

(iv) A valid lease of at least six (6) months' duration.

b. All decal applicants may be required to submit the most recent Charleston County Tax bill depicting the tax rate for the residential unit for which the applicant is seeking the parking decal.

(4) Decals issued to property owners are valid for one (1) calendar year. Decals may be renewed upon reapplication.

(5) Decals issued to tenants shall be issued twice a year and are valid from January 1st through June 30th of each year and from July 1st through December 31st of each year. Decals may be renewed upon reapplication. Tenants that have established residency at the same address with the revenue collections - parking division for a period of two (2) years or more, may obtain a yearly decal.

(Code 1975, § 33-202; Ord. No. 1979-49, § 1, 8-21-79; Ord. No. 1998-24, § 1, 2-10-98; Ord. No. 2017-134, § 4, 10-24-17; Ord. No. 2017-155, § 1, 12-19-17)

Sec. 19-271. Reserved.

Editor's note—Ord. No. 2017-134, § 5, adopted Oct. 17, 2017, repealed former section 19-271 in its entirety which pertained to rental property residential parking visitor permits and derived from Code 1975, § 33-202-A; Ord. No. 1981-23, § 1, 5-12-81; Ord. No. 1988-129, § 1, 11-22-88; Ord. No. 1994-268, § 1, 8-16-94; Ord. No. 1998-184, § 1, 11-10-98.

Sec. 19-272. Special permits.

(a) *Health care permits.* On application accompanied by a doctor's statement, the parking ticket revenue collections division is authorized to issue a health care parking permit for health care services where no off-street parking exists, and when constant health care at the individual's residence is required by a caretaker. Only one (1) such permit shall be issued for any residential unit at any one (1) time.

(b) *One day residential parking permit.* Each homeowner may, upon application and approval by the parking ticket revenue collections division, be entitled to purchase up to three

(3) books of thirty (30) permits per calendar year. Said permits may be used at anytime additional residential parking is required by the homeowner.

(c) *Rental property residential parking visitor permits.* On application of any rental property resident of the restricted district, accompanied by a signed, notarized affidavit indicating a lack of off-street parking, the parking ticket revenue collections division may issue to the residential leasehold tenants visitor permits limited to that particular permit parking district. No more than fourteen (14) one-day permits shall be issued to any residential unit with a leasehold tenant during a six-month period.

(d) *Construction parking permit.* If a construction site is located in a residential parking district, one (1) parking permit will be issued per building permit for the construction location listed on the building permit. To obtain a construction parking permit, the applicant must submit an application to the traffic and transportation department and provide a copy of a valid building permit.

(e) Special permits will only be valid if the vehicle is parked within the appropriate residential district, all information is correctly provided on the permit in ink, the permit is displayed on the right side of the front dashboard free from alteration, and it is clearly visible in its entirety through the vehicle windshield. (Code 1975, § 33-202-B; Ord. No. 1981-23, § 1, 5-12-81; Ord. No. 1998-185, § 1, 11-10-98; Ord. No. 2010-115, § 1, 7-20-10; Ord. No. 2017-134, § 6, 10-24-17)

[The next page is 1183]

Sec. 19-273. Fees.

Fees to defray the costs of the operation and enforcement of this program shall be established by city council and amended from time to time as the council may deem fit.

Sec. 19-274. Permits property of city.

All permits shall remain the property of the city.
(Code 1975, § 33-205; Ord. No. 1979-49, § 1, 8-21-79)

Sec. 19-275. Denial or cancellation of permit.

The director of the department of traffic and transportation shall have the power to deny the issuance of a permit or cancel an existing permit if in his judgment the vehicle is not an owned vehicle, if the applicant for a visitor permit is not a bona fide visitor, or if in his judgment the vehicle does not meet the criteria of this division. Upon cancellation of a permit, the holder shall surrender the permit to the director of the department of traffic and transportation.
(Code 1975, § 33-207; Ord. No. 1979-49, § 1, 8-21-79)

Sec. 19-276. Appeal from a denial or cancellation of permit.

Any person aggrieved by the denial or cancellation of a permit shall have the right to appeal such denial or cancellation to the traffic and transportation committee upon written notice to the clerk of council within ten (10) days of such denial or cancellation.
(Code 1975, § 33-208; Ord. No. 1979-49, § 1, 8-21-79; Ord. No. 1998-186, 11-10-98)

Sec. 19-277. Permit parking districts; boundary descriptions.

The following described areas are designated permit parking districts:

(1) That area of the City of Charleston more commonly known as the French Quarter Neighborhood, designated as Residential Parking District A, more fully shown on the attached map, marked as Exhibit A, and incorporated

herein by reference, said area of the city bounded to the north by the centerline of Cumberland Street between Meeting Street and Church Street and by the southern boundary of the right-of-way of Cumberland Street between Church Street and East Bay Street, to the east by the western boundary of the right-of-way of East Bay Street, to the south by the northern boundary of the right-of-way of Broad Street and to the west by the eastern boundary of the right-of way of Meeting Street.

(2) That area of the City of Charleston more commonly known as the Charlestowne Neighborhood, designated as Residential Parking District B, more fully shown on the attached map, marked as Exhibit A, and incorporated herein by reference, said area in the city bounded to the north by the centerline of Broad Street from Chisolm Street to Legare Street, the northern boundary line of Broad Street from Legare Street to King Street, the eastern boundary of King Street from Broad Street to Tradd Street, the northern boundary of Tradd Street from King Street to Meeting Street, the western boundary of Meeting Street from Tradd Street to St. Michael's Alley, the northern boundary of St. Michael's Alley and Elliot Street from Meeting Street to East Bay Street, western boundary of East Bay Street from Elliot Street to Exchange Street, the eastern boundary of East Bay Street from Exchange Street to Gillon Street, the northern boundary of Gillon Street, the eastern boundary of Prioleau Street from Gillon Street to Exchange Street, and the northern boundary of Exchange Street from Prioleau Street to Concord Street; to the east by the eastern boundary of Concord Street from Exchange Street to South Adgers Wharf, the southern boundary of South Adgers Wharf, the east boundary of East Bay Street and East Battery from South Adgers Wharf to 74 East Bay Street plus all of Vanderhorst Wharf; to the south by the centerline of South Battery from East Battery to King Street; from the centerline of King Street from South Battery to Murray Boulevard, the northern boundary of Murray Boulevard from King Street to Tradd Street, to

the northern side of Tradd Street from Murray Boulevard to Chisolm Street, the western side of Chisolm Street from Tradd Street to Broad Street.

(3) That area of the City of Charleston more commonly known as the Harleston Village Neighborhood, designated as Residential Parking District C, more fully shown on the attached map, marked as Exhibit C, and incorporated herein by reference, said area in the city beginning at the southeast corner of the intersection of Barre and Calhoun Streets and proceeding east along the southern boundary of Calhoun Street to the southwest corner of the intersection of Coming and Calhoun Streets; thence running south along the western boundary of Coming Street to the northwest corner of the intersection of Coming and Wentworth Streets; thence running east from the northwest corner of Coming Street to the northeast corner of Coming Street; thence running south along the eastern boundary of Coming Street to the southeast corner of the intersection of Beaufain and Coming Streets; then running east along the southern boundary of Beaufain Street to the southeast corner of the intersection of Beaufain and Market Streets; thence running south along the eastern boundary of Logan Street to the northeast corner of the intersection of Logan and Magazine Streets; thence running east along the northern boundary Magazine Street to the northwest corner of the intersection of Magazine and Archdale Streets; thence running north along the western boundary of Archdale Streets to the northwest corner of the intersection of Archdale and Market Streets; thence running east to the northeast corner of the intersection of Archdale and Market Streets; thence running south along the eastern boundary of Archdale Street to the northeast corner of the intersection of Archdale and Princess Streets; thence running east along the northern boundary of Princess Street to the northwest corner of the intersection of Princess and King Streets; thence running south along the western boundary of King Street to the center of the intersection of King and Broad Streets; thence running west along the centerline of Broad Street to the southwest corner of Savage and Broad Streets;

thence running west along the southern boundary of Broad Street to the southwest corner of the intersection of Broad Street and Rutledge Avenue; thence running north to the northwest corner of the intersection of Broad Street and Rutledge Avenue; thence running west along the northern boundary of Broad Street to the northwest corner of the intersection of Broad Street and Ashley Avenue; thence running west along the western boundary of Ashley Avenue to the southwest corner of the intersection of Ashley Avenue and Beaufain Streets; thence running west along the southern boundary of Beaufain Street to the southeast corner of the intersection of Beaufain and Gadsden Streets; thence running south along the eastern boundary of Gadsden Street to the southeastern corner of the intersection of Gadsden and Canal Streets; thence running west along the entire southern boundary of Canal Street to the southwest corner of the intersection of Canal and Barre Streets; thence running north along the western boundary of Barre Street to the southwest corner of the intersection of Barre and Beaufain Streets; thence running west along the southern boundary of Beaufain Street to the southeast corner of the intersection of Beaufain Street and Lockwood Drive; thence running north along the eastern boundary of Lockwood Drive until Lockwood Drive meets Halsey Boulevard; thence continuing north along the eastern boundary of Halsey Boulevard to the northeast corner of the intersection of Halsey Boulevard and Bull Street; thence running east along the northern boundary of Bull Street to the northwest corner of the intersection of Bull and Barre Streets; thence running north along the western boundary of Barre Street to the northwest corner of the intersection of Barre and Bennett Streets; thence running east to the northeast corner of the intersection of Barre and Bennett Streets;

thence running north along the eastern boundary of Barre Street to the southeast corner of the intersection of Barre and Calhoun Streets.

(4) That area of the City of Charleston more commonly known as the Radcliffeborough Neighborhood, designated as Residential Parking District D, more fully shown on the attached map, marked as Exhibit D, and incorporated by reference, said area of the City of Charleston commencing at the intersection of Ashley Avenue and Bee Street and running from the western side of Ashley Avenue in an easterly direction along the southern side of Bee Street to the intersection of Bee Street and Rutledge Avenue; thence turning and running in a northerly direction along the eastern side of Rutledge Avenue to the intersection of Rutledge Avenue and Morris Street; thence running in an easterly direction along the southern side of Morris Street to the intersection of Morris Street and St. Philip Street; thence turning and running in a southerly direction along the eastern side of St. Philip Street to the intersection of St. Philip Street and Radcliffe Street; thence turning and running in an easterly direction along the northern side of Radcliffe Street to the intersection of Radcliffe Street and King Street; thence turning and running in a southerly direction along the western side of King Street to the southern side of Radcliffe Street; thence turning and running in a westerly direction along the southern side of Radcliffe Street to the intersection of Radcliffe Street and St. Philip Street; thence turning and running in a southerly direction along the eastern side of St. Philip Street to the intersection of Warren Street and St. Philip Street; thence turning and running in an easterly direction along the northern side of Warren Street to the intersection of Warren Street and King Street; thence turning and running in a southerly direction along the western side of King Street to the southern side of Warren Street; thence turning and running in a westerly direction along the southern side of Warren Street to the intersection of Warren Street and Coming Street; thence turning and running in a southerly direction along the

eastern side of Coming Street to the intersection of Coming Street and Vanderhorst Street; thence turning and running in an easterly direction along the northern side of Vanderhorst Street to the intersection of Vanderhorst Street and King Street; thence turning and running in a southerly direction along the western side of King Street to the southern side of Vanderhorst Street; thence turning and running in a westerly direction along the southern side of Vanderhorst Street to the intersection of Vanderhorst Street and Coming Street; thence turning and running in a southerly direction along the eastern side of Coming Street to the intersection of Coming Street and Calhoun Street; thence turning and running in a westerly direction along the centerline of Calhoun Street to the intersection of Calhoun Street and Smith Street; thence turning and running in a northerly direction to the western side of Smith Street; thence turning and running in a westerly direction along the northern side of Calhoun Street to the intersection of Calhoun Street and Ashley Avenue; thence turning and running in a northerly direction along the western side of Ashley Avenue to the point of beginning.

(5) That area of the City of Charleston more commonly known as the Ansonborough Neighborhood, designated as Residential Parking District E, more fully shown on the attached map, marked as Exhibit E, and incorporated herein by reference, said area in the City of Charleston bounded to the north by the southern boundary of the right-of-way of George Street from Meeting Street to the commissioners of public works' property, by the northern boundary of the right-of-way of George Street from the commissioners of public works' property to Anson Street, and the southern boundary of the right-of-way of George Street from Anson Street to East Bay Street; to the east by the western boundary of the right-of-way of East Bay Street from George Street to Hasell Street, the eastern property line of 35 Hasell Street and 1 Motley Lane, and the eastern boundary of the right-of-way of Anson Street from Motley Lane to Guignard Street; to the south by Hasell Street from East Bay Street to 35 Hasell Street,

the southern property line of 1 Motley Lane, the eastern and northern boundaries of the right-of-way of Motley Lane from 1 Motley Lane to Anson Street, the centerline of Pinckney Street from Anson Street to Maiden Lane, and Hasell Street from Maiden Lane to Meeting Street; to the west by the centerline of Anson Street from Guignard Street to Pinckney Street, the western boundary of the right-of-way of Maiden Lane from Pinckney Street to Hasell Street and the eastern boundary of the right-of-way of Meeting Street to George Street. Also, the entire rights-of-way of Menotti Street and George Burges Lane.

(6) That area of the City of Charleston more commonly known as the Garden District Neighborhood, designated as Residential Parking District F, more fully shown on the attached map, marked as Exhibit F, and incorporated herein by reference, said area in the City of Charleston bounded to the north by the northern boundary of the right-of-way of Mary Street beginning at Meeting Street then running east to the western boundary of America Street; then running south along the western boundary of America Street to the northern boundary of Chapel Street; then running east along the northern boundary of Chapel Street to East Bay Street; then running south along the western boundary of East Bay Street to Calhoun Street; then running west along the northern boundary of Calhoun Street to the northwest corner of the intersection of Elizabeth and Calhoun Streets; then crossing diagonally to the southeast corner of the intersection of Anson and Calhoun Streets; then running west along the southern boundary of Calhoun Street to the southeast corner of the intersection of Calhoun and Meeting Streets; then running north along the eastern boundary of Meeting Street.

(7) That area of the City of Charleston more commonly known as the Gadsden Green Neighborhood, designated as Residential Parking District G, more fully shown on the attached map, marked as Exhibit G, and incorporated herein by reference, said area in the City of Charleston

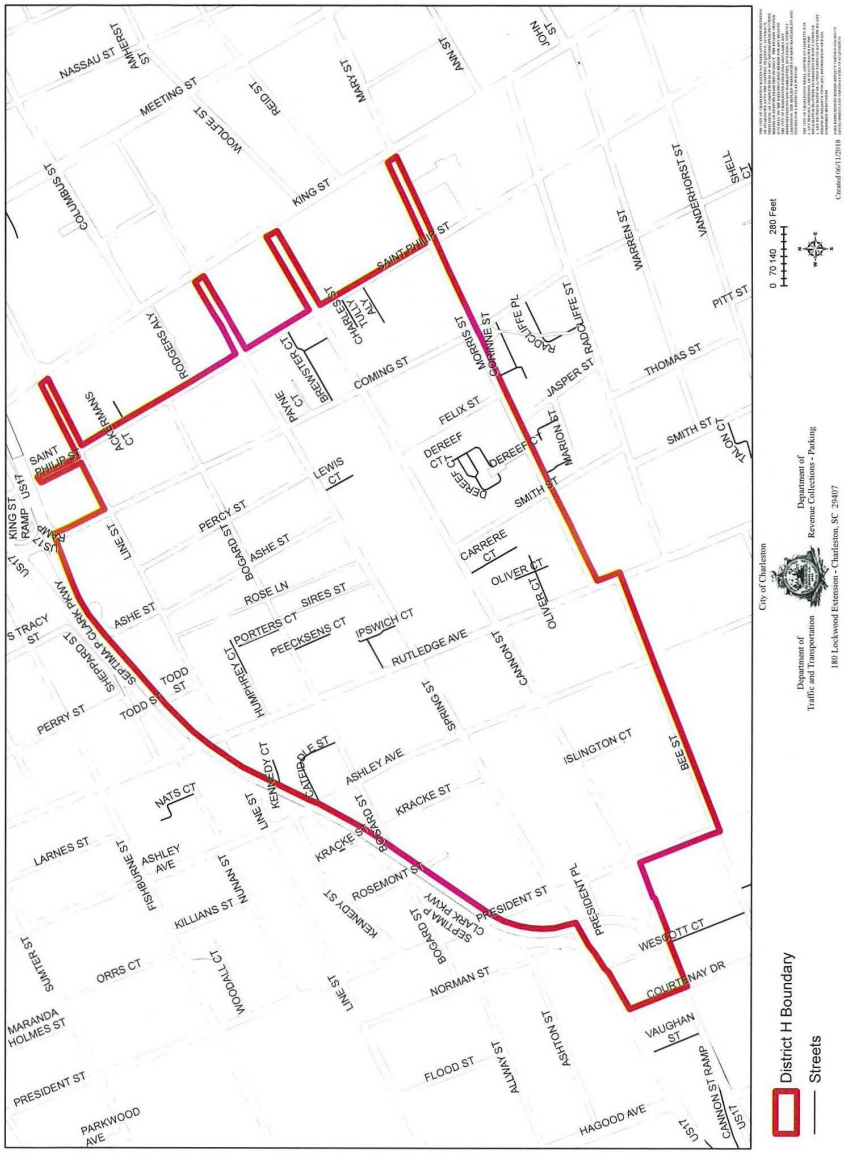
bounded to the north by the southern boundary of the right-of-way of Line Street from Hagood Avenue to Flood Street, and the southern boundary of the right-of-way of Allway Street from Flood Street to Norman Street; to the east by the western boundary of the right-of-way of Flood Street from Line Street to Allway Street and the western boundary of the right-of-way of Norman Street from Allway Street to Spring Street; to the south by the northern boundary of the right-of-way of Spring Street from Norman Street to Hagood Avenue; and to the west by the centerline of Hagood Avenue from Spring Street to Line Street.

(8) That area in the City of Charleston more commonly known as the Cannonborough/Elliotsborough Neighborhood, designated as Residential Parking District H, more fully shown on the attached map, marked as Exhibit H, and incorporated herein by reference, said area in the City of Charleston commencing at the intersection of Spring Street and Wescott Street; thence turning and running in an easterly-northeasterly direction along the southern side of Spring Street a/k/a U. S. Highway 17 to the intersection of U. S. Highway 17 and the eastern side of Coming Street; thence turning and running in a southerly direction along the eastern side of Coming Street to the intersection of Coming Street and Line Street; thence turning and running in an easterly direction along the northern side of Line Street to the intersection of Line Street and St. Philip Street; thence turning and running in a northerly direction along the western side of St. Philip Street to the point where St. Philip Street dead ends; thence turning and running in a southerly direction along the eastern side of St. Philip Street to the intersection of St. Philip Street and Line Street; thence turning and running in an easterly direction along the northern side of Line Street to the intersection of Line Street and King Street; thence turning and running in a southerly direction along the western side of King Street to the intersection of King Street and the southern side of Line Street; thence turning and running in a westerly direction along the

southern side of Line Street to the intersection of Line Street and the eastern side of St. Philip Street; thence turning and running in a southerly direction along the eastern side of St. Philip Street to the intersection of St. Philip Street and the northern side of Spring Street; thence turning and running in an easterly direction along the northern side of Spring Street to the intersection of Spring Street and the western side of King Street; thence turning and running in a southerly direction along the western side of King Street; thence turning and running in an westerly direction along the southern side of Spring Street to the intersection of Spring Street and the eastern side of St. Philip Street; thence turning and running in a southerly direction along the eastern side of St. Philip Street to the intersection of St. Philip Street and the northern side of Cannon Street; thence turning and running in an easterly direction along the northern side of Cannon Street to the intersection of Cannon Street and the western side of King Street; thence turning and running in a southerly direction along the western side of King Street; thence turning and running in a westerly direction along the southern side of Cannon Street to the intersection of Cannon Street and the eastern side of St. Philip Street; thence turning and running in a southerly direction along the eastern side of St. Philip Street to the intersection of St. Philip Street and the northern side of Morris Street; thence turning and running in an easterly direction along the northern side of Morris Street to the intersection of Morris Street and the western side of King Street; thence turning and running in a southerly direction along the western side of King Street to the intersection of King Street and the southern side of Morris Street; thence turning and running in a westerly direction along the southern side of Morris Street to the intersection of Morris Street and the eastern side of Rutledge Avenue; thence turning and running in a southerly direction along the eastern side of Rutledge Avenue to the intersection of Rutledge Avenue and the southern side of Bee Street; thence turning and running in a westerly direc-

tion along the southern side of Bee Street to the intersection of Bee Street and the western side of President Street; thence turning and running in a northerly direction along the western side of President Street to the intersection of President Street and the southern side of Cannon Street; thence turning and running in a westerly direction along the southern side of Cannon Street to the intersection of Cannon Street and the western side of Courtenay Drive; thence turning and running in a northerly direction along the western side of Courtenay Drive to the intersection of Spring Street; thence turning and running in an easterly direction to the point of beginning at Westcott Street.

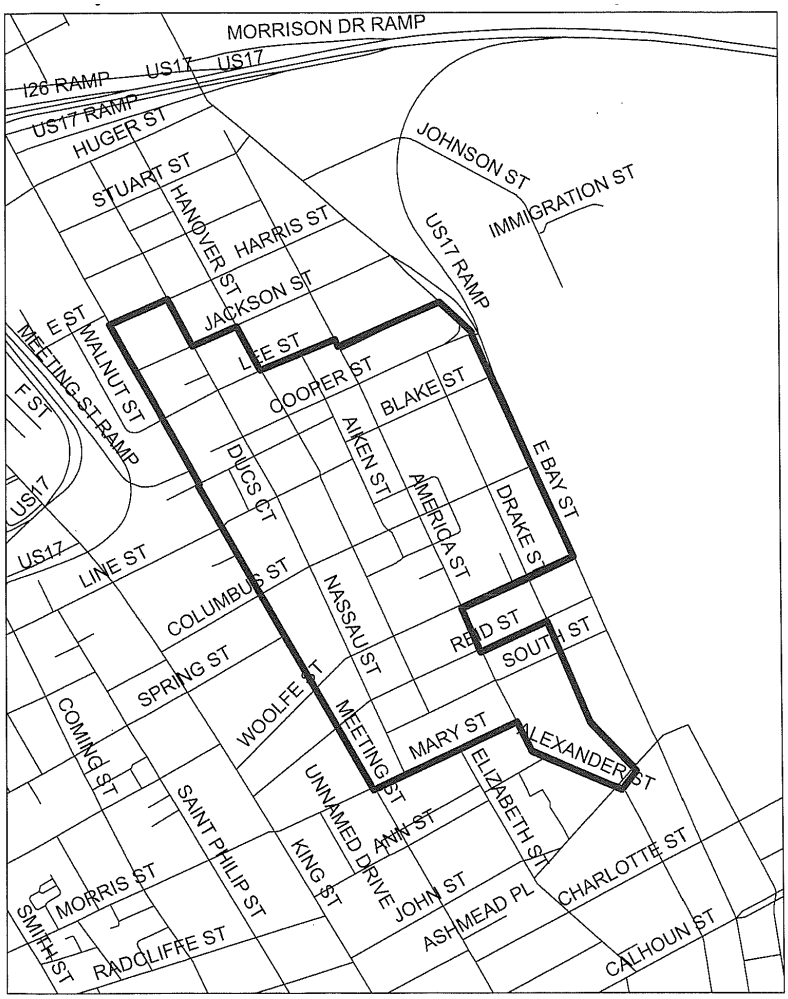
City of Charleston - Peninsula Residential Parking District H



(9) That area of the City of Charleston more commonly known as the Eastside Neighborhood, designated as Residential Parking District 1, more fully shown on the attached map, marked as Exhibit I, and incorporated herein by reference, said area in the City of Charleston commencing at the intersection of East Bay Street and Grace Bridge Street and running along the northern side of Grace Bridge Street in a westerly direction to the end of Grace Bridge Street; thence turning in a northerly direction along the eastern side of America Street to the intersection of America Street and Lee Street; thence turning and running in a westerly direction along the northerly side of Lee Street to the intersection of Lee Street and Hanover Street; thence turning and running in a northerly direction on the westerly side of Hanover Street to the intersection of Hanover and Jackson Streets; thence turning and running in a westerly direction on the southern side of Jackson Street to the intersection of Nassau and Jackson Streets; thence turning and running in a northerly direction on the westerly side of Nassau Street to the intersection of Nassau Street and Harris Street; thence turning and running in an westerly direction on the southerly side of Harris Street to the intersection of Harris Street and Meeting Street; thence turning in a southerly direction along the easterly side of Meeting Street to the intersection of Meeting Street and Mary Street; thence turning and running in an easterly direction on the northerly side of Mary Street to the intersection of Mary Street and Alexander Street; thence turning in a southerly direction on the westerly side of Alexander Street to the intersection of Alexander Street and Chapel Street; thence turning in an easterly direction on the northerly side of Chapel Street to the intersection of Chapel and Drake Streets; thence turning in a northerly direction by the centerline on Drake Street to the intersection of Reid Street; thence turning westerly by the centerline of Reid Street to the intersection of America Street; thence turning in an northerly direction along the eastern side of America Street to the intersection of Amherst Street;

thence turning in an easterly direction on the southern side of Amherst Street to the intersection of East Bay Street; thence turning in an northerly direction along the western side of East Bay to the beginning at Grace Bridge Street.

City of Charleston - Peninsula Residential District I



(10) That area of the City of Charleston more commonly known as the Hampton Park Terrace Neighborhood, designated as Residential Parking District J, more fully shown on the attached map, marked as Exhibit A, and incorporated herein by reference, said area in the city bounded to the west by the centerline of Hagood Avenue between Congress Street and Huger Street, the northern boundary by the centerline of Huger Street from Hagood Avenue to Elmwood Avenue, the western boundary by the centerline of Elmwood Avenue from Huger Street Moultrie Street, the northern boundary by the centerline of Moultrie Street from Elmwood Avenue to Rutledge Avenue, the eastern boundary by the centerline of Rutledge Avenue from Moultrie Street to Congress Street, and the southern boundary by the centerline of Congress Street from Rutledge Avenue to Hagood Avenue.

(Code 1975, § 33-208; Ord. No. 1980-126, § 1, 11-11-80; Ord. No. 1981-13, § 1, 3-31-81; Ord. No. 1981-19, § 1, 4-21-81; Ord. No. 1981-59, § 1, 9-8-81; Ord. No. 1982-34, § 1, 4-27-82; Ord. No. 1982-47, § 1, 5-25-82; Ord. No. 1983-40, § 1, 8-16-83; Ord. No. 1984-69, § 1, 6-26-84; Ord. No. 1984-155, § 1, 10-30-84; Ord. No. 1985-38, § 1, 3-12-85; Ord. No. 1986-27, § 1, 4-29-86; Ord. No. 1987-151, § 1, 9-8-87; Ord. No. 1987-152, § 1, 9-8-87; Ord. No. 1987-161, § 1, 9-22-87; Ord. No. 1988-32, § 1, 4-26-88; Ord. No. 1988-105, § 1, 10-27-88; Ord. No. 1991-57, § 1, 5-28-91; Ord. No. 1992-48, § 1, 4-28-92; Ord. No. 1993-278, § 1, 8-10-93; Ord. No. 1993-417, § 1, 12-7-93; Ord. No. 1994-344, § 1, 10-25-94; Ord. No. 1994-421, § 1, 12-6-94; Ord. No. 1995-115, § 1, 3-28-95; Ord. No. 1996-80, § 1, 4-23-96; Ord. No. 1996-185, § 1, 10-15-96; Ord. No. 1999-51, § 1, 4-27-99; Ord. No. 2000-56, § 1, 4-25-00; Ord. No. 2000-57, § 1, 4-25-00; Ord. No. 2002-101, § 1, 9-10-02; 2002-139, §§ 1—9, 12-20-02; Ord. No. 2006-169, § 1, 5-2-06; Ord. No. 2010-234, § 1, 10-12-10; Ord. No. 2011-282, § 1, 12-6-11; Ord. No. 2013-73, § 1, 8-21-13; Ord. No. 2014-119, § 1, 9-9-14; Ord. No. 2015-082, § 1, 7-21-15; Ord. No. 2017-004, § 1, 1-24-17; Ord. No. 2018-088, § 1, 7-17-18; Ord. No. 2021-073, § 1, 5-25-21)

Sec. 19-278. Parking limitations in districts.

Upon designation by council of a permit parking district, the director of traffic and transportation shall designate within the

district an adequate number of on-street parking spaces to reasonably ensure sufficient parking to residents of the district. In such district, appropriate signs giving notice of the designation of the district as a permit parking district will be posted restricting all parking beyond the time specified on such signs, except parking by the holders of permits for that district granted under this division.
(Code 1975, § 33-201; Ord. No. 1979-49, § 1, 8-21-79)

Sec. 19-279. Obedience to parking regulations.

No such permit shall entitle a vehicle to park on yellow lines, bus stops, loading zones, fire hydrants, or other prohibited zones, nor shall such vehicle be exempt from regulations governing the use of metered spaces.
(Code 1975, § 33-204; Ord. No. 1979-49, § 1, 8-21-79)

Sec. 19-280. Parking permit violations.

(a) It shall be unlawful for any person to:

(1) Provide false information on an application for a permit;

(2) Reproduce a parking permit:

(3) Transfer a permit to any vehicle other than the one designated on the original application unless a new application has been submitted to the parking ticket revenue collections division containing the amended information; or

(4) Display an unauthorized decal.

(b) Any person who violates the provisions of this subsection shall be subject to a penalty of one hundred dollars ($100.00).
(Ord. No. 2017-134, § 7, 10-24-17)

Secs. 19-281—19-290. Reserved.

DIVISION 4. TRAFFIC CITATIONS

Sec. 19-291. Issuance of traffic citations.

A police officer or parking enforcement officer finding any vehicle parked, standing or stopped in violation of any city ordinance or state law may, in lieu of immediately issuing a summons to its owner or driver, affix in a conspicuous place on said vehicle a traffic citation requiring the owner or driver to post a specified bond within forty-eight (48) hours at a specified location within the city.
(Code 1975, § 33-83)

Sec. 19-292. Consequences of failure to comply with parking citation.

(a) The parking citation authorized by section 19-291 shall contain a warning that if the fine required by the citation is not posted within thirty (30) days, it shall be increased by an additional specified amount and that failure to comply with the requirements of the citation shall result in the issuance of a summons.

(b) Any vehicle parked on any street or other public property, whether in an authorized or unauthorized zone, which is found to be the subject of forty-five dollars ($45.00) or more past due on outstanding parking citations is hereby declared to be a public nuisance. The fee for immobilization and impoundment shall be that amount set forth by city council, as amended from time to time.

(c) Any vehicle identified as a public nuisance may be impounded and/or immobilized by the city. The city may also give authorization to a commercial towing or wrecker service to tow the vehicle away to store in a safe place until claimed by the owner. The fee for immobilization and impoundment shall be that amount set forth by city council, as amended from time to time.

(d) Unless an approved payment agreement has been signed by all parties, no vehicle shall be released to the owner until all outstanding parking citation charges, as well as towing and

storage charges or booting charges and missing equipment costs, are paid and until satisfactory proof of ownership has been demonstrated.
(Code 1975, § 33-84; Ord. No. 1977-9, § 1, 2-22-77; Ord. No. 2013-41, § 1, 4-23-13; Ord. No. 2016-027, § 3, 2-9-16)

Sec. 19-293. Restrictions on cancellation or solicitation of cancellation of traffic citation or summons.

No person shall cancel or solicit the cancellation of any traffic citation or summons. The judge or associate judge of the municipal court shall have sole authority to cancel, void or dismiss any traffic citation or traffic summons.
(Code 1975, § 33-85)

Secs. 19-294—19-305. Reserved.

ARTICLE IX. RESERVED*

Secs. 19-306—19-350. Reserved.

ARTICLE X. PEDESTRIANS

Sec. 19-351. Obedience of pedestrians to bridge and railroad signals.

(a) No pedestrian shall enter or remain on any bridge or approach thereto beyond the bridge signal, gate or barrier after a bridge operation signal indication has been given.

(b) No pedestrian shall pass through, around, over or under any crossing gate or barrier at a railroad grade crossing or bridge while such gate or barrier is closed or is being opened or closed.
(Code 1975, § 33-87)

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*__Editor's note—__Ord. No. 2021-107, § 1, adopted July 29, 2021, repealed former Art. IX, Divs. 1, 2, in its entirety. Former Art. IX pertained to the permitting and regulation of parades and derived from Code of 1975, §§ 33-180—33-196; Ord. No. 2005-606, § 1, 10-18-05; Ord. No. 2018-089, § 2, 7-17-18.

Sec. 19-352. Climbing upon or jumping off bridges prohibited.

(a) It is unlawful for any person to jump off of any bridge located within the city.

(b) It is unlawful for any person to climb under, on or around the superstructure of any bridge located within the city.

(c) It is unlawful to sit upon the superstructure of any bridge located within the city.

(d) Nothing in this section shall prohibit the walking or stopping upon any walkway or sidewalk provided for the public on any bridge located within the city, or the permitted construction or repair of any bridge located within the city.

(e) For purposes of this section, "bridge" means a crossing, structure, or any part thereof, built over a lake, river, stream, railroad, highway or street for the passage of vehicles, bicycles or pedestrians.
(Ord. No. 2024-139, § 1, 9-10-24)

Secs. 19-353—19-365. Reserved.

ARTICLE XI. TRAFFIC-CONTROL SIGNS, SIGNALS AND MARKINGS*

Sec. 19-366. Traffic-control signal legend.

Whenever traffic is controlled by traffic-control signals exhibiting different colored lights successively one at a time or with arrows, the following colors only shall be used, and such lights shall indicate and apply to drivers of vehicles and pedestrians as follows:

(1) Green alone means that:

a. Vehicular traffic facing the signal may proceed straight through or turn right or left unless a sign at such place prohibits either such turn, but vehicular

*__State law reference—__Local traffic-control devices generally, S.C. Code 1976, § 56-5-910.

traffic, including vehicles turning right or left, shall yield the right-of-way to other vehicles and to pedestrians lawfully within the intersection or an adjacent crosswalk at the time such signal is exhibited, and

b. Vehicular traffic facing a green arrow signal shown alone or in combination with another indication may cautiously enter the intersection only to make the movement indicated by such arrow, or such other movement as is permitted by other indications shown at the same time. Such vehicular traffic shall yield the right-of-way to pedestrians lawfully within an adjacent crosswalk and to other traffic lawfully using the intersection, and

c. Pedestrians facing the signal may proceed across the roadway within any marked or unmarked crosswalk.

(2) Yellow alone when shown following the green signal or in combination with the green signal means that:

a. Vehicular traffic facing the signal is thereby warned that the red or stop signal will be exhibited immediately thereafter and such vehicular traffic shall not enter or be crossing the intersection when the red or stop signal is exhibited, and

b. Pedestrians facing such signal are thereby advised that there is insufficient time to cross the roadway and any pedestrian then starting to cross shall yield the right-of-way to all vehicles.

(3) Red alone means that:

a. Vehicular traffic facing the signal shall stop before entering the crosswalk on the near side of the intersection or, if none, then before entering the intersection and shall remain stopped until an indication to proceed is shown, except that when a sign is in place at the intersection permitting a right turn, vehicular traffic facing a steady red signal may cautiously enter the intersection to

make the turn indicated by such sign after stopping. Such vehicular traffic shall yield the right-of-way to pedestrians lawfully within an adjacent crosswalk and to other traffic lawfully using the intersection, and

b. No pedestrian facing such signal shall enter the roadway unless he can do so safely and without interfering with any vehicular traffic.

(4) Red with green arrow means that:

a. Vehicular traffic facing such signal may cautiously enter the intersection only to make the movement indicated by such arrow but shall yield the right-of-way to pedestrians lawfully within a crosswalk and to other traffic lawfully using the intersection, and

b. No pedestrian facing such signal shall enter the roadway unless he can do so safely and without interfering with any vehicular traffic.

(Code 1975, § 33-22)

State law reference—Similar state law, S.C. Code 1976, § 56-5-970.

Sec. 19-367. Unauthorized painting or marking of street or sidewalk.

No unauthorized person shall paint or mark any sidewalk, curb or roadway.
(Code 1975, § 33-26)

Sec. 19-368. Offense of disregarding a traffic control sign on a restricted street.

It shall be unlawful for any person to operate a truck or other commercial vehicle having an overall length of more than twenty (20) feet that is engaged in making a commercial delivery or pick up of goods, products, equipment or personal property on any street marked with signage stating "No Trucks Except Local Delivery."

This provision shall not apply to any such truck or commercial vehicle making a commercial delivery or pick up to a physical location on any such restricted street, provided that the operator of such commercial vehicle can show documents or other evidence of the need to make a delivery on a restricted street and there is no alternative route available for such delivery.
(Ord. No. 2003-108, § 1, 11-12-03)

Secs. 19-369—19-380. Reserved.

ARTICLE XII. VEHICLE EQUIPMENT AND CONDITION

DIVISION 1. GENERALLY

Sec. 19-381. Safe loading and construction required.

No one shall drive a vehicle which is so loaded or constructed as to cause delay, accident or injury to any other vehicle or users of the public streets.
(Code 1975, § 33-113)

Sec. 19-382. Lighting equipment.

Every vehicle shall be equipped with and display such lamps and reflectors as may be required by state law.
(Code 1975, § 33-14)

State law reference—Lights on motor vehicles, S.C. Code 1976, §§ 56-5-4480—56-5-4690.

Sec. 19-383. Brakes.

Every vehicle shall be equipped with such brakes as may be required by state law.
(Code 1975, § 33-116)

State law reference—Brakes, S.C. Code 1976, §§ 56-5-4850—56-5-4900.

Sec. 19-384. Horns required.

All motor vehicles shall be provided at all times with a suitable horn, the signal of which shall not conflict with the signal device used by the fire department, police department, and other emergency vehicles and ambulances, and shall comply with state law.
(Code 1975, § 33-117)

State law reference—Horns, sirens, etc., S.C. Code 1976, §§ 56-5-4950—56-5-4980.

Sec. 19-385. Siren, exhaust and compression whistles prohibited.

Sirens or exhaust and motor compression whistles or bells shall be unlawful on motor vehicles.
(Code 1975, § 33-118)

Secs. 19-386—19-390. Reserved.

DIVISION 2. SIZE, WEIGHT AND LOAD*

Sec. 19-391. Weight of vehicles.

No vehicles operated on the streets of this city shall exceed in gross weight the maximum allowances applicable to such vehicle under Article 33, Chapter 5, Title 56 of the Code of Laws of South Carolina, as amended.
(Code 1975, § 33-122)

Sec. 19-392. Permit for excess size or weight or other nonconforming acts.

(a) The city engineer may, in his discretion, upon application in writing and good cause being shown therefor to the effect that it is in the public interest, issue special written permits authorizing applicants to operate or move vehicles or combinations of vehicles of a size and weight exceeding the maximum specified in this article upon any city street. The application shall specifically describe the vehicle and load and the particular streets involved. For good cause, the city engineer may reject such application, or may limit or prescribe conditions of operation, and may require such undertaking, insurance or other security as he may deem necessary to compensate for injury to any street or road structure or for personal injury or property damages to persons and vehicles operating on such streets.

(b) Every such permit shall be carried in the vehicle or combination of vehicles to which it refers and shall be open to inspection by any police officer or other officer of the city. A person violating any terms or conditions of the permit shall be punished, upon conviction, as provided in section 1-16.
(Code 1975, § 33-123)

Cross reference—Licenses, permits and miscellaneous business regulations, Ch. 17.

***State law reference—**Size, weight and load, S.C. Code 1976, §§ 56-5-4010—56-5-4230.

Sec. 19-393. Vehicles in tow.

All vehicles having another in tow must display a red flag in the day and a red light at night, both front and rear, and the tow line must not exceed fifteen (15) feet in length.
(Code 1975, § 33-124)

ARTICLE XIII. NONCONSENSUAL TOWING OF VEHICLES

Sec. 19-394. Findings of council.

City council finds in many instances when a vehicle is towed from private property without the owners knowledge or consent that vehicle owners are at the complete mercy of the tow truck operators and as such, are subjected to instances of price gouging and other overly stringent requirements for the return of their vehicles.

City council finds that due to the unique parking arrangements in some downtown parking lots where city staff operates parking lots on leased private land many citizens and visitors alike are frequently confused over which lots are private or public; and

City council finds that there is often inadequate signage, indicating the times when a car may be towed or of the price of a nonconsensual tow thereby inadequately apprising the public of the maximum risks of imprudent parking; and

City council finds that owners or operators of towed vehicles believe their cars have been stolen and that the police department must respond, and to release their cars, usually late at night, owners must go to one location to pay for the cost of towing and another location to actually take possession of their cars. Car owners or operators can only retrieve their cars after paying cash. This scenario coupled with storage sites that are located on the outskirts of the city and in desolate locations tend to place the reluctant patrons in a dangerous situation; and

Further, city council intends to exercise its police powers to ensure that the public security, general welfare, health and order of the city are adequately protected from price gouging and unscrupulous towing carriers.
(Ord. No. 1997-116, § 1, 3-25-97)

Sec. 19-395. Definitions.

Commercial property means any real property where the primary use is for office, retail, wholesale, restaurant, education, or service for hire uses and where parking is available for property owners, occupants, or their patrons, clients, or customers. The term also applies to parking lots for which hourly or other periodic charges are made for the right to park on the premises, regardless of whether there are structures on the property. The term does not include property having primarily a residential use, with the exception of multiple dwelling units.

Deliver means placing a towed motor vehicle in the actual possession of the owner, authorized operator, or authorized agent of the owner.

Motor vehicle means any motorized vehicle which is capable of moving on the public ways of the City of Charleston.

Nonconsensual tow means a tow authorized or directed by a person other than the vehicle owner, authorized operator, or authorized agent of the owner. A nonconsensual tow includes, but is not limited to: (1) a private property tow; (2) any tow performed contrary to the specific direction of the vehicle owner, authorized operator, or authorized agent of the owner; or (3) any tow performed without disclosure of the rates and charges to be assessed. This definition shall not apply to nonconsensual tows that occur as a result of a vehicle repossession by a lien holder having title to the vehicle.

Private property tow means the towing of a motor vehicle from private property at the request of the property owner.

Towing carrier means any person, company, partnership, employees, engaged in the business of towing vehicles.
(Ord. No. 1997-116, § 1, 3-25-97; Ord. No. 1997-161, § 1, 5-13-97; Ord. No. 2008-121, § 1, 9-9-08)

Sec. 19-396. Towing permit required.

(a) No towing carrier engaged in the business of performing nonconsensual tows shall operate within the corporate limits of the city without obtaining a towing permit from the department of traffic and transportation. The application for a permit shall contain the following information:

(1) The name and complete street address, city, state, zip code, and telephone number of the applicant, and the trade name under which the operation shall be conducted. A post office box is acceptable as an address so long as a physical address is also provided:

a. If the applicant is a corporation:

1. A statement of that fact and the name of the state in which it is incorporated;

2. The location of its principal office in the State of South Carolina and the names of its directors and officers;

3. A copy of its articles of incorporation or charter; and

4. A copy of its certificate of assumed trade name, if any.

b. If the applicant is a limited liability company, the name, title, and business address of each member.

c. If the applicant is a partnership, the name, title, and business address of each partner.

(2) A list with a complete description of the equipment to be operated.

(3) A statement that applicant is familiar with the rules contained in this article and will comply with them.

(4) A statement whether or not the towing carrier will provide storage for towed motor vehicles. If storage is provided, a complete address and phone number, if any, and description of the storage facilities shall be included.

(5) Every application must be signed by the applicant or its attorney or agent with the complete address and telephone number of the attorney or agent.

(6) A statement acknowledging the books and records concerning the towing and storage operations of any towing carrier shall be made available upon request during normal business hours to authorized personnel of the department of traffic and transportation.

(7) Certificates of insurance, from an insurer authorized to do business in the State of South Carolina, establishing proof of garage liability coverage of no less than one hundred thousand dollars ($100,000.00). Further, towing carriers shall provide proof of garage keepers liability insurance covering customer's vehicles in an amount no less than fifty thousand dollars ($50,000.00) dollars per vehicle.

(8) All written authorization(s), if applicable, indicating the properties or lots from which the towing carrier is authorized to conduct nonconsensual tows.

(b) A towing carrier who operates in violation of this section shall be subject to a fine not exceeding five hundred dollars ($500.00), or serve a term not exceeding thirty (30) days in jail, or both.

(c) The cost of the permit shall be ten dollars ($10.00) per tow truck or as otherwise set by city council from time to time. This license shall be renewable on February 1st of every year at the same rate of ten dollars ($10.00) per year. Any license under this article may be denied, suspended or revoked for violating any section of this chapter or Code.
(Ord. No. 1997-116, § 1, 3-25-97; Ord. No. 1997-161, § 1, 5-13-97; Ord. No. 2004-05, § 3, 2-13-04)

Sec. 19-397. Tow record/invoice.

Towing carriers shall use a tow record/invoice form for all non-consensual tows, which form shall contain the information shown in Appendix A to Ord. No. 1997-116. Towing carriers shall complete all applicable portions of the tow record/invoice form for

each nonconsensual tow. The tow record/invoice shall be a multiple copy form, the copies of which shall be distributed as follows: The towing carrier shall retain the copy bearing all required original signatures for authorization and delivery. The towing carrier shall deliver a copy to the vehicle owner, authorized operator, or authorized agent of the owner at the time of delivery of the towed motor vehicle and payment of towing charges.
(Ord. No. 1997-116, § 1, 3-25-97)

Editor's note—Editor's note—Appendix A to Ord. No. 1997-116 provides as follows:

Tow Record/Invoices:

The tow record/invoice shall contain at least the following information:

Serial number of the tow record/invoice.

Name, address, permit number, and telephone number of towing carrier.

Address of storage facility used by towing carrier, including any different telephone number.

Date and time of commencement of towing and of completion, time of arrival on scene if different.

Make, model, and year of the motor vehicle towed, and license plate number and/or vehicle identification number.

Original address of the tow, destination address.

Name, address, and telephone number of person authorizing tow, and including signature if a private property tow, unless a written authorization is on file.

Unit number or license number of the towing vehicle and signature of towing vehicle operator.

Itemized invoice of all towing charges assessed.

Sec. 19-398. Marking of towing vehicles.

No towing carrier shall operate any tow truck, owned or leased, upon the public ways of the City of Charleston without first marking or affixing, in a permanent manner, on each side of the tow truck, the towing carrier's name, address and telephone number, which markings shall also comply with applicable safety regulations. The use of magnetic signs are prohibited.
(Ord. No. 1997-116, § 1, 3-25-97)

Sec. 19-399. Towing from private property.

(a) It shall be unlawful to charge for the removal of any motor vehicle from commercial property without authorization from the owner of the motor vehicle or of the city, except under the following circumstances.

(1) The property owner has posted the property with signs. Each sign face shall be at least six (6) square feet.

(2) The posted signs were in place, clearly visible and legible to any driver approaching any point of ingress to the property where parking is prohibited or restricted at the time the vehicle was parked; and

(3) The posted signs contain a clear warning that violators' vehicles will be towed, at the vehicle owner's expense, the telephone number to call and the address where release of the towed vehicle may be obtained.

(4) All signage must be approved by the director of the department of traffic and transportation.

(5) The signage requirements in this article are exempt from the requirements for signage contained in the City of Charleston Zoning Ordinance; the requirements in this article shall prevail.

(b) The owner of the vehicle towed from commercially zoned private property shall be responsible for paying all applicable towing and storage charges provided that the private property owner has complied with all of the requirements contained in subsection (a) above. If a vehicle is towed as a result of a property owner's request and the property owner has not complied with the requirements of subsection (a) above, or if the vehicle is shown to have been legally parked, the property owner shall be guilty of a misdemeanor and may, in the discretion of the municipal judge as provided in S.C. Code 1976, § 14-25-75, be subject to reimburse the owner of the vehicle for all towing and storage charges which the owner of the vehicle paid.

(c) Before towing a vehicle from commercially zoned private property without authorization from the vehicle owner, the tow truck operator shall obtain from the property owner a written

authorization which shall set forth the name and signature of the property owner, unless, such authorization has been previously filed pursuant to section 19-396(a)(8) above.

(d) Any towing carrier performing a nonconsensual tow, shall within thirty (30) minutes of the removal, telephone the police department to verbally report the tow by providing the applicable information on the tow record/invoice form described in section 19-397 above. Any towing operator which fails to give such notice within one hour of the time the vehicle was towed shall not be entitled to any compensation for the towing and storing operation and shall deliver it upon request.

(e) Any towing carrier performing nonconsensual tows pursuant to Article XIII, Nonconsensual Towing of Vehicles, shall remain staffed and ready to comply with a vehicle owner's request to release his/her vehicle twenty-four (24) hours per day, seven (7) days per week, three hundred sixty-five (365) days per year.
(Ord. No. 1997-116, § 1, 3-25-97; Ord. No. 2008-121, § 2, 9-9-08; Ord. No. 2016-150, § 1, 11-22-16)

Sec. 19-400. Maximum charge for nonconsensual tow.

(a) The maximum rate that may be charged for a nonconsensual tow of a vehicle with a gross vehicle weight rating of less than ten thousand (10,000) pounds shall be two hundred dollars ($200.00), which shall include charges for all services rendered including, but not limited to, hookup fees, gate fees, and all other services rendered in performing such private property low, except as stated elsewhere in this section.

(b) If the owner, authorized operator, or authorized agent of the owner of a motor vehicle which is parked without authorization on private property attempts to retrieve said vehicle before removal of the motor vehicle from said private property, the maximum release fee (drop charge) shall not exceed $100.00. In such circumstances, the owner, authorized operator, or authorized agent of the owner of a motor vehicle so parked may offer payment of the towing carrier's drop charge, and if so offered before removal of the motor vehicle to be towed, the towing

carrier shall immediately accept such payment and immediately thereafter deliver the motor vehicle without further transportation or handling.

(c) If dollies are required and used to perform a nonconsensual tow, the maximum additional amount that may be charged shall be ten dollars ($10.00).

(d) The maximum storage amount that may be charged for a vehicle that has been towed as a result of a nonconsensual tow and that has remained on the tow lot for more than four (4) hours shall be no more than fifteen dollars ($15.00) for the first twenty-four-hour period and twenty-five dollars ($25.00) during any twenty-four-hour period of storage after the vehicle has been on the lot for the first twenty-four (24) hours.

(e) A fee in an amount not to exceed thirty dollars ($30.00) may be charged to cover expenses incurred if the owner and lienholder of the towed vehicle are notified by certified, registered mail of the location of the towed article.

(f) All charges for a nonconsensual tow shall be for services rendered in the towing, storing, or notifying the owner of such vehicles. No towing carrier shall include in its charges any sum of money payable to a third person or entity for any purpose, including, but not limited to. payments to an owner or representative of property from which such vehicles are towed. The inclusion of such sums are declared to be an unfair trade practice.

(g) A towing carrier who violates the terms of this section shall be subject to a fine not exceeding five hundred dollars ($500.00) or serve a term not exceeding thirty (30) days in jail, or both.

(Ord. No. 1997-116, § 1, 3-25-97; Ord. No. 1997-161, § 1, 5-13-97; Ord. No. 2004-05, § 1, 2-13-04; Ord. No. 2007-157, § 1, 8-21-07; Ord. No. 2020-124, § 1, 9-8-2020; Ord. No. 2026-075, § 1, 4-23-26)

Sec. 19-401. Payment methods for nonconsensual tows.

(a) *Required acceptance of payment methods.* All towing service providers, tow truck operators/drivers, vehicle storage facilities, or any person accepting payment for any non-consensual tow originating within the corporate limits of the city shall accept payment by:

(1) Major credit cards;

(2) United States currency (cash); and

(3) Mobile payment applications.

(b) *Prohibition on additional fees.* No towing service provider, tow truck operator/driver, vehicle storage facility, or any person accepting payment of any non-consensual tow originating within the corporate limits of the city shall impose any additional fee, surcharge, or increased price as a condition of accepting payment by credit card or mobile payment application.

(c) *Receipt requirement.* Acceptance of payment by mobile payment application, credit card, or cash shall not relieve a towing service provider, tow truck operator/driver, vehicle storage facility, or any person accepting payment of any non-consensual tow originating within the corporate limits of the city of the obligation to provide the payor with an itemized receipt at the time the vehicle is delivered as pursuant to section 19-397, tow record/invoice.

(d) *Enforcement.* Any company or person who is found guilty of violating the terms of this section shall be subject to a fine of up to five hundred dollars ($500.00) or serve a term not exceeding thirty (30) days in jail, or both.
(Ord. No. 1997-116, § 1, 3-25-97; Ord. No. 2026-075, § 1, 4-23-26)

Sec. 19-402. Signage required at place of payment.

Every entity performing nonconsensual tows shall have affixed in a prominent place, clearly visible to patrons retrieving towed vehicles a sign provided by the City of Charleston outlining the maximum fees and required methods of payment.
(Ord. No. 2007-157, § 3, 8-21-07)

Sec. 19-403. Severability.

If any section, subsection, sentence, clause, phrase, word or any other part of this article shall be declared unconstitutional or invalid by a court of competent authority, then the remainder of this ordinance shall not be affected and shall remain in full force and effect.
(Ord. No. 1997-116, § 1, 3-25-97; Ord. No. 2007-157, § 2, 8-21-07)

Note—Formerly numbered as § 19-402.

Secs. 19-404—19-413. Reserved.

ARTICLE XIV. VEHICLE IMMOBILIZATION SERVICE

Sec. 19-414. Findings of council.

(a) City council finds in many instances when a vehicle is booted on private property without the owner's knowledge or consent that vehicle owners are at the complete mercy of the

[The next page is 1207]

booting operators and as such, are subjected to instances of price gouging and other overly stringent requirements for the return of their vehicles.

(b) City council finds that due to the unique parking arrangements in some downtown parking lots where city agents operate parking lots on leased private land many citizens and visitors alike are frequently confused over which lots are private or public; and

(c) City council finds that there is often inadequate signage, indicating the times when a car may be booted or of the price of a nonconsensual boot thereby inadequately apprising the public of the maximum risks of imprudent parking; and

(d) Further, city council intends to exercise its police powers to ensure that the public security, general welfare, health and order of the city are adequately protected from price gouging and unscrupulous booting operators.
(Ord. No. 1999-142, § 1, 10-12-99)

Sec. 19-415. Definitions.

Boot operator means any individual or company engaged in the practice of immobilizing vehicles through mechanical devices.

Locking wheel boot or *boot* means a mechanical clamp or device that is professionally manufactured and designed to lock the wheel on a motor vehicle thus immobilizing the vehicle and preventing anyone but the keyholder from removing it.

Motor vehicle means any motorized vehicle which is capable of moving on the public ways of the City of Charleston.

Nonconsensual boot means the booting of a vehicle authorized or directed by a person other than the vehicle owner, authorized operator, or authorized agent of the owner. A nonconsensual boot includes, but is not limited to:

(1) A private property boot;

(2) Any booting performed contrary to the specific direction of the vehicle owner, authorized operator, or authorized agent of the owner; or

(3) Any boot performed without disclosure of the rates and charges to be assessed.

This definition shall not apply to nonconsensual booting that occurs as a result of a vehicle repossession by a lien holder having title to the vehicle.

Private property booting means the booting of a motor vehicle from private property at the request of the property owner.
(Ord. No. 1999-142, § 1, 10-12-99)

Sec. 19-416. Booting license required.

(a) In addition to all other applicable licensing requirements, no person or entity engaged in the business of performing nonconsensual booting shall operate within the corporate limits of the city without first being licensed by the department of traffic and transportation. The application for a license shall contain the following information:

(1) The name and complete street address, city, state, zip code, and telephone number of the applicant, and the trade name under which the operation shall be conducted. A post office box is acceptable as an address so long as a physical address is also provided:

a. If the applicant is a corporation:

1. A statement of that fact and the name of the state in which it is incorporated;

2. The location of its principal office in the State of South Carolina and the names of its directors and officers;

3. A copy of its articles of incorporation or charter; and

4. A copy of its certificate of assumed trade name, if any.

b. If the applicant is a limited liability company, the name, title, and business address of each member.

c. If the applicant is a partnership, the name, title, and business address of each partner.

(2) A list with a complete description of the equipment to be operated.

(3) A statement that applicant is familiar with the rules contained in this article and will comply with them.

(4) Every application must be signed by the applicant or its attorney or agent with the complete address and telephone number of the attorney or agent.

(5) A statement acknowledging the books and records concerning the booting operations of any booting operator shall be made available upon request during normal business hours to authorized personnel of the city.

(6) Certificates of insurance, from an insurer authorized to do business in the State of South Carolina, establishing proof of liability coverage of no less than one hundred thousand dollars ($100,000.00).

(7) All written authorization(s), if applicable, indicating the properties or lots from which the booting operator is authorized to conduct nonconsensual booting.

(b) A booting operator who operates in violation of this section shall be subject to a fine not exceeding five hundred dollars ($500.00), or serve a term not exceeding thirty (30) days in jail, or both.

(c) The cost of the license shall be ten dollars ($10.00) per booting operator or as otherwise set by city council from time to time. This license shall be renewable on September 1 of every year at the same rate of ten dollars ($10.00) per year.

(d) Any license under this article may be denied, suspended or revoked for violating any section of this chapter or Code.
(Ord. No. 1999-142, § 1, 10-12-99)

Sec. 19-417. Boot record/invoice.

Booting operators shall use a booting record/invoice form for all non-consensual booting, which form shall contain the information shown in Appendix A to Ord. No. 1999-142. Booting operators shall complete all applicable portions of the boot record/invoice form for each nonconsensual boot. The boot

record/invoice shall be a multiple copy form, the copies of which shall be distributed as follows: The booting operator shall retain the copy bearing all required original signatures for authorization and delivery. The booting operator shall deliver a copy to the vehicle owner, authorized operator, or authorized agent of the owner at the time of delivery of the booted motor vehicle and payment of booting charges. Further, booting operators shall maintain a time-stamp method of recording all calls pertaining to release of all vehicles.

(Ord. No. 1999-142, § 1, 10-12-99)

Editor's note—Appendix A to Ord. No. 1999-142 has not be set out herein but is available in the office of the clerk of council.

Sec. 19-418. Booting from private property.

(a) It shall be unlawful to boot a vehicle on commercially zoned private property without authorization from the owner of the motor vehicle or of the city, except under the following circumstances:

(1) The property owner has posted the property with signs. Each sign face shall be at least six (6) square feet.

(2) The posted signs were in place, clearly visible and legible to any driver approaching any point of ingress to the property where parking is prohibited or restricted at the time the vehicle was parked; and

(3) The posted signs contain a clear warning that: 1) violators' vehicles will be booted, at the vehicle owner's expense; 2) the telephone number to call for release of the vehicle; 3) that the maximum price for release of the vehicle is fifty dollars ($50.00); and 4) that the booting operator must arrive to release the vehicle within thirty (30) minutes of calling for release of the vehicle or there can be no charge for the release of the vehicle.

(4) All signage must be approved by the director of the department of traffic and transportation.

(5) The signage requirements in this article are exempt from the requirements for signage contained in the City of Charleston Zoning Ordinance; the requirements in this article shall prevail.

(b) The owner of the vehicle booted on commercially zoned private property shall be responsible for paying all applicable booting charges provided that the private property owner has complied with all of the requirements contained in subsection (a) above. If a vehicle is booted as a result of a property owner's request and the property owner has not complied with the requirements of subsection (a) above, or if the vehicle is shown to have been legally parked, the property owner shall be guilty of a misdemeanor and may, in the discretion of the municipal judge as provided in S.C. Code 1976, Section 14-25-75, be subject to reimburse the owner of the vehicle for all booting charges that the owner of the vehicle paid.

(c) Before booting a vehicle on commercially zoned private property without authorization from the vehicle owner, the boot operator shall obtain from the property owner a written authorization which shall set forth the name and signature of the property owner, unless, such authorization has been previously filed pursuant to section 19-416(a)(7) above.
(Ord. No. 1999-142, § 1, 10-12-99; Ord. No. 2006-13, § 1, 1-24-06; Ord. No. 2016-027, § 1, 2-9-16)

Sec. 19-419. Maximum charge for nonconsensual boot.

(a) The maximum rate that may be charged for a nonconsensual boot of a vehicle on commercially zoned private property shall be fifty dollars ($50.00) inclusive of any and all additional fees. Notwithstanding the provisions of any other law, when a vehicle has been booted on commercially zoned private property and subsequently towed from such property, no additional charge may be imposed for the towing of such vehicle.

(b) Immediately upon installing the locking wheel boot, a blaze orange warning decal at least forty-seven (47) square inches in size shall be prominently placed in the center of the drivers side window or on the front windshield directly in front of the vehicle steering wheel. The specific language on the warning sign shall be subject to approval by the director of traffic and transportation and shall clearly and legibly inform the operator of the vehicle that a locking device has been installed on the front wheel of the vehicle and that attempting to

move the vehicle will cause serious damage to the vehicle. This decal shall display the telephone number and address of the licensee. Upon payment of the booting fee, the licensee shall remove the decal and shall have in possession the appropriate materials needed to remove all parts of the decal and residue.

(c) Vehicle immobilization service licensees shall maintain twenty-four (24) hour telephones and wheel locking device removal services, and shall respond to a request to remove a wheel locking device within thirty (30) minutes. If a licensee does not appear to remove the wheel locking device within thirty (30) minutes of a customer request, the locking device shall be removed at no charge. If a licensee fails to appear to remove the wheel locking device within one (1) hour of a customer request the licensee shall be subject to a fine as indicated in subsection (f).

(d) If the owner, authorized operator, or authorized agent of the owner of a motor vehicle that is parked without authorization on private property attempts to retrieve said vehicle before booting actually occurs there shall be no fee and the vehicle owner shall be allowed to remove the vehicle without further delay.

(e) Every boot operator doing business in the corporate limits of the city shall accept major credit cards in addition to cash. There shall be no additional fee charged for the use of credit cards.

(f) A booting operator who violates the terms of this section shall be subject to a fine not exceeding five hundred dollars ($500.00), or serve a term not exceeding thirty (30) days in jail, or both.
(Ord. No. 1999-142, § 1, 10-12-99; Ord. No. 2004-05, § 1, 2-13-04; Ord. No. 2016-027, § 2, 2-9-16)

Sec. 19-420. Severability.

If any section, subsection, sentence, clause, phrase, word or any other part of this article shall be declared unconstitutional

or invalid by a court of competent authority, then the remainder of this ordinance shall not be affected and shall remain in full force and effect.
(Ord. No. 1999-142, § 1, 10-12-99)

Secs. 19-421—19-440. Reserved.

ARTICLE XV. POLITICAL SIGNS IN PUBLIC RIGHTS-OF-WAY

Sec. 19-441. Political signs in public rights-of-way unlawful.

From and after January 1, 1996, it shall be unlawful to place or allow to be placed, a sign promoting a political candidate or party within a state maintained street, highway or right-of-way in the corporate limits of the City of Charleston, or within any right-of-way in the corporate limits of the city that is maintained by the City of Charleston.
(Ord. No. 1995-489, § 1, 10-10-95; Ord. No. 1996-47, § 1, 2-27-96)

Secs. 19-442—19-460. Reserved.

ARTICLE XVI. PEDICABS*

Sec. 19-461. The operation of pedicabs regulated.

(a) City council hereby makes the following findings of fact:

(1) The number of persons using the public streets in the Peninsula Area of the City of Charleston in the recent years has increased dramatically due to an expanded commercial use and the growing tourism industry. As a

*__Editor's note—__Ord. No. 2024-067, § 1, adopted April 23, 2024, repealed the former Art. XVI, §§ 19-461—19-475, and enacted a new Art. XVI as set out herein. The former article pertained to similar subject matter and derived from Ord. No. 2007-137, adopted July 17, 2007; Ord. No. 2011-29, adopted April 12, 2011; Ord. No. 2021-117, adopted Aug. 17, 2021; Ord. No. 2022-038, adopted March 8, 2022.

result, congestion on the streets in the Peninsula Area has increased because of a rise in the number of vehicles and pedestrians using the streets and sidewalks.

(2) Pedicabs pick-up and discharge passengers at numerous locations in the Peninsula Area and tend to congregate at or near restaurants, places of assembly, and the market area. The continued proliferation of pedicabs in the Peninsula Area tends to create a carnival or theme-park atmosphere which is destructive of the historic and traditional ambiance of the Peninsula Area which is substantially made up of Eighteenth and Nineteenth Century structures. Therefore, in order to protect the historic and traditional ambiance of the Peninsula Area, city council finds it necessary to regulate pedicabs operating on the public rights-of-way in the Peninsula Area.

(3) Pedicabs are, by their design and nature, slow moving, and pose a potential danger for those using the vehicles and the streets. The unregulated operation of pedicabs on the streets of the city would add to the congestion in the streets and would greatly inconvenience, if not endanger, users of the streets. As a result, it is in the public interest, and for the public's safety and welfare, that the users of the public rights-of-way be protected from unregulated vehicles which hinder travel or which pose dangers or distractions which give rise to accidents and inconvenience.

(4) The city approved a pedicab pilot program July 20, 2010, authorizing additional pedicab tokens to be distributed for nighttime use. As a result of the token pilot program, city council believes that there is an increasing demand for the use of pedicabs by residents and visitors in the district and that a limited increase in the number of pedicabs permitted in the district is in the public's best interest.

(5) City council further finds, for the same reasons, that electric, oil or gasoline powered pedicabs in operation in the Peninsula Area would not be in the public interest.

(Ord. No. 2024-067, § 1, 4-23-24)

Sec. 19-462. Definitions.

The following words and terms are defined for the purpose of this article only:

Associated entity means a person who, or a subsidiary, parent, or affiliated company that,

(1) Serves as a director or officer of, or has interlocking directors or officers of, more than one (1) owner's partnership, corporation, association, or other organization; or

(2) Owns five (5) percent or more of an ownership interest in more than one (1) owner's partnership, corporation, association, or other organization; or

(3) Receives five (5) percent or more of distribution, profits, or revenue from more than one (1) owner.

Director means the director of traffic and transportation.

General operating decal or *operating decal* is defined as a decal that is securely fastened to a pedicab which allows an owner to operate that particular pedicab at any time in the Peninsula Area.

Nighttime operating decal is defined as a decal that is securely fastened to a pedicab which allows an owner to operate that particular pedicab during the hours of 6:30 p.m. to 3:00 a.m. Monday through Friday, and 5:00 p.m. to 3:00 a.m. on Saturday and Sunday in the Peninsula Area.

Operating decal is defined as a general operating decal or a nighttime operating decal.

Operator is defined as any person who operates, drives, or propels a pedicab.

Owner is defined as any person, partnership, corporation, association, or other organization engaged in the business of transporting persons for hire or any other remuneration by a pedicab with a validly issued operating decal.

Pedicab is defined as a bicycle or other opened or closed vehicle with three (3) or more wheels operated by one (1)

individual for the purpose of, or capable of, transporting passengers in seats or a platform made a part of the pedicab. This definition shall not include a bicycle built for two (2) where the operators are seated one (1) behind the other, nor shall it include the operation of a bicycle with trainer or beginner wheels affixed thereto, nor shall it include a wheelchair or other vehicle with the purpose of operation by or for the transportation of a disabled person, nor shall it include a tricycle built for a child or an adult with a seat for only one (1) operator and no passenger.

Peninsula Area is defined as the area bounded on the north by Mount Pleasant Street, on the east by the Cooper River, on the south by the Battery, and on the west by the Ashley River.
(Ord. No. 2024-067, § 1, 4-23-24)

Sec. 19-463. Operating a pedicab.

(a) No person shall operate a pedicab without an operating decal.

(b) Each operating decal distributed pursuant to this article shall be issued to a specific owner;

(c) Each pedicab added to an owner's fleet after an owner is issued an operating decal is subject to the application process of section 19-467 and proof of insurance requirements of section 19-470.

(d) The owner must submit the information required in the operating decal application to the director on at least an annual basis during the term of the operating decal;

(e) No person shall transfer, assign, or sublet an operating decal, except as follows:

(1) The operating decal may be temporarily transferred to another pedicab that is affixed with a pedicab inspection sticker pursuant to section 19-467(f) and owned by the same owner;

(2) In the event of an absolute sale of a pedicab company with sufficient proof of the sale provided to the director,

the operating decal shall be transferable to the new owner provided that the new owner meets the requirements of sections 19-467 and 19-469;

(f) The operating decal must be securely attached to the pedicab in a clearly visible place on the left rear portion of the pedicab for which it was issued;

(g) Each operator shall have a valid driver's license issued by a U.S. state or territory;

(h) The owner must maintain a current City of Charleston business license;

(i) Within ten (10) days after a change in status of any information required by this article, the owner shall notify in writing the traffic and transportation department of the change in status;
(Ord. No. 2024-067, § 1, 4-23-24)

Sec. 19-464. Number of pedicab operating decals permitted; restriction on monopolies.

(a) No more than fifteen (15) general operating decals and twenty-one (21) nighttime operating decals shall be issued by the City of Charleston's procurement department.

(b) No owner of a pedicab company may be the recipient of more than forty-nine (49) percent of the general operating decals and/or forty-nine (49) percent of the nighttime operating decals.

(c) No associated entity may operate a pedicab business under this article.
(Ord. No. 2024-067, § 1, 4-23-24)

Sec. 19-465. Renewal and expiration of operating decals.

(a) The operating decal may be renewed for a term and upon payment of a renewal fee as set forth in this article and the agreement and upon determination of the director that:

(1) The holder of the operating decal has performed satisfactorily under the terms of this and any other operating decal(s);

(2) The holder of the operating decal is in compliance with this article; and

(3) The holder has executed another agreement to operate with the city.

(b) Upon expiration, cancellation, or revocation of the operating decal, the operating decal must be immediately surrendered to the city.

(c) Non-renewed operating decals shall be distributed pursuant to sections 19-466 through 19-468.
(Ord. No. 2024-067, § 1, 4-23-24; Ord. No. 2026-092, § 1, 5-26-26)

Sec. 19-466. Process of obtaining an operating decal.

Except for the transfer of an operating decal pursuant to section 19-463(d)(2), an operating decal may be obtained by:

(a) Successful completion of the application process;

(b) Being distributed a decal through the competitive bidding process;

(c) Providing the physical address of the pedicab storage location within two (2) weeks after notification of the winning bid; and

(d) Signing an agreement with the city.
(Ord. No. 2024-067, § 1, 4-23-24)

Sec. 19-467. Application process.

(a) Any person or corporation desiring to bid on an operating decal shall have first provided to the director an operating decal application. The director will review the application to ensure that it meets the requirements of this section, and upon approval shall make a recommendation to the procurement office to allow the applicant to participate in the bidding process for the operating decals.

(b) The operating decal application form shall require the following information:

(1) The full name, address, and telephone number of the owner;

(2) The number of pedicabs to be inspected and a list identifying each pedicab by its model number and unit number;

(3) Such other information as the director may require.

(c) The applicant shall provide the following materials to complete the application:

(1) In the event that the owner is a corporation, a certified copy of the articles of incorporation;

(2) Factory authorized material setting forth the characteristics of the pedicab(s) to be approved, including the dimensions, weight, and passenger capacity;

(3) True and accurate color photographs not less than eight (8) inches by ten (10) inches of all four (4) sides of each pedicab to be approved;

(4) Proof of the minimum insurance requirements under section 19-470;

(5) A current schedule of fees to be charged to the public for pedicab services;

(6) A current city business license; and

(7) Such other material as the director shall require.

(d) The director, or his or her designee, shall inspect each pedicab, and if the pedicab passes inspection, shall place an inspection sticker on the pedicab. Each inspection sticker is issued to a specific pedicab and shall not be removed except as authorized by the city. The inspection sticker does not authorize the owner or operator to operate a pedicab in the city limits. Each pedicab shall be inspected for the following conditions:

(1) That the general design and color of the pedicab, specifically the character and appropriateness of the design

and the color is appropriate for use taking into consideration the age, condition, manner of propulsion, noise level, and outward appearance of the pedicab;

(2) That each pedicab listed on the operating decal application is equipped with head lights, tail lights, a braking system, a slow moving sign, and seat belts;

(3) That all pedicab equipment is neat, clean, operable and in safe condition;

(4) That at a minimum, on each side of the pedicab there is displayed in three-inch letters the name of the pedicab company, the telephone number for the pedicab company, and the unit number for the pedicab;

(5) That the unit number for the pedicab shall be permanently affixed to the pedicab;

(6) Pedicabs under an entity's operating decal application are of the same color.

(e) Any operating decal application form that is incomplete or fails to contain the materials required by this section may be rejected as incomplete and returned to the applicant.

(f) Nothing herein shall be construed to prohibit the director or the traffic and transportation committee from requiring visual inspection of the pedicab.
(Ord. No. 2024-067, § 1, 4-23-24)

Sec. 19-468. Competitive bidding process.

(a) There shall be two (2) separate competitive bidding processes for the operating decals: one (1) competitive bidding process for the general operating decals and one (1) competitive bidding process for the nighttime operating decals.

(b) The competitive bidding process shall follow the city's procurement guidelines and shall be managed by the city's procurement division.

(c) No bid specifications shall be put out for bid until they have first been approved by the committee on ways and means.

(d) The bid specifications shall include, at a minimum, the following:

(1) That the distribution of the decals shall be made as follows: the first decal to the highest bidder, then the next decal to the second highest bidder, and so forth until all available operating decals have been distributed;

(2) The minimum bid and the minimum amount that must be submitted with the bid;

(3) A provision that the payment of the successful bid shall be made within two (2) weeks after notification of the winning bid and before the issuance of the operating decal;

(4) A provision allowing the city to reject any or all bids not deemed by it to be in the best interest of the city;

(5) A provision that the successful bidder shall provide the physical address of the pedicab storage location within two (2) weeks after notification of the winning bid before issuance of the operating decal;

(6) The provisions of the agreement with the city set forth in section 19-469.

(Ord. No. 2024-067, § 1, 4-23-24)

Sec. 19-469. Agreement with the city.

A successful bidder shall enter into an agreement with the city that shall include at a minimum the following provisions and any other provisions that the director or the traffic and transportation committee may require:

(a) The storage location of each pedicab;

(b) The term for each operating decal shall not exceed the term set forth in the agreement and may be renewed as set out in this article;

(c) The owner shall provide the insurance required by section 19-470 throughout the term of this agreement;

(d) A statement that the owner shall indemnify, defend, and hold harmless the City of Charleston, its officials,

employees, agents, (collectively referred to as "indemnitees") and each of them from and against all losses, costs, claims, penalties, fines, expenses (including attorney's fees), liabilities (collectively referred to as "liabilities") by reason of any bodily injury to or death of any person or damage to or destruction or loss of any property arising out of, or resulting from, or in connection with the operation of a pedicab. The owner shall also agree to indemnify, defend, and hold harmless the indemnitees from and against liability which may be asserted by an employee or former employee of the pedicab owner, or any of its subcontractors or independent contractors, for which liability to such employee or former employee would otherwise be limited to payments under workers' compensation or similar laws; and

(e) A statement that the owner has read and understands this pedicab article; and

(f) A statement that the owner shall abide by the requirements of this article and all other ordinances, laws, and regulations.

(Ord. No. 2024-067, § 1, 4-23-24; Ord. No. 2026-092, § 1, 5-26-26)

Sec. 19-470. Insurance requirements.

(a) From the submission of the application and at all times during the operation of a pedicab, the owner shall maintain liability insurance coverage on each pedicab, which shall:

(1) Be obtained from a carrier that is authorized to transact insurance in the State of South Carolina and possesses an AM Best rating of B+, VII or better;

(2) Be written on an occurrence basis;

(3) Cover the following as named insureds: the owner and all employees of the business, including employed operators;

(4) Include the following as additional insureds:

a. The City of Charleston, and its employees and officials; and

b. Any independent contractors.

(5) Provide minimum liability insurance coverage in an amount no less than one million dollars ($1,000,000.00) per occurrence and two million dollars ($2,000,000.00) aggregate;

(6) Any liability deductible shall be no more than five thousand dollars ($5,000.00) per occurrence;

(7) All liability insurance coverage must include a rider or endorsement that provides that at all levels of coverage, there must be notification to the city in writing not less than thirty (30) days before the insurance company cancels or makes a material change in the policy, except for cancellation for non-payment, which written notice to the city shall be not less than ten (10) days;

(8) Provide that coverage is primary and noncontributory with, and is not excess over any other valid, applicable, and collectible insurance or self-insurance in force for the City of Charleston, and its employees and officials;

(9) Provide a waiver of subrogation in favor of the City of Charleston, and its employees and officials;

(10) Shall contain no definition or classification limitation which excludes commercial pedicab operations for use on public roads carrying passengers; and

(11) Shall include a contractual liability endorsement as to the insured's franchise agreement with the City of Charleston.

(b) Coverage required by subsection 19-470(a) shall be evidenced by:

(1) At the time of submitting an application, a copy of a valid ACORD Liability Certificate of insurance evidencing that insurance in compliance with the above requirements is in place including copies of any relevant endorsements;

(2) Within thirty (30) days of successfully receiving a decal, providing a copy of the entire policy, including all endorsements, riders, conditions, and exclusions;

(3) The insurance policy shall show the carrier, policy number, expiration date, type and amount of coverage, and amount of deductible, if any; and

(4) The endorsements, riders, conditions, and exclusions shall show the policy number.

(Ord. No. 2024-067, § 1, 4-23-24; Ord. No. 2024-195, § 1, 12-17-24)

Sec. 19-471. Inspections.

Any law enforcement officer of the City of Charleston and the director or his designee shall have the right to inspect or cause to be inspected any pedicab operating on any street in the city as often as may be necessary for the purposes of ascertaining and causing to be corrected any unsafe or unsanitary' considerations or any violations of this article. It shall be a violation of this section for any person to delay, interfere with or refuse to allow such inspection. Any pedicab found not to conform to the standards provided for in this article shall be ordered out of service.

(Ord. No. 2024-067, § 1, 4-23-24)

Sec. 19-472. Route limitations.

Pedicabs may operate on the streets or public ways in the Old and Historic District (the "district") provided that when operating in the district in residential areas zoned, SR, STR or DR, such operation shall be exclusively for the purpose of such entry into the district to pick up or discharge passengers in the residential portions of the district.

(Ord. No. 2024-067, § 1, 4-23-24)

Sec. 19-473. Traffic laws applicable to pedicab.

Every person operating a pedicab upon a roadway shall be granted all of the rights and shall be subject to all of the duties applicable to the driver of a vehicle by the laws of this state declaring rules of the road applicable to vehicles or by the traffic regulations of this city applicable to the driver of a vehicle,

except as to special regulations in this article and except as to those provisions of laws and regulations which by their nature can have no application.
(Ord. No. 2024-067, § 1, 4-23-24)

Sec. 19-474. Pedicab parking.

(a) To provide drop-off and pick-up areas for pedicabs, the director may locate and designate pedicab parking zones.

(b) It is unlawful for an operator to leave his pedicab unattended.

(c) It is unlawful to park a pedicab in a metered parking space.
(Ord. No. 2024-067, § 1, 4-23-24)

Sec. 19-475. Additional conduct prohibited.

(a) It shall be unlawful to operate a pedicab having more than three (3) passengers therein.

(b) It shall be unlawful to refuse to provide the schedule of fares upon request to any passenger upon entry into or while seated in the pedicab.

(c) It shall be unlawful while the pedicab is in motion, for the operator to collect fares, make change, or embark or debark passengers.

(d) It shall be unlawful to operate a pedicab in any manner that violates any city ordinance or state law, or disrupts the flow of vehicular traffic on the public streets.

(e) It shall be unlawful to operate a pedicab upon a sidewalk.

(f) It shall be unlawful to operate a pedicab wearing headphones.

(g) It shall be unlawful to operate a pedicab more than one (1) pedicab abreast, except when overtaking and passing another pedicab proceeding in the same direction.

(h) It shall be unlawful for an operator to allow a passenger in the pedicab to drink or consume alcoholic beverages or to possess an open container of alcoholic beverage.

(i) It shall be unlawful for an operator to refuse to provide a receipt in legible writing containing the name of the operator, the decal number, the total amount paid, and the date of payment.

(j) It shall be unlawful for an operator to charge a passenger a fare greater than the fare contained on the approved fare schedule.

(k) Pedicabs shall be operated in a manner as to be a part of the normal traffic flow; provided, however, slower moving pedicabs shall safely pull temporarily to the side so as to prevent unnecessary delays to following traffic.

(l) It shall be unlawful for an operator to be under the age of eighteen (18) years old.

(m) The operation of pedicabs powered in any manner other than the strength of the operator is prohibited.

(n) No person shall operate or cause to be operated for hire or otherwise a pedicab for the purpose of conducting tours or sightseeing.

(o) No person shall operate a pedicab with sound produced by radio, tape, CD, DVD, record player, or any other mechanical sound device or instrument from the pedicab.
(Ord. No. 2024-067, § 1, 4-23-24)

Sec. 19-476. Suspension or revocation of operating decal.

(a) Upon three (3) days' written notice, the city may suspend or revoke the operating decal upon a finding that the owner or operator has defaulted under, or otherwise violated, the agreement to operate or any city ordinance;

(b) Any person aggrieved by the suspension or revocation of an operating decal has the right to appeal to the traffic and transportation committee upon written notice to the clerk of

council within ten (10) days of the suspension or revocation. The decision of the traffic and transportation committee shall be the final decision.
(Ord. No. 2024-067, § 1, 4-23-24)

Secs. 19-477—19-490. Reserved.

ARTICLE XVII. DUMPSTERS*

Sec. 19-491. Findings of city council.

City council finds it necessary to promulgate standards to govern dumpsters on public property, including rights-of-way. Such public property is an integral component of the public realm that should and must be available for public use, access and enjoyment without undue interference by private sector interests. The purpose of this article is to promote the public health, safety and welfare by establishing reasonable regulations to govern permits, placement, number and appearance of dumpsters on public rights-of-way so as to:

(1) Provide for pedestrian and driving safety convenience;

(2) Restrict unreasonable interference with the flow of pedestrian or vehicular traffic including ingress and egress from any residence or place of business, or from the street to the sidewalk by persons exiting or entering parked or standing vehicles;

(3) Provide for safety during adverse weather conditions;

(4) Provide reasonable access and viewing for the use and maintenance of poles, posts, traffic signs, signals, hydrants, mailboxes, and access to locations used for public transportation and service purposes;

(5) Relocate and/or replace dumpsters which result in visual blight and/or excessive space allocation on the public

*__Editor's note—__Ord. No. 2001-36, § 1, adopted April 10, 2001, set out provisions intended for use as Art. XVII, §§ 19-457—19-462. In order to avoid conflicts in section numbering, the editor has redesignated the provisions of said ordinance as §§ 19-491—19-496 as set out herein.

__Cross reference—__Garbage, trash and refuse, Ch. 14.

rights-of-way, or which unreasonably detract from the aesthetics of store window displays, adjacent landscaping and other improvements, as well as to have abandoned or neglected dumpsters removed;

(6) Maintain and protect the values of surrounding properties;

(7) Reduce unnecessary exposure of the public to personal injury or property damage claims; and

(8) Treat all applicants for dumpster permits equally according to the standards set forth in this article and all applicable regulations promulgated in furtherance hereof.

(Ord. No. 2001-36, § 1, 4-10-01)

Sec. 19-492. Definitions.

[Unless the context clearly requires otherwise, the following terms, where used in this chapter, shall have the following meaning:]

Applicant. The individual or entity who leases or otherwise obtains a dumpster for use and applies for a dumpster permit.

Dumpster. An approved metal container as determined by the director of traffic and transportation, with a minimum capacity of four (4) cubic yards and a maximum capacity of thirty (30) cubic yards, used for the storage, collection, or removal of construction debris, demolition debris, or other discarded material.

Graffiti. An inscription, drawing, mark or design that is painted, sprayed or otherwise placed on or in a dumpster with the consent of the owner.

Owner. Individual or entity that is in the business of renting or otherwise providing dumpsters for temporary use, by an applicant, at an approved location.

Right-of-way. Any public street, highway, sidewalk, parkway or alley.

(Ord. No. 2001-36, § 1, 4-10-01)

Sec. 19-493. Dumpster permit required.

(a) It shall be unlawful for any person or entity to place or maintain a dumpster on a right of way unless such person or entity shall first obtain a dumpster permit. The department of traffic and transportation shall be the issuing authority for all dumpster permits.

(b) The applicant shall file with the department of traffic and transportation a written application for a dumpster permit each time which shall contain the following information.

(1) The name and address and telephone number of the applicant, owner and, if applicable, the principal in charge of the dumpster.

(2) The name, address and telephone number of the responsible person whom the city may notify or contact at any time concerning the dumpster.

(3) A detailed statement explaining: (1) the reason for the necessity of a dumpster; (2) whether the dumpster will block a right-of-way; (3) which right-of-way will be obstructed; (4) the length of time the dumpster may be present in the right-of-way; (5) the number of dumpsters which will be present.

(4) A statement that applicant and the owner is familiar with the rules contained in this article and will comply with them. The statement shall be signed by both the applicant and the owner.

(5) Evidence of the applicant's City of Charleston business license, as applicable.

(6) Proof of insurance against any liability, loss or claim arising out of the issuance of dumpster permits, or out of the placement, presence, use, maintenance or removal of the dumpsters. Such insurance shall be issued by an insurer authorized to do business in State of South Carolina, shall be in an amount no less than one million ($1,000,000.00) dollars and shall name the City of Charleston as an additional insured. The insurance policy shall provide for thirty (30) days written notice to the director of the department of traffic and transportation prior to any lapse, cancellation or change in coverage. The insurance shall be maintained in effect at all times that the dumpster remains on a right of way.

(7) An agreement to indemnify and hold harmless the city, its officers, directors and employees against any loss, liability or damages, including expenses and costs for bodily

injury and for property damage sustained by any person as the result of the installation, use or maintenance of a dumpster on a right-of-way, within the city.

(c) The fee for a dumpster permit shall reflect actual costs of occupying a metered and/or nonmetered parking space, as set from time to time by the department of traffic and transportation. In the event the dumpster is placed in a metered parking space, the fee shall include the additional cost of a daily meter bag fee for each parking space used.

(d) The department of traffic and transportation shall send notice of the dumpster permit to the applicant and owner of the dumpster after the applicant and/or owner has complied with all of the requirements set forth in this section.

(e) Any permit under this article may be denied, suspended or revoked for violation of any section of this article.
(Ord. No. 2001-36, § 1, 4-10-01; Ord. No. 2021-090, § 1, 7-20-21)

Sec. 19-494. Placement, transporting, and standards.

(a) *General placement of dumpsters.* Subject to the standards set forth hereunder, a dumpster shall at all times be placed upon a firm and level surface and as close to the curb as possible.

(b) *Transporting dumpsters.* When transporting or otherwise moving a dumpster, to ensure that no portion of the load is falling, sifting, blowing or in any way escaping from the dumpster, the individual transporting the dumpster shall use a tarpaulin or other appropriate cover to secure the top of a dumpster while in transit.

(c) *Standards of dumpsters.*

(1) The standards hereinafter set forth are minimum standards and nothing herein shall be deemed to preclude the department of traffic and transportation from denying approval of a dumpster permit or requiring additional measures when in the opinion of the director of the department of traffic and transportation such is necessary for the safety and general welfare of the public.

(2) Dumpsters shall not be placed on rights-of-way so as to block or impede the lawful passage of vehicular or pedestrian traffic on rights-of-way, nor impede authorized public or private parking or other lawful uses of those rights-of-way adjacent to the site on which the dumpster is located.

(3) Dumpsters shall not be placed on a right-of-way if the dumpster can otherwise be sited on private property.

(4) Dumpsters shall not be placed so as to impede or prevent access to any public easement or public utility installation; nor shall the dumpster block the view of any right-of-way signs.

(5) Dumpsters shall be kept clear of all posters, signs, stickers, drawings, and all other written, drawn or painted matter, including graffiti, except as otherwise provided herein.

(6) The dumpster shall be marked with high-intensity retro-reflective sheeting, or other retro-reflective or prismatic material or substance approved by the Department of Traffic and Transportation, a minimum of three (3) feet in length, and two (2) inches in width along each side of the corner and any other additional warnings, reflective stickers and instructions as the department of traffic and transportation may require. In addition, at all times hereunder, barricades with flashing lights shall be placed at each end of the dumpster.

(Ord. No. 2001-36, § 1, 4-10-01)

Sec. 19-495. Penalties.

Any person violating any section of this article shall be subject to a fine of not more than five hundred ($500) dollars or serve a term not exceeding thirty (30) days in jail, or both, for each offense. Each day that a violation exists shall constitute a separate offense. In addition, any dumpster in violation of any section herein shall be borne by the applicant. The owner of a

dumpster, if different from an applicant, shall be jointly and severally liable with the applicant for any violation of this article.

(Ord. No. 2001-36, § 1, 4-10-01)

Sec. 19-496. Severability.

If any section, subsection, sentence, clause, phrase, word or any other part of this article shall be declared unconstitutional or invalid by a court of competent authority, then the remainder of this ordinance shall not be affected and shall remain in full force and effect.
(Ord. No. 2001-36, § 1, 4-10-01)

ARTICLE XVIII. VEHICLE, PEDESTRIAN AND BICYCLE TRAFFIC ON THE RAVENEL/COOPER RIVER BRIDGE

Sec. 19-497. Purpose.

The Ravenel/Cooper River Bridge is a large and elevated structure with high volume use that demands close attention to safety and concern for others. As such, the provisions of this article are promulgated pursuant to the city's police powers to ensure the safety and well being of all users.
(Ord. No. 2005-98, § 1, 5-17-05)

Sec. 19-498. Vehicular and pedestrian/bicycle traffic.

(a) Only vehicular traffic is allowed in the traffic lanes of the Ravenel/Cooper River Bridge. All pedestrian and bicycle traffic must utilize the pedestrian/bicycle pathway on the Ravenel Bridge.

(b) Wheelchairs, motorized and nonmotorized, are permitted for use by persons with disabilities on the pedestrian/bicycle pathway of the Ravenel Bridge.
(Ord. No. 2005-98, § 2, 5-17-05)

Sec. 19-499. Prohibited activity in the pedestrian/bicycle pathway.

(a) The use of all motorized vehicles, including but not limited to segways, skateboards, in-line skates, or any like contraptions (except vehicles used for official police business), is prohibited on the pedestrian/bicycle pathway of the Ravenel Bridge.

(b) All City of Charleston Police Officers having jurisdiction on the Ravenel Bridge have the authority to confiscate any motorized vehicle, skateboard, in-line skates, or like devices used in violation of this section and deliver same to the chief of police. Upon the first offense, the chief of police may return the contraption to the parents or legal guardian of such offender who is under the age of seventeen (17) years old. In the event that the parent or guardian should personally appear before the chief, they may then request the return of the confiscated item within ten (10) days after notice has been mailed to the parent or legal guardian alerting them that their child or ward has violated this section. If a request for the return of the confiscated item has not been made within (90) ninety days from the date of mailing the notice, the item will be destroyed or sold at auction.

On the second or subsequent offense within one (1) year by the same offender, the chief of police shall confiscate the item and order it to be destroyed or sold at auction.

Any person seventeen (17) years or older found to be acting in violation of this section shall be charged pursuant to this section of the article.

(c) Any activity that impedes the pedestrian and bicycle traffic flow on the Ravenel pedestrian/bicycle pathway is prohibited.
(Ord. No. 2005-98, § 4, 5-17-05)

Sec. 19-500. General prohibited activity.

(a) For safety reasons, it is hereby prohibited for any person to discharge fireworks, throw any objects, climb on the railings, fish or lock their bike, or walk their pets (except for any service animal assisting a person with a disability or official police business) on any portion of the Ravenel Bridge.

(b) Jumping, bungee jumping, base-jumping, catapulting or any like act from the Ravenel Bridge is hereby prohibited.
(Ord. No. 2005-98, § 5, 5-17-05)

Sec. 19-501. Penalty.

Any person guilty of violating any section of this article, excluding underage individuals charged pursuant to section 19-

499, shall be subject to a fine of up to five hundred dollars ($500.00) or serve a term not exceeding thirty (30) days in jail, and or both.
(Ord. No. 2005-98, § 6, 5-17-05)

Secs. 19-502—19-509. Reserved.

ARTICLE XIX. VALET PARKING

Sec. 19-510. Valet parking.

Whereas, city council finds that the use of public streets and right-of-ways for valet parking, while providing a public benefit to some by making parking more convenient, may also impede travel, interfere with the rights of others using the streets and public right-of-ways, affect the public safety, and create a public nuisance. Therefore, valet parking may be permitted as a special privilege, not as a matter of right, subject to the regulations in this Code.

(a) It shall be unlawful for any person to engage in the business of valet parking in or upon any city street or in any parking space, right-of-way, driveway or sidewalk, or alongside of, or next to, any city street or on any other public property in the City of Charleston except in such areas as may be designated and marked by the department of traffic and transportation for such purpose and as is approved by city council.

(b) The director of traffic and transportation shall survey the Old and Historic District and report to the traffic and transportation committee and city council, on at least an annual basis, those metered parking spaces in the non-residential portions of the Old and Historic District which are appropriate for accommodating valet services, taking into consideration factors such as vehicular and pedestrian circulation, access, availability of parking, street and/or sidewalk width and such other factors as he may deem necessary to protect the public health, welfare and safety.

(c) Metered parking spaces designated for the purpose of conducting a valet service shall be franchised in accordance with the provisions contained herein.

(d) No person shall engage in the business of valet parking from a designated area unless:

(1) He has secured a business license which shall be prominently displayed on the valet stand;

(2) He has completed and filed with the traffic and transportation department a valet service application stating the name, address, and telephone number of the applicant, the valet parking service, and a person associated with the valet parking service immediately available during all hours of its operation; and

(3) He has provided the director of traffic and transportation the number of employees that will be employed and scheduled to valet park for each designated area; and

(4) He has provided the director of traffic and transportation the location where vehicles would be parked or stored; and

(5) He has provided the director of traffic and transportation the route between the designated area and the parking location(s); and

(6) He has provided the director of traffic and transportation a satisfactory plan for visibly identifying and tagging vehicles in the custody of the valet service; and

(7) He has provided the director of traffic and transportation a satisfactory plan for after hour vehicle management; and

(8) He has provided the director of traffic and transportation a signed statement from the operator of any parking facility designated as a parking location regarding that facility's ability to accept the vehicles. The statement shall include:

a. The total number of parking spaces within the parking facility;

b. The number of parking spaces within the parking facility to be reserved for the valet parking; and

c. An estimate of the percent usage of the parking facility prior to and subsequent to the proposed valet parking were it approved; and

(9) He has secured approvals from the Public Service, Engineering Division for all encroachments incident to the valet parking service; and

(10) He has paid the annual franchise fees as may be set and/or approved by city council for the privilege of utilizing such space(s); and

(11) He has provided the director of traffic and transportation a duly executed indemnification/hold harmless agreement with the city concerning the use of the designated area.

(e) Nothing herein shall be construed to prevent the director of traffic and transportation from designating spaces on a temporary basis when he may deem it appropriate.

(f) Authority of the director of traffic and transportation regarding bidding and franchising procedures for all spaces designated for the operation of a valet service is delineated as follows:

(1) The director of traffic and transportation shall see that permanent spaces designated for the operation of a valet service are made available pursuant to a competitive bidding process and the execution of a franchise agreement with the highest responsive bidder. The competitive bidding process and the execution of the franchise agreement shall be managed by the city's procurement department. The city may reject any or all bids.

(2) Upon the committee on traffic and transportation approving the franchising of a certain designated area, corporation counsel shall draft bid specifications, which shall include, at a minimum:

a. The location of the designated areas proposed to be franchised;

b. The minimum bid for each designated area;

c. A provision to allow for the payment of the franchise fee on at least a semiannual basis;

d. The term of the franchise;

e. A requirement for the acquisition of liability insurance in such amounts as may be recommended by corporation counsel;

f. A prohibition against the transferring, assigning or subletting of the designated area or franchise agreement;

g. A requirement that the successful bidder acquires and maintains a current business license;

h. A requirement that the successful bidder provides the director of traffic and transportation copies of all contracts executed between the applicant and each operator of a parking facility designated as a parking location. Each contract shall contain a provision that it cannot be canceled without at least 60 days notice to the other party and to the city's traffic and transportation department;

i. A provision to require that the successful bidder within ten (10) days after a change in status of any information required by this article, the successful bidder shall notify in writing the traffic and transportation department of the change in status;

j. A limitation on the hours of operation from 6:00 p.m. to 12:30 a.m. Valet stands shall be operated every day beginning at 6:00 p.m. until close at 12:30 a.m. or when the last valeted vehicle is picked up from the valet stand.

k. A requirement that the successful bidder remove all valet apparatus at the end of each authorized time period and to otherwise main-

tain the area in and around the designated area in a clean condition, free of trash or rubbish;

l. A requirement forbidding meter feeding or encroaching on any property outside the designated area without a proper encroachment permit;

m. A requirement prohibiting the valet activities from interfering with other authorized business activities;

n. A requirement that surrounding businesses be allowed to validate valet tickets under an agreement with the valet operator;

o. Provisions for the suspension or cancellation of the franchise; and

p. A provision allowing the city to reject any or all bids not deemed by it to be in the best interest of the city.

(3) No valet parking bid shall be awarded or franchise executed until they have first been approved by the committee on ways and means.

(g) Operating requirements.

(1) The valet parking service shall only accept vehicles at, and return vehicles to, the designated areas. Dimensions of designated areas shall be determined by the director of traffic and transportation.

(2) The valet parking service shall only move vehicles between the designated areas and the approved parking location. Said movement of vehicles shall occur only along the approved routes.

(3) The valet parking service shall not use on-street parking spaces for valet parking.

(4) The valet parking service shall not park any vehicle upon private property without written authorization by the property owner or an authorized agent of the property owner.

(5) The valet parking service shall be authorized to place within the public right-of-way at their designated area one (1) sandwich board sign or pedestal sign not exceeding thirty-six (36) inches in height and twenty-four (24) inches in width and containing only the words "Valet Parking Service" with the information listed in subsection 54-910(g)(8), provided that the sign does not impede pedestrians and maintains a minimum clear sidewalk width of forty-two (42) inches. The sign may only be used while the valet service is operating.

(6) The valet parking service shall provide adequate staffing to receive, park, and return vehicles so that traffic is not impeded by the activities of the valet service. Vehicle queuing is allowed only within the designated area.

(7) The valet parking service shall ensure that its operations are compliant with the American Disabilities Act and that it is able to valet modified vehicles for individuals with disabilities.

(8) The valet parking service shall provide to each patron of the valet services the following information:

a. The name of the valet parking service;

b. Contact information for the valet parking service;

c. The hours of operation of the valet parking service; and

d. The parking fees, if any.

(9) The valet parking service shall require that all staff members wear matching uniforms which uniform shall clearly identify to the public the name of the valet service.

(10) The valet parking service shall notify the city police department whenever a vehicle has been left for a

period longer than forty-eight (48) hours without a prior contractual arrangement for such period of time.

(11) Each person employed by or otherwise assisting the valet parking service shall have a valid driver's license.

(12) Each valet parking service employee shall display professional behavior when conducting business. No person who has a violent felony conviction or who is a registered sex offender, in any state, may participate as a valet service employee.

(h) An approval of a valet operation provides only for the nonpermanent and nonexclusive use of the public right-of-way. Applicants, valet parking services, and any premises benefiting from a valet parking shall have neither a property interest in, nor any entitlement to the granting or continuation of an approval for the use of any public right-of-way.

(Ord. No. 2010-272, § 1, 12-21-10; Ord. No. 2012-90, §§ 1—3, 3-19-12; Ord. No. 2014-18, § 1, 2-11-14; Ord. No. 2015-093, § 1, 8-18-15)

Secs. 19-511—19-519. Reserved.

ARTICLE XX. RIGHT-OF-WAY OBSTRUCTION FEES

Sec. 19-520. Authority.

This article is adopted pursuant to the authority conferred upon the city by the South Carolina Constitution, Act No. 194 of the Acts and Joint Resolutions of 1971 enacted by the General Assembly of the State of South Carolina, approved April 23, 1971, in 1976 South Carolina Code of Laws Sections 4-9-30, 4-9-40, 5-7-30, and 5-7-60.

(Ord. No. 2021-090, § 2, 7-20-21)

Sec. 19-521. Jurisdiction.

The jurisdiction and scope of this article shall encompass the corporate limits of the city, as they may be adjusted from time to time after the ratification of this article.
(Ord. No. 2021-090, § 2, 7-20-21)

Sec. 19-522. Purpose.

Right-of-way obstruction affects the quality of life and business operations within the City of Charleston. As such, the provisions of this article are promulgated pursuant to the city's authority to safely ensure right-of-way obstructions are properly permitted.
(Ord. No. 2021-090, § 2, 7-20-21)

Sec. 19-523. Definitions.

Right-of-way obstructions are temporary or permanent obstructions occurring in a public street or sidewalk and are defined as follows for the purpose of this article only:

Full street shall be defined as the obstruction of a public street (curb to curb or EOP to EOP) such that no access is provided to the existing street for general vehicular traffic.

Major street shall be defined as interstates, state and county highways, primary collector streets as defined in the city's GIS system and by SCDOT.

Minor street shall be defined as neighborhood streets as defined in the City's GIS system and by SCDOT.

Parking space shall be defined the obstruction along on-street parking such that limited access is provided to the space for general vehicular traffic.

Sidewalk—Auxiliary (AUX) shall be defined as the obstruction of a sidewalk such that no access is provided to the existing sidewalk for general pedestrian traffic, but supplementary or alternative means such as cargo containers, scaffolding and temporarily constructed boardwalks/paths are provided to facilitate continued pedestrian movement through or adjacent to the obstructed sidewalk.

Sidewalk full closure shall be defined the obstruction of a sidewalk such that no access is provided to the existing sidewalk for general pedestrian traffic.

Sidewalk partial closure shall be defined as the obstruction of a sidewalk such that limited, ADA- and PROWAG-compliant access is provided to the existing sidewalk utilizing means such as barricades and traffic cones.

Street lane—Partial closure shall be defined as the obstruction along a street travel lane such that limited access is provided to the existing street for general vehicular traffic.
(Ord. No. 2021-090, § 2, 7-20-21)

Sec. 19-524. Fees.

(a) Permits shall be required by the department of traffic and Transportation for the right-of-way obstructions defined in section 19-523 of this article and fees shall be instituted by the traffic and transportation department director as necessary to safely manage right-of-way obstructions.

(b) Fees shall be charged based on costs associated with permitting review and inspection in accordance with the fee schedule established and reviewed from time to time by the council. A schedule of right-of-way obstruction fees shall be made available to the public online at the city's website, at the clerk of council's office, or at the department of traffic and transportation.
(Ord. No. 2021-090, § 2, 7-20-21)

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Chapter 20

MUNICIPAL COURT*

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Sec. 20-6. Oath of judge.
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Sec. 20-36. Demand for jury trial; composition of jury.
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*__Cross references—__General penalty for Code violations, § 1-16; administration, Ch. 2; motor vehicles and traffic, Ch. 19; offenses, Ch. 21; police, Ch. 25.

__State law reference—__Municipal courts, S.C. Code 1976, § 14-25-5 et seq.

ARTICLE I. IN GENERAL

Sec. 20-1. Creation.

There is established in the city a court known as the Municipal Court of the City of Charleston.
(Code 1975, § 35-2)

Sec. 20-2. Powers, duties and jurisdiction.

The municipal court shall have jurisdiction to try all cases arising under the ordinances of the municipality. The court shall also have all such powers, duties and jurisdiction in criminal cases made under state law and conferred upon magistrates. The court shall have the power to punish for contempt of court by imposition of sentences up to the limits imposed on municipal courts. The court shall have no jurisdiction in civil matters.
(Code 1975, § 35-3)

State law reference—Similar provisions, S.C. Code 1976, § 14-25-45.

Sec. 20-3. Penalties; suspension of sentences.

(a) Whenever the municipal judge finds a party guilty of violating a municipal ordinance or a state law within the jurisdiction of such court he may impose a fine or imprisonment, or both, not to exceed five hundred dollars ($500.00) or thirty (30) days.

(b) Any municipal judge may suspend sentences imposed by him upon such terms and conditions as he deems proper including, without limitation, restitution or public service employment.
(Code 1975, § 35-4; Ord. No. 1996-99, § 1, 5-28-96)

State law reference—Similar provisions, S.C. Code 1976, §§ 14-25-65, 14-25-75)

Sec. 20-4. Judge as presiding officer; election, term and salary of judge.

(a) The municipal court shall be presided over by the chief judge of the municipal court and such associate judges as provided for in the annual budget of the city council, one who shall serve as the administrative judge and one who will serve

as the bond court judge as described in section 20-4(b) and section 20-4(c). The chief judge, the administrative judge, and the bond court judge shall be elected by the city council and shall serve for a term of four (4) years or until his or her successor is elected and qualified. The other municipal judges shall be elected by the city council and shall serve for a term of two (2) years or until his or her successor is elected and qualified.

(b) One (1) of the associate judges shall be designated by the mayor and council as the administrative judge who shall report to the mayor and council and oversee the judicial operations of the municipal court and monitor court operations and procedures; preside over various terms and sessions of court, jury and non-jury matters; assist the chief judge in scheduling other municipal judges to various terms and sessions of court; with the assistance of the municipal court administrator, cause all necessary filing or reporting requirements of the South Carolina Supreme Court or South Carolina Court Administration to be properly and timely prepared and submitted; maintain liaison with all municipal judges and court operations personnel; and perform such duties as may be required by law or to promote the efficiency of the municipal court.

(c) One of the associate judges shall be designated by the mayor and council as the bond court judge who shall report to the chief judge of the municipal court and oversee the judicial operations of the municipal court bond court hearings and perform such related duties as may be required by law or to promote the efficiency of the municipal court.
(Code 1975, § 35-5; Ord. No. 2005-97, § 1, 5-17-05; Ord. No. 2012-240, § 1, 5-8-12; Ord. No. 2017-008, § 1, 1-24-17; Ord. No. 2025-019, § 1, 2-25-25; Ord. No. 2026-091, § 1, 5-26-26)

Sec. 20-5. Eligibility for judgeship; vacancy in office and temporary absence.

(a) A municipal judge shall not be required to be a resident of the city. The city may contract with any other municipality in the county or with the county governing body to employ the municipal judge of the other municipality or a magistrate to preside over its court.

(b) In case of a vacancy in the office of municipal judge, a successor shall be appointed in the manner of original appointment for the unexpired term. In case of the temporary absence, sickness, or disability of a municipal judge, the court shall be held by a judge of another municipality or by a practicing attorney or some other person who has received training or

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experience in municipal court procedure, who shall be designated by the mayor and take the prescribed oath of office before entering upon his duties.
(Code 1975, § 35-6)

State law reference—Similar provisions, S.C. Code 1976, § 14-25-25.

Sec. 20-6. Oath of judge.

The judges elected as provided in this chapter, before they enter upon the execution of their office, shall, in addition to the oath prescribed by the Constitution and laws of the state, take the following oath of office:

"I do solemnly swear (or affirm) that I am duly qualified, according to the Constitution of this State, to exercise the duties of the office to which I have been elected (or appointed), and that I will, to the best of my ability, discharge the duties thereof, and preserve, protect, and defend the Constitution of this State and of the United States. So help me God."
(Code 1975, § 35-11)

Sec. 20-7. Authority of judge to assess court costs.

The judge of the municipal court, or any duly authorized officer holding such court, shall assess a charge as the costs of court on all defendants, whether they plead guilty or not guilty, who are convicted of any misdemeanor, except parking violations. Such costs shall be ten dollars ($10.00) to cover the docket fee and the fee for summons or arrest and shall be imposed irrespective of amount of or suspension of the fine or forfeiture of bond.
(Code 1975, § 35-14A; Ord. No. 1980-48, § 1, 3-25-80; Ord. No. 1993-479, § 1, 12-21-93)

Sec. 20-8. Alternative sentencing/pretrial intervention program costs.

(a) As a part of the municipal court system, there are available to first time, and other, offenders various alternative sentencing and/or pretrial intervention programs, which necessitates that the city and the court dedicate appropriate personnel and supplies to process, monitor and verify that those who

participate in such programs successfully complete them. City council finds that these programs are useful and beneficial to the participants thereof and that it is in the public interest and in furtherance of the general welfare that these programs remain available. City council further finds that those who utilize and benefit from such programs be required to pay a reasonable administrative processing fee to assist in meeting the costs incurred by the city and the court in making participation therein an alternative to a monetary fine and/or incarceration.

(b) There is hereby established an administrative processing fee in the amount of twenty-five dollars ($25.00) which shall be paid by a person participating in an alternative sentencing or pretrial intervention program through the municipal court. The fee herein imposed shall be used to mitigate the costs incurred by the city and the court in making available the personnel and supplies that are required to process and monitor the progress of participants in such programs.
(Ord. No. 1995-606, § 1, 12-19-95)

Secs. 20-9—20-20. Reserved.

ARTICLE II. ADMINISTRATIVE PROCEDURE

Sec. 20-21. Authority of judge to issue rules for conduct of business.

The judge of the municipal court shall have the power to make such rules and regulations not inconsistent with the laws of the land for conducting the business of the municipal court as may be necessary for the dispatch of such business, the preservation of order and the furtherance of public justice. It shall be unlawful for any person to fail, neglect or refuse to comply with such rules and regulations so made.
(Code 1975, § 35-16)

Sec. 20-22. Motions for new trial; right of appeal.

(a) No motion for a new trial in the municipal court shall be heard unless made within five (5) days from the rendering of the judgment.

(b) Any party shall have the right to appeal from the sentence or judgment of the municipal court to the court of General Sessions of the county. Notice of intention to appeal, setting forth the grounds for appeal, shall be given in writing and served on the municipal judge or the clerk of the municipal court within ten (10) days after sentence is passed or judgment rendered or a motion for a new trial is denied or the appeal shall be deemed waived. The party appealing shall enter into a bond, payable to the municipality, to appear and defend such appeal at the next term of the court of general sessions or shall pay the fine assessed.
(Code 1975, § 35-22)

Cross reference—Similar provisions, S.C. Code, 1976, § 14-25-95.

Sec. 20-23. Municipal judge to make return to court of general sessions in event of appeal; no appeal de novo.

In the event of an appeal, the municipal judge shall make a return to the court of general sessions, and the appeal shall be heard by the presiding judge upon such return. The return of the municipal judge shall consist of a written report of the charges preferred, the testimony, the proceedings, and the sentence or judgment. When the testimony has been taken by a reporter as provided herein, the return shall include the reporter's transcript of the testimony. The return shall be filed with the clerk of the court of general sessions of the county held and the cause shall be docketed for trial in the same manner as is now provided for appeals from magistrate's courts. There shall be no trial *de novo* on any appeal from a municipal court.
(Code 1975, § 35-24)

State law reference—Similar provisions, S.C. Code 1976, § 14-25-105.

Sec. 20-24. Commencement of proceedings upon information.

All proceedings before the municipal court shall be commenced on information under oath, plainly and substantially setting forth the offense charged upon which, and only upon which, shall a warrant of arrest issue. The information may be amended at any time before trial.
(Code 1975, § 35-25)

Sec. 20-25. Subpoena of witnesses.

The judge of the municipal court, on the application of any party to a cause pending before him, shall issue a subpoena citing any person whose testimony may be required in such cause to appear before him at a certain time and place, not more than twenty (20) miles from the residence of such witness, to give evidence. Such subpoena shall be served personally at least one day before such attendance is required. If such person shall neglect or refuse to attend, the judge may order such witness to be brought before him or, if any witness attending shall refuse to give evidence, without good cause shown, the judge may commit him to the jail of the county for not longer than one day.
(Code 1975, § 35-27)

Secs. 20-26—20-35. Reserved.

ARTICLE III. JURY

Sec. 20-36. Demand for jury trial; composition of jury.

Any person to be tried in the municipal court may, prior to trial, demand a jury trial, and such jury when demanded, shall be composed of six (6) persons drawn from the qualified electors of the municipality in the manner prescribed in this article. The right to a jury trial shall be deemed to have been waived unless demand is made prior to trial.
(Code 1975, § 35-32)

State law reference—Similar provisions, S.C. Code 1976, § 14-25-125.

Sec. 20-37. Jury commissioners.

The council shall appoint not less than three (3) nor more than five (5) persons to serve as jury commissioners for the municipal court; provided, however, that, the council may act as jury commissioners in lieu of appointing such commissioners.

State law reference—Similar provisions, S.C. Code 1976, § 14-25-135.

Sec. 20-38. Commissioners to prepare jury box.

The jury commissioners shall, within the first thirty (30) days of each year, prepare a box to be known as the jury box. The jury

commissioners shall prepare a jury box at such times and in such manner as provided for in South Carolina Code of Laws 1976, section 14-25-145 et seq.

State law reference—Similar provisions, S.C. Code 1976, § 14-25-145.

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Chapter 21

OFFENSES*

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*__Cross references—__General penalty for code violations, § 1-16; administration, Ch. 2; motor vehicles and traffic, Ch. 19; police, Ch. 25.

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ARTICLE I. IN GENERAL

Sec. 21-1. Hate intimidation.

A person who violates another section of this chapter with the intent to intimidate another person or persons in whole or in part because of the actual or perceived race, color, creed, religion, ancestry, gender, sexual orientation, gender identity, physical or mental disability, or national origin of the other person or persons, including any act of antisemitism, is guilty of the separate offense of hate intimidation and shall be punished as provided by section 1-16. The sentences shall run consecutive to one another unless the court specifies on the record reason why they should run concurrent. For purposes of this section, "antisemitism" refers to the definition set forth by the International Holocaust Remembrance Alliance (IHRA).
(Ord. No. 2018-147, 11-27-18; Ord. No. 2023-237, § 1, 11-28-23)

Secs. 21-2—21-15. Reserved.

ARTICLE II. NOISE

DIVISION 1. GENERALLY

Sec. 21-16. Loud and unnecessary noises restricted.

(a) *Findings of fact.* City council finds and declares that excessive noise is a serious hazard to the public health, welfare, peace and safety and the quality of life of its residents and visitors; that a substantial body of science and technology exists by which excessive noise may be substantially abated; that people have a right to and should be insured an environment free from excessive sound that may jeopardize their public health, welfare, peace and safety or degrade the quality of life or diminish property values; and therefore, city council finds that it is the policy of the city to prevent such excessive sound.

(b) It shall be unlawful for any person, entity, or establishment to make, continue, or allow to be made or continued, any clamorous singing, yelling, shouting, whooping, bellowing, hol-

lering, or other loud, obstreperous, wanton and unnecessary noises, or to make, continue, or allow to be made or continued, any loud gatherings, either in the day time or at night, which disturb the peace and quiet of the city, whether in the public street, on privately owned or controlled property, or within enclosures, public or private.

(c) It shall be unlawful for any person to ride, drive, propel or otherwise operate a motorized vehicle in a manner which emits loud and unnecessary noise or long continued noise, either in the day time or at night, which disturbs the peace and quiet of the city, whether in the public street or on private property, or within enclosures, public or private. The prohibitions of this subsection shall include operating a motorized vehicle by rapid throttle advancing (revving) of an internal combustion engine resulting in increased noise from the engine.

(d) For purposes of this section, motorized vehicle includes but is not limited to cars, trucks, vans, buses, motorcycles, motor scooters, motorized skateboards, mopeds, and low speed neighborhood electric vehicles.

(e) Nothing in this section shall be construed to extend to the blowing of a motorized vehicle horn or other signal device by the operator of either a public or private motorized vehicle for the purpose of notifying passengers or other persons of the presence of such motorized vehicle or as a safety precaution in the actual operation of the motorized vehicle.

(f) It shall be unlawful for any person, entity or establishment to play, operate or cause to be played or operated, any radio, amplified musical instrument including but not limited to brass or drum instruments or the amplified device or apparatus making or reproducing musical or other sounds within a privately owned or controlled courtyard or outdoor area after 11:00 p.m. and before 7:00 a.m. in such a manner as to be audible in any public street or right-of-way.

(g) It shall be unlawful for any person, entity or establishment to play, operate or cause to be played or operated any musical instrument or other device or apparatus making or reproducing musical or other sounds without amplification

within a privately owned or controlled courtyard or outdoor area after midnight and before 7:00 a.m. in such a manner as to be audible in any public street or right-of-way.

This subsection expressly prohibits the playing of brass or drum instruments in privately owned or controlled courtyards or outdoor areas after 11:00 p.m. and before 7:00 a.m.

(h) Notwithstanding subsections (a) and (f) herein, it shall be unlawful for any person, entity or establishment to play, operate or cause to be played or operated, any radio, amplified musical instrument including but not limited to brass or drum instruments, or other amplified device or apparatus making or reproducing musical or other sounds after 11:00 p.m. and before 7:00 a.m. when the said sounds emanate from an open window or door opening of a structure in such a manner as to be audible in any public street or right-of-way.

(i) Except as provided in subsection (f) it shall be unlawful for any person, entity or establishment to play, operate or cause to be played or operated, any radio, amplified musical instrument including but not limited to brass or drum instruments, or other amplified device or apparatus making or reproducing musical or other sounds when the said sounds are transmitted through a speaker which is mounted on an exterior wall or surface of the structure in such a manner as to be audible in any public street or right-of-way.

(j) This section shall not be construed to apply to sound trucks as defined in section 21-26 of the Code of the City of Charleston.

(k) Nothing herein shall be construed to prevent the mayor or his designee from issuing temporary permits for outdoor events sponsored by public, non-profit, educational or religious entities on such terms and conditions as are in the public interest.

(Code 1975, §§ 36-1, 36-3; Ord. No. 1993-51, § 1, 3-23-93; Ord. No. 1993-52, § 1, 3-23-93; Ord. No. 1994-120, § 1, 4-26-94; Ord. No. 2003-36, § 1, 4-8-03; Ord. No. 2004-60, § 1, 6-15-04; Ord. No. 2011-44, § 1, 6-21-11)

Sec. 21-17. Building construction operation noise.

(a) It shall be unlawful for any person to use or cause the use of any mechanical equipment or tool operated by fuel or electric power in the building, construction, repair, renovation, or demolition operations, including, but not limited to, pile drivers, excavators, backhoes, pneumatic hammers, derricks, cranes, steam or electric hoists, the use of which causes loud and repetitive noises in the city other than between the hours of 7:00 a.m. and 7:00 p.m. weekdays and 9:00 a.m. and 7:00 p.m. on Saturdays. No such construction operations which cause loud and repetitive noises shall occur on Sundays or on the following city holidays: New Year's Day, Memorial Day, Fourth of July, Labor Day, Thanksgiving Day, and Christmas Day.

(b) The following noises shall be exempt from the prohibition of subsection (a):

(1) The sound produced by emergency repair measures necessary to safe guard or restore public utilities or property to a safe condition, or to protect persons or property from imminent danger, in preparation for, or following a fire, accident or natural disaster, such as a hurricane.

(2) Work ordered by a city official or by court order to secure property.

(3) Utility construction work or construction work conducted on the public right-of-way.

(4) Concrete pouring; provided, however, that 48-hours' advance notice shall be provided to all residents impacted by such activity.

(5) Repairs, maintenance, or indoor remodeling that is completed entirely by the homeowner and where the noise is contained completely within the structure.

(6) Work performed substantially by a homeowner on their own home.

(c) The City may issue a permit exempting specific construction projects and maintenance of public streets and rights-of-way from the prohibitions of subsection (a), provided the person seeking such permit can make a showing that no reasonable alternatives exist to creating the noise at night, that the activity involved is compatible with the public safety and interest (such as avoiding traffic congestion on main thoroughfares), and the disruption is temporary. This includes but is not limited to:

(1) Projects whose timely completion is deemed key to public interest, such as schools, hospitals, municipal facilities, affordable housing, etc.

(2) Repairs, maintenance, or remodeling to existing occupied spaces that would prohibit normal operations if conducted during standard business hours.

(3) Placement of equipment and delivery of materials that would impact public safety and transportation if conducted during standard business hours.

Permits granted under this subsection (c) shall expire after seven days and may be renewed upon reapplication subject to the conditions listed herein.

(d) Nothing herein shall be construed to relieve any person from complying with the provisions of section 21-16 of this Code. (Ord. No. 2020-031, § 1, 3-10-20)

Secs. 21-18—21-25. Reserved.

DIVISION 2. SOUND TRUCKS

Sec. 21-26. Definitions.

For the purposes of this article, the following words and terms shall have the meanings respectively ascribed to them by this section:

Sound-amplifying equipment. The term "sound-amplifying equipment" shall be taken to mean any machine or device for the amplification of the human voice, music or any other sound; provided, however, that, such term shall not be construed to include standard automobile radios when used and heard only by occupants of the vehicle in which installed or warning devices on authorized emergency vehicles or horns or other warning devices on other vehicles used only for traffic safety purposes.

Sound truck. The term "sound truck" shall be taken to mean any motor vehicle, horse-drawn vehicle, or any mode of transportation, having mounted thereon, attached thereto, or emitting therefrom, any sound-amplifying equipment.
(Code 1975, § 36-5; Ord. No. 2023-041, § 1, 2-28-23)

Cross reference—Rules of construction and definitions generally, § 1-2.

Sec. 21-27. Registration statement—Filing required.

No person shall use, or cause to be used, a sound truck with its sound-amplifying equipment in operation in the city before filing a registration statement in writing and in duplicate with the chief of police.
(Code 1975, § 36-6)

Cross reference—Licenses, permits and miscellaneous business regulations, Ch. 17.

Sec. 21-28. Same—Contents.

The registration statement, the filing of which is required in section 21-27, shall state the following:

(a) Name and home address of the applicant.

(b) Address of place of business of applicant.

(c) License number and motor number of the sound truck to be used by applicant.

(d) Name and address of person who owns the sound truck.

(e) Name and address of the person having direct charge of the sound truck.

(f) Names and addresses of all persons who will use or operate the sound truck.

(g) The purpose for which the sound truck will be used.

(h) A general statement as to the section or sections of the city in which the sound truck will be used.

(i) The proposed hours of operation of the sound truck.

(j) The number of days of proposed operation of the sound truck.

(k) A general description of the sound amplifying equipment which is to be used.

(l) The maximum sound-producing power of the sound-amplifying equipment to be used in or on the sound

truck. In regard to such maximum sound-producing power, this item shall contain a statement as to the following:

(1) The wattage to be used.

(2) The volume in decibels of the sound which will be produced.

(3) The approximate maximum distance for which sound will be thrown from the sound truck.

(Code 1975, § 36-7)

Sec. 21-29. Same—Amendment.

All persons using sound trucks or causing them to be used, shall amend any registration statement filed pursuant to section 21-27 of this division within forty-eight (48) hours after any change in the information therein furnished.
(Code 1975, § 36-8)

Sec. 21-30. Same—Return to applicant of certified copy.

The chief of police shall return to each applicant, under sections 21-27 and 21-28, one copy of his registration statement duly certified by the chief of police as a correct copy of the application in question.
(Code 1975, § 36-9)

Sec. 21-31. Same—Possession and display of certified statement.

A copy of the registration statement required by this article, certified as provided in section 21-29, shall be in the possession of any person operating the sound truck at all times while the sound truck's sound-amplifying equipment is in operation and such copy shall be promptly displayed and shown to any policeman of the city upon request.
(Code 1975, § 36-10)

Sec. 21-32. Applicability of division.

Use of sound trucks in the city with sound amplifying equipment in operation shall be subject to the regulations set out in this division.
(Code 1975, § 36-11)

[The next page is 1309]

Sec. 21-33. Types of sound permitted.

Pursuant to section 21-32, the only sounds permitted are music or human speech.
(Code 1975, § 36-12)

Sec. 21-34. Hours of operation.

Pursuant to section 21-32, operations are permitted for four (4) hours each day, except on Sundays and legal holidays, when no operations shall be authorized. The permitted four (4) hours of operation shall be between the hours of 11:30 a.m. and 1:30 p.m. and between the hours of 4:30 p.m. and 6:30 p.m.
(Code 1975, § 36-13)

Sec. 21-35. Sound truck to maintain ten miles per hour.

Sound-amplifying equipment shall not be operated unless the sound truck upon which such equipment is mounted is operated at a speed of at least ten (10) miles per hour, except when such truck is stopped or impeded by traffic. Where stopped by traffic such sound-amplifying equipment shall not be operated for longer than one minute at each stop.
(Code 1975, § 36-14)

Sec. 21-36. Operation near hospital, etc., prohibited.

Pursuant to section 21-32, sound shall not be issued within one hundred (100) yards of hospitals, schools, churches, courthouses or polling places.
(Code 1975, § 36-15)

Sec. 21-37. Profane or slanderous speech prohibited.

Pursuant to section 21-32, the human speech and music amplified shall not be profane, lewd, indecent, or slanderous.
(Code 1975, § 36-17)

Sec. 21-38. Restrictions on volume of sound.

The volume of sound shall be controlled so that it will not be audible for a distance in excess of one hundred (100) feet from the

sound truck and so that such volume is not unreasonably loud, raucous, jarring, disturbing or a nuisance to persons within the area of audibility.
(Code 1975, § 36-18)

Sec. 21-39. Limitation on wattage.

No sound-amplifying equipment shall be operated with an excess of fifteen (15) watts of power in the last stage of amplification.
(Code 1975, § 36-19)

Secs. 21-40—21-50. Reserved.

ARTICLE III. NUISANCES*

DIVISION 1. GENERALLY

Sec. 21-51. Definitions.

[The following words and terms when used in this article shall for the purpose of this article have the meanings respectively ascribed to them in this section.]

(a) *Abatement* means the removal, stoppage, prostration, or destruction of that which causes or constitutes a nuisance, whether by breaking or pulling it down, or otherwise destroying, or effacing it.

(b) *Architecturally or historically significant structure* means any property that is over fifty (50) years old *or* subject to the authority of the Board of Architectural Review as described in section 54-232 [Zoning Ordinance].

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*__Editor's note—__Ord. No. 2000-22, § 1, adopted Feb. 22, 2000 amended former Art. III, Divs. 1 and 2, in its entirety to read as herein set out. Former Art. III pertained to similar subject matter and derived from Code of 1975 and the following ordinances: Ord. No. 1993-284, § 2, 8-10-93; Ord. No. 1997-220, § 1, 6-17-97; Ord. No. 1984-16, § 1, 4-24-84; Ord. No. 1999-93, §§ 1—4, 7-20-99.

(c) *Department* means the city department having proper jurisdiction of the abatement of the type of nuisance generating a complaint or requiring action.

(d) *Owner* means the owner of record based on the Charleston County Tax Assessor's record or any person with legal, financial or equitable interest in the property on which the alleged public nuisance exists at the time of the violation.

(e) *Property* means any real property, premises, structure or location on which a public nuisance is alleged to exist.

(f) *Public nuisance* means any fence, wall, shed, deck, house, garage, building, structure or any part of any of the aforesaid; or exterior surfaces, including but not limited to exterior doors, door and window frames, cornices, porches, trim, balconies, decks, fences, peeling, flaking or chipped paint, siding, masonry joints, skylights, roofs, or metal surfaces; or any tree, pole, smokestack; or any excavation, hole, pit, basement, cellar, sidewalk subspace, dock, wharf or landing dock; or any lot, land, yard, premises or location which in its entirety, or in any part thereof, by reason of its use, permitted use, or the condition in which the same is found or permitted to be or remain, shall or may endanger the health, safety, life, limb or property, or cause any hurt, harm, inconvenience, discomfort, damage or injury to any one or more individuals in the city, in any one or more of the following particulars:

(1) By reason of being a menace, threat and/or hazard to the general health and safety of the community.

(2) By reason of being a fire hazard.

(3) By reason of being unsafe for occupancy, or use on, in, upon, about or around the aforesaid property.

(4) By reason of lack of sufficient or adequate maintenance of the property, and/or being vacant, any of which depreciates the enjoyment and use of other properties in the immediate vicinity to such an extent that it is harmful to the community in which such property is situated or such condition exists.

(5) By reason of endangering the architectural preservation of a structure or its appurtenances or by reason of not being weather resistant or water tight.

(g) Further, public nuisances shall also include but not be limited to the following acts, omissions, conditions or things:

(1) *Overhanging obstructions.*

a. All signs and billboards, awnings and other similar structures over or near streets, sidewalks, public grounds of places frequented by the public, so situated or constructed as to endanger the public safety;

b. All trees, hedges, billboards or other obstructions which prevent persons driving vehicles on public streets, alleys or highways from obtaining a clear view of traffic or traffic control devices (signs or traffic signals) when approaching an intersection or pedestrian cross-walk;

c. All limbs of trees or vegetative growth which project over a public sidewalk, less than eight (8) feet six (6) inches above the surface thereof or less than fifteen (15) feet above the surface of a public roadway;

d. All wires over streets, alleys or public grounds which are strung less than fifteen (15) feet above the surface of street or ground.

(2) *Safety and obstruction of streets.*

a. All obstructions of streets, alleys, sidewalks, traffic control devices, or crosswalks and all excavations in or under the same, except as permitted by the ordinances of the city or which, although made in accordance with such ordinances, are kept or maintained for an unreasonable length of time after the purpose thereof has been accomplished;

b. All open and unguarded pits, wells, excavations or basements freely accessible from any public street, alley or sidewalk;

c. Any unauthorized or unlawful use of property abutting on a public street, alley or sidewalk or of a

public street, alley or sidewalk which causes large crowds of people to gather, obstructing traffic and free use of the streets or sidewalks;

d. Unless authorized by the city, any lawful use of property abutting on a public street, alley or sidewalk or of a public street, alley or sidewalk which causes large crowds of people to gather, obstructing traffic and free use of the streets and sidewalks;

e. Unless authorized by the city, any use or activity on the public rights-of-way which creates, causes, contributes or allows large crowds of people to gather or is an obstruction to the public rights-of-way, including, but not limited to, crates, tables, boxes, merchandise, goods, wares or other fixtures, articles, or personal property whatsoever, whether they be for sale, exhibition, observation, display, or any other purpose;

f. Three or more violations by a commercial enterprise of local or state business licensing regulation, ordinance, or statute prohibiting the maintenance of a public nuisance as defined herein. For purposes of this section a violation shall mean an implementation of an enforcement action in response to a violation of law, with or without an arrest or conviction.

(3) *Abandoned items*

a. All abandoned refrigerators or iceboxes;

b. All abandoned vehicles as defined in section 14-31 of this Code;

c. Any abandoned mechanical equipment including, but not limited to air conditioners, heat pumps, boilers or furnaces.

d. All abandoned sheds or cargo containers.

(4) *Environmental concerns.*

a. Carcasses of animals not buried or otherwise disposed of in a sanitary manner within twenty-four (24) hours after death;

b. Accumulations of decayed animal or vegetable matter, trash, rubbish, construction materials, furniture, furnishings, bedding, packing material, scrap metal or any material whatsoever in which flies, mosquitoes, disease-carrying insects, rats or other vermin may breed;

c. All stagnant water in which mosquitoes, flies or other insects can multiply;

d. Privy vaults and garbage or refuse containers that are not insect-proof;

e. All noxious weeds or vegetation;

f. The escape of smoke, soot, cinders, noxious acids, fumes, gases, fly ash or industrial dust within the city limits or within one mile therefrom in such quantities as to endanger the health of persons of ordinary sensibilities or to threaten or cause substantial injury to property;

g. The pollution of any public well or cistern, stream, lake, canal or body of water;

h. Any use of property, substances or things within the city emitting or causing any foul, offensive, noisome, nauseous, noxious, or disagreeable odors, effluvia or stenches repulsive to the physical senses of ordinary persons which may annoy, discomfort, injure or inconvenience the health thereof.

(5) *Sampling.* The act of casting throwing, depositing, placing, posting, affixing, circulating or distributing, or causing to be cast, thrown, deposited, placed, posted or affixed, circulated or distributed any free product, free merchandise, or free sample of a product or merchandise for the purpose of advertising merchandise, commodity, property, trade, business service, service, art or skill from or upon any sidewalk or building:

a. On King Street between Line Street and Broad Street;

b. On streets crossing King Street for one (1) block in either direction of King Street between and including Line Street and Broad Street;

c. On North and South Market Streets, between King Street and East Bay Street; and

d. On streets crossing North and South Market Streets for one (1) block in either direction from North and South Market Streets between and including King and East Bay Street.

(h) *Summary abatement* means abatement of the nuisance by the city, by removal, repair, or other acts with limited notice to the owner, agent, or occupant of the property.
(Ord. No. 2000-22, § 1, 2-22-00; Ord. No. 2003-82, §§ 1, 2, 8-19-03; Ord. No. 2010-01, § 1, 1-12-10; Ord. No. 2010-232, § 1, 9-28-10; Ord. No. 2013-112, § 1, 10-22-13; Ord. No. 2020-172, § 1, 12-1-20)

Sec. 21-52. Public nuisances prohibited.

No person shall erect, contrive, cause, continue, maintain or permit to exist any public nuisance within the city.
(Ord. No. 2000-22, § 1, 2-22-00)

Sec. 21-53. Contributing to or maintaining a public nuisance prohibited.

It shall be unlawful for a non-resident owner after receiving actual notice of the existence of a public nuisance on the non-resident owner's property, to contribute to, maintain, or permit the public nuisance or its continuation thereof on the non-resident owner's property. A non-resident owner shall mean an owner of property who does not reside on the property where the public nuisance exists and who does not employ a professional, licensed manager or management company.
(Ord. No. 2010-248, § 2, 10-26-10)

Editor's note—Ord. No. 2010-248, §§ 1 and 2, adopted Oct. 26, 2010, renumbered the former § 21-53 as § 21-54 and enacted a new § 21-53 as set out herein. The historical notation has been retained with the amended provisions for reference purposes.

Sec. 21-54. Minimum standards for vacant structures.

(a) *Definitions.* The following words and terms shall, for the purposes of this section, have the meanings shown herein.

Blight means the physical deterioration of property that results in the reduction in value of that property.

Building means any structure, including, but not limited to, any residential, commercial, industrial, or assembly structure.

Vacant building means any building or structure on a parcel of real property that: (A) is unoccupied, unattended, and is not actively used as a place of residence or business by persons who have a legal right to be on the premises for a period of thirty (30) days or more, or (B) is open or unsecured so that unauthorized admittance may be gained without damaging any portion of the property. "Vacant building" does not include a seasonally occupied residence or a residence owned by an individual actively serving in the military.

(b) *Enforcement and remedies for violation.* A building that is boarded or vacant for more than one year in violation of this section shall be a public nuisance. In addition to the provisions in this section, the city is authorized to use other remedies set forth in this Code and state law. The remedies, procedures, and penalties provided by this section are cumulative to each other and to any others available under state law or other city ordinances.

(c) *Owner responsibilities.* No person, corporation, or other legal entity shall allow a building designed for human use or occupancy to stand vacant for more than thirty (30) days unless the owner establishes by substantial evidence to the reasonable satisfaction of the code enforcement official that one of the following applies:

(1) *Permits.* The building is the subject of an active building permit for the repair or rehabilitation and the owner is progressing diligently to complete the repair or rehabilitation.

(2) *Sale or lease.* The building meets all applicable codes, does not contribute to blight, is ready for occupancy, and is actively being offered for sale, lease, or rent.

(3) *Maintained.* The building does not contribute to and is not likely to contribute to blight because the owner is actively maintaining and monitoring the building so that it does not contribute to blight. Active maintenance and monitoring shall include:

a. Maintenance of landscaping and plant material in good condition. Vegetation, including, but not limited to, plants, trees, shrubbery and grass, which are dead, decayed, or diseased shall be removed. Overgrown vegetation shall be trimmed grass and weeds higher than twelve (12) inches.

b. Maintenance of the exterior of the building, including, but not limited to, paint and finishes in good condition.

c. Prompt and regular removal of all exterior trash, debris, and graffiti. Property shall be kept clean and sanitary and shall be free of any accumulation of debris, junk, wood, trash or other materials on the property. There shall be no inoperable equipment or vehicles, broken or discarded furniture, boxes, lumber, junk or trash stored in any yard area of the vacant property, unless such equipment, lumber or material is actively being used in the renovation of, or construction on the vacant property. There shall be no trash or garbage container bins or boxes that are unclean, uncovered or damaged. Debris, furniture, fixtures, scrap construction materials, trash, unused equipment, inoperable vehicles and auto parts shall be removed on a weekly basis.

d. The prevention and control of rodent, varmint or insect infestations.

e. Maintenance of the building in continuing compliance with all applicable codes and regulations.

f. Prevention of criminal activity on the premises, including, but not limited to, use and sale of controlled substances, prostitution, criminal street gang activity, loitering, or trespassing.

(4) *Natural disasters.* The building is vacant due to fire, flood, earthquake, or other form of natural disaster and the owner is actively pursuing assistance for demolition, rehabilitation, or restoration of the building and or premises from local, state, or federal assistance programs or from insurance agencies.

(d) *Rehabilitation.* The owner of any boarded building, whether boarded by voluntary action of the owner or as a result of code enforcement activity, shall cause the boarded building to be rehabilitated for occupancy within twelve (12) months after the building is boarded and shall comply with subsection (c) above. An owner may apply for an additional six-month extension for the boarding which shall be permitted if the owner can show that the building is repairable and will be suitable for habitation by the end of the extension.

(e) *Boarded-up structures.* The owner of any boarded building, whether boarded by voluntary action of the owner or as a result of code enforcement activity, shall ensure that the building is boarded in compliance with the standards for boarding a vacant building as set forth in section 21-531. In no case shall a structure remain boarded for a period of time more than twelve (12) months or for a period of time longer than a year and a half if an extension is granted.

Exception: Commercial structures, when the city determines that it is in the public interest and the owner provides substantial evidence to the reasonable satisfaction of the code enforcement official that the building complies with subsection (c) above.

(f) *Standards for boarding a vacant building.* The boarding of a vacant building shall be in accordance with the specifications approved by the chief building official or his designee and shall prominently contain the name, address, and telephone number of the owner(s) of the building.

(g) *Trespass notice.* The owner of the property shall post "No Trespassing" signs on the property and sign a letter with the city police department authorizing the department to enforce no trespassing on the premises.

(Ord. No. 2002-25, § 2, 3-12-02; Ord. No. 2010-109, § 1, 7-20-10; Ord. No. 2010-248, § 1, 10-26-10; Ord. No. 2020-163, § 1, 11-24-20)

Note—See the editor's note to § 21-53.

Secs. 21-55—21-60. Reserved.

DIVISION 2. ABATEMENT

Sec. 21-61. Abatement; immediate danger.

(a) Whenever a complaint is made to a city department of the existence of a public nuisance, as defined in section 21-51, that department shall promptly determine whether it has proper jurisdiction over the type of nuisance to be abated or whether another city department has proper jurisdiction. If it is determined that another city department, other than the one receiving the initial complaint, has proper jurisdiction then the proper department shall be notified immediately. In any event, the appropriate city department exercising jurisdiction shall cause to be inspected the property on which it is alleged that such public nuisance exists. Should the department find that a public nuisance exists, and that the public health, safety or welfare may be in immediate danger, then summary abatement procedures shall be implemented and the department may cause the nuisance to be removed or abated. The department shall notify the chief building official if the public nuisance involves a building that appears structurally unsafe. The chief building official, upon being notified by the department shall cause the building on which it is alleged such public nuisance exists to be inspected and submit a written report of such inspection, including photographs, and the findings to the department that made the initial report.

(b) When summary abatement is authorized, the department shall issue a notice to the owner under the provisions of 21-62 (b) and (c) and shall simultaneously post the property. Within

fifteen (15) days after the posting and mailing of a notice to abate a nuisance, the owner, agent of the owner, or individual in possession of the affected property shall remove and abate such nuisance.

(c) Nothing in this chapter shall limit the authority or powers of the chief building official or chief fire official as otherwise provided in this Code.
(Ord. No. 2000-22, § 1, 2-22-00)

Sec. 21-62. Abatement in other cases.

(a) Whenever a complaint is made to a city department of the existence of a public nuisance, as defined in Section 21-51, that department shall promptly determine whether it has proper jurisdiction over the type of nuisance to be abated or whether another city department has proper jurisdiction. If it is determined that another city department, other than the one receiving the initial complaint, has proper jurisdiction then the proper department shall be notified immediately. In any event, the appropriate city department exercising jurisdiction shall promptly cause to be inspected the property on which it is alleged that such public nuisance exists. If, after inspecting the property on which the nuisance is reported, the department declares the existence of a public nuisance, but the nature thereof is not such as to require the summary abatement of such nuisance, then, regular abatement procedures shall be followed. Photographs and reports of the findings and inspections shall be made and filed with the department.

(b) The department shall determine the individual, firm or corporation who, from the records in the county tax assessor's office, appears to be the titled owner of the aforesaid property and cause a written notice to be served on such individual, firm or corporation by personal service or by leaving a copy of the notice at the usual place of residence or business of such owner, or address of such owner shown in the county tax assessor's records, or by copy mailed to such owner at such place or address by United States certified mail return receipt. If service of such written notice is unable to be perfected by any of the methods described above, the department shall cause a copy of the aforesaid notice to be published in a newspaper of general circulation in the city, once a week for two (2) consecutive weeks, and shall further cause a copy of the aforesaid notice to be left with the individual, if any, in possession of such property on which it is alleged such public nuisance exists, or if there is no individual in possession thereof, the department shall cause a copy of the notice to be posted at such structure, location or premises. The department shall also determine from the office of the county register of mesne conveyance, who the lienholder of the property, if any, as documented therein, is and cause a written notice to be served on such lienholder by United States mail return receipt.

(c) The aforesaid notice to the owner, and lienholder, if any, of the property shall state clearly and concisely the findings of the department with respect to the existence of a public nuisance. The notice shall further state that unless the owner thereof shall cause the abatement of the public nuisance, pursuant to the orders contained in the departments notice, the public nuisance shall be abated by the city at the expense of the owner.

(d) Any person who is the record owner of the premises, location or structure at the time an order pursuant to this article is issued and served upon him, shall be responsible for complying with that order, and liable for any costs incurred by the city therewith, notwithstanding the fact that he conveys his interests in the property to another after such order was issued and served.

(e) It shall not be a defense to the determination that a public nuisance exists that the property is boarded up or otherwise enclosed.
(Ord. No. 2000-22, § 1, 2-22-00)

Sec. 21-63. Abatement by owner.

(a) Within thirty (30) days after the posting and mailing of a notice to abate a nuisance, the owner, agent of the owner, or individual in possession of the affected property shall remove and abate such nuisance or show that no nuisance in fact exists. The owner, agent of the owner, or individual in possession of the affected property shall file a written statement with the department that no nuisance in fact exists. However, the mere filing of the statement alone shall not be conclusive evidence of compliance with this ordinance, but shall be subject to verification and/or rebuttal by the department.
(Ord. No. 2000-22, § 1, 2-22-00)

Sec. 21-64. Appeal procedures; hearing.

(a) The owner or occupant of the property who has been served with a notice pursuant to this article that a public nuisance exists and that it must be abated within thirty (30) days, may, within ten (10) calendar days after receipt of such notice, make a written demand to the department for a hearing on the question of whether a public nuisance in fact exists. Further, in those

instances where the nuisance has been abated by the city, the owner or occupant of the property who has been served with a notice pursuant to this article may, within ten (10) days after completion of the abatement, demand to the department for a hearing to review the cost of the abatement. The hearings as allowed under this section shall be held as soon as practical but in any event no later than thirty (30) calendar days following receipt by the department of the written demand and at least two (2) days' notice of the hearing shall be given to the individual who made the written demand for the hearing. Further, the department shall advise the owner of the time and location of the hearing and the right to present evidence and to be represented by counsel. The hearing shall be informal and the decision of the board, as defined in subsection (b), shall be final.

(b) The hearing shall be conducted by the livability review board as established in section 7-14 of article I, chapter 7 of this Code. The board may amend or modify the notice and/or order, or extend the time for compliance with the department's order by the owner by such date as the majority of the appeals board may determine.

(c) The owner, agent of the owner, occupant and lienholder, if any, of the subject property shall be given the opportunity to present evidence to the appeals board in the course of the hearing.

(d) In those instances where the nuisance has been abated by the city, and upon application of the owner, the appeals board shall have discretion to waive the cost of abating a nuisance, in whole or in part, if, in the course of the hearing reviewing the decision, the appeals board finds that any of the following did not conform to the provisions of this article:

(1) The notice to remove the nuisance;

(2) The work performed in abating the nuisance; or

(3) The computation of charges.

(Ord. No. 2000-22, § 1, 2-22-00; Ord. No. 2023-048, § 2, 3-14-23)

Sec. 21-65. Abatement by city; cost of abatement; court action.

(a) If the nuisance is not abated within the time provided or if the owner, occupant or person causing the nuisance cannot be found, the city shall cause the abatement or removal of such public nuisance.

(b) In addition to any other penalty imposed by this article for the erection, contrivance, creation, continuance or maintenance of a public nuisance, the cost of abating a public nuisance by the city shall become a lien upon the real estate and shall be collectable in the same manner as municipal taxes. Nothing contained in this article shall prohibit the city from exercising its rights to cause an action to abate such nuisance to be commenced in the name of the city in a court of competent jurisdiction in accordance with the provisions of the state statutes.

(Ord. No. 2000-22, § 1, 2-22-00)

DIVISION 3. ABATEMENT; ARCHITECTURALLY OR HISTORICALLY SIGNIFICANT STRUCTURES

Sec. 21-66. Determination of public nuisance; standards; right to hearing; stabilization; collection of costs.

The procedures contained in this section shall apply to historically or architecturally significant structures as defined in section 21-51.

(a) Upon a recommendation by the board of architectural review, the city preservation officer or the chief building official for the City of Charleston, or upon the initiative of the director of planning preservation and economic innovation or his designee, the city shall apply the following standards to determine if an architecturally or historically significant structure constitutes a public nuisance as herein defined and is in need of stabilization. In making said determination, the director of planning preservation and economic innovation or his designee shall request and receive a recommendation

from the city's chief building official concerning the structural status of any building in question. The following standards shall be applied in making said determination:

(1) *Structural element.* All foundations shall support the structure as originally constructed, and at all points shall be free of holes, wide cracks and buckling. Floors, exterior walls and roofs shall be free of holes, wide cracks, and loose, warped, protruding or rotting boards or any other condition which might admit moisture or other elements. Masonry joints shall be maintained. Exterior surfaces exposed to the weather shall be repaired and painted to protect them from further deterioration.

(2) *Windows, doors and bulkheads.* Windows, exterior doors and wood siding shall be watertight.

(3) *Flashings, gutters and ventilation.* Exterior flashings, including those at chimneys, doors, and windows shall be maintained in good repair. Downspouts and gutters shall be maintained so that rain runoff is directed away from the structure. Foundation and attic vents shall be maintained to ventilate the crawl and attic spaces.

(4) *Stairways, porches and appurtenances.* Inside and outside stairways, porches and appurtenances thereto, shall be maintained in good repair.

(5) *Rodent and termite infestation.* Structures shall be free of termite and rodent infestation to insure the maintenance of the structure.

(6) *Security and utilities for unoccupied buildings.* Buildings which are no longer occupied shall be secured from public access and all utilities shall be properly connected or disconnected.

(7) *Maintenance and accessory structures.* Ancillary structures and accessory buildings shall be maintained in good repair. Tree limbs shall be

trimmed away from the building and tree roots shall be cleared away from the foundations to maintain the structure(s).

(b) Upon a determination by the director of planning preservation and economic innovation or his designee that a structure constitutes a public nuisance which is supported by a recommendation from the chief building official, the director of planning preservation and economic innovation or his designee shall notify the owner of the property pursuant to the procedures outlined in 21-62(b) and (c) of this article, that the necessary stabilization repairs shall be made within thirty (30) days from the date of the notice. If an owner objects to the decision of the director of planning preservation and economic innovation or his designee, he shall have a right to a hearing pursuant to the procedures outlined in section 21-64 (b) of this article. In the event that the owner fails to make the necessary repairs to the property, the city shall order the necessary stabilization repairs to be made to the property, the cost shall become a lien upon the real estate and shall be collectable in the same manner as municipal taxes.

(Ord. No. 2008-64, § 1, 4-8-08)

DIVISION 4. WATERCRAFT AND FLOATING STRUCTURES*

Sec. 21-67. Declaration of policy, findings of fact; authority; and administration.

(a) *Declaration of policy.* It is the policy of the city to promote safety for persons and property in and connected with the use, operation, and enjoyment of vessels on the land and waters of the city and the state which are located within the jurisdictional limits of the city.

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*__Editor's note—__Ord. No. 2025-115, § 1, adopted Sept. 9, 2025, repealed the former Div. 4, §§ 21-67—21-73, and enacted a new Div. 4 as set out herein. The former division pertained to similar subject matter and derived from Ord. No. 2023-097, § 1, adopted May 23, 2023.

(b) *Findings of fact.* City council hereby makes the following findings of fact:

(1) Abandoned, derelict, and sunken, vessels as well as illegally moored and anchored watercrafts, and floating structures on the land and water of the state have become a problem by way of safety issues, aesthetics and the environment; as such, city council further finds that the regulations contained herein are necessary and proper, fair and reasonable, and are in the best interest of the city.

(2) Jurisdiction. The city's jurisdiction extends to the full extent as authorized by federal law, state law and City Code.

(c) *Mooring permits.*

(1) *Authorization.* S.C. Code § 50-21-30 specifically authorizes a municipality to adopt an ordinance requiring a permit for a watercraft or floating structure to remain moored, anchored or otherwise located in any one (1) five-mile radius on public waters within its jurisdiction for more than fourteen (14) consecutive days.

(2) *Jurisdiction for permit enforcement.* S.C. Code § 50-21-30 further extends the corporate limits of the city that borders on the high-water mark of a navigable body of water, other than the Atlantic Ocean, by one (1) mile to the center of the channel of a navigable body of water for purposes of enforcing an ordinance requiring a permit.

(d) *Administration.* The administration and enforcement of the provisions of this division shall be vested in the city's police department and department of livability. City police officers shall have the authority to board any vessel subject to the provisions of this division or to any applicable rule or regulation for the purpose of inspection or determining compliance with the provisions of this division and are empowered to issue a summons for appearance in court or make arrest for violations

of this division or the rules and regulations prescribed thereunder. Department of livability code enforcement officers may also issue a summons for violations of this division.
(Ord. No. 2025-115, § 1, 9-9-25)

Sec. 21-68. Definitions.

Except where the context clearly indicates otherwise, the following terms and phrases as used in this definition shall have the following meanings:

Abandon or *abandoned vessel* means a vessel that (a) is wrecked or junked; (b) does not have a visible identifier; and (c) remains on the waters of the state, or on public property adjacent thereto, for at least ten (10) consecutive days from the day an abandoned vessel notice is posted on the vessel. A watercraft is not abandoned if it is legally moored or is on private property.

Boat means a vessel.

City means the City of Charleston.

Department means the South Carolina Department of Natural Resources (DNR).

Derelict vessel means a vessel that (a) is wrecked or junked; (b) has a visible identifier; and (c) remains on the waters of the state, or on public property adjacent thereto, for at least twenty-one (21) consecutive days from the day a derelict vessel notice is posted on the vessel.

Floating structure means a man-made object other than a watercraft that is capable of flotation and that is not authorized by a permit issued by an agency of the state, including mooring buoys.

Junked means substantially stripped of vessel components, or spaces on the vessel that are designed to be enclosed are open to the elements.

Legally moored means any watercraft or floating structure that is not abandoned and:

(1) Moored to a dock or marina berth with permission from the dock or berth owner;

(2) Moored to a mooring buoy that is permitted by the South Carolina Department of Environmental Services (SCDES) with permission from the buoy owner;

(3) Moored to a mooring buoy with permission from the buoy owner, provided that the buoy is in the location as it existed on public waters on June 30, 2021.

Marina means a facility which provides mooring or dry storage for watercraft.

Mooring buoy means an object designed to float at or near the surface of the water that is attached to an object at the bottom of a body of water, whether permanent or temporary.

Outboard motor means a combustion engine or electric propulsion system, which is used to propel a watercraft and which is detachable from the watercraft as a unit. No outboard motor of less than five (5) horsepower or its equivalent is required to be titled under this division.

Owner means a person, other than a lienholder, who claims lawful possession of a watercraft, floating structure or outboard motor by virtue of legal title or equitable interest in it which entitled him to possession including but not limited to the person listed as the owner on a state's vessel registration records or on a United States Coast Guard certificate of documentation.

Person means an individual, a partnership, a firm, a corporation, an association, or other legal entity.

Registered owner means a person listed as the owner on a state's vessel registration records or on a United States Coast Guard certificate of documentation.

Responsible party means a person who has the right to the possession and use of a vessel.

Temporary certificate of number is a temporary registration assigned to a vessel to allow operation for a limited purpose.

Unattended as it pertains to watercrafts and floating structures means there are no observable changes in circumstances or evidence of being looked after or maintained in any way and no substantial change in location.

Use means operate, navigate, or employ.

Vessel means every description of watercraft, other than a seaplane regulated by the federal government, used or capable of being used as a means of transportation on water.

Visible identifier means (a) a hull identification number; (b) a vessel registration number of this state or another state; or (c) a vessel name and home port.

Waters of the state means waters within the territorial limits of the state but not private lakes or ponds.

Watercraft means anything used or capable of being used as a means of transportation on the water but does not include: a seaplane regulated by the federal government, water skis, aquaplanes, surfboards, windsurfers, tubes, rafts, and similar devices or anything that does not meet construction or operation requirements of state or federal government for watercraft. Watercraft also includes anything defined under this section as a "vessel".

Wrecked means listing due to water intake or hull damage, or aground and cannot be extracted without mechanical assistance. (Ord. No. 2025-115, § 1, 9-9-25)

Sec. 21-69. Reserved.

Sec. 21-70. Mooring permit required to moor or anchor within limits of the city.

(a) Any watercraft or floating structure that remains moored, anchored, or otherwise located in any one (1) five-mile radius on the waters of the city for more than fourteen (14) consecutive days must obtain a permit from the city police department.

(b) A person applying for a permit must provide the following information:

(1) Proof of ownership;

(2) Proof of current insurance as applicable pursuant to state law;

(3) Proof of current state registration or federal documentation;

(4) Name, address and telephone number of the owner or permit holder and if the watercraft or floating structure is attached to a mooring buoy, the name, address, and telephone number of the owner or permit holder of the mooring buoy;

(5) Name, address, and telephone number of a local contact who can respond to and has authority to take action on a vessel within twenty-four (24) hours if permit holder cannot be reached and the city or other government agency needs action to be taken imminently;

(6) Description of mooring or anchoring technique, and explanation of its adequacy for the location;

(7) Attestation that the watercraft or floating structure is neither derelict nor abandoned;

(8) GPS location;

(9) An emergency plan detailing the plan to safely and legally secure the watercraft or floating structure during a named storm, hurricane, or other inclement weather condition;

(10) Attestation of whether or not the watercraft will be slept on, and, if slept on, a plan detailing regular weekly pump-outs or a functioning on-board human waste management system, and provisions for the storage and disposal of any garbage or other waste.

(c) The cost of the permit shall not be more than fifteen dollars ($15.00).

(d) The person applying for the permit is legally responsible for violations of this division.

(e) *Exceptions.* This permit requirement does not apply to watercrafts or floating structures:

(1) Moored to a dock or marina berth with permission from the dock or berth owner;

(2) Moored to a mooring buoy that is permitted by SCDES with permission from the buoy owner; or

(3) Moored to a mooring buoy with permission from the buoy owner, provided that the buoy is in the location as it existed on public waters on June 30, 2021.

(f) *Permit regulations.*

(1) Permitted watercraft and floating structures:

a. Must only be moored or anchored in the area provided on the permit;

b. Must not be anchored or moored within three hundred (300) yards of a boat landing, community dock, public bridge, or marina, except for vessels within the established Ashley River Special Anchorage or with express written permission of the owner or authorized representative of the boat landing, community dock, or marina;

c. Must not be moored or anchored or able to swing within one hundred (100) feet of any other legally anchored or moored watercraft or floating structures or permitted mooring, dock or marina without written permission of the owner;

d. Must display current state, federal, or foreign registration, and must provide official documentation of registration and ownership and permits if requested by a city police or code enforcement officer;

e. Must be kept free of litter, debris, barnacles, algae, and other unsightly growth. This requirement applies not only to removal of loose litter, but to materials that already are, or may become, trapped or pinned against watercraft and floating structures;

f. Must not be unsightly, derelict, abandoned, neglected, or substantially dismantled, or improperly maintained, or be unable to be used for navigation as intended;

g. Must not be listing, aground, sinking, breaking its mooring or anchor, dragging its mooring or anchor, or at risk of any of these, or is otherwise unsuccessfully, improperly, or unsafely moored or anchored;

h. Must have a contact listed on the permit able to respond to the watercraft or floating structure within twenty-four (24) hours of the city, other government agency, police, or code enforcement officer contacting or attempting to make contact;

i. Must be equipped with a holding tank if slept on, and the owner must provide a police or code officer with proof of regular weekly pump-outs or a functioning on-board human waste management system upon request;

j. Must have provisions for the storage and disposal of any garbage or other waste which is generated or accumulates;

k. Must display proper anchor light unless located within the Ashley River Special Anchorage, and must comply with federal and state safety equipment requirements;

l. Must be properly secured during hurricanes and storms to prevent damage to others' property;

m. Must not relocate to a different area for the purposes of mooring unless the permit holder notifies the police department, and the relocation is approved and amended on the permit; and

n. Must provide proof of any and all insurance policies as are currently required by state law if requested by a city police or code enforcement officer.

(g) *Permit denial or revocation.*

(1) Permits may be denied for non-compliance with the provisions of this division or other laws or regulations governing or related to the watercraft or floating structure.

(2) If a permit is denied a person may reapply for a permit once they are in compliance with the provisions of this division and other laws or regulations governing or related to the watercraft or floating structure.

(3) Permits may be denied or revoked for violations of this division or other laws or regulations governing or related to the watercraft or floating structure, as well as violations of federal state, county or city laws committed on or involving the watercraft or floating structure.

(4) A person whose permit is denied or revoked for two (2) or more times shall be ineligible to apply for a permit for a period of one (1) year from the date of the most recent denial or revocation.

(5) A person who is denied a permit or has their permit revoked may appeal the decision to the committee on public safety by filing written notice with the clerk of council within ten (10) days of being notified of the denial or revocation.

(h) *Renewal and changes to permit.*

(1) Permits must be renewed every sixty (60) days.

(2) Permit holders must notify the police department within twenty-four (24) hours of any changes to the information provided in the permit application.

(Ord. No. 2025-115, § 1, 9-9-25)

Sec. 21-71. Watercraft titles.

(a) Any watercraft or outboard motor, or both, held or principally used in this state must be titled by the department of natural resources. An owner of a watercraft or outboard motor titled in this state must notify the department within thirty (30) days if ownership is transferred to another person, entity, or transferred out of state or otherwise disposed.

(b) *Exceptions to titling.*

(1) Watercraft documented by the U.S. Coast Guard or its predecessor or successor agency and water skis,

aquaplanes, surfboard, windsurfers, and similar devices, and those watercraft propelled exclusively by human power are not required to be titled.

(c) *Evidence of ownership.*

(1) A certificate of title to a watercraft or outboard motor is prima facie evidence of ownership of a watercraft or outboard motor. All watercraft and outboard motors subject to the titling requirements of this division must be titled.

(2) No person may acquire a watercraft or outboard motor, subject to the titling requirements of this division and S.C. Code title 50, without obtaining a certificate of title or in the case of a new watercraft or outboard motor a manufacturer's or importer's statement of origin reflecting the person acquiring the watercraft or outboard motor as the original purchaser as provided in this division and/or S.C. Code title 50. In the case of watercraft or outboard motors from other jurisdictions that do not require titling, a bill of sale and proof of registration may be substituted for this title.

(3) No person may dispose of a watercraft or outboard motor subject to the titling provisions of this division and S.C. Code title 50 without transferring to the person acquiring the watercraft or outboard motor a certificate of title reflecting the transfer of the watercraft or outboard motor. In the case of new watercraft, a manufacturer's statement of origin must be delivered to the purchaser. In the case of watercraft or outboard motors from other states or foreign jurisdictions, which do not title such watercraft or outboard motors, a bill of sale and proof of registration may be substituted.

(Ord. No. 2025-115, § 1, 9-9-25)

Sec. 21-72. Reserved.

Sec. 21-73. Duty of owners to comply with all laws.

(a) It shall be the duty of the owner, agent, occupant, or lessee of any watercraft or floating structure to comply with all state, federal, and local laws and regulations applicable to watercrafts, floating structures, or outboard motors to include proper upkeep and maintenance.
(Ord. No. 2025-115, § 1, 9-9-25)

Secs. 21-74—21-80. Reserved.

ARTICLE IV. OFFENSES AGAINST PROPERTY

Sec. 21-81. Larceny.

No person shall wrongfully take, steal, obtain or withhold by any means whatever, from the possession of the true owner or any other person, any money, personal property or article of value of any kind of a value of less than two hundred dollars ($200.00) with intent, permanent or temporary, to deprive or defraud another person of the use and benefit of the property, or to appropriate the same to his own use or the use of any person other than the true owner.
(Code 1975, § 37-1; Ord. No. 1984-46, § 1, 4-24-84; Ord. No. 2008-64, § 1, 4-8-08)

State law reference—Petit larceny, S.C. Code, 1976, § 16-13-30.

Sec. 21-82. Larceny by false pretense.

No person shall induce, or attempt to induce, any person to give up, or pay over any money or other thing of value, by any false representation or pretense, or in exchange for any false or bogus coin or check, draft or other false evidence of value, or in consideration of refraining from a lawful or unlawful arrest, or in consideration of refraining from reporting any unlawful act to any public official.
(Code 1975, § 37-2)

State law reference—Larceny by false pretense, S.C. Code 1976, §§ 16-13-240—16-13-290.

Sec. 21-83. Injuring or misuse of public property prohibited.

No person shall willfully injure or destroy, or illegally make use of, any public property in the city.
(Code 1975, § 37-3)

Sec. 21-84. Damaging or removing private property.

(a) No person shall break, deface, or destroy any private property of another without first having obtained the consent of the owner.

(b) No person shall remove any private property of another without first having obtained the consent of the owner including, but not limited to, shopping carts.
(Code 1975, § 37-5; Ord. No. 2007-146, § 1, 7-17-07)

Sec. 21-85. Trespassing on property.

(a) No person shall willfully enter upon the lands or premises of another, public or private, without the consent of the owner or person in charge, or after having been forbidden to do so or after such land or premises has been posted by the owner, occupant or any other authorized person with a conspicuous notice forbidding trespassing.

(b) No person shall neglect or refuse to depart from the property of another, public or private, when ordered to do so by the owner, occupant or any other person with authority to order such departure.
(Code 1975, § 37-7)

Sec. 21-86. Defacing public and private property.

(a) Defacement. It shall be unlawful for any person, organization, or entity to erect, post, paste, paint, glue, write, thaw, chalk, stamp, stick, print, nail, staple, tack, attach or affix by any means whatsoever any handbill, poster, card, notice, marker, placard, bumper sticker, gummed label, sign, advertisement, inscription, figure, mark, symbol, lettering, name, sticker or any other material upon any public sidewalk, building, curb, gutter, wall, flagstone, tree, lamp post, awning post, telegraph pole,

telephone pole, public utility pole, public garage bin, bus shelter, bridge [abutment], highway fence, barrel, box, parking meter, mailbox, traffic [signal] control device, traffic stanchion, traffic sign (including pole), tree box, tree pit protection device, bench, traffic barrier, hydrant, public pay telephone, picnic tables, playground equipment, or any other public property or on private property except by permission of the owner or authorized agent of the owner of such property.

(b) It shall be unlawful for any person to knowingly authorize or employ any person to cause the erecting, posting, plastering, painting, gluing, writing, drawing, chalking, stamping, sticking, printing, nailing, stapling, tacking, or attaching or affixing by any means whatsoever of any handbill, poster, card, notice, marker, placard, bumper sticker, gummed label, sign, advertisement, inscription, figure, mark, symbol, lettering, name, sticker or any other material not exempt pursuant to the subsection 21-87(c) herein upon any public sidewalk, building, curb, gutter, wall, flagstone, tree, lamp post, awning post, telegraph pole, telephone pole, public utility pole, public garage bin, bus shelter, bridge [abutment], highway fence, barrel, box, parking meter, mailbox, traffic [signal] control device, traffic stanchion, traffic sign (including pole), tree box, tree pit protection device, bench, traffic barrier, hydrant, public pay telephone, picnic tables, playground equipment, or any other public property or on private property except by permission of the owner or authorized agent of the owner of such property.

(c) The provisions of this section shall not apply to any handbill, poster, card, notice, marker, placard, bumper sticker, gummed label, sign, advertisement, inscription, figure, mark, symbol, lettering, name, sticker or any other material posted by or under the direction or authorization of the mayor, city council, or any city department or agency.

(d) For purposes of this section, there shall be a rebuttable presumption that the person, firm, corporation, or other entity whose name, telephone number, address, photograph, or other identifying information appears on any handbill, poster, card, notice, marker, placard, bumper sticker, gummed label, sign, advertisement, inscription, figure, mark, symbol, lettering, name,

sticker or any other material on any item or structure described in section 21-87(a) of this section violated this section by either (i) erecting, posting, plastering, painting, gluing, writing, thawing, chalking, stamping, sticking, printing, nailing, stapling, tacking, or attaching or affixing, or (ii) directing or permitting an agent, employee or other individual under such persons control to engage in such activity.
(Code 1975, § 37-20; Ord. No. 2006-494, § 1, 10-24-06)

Editor's note—Ord. No. 2006-494, §§ 1—4, adopted Oct. 24, 2006, amended § 21-86, repealed former § 21-87, and renumbered former §§ 21-88—21-90 as §§ 21-87—21-89. Repealed former § 21-87 pertained to the posting of advertisements or signs on buildings and derived the Code of 1975, § 37-21.

Sec. 21-87. Defrauding public accommodations, proof; exception.

(a) No person shall obtain food, lodging or other accommodation at any hotel, motel, inn, boarding, eating or rooming house or place, or any other lodging place, with the intent to defraud the owner or keeper.

(b) Proof that lodging, food and other accommodations were obtained by false pretense or fictitious show of any package or other property or that the person gave a check or negotiable paper on which payment was refused or that the person left the hotel, motel, inn, boarding, eating or rooming house or place, or other lodging place, without paying or offering to pay for the food, lodging or other accommodation or that the person surreptitiously removed or attempted to remove the package or property, or that the person registered under a fictitious name shall be prima facie proof of attempt to defraud.

(c) This section shall not apply where there has been an agreement in writing for delay in payment.
(Code 1975, § 37-52; Ord. No. 2006-494, § 3, 10-24-06)

Sec. 21-88. Receiving stolen goods.

(a) No person shall buy or receive any goods, chattels or other property knowing or having reasonable cause to believe such property to have been stolen or knowing that the seller thereof

has not good and lawful title to the property, or without having made a reasonable and careful inquiry into the title or ownership of such property.

(b) No person shall purchase any goods, chattels or other property from or through any minor without the written permission of the parent or guardian of any such minor.

(c) The purchase or possession of any stolen goods, chattels or other property shall be prima facie evidence of knowledge that the same was stolen and the burden of proof to show facts justifying a belief that the property was not stolen property shall be upon the party purchasing or in possession of the property.

(Code 1975, § 37-53; Ord. No. 2006-494, § 3, 10-24-06)

State law reference—Receiving stolen goods, S.C. Code 1976, § 16-13-180.

Sec. 21-89. Adoption of state law as to drawing and uttering fraudulent checks.

No person shall draw or utter a fraudulent check in violation of section 34-11-60 of the Code of Laws of South Carolina, 1976, as amended. The provisions of sections 34-11-60 to 34-11-95 of the Code of Laws of South Carolina, 1976, as amended, shall apply to the prosecutions of any persons charged with this offense.

(Code 1975, § 37-61A; Ord. No. 1979-66, § 2, 9-11-79; Ord. No. 2006-494, § 3, 10-24-06)

State law reference—Necessity for ordinance to allow trial in municipal court, S.C. Code 1976, § 34-11-90.

Sec. 21-90. Unlawful urination or defecation.

It shall be unlawful for any person to urinate or defecate on or in any public property or private property within the city except in a restroom or other toilet facility designated for the sanitary disposal of human waste.

(Ord. No. 2008-150, § 1, 11-25-08)

Secs. 21-91—21-105. Reserved.

ARTICLE V. OFFENSES AGAINST PUBLIC PEACE*

Sec. 21-106. Assault.

No person shall attempt or offer with unlawful force or violence to do bodily harm to another person, whether or not the attempt or offer is consummated.
(Code 1975, § 37-22)

Sec. 21-107. Disturbing school prohibited.

(a) No person shall willfully or unnecessarily:

(1) Interfere with or disturb in any way or in any place the students or teachers of any school or college,

(2) Loiter about such school or college premises, or

(3) Act in an obnoxious manner thereon.

(b) No person shall:

(1) Enter upon school or college premises, or

(2) Loiter around the premises,

except on business, without the permission of the principal or person in charge.
(Code 1975, § 37-23)

State law reference—Disturbing schools, S.C. Code 1976, § 16-17-420.

Sec. 21-108. Loitering.

(a) *Loitering.* No person shall loiter or prowl in a place, at a time or in a manner not usual for law abiding individuals under circumstances that warrant alarm for the safety of persons or property in the vicinity. Among the circumstances which may be considered in determining whether such alarm is warranted is the fact that the actor takes flight upon appearance of a police officer, refuses to identify himself or manifestly endeavors to conceal himself or any object. Unless flight by the actor or other circumstances makes it impracticable, a police officer, prior to any arrest for an offense under this subsection, shall afford the

*__State law reference—__Offenses against the person and the peace generally, S.C. Code 1976, § 16-3-10 et seq. and 16-5-10 et seq., respectively.

actor an opportunity to dispel any alarm which would otherwise be warranted, by requesting him to identify himself and explain his presence and conduct. No person shall be convicted of violating this subsection if the police officer did not comply with the preceding sentence or if it appears at trial that the explanation given was true and would have dispelled the alarm and disclosed the lawful purpose.

The provisions of the two (2) preceding sentences are applicable to this paragraph (a) and each subsequent paragraphs (b) through (h) herein.

(b) *Dwelling areas.* No person shall hide, wait or otherwise loiter in the vicinity of any private dwelling house, apartment building or any other place of residence with the unlawful intent to watch, gaze or look upon the occupants therein in a clandestine manner.

(c) *Public rest rooms.* No person shall loiter in or about any toilet open to the public for the purpose of engaging in or soliciting any lewd or lascivious or any unlawful act.

(d) *Schools, parks and public grounds.* No person shall loiter in or about any school, park or public place at or near which children or students attend or normally congregate. As used in this subsection, "loiter" means to delay, to linger or to idle in or about any said school, park or public place without a lawful purpose for being present.

(e) *Buildings.* No person shall loiter or lodge in any building, structure or place, whether public or private, without the permission of the owner or person entitled to possession or in control thereof.

(f) *Restaurants, taverns.* No person shall loiter in or about a restaurant, tavern or other building open to the public. As used in this subsection, "loiter" means to, without just cause, remain in a restaurant, tavern or public building or to remain upon the property immediately adjacent thereto after being asked to leave by the owner or person entitled to possession or in control thereof.

(g) *Parking lots.* No person shall loiter in or upon any public parking surface lot or public parking structure, either on foot or in or upon any conveyance being driven or parked thereon, without the permission of the owner or person entitled to possession or in control thereof. As used in this subsection:

(1) *Public parking structure* means a building enclosure or garage above or under the ground, or any portion thereof, in which automobiles or motor vehicles may be parked, stored, housed or kept, and open to public use with or without charge.

(2) *Public parking surface lot* means five (5) or more ground level parking spaces, or any portion thereof, not located in a structure, upon which automobiles or motor vehicles may be parked, stored, housed or kept, and open to public use with or without charge.

(h) *Private or public residential property.* No person shall loiter in or on private or public residential property in residential neighborhoods. As used in this subsection, "loiter" means to, without just cause, linger, remain in or on private or public residential property, or to remain upon the property immediately adjacent thereto after being asked to leave by the owner or person entitled to possession or in control thereof, or where "No Loitering" signs are posted.

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(i) *Requirements of identification.* A person being asked for identification pursuant to this section shall provide the police officer with his name and address either verbally or by providing the officer with written evidence of the person's name and address, including but not limited to a driver's license or picture identification.

(j) *Penalty; continuing violations.* Any person who is convicted of any violation of this section, the court before whom an offender shall be tried may sentence him to pay a fine not exceeding the maximum fine permitted by law or serve a term not exceeding thirty (30) days in jail, or both. Each day any violation of this ordinance shall continue shall constitute a separate offense.

(k) *Court order on jurisdictional limits.* In addition to the penalty that may be imposed pursuant to subsection (j) above, any person who is arrested for and/or convicted of violating any provision of this section may be subject to an order of the court which shall impose a jurisdictional limit on said person prohibiting his presence in a specific geographic area of the City of Charleston. Failure to comply with the court order shall constitute a violation of the court order and shall result in the following: (1) in the case of a bond where jurisdictional limits have been imposed, the bond may be revoked and the person shall be incarcerated until trial; and/or (2) in the case of a sentence where jurisdictional limits have been imposed, the suspended sentence may be revoked and the person shall be incarcerated until he has served the original sentence imposed by the court without any portion thereof suspended.
(Code 1975, § 37-24; Ord. No. 2006-429, § 1, 9-26-06)

Sec. 21-109. Disorderly conduct prohibited.

(a) As used in this section:

Incite a riot shall mean, but is not limited to, urging or instigating other persons to riot, but shall not be deemed to mean the mere oral or written:

(1) Advocacy of ideas or

(2) Expression of belief, not involving advocacy of any act or acts of violence or assertion of the rightness of, or the right to commit, any such act or acts.

Riot shall mean a public disturbance involving:

(1) An act or acts of violence by one or more persons part of an assemblage of three (3) or more persons, which act or acts shall constitute a clear and present danger of, or shall result in, damage or injury to the property of any other person or to the person of any other individual or

(2) A threat or threats of the commission of an act or acts of violence by one or more persons part of an assemblage of three (3) or more persons having, individually or collectively, the ability of immediate execution of such threat or threats, where the performance of the threatened act or acts of violence would constitute a clear and present danger of, or would result in, damage or injury to the property of any other person or to the person of any other individual.

(b) A person shall be guilty of disorderly conduct if, with the purpose of causing public danger, alarm, disorder, nuisance, or if his conduct is likely to cause public danger, alarm, disorder or nuisance, he wilfully does any of the following acts in a public place:

(1) Commits an act in a violent and tumultuous manner toward another whereby that other is placed in danger of his life, limb or health;

(2) Commits an act in a violent and tumultuous manner toward another whereby the property of any person is placed in danger of being destroyed or damaged;

(3) Causes, provokes or engages in any fight, brawl or riotous conduct so as to endanger the life, limb, health, or property of another;

(4) Interferes with another's pursuit of a lawful occupation by acts of violence;

(5) Obstructs, either singly or together with other persons, the flow of vehicular or pedestrian traffic and refuses to clear such public way when ordered to do so by the city police or other lawful authority known to be such;

(6) Incites, attempts to incite, or is involved in attempting to incite a riot;

(7) Addresses abusive language or threats to any member of the city police department, any other authorized official of the city who is engaged in the lawful performance of his duties, or any other person when such words have a direct tendency to cause acts of violence. Words merely causing displeasure, annoyance or resentment are not prohibited;

(8) Makes or causes to be made any loud, boisterous and unreasonable noise or disturbance to the annoyance of any other persons nearby, or near to any public highway, road, street, lane, alley, park, square, or common, whereby the public peace is broken or disturbed, or the public annoyed.

(c) This section shall not be construed to suppress the right to lawful assembly, picketing, public speaking, or other lawful means of expressing public opinion not in contravention of other laws.

(Code 1975, § 37-25)

State law reference—Public disorderly conduct, S.C. Code 1976, § 16-17-530.

Sec. 21-110. Ringing doorbells.

No person shall ring any doorbell or knock on any door for the purpose of annoying the occupants of the premises.

(Code 1975, § 37-27)

Sec. 21-111. Masked or disguised persons; Halloween exceptions.

(a) No person over sixteen (16) years of age with the intent to conceal their identity shall appear on any street, highway, alley, public park or other place open to the public in the city in any mask, disguise, bandana, balaclava, or other device which hides

or covers a substantial portion of their face so as to conceal the identity of such person. The provisions of this paragraph (a) shall not affect the following:

(1) Any person wearing traditional holiday costume;

(2) Any person engaged in a trade, employment or sporting activity in which a mask is worn for the purpose of ensuring the physical safety of the wearer or because of the nature of the occupation, trade, profession or sporting activity;

(3) Any person using a mask in a theatrical production or masquerade ball;

(4) Any person wearing an gas mask as prescribed or permitted by the city, county, state or federal authorities during a declared state of emergency or a civil defense drill or exercise;

(5) Any person wearing a mask for bona fide medical reasons provided such mask covers only the persons nose and mouth and no other parts of the person's face;

(6) Any person wearing a face covering to express a religious belief or custom.

(b) No person shall appear on any street, highway, alley, public park, public home, private home or any other public place to make trick or treat visitations; provided that this section shall not apply to children sixteen (16) years or less on Halloween night prior to 10:00 p.m.

(Code 1975, § 37-30; Ord. No. 2023-096, § 1, 5-23-23)

Editor's note—Ord. No. 2007-43, § 1, adopted Feb. 13, 2007, repealed § 21-111 and renumbered former § 21-112 as § 21-111. Former § 21-111 pertained to the prohibition of begging and derived from and derived from the Code of 1975, § 37-29.

State law reference—Wearing masks which conceal one's identity, S.C. Code 1976, § 16-7-110.

Sec. 21-212. Reserved.

Sec. 21-113. Trespass warnings on public property and other property generally open to the public.

(a) Officers of the city police department and other code enforcement personnel are authorized to issue a trespass warning to any individual who violates any city ordinance, rule or

regulation promulgated by the body governing the property, or state law which violation was committed while on or within any facility, building, or outdoor area that is open to the general public, whether owned by the city, by another governmental body, or subdivision thereof, or private property owner, including public parks and including public sidewalks adjacent to public parks where there is also a public sidewalk on the opposite side of the street (but excluding other public right-of-way). The trespass warning shall be limited to the specific property parcel where the violation occurred. The specific property parcel consists of the boundaries set forth on the official property tax maps for the City of Charleston. These warnings may be issued by persons authorized at the parks and recreation departments to insure the effective operation, maintenance and security of the location.

(b) Trespass warnings shall be in writing and issued for a period not to exceed one (1) year.

(c) A copy of the trespass warning shall be provided by mail or hand delivery to the individual given the warning. The written trespass warning shall advise the recipient of the right to appeal and the location at which to file the form to initiate the appeal.

(d) A written trespass warning shall also be issued when officers of the city police department are acting on behalf of another governmental agency or private property owner and issuing a trespass warning to an individual located on public property not owned by the city or on private property subject to a public access easement. For purposes of this section, the term public access easement shall mean an easement in favor of the city granting general public access to private property or limited public access to patrons and invitees of a particular business establishment or establishments.

(e) Any person found on or within any city facility, building, or outdoor area, including public parks, or in any facility, building, outdoor area or park of another governmental agency or private property owner in violation of a trespass warning issued in accordance with this section may be arrested for

trespassing after notice, except as otherwise provided in this section, and punished as set forth in section 1-116 of the City Code.

(f) Any person found on or within any public property belonging to another governmental agency other than the city or found on or within any private property subject to a public access easement in violation of a trespass warning issued in accordance with this section may be arrested for trespassing.

(g) The mayor, or his designee, may upon request, authorize an individual who has received a trespass warning to enter the property or premises to exercise his or her right to free speech, as provided for in the Constitution of the United States of America and the State of South Carolina, if there is no other reasonable alternative location to exercise such rights or to conduct necessary municipal business. Such authorization must be in writing, shall specify the duration of the authorization and any conditions thereof, and shall not be unreasonably denied.

(h) This section shall not be construed to limit the authority of any city employee or official with arrest powers to issue a trespass warning to any person for any lawful reason for any city property, including rights-of-way when closed to general vehicular or pedestrian use, when necessary or appropriate in the sole discretion of the city employee or official.

(i) This section shall not be construed to limit the authority of officers of the city police department to arrest or cite individuals for violating any section of the City Code or the statutes of this state.

(j) Appeal of trespass warning. A person whom a trespass warning is issued under this section shall have the right to appeal the issuance of the trespass warning as follows:

(1) An appeal of the trespass warning must be filed, in writing, within twenty (20) days of the issuance of the warning, and shall include the appellant's name, address contact information. No fee shall be charged for filing the appeal. "Issuance" for purposes of starting the time

to appeal means either by personal delivery or when notice of the warning is placed in the mail, whichever occurs first.

(2) Appeals shall be heard by the city's standing committee on recreation.

(3) Within thirty (30) business days following the filing of the appeal, the city's standing committee on recreation shall schedule a hearing. Notice of the hearing shall be provided to the appellant in one of three ways:

a. By providing the appellant a copy of the notice of hearing in person at the time he or she files the appeal. When it is not reasonably practical or possible to provide notice in this manner, the appellant shall be informed that notice of the hearing will be provided in accordance with either paragraph b. or c. below;

b. By leaving or posting the notice at the front desk of the city police department or leaving the notice with the clerk of council; or

c. By telephone if a telephone number has been provided or mailing when an address has been provided.

(4) The city's standing committee on recreation shall hold the hearing as soon as possible, but no later than forty (40) days from the filing of the appeal unless agreed to by the parties.

(5) Copies of documents in the city's control which are intended to be used at the hearing, and which directly relate to the issuance of the trespass warning to the appellant, shall be made available upon request to the appellant at no cost.

(6) The appellant shall have the right to testify and to call witnesses and present evidence and the right to engage an attorney to represent him or her. The appellant shall have the right to bring a court reporter, at his or her own expense.

(7) The city's standing committee on recreation shall consider the testimony, reports or other documentary evidence, and any other evidence presented at the hearing. Formal rules of evidence shall not apply, but fundamental due process shall govern the proceedings.

(8) The city shall bear the burden of proving by clear and convincing evidence that the trespass warning was properly issued pursuant to the criteria of this section.

(9) If the appellant fails to attend a scheduled hearing, the city's standing committee on recreation shall review the evidence presented and determine if the trespass warning was properly issued pursuant to the criteria of this section.

(10) Within seven (7) business days of the hearing, the city's standing committee shall issue a written decision on the appeal which shall be mailed to the appellant at the address provided.

(11) The decision of the city's standing committee shall be final and the appellant shall be deemed to have exhausted all administrative remedies. Such decision may be subject to judicial review in the manner provided by law.

(12) The trespass warning shall remain in effect during the appeal and review process, including any judicial review.

(Ord. No. 2014-39, § 1, 3-25-14; Ord. No. 2018-126, § 1, 9-25-18)

Sec. 21-114. Juvenile curfew.

(a) *Findings.* The mayor and city council have determined that violent and other crimes committed by persons seventeen (17) years of age and younger, within the City of Charleston, specifically within the Central Business District, as defined below, is a threat to public health, safety and general welfare. It has been determined that juveniles have contributed to criminal activity in the area, including but not limited to disorderly conduct, auto theft, assault and battery, robbery, narcotics offenses, and underage drinking. The mayor and council have determined that juveniles are particularly susceptible, because of a lack of maturity and experience, to participate in unlawful

and gang-related activities and to be the victims of older perpetrators of crime. The mayor and council have an obligation to provide for the protection of minors from each other and from other persons, for the enforcement of parental control over, and responsibility for children, for the protection of the general public, and for the reduction of the incidences of juvenile criminal activities. The mayor and council have determined that a juvenile curfew for those under the age of seventeen (17) years will be in the interest of the public health, safety, and general welfare to attain these objectives and diminish the undesirable impact of this conduct on the citizens and visitors of the city. The mayor and council have determined that passage of a curfew law will also protect the welfare of juveniles by:

(1) Reducing the likelihood that juveniles will be the victims of criminal activity during the curfew hours;

(2) Reducing the likelihood that juveniles will become involved in criminal acts or exposed to narcotic trafficking during the curfew hours;

(3) Aiding parents or guardians in carrying out their responsibility to exercise reasonable supervision of juveniles entrusted to their care.

(b) *Definitions.*

Central Business District. For purposes of the juvenile curfew within the Central Business District, this district shall consist of the area identified in the map attached to the ordinance from which this section is derived as Exhibit A, entitled "Central Business District - Juvenile Curfew," which will be reviewed from time to time by city council. A copy of the map shall be made available to the public online at the website for the business and neighborhood services division of the department of planning and preservation.

Curfew hours means from 9:00 p.m. until 6:00 a.m. on any Thursday, Friday, Saturday or Sunday. During the months of June, July, and August, the term "curfew hours" means from 9:00 p.m. until 6:00 a.m. all seven (7) days of the week.

Emergency means an unforeseen combination of circumstances or the resulting state that calls for immediate action. The term

"emergency" includes, but is not limited to, a fire, natural disaster, an automobile accident, or any situation that requires immediate action to prevent serious bodily injury or loss of life.

Establishment means any privately-owned place of business operated for a profit, to which the public is invited, or to any non-profit organization licensed to sell or serve beer, wine or other alcoholic beverage, including, but not limited to any place of amusement or entertainment. With respect to such establishment, the term "operator" shall mean any person, and any firm, association, partnership (and the members or partners thereof) and/or any corporation (and the officers thereof) conducting or managing that establishment.

Juvenile means seventeen (17) years of age and under.

Public place means any place to which the public, or a substantial group of the public, has access, and includes, but is not limited to: parks, parking lots, streets, highways playgrounds, transportation facilities, sidewalks, the common areas of schools, hospitals apartment houses, office buildings, transport facilities, and shops.

Remain means to linger or stay or fail to leave the premises when requested to do so by a police officer or the owner, operator, or other person in control of the premises.

(c) *Prohibition.*

(1) It shall be unlawful for a juvenile to remain in or upon any public place, to remain in any motor vehicle operating or parked therein or thereon, or to remain in or upon the premises of any establishment within the Central Business District during curfew hours.

(2) It shall be unlawful for a juvenile's parent or person responsible for the juvenile's welfare as defined by S.C. Code § 63-7-20(18), to knowingly permit, by insufficient control allow, or encourage such juvenile to violate subsection (c)(1).

(3) It shall be unlawful for a person who is the owner or operator of any motor vehicle to knowingly permit, allow or encourage a violation of subsection (c)(1).

(4) It shall be unlawful for the operator of any establishment located in the Central Business District, or for any person who is an employee thereof, to knowingly permit, allow or encourage a juvenile to remain upon the premises of the establishment during curfew hours. It shall be a defense to prosecution under this subsection that the operator or employee of an establishment promptly notified the Charleston Police Department that a juvenile was present at the establishment during curfew hours and refused to leave.

(5) It shall be unlawful for any person, including a juvenile, to give a false name, date of birth, address, or telephone number to any officer investigating a possible violation of this division.

(d) *Exceptions.*

(1) The juvenile is accompanied by a parent or person responsible for the juveniles' welfare as defined by S.C. Code § 63-7-20(18); or

(2) The juvenile is engaged in an employment activity, on an errand at the direction of the juvenile's parent or person responsible for the juvenile's welfare as defined by S.C. Code § 63-74-20(18), or is going to or returning home from such activity, without detour or stop; or

(3) The juvenile is in a motor vehicle, train or bus involved in interstate travel;

(4) The juvenile is involved in an emergency;

(5) The juvenile is on the sidewalk that abuts the juvenile's residence;

(6) The juvenile is attending an activity sponsored by a school, religious, or civic organization, by a public organization or agency, or by another similar organization or entity, which activity is supervised by adults, and/or the minor is going to or returning from such an activity without detour or stop; or

(7) The juvenile is exercising First Amendment rights protected by the United States Constitution, including free exercise of religion, freedom of speech, and the right of assembly.

(e) *Enforcement.*

(1) Prior to taking enforcement action under this section, a police officer shall ask the apparent offender's age and reason for being in the public place. The officer shall not issue a citation or make an arrest under this section unless the officer reasonably believes that an offense has occurred and that, based on any response and other circumstances, no defense in subsection (d) of this section is proffered or present.

(2) If a police officer determines that a minor is committing a curfew offense the officer shall take the juvenile into custody as provided in S.C. Code § 63-19-810. Where appropriate the juvenile may be released to a parent or other person as provided therein.

(f) *Penalties.*

(1) A juvenile who violates this section shall have their case adjudicated and disposed of in accordance with the South Carolina Juvenile Justice Code.

(2) An adult who violates this section may be sentenced to pay a fine not exceeding five hundred dollars ($500.00) or serve a term not exceeding thirty (30) days in jail.

(g) *Severability.* If any subsection, sentence, clause, phrase, or word of this section be for any reason declared unconstitutional or invalid or ineffective by any court of competent jurisdiction, such declaration shall not affect the validity or the effectiveness of the remaining portions of this section or any part thereof which can be given meaning without the offensive subsection, sentence, clause, phrase or word.
(Ord. No. 2025-090, § 2, 6-17-25)

Secs. 21-115—21-125. Reserved.

ARTICLE VI. OFFENSES AGAINST PUBLIC HEALTH*

Sec. 21-126. Narcotics, controlled substances and aromatic hydrocarbons—Sale, etc., prohibited.

(a) No person shall sell, offer for sale, give away, bargain, trade, distribute in any manner, transport, use, prescribe, possess, knowingly keep, conceal or allow on premises under his control one ounce or less of marijuana or ten (10) grams or less of hashish.

(b) No person shall, for the purpose of causing a condition of intoxication, inebriation, excitement, stupefaction or the dulling of his brain or nervous system, intentionally smell or inhale the fumes from any substance containing aromatic hydrocarbons; provided, that nothing in this section shall be interpreted as applying to the inhalation of any anesthesia for medical or dental purposes.

(c) Any person who violates any provision of section (b) above shall be deemed guilty of a misdemeanor and, upon conviction, shall be fined in an amount not to exceed one hundred dollars ($100.00) or imprisoned for a term not to exceed thirty (30) days. (Code 1975, § 37-34; Ord. No. 2012-407, § 1, 11-27-12)

Sec. 21-127. Same—Sale, possession, etc., of paraphernalia prohibited.

(a) *Definitions* as used in this section:

Deliver or *delivery* means the actual, constructive, or attempted transfer of a controlled drug or paraphernalia whether or not there exists an agency relationship.

Paraphernalia means any instrument, device, article or contrivance used, designed for use, or intended for use in ingesting, smoking, administering or preparing marijuana, hashish, hashish oil or cocaine, and shall not include cigarette papers and tobacco pipes, but shall include, but not be limited to:

(1) Metal, wooden, acrylic, glass, stone, plastic or ceramic marijuana or hashish pipes with or without screens, permanent screens, hashish heads or punctured metal bowls.

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*__Cross reference—__Health and sanitation generally, Ch. 15.

(2) Water pipes designed for use or intended for use with marijuana, hashish, hashish oil or cocaine.

(3) Carburetion tubes and devices.

(4) Smoking and carburetion masks.

(5) Roach clips.

(6) Separation gins designed for use or intended for use in cleaning marijuana.

(7) Cocaine spoons and vials.

(8) Chamber pipes.

(9) Carburetor pipes.

(10) Electric pipes.

(11) Air-driven pipes.

(12) Chilams.

(13) Bongs.

(14) Ice pipes or chillers.

(15) Syringes.

(16) Heroin spoons.

(17) Bottle caps.

(b) *Prohibited acts.* It shall be unlawful for any person to advertise for sale, manufacture, possess, sell or deliver, or to possess with the intent to sell or deliver, paraphernalia.

(c) *Evidence of violations.* In determining whether an object is paraphernalia, a court or other authority shall consider, in addition to all other logically relevant factors, the following:

(1) Statements by an owner or by anyone in control of the object concerning its use;

(2) The proximity of the object to controlled substances;

(3) The existence of any residue of controlled substances on the object;

(4) Direct or circumstantial evidence of the intent of an owner, or of anyone in control of the object, to deliver it to persons whom he knows, or should reasonably know, intend to use the object to facilitate a violation of law; the innocence of an owner, or of anyone in control of the object, as to a direct violation of law shall not prevent a finding that the object is intended for use, or designed for use as drug paraphernalia;

(5) Instructions, oral or written, provided with the object concerning its use;

(6) Descriptive materials accompanying the object which explain or depict its use;

(7) National and local advertising concerning its use;

(8) The manner in which the object is displayed for sale;

(9) Whether the owner, or anyone in control of the object, is a legitimate supplier of like or related items to the community, such as a licensed distributor or dealer of tobacco products;

(10) Direct or circumstantial evidence of the ratio of sales of the object to the total sales of the business enterprise;

(11) The existence and scope of legitimate uses for the object in the community;

(12) Expert testimony concerning its use.
(Ord. No. 1982-30, §§ 1, 2, 4-13-82)

Sec. 21-128. Stench bombs, etc., prohibited; exceptions.

(a) No person in the city shall throw, drop, pour, deposit or discharge, upon the person or property of another any liquid, gaseous or solid substance which is injurious to person or property, or which is nauseous, sickening, irritating or offensive to any of the senses with intent to wrongfully injure, molest, discomfort, discommode or coerce another in the use, management, conduct or control of his person or property. No person shall attempt, or aid in the attempt or commission of any of these prohibited acts.

(b) No person in the city shall manufacture or prepare or have in his possession or under his control, any liquid, gaseous or solid substance or matter of any kind which is injurious to person or property, or which is nauseous, sickening, irritating or offensive to any of the senses, with the intent to use the substance in violation of paragraph (a) of this section or with intent that the substance shall be used in violation of such paragraph (a). The possession or control by any person of any such liquid, gaseous or solid substance or matter shall be deemed prima facie evidence of intent to use or cause the substance to the used in violation of such paragraph (a).

(c) The prohibition of paragraphs (a) and (b) of this section shall not apply to police officers acting in line of duty or to proprietors of business places or their employees using such substances for the protection of their property and their business places when the substances are kept solely for the purpose of repelling robbers, thieves, murderers or other law violators.
(Code 1975, § 37-35)

State law reference—Stench bombs in public places, S.C. Code 1976, § 16-7-160.

Sec. 21-129. Spitting in public.

No person shall spit or deposit any spit, mucus, tobacco juice or wad of tobacco upon any public street or sidewalk, or in or on any public grounds, building or public conveyance.
(Code 1975, § 37-36)

Sec. 21-130. Tattooing prohibited.

No person shall mark the body of another person by tattooing or any other method of placing designs, letters, scrolls, figures, symbols or any other marks upon or under the skin with ink, colors or pigments.

(Code 1975, § 37-38)

State law reference—Tattooing prohibited, S.C. Code 1976, § 16-17-700.

Sec. 21-131. Smoking in city-owned or operated indoor facilities.

(a) *Findings of fact.* City council hereby makes the following findings:

(1) It has been shown that the smoke produced by the smoking of cigarettes, cigars and pipes is both hazardous and detrimental to the health, welfare and comfort of smokers and nonsmokers; and

(2) The surgeon general has reported that smoking is a significant cause of cancer, heart disease and lung disorders in smokers and passive smokers (those inhaling the smoke of others); and

(3) The City of Charleston in furtherance of its duty to provide such regulations as may be necessary to protect the health of its citizens and minimize the incidents of disease of its population, and to provide a working environment for its employees and the general public which is reasonably free of hazards and distractions, such as smoke, and in furtherance of the objectives of the Clean Indoor Air Act of 1990, deems it to be in the public interests to regulate smoking in city-owned or operated indoor facilities.

(b) *Definitions.*

(1) *Smoking* means the lighting or carrying of a lighted cigarette, cigar, pipe, or similar device or any other lighted "smoking materials."

(2) *Smoking materials* includes cigars, cigarettes and all other manner of smoking devices intended to be used for the purposes of inhaling and exhaling smoke.

(3) *Buildings owned, operated or leased by the city* shall include those buildings or parts thereof under the control of the city, but shall not include those buildings (or portions thereof) which are under lease or control of other organizations or corporations.

(c) *Smoking prohibited.*

(1) No person shall smoke in any building owned, operated or leased by the city, except in those areas where it is specifically designated by signs that smoking is permitted.

(2) The mayor, or his designee, is hereby authorized to designate portions of lobbies, restrooms and snack bars where smoking will be permitted; provided however, the mayor may determine that no area exists within certain city-owned buildings where smoking may be permitted due to:

a. Lack of adequately ventilated lobbies, restrooms and snack bars; or
b. The small size of buildings which prevent segregating smoking and nonsmoking areas.

(3) The mayor is hereby authorized to designate certain individually occupied private offices as "smoking permitted" areas, provided that he has first determined that smoking in those locations will only minimally affect the adjacent working environment.

(d) *Notice.* Signs shall be placed at entrances to buildings owned, operated or leased by the city informing the public that smoking is prohibited by city ordinance, except in areas specifically designated for smoking.

(e) *Testing.* Nothing herein shall be construed to authorize or require the testing of any person to determine if the person has nicotine or other tobacco residue in his body.

(f) *Theatrical performance.* Nothing herein shall be construed to prevent smoking in buildings owned, operated or leased by the city when such smoking is part of a legitimate theatrical performance.

(g) *Penalty.* Any person who violates any provision of this section shall be subject to the penalties set forth in section 1-16 of the Code of the City of Charleston.
(Ord. No. 1990-115, § 1, 9-11-90; Ord. No. 2007-14, § 2, 1-23-07)

Sec. 21-132. Regulations and requirements relating to the smoking of tobacco products in the city.

(a) *Findings.* As an incident to the adoption of the ordinance from which this section derives, the city council ("city council") of the City of Charleston, South Carolina (the "city") makes the following findings:

(1) The city is an incorporated municipality and as such possesses all powers granted to municipalities by the Constitution and the laws of the State of South Carolina, including the powers enumerated in S.C. Code Section 5-7-30 relating to regulating streets, markets, and public health; and

(2) Numerous studies have found that tobacco smoke is a major contributor to indoor air pollution, and that breathing second hand smoke (also known as environmental tobacco smoke) is a cause of disease in healthy nonsmokers, including heart disease, stroke, respiratory disease, and lung cancer. The National Cancer Institute has determined that second hand smoke is responsible for the early deaths of up to 65,000 Americans annually. The Surgeon General has declared that (i) secondhand smoke causes disease and premature death in nonsmokers exposed to smoke; (ii) children exposed to secondhand smoke have an increased risk for sudden death syndrome, acute respiratory infections, ear problems, and more severe asthma; (iii) adults exposed to secondary smoke have a higher risk of coronary heart disease and lung cancer; (iv) there is no safe level of exposure to secondhand smoke (v) separating smoking and nonsmoking sections of indoor areas does not sufficiently remove the threats of secondhand smoke in enclosed areas; and

(3) A significant amount of secondhand smoke exposure occurs in the workplace. Studies have shown that employ-

ees who work in smoke-filled businesses suffer a twenty-five (25) to fifty (50) percent higher risk of heart attack and higher rates of death from cardiovascular disease and cancer, as well as increased acute respiratory disease and measurable decrease in lung function.

(4) Studies have also shown that smoke-filled workplaces result in higher worker absenteeism due to respiratory disease, lower productivity, higher cleaning and maintenance costs, increased health insurance rates, and increased liability claims for diseases related to exposure to secondhand smoke.

(5) There are laws, ordinances and regulations in place that protect workers from other environmental hazards, including Class A carcinogens, asbestos, arsenic and benzene, but none which regulate exposure to environmental tobacco smoke; and

(6) Prohibiting smoking in the workplace increases public awareness of the negative health effects of smoking, reduces the social acceptability of smoking and reduces harm to children and other nonsmokers; and

(7) The South Carolina General Assembly at Section 44-95-10 et seq. (the "Clean Indoor Air Act of 1990") imposed certain limitations on smoking. For example, it limited smoking in government buildings (the definition of which includes city-owned buildings) except where the owner of such building shall designate smoking areas. Consistent with the Clean Indoor Air Act of 1990, city council previously adopted section 21-131 of the City Code. In that ordinance, city council made the following finding:

The City of Charleston in furtherance of its duty to provide such regulations as may be necessary to protect the health of its citizens and minimize the incidents of disease of its population, and to provide a working environment for its employees and the general public which is reasonably free of hazards and distractions, such as environmental tobacco smoke, and in furtherance of the

objectives of the Clean Indoor Act of 1990, deems it to be in the public interest to regulate smoking in city-owned or operated indoor facilities.

City council has now determined that additional regulation of smoking in areas beyond those addressed in the Clean Indoor Air Act of 1990 and section 21-131 is appropriate in furtherance of its duty to protect the health of its citizens and employees in the workplace and therefore enacts this ordinance.

(b) *Intent.* City council finds that it is in the best interest of the people of this city to protect nonsmokers from involuntary exposure to environmental tobacco smoke in the workplace. Therefore, city council declares that the purpose of this act is to preserve and improve the health, comfort and environment of the people of this city by limiting exposure to tobacco smoke in the workplace.

(c) *Definitions.*

(1) *Business agent* means an individual who has been designated by the owner or operator of any establishment to be the manager or otherwise in charge of said establishment.

(2) *Cigar bar* means any establishment in existence as of the date of the adoption of the ordinance from which this section derives which (a) serves alcohol for consumption by patrons on the premises; (b) either itself or in conjunction with an affiliated entity operating within the same premises derives thirty (30) percent or more of its gross revenue from the sale of tobacco products or related paraphernalia; (c) shall permit the smoking of cigars and other tobacco products by patrons on the premises; and (d) prohibits the entry of persons under the age of twenty-one (21) at all times. For purposes of this section, affiliated entity shall be defined as a commercial entity with which the Cigar Bar has a business relationship, including but not limited to a lease or sublease, contract, service agreement or sharing of expenses and/or profits.

(3) *Employee* means any person who performs services for an employer in return for wages, profit or other valuable consideration.

(4) *Employer* means any person, partnership, association, corporation, trust, school, college, university or other educational institution, nonprofit entity or other organization, including any public or private employer that employs one (1) or more persons.

(5) *Enclosed* means a space bounded by walls (with or without windows) continuous from floor to ceiling and enclosed by doors, including but not limited to, offices, rooms, foyers, waiting areas and halls.

(6) *Environmental tobacco smoke* (ETS) or *secondhand smoke* is the complex mixture formed from the escaping smoke of a burning tobacco product (termed as "sidestream smoke") and smoke exhaled by the smoker. Exposure to ETS is also frequently referred to as "passive smoking," "secondhand smoking" or "involuntary smoking".

(7) *Livability court* means that certain division of the City of Charleston Municipal Court.

(8) *Police department* means the City of Charleston Police Department.

(9) *Public building* means any building owned, operated or leased by the city, as defined in section 21-131(3) of the City Code.

(10) *Retail tobacco store* means any establishment which is not required to possess a retail food permit whose primary purpose is to sell or offer for sale to consumers, but not for resale, tobacco products and related paraphernalia, in which the sale of other products is merely incidental, and in which the entry of persons under the age of eighteen (18) is prohibited at all times.

(11) *Smoking* means the inhaling, exhaling, burning, lighting or carrying of a lighted cigarette, cigar, pipe, or similar device or any other lighted tobacco product.

(12) *Smoking materials* includes cigars, cigarettes and all other manner of smoking devices intended to be used for the purpose of inhaling, burning, carrying or exhaling lighted tobacco products.

(13) *Workplace* means any enclosed indoor area, structure, building or facility or any portion thereof at which one (1) or more employee(s) perform services for their employer, including but not limited to: retail food stores; retail stores; restaurants; bars; cabarets, cafes; public or private clubs; pool halls and bowling alleys.

(14) *Work space* or *work spaces* means any enclosed area occupied by an employee during the course of his or her employment, including but not limited to: offices, customer service areas; common areas; hallways; waiting areas; restrooms; lounges and eating areas.

(d) *Prohibition of smoking in the workplace.*

(1) It shall be the responsibility of the employer to provide a smoke free environment for all employees working in an enclosed workplace. Each employer shall adopt, distribute and implement a written policy prohibiting smoking in the workplace in accordance with this section.

(2) Smoking shall be prohibited in all work spaces in a workplace. This includes all common work areas, auditoriums, classrooms, conference and meeting rooms, private offices, hallways, medical facilities, cafeterias, employee lounges, staircases, restrooms and all other enclosed areas in the workplace.

(3) The written smoking policy shall be adopted and distributed to all employees within four weeks of the effective date of this section or within four weeks of the commencement of business operations. A copy of the policy shall be conspicuously posted in all facilities or areas of the workplace.

(e) *Smoking restrictions inapplicable.* In providing for the inapplicability of this section to the following subsections (1) through (7), it is specifically recognized that such locations are addressed in the Clean Indoor Air Act, enacted by the General Assembly of South Carolina and codified in South Carolina Code section 44-95-10, et. seq. Therefore, this section shall not apply to:

(1) Public schools and preschools where routine or regular kindergarten, elementary, or secondary educational classes are held including libraries;

(2) All other indoor facilities providing children's services to the extent that smoking is prohibited in the facility by federal law and all other child day care facilities, as defined in Section 20-7-2700, which are licensed pursuant to Subarticle 11, Article 13, Chapter 7, of Title 20 of the South Carolina Code;

(3) Health care facilities as defined in South Carolina Code Section 44-7-130;

(4) Government buildings as defined in South Carolina Code Section 44-95-20(4), except to the extent regulation by the city is authorized therein;

(5) Elevators;

(6) Public transportation vehicles, except for taxicabs;

(7) Arenas and auditoriums of public theaters or public performing art centers;

(f) *Exceptions.* Notwithstanding the provisions of subsection (d) herein, smoking may be permitted in the following places and/or circumstances:

(1) Private residences;

(2) Hotel, motel, inn, bed and breakfast and lodging home rooms that are rented to guests, designated as "smoking rooms" ("rooms") provided that the total percentage of such rooms does not exceed twenty-five (25) percent in such establishment. A room so designated shall have signs posted indicating that smoking is allowed therein;

(3) Retail tobacco stores;

(4) Cigar bars, provided that the cigar bar has not expanded its size or changed its location from its size or location after the date of the adoption of the ordinance from which this section derives, and it or its affiliated entity operating within the same premises continues to derive thirty (30) percent or more of its gross revenue from the sale of tobacco products or related paraphernalia;

(5) Performers upon a stage, provided that the smoking is part of the theatrical production being performed;

(6) Religious ceremonies where smoking is part of the ritual; and

(7) Medical research facilities.

(g) *Posting of signs.* The owner, manager or person in control of an establishment or area in which smoking is prohibited pursuant to this section shall post a conspicuous sign at the main entrance to the establishment or area. The sign shall contain the words "No Smoking" and the universal symbol for no smoking.

(h) *Reasonable distance.* Smoking outside a workplace, work space or work spaces and any other indoor area where smoking is prohibited, shall be permitted provided that tobacco smoke does not enter the workplace, work space or work spaces through entrances, windows, ventilation systems or other means.

(i) *Enforcement, violations and civil penalties.*

(1) The police department shall enforce the provisions of this section. In addition, designated code enforcement employees of the city shall have the power to enforce the provisions of this section.

(2) The police department shall seek to obtain voluntary compliance with this section by means of publicity and education programs, and the issuance of warnings, where appropriate.

(3) Any person who desires to register a complaint under this section may initiate enforcement with the office of the director of the department of budget, finance and revenue collections or his designee.

(4) Any person who smokes in an area where smoking is prohibited by any provision of this section shall be guilty of an infraction, punishable by a fine of not less that ten dollars ($10.00) nor more than twenty-five ($25.00).

(5) Any employer, owner, manager or other person who has control of a workplace and who fails to comply with any provision of this section shall be guilty of an infraction, punishable by a fine of not less than ten dollars ($10.00) nor more than twenty-five ($25.00).

(6) Violation of this section is hereby declared to be a public nuisance, which may be abated by the city by restraining order, preliminary and permanent injunction, or other means provided for by law, and the city may take action to recover the costs of the nuisance abatement.

(7) Each day of a continuing violation of this section shall be considered a separate and distinct offense.

(8) a. *Suspension or revocation of license.* In addition to the fines established by this subsection, whenever the director of the department of budget, finance and revenue collections or his designee determines that any employer, owner, manager or other person who has control of a workplace has repeated violations of the provisions of this section, he may give written notice to the licensee or the person in control of the business within the municipality by personal service or certified mail of a hearing before the business license committee for the purpose of determining whether the license should be suspended or revoked. The notice shall state the time and place at which the hearing is held, which shall be at a regular or special business license committee meeting within thirty (30) days from the date of service of the notice, unless continued by agreement. The notice shall contain a brief statement of the reasons for the proposed suspension or revocation and the applicable provisions of the ordinance from which this section derives.

b. *Business license committee hearing.* At a hearing held before the business license committee, all parties shall have the right to be represented by counsel, to present testimony and evidence and to cross-examine witnesses. The proceedings shall be recorded and transcribed at the expense of the party so requesting. The rules of evidence and procedure proscribed by city council shall govern the hearing. The business license committee with a quorum of members in attendance shall by majority vote of members present render a written decision based on

findings of fact and the application of this ordinance which shall be served on the parties or their representatives.

c. *Appeal to city council.* Any person aggrieved by a final decision of the business license committee recommending a suspension or revocation of a business license may appeal the decision of the business license committee to the city council by filing with the clerk of council and the director of the department of budget, finance and revenue collections or his designee a written notice setting forth plainly, fully, and distinctly the basis for the appeal. The appeal must be filed within thirty (30) days after the affected party receives actual notice of the decision of the business license committee.

(9) In addition to the remedies provided by the provisions of this subsection, the city or any person aggrieved by the failure of the employer, owner, manager or other person who has control of a workplace to comply with the provisions of this section may apply for injunctive relief to enforce those provisions in any court of competent jurisdiction.

(j) *Severability.* If any provision, clause, sentence or paragraph of this section or the application thereof to any person or circumstances shall be help invalid, that invalidity shall not affect the other provisions of this section which can be given effect without the invalid provision or application, and to this end the provisions of this section are declared to be severable.

(k) *Non-retaliation.* No person or employer shall discharge, refuse to hire, refuse to serve or in any manner retaliate or take any adverse personnel action against any employee, applicant, customer or person because such employee, applicant, customer or person takes any action in furtherance of the enforcement of this section or exercises any right conferred by this section.

(l) *Conflict with other laws, ordinances or regulations.* Nothing in this section shall be deemed to amend or repeal any applicable fire, health or other, law, ordinance or regulation so as to permit smoking in areas where it is prohibited by such applicable fire, health or other law, ordinance or regulation.

(m) *Waivers.*

(1) Any employer, owner, manager or other person having control of a workplace subject to this section may apply to the City of Charleston's director of the department of budget, finance and revenue collection or his designee for a waiver of any provision of this regulation for a period not to exceed ninety (90) days.

(2) All waivers shall be submitted to city's director of the department of budget, finance and revenue collection or his designee, on an application form provided by such director along with a one hundred-dollar ($100.00) non-refundable filing fee.

(3) The decision to grant such a waiver shall be in the sole discretion of city's director of the department of budget, finance and revenue collection or his designee, based upon his determination that such waiver is in the public interest. In do determining, the city's director of the department of budget, finance and revenue collection or his designee may take into account, but is not limited to the following:

a. The efforts that the employer, owner, manager or other person having control of a workplace has made toward compliance with this section;

b. Whether or not the workplace will be in compliance with all terms of this section within ninety (90) days; and

c. Whether or not the granting of the waiver will result in an appreciable danger to the health of the public.

(4) No employer, owner, manager or other person having control of a workplace shall be granted more than one (1) waiver.

(Ord. No. 2007-14, § 1, 1-23-07; Ord. No. 2008-70, § 1, 4-22-08)

Sec. 21-133. No smoking in public parks.

(a) Smoking for purposes of this section 21-133, shall mean inhaling, exhaling, or otherwise using any cigar, cigarette, pipe, hookah, e-cigarette or other tobacco product or device intended for use with tobacco in any manner or in any form which involves the release of any smoke, mist or vapor.

(b) Smoking shall be prohibited in all public parks and playgrounds that are owned, leased or operated by the City of Charleston.

(c) Exceptions. Notwithstanding the provisions of subsection (b) herein, smoking may be permitted in the following places or circumstances within a park or playground:

(1) Designated smoking areas, as approved by the recreation commission;

(2) Performers, provided the smoking is part of the theatrical production being performed;

(3) Religious ceremonies where smoking is part of the ritual; and

(4) Medical research.

(Ord. No. 2018-061, § 2, 5-8-18)

Sec. 21-134. Outdoor smoking—Medical University and Roper Hospital facilities.

(a) *Findings.* The Medical University of South Carolina and Roper Hospital are contiguous health care facilities located in the downtown area of the city. The governing board of each of these facilities has designated their respective campuses, indoor and outdoor, to be smoke-free. These facilities are comprised of buildings larger, taller and more massive than in other areas of the city. The public streets and sidewalks within and abutting these complexes are narrow and heavily used by the employees, patients and visitors of these facilities. The U.S. Surgeon General has advised that exposure to secondhand smoke, even for brief periods of time, may adversely affect the heart and respiratory systems and increase the severity of asthma attacks, especially in children. And research substantiates that secondhand smoke is a toxic outdoor air pollutant that may cause or contribute to an increase in deaths or serious illness. Heretofore, in accordance with home rule powers devolved by the state constitution and general law, and in recognition of the danger posed by smoking tobacco or tobacco related products, city council enacted an ordinance prohibiting indoor smoking in workplaces. In light of the heavily used built environment of the

Medical University and Roper facilities, and to promote the missions of each to discourage the use of tobacco and tobacco related products so as to protect the health of those seeking and providing medical treatment from the dangers posed by smoking and second smoke, and to protect the public from the effects of smoking and smoking-related litter and pollution, the city council deems it necessary and appropriate and in furtherance of the public health, safety and welfare that smoking be prohibited on certain streets and sidewalks in and abutting the Medical University of South Carolina and Roper Hospital facilities.

(b) *Definitions.*

Smoking means the inhaling, exhaling, burning, lighting or carrying of a lighted cigarette, cigar, pipe or similar device or any other lighted tobacco product.

(c) *Smoking prohibited.* Smoking is prohibited on the following streets and sidewalks:

(1) Calhoun Street (north and south sides), from Fourth Street to Rutledge Avenue;

(2) Rutledge Avenue (east and west sides), from Calhoun Street to Doughty Street;

(3) Doughty Street (north and south sides), from Rutledge Avenue to Ashley Avenue; from Courtenay Drive to Jonathan Lucas Street;

(4) Ashley Avenue (east and west sides), from Halsey Street to Bee Street;

(5) Bee Street (north and south sides), from Ashley Avenue to Cherry Street;

(6) Courtenay Drive (east and west sides), from Bee Street to Calhoun Street;

(7) Ehrhardt Drive (east and west sides); from Bee Street to Doughty Street;

(8) President Street (east and west sides), from Bee Street to Doughty Street/Jonathan Lucas Street;

(9) Jonathan Lucas Street (east and west sides/north and south sides), from President Street to Calhoun Street;

(10) Gadsden Street (east and west sides), from Calhoun Street, south two hundred (200) feet;

(11) Barre Street (east and west sides), from Calhoun Street, south three hundred twenty-five (325) feet;

(12) Halsey Boulevard (east and west sides), from Calhoun Street, south three hundred twenty-five (325) feet; and

(13) Fourth Street (east and west sides), from Calhoun Street, south three hundred twenty-five (325) feet.

The smoking prohibition of this section shall not apply within moving motor vehicles.

(d) *Enforcement, violations and civil penalties.*

(1) The provisions of this section shall be enforceable by those authorized to enforce municipal ordinances, including the Medical University of South Carolina Department of Public Safety.

(2) Voluntary compliance with the provisions of this section will be sought by means of publicity, education programs and the issuance of warnings, where appropriate.

(3) Any person who desires to register a complaint under this section may initiate enforcement with the director of the department of budget, finance and revenue collections, or his designee.

(4) Any person who smokes in an area where smoking is prohibited by this section shall be guilty of an infraction, punishable by a fine of not less than ten dollars ($10.00) or more that twenty-five dollars ($25.00).

(5) Violation of this section is hereby declared to be a public nuisance, which may be abated by the city by restraining order, preliminary or permanent injunction or any other means provided by law, to include action by the city to recover costs of nuisance abatement.

(e) *Severability.* If any provision, clause, sentence or paragraph of this section or the application thereof to any person or circumstances shall be held invalid, that invalidity shall not affect the other provisions of this section which can be given effect without the invalid provision, clause, sentence, paragraph or application, and to this end, the provisions of this section are declared to be severable.

(Ord. No. 2013-03, § 1, 1-8-13; Ord. No. 2018-061, § 1, 5-8-18)

Note—Formerly numbered as § 2-133.

Secs. 21-135—21-145. Reserved.

ARTICLE VII. OFFENSES AGAINST PUBLIC SAFETY*

Sec. 21-146. Abandonment of refrigerators; removal of door or lock required.

No person shall leave or allow to remain in any place accessible to children any abandoned, unattended or discarded icebox, refrigerator, or other container, device or equipment which has an air-tight door or lid, snaplock or other locking device which may not be released from the inside, without first removing the door from such icebox, refrigerator, device, equipment or container.

(Code 1975, § 37-40)

State law reference—Failing to remove doors from abandoned iceboxes, refrigerators, etc., S.C. Code 1976, § 16-3-1010.

Sec. 21-147. Escape from confinement; fraudulent payment of bail.

(a) No person, being lawfully confined in any prison or upon the public works of the city or while in the custody of any superintendent, guard or officer, shall escape, attempt to escape or have in his possession tools or weapons which may be used to facilitate an escape.

***State law reference—**Authority of cities to make laws respecting security, welfare and convenience, S.C. Code 1976, § 5-7-30.

(b) No person shall knowingly escape or attempt to escape confinement in the city jail by tendering a false bank draft, check or any other negotiable instrument not honored or paid upon presentation in payment of a bail order or fine.
(Code 1975, § 37-41)

State law reference—Similar provisions, S.C. Code 1976, § 24-13-40.

Sec. 21-148. Aiding escape of prisoners.

(a) No person shall aid or assist or attempt to aid or assist any person confined in the city jail or custody of a police officer from escaping or attempting to escape from such custody or confinement.

(b) No person shall knowingly make available to, give to or place within reach of any person confined in the city jail or custody of a police officer any tool, implement or other thing calculated to aid in the escape of the confined person.
(Code 1975, § 37-42)

State law reference—Aiding the escape of persons lawfully confined or in custody, S.C. Code 1976, §§ 16-9-410—16-9-430.

Sec. 21-149. Releasing before completion of sentence.

The chief of police or any officer having in custody any person duly sentenced and committed by the judge, shall not release

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such person at any time previous to the completion of the full term of his sentence, unless required or authorized by competent legal or medical authority to do so.
(Code 1975, § 37-43)

Secs. 21-150—21-160. Reserved.

ARTICLE VIII. OFFENSES AGAINST PUBLIC MORALS*

DIVISION 1. GENERALLY

Sec. 21-161. Peeping toms.

No person shall trespass upon the property or premises of another with the intent to peer or peep into the window or door of the dwelling.
(Code 1975, § 37-48)

State law reference—Eavesdropping or peeping, S.C. Code 1976, § 16-17-440.

Sec. 21-162. Unlawful uses of telephone.

It shall be unlawful for any person anonymously or otherwise:

(1) To use in a telephonic communication any words or language of a profane, vulgar, lewd, lascivious, or an indecent nature, or to threaten in a telephonic communication any unlawful act with the intent to coerce, intimidate, or harass another person, or to communicate or convey by telephone an obscene, vulgar, indecent, profane, suggestive, or immoral message to another person;

(2) To telephone another repeatedly, whether or not conversation ensues, for the purpose of annoying or harassing another person or his family;

***Cross reference—**Use of vehicles for hire for purposes of prostitution prohibited, § 31-1.

State law reference—Offenses against morality and decency generally, S.C. Code 1976, § 16-15-10.

(3) To make a telephone call and intentionally fail to hang up or disengage the connection for the purpose of interfering with the telephone service of another;

(4) To telephone another and make any false statements concerning either the death or injury of any member of the family of the person who is telephoned with the intent to annoy, frighten or terrify that person; or

(5) Knowingly to permit any telephone under his control to be used for any purpose prohibited by this section.

(Code 1975, § 37-49)

State law reference—Similar provisions, S.C. Code 1976, § 16-17-430.

Sec. 21-163. Public intoxication.

No person shall be intoxicated in a public place, whether such intoxication results from alcohol, drugs or other intoxicants.

(Code 1975, § 37-50; Ord. No. 2012-399, § 1, 11-13-12)

Cross reference—Alcoholic beverages, Ch. 3.

State law reference—Gross intoxication and disorderly conduct, S.C. Code 1976, § 16-17-530.

Sec. 21-164. Report of treatment of wounds.

Every physician or surgeon, whenever he shall treat any person in the city for a gunshot or stab wound, shall notify the police department within one hour of the time when he renders such professional service, or is called upon to render the service.

(Code 1975, § 37-47)

Sec. 21-165. House of ill fame.

(a) No person shall be a keeper or inmate of a house of ill fame, or keep a house or place used for any lewd, obscene or indecent purpose or keep a house of assignation used for any such purpose, or keep an indecent and disorderly house by which the peace, comfort and decency of a neighborhood is habitually disturbed.

(b) This section shall be construed to apply to any part of a house used for any of the purposes herein specified.

(c) It shall be the duty of the chief of police to enforce the provisions of this section, upon any complaint made to him by reputable citizens residing or owning property in the neighborhood of the premises involved.
(Code 1975, § 37-55)

State law reference—House of ill fame as nuisance, S.C. Code 1976, §§ 15-43-10 to 15-43-130.

Sec. 21-166. Indecent exposure.

No person shall appear in any public place or on property open to the public in a state of nudity or otherwise make any indecent exposure of his or her person.
(Code 1975, § 37-56; Ord. No. 1982-4, § 1, 1-12-82)

State law reference—Indecent exposure, S.C. Code 1976, § 16-15-130.

Secs. 21-167—21-175. Reserved.

DIVISION 2. GAMBLING*

Sec. 21-176. Gambling prohibited.

(a) No person shall open, keep or maintain any gaming house in any building within the corporate limits of the city, or suffer or permit any description of gaming or playing any game of chance or skill for money, goods, chattels or other things whatever.

***State law references—**Gambling generally, S.C. Code 1976, § 16-19-10 et seq.; slot and other coin operated machines, S.C. Code 1976, § 52-15-10 et seq.

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(b) No person shall participate or engage in any device of gaming whatever in any building, street, lane, alley, court, park, lot or public way within the city.

(c) No person shall open, keep, maintain, dock, moor, anchor or operate any gaming vessel within the corporate limits of the city, or suffer any gaming vessel to operate from any marina, terminal or maritime facility within the corporate limits of the city for the purpose of embarking or disembarking persons whose intent is to utilize gambling devices.

(1) A "gaming vessel" is one:

a. That provides gambling devices; and

b. That does not provide overnight accommodations for its passengers; and

c. That is not primarily engaged in carrying passengers between ports in the U.S. or foreign countries.

(2) A "gambling device" is:

a. Any so-called "slot machine" or any other machine or mechanical device an essential part of which is a drum or reel with insignia thereon, and (A) which when operated may deliver, as the result of the application of an element of chance, any money or property, or (B) by the operation of which a person may become entitled to receive, as the result of the application of an element of chance, any money or property; or

b. Any other machine or mechanical device (including, but not limited to, roulette wheels and similar devices) designed and manufactured primarily for use in connection with gambling, and

(i) Which when operated may deliver, as the result of the application of an element of chance, any money or property, or

(ii) By the operation of which a person may become entitled to receive, as the result of the application of an element of chance, any money or property; or

(iii) Any subassembly or essential part intended to be used in connection with any such machine or mechanical device, but which is not attached to any such machine or mechanical device as a constituent part.

(Code 1975, § 37-62; Ord. No. 1998-205, § 1, 12-8-98)

Sec. 21-177. Gambling pools prohibited.

No person shall bet in or sell a pool within the limits of the city upon any horse race, boat race, foot race, baseball, football or other game.

(Code 1975, § 37-63)

Sec. 21-178. Lotteries and games of chance.

Any person who shall publicly or privately erect, set up or expose, to be played, drawn or thrown at, or shall cause to be erected, set up or exposed to be played, drawn or thrown at, any lottery or anything whatsoever in the nature of a lottery or game of chance for money or any stakes whatsoever, either by dice, cards, lots, balls, numbers, figures or tickets, or who shall make, write, print or publish, or shall cause to be made, written, printed or published, or have in their possession any lottery tickets or paraphernalia pertaining to a lottery, except for the purpose of procuring or furnishing evidence of the violation of this section, any scheme or proposal for any of such purposes, or who shall sell, or offer for sale any ticket, whether written, printed or otherwise, or plan by which a game of chance may be engaged in for money or any other goods whatsoever, shall be guilty of a misdemeanor. All lottery wheels, wheels of fortune, and all things whatsoever used or employed in the conduct of any such lottery or games of chance, are hereby declared forfeited and shall be publicly broken to pieces and destroyed.

(Code 1975, § 37-64)

Sec. 21-179. Gambling devices on vessels prohibited.

(1) *Definitions:*

(a) The term "gambling device" means:

1. Any so-called "slot machine" or any other machine or mechanical device an essential part of which is a

drum or reel with insignia thereon, and (A) which when operated may deliver, as the result of the application of an element of chance, any money or property, or (B) by the operation of which a person may become entitled to receive, as the result of the application of an element of chance, any money or property; or

2. Any other machine or mechanical device (including, but not limited to, roulette wheels and similar devices) designed and manufactured primarily for use in connection with gambling, and

   a. Which when operated may deliver, as the result of the application of an element of chance, any money or property, or

   b. By the operation of which a person may become entitled to receive, as the result of the application of an element of chance, any money or property; or

3. Any subassembly or essential part intended to be used in connection with any such machine or mechanical device, but which is not attached to any such machine or mechanical device as a constituent part.

(b) The terms "day cruise" and/or "cruise to nowhere" mean a voyage or segment of a voyage, respectively:

1. That begins and ends within the waters of the municipal boundaries of the City of Charleston, or begins in the City of Charleston and ends in another destination within the State of South Carolina, or begins in another destination within the State of South Carolina and ends within the waters of the municipal boundaries of the City of Charleston; and

2. During which the vessel does not make an intervening stop; and

3. During which passengers are entitled to operate gambling devices; and

4. That does not provide overnight accommodations for their cruise passengers and that is not primarily engaged in carrying passengers between ports in the U.S. or foreign countries.

(2) *Prohibition:* It shall be unlawful to manufacture, recondition, repair, sell, transport, possess, or use any gambling device on a vessel within the waters of the municipal boundaries of the City of Charleston operated for the purpose of conducting a day cruise.

(3) *Intent:* By enacting this section, the City of Charleston exercises its authority delegated to it pursuant to the South Carolina Code Annotated 1976 § 5-7-30 (the Home Rule Act) and its authority to legislate to preserve the health, safety, welfare and comfort of its citizens. Further, by enacting this ordinance, the City intends to opt out of the provisions of 15 U.S.C. § 1175 (b)(1)(A) (the Johnson Act).
(Ord. No. 1998-188, § 1, 11-24-98)

Secs. 21-180—21-190. Reserved.

ARTICLE IX. OFFENSES INVOLVING PUBLIC SAFETY OFFICERS

Sec. 21-191. Assaulting or resisting public official or police officer.

(a) No person shall knowingly and willfully oppose or resist a law enforcement officer in serving, executing, or attempting to serve or execute a legal writ or process or to resist an arrest being made by one whom the person knows or reasonably should know is a law enforcement officer, whether under process or not.

(b) No person shall knowingly and willfully assault beat or wound a law enforcement officer engaged in serving, executing, or attempting to serve or execute a legal writ or process or to assault beat or wound an officer when the person is resisting an arrest being made by one whom the person knows or reasonably should know is a law enforcement officer, whether under process or not.

(c) No person shall assault, resist, hinder, oppose, molest or interfere with any officer or employee of the city, of any department or board of the city or of any employee, other than a sworn law enforcement officer of the police department in the discharge of official duties.

(Code 1975, § 37-65; Ord. No. 1978-37, § 1, 4-11-78; Ord. No. 1983-12, § 1, 3-8-83; Ord. No. 2017-074, § 1, 7-11-17)

Sec. 21-192. Interference with public; obeying police officer's order.

(a) A person shall be guilty of disorderly conduct if he shall remain idle in essentially one location in a public place in such manner so as to:

(1) Create or cause to be created a danger of a breach of the peace.

(2) Create or cause to be created any disturbance or annoyance calculated to interfere with the comfort and repose of any person.

(3) Obstruct the free passage of pedestrians or vehicles.

(4) Obstruct, molest, or interfere with any person lawfully in any public place.

(5) Make unsolicited remarks of an offensive, disgusting or insulting nature or which are calculated to annoy or disturb the person to, or in whose hearing, they are made.

(b) Whenever any police officer shall, in the exercise of reasonable judgment, decide that the presence of any person in any public place is causing any of the conditions enumerated in subsection (a) of this section, he may, if he deems it necessary for the preservation of the public peace and safety, order that person to leave that place and any person who shall refuse to leave after being ordered to do so by a police officer shall be guilty of a violation.

(c) This section shall not apply to peaceful picketing, public speaking or other lawful expressions of opinion not in contravention of other laws.

(Code 1975, § 37-66)

State law reference—Public disorderly conduct, S.C. Code 1976, § 16-17-530.

Sec. 21-193. False reports or complaints to police department.

No person shall knowingly make or file or cause to be made or filed a false or misleading report, allegation or complaint with the police department.

(Code 1975, § 37-67)

Sec. 21-194. Impersonating an officer.

(a) No person, other than an official police officer of the city, shall wear or carry the uniform, apparel, badge, identification card or any other insignia of office like or similar to, or a colorable imitation of that adopted and worn or carried by the police officers of the city.

(b) No person shall do or attempt any act to impersonate a police officer or any fire official.

(Code 1975, § 37-68)

Cross reference—Police department, § 25-16 et seq.

State law reference—Impersonating a law enforcement officer, S.C. Code 1976, § 16-17-720.

Sec. 21-195. Obstructing or interfering with public service facility personnel.

During a riot or other civil emergency no person shall hinder, obstruct, endanger or interfere with any person who is engaged in the operation, installation, repair or maintenance of any essential public service facility within the city, including any facility for the transmission of electricity, gas, telephone messages or water.

(Code 1975, § 37-69)

Cross reference—Department of public service, § 2-231 et seq.

Sec. 21-196. False alarms.

(a) No person shall make or cause to be made with intent to deceive, any false alarm by means of the fire alarm system, public alarm systems, telephone or by any other means of communication.

(b) No person shall willfully make or cause to be made any false call for an ambulance by any means of communication.

(c) Subsections (a) and (b) of this section shall not apply to any authorized personnel while installing, testing, or repairing such alarm systems in the normal course of employment.

(d) It is hereby found and determined that four (4) or more false alarms within a calendar year is excessive, constitutes a public nuisance, and shall be unlawful.

(1) For the purposes of this subsection a false alarm shall mean any alarm which is given, sounded or otherwise

expressed when there is no apparent causal event requiring immediate police, fire or other emergency response, including but not limited to the activation of or notification by an alarm system through mechanical or electronic defect or failure, malfunctions, defective installation, the negligence of the alarm user or his employees, agents, invites, or licensees, or the conducting of an alarm test or drill without the prior notification to the city police and fire departments.

(2) For the purposes of this subsection an alarm user shall mean any person, firm, partnership, association, corporation, company, or organization of any kind in control of any building, structure, or facility where an alarm system is maintained.

(3) Any alarm user found to have made a false alarm pursuant to subsection (d) above shall be guilty of an infraction and fined as follows: Each alarm user shall be subject to a fine of fifty dollars ($50.00) each for the fourth, fifth and sixth false alarms at such location received by the city during such calendar year. Each alarm user shall be subject to a fine of one hundred ($100.00) dollars each for the seventh and all subsequent false alarms at such location received by the city during such calendar year.

(4) The United States government, the State of South Carolina, counties, municipal corporations, departments thereof and other governmental entities are exempt from all criminal penalties required by this subsection, provided that the government entity must be the owner of the alarm system. In the event the governmental entity contracts with or otherwise arranges with a person, business, or non-government entity for an alarm system, all fees and costs shall be required from the said person, business, or non-governmental entity.

(Code 1975, § 37-70; Ord. No. 2008-75, § 1, 5-6-08)

State law reference—Alarm boxes and false alarms from such boxes, S.C. Code 1976, § 16-17-570.

Secs. 21-197—21-210. Reserved.

ARTICLE X. WEAPONS*

Sec. 21-211. Possession or sale of blackjacks, slingshots and metal knuckles.

It shall be unlawful to own, possess, carry or display, any instrument or weapon of the kind commonly known as a blackjack, slungshot, slingshot, billy, sand club, sandbag, metal knuckles or bludgeon, or any martial arts weapons such as, but not limited to, munchaku, sai, shurikan (eight-pointed sharp stars) and ma.
(Code 1975, § 52-1)

Sec. 21-212. Possession or sale of tear gas bombs.

Except as provided in section 16-23-470, South Carolina Code 1976, it shall be unlawful for any person to have in his possession, sell, or offer for sale in the city, any bomb, tube gun, gun or other device containing or intended to contain or discharge tear gas or other noxious or offensive or harmful gases or fluids.
(Code 1975, § 52-2)

Sec. 21-213. Discharging firearms generally; exceptions.

No person, except in cases of urgent necessity or in the performance of a lawful duty, shall discharge or cause to be discharged any firearm in the city. Nothing contained herein shall be construed to apply to:

(1) The hunting of game birds and game animals, as defined by S.C. Code, § 50-1-30(1) and (4), as amended, in accordance with law on lands within the city that are zoned to permit such use;

(2) Marksmanship centers existing on the effective date of this ordinance that are used for practice and training by the South Carolina National Guard and other military organizations and military institutions;

(3) Special events including annual turkey shoots that have received a special events permit issued by the special

*__State law reference—__Weapons, S.C. Code 1976, § 16-23-10, et seq.

events permit issued by the special events committee of the city pursuant to section 2-189 of this Code and the written approval of the mayor or chief of police; and

(4) Indoor shooting ranges that are operated in accordance with law on lands within the city that are zoned to permit such use.

(Code 1975, § 52-3; Ord. No. 1996-85, § 1, 4-23-96; Ord. No. 2012-32, § 1, 1-10-12)

State law references—Discharging firearms near public building, S.C. Code 1976, § 16-23-420; discharging firearms at or into a dwelling, § 16-23-440; shooting on public highways, § 16-17-530(c).

Sec. 21-214. Discharging slingshots and spring guns.

No person shall shoot any slingshot, spring gun or other device which shoots slugs bullets, stones or other missiles within the city.

(Code 1975, § 52-4)

Sec. 21-215. Carrying concealed ice pick or knife with blade exceeding three inches in length.

It shall be unlawful for any person to carry concealed about his person any ice pick, razor, knife, dagger or stiletto, the blade of which exceeds three (3) inches in length.

(Code 1975, § 52-6)

State law reference—Carrying concealed weapons, S.C. Code 1976, § 16-23-460.

Sec. 21-216. Carrying concealed toy pistols restricted.

It shall be unlawful for any person fourteen (14) years of age or older to carry concealed about his person any toy pistol or pistol capable of firing blanks or caps or replica under circumstances evincing any intent to use or employ or allow the same to be used or employed in the commission of a crime or knowing that the same are intended to be so used.

(Code 1975, § 52-7)

State law reference—Similar provisions, S.C. Code 1976, § 16-11-20.

Sec. 21-217. Carrying of handguns, concealable weapons and firearms.

(a) Except as provided in S.C. Code § 16-23-20, and not otherwise specifically prohibited by law, no person shall carry on or about his person any handgun, as defined in S.C. Code § 16-23-10(1), whether concealed or not.

(b) Pursuant to S.C. Code § 16-23-420, it is unlawful for a person to possess a firearm of any kind on any premises or property owned, operated, or controlled by a private or public school, college, university, technical college, other post-secondary institution, or in any publicly owned building, without the express permission of the authorities in charge of the premises or property.

(c) Persons, including concealed weapons permit holders, are prohibited from carrying concealable weapons as defined in S.C. Code § 23-31-210, whether concealed or not, in those locations listed in S.C. Code § 23-31-215(M).

(d) The open carrying of firearms on public property is prohibited at public protests, rallies, fairs, parades, festivals, or other organized events when the city has issued any type of permit for such event.

(Code 1975, § 52-8; Ord. No. 2021-108, § 1, 7-29-21)

State law references—Carrying pistols restricted, S.C. Code 1976, § 16-23-20; carrying firearms in or about public buildings, S.C. Code 1976, § 16-23-420; carrying weapons on school property, S.C. Code 1976, § 16-23-430; carrying concealed weapons, S.C. Code 1976, § 16-23-460.

Sec. 21-218. Confiscation.

Any person arrested and subsequently convicted of a violation of the provisions of state statute or City Code shall in addition to any other penalties provided by law have the weapon involved in such violation confiscated to be disposed of by the chief of police as provided by law. However, if any person other than the convicted person has an interest in the weapon, that person must be given the opportunity to come forward and show, if he can, why the weapon should not be forfeited and disposed of as provided for by law.

(Code 1975, § 52-9; Ord. No. 1981-20, § 1, 4-28-81; Ord. No. 2021-108, § 2, 7-29-21)

Sec. 21-219. Brandishing with a weapon prohibited.

(a) *Brandish* means to wave or flourish menacingly, to display ostentatiously, threateningly, angrily or aggressively.

(b) *Deadly Weapon* means any device or object designed, made or adapted to be used for the purpose of inflicting bodily injury or death including, but not limited to, a knife, flag pole, metal or wood pole, bat, staff, golf club, sign post, or other similar solid wood or metal object, but excluding firearms.

(c) It shall be unlawful for any person to brandish any weapon to any person or the public at large within the city limits.

(d) Upon conviction thereof, besides that penalty as may be imposed by the court, the weapon shall be forfeited to the city, and be destroyed.

(e) The pointing or presenting of a firearm is prohibited by S.C. Code § 16-23-410. For purposes of this section, to "present" a firearm shall mean to offer to view in a threatening manner, or to show in a threatening manner.
(Ord. No. 2018-089, § 1, 7-17-18; Ord. No. 2021-108, § 2, 7-29-21)

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Sec. 21-220. Enhanced trigger devices.

(a) *Prohibited.*

(1) Any device capable of being attached to a firearm for the purpose of increasing the firing rate or capabilities of an otherwise legal firearm using recoil, commonly known as "bump stocks" or "bump fire stocks", are hereby declared unlawful and any person in actual or constructive possession of such a device is guilty of a misdemeanor punishable in municipal court pursuant to section 1-16.

(2) Any device capable of attaching to a firearm and repeatedly activates the trigger of a weapon through the use of a lever or other part that is turned in a circular motion, commonly known as a "trigger crank" or "gat crank," is hereby declared unlawful and any person in actual or constructive possession of such a device is guilty of a misdemeanor punishable in municipal court pursuant to section 1-16.

(b) *Exceptions.* Violations as stated in subsection (a) or (b) above are subject to the following exceptions:

(1) Any member of the United States military or any legally sworn law enforcement personnel while engaged in the course of their duties or in training;

(2) Any "bump stock" or "trigger crank" device which is possessed by a person who is not prohibited under state or federal law from using, owning, or possessing a firearm, and the device is completely disconnected from any firearm in a manner which would render the device inoperable and stored in a separate container from the firearm or weapon;

(3) Any law enforcement officer or department having seized a firearm with "bump stock" or "trigger crank" attached, pursuant to a lawful seizure of a weapon, as contraband or evidence of a crime, within the City of Charleston limits; provided, however, any law enforcement agency taking possession of a "bump stock" attached to a firearm must notify the Charleston Police Department immediately to inform them of the existence of the

device, the location where it was obtained, where the device will be stored, and any other facts relevant to the use or possession of said device by any person;

(4) Possession of any weapon which is manufactured to fire through the use of a crank or lever.

(Ord. No. 2018-113, § 1, 9-18-18)

Editor's note—Ord. No. 2018-113, § 1, adopted Sept. 18, 2018, added provisions designated as § 21-219. In order to avoid conflicts in section numbering the editor has redesignated the provisions added by Ord. No. 2018-113 as § 21-220.

Secs. 21-221—21-229 Reserved.

ARTICLE XI. DECEPTIVE, MISLEADING AND AGGRESSIVE COMMERCIAL SOLICITATION

Sec. 21-230. Findings and purpose.

This article is based on the following findings and purposes:

(a) The primary purpose of the public streets and sidewalks is use by vehicular and pedestrian traffic.

(b) The number of persons using the public streets and sidewalks in the City of Charleston in recent years has increased dramatically due to an expanded commercial use and a growing tourism industry. As a result, the streets and sidewalks in the City of Charleston are more congested with vehicles and pedestrians.

(c) Solicitors have begun to utilize deceptive, misleading, and aggressive commercial solicitation in the City of Charleston, adjacent to or upon the streets, sidewalks and public rights-of-way, by urging upon residents and visitors the use of their services through oral communication and distributed materials and by abruptly approaching residents and visitors. Such solicitors have refused to discontinue their actions despite being asked to cease by the residents and visitors of the City of Charleston.

(d) The deceptive, misleading, and aggressive commercial solicitation by such solicitors in the City of Charleston

has negatively affected visitors' enjoyment of the City of Charleston and as a consequence visitors have expressed an intention not to return to the City of Charleston.

(e) City council finds that the success of such deceptive, misleading, and aggressive commercial solicitation requires that persons congregate and respond to such solicitation, thereby impeding pedestrian and vehicle travel.

(f) City council further finds that the deceptive, misleading, and aggressive commercial solicitation occurs in sales offices, as well as at sales kiosks, podiums, and satellite offices located adjacent to the public rights-of-way.

(g) City council further finds that the deceptive, misleading, and aggressive commercial solicitation has an adverse impact on the ambiance of the City of Charleston and the public streets and sidewalks in the City of Charleston; creates confrontations with residents and visitors; creates nuisances; adversely impacts the health and safety and well being of the public; and otherwise has a negative impact on the tourism industry and economy of the City of Charleston.

(h) City council further finds it necessary to regulate solicitors in order to protect the historic and traditional ambiance of the City of Charleston and to promote the safety and welfare of the residents and visitors of the City of Charleston.

(i) Vacation time share and vacation club membership sellers and solicitors have begun to engage in misleading advertising practices, including misleading signage, and as a consequence have negatively affected the special character and welcoming nature of the City of Charleston.

(j) Vacation time share and vacation club membership solicitors and sellers have begun to represent themselves as official City of Charleston visitor centers and/or affiliated with the City of Charleston.

(k) City council finds it necessary to regulate the signage of vacation time share and vacation club membership solic-

itors and sellers that are located on or visible from the public rights-of-way in the City of Charleston in order to protect the residents and visitors that mistakenly rely on those solicitors' and sellers' representations as official City of Charleston visitor center or otherwise affiliated with the City of Charleston.

(l) City council finds it necessary to regulate the signage of vacation time share and vacation club membership solicitors and sellers that are located on or visible from the public rights-of-way in the City of Charleston in order to protect the historic and traditional ambiance of the City of Charleston and to promote the safety and welfare of the residents and visitors of the City of Charleston.

(m) The purpose of the regulations contained in this article is to regulate activities which are commercial in nature and are not intended to prohibit free speech or any other constitutional right.

(n) The regulations set forth in this article are further designed to protect residents and visitors of the City of Charleston against unreasonable interference or disturbance in their peace and against obstruction of free travel on City of Charleston streets and sidewalks from the conduct of solicitors.

(o) This article is also designed to ensure that solicitors do not misrepresent the nature of the products they are promoting or the identity of the business that is promoting the products, whether selling their products at sales offices, as well as at sales kiosks, podiums, or satellite offices located adjacent to the public rights-of-way, and to provide a means for regulating such activities and enforcing the provisions of this article.

(p) This article is also designed to ensure that vacation time share and vacation club membership solicitors and sellers do not misrepresent the nature of the products they are promoting or the identity of the business that is promoting the products through signage or otherwise, and to provide a means for regulating such activities and enforcing the provisions of this article.

(q) City council further finds the adoption of this article is part of an ongoing effort to reasonably regulate the conduct of business for the benefit of the general public upon the public streets and sidewalks in the City of Charleston.

(Ord. No. 2011-37, § 2, 5-10-11)

Sec. 21-231. Definitions for purposes of this article.

(a) *Commercial solicitation* shall be defined as any efforts by solicitor or solicitor business intended to interest, entice, or solicit any person to participate in a present or future commercial transaction. Such efforts include, but are not limited to, offers of products, either for sale, lease, exchange, or free, through person-to-person contact, telephone, mail, electronic mail, signage, handbills or other printed material, intended to induce the recipient's willingness to receive information relating to a possible present or future commercial transaction.

(b) *Person* shall be defined as any individual, corporation, firm, association, joint venture, partnership, trust estate, business trust, syndicate, fiduciary, and any other group or combination.

(c) *Product* shall be defined as any tangible or intangible item including, but not limited to, goods, edibles, services, real property, timeshare interests, and club memberships.

(d) *Solicitor* shall be defined as a person who by personal inducement, commercial solicitation, or other means encourages, or attempts to encourage, any person to participate in a present or future commercial transaction.

(e) *Solicitor business* shall be defined as a person that engages in the business of employing or contracting with solicitors.

(f) *Vacation club membership plan* shall be defined as an arrangement or agreement in which a purchaser in exchange for an advance fee and yearly dues is entitled to select from a designated list of facilities located in more than one (1) state, accommodations of companies that operate nationwide in at least nine (9) states in the United States through franchises or ownership, for a specified time period and at reduced rates and under

which an interest in real property is not transferred. Vacation club membership plans include, but are not limited to, arrangements and agreements set up by travel club services and retail travel club services.

(g) *Vacation club membership seller* shall be defined as any person who creates a vacation club membership plan or is in the business of selling interests in a vacation club membership plan, or employs agents to do the same, or a person who succeeds to the interest of a seller by sale, lease, assignment, mortgage, or other transfer.

(h) *Vacation club membership solicitor* shall be defined as a person who attempts directly or indirectly to encourage any person to enter into a present or future commercial transaction consisting of a vacation club membership plan, through personal inducement, solicitation, or other means, including, but not limited to, invitations to sales presentations and offers for free or discounted products.

(i) *Vacation time share plan* means either a vacation time sharing ownership plan or a vacation time sharing lease plan.

(j) *Vacation time share seller* shall be defined as a person who creates a vacation time sharing plan or is in the business of selling interests in a vacation time share plan, or employs agents to do the same, or a person who succeeds to the interest of a seller by sale, lease, assignment, mortgage, or other transfer; except that, the term includes only a person who offers interests in vacation time sharing plans in the State of South Carolina in the ordinary course of business. The term "seller" does not include the following:

(1) An owner of a time sharing interest who has acquired the time sharing interest for his own use and occupancy and who later offers it for resale on his own behalf or through a real estate broker;

(2) A managing entity or owners' association of a time sharing plan, not otherwise a seller, that offers on the association's behalf time sharing interests in the time sharing plan transferred to the association through foreclosure, deed in lieu of foreclosure, or gratuitous transfer; or

(3) A person who owns or is conveyed, assigned, or transferred time sharing interests, and who subsequently conveys, assigns, or transfers all acquired time sharing interests to a single purchaser in a single transaction, which transaction may occur in stages.

(k) *Vacation time share solicitor* shall be defined as a person who attempts directly or indirectly to encourage any person to enter into a present or future commercial transaction consisting of a vacation time sharing plan, through personal inducement, solicitation, or other means, including, but not limited to, invitations to sales presentations and offers for free or discounted products. The term "solicitor" does not include the following:

(1) An owner of a time sharing interest who has acquired the time sharing interest for his own use and occupancy and who later offers it for resale on his own behalf or through a real estate broker;

(2) A managing entity or owners' association of a time sharing plan, not otherwise a seller, that offers on the association's behalf time sharing interests in the time sharing plan transferred to the association through foreclosure, deed in lieu of foreclosure, or gratuitous transfer; or

(3) A person who owns or is conveyed, assigned, or transferred time sharing interests, and who subsequently conveys, assigns, or transfers all acquired time sharing interests to a single purchaser in a single transaction, which transaction may occur in stages.

(l) *Vacation time sharing lease plan* shall be defined as any arrangement, plan, or similar devise, whether by membership agreement, lease, rental agreement, license, use agreement, security, or other means, in which the purchaser receives a right to use accommodations or facilities, or both, but does not receive an ownership interest in real property, for a period or periods of time during a given year, but not necessarily for consecutive years, which extends for a period of more than three (3) years. These lease plans do not include an arrangement or agreement in which a purchaser in exchange for an advance fee and yearly dues is entitled to select from a designated list of facilities located in more than one (1) state, accommodations of companies that

operate nationwide in at least nine (9) states in the United States through franchises or ownership, for a specified time period and at reduced rates and under which an interest in real property is not transferred.

(m) *Vacation time sharing ownership plan* shall be defined as any arrangement, plan, or similar devise, whether by tenancy in common, sale, term for years, deed, or other means, in which the purchaser receives an ownership interest in real property and the right to use accommodations or facilities, or both, for a period or periods of time during a given year, but not necessarily for consecutive years, which extends for a period of more than one (1) year. A vacation time sharing ownership plan may be created in a condominium established on a term for years or leasehold interest having an original duration of thirty (30) years or longer. An interest in a vacation time sharing ownership plan is recognized as an interest in real property for all purposes pursuant to the laws of this state.
(Ord. No. 2011-37, § 2, 5-10-11)

Sec. 21-232. Specific regulation of conduct.

Solicitors shall be prohibited from engaging in the following activities in the City of Charleston:

(a) No solicitor or solicitor business shall make a deceptive or misleading oral or written statement or representation in the course of soliciting or attempting to solicit persons.

(b) No solicitor or solicitor business shall misrepresent the nature of the products they are promoting or the identity of the business that is promoting the products, nor shall any solicitor or solicitor business represent themselves as being affiliated with the City of Charleston.

(c) No solicitor or solicitor business shall solicit, sell, or attempt to solicit or sell any product in an aggressive manner, which shall include but is not limited to:

(1) Intentionally touching or causing any physical contact with any persons on the public streets or side-

walks without that person's consent while engaging in, or attempting to engage in, commercial solicitation with that person; or

(2) Intentionally blocking or interfering with the safe or free passage of any person by any means, including, but not limited to, unreasonably causing a person to take evasive action to avoid physical contact, while engaging in, or attempting to engage in, commercial solicitation with that person; or

(3) Using profane, offensive, abusive or derogatory language, or using violent or threatening gestures toward a person before, during, or after commercial solicitation, or an attempt at commercial solicitation with the person; or

(4) Continuing to engage any person as part of any commercial solicitation or attempt at commercial solicitation, including, but not limited to, persisting in closely following or approaching a person, if the person has indicated by words or conduct that such person does not want to be solicited.

(d) No solicitor or solicitor business shall engage in sales or solicitation tactics that cause a gathering of people to form in a public place or otherwise cause congestion or the disruption of free flowing traffic, whether such traffic is pedestrian or vehicular.

(Ord. No. 2011-37, § 2, 5-10-11)

Sec. 21-233. Provisions applicable to all signs for vacation time share solicitors, vacation club membership solicitors, vacation time share sellers and vacation club membership sellers.

(a) Within the City of Charleston, all signage at all locations—including, but not limited to, satellite sales locations, kiosks, or podiums located adjacent to the public rights-of-way—of any vacation time share or vacation club membership solicitor or seller shall be clearly visible and readable from the adjacent public right-of-way and contain the following information:

(1) The name of the business shall be disclosed on the face of the sign in letters of sufficient size to be clearly readable

to the public, but in no event less than fifty (50) percent of the average size of the sign text, whichever is larger; and

(2) The words "vacation time share seller," or "vacation club membership seller" shall be printed and thereafter remain in an unobscured manner, clearly readable in contrasting color and clearly readable to the public; and

(3) The words "this business is not affiliated with the City of Charleston or the Charleston Visitor Reception and Transportation Center or Charleston Area Convention and Visitor Bureau" shall be printed and thereafter remain in an unobscured manner, clearly readable in contrasting color and clearly readable to the public.

(b) All signs shall comply with all other ordinances or rules specifying signage standards within the City of Charleston.
(Ord. No. 2011-37, § 2, 5-10-11)

Sec. 21-234. Severability.

If any section, subsection, sentence, clause, phrase or portion of this article is for any reason held invalid or unconstitutional by a court of competent jurisdiction, such portion shall be deemed a separate, distinct and independent provision and such holding shall not affect the validity of the remaining portions hereof.
(Ord. No. 2011-37, § 2, 5-10-11)

Sec. 21-235. Enforcement and violations.

(a) The police department, along with any other city enforcement officers or any other city employees designated by the council as code enforcement officers, are to enforce the provisions of this section.

(b) Any solicitor or solicitor business who violates any provision of this article shall be guilty of an infraction, punishable by a fine not to exceed one hundred dollars ($100.00).

(c) Violations of any and all of the provisions in this article shall be considered separate and distinct offenses.

(d) Each day of a continuing violation of this article shall be considered a separate and distinct offense.
(Ord. No. 2011-37, § 2, 5-10-11)

Sec. 21-236. Suspension or revocation of business license and appeal procedure.

Violations of this article may subject the business license to suspension or revocation pursuant to the procedures set forth in the City of Charleston Business License Ordinance, Sections 15 and 16.
(Ord. No. 2011-37, § 2, 5-10-11)

Sec. 21-237. Amortization.

This article shall take effect immediately and all existing, nonconforming signs shall be amortized and discontinued one hundred twenty (120) days after the enactment of this article.
(Ord. No. 2011-37, § 2, 5-10-11)

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Chapter 22

PARKS AND RECREATION*

Article I. Park and Recreation Facilities

Sec. 22-1. Purpose.
Sec. 22-2. Hours.
Sec. 22-3. Functions organized, sponsored, or co-sponsored by the department of recreation.
Sec. 22-4. Reservation permit for reserved use.
Sec. 22-5. Prohibited activities in or upon a public park, park facility, recreational facility, or playground.
Sec. 22-6. Vehicular and animal traffic.
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Sec. 22-8. Mooring or landing boat along a public dock, prohibited.
Sec. 22-9. Penalties.
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Article II. Recreation Department

Sec. 22-21. Creation.
Sec. 22-22. Management of recreation programs.
Sec. 22-23. Recreation commission.
Sec. 22-24. Municipal golf course—Management.
Sec. 22-25. Municipal golf course commission.

***Editor's note—**Ord. No. 2010-111, § 1, adopted July 20, 2010, repealed the former ch. 22 and enacted a new ch. 22 as set out herein. The former ch. 22, §§ 22-1, 22-16—22-20, 22-31—22-39, 22-46—22-48, and 22-62—22-75, pertained to parks and recreation and derived from 1975 Code §§ 37-45, 39-2—39-5, 39-9—39-23, 41-2—41-7; Ord. No. 1978-35, §§ 1—8, adopted April 11, 1978; Ord. No. 1979-16, §§ 4, 8, adopted Feb. 27, 1979; Ord. No. 1982-48, §§ 1—3, 5, adopted May 25, 1982; Ord. No. 1983-46, § 1, adopted Sept. 13, 1983; Ord. No. 1999-09, § 1, adopted Feb. 9, 1999; Ord. No. 1999-135, § 1, adopted Sept. 20, 1999; Ord. No. 2002-72, § 1, adopted May 14, 2002; Ord. No. 2005-312, § 1, adopted July 19, 2005; Ord. No. 2005-340, §§ 1—3, adopted Aug. 16, 2005; and Ord. No. 2006-595, §§ 1, 2, adopted Dec. 19, 2006.

Cross references—Committee on special facilities, § 2-59; department of administrative services, § 2-176 et seq.; department of public service, § 2-231 et seq.; department of special facilities, § 2-246 et seq.; amusement generally, Ch. 4; Colonial Common and Ashley River Embankment, Ch. 9; Cypress Gardens, Ch. 10; Marion Square, Ch. 18; motor vehicles and traffic, Ch. 19; planning, Ch. 23; streets and sidewalks, Ch. 28; tourism, Ch. 29.

State law reference—Municipal regulations relative to public parks inside or outside corporate limits, S.C. Code 1976, §§ 51-15-20 and 51-15-30.

Secs. 22-26—22-36. Reserved.

Article III. Parks Department

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Sec. 22-38. Administration; duties of director.

Division 2. Division Duties

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Sec. 22-40. Capital projects division.
Sec. 22-41. Litter control and beautification division.
Sec. 22-42. Grounds maintenance division.
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Sec. 22-58. Removal of dangerous trees.
Sec. 22-59. Interfering with personnel of director of department of parks.

ARTICLE I. PARK AND RECREATION FACILITIES

Sec. 22-1. Purpose.

The rules and regulations set out in this article are established to ensure the fullest use and enjoyment by the general public of the public recreational facilities and parks in the city consistent with the protection of persons, public property, and the tranquility of surrounding neighborhoods.
(Ord. No. 2010-111, § 1, 7-20-10)

Sec. 22-2. Hours.

Every public park, park facility, recreational facility, and playground in the city shall be closed from dusk to dawn unless the public park, park facility, recreational facility, or playground is hosting a city organized or permitted activity, is staffed by the city, or the director of the department of recreation or the director of the department of parks has ordered different hours of operation. The director of the department of recreation and the director of the department of parks may close any park, park facility, recreational facility, playground, or portion thereof for maintenance or ground protection at any time.
(Ord. No. 2010-111, § 1, 7-20-10)

Sec. 22-3. Functions organized, sponsored, or co-sponsored by the department of recreation.

(a) Functions organized, sponsored, or co-sponsored by the department of recreation shall have priority over any and all other activities in or upon public parks, park facilities, recreational facilities, and playgrounds.

(b) No person shall interfere with the organization, operation or use of a public park, park facility, recreational facility, or playground by groups or individuals for activities or events sponsored by the city, permitted under the city's special events ordinance found in section 2-185 et seq. of this Code, or permitted under section 22-4.
(Ord. No. 2010-111, § 1, 7-20-10)

Sec. 22-4. Reservation permit for reserved use.

(a) For all organized activities or organized sports which do not require a special events permit pursuant to section 2-185 et seq., or a First Amendment demonstration permit pursuant to section 25-36 et seq., of this Code, but require reserved use of a park, park facility, recreational facility, recreation field, athletic field, tennis court, and/or playground or any portion thereof, a person may reserve such space for a reasonable period of time at reasonable intervals for the purposes of organized sports, picnics, or group activities upon obtaining a reservation permit for the proposed use. For the purposes of this section, "organized sports" shall mean any game or sport which is played by three (3) or more persons or by two (2) or more teams that play and/or practice together regularly in a league or association.

(b) A person seeking issuance of a reservation permit shall file a reservation permit application with the department of recreation. The application shall be filed with the department not less than twenty-one (21) business days before the date on which the proposed activity is to take place. For events scheduled for the preceding calendar year which require reserved use, the reservation calendar for the preceding year will be opened on September 1 of the current year.

(c) The department of recreation shall have the discretion to approve or deny any application which is filed less than twenty-one (21) business days before the date such activity is proposed to be conducted.

(d) The request for a reservation permit shall set forth the following information:

(1) The name, address and telephone number of the person seeking the permit.

(2) The name, address and telephone number of the headquarters of the organization or association requesting the permit and of the authorizing and responsible person for such organization or association.

(3) The name, address, and telephone number of the person who will be the chairman and who will be responsible for the conduct of the activity.

(4) The date when the activity is to be conducted.

(5) The specific location of the activity proposed.

(6) The approximate number of persons who will participate in the activity.

(7) The hours when such activity will start and terminate, including set up and tear down time.

(8) A detailed description of the proposed activity.

(9) Any additional information which the department of recreation shall find reasonably necessary to a fair determination as to whether a reservation permit should be issued.

(e) The department of recreation in concert with the department of parks shall issue a reservation permit as provided for hereunder when, from a consideration of the request and from such other information as may otherwise be obtained, they find that:

(1) The conduct of the activity proposed will not substantially interrupt the safe and orderly activity of the park, park facility, recreational facility, recreation field, athletic field, tennis court and/or playground or any portion thereof, in question or the safe and orderly movement of traffic, pedestrian and vehicular.

(2) In the opinion of the chief of police, the conduct of the activity will not require the diversion of so great a number of police officers of the city to properly police the activity so as to prevent normal police protection to the city.

(3) The concentration of persons at the activity will not unduly interfere with proper utilization of the park, park facility, recreational facility, recreation field, athletic field, tennis court and/or playground or any portion thereof, or with proper fire and police protection of the park and playground and areas contiguous to such area.

(4) The conduct of the activity is not reasonably likely to cause injury to persons or property, to provoke disorderly conduct or create a disturbance.

(5) The conduct of the activity is not reasonably likely to cause excessive littering or a health hazard to the citizens of the city.

(6) The reservation of the park, park facility, recreational facility, recreation field, athletic field, tennis court and/or playground or any portion thereof, will not unduly interfere with the use of the facilities by individuals not involved in the activity.

(7) The size, location, and primary purpose of the park, park facility, recreational facility, recreation field, athletic field, tennis court and/or playground and the nature of the surrounding neighborhood is consistent with the proposed activity.

(f) Any person aggrieved shall have the right to appeal the denial of a reservation permit to the recreation committee of council. The appeal shall be filed within forty-eight (48) hours after notice of the denial to the clerk of council. The recreation committee of council shall act upon the appeal at its next regularly scheduled meeting, but no later than thirty (30) days from the time of receipt of the appeal.

(g) The department of recreation, in denying a request for a permit, shall be empowered to authorize the activity on a day, at a time, or at a location different from that named by the applicant. An applicant desiring to accept an alternate permit shall, within two (2) days after notice of the action, file a written notice of acceptance with the department of recreation. An alternate permit shall conform to the requirements of and shall have the effect of a permit under this section.

(h) The department of recreation shall have the authority to revoke a permit issued hereunder upon violation of the standards for issuance as set forth in subsection (e) of this section. It shall be grounds for denial of a permit if substantially the same group who proposes to use the facilities has violated the standards as set forth in subsection (e) on a previous occasion.

(i) The activity chairman or other person heading or leading such activity shall carry the permit upon his person during the conducting of the permitted activity.

(j) The activity chairman or other person heading or leading such permitted activity shall comply with all permit directions and conditions and with all applicable laws and ordinances.

(k) Should more than one (1) group apply for use of the same facility, the department of recreation will give priority to the earlier request, provided, however, the department of recreation shall ensure that repeated reservation of facilities by one (1) group will not interfere with the reasonable use of the facility by other groups and individuals, or with the tranquility of the neighborhood surrounding the facility, and in their discretion may deny or reschedule an activity to achieve this end.

(l) The city reserves the right in its sole discretion to require a person seeking a reservation permit to obtain a special events permit issued pursuant to section 2-185 et seq., or a First Amendment demonstration permit issued pursuant to section 25-36 et seq., when the city finds that requiring such special events permit or First Amendment demonstration permit is in its best interest.

(m) Safety restrictions and prohibitions.

(1) *Threats to safety.*

a. It shall be unlawful for any person to point or present a firearm (as defined in S.C. Code § 16-25-10(7)), or to brandish a weapon (as defined in City Code § 21-219), while participating in or attending an organized event for which a permit has been issued pursuant to this section.

b. For purposes of this section, "brandish" shall mean to wave or flourish menacingly, to display ostentatiously, threateningly, angrily or aggressively.

c. For purposes of this section, to "present" a firearm shall mean to offer to view in a threatening manner, or to show in a threatening manner.

(2) *Open carry prohibited.* It shall be unlawful for any person(s) participating in organized events for which a permit has been issued pursuant to this section to openly carry a firearm. The person or entity hosting the

organized event must post signs as approved and directed by the department of recreation to indicate the specific area where the open carry of firearms are prohibited.

(n) All reservation permits shall be subject to the city park permit fee structure below, in addition to reservation permit deposits and athletic field rental deposits. All fees and deposits are due fourteen (14) days prior to the reserved event. Failure to pay any fees or deposits may result in the permit being denied.

Park Permitting Fees

Permit Application Fee - Must be paid upon application submittal	
Resident	$15
Non-resident	$30
Applications must be submitted a minimum of 21 days in advance of event date.	

Wedding Sites			
Location	*Capacity*	*Time Limit*	*Price*
Angel Oak, White Point, Washington Square, Waterfront**	up to 25	1 hour	$150
Cannon Park, Demetre (restricted parking)	up to 50	2 hours	$200
Hampton Park Gazebo	up to 200	3 hours	$300
Hampton Park Lagoon	up to 400	3 hours	$500

Special Use Permit Fees	
Athletic field lights	$20 per hour
Electric panel access	$50
Set electrical panel	$100
Set electrical panel and run cable (up to 200')	$200
Recreation staff	$40 per hour
Recreation buildings (park houses) (4 hours max.)	$30 per hour
Recreation facilities (St. Julian, Carr-Richardson) (4 hours max.)	$50 per hour
Gymnasiums (BLRC, JIRC, DIRC, AWCCC)	$50 per hour full court
Multi-purpose rooms (BLRC, JIRC, DIRC, AWCCC)	$50 per hour per room

Athletic Fields	
Type	*Price*
Baseball/softball fields	$50 per hour
Soccer/lacrosse/football/multi-purpose fields	$100 per hour
Tennis courts/pickleball courts	$25 per hour
Synthetic turf field (Stoney Field)	$200 per hour
Outdoor basketball courts for organized play	$25 per hour

Covered Shelters - In addition to park use rental fees			
Location	*Capacity*	*Time Limit*	*Price*
Johns Island, West Ashley, Parkshore, Demetre, Bayview	up to 75	3 hours	$125
Hampton Park Gazebo	up to 100	3 hours	$250

Park Use Rental Fees			
General park usage requests	*Capacity*	*Time Limit*	*Price*
Depending on complexity of event, special events permit may be required.	0—100	3 hours	$50
	100—250	3 hours	$125
	250—500	3 hours	$375

Refunds/Additional Fees	
Damage/clean-up/ revoked permit*	$100 minimum — up to $500 retained
Cancellation	Cancel 14 days or more prior to date of event: Full refund of rental fees and deposit. Cancel 7—13 days prior to date of event: 50% of rental fees and deposit refunded. Cancel 0—6 days prior to date of event: No refund of rental fees or deposit.
Rescheduling fee	$25/schedule change (date, time, and/or location) Excludes weather-related changes
Permit application fee	Non-refundable

Full payment due 14 days in advance of event date.

Fees are doubled for non-residents.

*Revocation of permit results in loss of all deposits.

**White Point, Washington Square, Waterfront Park, Angel Oak are only permitted for weddings, photo shoots, and filming.

Amplified sound is limited in most parks. Balloon releases are not allowed within the City of Charleston.

(Ord. No. 2010-111, § 1, 7-20-10; Ord. No. 2021-106, § 1, 7-29-21; Ord. No. 2024-080, § 1, 5-28-24)

Sec. 22-5. Prohibited activities in or upon a public park, park facility, recreational facility, or playground.

Unless expressly approved under a city special event permit issued pursuant to section 2-185 et seq. of this Code, the following activities shall be prohibited for any person using a public park, park facility, recreational facility, or playground:

(a) *Alcoholic beverages.* No person shall possess an open container or consume any beer, wine or alcoholic beverage in or upon a public park, park facility, recreational facility, or playground in the city; provided however, this prohibition shall not apply to any park, park facility, recreational facility or playground in the city, or applicable part thereof, that is subject to a lease, management or operation agreement approved by city council that authorizes the sale, possession in an open container or consumption of beer, wine or alcoholic beverages.

(b) *Destruction of property.* No person shall remove, deface, damage, or otherwise injure any structure, sign, fence, equipment, or improvement, monument or memorial, to include fountains, sculptures, plaques, statues, markers, gazebos, objects and other architectural elements or structures, in or upon a public park, park facility, recreational facility, or playground, including hanging, attaching or placing signs, flags, placards or any other object of any kind on such city property; nor shall any person remove, deface, damage, or otherwise injure any flower, plant, shrub, tree, grass, or ground cover in or upon any park or playground.

(c) *Conduct on public property.* No person shall walk, stand, sit, lie, or climb upon any wall, fence, shelter, tree, shrub, or other vegetation, or any or structure, monument or memorial, to include fountains, sculptures, plaques, statues, markers, gazebos, objects and other architectural elements not designed or intended for such purposes located in a public park, park facility, recreational facility, or playground.

(d) *Obstruction.* No person shall obstruct or cause an obstruction, whether alone or together with one or more persons,

or with equipment or personal property of any nature, which limits or impedes access or inhibits the ingress or egress of other persons utilizing the park from the intended use or enjoyment of any building, structure, shed, monument or memorial, to include fountains, sculptures, plaques, statues, markers, gazebos, objects and other architectural elements or structures, restroom, stairs, sidewalk, right-of-way, entryway or exit located in a public park, park facility, recreational facility, or playground.

(e) *Audio devices.* No person shall play an audio device, such as a television set, radio, compact disc or tape player, at such a volume as to disturb persons utilizing the park outside of the immediate vicinity of the user.

(f) *Bands, concerts.* No band or group of musicians shall perform in or upon a public park, park facility, recreational facility, or playground so as to unreasonably disturb the tranquility of the residents surrounding a public park, park facility, recreational facility, or playground.

(g) *Solicitation.* No person shall solicit, peddle, or charitably solicit in a public park, park facility, recreational facility, or playground without the express written approval of the city.

(h) *Storage.* No person shall store any goods, materials, vehicles, or other property in or upon a park, park facility, recreational facility, or playground without the written approval of the director of the department of recreation or the director of the department of parks.

(i) *Fireworks and weapons.* No person shall possess, discharge, or set off any fireworks, weapons, or other explosive devices in or upon any park or playground, without written approval of the director of the department of recreation or the director of the department of parks.

(j) *Weapons.* No person shall brandish any weapon to any person or the public at large within a public park, park

facility, recreational facility, or playground. For the purposes of this section, "weapon" and "brandish" shall have the meanings ascribed in section 21-219.

(k) *Open carry.* No person shall openly carry a firearm at a public protest, rally, fair, parade, festival or other organized event in a public park, park facility, recreational facility, or playground when the city has issued a permit for such event. The pointing or presenting of a firearm is prohibited by S.C. Code § 16-23-410.

(l) *Open burning.* No person shall kindle, maintain, or authorize to be kindled or maintained any open burning in or upon a public park, park facility, recreational facility, or playground, except in designated areas as permitted in section 13-10. For the purposes of this section, "open burning" shall have the meaning ascribed in section 13-10.

(m) *Litter.* No person shall discard litter in any park or playground except in designated receptacles.

(n) *Golfing.* No person shall play or practice golf in a public park or playground without the written approval of the director of the department of recreation or the director of the department of parks.

(o) *Remote control devices.* No person shall operate a remote control device, including, but not limited to, any model plane, glider, helicopter, car, truck, or any other wheeled vehicle in any park, park facility, recreational facility, or playground, recreational facility parking lot, or other public recreation area. Model plane shall mean any device that flies, whether uncontrolled or controlled by radio, wire, or string, and is powered by internal combustion, electricity, gasoline, battery, or any other type of fuel.

(p) *Commercial activities.* No person shall carry on any commercial activity in any park or playground without the written approval of the director of the department of recreation or the director of the department of parks.

(q) *Unlawful activities.* No person shall carry on any activity in or upon a public park, park facility, recreational facility, or playground of the city which is prohibited by the statutes of the state or the ordinances of the city, or the posted rules of the facility or park.

(r) *Treasure hunting.* Metal detecting and/or digging in public parks, public rights-of-way, and playgrounds is prohibited.

(s) *Photographic/video equipment.* It shall be unlawful for a person to install, maintain or operate a video recording device, camera or cell phone with a camera incorporated therein in any dressing room, restroom, bathroom, toilet, washroom, shower or locker room in or upon a city recreation facility.

(t) *Camping.* No person shall camp, camp out, sleep, lodge, or take up residence in any camper, van, bus, or other motor vehicle in any park or public place.

(u) *Dogs.*

(1) No person owning or having possession, charge, custody or control of any animal shall cause, permit or allow the animal to stray or in any manner to run at large in or upon any athletic field, athletic facility, or park, if such animal is not under a physical restraint or a leash so as to allow the animal to be controlled. The length of a leash shall not be more than (16) sixteen feet long,

(3) Animals may be permitted to occupy a city park or an area of a city park under sufficient strict voice control without physical restraint or a leash when the director of the department of parks determines that during certain hours or under certain conditions animals may be permitted to occupy a city park or an area of a city park under strict voice control and posts the city park accordingly.

(3) No animal of any kind shall be permitted on any tennis court, fenced recreation field, or athletic field at any time, even if such animal is physically restrained, leashed or otherwise controlled.

(Ord. No. 2010-111, § 1, 7-20-10; Ord. No. 2015-091, § 1, 7-21-15; Ord. No. 2019-060, § 1, 7-16-19; Ord. No. 2021-106, § 1, 7-29-21)

Sec. 22-6. Vehicular and animal traffic.

(a) The traffic ordinances of the city shall be observed in all parks or playground facilities.

(b) No person shall operate or park a motorized vehicle or ride, lead or drive any horse, mule or any other animal capable of transporting a human in or upon any park or playground, except in areas designated therefore.

(c) Parking facilities located in all parks and playground facilities are reserved for use by park or playground patrons unless prior authorization has been granted by the director of the department of recreation or the director of the department of parks.
(Ord. No. 2010-111, § 1, 7-20-10)

Sec. 22-7. Mooring or landing boat along seawall, prohibited; sale of articles; drying nets.

(a) No watercraft or floating structure shall be allowed to make fast or moor with their fasts, lines, or rope to the seawall and railing extending along East Bay and Murray Boulevard to Tradd Street.

(b) No person shall be permitted to land from their boats, to embark on a fishing or any other expedition, or to load their boats with fishing utensils or any other articles from the seawall along East Bay and Murray Boulevard to Tradd Street.

(c) No fish or any articles for sale shall be exposed or offered for sale at any time along the seawall and railing extending thereon.

(d) No fishing net or seine shall at any time be hung upon the railing along East Bay and Murray Boulevard to Tradd Street.
(Ord. No. 2010-111, § 1, 7-20-10; Ord. No. 2025-115, § 2, 9-9-25)

Sec. 22-8. Mooring or landing boat along a public dock, prohibited.

With the exception of the facilities located at and managed by the Charleston Maritime Center:

(1) No watercraft or floating structure shall be allowed to make fast, moor, or anchor within three hundred (300)

yards of a public dock from dusk to dawn or at any time the city is under a state of emergency for a named storm.

(2) No person shall be permitted to land from their boats, to embark on a commercial fishing or any other commercial expedition, or to load their boats with fishing utensils or any other articles from a public dock.

(3) No watercraft or floating structure shall be allowed to dock at a public dock for a period of time longer than two (2) hours or at any time the city is under a state of emergency for a named storm.

(Ord. No. 2010-111, § 1, 7-20-10; Ord. No. 2025-115, § 2, 9-9-25)

Sec. 22-9. Penalties.

Any person violating any of the provisions of this article shall be deemed guilty of a misdemeanor and shall, for each violation, upon conviction thereof, be subject to punishment as provided in section 1-16 of this Code. Any device used by a person violating any of the provisions of this article may be seized from such person and may be destroyed in the event such person is found guilty or pleads guilty or nolo contendere to such offense.
(Ord. No. 2010-111, § 1, 7-20-10)

Secs. 22-10—22-20. Reserved.

ARTICLE II. RECREATION DEPARTMENT

Sec. 22-21. Creation.

The department of recreation is hereby established. The department shall be responsible for planning, developing, and leading recreational programs, activities, and events, including, but not limited to, youth and adult sports, aquatic programs, community programs, tennis, youth summer camps, after school programs, arts and craft programs, and similar recreational programs and opportunities for all citizens.
(Ord. No. 2010-111, § 1, 7-20-10)

Sec. 22-22. Management of recreation programs.

The department of recreation shall control and manage all recreation programs, community centers, playgrounds, and other recreation facilities of the city and shall be under the direction and supervision of a director of recreation who shall be appointed by the mayor, with the approval of the city council.
(Ord. No. 2010-111, § 1, 7-20-10)

Sec. 22-23. Recreation commission.

(a) *Established.* An advisory commission for recreation services is hereby established.

(b) *Composition; appointment of members.* The recreation commission shall consist of thirteen (13) members. Each council member shall nominate a constituent to represent his/her district, and one (1) will be appointed by the mayor. All members will be confirmed by the city council. Quorum shall be five (5) members present.

(c) *Nomination of chair and vice chair.* The commission shall nominate and vote to appoint individual members as chair and vice chair, who will be tasked with the responsibility of reporting the recommendations to the recreation standing committee.

(d) *Advisory duties.* The recreation commission shall recommend to the mayor, city council, and the department of recreation, through its reports to the recreation standing committee, courses of action by the city in the area of leisure activities, including long-range planning, establishment and use of city recreation facilities and recreation programs. The recreation commission shall monitor the use of city recreation facilities, and shall encourage citizen participation in the formulating of policy and in the use of city recreation facilities.

(e) *Term.* The term of each member will be three (3) years from the date of appointment. Each member shall serve until his/her replacement is nominated and approved by the city council.

(f) *Meetings.* The commission will meet quarterly, as needed. (Ord. No. 2010-111, § 1, 7-20-10; Ord. No. 2025-082, § 1, 5-27-25)

Sec. 22-24. Municipal golf course—Management.

The facilities of the municipal golf course shall be managed, operated and supervised by the golf course manager who shall report to the director of recreation.
(Ord. No. 2010-111, § 1, 7-20-10)

Sec. 22-25. Municipal golf course commission.

(a) *Established.* There is hereby established the municipal golf course commission.

(b) *Composition, membership.* The municipal golf course commission shall consist of fourteen (14) members appointed by the mayor and approved by the city council. Three (3) of the members so appointed shall be members of city council; at least one member shall be a current junior player; at least one member shall be a member-at-large; at least one person considered for membership shall be a member of the Jenkins Links Golf Association, so long as such club shall maintain an active membership among players at the municipal golf course; one shall be appointed upon the nomination of the Edisto Realty Company or its successors in title, so long as the municipal golf course shall be maintained on property conveyed by Edisto Realty Company to the city council for the purposes of a municipal golf course; one member shall be a person familiar with golf course design and maintenance: and one member shall be appointed upon the nomination of the Friends of the Muni, Inc. so long as such entity shall exist. All members of the commission, excluding council members, shall sit for a two-year term, with the option to extend an additional one-year term. The term limits shall not apply to the member who is the nominee of the Edisto Realty Company.
(Ord. No. 2010-111, § 1, 7-20-10; Ord. No. 2020-164, § 1, 11-24-20; Ord. No. 2021-137, § 1, 9-28-21)

Secs. 22-26—22-36. Reserved.

ARTICLE III. PARKS DEPARTMENT

DIVISION 1. GENERALLY

Sec. 22-37. Creation.

(a) A department of parks is hereby established. The department shall be responsible for the construction, repair, and maintenance of all city parks, playgrounds, and public spaces; construction, repair, and maintenance of city buildings and physical plant systems; installation and maintenance of park and street trees; installation and maintenance of city flower beds; managing street lighting repairs and installation and maintenance of all city electrical systems. The department shall also have the responsibility for coordinating litter and community beautification projects.

(b) The department of parks shall be comprised of the following divisions:

(1) Administration division.

(2) Capital projects division.

(3) Litter control and beautification division.

(4) Grounds maintenance division.

(5) Construction division.

(6) Facilities maintenance division.

(7) Electrical division.

(8) Joseph P. Riley, Jr. Ballpark division.

(Ord. No. 2010-111, § 1, 7-20-10; Ord. No. 2014-14, § 1, 1-30-14)

Sec. 22-38. Administration; duties of director.

(a) The supervision of the department shall be undertaken by the director of the department of parks, who shall be appointed by the mayor, with the approval of the city council.

(b) The director of the department of parks shall be responsible for compiling and maintaining records of all maintenance needs and improvements to city properties, and shall be responsible for the implementation of the capital improvements plan.
(Ord. No. 2010-111, § 1, 7-20-10)

DIVISION 2. DIVISION DUTIES

Sec. 22-39. Administration division.

The administration division shall be responsible for the internal accounting and reporting of the department's receipts and expenditures. This division shall also be responsible for the management of the department's work order system, provide

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clerical services to the department, report departmental payroll to the budget, finance, and revenue department, and manage and administer personnel assignments.
(Ord. No. 2010-111, § 1, 7-20-10)

Sec. 22-40. Capital projects division.

The capital projects division shall be responsible for the design and construction or renovation of city facilities. This division shall also be responsible for the development and implementation of the capital projects review committee.
(Ord. No. 2010-111, § 1, 7-20-10)

Sec. 22-41. Litter control and beautification division.

The litter control and beautification division is responsible for assisting the clean city commission, implementing strategies, educating, and involving the general public in programs and activities that promote the general cleanliness of the city.
(Ord. No. 2010-111, § 1, 7-20-10)

Sec. 22-42. Grounds maintenance division.

The grounds maintenance division shall be responsible for the maintenance of grounds at all parks, squares, athletic fields, and other similar pleasure grounds and buildings and structures whether belonging to the city or leased by the city, including their rights-of-way. In addition, this division shall be responsible for administering and overseeing the city's street tree program along with planting and maintaining trees on city-owned property and the public rights-of-way, the planting and maintenance of all ornamental plantings on the city's property including the public rights-of-way, the daily operation of greenhouse facilities, the propagation of plant material for use on city owned or leased property and for assisting with special events sponsored by the city.
(Ord. No. 2010-111, § 1, 7-20-10; Ord. No. 2014-14, § 2, 1-30-14)

Sec. 22-43. Construction division.

The construction division shall be responsible for the construction of parks, playgrounds, structures, or parts thereof, repair of

existing parks, playgrounds, structures, or parts thereof, and limited maintenance of or improvements to historical elements of the city's public rights-of-way.
(Ord. No. 2010-111, § 1, 7-20-10)

Sec. 22-44. Facilities maintenance division.

The facilities maintenance division shall be responsible for the maintenance of all city owned buildings, structures, and system components.
(Ord. No. 2010-111, § 1, 7-20-10)

Sec. 22-45. Reserved.

Editor's note—Ord. No. 2014-14, § 3, adopted Jan. 30, 2014, repealed former § 22-45 in its entirety which pertained to the urban forestry division and derived from Ord. No. 2010-111, § 1, adopted July 20, 2010.

Sec. 22-46. Reserved.

Editor's note—Ord. No. 2014-14, § 3, adopted Jan. 30, 2014, repealed former § 22-46 in its entirety which pertained to the horticulture division and derived from Ord. No. 2010-111, § 1, adopted July 20, 2010.

Sec. 22-47. Electrical and mechanical division.

The electrical division shall be responsible for maintaining the electrical and lighting systems, including all system components, in all city owned facilities including, but not limited to, parks, buildings, and structures. The electrical division shall also be responsible for public lighting.
(Ord. No. 2010-111, § 1, 7-20-10)

Sec. 22-48. Joseph P. Riley, Jr. ballpark division.

The Joseph P. Riley, Jr. Ballpark division shall be responsible for maintenance of all structural, mechanical, and electrical systems at the city's professional baseball park.
(Ord. No. 2010-111, § 1, 7-20-10)

DIVISION 3. PARK CREATION

Sec. 22-49. Passive parks.

(a) The city council, after a public hearing, and upon a finding that certain individual or organized use or activity in or upon a park is improper, inconsistent, or not in the public interest by reason of the nature of the use or activity, the effect it may have on the physical facilities including the ground cover, or by reason of the size, location, primary purpose of the park or playground, or the nature of the surrounding neighborhood, may designate such park or playground or any portion thereof as well as the adjoining sidewalks and streets as a passive park, and ban such use or activities in such parks, playgrounds, or portions thereof.

(b) The public shall be given notice of a hearing on the proposed designation of any such park, playground, or portion thereof as a passive park by two (2) notices published in a newspaper of general circulation in the city. One notice shall be published at least thirty (30) days prior to the hearing and the second notice at least fifteen (15) days prior to the hearing; the notices shall be blocked in and shall have an appropriate descriptive title.

(c) Such designation as a passive park may be on a temporary or permanent basis.
(Ord. No. 2010-111, § 1, 7-20-10)

DIVISION 4. STREET TREE PROGRAM

Sec. 22-50. Annual appropriation for purchase of street trees.

There shall annually be placed at the disposal of the director of the department of parks such sum as may be appropriated by the city council for the purchase and planting of street trees and for the care and attention of trees already planted or to be planted.
(Ord. No. 2010-111, § 1, 7-20-10)

Sec. 22-51. Permit required to plant street trees.

No shade or ornamental tree or shrub shall be planted in any of the public rights-of-way or easements of the city until such tree or shrub shall have first been approved by the director of the department of parks and a permit therefore be granted by the director of the department of parks.
(Ord. No. 2010-111, § 1, 7-20-10)

Sec. 22-52. Street tree permit approvals.

Approved and permitted shade trees, ornamental trees, and shrubs shall be planted at the permittee's expense and approvals shall be based upon the species and cultivar of the tree, the structure of the tree to be planted, the distances apart, and the distance from the edge of any pavement, asphalt, or sidewalk as set forth in the city's street tree manual.
(Ord. No. 2010-111, § 1, 7-20-10)

Sec. 22-53. Permit required to remove, cut or prune tree.

No person shall, without the written permission of the director of the department of parks, cut, prune, break, climb, attach anything to, use as anchorage, injure or remove any tree or ornamental shrub located in a public right-of-way or easement of the city or on public property. For trees removed unlawfully, without approval, the director of parks is authorized to grant after-the-fact approval, and require mitigation in accordance with the city's tree manual.
(Ord. No. 2010-111, § 1, 7-20-10; Ord. No. 2015-090, § 1, 7-21-15)

Sec. 22-54. Permit required to remove devices protecting trees.

No person shall, without the written permission of the director of the department of parks, injure, misuse or remove any device placed to protect a tree located in a public right-of-way or easement of the city or on public property.
(Ord. No. 2010-111, § 1, 7-20-10)

Sec. 22-55. Permit required to place stones impeding passage of water to trees.

No person shall, without the written permission of the director of the department of parks, place or maintain upon the ground in a public right-of-way or easement of the city or on public property, stone, cement or other substance which shall impede the free passage of water and air to the roots of any tree located in a public right-of-way or easement of the city or on public property.
(Ord. No. 2010-111, § 1, 7-20-10)

Sec. 22-56. Protection of trees during building construction.

In the erection or repair of any building or structure the owner thereof shall place such guards around all the nearby trees in the public rights-of-way and easements of the city and on public property as shall effectually prevent injury, as directed by director of the department of parks.
(Ord. No. 2010-111, § 1, 7-20-10)

Sec. 22-57. Removal of electric, telephone, fiber optic, and cable wires upon request when trees are pruned.

Every person having any wire charged with electricity, or telephone, fiber optic, or cable wires running through a public right-of-way or easement of the city, shall temporarily remove such wire or electricity therefrom when it shall be necessary to prune any trees growing in a public right-of-way, within twenty-four (24) hours after the service upon the owner of such wire or his agent, of a written notice to remove such wire or the electricity therefrom, upon the order of the director of the department of parks.
(Ord. No. 2010-111, § 1, 7-20-10)

Sec. 22-58. Removal of dangerous trees.

The director of the department of parks shall have the right to remove any tree which may be dangerous, decayed or otherwise objectionable in the public rights-of-way or easements of the city.
(Ord. No. 2010-111, § 1, 7-20-10)

Sec. 22-59. Interfering with personnel of director of department of parks.

No person shall prevent, delay or interfere with the officers, employees or agents of the director of the department of parks in the planting, pruning, spraying or removal of a tree, shrub or plant in a public right-of-way or easement of the city or on public property, or in the removal of stone, cement or other substance about the trunk of a tree in a public right-of-way or easement of the city or on public property.
(Ord. No. 2010-111, § 1, 7-20-10)

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Chapter 23

DESIGN, DEVELOPMENT AND PRESERVATION*

Article I. In General

Secs. 23-1—23-15. Reserved.

Article II. Department of Planning and Preservation

Sec. 23-16. Establishment.
Sec. 23-17. Duties and responsibilities.
Sec. 23-18. Administration.
Sec. 23-19. Appointment of personnel.
Sec. 23-20. Land development agreements.
Secs. 23-21—23-30. Reserved.

Article III. Economic Development Commission

Sec. 23-31. Economic development commission established.
Sec. 23-32. Membership; terms.
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Article IV. Central Business District Improvement Commission

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Sec. 23-47. Composition; terms.
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Article V. Reserved

Secs. 23-66—23-85. Reserved.

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*__Cross references—__Department of administrative services, § 2-176 et seq.; department of public service, § 2-231 et seq.; department of special facilities, § 2-246 et seq.; buildings and building regulations, Ch. 7; electrical regulations, Ch. 12; fire prevention and protection, Ch. 13; parks and recreation, Ch. 22; streets and sidewalks, Ch. 28; utilities, Ch. 30.

Article VI. Reserved

Secs. 23-86—23-88. Reserved.

ARTICLE I. IN GENERAL

Secs. 23-1—23-15. Reserved.

ARTICLE II. DEPARTMENT OF PLANNING AND PRESERVATION*

Sec. 23-16. Establishment.

There is hereby established a department of planning and preservation.
(Code 1975, § 21-1; Ord. No. 1978-10, § 1, 1-24-78; Ord. No. 2000-23, § 1, 9-25-00; Ord. No. 2006-398, § 1(c), 9-12-06; Ord. No. 2006-610, §§ 1(d), (e), 12-19-06; Ord. No. 2009-40, § 1, 3-24-09; Ord. No. 2025-024, § 1, 2-25-25)

Sec. 23-17. Duties and responsibilities.

The department shall be charged with the duties of the development, maintenance and implementation of the city's comprehensive land use plan(s); development, maintenance and implementation of district, corridor and neighborhood plans throughout the city; research, analysis and production of special reports as needed by the city and the community; coordination of city government's efforts to implement the city's comprehensive land use plan(s); advising the planning commission on matters pertaining to planning, tracking and providing, as needed, information on demographics in the city and assisting with redistricting of city council districts as required by law; zoning administration, historic preservation and urban design within the city in accordance with federal, state and local legislation; including the expansion of the city's economic base through the local development corporation activities, central business district projects, suburban projects and industrial and corporate recruitment. The department shall advise the boards of zoning appeals, the board of architectural review, the commercial corridor design review board and the planning commission, as needed, on

*__Editor's note—__Ord. No. 2025-024, § 1, adopted Feb. 25, 2025, changed the title of Art. II from department of planning, preservation and sustainability to read as herein set out.

matters pertaining to zoning and historic preservation. It shall provide such engineering, building plan review, permitting and inspections or similar in-house-technical services as are required by the city. It shall have the responsibility for the enforcement of such ordinances or codes relating to housing and building construction and environmental control as are adopted by the council.
(Code 1975, § 21-2; Ord. No. 1978-10, § 1, 1-24-78; Ord. No. 2000-230, § 1, 9-25-00; Ord. No. 2006-398, § 1(d), 9-12-06; Ord. No. 2006-610, § 1(e), 12-19-06; Ord. No. 2009-40, §§ 1, 2, 3-24-09; Ord. No. 2014-101, § 1, 7-15-14; Ord. No. 2025-024, § 1, 2-25-25)

Sec. 23-18. Administration.

The management, direction and control of the department of planning and preservation shall be under the supervision of the director of the department of planning, preservation and sustainability, who shall be appointed by the mayor with the approval of city council.
(Code 1975, § 21-3; Ord. No. 1978-10, § 1, 1-24-78; Ord. No. 2000-230, § 1, 9-25-00; Ord. No. 2006-398, § 1(e), 9-12-06; Ord. No. 2006-610, § 1(b), (f), 12-19-06; Ord. No. 2009-40, § 1, 3-24-09; Ord. No. 2025-024, § 1, 2-25-25)

Sec. 23-19. Appointment of personnel.

The director of the department of planning, preservation and sustainability shall have the power to hire, with the approval of the mayor, such personnel in such positions as are provided for in the budget of the department of planning and preservation as approved by city council.
(Code 1975, § 21-4; Ord. No. 1978-10, § 1, 1-24-78; Ord. No. 2000-230, § 1, 9-25-00; Ord. No. 2006-398, § 1(f), 9-12-06; Ord. No. 2006-610, § 1(b), (g), 12-19-06; Ord. No. 2009-40, § 1, 3-24-09; Ord. No. 2025-024, § 1, 2-25-25)

Sec. 23-20. Land development agreements.

(a) *Findings.* City council finds that the General Assembly of the State of South Carolina has enacted legislation known as the "South Carolina Local Government Development Agreement

Act", State Act codified in Section 6-31-10, et seq. of the Code of Laws of South Carolina, (Supp. 1993), which legislation authorizes, in certain circumstances, the execution of land development agreements to encourage comprehensive and capital facilities planning, to ensure the provision of adequate public facilities for development, to encourage the efficient use of resources, and to reduce the economic cost of development. City council finds and determines that land development agreements may be useful to both the private and public sector by providing certainty in zoning, by setting forth a reasonable schedule of development and by enhancing the opportunity for comprehensive, planned development, and enacts this ordinance in furtherance of the authority evolved upon it by the South Carolina Local Development Agreement Act.

(b) *Definitions.* As used herein:

(1) *Developer* means a person, including a governmental agency, who intends to undertake any development and who has a legal or equitable interest in the property to be developed.

(2) *Development* means the planning for or carrying out of a building activity or mining operation, the making of a material change in the use or appearance of any structure or property, or the dividing of land into three (3) or more parcels. "Development" as designated in a law or development permit includes the planning for and all other activity customarily associated with it unless otherwise specified. When appropriate to the context, "development" refers to the planning for or the act of developing or to the result of development. Reference to a specific operation is not intended to mean that the operation or activity, when part of other operations or activities, is not development. Reference to particular operations is not intended to limit the generality of this term.

(3) *Development permit* includes a building permit, zoning permit, subdivision approval, rezoning certification, special exception, variance or any other official action of local government having the effect of permitting the development of property.

(4) *Governing body* means the city council of the City of Charleston.

(5) *Land development regulations* means ordinances and regulations enacted by the governing body for the regulation of any aspect of development and includes a local government zoning, rezoning, subdivision, building construction, or sign regulations or any other regulation controlling the development of property.

(6) *Laws* means all ordinances, resolutions, regulations, comprehensive plans, land development regulations, policies and rules adopted by the governing body or its affiliate committees, boards or commissions, affecting the development of property and includes laws governing permitted use of property, governing density, and governing design, improvement and construction standards and specifications.

(7) *Property* means all real property subject to land use regulation by the governing body, and includes any improvements or structures customarily regarded as part of real property.

(8) *Person* means an individual, corporation, business or land trust, estate, partnership, association, two or more persons having a joint or common interest, state agency or any legal entity.

(9) *Public facilities* means major capital improvements including, but not limited to transportation, sanitary sewer, solid waste, drainage, potable water, educational, parks and recreational, and health systems and facilities.

(10) *Zoning administrator* means the person charged by the governing body with overseeing the implementation and interpretation of land development regulations pertaining to the development of property.

(c) *Application.* Any person seeking a land development agreement with the city shall make application to the zoning administrator or to such other person as the governing body may designate. The application shall incorporate a statement setting forth the objectives of the development and the benefits that will

inure to the public as a result. The application shall include a legal description of the property subject to the agreement, which property must contain a minimum of twenty-five (25) acres of highland, and the names of its legal and equitable owners; the proposed duration of the agreement, which must be consistent with South Carolina Local Government Development Agreement Act; the development uses permitted on the property, including population densities and building intensities and height; a description of public facilities that will service the property, including the identity of who is to construct and/or provide the facilities, the date that any new public facilities, if needed, will be constructed, and a schedule to verify that public facilities will be available concurrent with the impacts of the development; a description, where appropriate, of any reservation or dedication of land for public purposes; any provisions to protect environmentally sensitive property as may be required or permitted pursuant to laws in effect at the time of application; a description, where appropriate, of any provisions for the preservation and restoration of historic structures. The application shall also include the current, and if applicable requested, zoning of the property and a site analysis, prepared by a registered engineer or surveyor, showing the location of existing manmade features, the location, size and type of grand trees, as defined in the zoning ordinance, where major circulation systems are proposed; general topographic information from topographic maps or other suitable maps using a contour interval not exceeding two (2) feet; and the location and description of identified cultural resources. A land use plan shall be part of the application, which shall show the location, net acreage and gross acreage for each type of residential, office or commercial development proposed for the property, open space areas, water bodies and major circulation systems and existing land uses adjacent to the property. The plan must also identify the type of dwelling units proposed, the minimum of lot size per dwelling unit, and minimum lot frontage requirements, and minimum set back requirements for principal buildings.

With the application, any fee as city council may from time to time establish must also be remitted.

The zoning administrator shall review land development agreement applications, and if necessary for a more coherent understanding of the proposed development, may request additional information.

(d) *Proposed agreement.* Simultaneously, with the submission of the application, or within a reasonable time thereafter, a proposed land development agreement shall be submitted by the applicant to the zoning administrator. The zoning administrator shall review the same and consult with such other city officials or personnel he deems appropriate. Prior to the agreement being presented to the planning commission, as herein provided, said agreement must be approved as to form by corporation counsel. In the event the proposed land development agreement provides that the local governing body shall provide certain public facilities, the agreement must provide that the delivery date of such public facilities be tied to defined completion percentages or defined performance standards to be met by the developer.

(e) *Planning commission.* After the review as set forth in subsection (d), the application and proposed agreement shall be forwarded to the planning commission. Should any issues pertaining to the agreement be unresolved, such shall be identified by the zoning administrator in his report to the planning commission. The planning commission shall conduct a public hearing on the application, giving at least fifteen days notice in a publication of general circulation in the city that a land development agreement is to be considered. The public notice must specify the location of the property subject to the land development agreement, the use(s) proposed for the property and the location where a copy of the proposed land development agreement can be obtained.

At the conclusion of its public hearing, the planning commission shall make a recommendation to city council as to the propriety of the agreement. Such recommendation may include suggested amendments or modifications to the agreement. At the conclusion of its public hearing, the chairman of the planning commission shall announce the time, date and place when city council is to consider the proposed development

agreement. Nothing herein shall be construed to preclude the planning commission from deferring action on a proposed land development agreement for the purpose of receiving clarifying information.

(f) *City council.* Prior to authorizing the execution of a land development agreement, city council shall conduct a public hearing, notice of which shall be advertised in a publication of general circulation in the city at least thirty (30) days prior to the date of said hearing. No land development agreement shall be executed until it has been accepted and approved by the governing body and an ordinance authorizing the same has been ratified.

(g) *Effective date.* No land development agreement shall be effective until such time as an ordinance authorizing its execution has been ratified by city council, and the same has been executed on behalf of the city by the mayor.

(h) *Recording.* It shall be the responsibility of the applicant, within fourteen (14) days of the land development agreement having been executed, to record the agreement with the register of mesne conveyance or clerk of court in the county where the property is located.

(i) *Effect of land development agreement.* A land development agreement must specify which laws in force at the time of the execution of the agreement shall apply for the term of the agreement. Subsequently enacted laws shall be applicable to property subject to a land development agreement, unless the agreement specifies otherwise, or unless, after a public hearing, city council determines that the application of such laws would materially alter or disrupt the development of the property as contemplated by the agreement, or as otherwise provided by the South Carolina Local Government Development Agreement Act, S. C. Code, Ann; Sec. 6-31-80(b)(1), (2), (3), (4) and (5) (Supp. 1993).

(j) *Periodic review.* During the term of a land development agreement, a periodic review of the progress made thereunder shall be had by the zoning administrator, on at least an annual basis. At such review, the parties subject to the agreement must

demonstrate good faith compliance with the terms and provisions of the development agreement, and must provide such information as the zoning administrator may request, and as may be otherwise provided in the agreement. If as a result of any periodic review, it appears that a person subject thereto has a committed a material breach of the terms or conditions of the agreement, such circumstance shall be reported to city council by the zoning administrator. Upon receipt of such report, city council, or such committee to which the matter may be referred by council, if it concurs with the zoning administrator's report, shall serve written notice to the applicable party, setting forth with reasonable particularity the nature of the breach and the evidence supporting the finding and determination of breach, and providing the applicable party a reasonable time in which to cure the breach.

If such party fails to cure the material breach within the cure period, city council or the committee to which the matter has been referred, may unilaterally terminate or modify the land development agreement, provided that council or the committee, as appropriate, has first given the applicable party an opportunity to either rebut the finding and determination or to consent to an amended development agreement to address the concerns of city council or the committee with respect to its findings and determination, and has otherwise complied with the provisions of the development agreement pertaining to a material breach.

(k) *Amendments/cancellation.* Any land development agreement may be amended or cancelled by mutual consent of the parties to the agreement, or by their successors in interest.

(l) *Burden/benefits.* All burdens of the land development agreement are binding upon, and the benefits of the land development agreement shall inure to, all successors in interest to the parties to the land development agreement.

(m) *State or federal laws or regulations.* In the event state or federal laws or regulations, enacted after a land development agreement has been executed, prevent or preclude compliance with one or more provisions of the development agreement, the

provisions of the agreement shall be modified or suspended, as necessary, to comply with the state or federal laws or regulations.

(n) *Technical codes.* Notwithstanding anything herein to the contrary, any and all building, housing, electrical, plumbing and gas codes, now in effect or hereafter adopted by city council, shall apply to any properties subject to a land development agreement.

(o) *Enabling legislation.* In the event that a court of competent jurisdiction shall determine that the state act, or any part thereof, invalid or unenforceable, or in the event that the South Carolina General Assembly shall amend or repeal the state act, in whole or in part, each development agreement shall be reviewed to determine if such change in the state act results in a substantial impairment of the rights or obligations of any of the parties to such development agreement. Any part whose rights or obligations under a development agreement have been substantially impaired by a change in the state act shall have the right to immediately terminate the agreement as to all parties thereto by written notice to the parties to the development agreement.
(Ord. No. 1994-324, § 1, 9-20-94)

Secs. 23-21—23-30. Reserved.

ARTICLE III. ECONOMIC DEVELOPMENT COMMISSION

Sec. 23-31. Economic development commission established.

There is hereby established an economic development commission to be known as the City of Charleston Economic Development Commission.
(Ord. No. 2006-610, § 1(i), 12-9-06)

Sec. 23-32. Membership; terms.

The economic development commission shall be comprised of twelve (12) members consisting of the mayor and eleven (11) members appointed by the mayor, subject to the approval of city council; provided that a quorum shall consist of five (5) members. Terms for other than original appointees shall be for three (3) years.
(Ord. No. 2006-610, § 1(i), 12-9-06)

Sec. 23-33. Purpose.

The purpose of the economic development commission shall be to expand the tax base of the city, to attract capital investments, to create job opportunities in the city and in close proximity to the city for the benefit of city residents as well as for the benefit of the entire metropolitan area, to promote the unique qualities of the city for purposes of commerce, industry and tourism and to cooperate with other governmental and private bodies in the pursuit of these purposes.
(Ord. No. 2006-610, § 1(i), 12-9-06)

Sec. 23-34. Duties.

The economic development commission shall establish goals, policies, and procedures for attracting business and industry to the city and shall study and recommend courses of action to effectuate the economic development of the city to the mayor, city council or other governmental agencies. The commission shall seek out potential businesses and industries to locate in the city and shall aid these businesses in locating in the city. The commission shall study new legislation, both local and statewide, to promote the business development of the city and shall propose new legislation to the mayor and city council for its consideration if the commission deems it desirable. The commission shall cooperate in the exercise of its duties with other governmental and private bodies.
(Ord. No. 2006-610, § 1(i), 12-9-06)

Sec. 23-35. Administrative support.

The administrative support for the economic development commission, in establishing its goals, policies and procedures and in exercising its duties, will be the responsibility of the department of planning, preservation and economic innovation. (Ord. No. 2006-610, § 1(i), 12-9-06)

Secs. 23-36—23-45. Reserved.

ARTICLE IV. CENTRAL BUSINESS DISTRICT IMPROVEMENT COMMISSION*

Sec. 23-46. Central business district improvement commission established.

There is hereby established a central business district improvement commission.
(Ord. No. 2020-095, § 2, 7-28-20)

Sec. 23-47. Composition; terms.

(a) *Membership.* The commission shall consist of thirteen (13) voting members, one (1) of whom shall be the mayor; two (2) members of city council who represent a district or portion thereof in the Central Business District appointed by the mayor; the remaining members who shall be appointed by the mayor and be representative of the following constituencies of the Central Business District: two (2) hospitality industry, one (1) merchant, one (1) property owner, one (1) peninsula resident, and one (1) non peninsula resident, and four at large members, all subject to approval by city council. The mayor shall also appoint the chairperson of the commission.

(b) Terms of office. The mayor shall be a permanent member of the commission. All other members of the commission shall serve for terms of one (1) year or until their successors have been

*__Editor's note—__Ord. No. 2020-095, §§ 1—5, adopted July 28, 2020, amended former Art. IV, §§ 23-46—23-48, in its entirety to read as herein set out. Former Art. IV pertained to the Central Business District Revitalization Commission and derived from Ord. No. 2006-610, § 1(k), adopted Dec. 9, 2006.

appointed and qualified. This commission will dissolve after two (2) years of service or the creation of a business improvement district, whichever occurs first.
(Ord. No. 2020-095, § 3, 7-28-20)

Sec. 23-48. Definition of Central Business District; mission; powers and duties.

(a) *Definition of Central Business District.* The Central Business District shall consist of the area identified in the map attached hereto, entitled "City of Charleston Central Business District, dated 7-1-2020," which will be reviewed from time to time by city council. A copy of the map shall be made available to the public online at the website for the business and neighborhood services division of the department of planning and preservation.

(b) *Mission.* The Central Business District Improvement Commission shall work to assure the long-term economic vitality of the King Street and surrounding commercial area, also known as the Central Business District. The commission will consider and recommend policy and program changes to city council that will balance the local economy with tourism needs and create a vibrant hub for commerce.

(c) *Powers and duties.* The commission shall have the following powers and duties:

(1) Study and recommend financial and organizational techniques, such as business improvement districts, to effectuate the continued health and vitality of Central Business District by the joint efforts of public and private entities;

(2) Evaluate and implement early action improvements for the Central Business District as identified by the commission and the business and neighborhood services division of the department of planning and preservation, especially in the areas of public safety, cleanliness, beautification, and occupancy;

(3) Study and recommend methods to incubate, launch, recruit and sustain businesses in the Central Business District, paying special attention to small, local, and minority and women-owned businesses; and

(4) Consult with subject matter experts to guide and inform the commission's recommendations.

(Ord. No. 2020-095, § 4, 7-28-20; Ord. No. 2025-024, § 1, 2-25-25)

Sec. 28-49. Organization.

(a) *Meetings.* The chairperson shall establish a regular time and place of meetings. For purposes of commission action, a quorum of the Central Business District Improvement Commission shall consist of a simple majority of those currently appointed.

(b) *Records.* The commission shall keep a written record of its proceedings and file the record with the clerk of council after the completion of any meeting.

(c) *Organized.* The commission shall be supported by city staff from the business and neighborhood services division of the department of planning and preservation.

(d) *Rules.* The commission shall make and alter rules governing its organization and procedures that are not inconsistent with any city ordinance or Roberts Rules of Order.

(Ord. No. 2020-095, § 5, 7-28-20; Ord. No. 2025-024, § 1, 2-25-25)

Secs. 23-50—23-65. Reserved.

ARTICLE V. RESERVED*

Secs. 23-66—23-85. Reserved.

***Editor's note—**Ord. No. 1997-38, § 1, adopted Jan. 28, 1997, repealed former Art. V, §§ 23-66—23-69, in its entirety which pertained to the central business district revitalization commission and derived from Ord. No. 1976-15, §§ 2—4, 3-9-76; Ord. No. 1991-77, § 1, 7-16-91; Ord. No. 1991-140, § 1, 11-21-91. Ord. No. 1997-39, § 1, adopted Jan. 28, 1997, established a central business revitalization commission. See section 2-301 et seq.

ARTICLE VI. RESERVED*

Secs. 23-86—23-88. Reserved.

*__Editor's note—__Ord. No. 1999-63, § 1, adopted May 11, 1999, repealed former Art. VI, §§ 23-86—23-88, in its entirety which pertained to the Planning and Zoning Commission and derived from the Code of 1975 and Ord. No. 1990-8, § 1, 1-23-90.

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Chapter 24

RESERVED*

*__Editor's note—__Ord. No. 2022-162, §§ 9—11, adopted Nov. 8, 2022, repealed Ch. 24, Arts. I—III, §§ 24-1—24-3, 24-16, 24-31—24-34, which pertained to plumbing and derived from Code 1975, § 42-1—42-5, 42-53; Ord. No. 1972-14, § 2, 11-14-72; Ord. No. 1980-74, § 1, 6-24-80; Ord. No. 1984-56, § 2, 6-12-84; Ord. No. 1986-97, §§ 10, 9, 9-9-86; Ord. No. 1989-61, §§ 14, 8, 7-18-89; Ord. No. 1990-170, § 3, 12-18-90; Ord. No. 1991-93, §§ 16, 17, 9-10-91; Ord. No. 1994-420, § 7, 12-6-94; Ord. No. 1999-186, § 7, 12-21-99; Ord. No. 2001-54, § 33, 5-29-01; Ord. No. 2017-131, § 7, 10-10-17.

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Chapter 25

POLICE*

Article I. In General

Secs. 25-1—25-15. Reserved.

Article II. Department

Sec. 25-16. Establishment.
Sec. 25-17. Duties and responsibilities.
Sec. 25-18. Administration.
Sec. 25-19. Appointment of personnel.
Sec. 25-20. Special or auxiliary police officers.
Secs. 25-21—25-35. Reserved.

Article III. First Amendment Demonstrations

Division 1. Generally

Sec. 25-36. Definitions.
Sec. 25-37. Hours for conducting First Amendment demonstration restricted.
Sec. 25-38. Safety restrictions and prohibitions.

Division 2. First Amendment Demonstration Permit

Sec. 25-39. Permit required; exceptions.
Sec. 25-40. Special events permits.
Sec. 25-41 Application; filing.
Sec. 25-42. Form and contents of application; late applications.
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Sec. 25-48. Notification of city officials upon issuance.
Sec. 25-49. Revocation.
Sec. 25-50. Possession by permittee.
Sec. 25-51. Compliance with conditions.

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*__Cross references—__General penalty for code violations, § 1-16; administration, Ch. 2; motor vehicles and traffic, Ch. 19.

Division 3. Regulations and Penalties

Sec. 25-52. First Amendment demonstration regulations.
Sec. 25-53. Authority of chief of police.
Sec. 25-54. Counter-protesting; competing groups at same location.
Sec. 25-55. Penalties.

ARTICLE I. IN GENERAL

Secs. 25-1—25-15. Reserved.

ARTICLE II. DEPARTMENT*

Sec. 25-16. Establishment.

There is hereby established a department to be known as the police department.
(Code 1975, § 43-1; Ord. No. 1978-12, § 1, 1-24-78)

Sec. 25-17. Duties and responsibilities.

The police department shall have the responsibility of providing the city with a professional public service police agency that will facilitate the reduction of crime, the detection and apprehension of criminals and the promotion of public cooperation in the accomplishment of this goal.
(Code 1975, § 43-2; Ord. No. 1978-12, § 1, 1-24-78)

Sec. 25-18. Administration.

The management, direction, and control of the department shall be under the supervision of the chief of police, who shall be appointed by the mayor, with the approval of city council.
(Code 1975, § 43-3; Ord. No. 1978-12, § 1, 1-24-78)

Sec. 25-19. Appointment of personnel.

The chief of police shall have the power to hire, with the approval of the mayor, such personnel in such positions as are provided for in the budget of the department as approved by city council.
(Code 1975, § 43-4; Ord. No. 1978-12, § 1, 1-24-78)

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*__Cross references—__Authority of police chief to make special traffic regulations, § 19-3; impersonating city officers generally, § 21-194.

Sec. 25-20. Special or auxiliary police officers.

Special or auxiliary policemen may be appointed by the chief of police, subject to the approval of the mayor. Such policemen shall be subject to the orders of the chief of police and the rules and regulations of the police department and shall possess all powers of a policeman. Persons so appointed may be suspended or dismissed by the chief of police, subject to the approval of the mayor.
(Code 1975, § 43-5; Ord. No. 1978-12, § 1, 1-24-78)

Secs. 25-21—25-35. Reserved.

ARTICLE III. FIRST AMENDMENT DEMONSTRATIONS

DIVISION 1. GENERALLY

Sec. 25-36. Definitions.

The following words and phrases, when used in this article, shall have the following meanings:

Chief of police shall mean the chief of police or the chief's designee.

First Amendment demonstration means any demonstration, assembly, picketing, speechmaking, marching, protesting, vigil or religious service, and all other like forms of conduct, in or upon any street, including the sidewalk area thereof, park or other public place in the city, that involve the communication or expression of views or grievances, engaged in by one or more persons, the conduct of which is reasonably likely to draw a crowd or onlookers.

First Amendment demonstration permit is a permit as required by this article.

Spontaneous gathering is a First Amendment demonstration that is occasioned by breaking news or affairs coming into public knowledge less than forty-eight (48) hours prior to the event and is conducted at a public forum.
(Ord. No. 2021-105, § 1, 7-29-21)

Sec. 25-37. Hours for conducting First Amendment demonstration restricted.

No permit shall be granted for a demonstration to convene before 8:00 a.m. or terminate after 8:00 p.m.
(Ord. No. 2021-105, § 1, 7-29-21)

Sec. 25-38. Safety restrictions and prohibitions.

(a) *Threats to safety.*

(1) It shall be unlawful for any person to point or present a firearm (as defined in S.C. Code § 16-25-10(7)), or to brandish a weapon (as defined in City Code § 21-219), while participating in or attending a First Amendment demonstration as defined in this article.

(2) For purposes of this section, brandish shall mean to wave or flourish menacingly, to display ostentatiously, threateningly, angrily or aggressively.

(3) For purposes of this section, to present a firearm shall mean to offer to view in a threatening manner, or to show in a threatening manner.

(b) *Open carry prohibited.* It shall be unlawful for any person(s) participating in a First Amendment demonstration for which a permit has been issued to openly carry a firearm. The person or entity organizing the First Amendment demonstration must post signs as approved and directed by the police department to indicate the specific area where the open carry of firearms are prohibited.
(Ord. No. 2021-105, § 1, 7-29-21)

DIVISION 2. FIRST AMENDMENT DEMONSTRATION PERMIT

Sec. 25-39. Permit required; exceptions.

(a) No person shall engage in, participate in, aid, form or start any First Amendment demonstration, consisting of twenty-five (25) or more persons, unless a First Amendment demonstration permit shall have been obtained from the chief of police.

Any person engaging in any First Amendment demonstration for which a First Amendment demonstration permit has been issued shall not violate any of the conditions or provisions of such permit.

(b) This section shall not apply to:

A First Amendment demonstration consisting of less than twenty-five (25) persons or a spontaneous gathering. Organizers of a First Amendment demonstration consisting of less than twenty-five (25) persons or a spontaneous gathering are encouraged to give as much advanced notice as reasonably possible to permit the city to provide services necessary to promote, protect, and assure the safety and convenience of citizens in their use of city streets, sidewalks, parks, and of city property. Nothing in this subsection shall preclude the city from enforcing other laws, ordinances, rules, regulations, conditions or provisions, adopted to provide for the health, safety, and welfare of the city and its citizens.
(Ord. No. 2021-105, § 1, 7-29-21)

Sec. 25-40. Special events permits.

The city reserves the right to require a person seeking a First Amendment demonstration permit to obtain a special events permit issued pursuant to section 2-189 when the duration of the demonstration is proposed to be more than three (3) hours, when a request is made to reserve a particular public area for use, when frequent requests are made for a particular public area, when the demonstration will require any use of city resources, staffing or departments beyond the scope of the police department, and when the city finds that requiring such special events permit is in the best interest of the public health, safety, and welfare of the city and its citizens. First Amendment demonstrations for which a special events permit has been issued pursuant to section 2-189 shall comply with all regulations, conditions and requirements provided in this article.
(Ord. No. 2021-105, § 1, 7-29-21)

Sec. 25-41 Application; filing.

(a) A person seeking issuance of a First Amendment demonstration permit shall file an application with the chief of police on forms provided by such officer.

(b) An application for a First Amendment demonstration permit shall be filed with the chief of police not less than three (3) days nor more than thirty (30) days before the date on which it is proposed to conduct the demonstration.

(c) Submission of a First Amendment demonstration permit application does not guarantee or reserve a particular time or location for the applicant's group and permit approval shall be subject to any special or alternate conditions provided in the permit.
(Ord. No. 2021-105, § 1, 7-29-21)

Sec. 25-42. Form and contents of application; late applications.

(a) The application for a First Amendment demonstration permit shall set forth the following information:

(1) The name, address and telephone number of the person seeking to conduct such demonstration.

(2) If the demonstration is proposed to be conducted for, on behalf of, or by an organization, the name, address and telephone number of the headquarters of the organization and of the authorizing and responsible head of such organization.

(3) The name, address and telephone number of the person who will be the demonstration chairman and who will be responsible for its conduct.

(4) The date when the demonstration is to be conducted.

(5) The location of the demonstration or route to be traveled, including starting point and termination point.

(6) The approximate number of persons who will constitute such demonstration.

(7) The hours when such demonstration will start and terminate.

(8) A statement as to whether the demonstration will occupy all or only a portion of the width of the sidewalk proposed to be traversed.

(9) The time at which persons will begin to assemble at any such area or areas.

(10) If the demonstration is designed to be held by and on behalf of, or for any person other than the applicant, the applicant for such permit shall file with the chief of police a communication in writing from the person proposing to hold the demonstration, authorizing the applicant to apply for the permit on his behalf.

(11) Any additional information which the chief of police shall find reasonably necessary to a fair determination as to whether a permit should issue.

(b) The chief of police, where good cause is shown therefor, shall have the authority to consider any application hereunder which is filed less than three (3) days before the date such demonstration is proposed to be conducted.
(Ord. No. 2021-105, § 1, 7-29-21)

Sec. 25-43. Time for processing applications; notice of rejection.

The chief of police shall act upon the application for a First Amendment demonstration permit within one (1) week after the filing thereof, or, if the application was filed less than seven (7) days before the proposed demonstration, then within two (2) days after the filing thereof. If the chief of police disapproves the application, he shall provide written notice to the applicant within two (2) days after the date of his determination, or within a reasonably practical time period, a notice of denial, stating the reasons for his denial of the permit.
(Ord. No. 2021-105, § 1, 7-29-21)

Sec. 25-44. Standards for issuance.

The chief of police shall issue a permit as provided for hereunder when, from a consideration of the application and from such other information as may otherwise be obtained, he finds that:

(1) The conduct of the demonstration will not substantially interrupt the safe and orderly movement of other traffic, pedestrian and vehicular, contiguous to its route.

(2) The conduct of the demonstration will not require the diversion of so great a number of police officers of the city properly to police the line of movement and the areas contiguous thereto as to prevent normal police protection to the city.

(3) The concentration of persons at assembly points of the demonstration will not unduly interfere with proper fire and police protection of areas contiguous to such assembly areas.

(4) The conduct of such demonstration will not interfere with the movement of firefighting equipment enroute to a fire.

(5) The conduct of the demonstration is not reasonably likely to cause injury to persons or property, or to provoke disorderly conduct.

(6) The demonstration is scheduled to move from its point of origin to its point of termination expeditiously, without unreasonable delays enroute and without passing by any location more than once.

(7) If the demonstration is to be solely on the sidewalk areas of the city, the demonstration shall be in single file only of persons participating, with no animals, vehicles or other nonhuman objects except reasonably sized signs individually carried in the line of procession.

(Ord. No. 2021-105, § 1, 7-29-21)

Sec. 25-45. Appeal.

Any person aggrieved shall have the right to appeal the denial of a First Amendment demonstration permit to the public safety committee of council. This includes the right to appeal the denial of a special events permit issued for demonstrations pursuant to the special events ordinance in the city code. The appeal shall be taken within forty-eight (48) hours after notice of the denial of the permit by filing an appeal with the clerk of council. The public safety committee of council shall act upon the appeal at its next regularly scheduled meeting, but not later than twenty (20) days from the time of receipt of the appeal.
(Ord. No. 2021-105, § 1, 7-29-21)

Sec. 25-46. Contents.

Each First Amendment demonstration permit approval shall state the following information:

(1) Approval with conditions or alternate conditions, if applicable.

(2) If alternate conditions apply, include alternate date, starting time, location, and/or route.

(3) General conditions.

(4) Special conditions, if applicable.

(5) Penalties.

(6) Signature of special events committee representative, if applicable.

(7) Signatures of special events commander and chief of police.

(8) Signature of applicant accepting alternate conditions and all other permit directions and conditions.

(9) Such other information as the chief of police shall find necessary for the enforcement of this division.

(Ord. No. 2021-105, § 1, 7-29-21)

Sec. 25-47. Alternates.

The chief of police, in denying an application for a First Amendment demonstration permit, shall be empowered to authorize the conduct of the demonstration on an alternate day, at an alternate time, or over a route different from that named by the applicant. An applicant desiring to accept an alternate permit shall within two (2) days after notice from the chief of police or at least twenty-four (24) hours prior to the time of the event, whichever is earlier, file a written notice of acceptance with the chief of police. An alternate demonstration permit shall conform to the requirements of and shall have the effect of a First Amendment demonstration permit under this article.

(Ord. No. 2021-105, § 1, 7-29-21)

Sec. 25-48. Notification of city officials upon issuance.

Immediately upon the issuance of a First Amendment demonstration permit the chief of police shall send a copy thereof to the following:

(1) The mayor.

(2) The fire chief.

(3) The chairman of the special events committee.

(4) The director of the parks department.

(Ord. No. 2021-105, § 1, 7-29-21)

Sec. 25-49. Revocation.

The chief of police shall have the authority to revoke a First Amendment demonstration permit issued hereunder upon the violation of the standards for issuance as set forth in this article.
(Ord. No. 2021-105, § 1, 7-29-21)

Sec. 25-50. Possession by permittee.

The permittee shall remain on site and carry the First Amendment demonstration permit upon his person during the conduct of the demonstration.
(Ord. No. 2021-105, § 1, 7-29-21)

Sec. 25-51. Compliance with conditions.

A permittee hereunder shall comply with all permit directions and conditions and with all applicable laws and ordinances.
(Ord. No. 2021-105, § 1, 7-29-21)

DIVISION 3. REGULATIONS AND PENALTIES

Sec. 25-52. First amendment demonstration regulations.

(a) Notwithstanding the twenty-five (25) person threshold for First Amendment demonstration permits required in Division 2 of this article, the following regulations shall apply to First Amendment demonstrations and spontaneous gatherings of any size:

(1) It shall be unlawful for demonstrations to disrupt, block, obstruct or interfere with pedestrian or vehicular traffic

or the free passage of pedestrian or vehicular traffic on or into any driveway, sidewalk, public right-of-way, building, pedestrian entrance, stairway, ramp, or other access to buildings, which abut the public sidewalks.

(2) It shall be unlawful for a demonstration to occur within fifteen (15) feet from the outermost edge of any monument or memorial, to include fountains, sculptures, plaques, statues, markers, gazebos, objects and other architectural elements or structures with commemorative, historical, symbolic, aesthetic, or artistic significance in order to preserve the intended use of a monument or memorial and to ensure all persons' use and enjoyment and safe and unimpeded ingress and egress to and from such property.

(3) It shall be unlawful for a demonstration to remain stationary in front of or to pass repeatedly by an individual's residence or dwelling.

(4) It shall be unlawful during a demonstration to place any structure, enclosure, tent, tables, chairs, bicycles, motor vehicles, golf carts, mopeds or other equipment on any city property, or park any bicycles, motor vehicles, golf carts, mopeds or other equipment, except in designated parking spots and except as specifically authorized by the permit.

(5) It shall be unlawful during a demonstration to remove, deface, damage, or otherwise injure any structure, sign, fence, equipment, improvement, monument or memorial, to include fountains, sculptures, plaques, statues, markers, gazebos, objects and other architectural elements or structures, including hanging, attaching or placing signs, flags, placards or any other object of any kind on such city property.

(6) It shall be unlawful during a demonstration to walk, stand, sit, lie, or climb upon any wall, fence, shelter, tree, shrub, or other vegetation, or any structure, monument or memorial, to include fountains, sculptures, plaques, statues, markers, gazebos, objects and other architectural elements not designed or intended for such purposes.

(7) It shall be unlawful during a demonstration to damage landscaping, plantings, flowers, trees, shrubs, grass, ground cover or other vegetation located on city property.

(8) It shall be unlawful during a demonstration to enter onto private property without prior written permission from the property owner.

(9) It shall be unlawful during a demonstration to enter onto federal, state, or county property without prior written permission from the applicable governmental agency.

(10) It shall be unlawful for any participant of a demonstration to harass or intimidate any bystanders; it shall also be unlawful for any participant to interfere with the movement of nonparticipants, including ingress or egress to or from any city building, driveway, stairway, ramp, sidewalk, public right-of-way, monument or memorial, to include fountains, sculptures, plaques, statues, markers, gazebos, objects and other architectural elements or structures.

(11) Participants of a demonstration shall comply with lawful directions or instructions set forth on any sign posted pursuant to law or by the city for or in connection with the event.

(12) Participants of a demonstration shall abide by city park rules if the demonstration is held in a city park and shall not interfere with the intended use of the park or interrupt the reasonable use and enjoyment of the park by non-participants.

(13) Participants of a demonstration shall abide by and be subject to all local, state and federal laws, ordinances, and regulations and any directions given by a law enforcement officer.

(b) Nothing in this section prohibits a law enforcement officer from issuing a command to disperse in the event of a riot, breach of the peace, disorderly conduct or other unlawful assembly.

(c) Nothing in this subsection shall preclude the city from enforcing other laws, ordinances, or regulations.

(d) Nothing in this section is intended to restrict free speech or any other constitutional right.
(Ord. No. 2021-105, § 1, 7-29-21)

Sec. 25-53. Authority of chief of police.

(a) The chief of police shall have the authority to restrict First Amendment demonstrations from certain areas if conditions present a potential harm or threat to the public's safety, the free passage of pedestrian or vehicular traffic, or the unimpeded ingress and egress to and from city buildings, monuments or memorials, to include fountains, sculptures, plaques, statues, markers, gazebos, objects and other architectural elements or structures, and any such restricted areas shall be subject to modification by the chief of police at any time.

(b) The chief of police shall have the authority to make reasonable adjustments in the date, time, frequency, duration, route, location, or manner of a First Amendment demonstration at any time in order to accommodate other concurrent demonstrations, special events or city events, the rights of adjacent property owners, the needs of the public to use city streets or parks, and pedestrian and/or vehicular traffic using public rights-of-way and sidewalks, to prevent interference with the intended use of city parks or facilities by other groups or individuals, or with the tranquility of the neighborhood surrounding the area, or when the chief of police finds it is in the best interest of the public health, safety and welfare of the city and its citizens. The chief of police in his discretion may deny, reschedule, or provide alternate conditions for a permit to achieve this end.
(Ord. No. 2021-105, § 1, 7-29-21)

Sec. 25-54. Counter-protesting; competing groups at same location.

(a) Counter-protestors are subject to the same permit requirements in Division 2 and all other regulations and requirements provided in this article.

(b) If more than one group desire to hold a First Amendment demonstration at the same time at or near the same location, the chief of police shall have the authority to assign each group a designated area in order to preserve the public peace, and said assignment may involve the use of physical barriers for separation. Members of a group shall not enter an area assigned to another group. Priority of location shall be based upon which group submitted a permit application first, or, if no permit was required, priority shall be based upon which group arrived first at the location; provided, however, if one group's demonstration is a repeat event occurring more than one rime per month, the chief of police shall have the authority to alternate the group's assigned area with any other group requesting the same location.
(Ord. No. 2021-105, § 1, 7-29-21)

Sec. 25-55. Penalties.

Any person who violates any provision of this article, to include any conditions or provisions of a First Amendment demonstration permit, shall be subject to the penalties set forth in section 1-16 of the Code of the City of Charleston.
(Ord. No. 2021-105, § 1, 7-29-21)

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Chapter 26

RAILROADS*

Sec. 26-1. Rails not to obstruct streets.

A railroad company's rails shall be laid so as to furnish no greater obstruction to the free use and enjoyment of the streets than is necessary.
(Code 1975, § 44-4)

Sec. 26-2. Building and repairing bridges, turnouts, drains, etc.; paving and filling streets.

Each railroad company or corporation shall build and keep in repair all bridges, turnouts, drains and other work of like nature which the track or tracks cross, paving or filling the tracks between the rails so as to conform to the remainder of the street, and at their own cost and expense, shall, as the street may be paved or filled, pave or fill and keep in good repair comformably to such street, three (3) feet on each side of the track or tracks as may be and at such times as required by the city council.
(Code 1975, § 44-7)

Sec. 26-3. Application of sections 26-1 and 26-2.

The requirements and regulations of sections 26-1 and 26-2 shall apply not only to roads hereafter to be built, but to all existing roads and to the extensions and repairs of same.
(Code 1975, § 44-8)

Sec. 26-4. Interference with fire department.

No privilege or authority granted in this chapter shall be so construed as to interfere with the operations of the fire department of the city, but, in all cases of fire, the use of the streets where railroad tracks are laid shall be subservient to the necessities of the fire department.
(Code 1975, § 44-12)

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*Cross references—Motor vehicles and traffic, Ch. 19; streets and sidewalks, Ch. 28; vehicles for hire, Ch. 31.

Sec. 26-5. Receiving and discharging freight in streets; obstruction of streets for receipt and discharge.

It shall be unlawful for any railroad or street railroad to use the streets of the city as a place for receiving and discharging freight, or to obstruct the streets of the city with freight cars for receiving and discharging freight so as to interfere with the free passage of vehicles and pedestrians in the streets of the city. This section shall not apply to the loading or unloading of freight on industrial spur tracks throughout the city.
(Code 1975, § 44-14)

Sec. 26-6. Obstructing streets.

It shall be unlawful for any railroad company to obstruct with engines or cars on its tracks the free passage of persons or vehicles through any street intersecting its line within the city limits for a longer period than five (5) minutes.
(Code 1975, § 44-15)

Sec. 26-7. Speed limit.

It shall be unlawful for any railroad train to run at a speed exceeding four (4) miles an hour within the limits of the city, south of a line drawn from Cooper River through Sheppard Street to the Ashley River, except in territory not intersected by streets.
(Code 1975, § 44-16)

Cross reference—Speed restrictions for vehicles generally, § 19-206 et seq.

Sec. 26-8. Flagman or automatic flagman required at crossings.

It shall be the duty of every railroad company, the tracks of which run within the city limits, to station at the crossings of every lane, street or alley across which its tracks may run, except those exempted by section 26-10, and maintain without expense to the city at such crossings, a man with a red flag during the daytime and a man with a red light during the nighttime, whose duty it shall be to display such flag or light whenever a train may be approaching such streets, lanes or alleys. In daylight hours the flagman may use for signal purposes a white disc fifteen (15) inches in diameter with the word "Stop" in black letters four (4) inches high; provided, however, that this section shall not apply

to railroad companies which have and maintain in good condition at such crossings aforesaid, twenty-four (24) hours of each and every day, the device known as an "automatic flagman."
(Code 1975, § 44-17)

Sec. 26-8.1. Signals south of Chapel Street and east of East Bay Street.

It shall be unlawful within that area of the city south of Chapel Street and east of East Bay Street for any railroad train to sound its whistle at street crossings, so long as the railroad train is equipped with a working bell as defined in Section 58-15-910 of the 1976 South Carolina Code of Laws as amended, and a flagman is present. Nothing herein contained shall prevent a railroad train from sounding its whistle at or before crossings in the event of an emergency.
(Ord. No. 1988-52, § 2, 6-7-88)

Sec. 26-9. Duty of flagman.

It shall be the duty of the flagman provided for in section 26-8 to warn persons and traffic when a locomotive or train may be crossing or approaching such street, lane or alley. No person shall attempt to cross any railroad crossing after being warned by the flagman.
(Code 1975, § 44-18)

Sec. 26-10. Alternative safety devices.

(a) Notwithstanding the provisions of section 26-8, railroad companies may, in the alternative, provide the following safety devices at such crossings where the daily traffic count is less than three thousand (3,000) vehicles per day, as solely determined by the city or the state highway department: A set of flashing red warning signals installed on each side of the track in opposite lanes of traffic, with each such light giving illumination in both directions, i.e., to the back towards the tracks, and to the front in the direction of on-coming traffic; each light to be of at least eight (8) inches in diameter.

(b) Notwithstanding paragraph (a) of this section, where automatic flagman devices were in operation on August 16, 1966, at crossings within the city limits, they shall be maintained and

continued irrespective of the traffic count on such date or at any time in the future.
(Code 1975, § 44-19)

Sec. 26-11. Procedure when vehicle count exceeds minimum.

When any crossing shall reach a daily traffic count of more than three thousand (3,000) vehicles, the city shall give written notice thereof to the railroad company operating trains over such crossing, and such railroad company shall, within a period of six (6) months after such notice, comply with section 26-8 by the construction and operation of automatic flagman devices or the stationing of a man at such crossing in accordance with such section.
(Code 1975, § 44-20)

Sec. 26-12. City not liable for defective warning signals.

In the event of any damage to any property, or injury to, or the death of any person attributable, wholly or partly, to any defect in, or insufficiency of, any signal device maintained by any railroad company at the intersection of any railroad track with any street, lane or alley within the limits of the city, such railroad company shall indemnify and save harmless the city council from and against all liability for such damage, injury or death.
(Code 1975, § 44-21)

Sec. 26-13. Street light required at crossing.

It shall be the duty of the railroad company to provide and maintain at each crossing a street light of at least four thousand (4,000) lumens.
(Code 1975, § 44-22)

Sec. 26-14. Boarding or alighting from moving cars; enforcement by special policemen.

It shall be unlawful for any person to get on or off the cars or locomotives of any railroad company while such cars or locomotives are in motion, within the corporate limits of the city. This section shall not be construed to apply to any person employed by a railroad company in moving or conducting such cars or locomotives. Any railroad company may, upon application to the mayor and chief of police, have proper persons appointed special police-

men for the enforcement of the provisions of this section, but such special policemen shall receive no pay whatever from the city. The person so appointed may be removed at any time by the mayor and the chief of police. It is hereby made the duty of the police and detectives to enforce the provisions of this section.
(Code 1975, § 44-23)

Sec. 26-15. Time limit for constructing tracks to warehouse; procedure upon expiration of time.

In all cases where permission has been given by the city council to any person or hereafter where such permission may be given, to lay railroad tracks connecting with any warehouses or other property, if such person shall fail to use such tracks for a period of six (6) consecutive months, the city council may, by resolution, revoke the franchise theretofore given, and shall notify such person that the grant or franchise for laying and use of such track has been forfeited, and shall order that such track shall be forthwith removed, and the street repaved and put in like condition with the balance of the street at the expense of the owners of such track. In case the owner shall neglect or fail to remove such tracks and repave the streets, within thirty (30) days after such notice, the city council may have the track taken up, the materials sold at public auction after two (2) weeks' advertisement, to the highest bidder, and after deducting the expenses of taking up the tracks, selling the same and repaving the street, the balance, if any, shall be paid to the owners of such track. If the proceeds of such sale shall be insufficient to pay the expenses aforesaid, the city council shall have the right to bring suit for the recovery of such balance in any court of competent jurisdiction.
(Code 1975, § 44-24)

Sec. 26-16. Reservation of right to amend chapter; grant of privilege to construct track through street not exclusive.

The city council reserves the right to amend or alter the sections of this chapter whenever circumstances may require it. The granting of the privilege to any company to construct a track through any street, is not exclusive. The city council may grant the same right to other companies, through the same streets or

thoroughfares, if it is deemed advisable by the council. The provisions contained in this section shall be binding on any company already in existence in the same manner as companies hereafter created.
(Code 1975, § 44-13)

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Chapter 27

STORMWATER MANAGEMENT AND FLOOD CONTROL*

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*__Editor's note—__Ord. No. 2007-158, § 2, adopted Aug. 21, 2007, repealed former Ch. 27, Arts. I—III, and enacted new provisions as herein set out. Former Ch. 27 pertained to similar subject matter and derived from Code of 1975; Ord. No. 1992-29, § 1, 3-10-1992; Ord. No. 2001-41, § 1, 4-24-2001; Ord. No. 2001-92, § 1, 9-18-2001; Ord. No. 2004-93, § 2, 9-14-2004; and Ord. No. 2006-108, § 1, 4-11-2006.

__Cross references—__Department of public service, § 2-231 et seq.; department of special facilities, § 2-340 et seq.; buildings and building regulations, Ch. 7; fire prevention and protection, Ch. 13; parks and recreation, Ch. 22; planning, Ch. 23; streets and sidewalks, Ch. 28; sewers and sewage disposal, § 30-106; water regulations, § 30-191 et seq.

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Sec. 27-29. Stormwater management standards and exemptions for redevelopment.
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ARTICLE I. STORMWATER MANAGEMENT ORDINANCE

DIVISION 1. GENERAL PROVISIONS

Sec. 27-1. Title.

This article shall be known as the "Stormwater Management Ordinance" of the City of Charleston, South Carolina.
(Ord. No. 2007-158, § 2, 8-21-07)

Sec. 27-2. Definitions.

The following words and terms when used in this article shall have the meaning respectively ascribed to them in this section.

Applicant is a person, firm, governmental agency, partnership, limited liability company, or any other entity who seeks to obtain approval under the requirements of this article and who, in addition to the property owner or operator, will be responsible for the land disturbing activity(ies) and related maintenance thereof.

As-built drawings are revised construction drawings containing an attestation clause signed by an engineer or surveyor that show the installed location of the new facilities on a project, including the stormwater system. This term and "record drawings" shall be synonymous.

Best management practices (BMPS) are any structural or non-structural measure or facility used for the control of stormwater runoff, be it for quantity or quality control. BMPs also include schedules of activities, prohibitions of practices, maintenance procedures, treatment requirements, operating procedures, and other management practices to control site runoff, spillage or leaks, sludge or waste disposal, drainage from raw material storage, or measures that otherwise prevent or reduce the pollutant loading of receiving waters.

City shall mean the City of Charleston.

Construction or *construction activity* is activity involving clearing, grading, transporting, filling, or any other activity

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which causes land to be exposed to the danger of erosion, or which might create an alteration to an existing drainage way or other component of the city's stormwater management system or facility.

Development means any of the following actions undertaken by a person, a firm, a governmental agency, a partnership, a limited liability company, or any other individual or entity, without limitation:

(a) Any division or subdivision of a lot, tract, parcel, or other divisions by plat or deed;

(b) The construction, installation, or alteration of land, a structure, impervious surface or drainage facility;

(c) Clearing, scraping, grubbing or otherwise significantly disturbing the soil, vegetation, mud, sand, or rock of a site; or

(d) Adding, removing, exposing, excavating, leveling, grading, digging, burrowing, dumping, piling, dredging, or otherwise disturbing the soil, vegetation, mud, sand, or rock of a site.

Erosion means the general process by which soils or rock fragments are detached and moved by the action of wind, water, ice, and gravity.

Easement is an authorization by a property owner to the general public, a corporation, or a certain person or persons for the use of any designated part of his property for a specific purpose.

Flood / flooding is a temporary rise in the level of water which results in the inundation of areas not ordinarily covered by water.

Hazardous material is any item or agent (biological, chemical, radiological, or physical) which has the potential to cause harm to humans, other living organisms, or the environment, either by itself or through interaction with other factors.

Illicit connection means a connection to a City of Charleston stormwater management system or facility which results in a

discharge that is not composed entirely of stormwater runoff except discharges pursuant to an NPDES permit (other than the NPDES MS4 permit for the City of Charleston).

Improper disposal means any disposal other than through an illicit connection that results in an illicit discharge, including, but not limited to the disposal of used oil and toxic materials resulting from the improper management of such substances.

Illicit discharge or *illegal discharge* means any activity which results in a discharge to a City of Charleston stormwater management system or facility or receiving waters that is not composed entirely of stormwater except (a) discharge pursuant to an NPDES permit (other than the NPDES for the City of Charleston) and (b) discharges resulting from fire-fighting activities.

Construction activity application means the set of drawings, specifications, design calculations, stormwater pollution prevention plan ("SWPPP"), and other documents necessary to demonstrate compliance with this article.

Low impact development (LID) is a set of principles and design components used to manage stormwater runoff by mimicking natural conditions and limiting pollutant transport through source control.

Maintenance means any action necessary to preserve stormwater system components, including conveyances, facilities, and BMPs in proper working condition, in order to serve the intended purposes set forth in this article and to prevent structural failure of such components.

Maximum extent practicable (MEP): is a technology-based control standard used in the municipal stormwater program against which SCDHEC Bureau of Water and permittees assess whether or not an adequate level of control has been proposed in the Stormwater Management Program (SWMP). MEP is applied to all permits issued to municipal separate storm sewer systems, including the city's, to achieve greater cooperation and consistency, to reduce conflicts and confusion, and to improve economies of scale in the effort to manage stormwater impacts.

MS4 means a municipal separate storm sewer system and includes all conveyances or system of conveyances (including roads with drainage systems, highways, rights-of-way, municipal streets, catch basins, curbs, gutters, ditches, man-made channels, storm drains, detention ponds, and other stormwater facilities) which receives, transports, stores, or treats stormwater runoff and which is (a) owned or operated by the City of Charleston; (b) designed or used for collecting or conveying stormwater; (c) not a combined sewer system; and (d) not a part of a publicly owned treatment works (POTW).

NPDES means National Pollutant Discharge Elimination System.

NPDES permit means the NPDES permit for stormwater discharges issued by SCDHEC pursuant to the Clean Water Act and the federal stormwater discharge regulations (40 CFR 122.26) that allows for restricting pollutant loads as necessary to meet water quality standards.

Operator means the person who is operating the property, the operator's agent, or any other person who acts in the operator's behalf.

Outfall or *discharge point* means the point where a City of Charleston stormwater management system or facility or other municipal and private system discharges to receiving waters.

Owner means the legal property owner, the owner's agent, or any other person who acts in the owner's behalf.

Person means any and all persons, natural or artificial and includes any individual, association, firm, corporation, limited liability company, business trust, estate, trust, partnership, two (2) or more persons having a joint or common interest, or an agent or employee thereof, or any other legal entity.

Pollutant means anything which may cause or contribute to exceedances of water quality standards, including but not limited to sediment, bacteria, nutrients, dredged spoil, solid waste, incinerator residue, filter backwash, sewage, garbage, sewage sludge, munitions, chemical wastes, biological materials,

radioactive materials, heat, wrecked or discarded equipment, rock, sand, soil, and industrial, municipal, and agricultural waste discharged into receiving waters.

Pollutant load is a numeric value representing an estimate of the mass of a given pollutant entering a stormwater system or receiving water.

Receiving waters refers to any lakes, bays, sounds, ponds, impounding reservoirs, springs, wells, rivers, streams, creeks, estuaries, marshes, inlets, canals, the Atlantic Ocean within the territorial limits of the State of South Carolina, and all other bodies of surface or underground water, natural or artificial, public or private, inland or coastal, fresh or salt.

Redevelopment shall mean development on a previously developed site where the impervious surface on the developed site is equal to or greater than twenty (20) percent of the total site and where any repair, reconstruction, or improvement to an existing site and/or to any structures located on that site such that the cumulative costs of repairs, over a five-year period equals or exceeds fifty (50) percent of the fair market value of the property and the structures located on that property; but excludes ordinary maintenance activities, remodeling of existing building interiors, resurfacing of paved areas, and exterior building changes or improvements which do not materially increase or concentrate stormwater runoff, or cause additional nonpoint source pollution.

Regulation means any regulation, rule, or requirement prepared by and/or adopted by City Council pursuant to this article.

Site means the land or water area where any development is physically located or conducted including adjacent land used in connection with the development.

Spill means any accidental or purposeful discharge of any pollutants, hazardous materials, or other substance which is otherwise potentially detrimental to the designated use of receiving water.

SWMP means the City of Charleston's Stormwater Management Program, which shall describe the components to be used by the City of Charleston to control stormwater discharges, address flooding, and meet water quality standards.

Stormwater means rainwater runoff, snowmelt runoff, surface runoff, and drainage.

Stormwater management means the collection, conveyance, storage, treatment and disposal of stormwater runoff in a manner to meet the objectives of this article and its terms, including, but not limited to, measures that control the increased volume and rate of stormwater runoff and water quality impacts caused by man-made changes to the land.

Stormwater management system(s) and facility(ies) means those natural and man-made channels, swales, ditches, swamps, rivers, streams, creeks, branches, reservoirs, ponds, drainage ways, inlets, catch basins, pipes, head walls, storm sewers, lakes and other physical works, properties, and improvements which transfer, control, convey, or otherwise influence the movement of stormwater runoff, be it for quantity or quality control.

Ten-year frequency storm shall mean a storm that is capable of producing rainfall expected to be equaled or exceeded on the average of once in ten (10) years. It may also be expressed as an exceedance probability with a ten-percent chance of being equaled or exceeded in any given year.

Total maximum daily load (TMDL) is a regulatory value developed to represent the amount of a pollutant that receiving water can incorporate while meeting water quality standards. TMDL is further defined as the legal document developed by EPA and SCDHEC designating the pollutant load a permitted discharge is allowed to discharge into receiving water.

Twenty-five-year frequency storm shall mean a storm that is capable of producing rainfall expected to be equaled or exceeded on the average of once in twenty-five (25) years. It may also be expressed as an exceedance probability with a four-percent chance of being equaled or exceeded in any given year.

Two-year frequency storm shall mean a storm that is capable of producing rainfall expected to be equaled or exceeded on the average of once in two (2) years. It may also be expressed as an exceedance probability with a fifty (50) percent chance of being equaled or exceeded in any given year.

Undeveloped land shall mean property not altered from its natural state by construction or installation of improvements such as roads, drainage improvements, buildings, structures, or other impervious surfaces, or which has less than twenty (20) percent of its property covered by impervious surfaces.

Variance means the modification of the minimum stormwater management requirements contained in this article and the SWMP for specific circumstances where strict adherence to the requirements would result in unnecessary hardship and not fulfill the intent of this article.

Watercourse is any natural or man-made conveyance used to transport runoff from one location to the next.

Watershed is a drainage area or drainage basin contributing to the flow of stormwater into a watercourse or receiving water.

Water quality means those characteristics of stormwater runoff that relate to the physical, chemical, biological, or radiological integrity of water.

Water quantity means those characteristics of stormwater runoff that relate to the rate and volume of the stormwater runoff.

(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2017-110, § 1, 9-13-17)

Sec. 27-3. Findings.

City council hereby makes the following findings of fact:

(a) Uncontrolled stormwater runoff may have significant, adverse impacts on the health, safety, and general welfare of the city and the quality of life of its citizens. The potential impacts of uncontrolled stormwater can lead to the degradation of water quality and general

riverine ecosystem through excessive or illegal pollutant discharges, erosion, and flooding thereby limiting or removing its designated and potential uses;

(b) Redevelopment of parcels exhibiting existing impervious surfaces greater than twenty (20) percent of the total site area is becoming common practice within the city, and is encouraged to provide community benefit and reduce urban sprawl. As such, the city desires to implement practices for these parcels to reduce stormwater runoff, control peak flow and improve water quality' for the betterment of the community and protection of downstream property and natural resources.

(c) The city is required by federal law [33 U.S.C. 1342(p) and 40 CFR 122.26] to obtain a NPDES permit from the South Carolina Department of Health and Environmental Control ("SCDHEC") for stormwater discharges from the city's stormwater system. The NPDES permit requires the city to impose controls to reduce the discharge of pollutants in stormwater to the maximum extent practicable (MEP) using management practices, control techniques and systems, design and engineering methods; and such other provisions which are determined to be appropriate for the control of such pollutants; and

(d) Additionally, certain facilities that discharge stormwater associated with an industrial activity, including construction, development, and re-development activities, are required by the South Carolina Code of Regulations 61-9-122 to obtain NPDES permits for such activities.

(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2017-110, § 1, 9-13-17)

Sec. 27-4. Authority.

This article is adopted pursuant to the authority conferred upon the city by the South Carolina Constitution, Act No. 194 of the Acts and Joint Resolutions of 1971 enacted by the General Assembly of the State of South Carolina, approved April 23, 1971, in 1976 South Carolina Code of Laws Sections 4-9-30, 4-9-40, 5-7-30, and 5-7-60.

(Ord. No. 2007-158, § 2, 8-21-07)

Sec. 27-5. Jurisdiction.

The jurisdiction and scope of this article shall encompass the corporate limits of the city, as they may be adjusted from time to time after the ratification of this article.
(Ord. No. 2007-158, § 2, 8-21-07)

Sec. 27-6. Purpose.

(a) It is the purpose of this article to protect, maintain, and enhance water quality and the environment of the city and the short-term and long-term public health, safety, and general welfare of the citizens of the city. This article is also designed to minimize property damage by establishing requirements and procedures to control the potential adverse effects of increased stormwater runoff and related pollutant loads associated with both future development and existing developed land. Proper management of stormwater runoff will further the purpose of this article to ensure a functional drainage system, reduce the effects of development on land and riparian erosion, attain and maintain water quality standards, enhance the local environment associated with the drainage system, reduce local flooding, maintain to the maximum extent practicable pre-developed runoff characteristics of the area in terms of flow rate, volume, and pollutant concentration, and facilitate economic development while mitigating associated pollutant, flooding, erosion, and drainage impacts.

(b) It is further the purpose of this article to direct the development and implementation of a stormwater management program (SWMP) and to establish legal authority which authorizes or enables the city at a minimum to:

(1) Comply with state and federal requirements related to stormwater management developed pursuant to the Clean Water Act;

(2) Prohibit illicit discharges to the city stormwater management systems and facilities and receiving waters;

(3) Control to the maximum extent practicable the discharge to the City stormwater management systems and facilities and receiving waters of spills, dumping, or disposal of materials other than stormwater;

(4) Address specific categories of non-stormwater discharges and similar other incidental non-stormwater discharges listed in the SWMP;

(5) Require erosion and sediment controls to protect water quality on all applicable new and re-development projects both during and after construction;

(6) Where necessary, require stormwater discharge rate and volume controls during and following construction, development, or re-development activities;

(7) Define and implement procedures for stormwater site plan review and stormwater site inspections of all applicable construction, development, and re-development projects within the city;

(8) Control the discharge from the city stormwater management systems and facilities and receiving waters of pollutants in such quantity that water quality standards are met or to otherwise address post-construction, post-development, post-re-development, and long-term water quality, including the necessary means needed to comply with state and federal regulations regarding stormwater management quantity and quality;

(9) Define procedures for addressing citizen complaints of stormwater-related issues within the city;

(10) Provide for adequate long term operation and maintenance of best management practices (BMPs);

(11) Prior to any approval of construction, development, or re-development activities within the city, require a letter from DHEC's Office of Ocean and Coastal Resource Management that states the proposed project is consistent with the Coastal Zone Management Act;

(12) Carry out inspection, surveillance, and monitoring procedures necessary to determine compliance and noncompliance with approved construction activity application conditions including the prohibition on illicit discharges to the city stormwater management systems and facilities and receiving waters;

(13) Encourage the use of non-traditional strategies to control stormwater discharges;

(14) Encourage the creation of riparian buffers and preservation of natural spaces to provide areas that could be used for flood storage, stormwater treatment and control, and recreation. Such areas may be required in special protection areas needed to protect, maintain, or enhance water quality and protect property from flooding problems;

(15) Develop, implement, and enforce action plans to address pollutant load reductions required in impaired waterbodies and to work towards compliance with total maximum daily loads (TMDLs) established by the EPA or the SCDHEC and to work towards meeting water quality standards; and

(16) Provide for the enforcement of the Stormwater Management Article.

(c) Further, it is the purpose of this article to establish review authority for the city's department of stormwater management and the city's public works and utilities committee for establishing consistency of construction, development, and re-development projects with the city's SWMP.
(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2018-150, § 1, 11-27-18)

Sec. 27-7. Construction and scope.

The application of this article and the provisions and references expressed herein shall be the minimum stormwater management requirements and shall not be deemed a limitation or repeal of any other ordinances of the city or powers granted the city by the State of South Carolina statues, including, without limitation, the power to require additional or more stringent stormwater management requirements. If site characteristics on new development, re-development, and existing developments indicate that complying with these minimum requirements will not provide adequate designs or protection for local property, residents, or the environment, as determined by the director of stormwater management or his designee, the property owner or operator shall be required to provide additional

and appropriate management practices, control techniques, system designs, and engineering methods to attain an adequate level of protection.
(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2018-150, § 1, 11-27-18)

Sec. 27-8. Severability.

It is declared the intent of city council that the sections, subsections, paragraphs, sentences, clauses and phrases of this Article are severable; and if any such provision shall be declared unconstitutional or otherwise invalid or unenforceable by a court of competent jurisdiction, it shall not affect the validity or enforceability of any remaining provisions of this article, and it is the intent of city council that such provisions shall continue in full force and effect.
(Ord. No. 2007-158, § 2, 8-21-07)

Sec. 27-9. Relationship with other laws, regulations, and ordinances.

Whenever the provisions of this article impose more restrictive standards than are required in or under any other law, regulation, or article, the requirements contained in this article shall prevail. Whenever the provisions of any other law, regulation, or ordinance require more restrictive standards than are required in this article, the requirements of such law, regulation, or ordinance shall prevail.
(Ord. No. 2007-158, § 2, 8-21-07)

Sec. 27-10. Rules of language and interpretation.

For purposes of this article:

(a) The word "shall" is mandatory; the word "may" is permissive;

(b) The particular shall control the general;

(c) Days shall mean calendar days;

(d) Words used in the present tense shall include the future, and words used in the singular include the plural, and the plural the singular, unless the context clearly indicates the contrary; and,

(e) All public officials, bodies, and agencies to which reference is made are those of the city, unless otherwise indicated.

(Ord. No. 2007-158, § 2, 8-21-07)

Sec. 27-11. Conflicting ordinances repealed.

All ordinances or parts of ordinances in conflict with the provisions of this article are hereby repealed. This article shall prevail in any and all conflicts with guidelines, manuals, or other publications.

(Ord. No. 2007-158, § 2, 8-21-07)

Sec. 27-12—27-15. Reserved.

DIVISION 2. ORGANIZATION AND ADMINISTRATION

Sec. 27-16. The city stormwater management program.

The SWMP, which shall be developed by the department of stormwater management with city council's approval, shall serve as the basis for directing the city's efforts to control stormwater. The swmp requirements shall be complied with and shall be enforced in accordance with the provisions of this article.

(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2018-150, § 1, 11-27-18)

Sec. 27-17. Coordination with other agencies.

The department of stormwater management may coordinate the city's activities with other federal, state, and local agencies, which manage and perform functions relating to the protection of receiving waters through written agreement. Authority not expressly reserved for other agencies or restricted by statute is placed with the department of stormwater management for the

protection and preservation of receiving waters. The department of stormwater management should coordinate with state and federal agencies.
(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2018-150, § 1, 11-27-18)

Sec. 27-18. Signatory authority on stormwater related documents.

The stormwater director, in the addition to the mayor, is authorized to sign stormwater drainage easements and drainage facility dedications on behalf of the City of Charleston after their acceptance by the public works and utilities committee; as well as, permit applications for stormwater projects on behalf of the city, when necessary, for South Carolina Department of Health and Environmental Control, Ocean and Coastal Resource Management, Coastal Zone Consistency, Army Corps of Engineers; Charleston County, and South Carolina Department of Transportation.
(Ord. No. 2019-039, § 1, 5-28-19

Sec. 27-19—27-23. Reserved.

DIVISION 3. STORMWATER QUANTITY AND QUALITY MANAGEMENT REQUIREMENTS

Sec. 27-24. Regulations.

The department of stormwater management shall be responsible for day to day coordination, implementation, and enforcement of this article and the SWMP as well as the long-term management of the city's stormwater drainage. Without limitation, the department of stormwater management shall have the following authority:

(1) To issue any approval, certification, or license that may be required to comply with this article;

(2) To deny a facility connection to the city's stormwater management system or facility or to deny the discharge to receiving waters, if the state requirements and this article are not met;

(3) To create and enact with city council's approval the city's Stormwater Design Standards Manual. The Stormwater Design Standards Manual shall be used to convey design and engineering standards, construction management processes and procedures, and other aspects necessary for compliance with this article;

(4) To require the submittal of an application for all applicable construction activities, development activities, and re-development activities that result in activities altering an area of land:

a. That at a minimum disturb one-half (½ acre or more and are not within one-half (½ mile of a receiving water.

b That at a minimum disturb less than one-half (½ acre and that are within one-half (½ mile of a receiving water.

c. Or other sites as deemed necessary by the director of stormwater management or his designee.

These applications shall include a plan to control stormwater pollutants and other components detailed in the City Stormwater Design Standards Manual.

(5) To require the development of a stormwater pollution prevention Plan (SWPPP) for all applicable construction, development and re-development projects and enforcement of the SWPPP;

(6) To approve applicable construction, development, and re-development activities and to require as a condition of such approvals, structural or non-structural controls, practices, devices, operating procedures, or other mechanisms to protect public and private property from flooding and erosion and attain TMDL-mandated pollutant load reductions and water quality standards;

(7) The department of stormwater management shall develop a process that organizes the closure of construction, development, and re-development projects to accommodate development phases and property ownership transfers;

(8) To conduct all activities necessary to carry out the SWMP and other requirements included in this article, and to pursue the necessary means and resources required to properly fulfill this responsibility;

(9) To require appropriate post construction, post development, and post redevelopment BMPs and appropriate continued maintenance of those BMPs;

(10) To determine appropriate fees and to take necessary and appropriate actions to enforce this article; and

(11) To require encroachment permits as necessary.

(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2008-113, § 1, 9-19-08; Ord. No. 2017-110, § 1, 9-13-17; Ord. No. 2018-150, § 1, 11-27-18; Ord. No. 2019-039, § 1, 5-28-19)

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Sec. 27-25. Prohibitions and exemptions.

(a) No person shall (1) develop or re-develop any land, (2) engage in any industry or enterprise, (3) construct, operate, or maintain any landfill, hazardous waste treatment, disposal, or recovery facility, or any other industrial or related facility, (4) dispose of any hazardous material or toxic substance or other pollutant, or (5) otherwise allow the transport of sediment and other pollutants associated with stormwater runoff beyond property boundaries without complying with this article.

(b) The following development activities are exempt from the provisions of this article.

(1) Land disturbing activities undertaken on forest land for the production and harvesting of timber and timber products that is conducted in accordance with BMPs and minimum erosion protection measures established by the South Carolina Forestry Commission pursuant to Section 48-18-70 of the 1976 Code of Laws of South Carolina, as amended.

(2) Activities undertaken by persons who are otherwise regulated by the provisions of Chapter 20 of Title 48, the South Carolina Mining Act.

(3) Land disturbing activities on agricultural land for production of plants and animals, including but not limited to: forages and sod crops, grains and feed crops, tobacco, cotton, and peanuts; dairy animals and dairy products; poultry and poultry products; livestock, including beef cattle, sheep, swine, horses, ponies, mules, or goats, including the breeding and grazing of these animals; bees, fur animals, and aquaculture. The construction of an agricultural structure that requires the disturbance of one or more acres, including, but not limited to, broiler houses, machine sheds, repair shops, coops, barns shall require the submittal and approval of a land disturbance application prior to the start of the land disturbing activity.

(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2017-110, § 1, 9-13-17)

Sec. 27-26. Design and engineering standards.

(a) The department of stormwater management shall promulgate design and engineering standards that shall define the desired level of quality and performance for stormwater management systems on all applicable construction, development, and re-development activities in order to meet the purpose of this article. The standards establish the minimum technical requirements needed to evidence compliance through calculations, maps, drawings, or other items as necessary.

(b) The department of stormwater management shall develop and adopt policies, criteria, specifications, and standards for the proper implementation of the requirements of this article, federal and state laws and regulations, the SWMP, and to provide a sound technical basis for the achievement of stormwater management, including water quality and quantity objectives.

(c) It shall be the responsibility of the property owner or operator for land disturbing activities to provide adequate controls to meet the design and engineering standards.
(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2018-150, § 1, 11-27-18)

Sec. 27-27. Construction activity application.

(a) A submittal shall be made for all applicable construction, development, and re-development activities for review by the department of stormwater management. The entire application process and requirements shall be described in a Stormwater Design Standards Manual more fully described in section 27-28.

(b) It shall be the responsibility of the applicant to provide a complete application package that meets the requirements of this article, the SWMP, and other state and federal regulations. Incomplete applications shall be returned to the applicant.

(c) A maintenance plan for the stormwater management system shall be included with the construction activity application and shall cover activities to be conducted during and after construction, development, or re-development. As part of the

maintenance plan, the property owner of such facility shall specifically agree through signature of covenants to be responsible for keeping the system and facilities in working order.

(d) Construction and BMP maintenance and inspection schedules to be implemented during the construction activity and for as long as any stormwater facility is in service shall be included with the construction activity application. Required and recommended schedules for BMP maintenance and inspection are to be provided in the Stormwater Design Standards Manual.

(e) Prior to the issuance of an approved application for construction activity:

(1) The property owner shall execute a legal document entitled "Covenants for Permanent Maintenance of Stormwater Systems" which Covenants shall be recorded by the city in the office of the register mesne conveyance for Charleston County. The location of the facility, the recorded location of the covenants, and a statement of the property owner's responsibility for maintenance shall be included and also shown on the plat accompanying the construction activity application. In the case of an operator other than the property owner, a copy of a maintenance agreement between the operator and the property owner shall be included with the covenants, defining the operators' duties and responsibilities and a statement that the property owner shall be responsible for maintenance activities upon the termination of such maintenance agreement.

(2) The property owner shall grant to the city a perpetual, non-exclusive, transferable easement, beginning or ending at a public street or other access point that allows for public inspection and emergency repair of all components of the drainage system related to the flow of the stormwater, including all conveyances and all water quantity and quality control facilities. At the request of the director of stormwater management or his designee, the property owner shall grant to the city rights-of-way necessary for the implementation and enforcement of

this article. Stormwater quantity and quality control facilities shall be located so that required easements can be effectively used and ownership and maintenance responsibility can be clearly defined in deeds and plats.

(f) When the director of stormwater management or his designee determines that additional storage capacity or pollutant load reduction beyond that required by the applicant for on-site stormwater management is necessary in order to enhance or provide for the public health, safety, and general welfare, to correct unacceptable or undesirable existing conditions or to provide protection in a more desirable fashion for future development, the city may:

(1) Require that the applicant grant any necessary easements over, through, or under the applicant's property to provide access to or drainage for such a facility; and/or

(2) Require that the applicant obtain from the property owner(s) over, through, or under where the stormwater management facility is to be located, any easements necessary for the construction and maintenance of same.

(g) If the construction, development, or re-development activity is to be phased, no stage work, related to the construction, development, or re-development of stormwater management facilities shall commence until the preceding stage of work is completed in accordance with an approved application to perform the work. The procedure for construction, development, and re-development phases beginning and ending and what constitutes such conditions shall be developed by the applicant and submitted along with their construction activity application.

(h) Before commencing any work to implement the approved construction activity application and upon completion of any phase or designated component of the site, the applicant shall notify the director of stormwater management or his designee. Notification schedules shall be provided for in the Stormwater Design Standards Manual. All self-inspections, maintenance actions, BMP replacements, and changes to the approved application shall be documented and presented upon request to the director of stormwater management or his designee.
(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2018-150, § 1, 11-27-18)

Sec. 27-28. Stormwater Design Standards Manual.

Subject to city council approval, the department of stormwater management is authorized to develop a Stormwater Design Standards Manual. The manual shall include design standards, procedures and criteria for conducting hydrologic, hydraulic, pollutant load evaluations, and downstream impact for all components of the stormwater management system. Although the intention of the manual is to establish uniform design practices, it neither replaces the need for engineering judgment nor precludes the use of information not presented in such manual. Other accepted engineering procedures may be used to conduct hydrologic, hydraulic, and pollutant load studies if approved or required by the department of stormwater management.

The manual shall contain at a minimum the following components:

(a) Contents and approval procedures additional to section 27-27 for the construction activity application;

(b) Construction, development, and re-development completion and closeout procedures;

(c) Hydrologic, hydraulic, and water quality design standards for the purposes of controlling the runoff rate, volume, and pollutant load;

(d) Information and requirements for construction, development and re-development projects in special protection areas necessary to address TMDLs, known problem areas and other areas necessary to protect, maintain, and enhance water quality and the environment of the city and the public health, safety, and general welfare of the citizens of the city;

(e) Construction, development, and re-development document requirements;

(f) Minimum easement requirements; and

(g) Required and recommended inspection schedules and activities for all components of the stormwater management system, including construction, development, and re-development related BMPs.

The manual shall be updated as needed to reflect advances in technology and experience related to stormwater management. (Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2018-150, § 1, 11-27-18)

Sec. 27-29. Stormwater management standards and exemptions for redevelopment.

(a) Other than projects with parcel areas less than one (1) acre or where more than eighty (80) percent of the existing building footprint shall remain undisturbed, one (1) of the following performance standards shall be implemented for the entire parcel in question as approved by the department of development services:

(1) Reduce the impervious cover on the site by at least twenty (20) percent, based on a comparison of existing impervious cover at the time of submittal of a construction activity application; or

(2) Achieve a ten-percent reduction in the twenty-four-hour volume of runoff generated from the site by a two-year storm event. Runoff calculations shall be based on a comparison of existing site conditions at the time of submittal of a construction activity application to the post-development site conditions. Confirm the post-development peak discharge rate does not exceed the pre-development peak discharge rate for the two-year storm event; or

(3) Reduce the post-development peak discharge rates by ten (10) percent of the existing peak discharge rates at the time of submittal of a construction activity application for the ten-year and the twenty-five-year twenty-four-hour storm events based on a comparison of existing ground cover at the time of submittal of a construction activity application to post-development site conditions. Confirm the twenty-four-hour post-development volume

does not exceed the pre-development volume for the ten-year and the twenty-five-year twenty-four-hour storm events.

(b) The following land disturbing activities are exempt from the provisions of the article and the requirements of providing stormwater management measures. Even if exempt from this article, the following, as well as all land disturbing activity is not allowed to divert water to adjacent property to cause a nuisance and/or property damage and should comply with the intent of this article. These activities are also not exempt from implementing proper erosion and sediment control best management practices.

(1) Construction or improvement of a single-family residence (single family residence—separately built) or their accessory buildings, or mobile home, that is separately built and not part of multiple construction or a subdivision development approved under this article. If included in a land development plan, all land disturbing activities must follow the stormwater technical report and sediment and erosion control plan that has been approved for the construction activity.

(2) Minor land disturbing activities that do not disturb more than one-half (0.5) acre of land area that are (a) not part of a larger common plan and (b) do not increase total impervious cover by greater than ten percent of the existing impervious cover.

(3) Any maintenance or renovation of an existing structure or system not materially changing or affecting the rate, concentration or volume of stormwater runoff where the total proposed improvements do not (a) increase total impervious cover on the property and (b) where any repair, reconstruction, or improvement to an existing site and/or to and structures located on that site such that the cumulative costs of repairs, over a five (5) year period does not equal or exceed fifty (50) percent of the fair market value of the property and the structures located on that property.

(Ord. No. 2017-110, § 1, 9-13-17; Ord. No. 2018-150, § 1, 11-27-18; Ord. No. 2026-012, § 1, 1-27-26)

Sec. 27-30. Termination of an approved construction activity application.

The notice of termination ("NOT") process shall be completed by the department of stormwater management prior to any of the following actions, as applicable:

(a) The use or occupancy of any newly constructed components of the site;

(b) Final acceptance of any road into the official city road inventory; and/or

(c) Approval and/or acceptance for recording of map, plat, or drawing, the intent of which is to cause a division of a single parcel of land into two (2) or more parcels.

(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2017-110, § 1, 9-13-17; Ord. No. 2018-150, § 1, 11-27-18)

Note—Formerly numbered as § 27-29.

Sec. 27-31. Stormwater management protection.

Maintenance of the stormwater management system is critical for the achievement of its purpose of controlling stormwater runoff quantity and quality and the short-term and long-term public health, safety, and general welfare of the citizens of the city. The department of stormwater management shall develop procedures to provide reasonable assurances that maintenance activities are performed for both the city and privately maintained systems. The department of stormwater management shall also define procedures for transferring maintenance responsibilities to another person.

(a) Property owners shall be responsible for maintaining stormwater quantity and quality facilities and all conveyance structures located on their property. The minimum maintenance requirements shall be performed at necessary intervals, as determined by the director of stormwater management or his designee, during construction and for as long as a stormwater management system or component is in use.

(b) A property owner or operator may hire or contract others to perform necessary maintenance actions.

(c) The city shall own and maintain all drainage system components that are constructed under or collect stormwater runoff from a city-owned road.

(d) The city may in its sole discretion accept, limit, or decline ownership and maintenance of all or part of a stormwater system.

(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2017-110, § 1, 9-13-17; Ord. No. 2018-150, § 1, 11-27-18)

Note—Formerly numbered as § 27-30.

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Sec. 27-32. Watercourse protection.

(a) Every person owning or operating property through which a watercourse passes shall keep and maintain that part of the watercourse within the property free of trash, debris, and other obstacles that would pollute, contaminate, or significantly retard the flow of water through the watercourse. In addition, the property owner or operator shall maintain existing privately owned structures within or adjacent to a watercourse, so that such structures will not become a hazard to the use, function, or physical integrity of the watercourse.

(b) To assist in the compliance with state and federal laws and regulations, the department of stormwater management may develop special protection areas which require additional control of stormwater quality and quantity than provided by minimum design standards. Such areas may consist of watersheds corresponding to adopted TMDLs, known flooding problems and pollutant impairments, or other areas necessary to protect, maintain, and enhance water quality and the environment of the city and the public health, safety, and general welfare of the citizens of the city.

(c) New stormwater systems created as the result of any construction, development or re-development project shall be connected to the existing drainage system in a manner so as not to degrade the integrity of the existing system, whether natural or manmade. This shall be demonstrated to the department of stormwater management prior to issuance of the NOT. Discharge points shall be confined to connections with an existing natural or man-made drainage system. When stormwater discharges are to flow into collection systems not owned and maintained by the city, the owners of these systems shall maintain the right to disapprove new connections to their system.

(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2017-110, § 1, 9-13-17; Ord. No. 2018-150, § 1, 11-27-18)

Note—Formerly numbered as § 27-31.

Sec. 27-33. Notification of spills.

Notwithstanding other requirements of law, as soon as any person has any information of any known or suspected release of

materials which are resulting or may result in illegal discharges or pollutants discharging into stormwater, the storm drain system, or receiving waters, said person shall take all necessary steps to discover, contain, and cleanup any such releases. This person shall also take immediate steps to protect against future recurrences of the discharge. In the event of such a release of hazardous materials, including but not limited to oils, greases, engine fluids and fuels, chemicals, herbicides and pesticides, and fertilizers, said person shall immediately notify all agencies as required by law.

(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2017-110, § 1, 9-13-17)

Note—Formerly numbered as § 27-32.

Sec. 27-34. Cleanup procedures.

The city may develop spill procedures on how non-hazardous spills are cleaned up, and who is responsible for the cleanup in terms of the activities to be performed and cost of such actions.

(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2017-110, § 1, 9-13-17)

Note—Formerly numbered as § 27-32.

Secs. 27-35—27-39. Reserved.

DIVISION 4. DETECTION AND REMOVAL OF ILLICIT CONNECTIONS AND DISCHARGES AND IMPROPER DISPOSAL

Sec. 27-40. Illicit connections, illicit discharges, and improper disposal.

(a) It is unlawful for any person to connect any pipe, open channel, or any other conveyance system that discharges anything, except stormwater or other approved discharges into a city stormwater management system or facility or to any receiving waters.

(b) It is unlawful for any person to continue the operation of any such illicit connection regardless of whether the connection was permissible when constructed. Improper connections in

violation of this article shall be disconnected and redirected, if necessary, to the satisfaction of the director of stormwater management or his designee and any other federal, state, or local agency or department regulating the discharge.

(c) It is unlawful for any person to throw, drain, or otherwise discharge to a city stormwater management system or facility or to receiving waters or to cause, permit, or allow a discharge that is composed of anything except stormwater.

(d) The department of stormwater management shall develop procedures for detecting, tracking, and eliminating illicit discharges and improper disposals to the stormwater system.

(e) The director of stormwater management or his designee may require controls for or exempt from the prohibition provision in (a), (b), and (c) above the following, provided that a reasonable determination is made that they are not a significant source of pollutants:

(1) Unpolluted industrial cooling water, but only under the authorization and direction of the director of stormwater management or his designee and if an appropriate Industrial NPDES permit is in place;

(2) Water line flushing, diverted stream flows, rising ground waters, uncontaminated pumped ground waters, and uncontaminated ground water infiltration;

(3) Discharges from potable water sources, foundation drains, air conditioning condensation, landscape irrigation, springs, water from crawl space pumps, footing drains, lawn watering, individual car washing, dechlorinated swimming pool discharges, flows from riparian habitats and wetlands, and street wash water; and

(4) Discharges or flows from fire fighting.

(f) The department of stormwater management may develop procedures for allowing other non-stormwater discharges.
(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2018-150, § 1, 11-27-18)

Sec. 27-41. Detection of illicit connections and improper disposal.

(a) The department of stormwater management shall take appropriate steps to detect and eliminate illicit connections to the city stormwater system. These steps may include adoption of a program to screen illicit discharges and identify their source or sources, perform inspections, develop programs to provide for public education and public information, inspection, legal actions, and other appropriate activities to facilitate the proper management and elimination of illicit connections.

(b) The department of stormwater management shall take appropriate steps to detect and eliminate improper discharges. These steps may include programs to screen for disposal, programs to provide for public education and public information, inspection, legal actions, and other appropriate activities to facilitate the proper management and elimination of illicit discharges.

(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2018-150, § 1, 11-27-18)

Sec. 27-42. Waste disposal prohibitions.

No person shall throw, deposit, leave, maintain, keep, or permit to be thrown, deposited, left, or maintained, in or upon any public or private property, driveway, parking area, street, alley, sidewalk, component of the storm drain system, or recovery, any refuse, rubbish, garbage, litter, pet fecal matter, or other discarded or abandoned objects, articles, and accumulations, so that the same may cause or contribute to pollutant loading. Yard debris, including natural foliage, may be deposited in the public right of way in accordance with subsection 14-46(g) of the Code of the City of Charleston but not in or on any stormwater conveyance structures, including ditches, inlets, and gutters. Wastes in proper waste receptacles may be placed in the street for collection in accordance with subsection 14-46(g) of the Code of the City of Charleston. Waste or yard debris shall only be placed in the street if a collection service through the city or a private contractor is available.

(Ord. No. 2007-158, § 2, 8-21-07)

Sec. 27-43. Discharges in violation of NPDES general permit for stormwater discharges associated with industrial activity permit.

Any person subject to a discharges in violation of NPDES general permit for storm water discharges associated with industrial activity permit (except construction, new development, and re-development activities) shall comply with all provisions of such permit. Proof of compliance with said permit may be required in a form acceptable to the director of stormwater management or his designee prior to or as a condition of the issuance of a construction activity application, and/or a building permit.
(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2018-150, § 1, 11-27-18)

Secs. 27-44.—27-49. Reserved.

DIVISION 5. MONITORING, INSPECTION, ENFORCEMENT, ABATEMENT, AND PENALTIES

Sec. 27-50. Monitoring.

The department of stormwater management may monitor the quantity and concentration of pollutants in stormwater discharges from the areas and/or locations designated in the city's SWMP.
(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2018-150, § 1, 11-27-18)

Sec. 27-51. Inspections.

(a) The department of stormwater management shall promulgate procedures for conducting site inspections.

(b) The director of stormwater management or his designee, bearing proper credentials and identification, may enter and inspect all properties for regular inspections, periodic investigations, monitoring, observation measurement, enforcement, sampling and testing, to effectuate the provisions of this article and the SWMP programs. Such inspections may be made at active construction, development, and re-development sites or at

any stormwater management system or facility in perpetuity. The director of stormwater management or his designee shall duly notify the property owner or operator of said property or the representative on site and the inspection shall be conducted at reasonable times. Where the property owner or operator has security measures in force requiring proper identification and clearance before entry onto the premises, the person shall make necessary arrangements with the necessary parties so that, upon presentation of suitable identification, the director of stormwater management or his designee will be permitted to enter without delay for the purposes of performing such responsibilities identified above.

(c) Upon refusal by any property owner to permit an inspector to enter or continue an inspection, the inspector shall terminate the inspection or confine the inspection to areas concerning which no objection is raised. The director of stormwater management or his designee shall document the refusal and the grounds for such and promptly seek appropriate compulsory process.

(d) In the event that the director of stormwater management or his designee reasonably believes that a property is causing harm to the city's stormwater management system or facility which is an imminent and substantial threat to human health or the environment, an inspection may take place at any time and without notice to the owner of the property or a representative on site. The inspector shall present proper credentials upon reasonable request by the property owner or operator.

(e) Inspection reports shall be maintained by the department of stormwater management in accordance with the law.
(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2018-150, § 1, 11-27-18)

Sec. 27-52. Enforcement.

(a) When the director of stormwater management or his designee finds that work done for construction activities, new development, and re-development fails to conform to the approved construction activity application, or that the work has not been

done, the director of stormwater management or his designee may by written notice of violation (NOV), direct conformity to said approval(s). Actions may include:

(1) Issuing a written order to comply, to suspend work, or to revoke the approval issued;

(2) Seeking redress through legal action;

(3) Withholding the release of certificate of occupancy; and/or

(4) Withholding or revoking city permits related to the site.

The written NOV shall be provided to the owner, operator, or the person responsible for land disturbing activities stating the nature of the violation, the amount of time in which to correct deficiencies, the date on which an inspection will be made to make sure that corrective action has been performed, and the proposed penalty structure if corrective action is not taken by the inspection date.

(b) The director of stormwater management, his designee, or other authorized personnel may issue a stop work order if it is found that a construction activity, new development, or re-development is being conducted in violation of this article. The stop work order may allow or require correction of notice of violation (NOV) issues, but shall otherwise stop all other construction, new development, and re-development related activities. A stop work order may carry with it criminal penalties as well. Any person in violation of a stop work order is subject to payment of all fees and criminal fines prior to the lifting of the stop work order.

(c) When the director of stormwater management or his designee determines that an owner or operator has failed to maintain a stormwater management facility, a written NOV shall be provided to the owner or operator of such property stating the nature of the violation, the amount of time in which to correct deficiencies, the date on which an inspection will be made to make sure that corrective action has been performed, and the proposed penalty structure if corrective action is not taken by the inspection date.

(d) When the director of stormwater management or his designee determines that an owner or operator of any property is causing or partially causing flooding, erosion, or non-compliance with water quality standards or this article, upon providing valid proof of such impacts, the director of stormwater management or his designee can require owners to remove the proven impact in a concerted, prudent manner and restore the impacted property. A written NOV shall be provided to the owner or operator of such property stating the nature of the violation, the amount of time in which to correct deficiencies, the date on which an inspection will be made to make sure that corrective action has been performed, and the proposed penalty structure if corrective action is not taken by the inspection date.

(e) This article may be enforced by any remedy of law or equity that the city is authorized to pursue, to include the authorities and powers conferred to local governments by the General Assembly of South Carolina. The city may institute injunctive, mandamus or other appropriate action or proceedings at law or equity, including criminal conviction, for the enforcement of this article or to correct violations of this article, and any court of competent jurisdiction shall have the right to issue restraining orders, temporary or permanent injunctions, mandamus or other appropriate forms of remedy or relief.
(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2018-150, § 1, 11-27-18)

Sec. 27-53. Corrective action.

(a) In the event a violation of this article has not been corrected within the applicable time period for correction stated on the NOV or if the violation poses an imminent threat to the health or safety of the general public or the environment, the city, or its agent, may enter upon the lot or parcel of land and correct the violation, and the costs incurred as a result of such action, including, but not limited to inspection, administration, labor, and equipment costs shall be collected from the property owner or the operator, or shall become a lien upon the property and shall be collected in the same manner as the city's taxes are collected.
(Ord. No. 2007-158, § 2, 8-21-07)

Sec. 27-54. Suspension and revocation of a construction activity application.

(a) An approved construction activity application may be suspended or revoked if one or more of the following violations have been committed:

(1) Violations of the conditions of the construction activity application approval;

(2) Construction is not in accordance with the letter or intent of the approved plans;

(3) Non-compliance with NOVs or stop work order(s); or

(4) The existence of an immediate danger to a receiving water in the judgment of the director of stormwater management or his designee.

(b) Notice of the hearing for suspension or revocation of an approved construction activity application shall be given in writing, setting forth specifically the grounds of complaint and the time and place of hearing. Such notice shall be mailed, postage prepaid, to the property owner or operator at the address listed on the construction activity application at least five (5) days prior to the date set for the hearing.
(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2018-150, § 1, 11-27-18)

Sec. 27-55. Penalties.

(a) Any person who violates any provision of this article shall be subject to the penalties set forth in section 1-16 of the Code of the City of Charleston.

(b) The penalties and other remedies provided in this article are cumulative and not exclusive, and may be independently and separately pursued against the same person for the activity constituting a violation of this article. The enforcement of any remedy provided herein shall not prevent the enforcement of any other remedy or remedies in other provisions of this Code or other laws and regulations.

(c) Where the city is fined and/or placed under a compliance schedule by the state or federal government for a violation(s) of its NPDES permit, and the city can identify the person(s) who caused such violation(s) to occur, the city may pass through the penalty and cost of compliance to that person(s).
(Ord. No. 2007-158, § 2, 8-21-07)

Sec. 27-56—27-61. Reserved.

DIVISION 6. VARIANCES

Sec. 27-62. Design criteria.

(a) The department of stormwater management may grant a variance from the requirements of this article if exceptional circumstances applicable to a site exist such that strict adherence to the provisions of this article will result in unnecessary hardship and will not fulfill the intent of this article.

(b) A written request for a variance shall be required and shall state the specific variance sought and the reasons, with supporting data, a variance should be granted. The request shall include all information necessary to evaluate the proposed variance.
(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2018-150, § 1, 11-27-18)

Sec. 27-63—27-68. Reserved.

DIVISION 7. APPEAL PROCESS

Sec. 27-69. Appeal process.

Any person aggrieved by the action of the director of stormwater management or his designee in the denial of a construction activity application shall have the right to appeal to the city's public works and utilities committee by filing with the city's clerk of council a petition in writing setting forth plainly, fully, and distinctly why the denial is contrary to law. The appeal shall be filed within thirty (30) days after the affected

party receives actual notice of the decision of the director of stormwater management or his designee. Public works and utilities committee hearings requested pursuant to this section shall be scheduled within thirty (30) days after receipt of a proper request for an appeal unless continued by agreement and decisions shall be rendered within sixty (60) days from the end of the hearing. The public works and utilities committee shall have full authority to affirm, modify, or reverse a decision of the director of stormwater management or his designee. In evaluating the appeal, the public works and utilities committee shall determine whether the decision of the director of stormwater management or his designee was made in compliance with the standards, policies, and criteria of this article. Any person aggrieved by a final determination of the public works and utilities committee shall have the right to file an appeal with the court of common pleas in and for the County of Charleston within thirty (30) days of notice of such determination.
(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2018-150, § 1, 11-27-18)

Sec. 27-70—27-75. Reserved.

DIVISION 8. CHARGES AND FEES

Sec. 27-76. Connection to conveyances/fees.

The department of stormwater management shall have the right to establish a schedule of appropriate fees for any property owner or operator establishing a new discharge to receiving waters within the city or to a wet weather conveyance. Such fee shall be payable as part of any application regulating the discharge of stormwater runoff. Application fees shall be established on the basis of facility classes relating to the quantity and quality of approved discharge. Establishment and revision of such fees shall be approved by city council.
(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2018-150, § 1, 11-27-18)

Sec. 27-77. Plan review.

Costs associated with plan review of construction activities, development, and re-development construction documents other than those routinely performed by the department of stormwater management may be assessed as a fee representing the cost in labor, equipment, and materials expended in the conduct of the review. Establishment and revision of such fees shall be approved by city council.
(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2018-150, § 1, 11-27-18)

Sec. 27-78. Field inspection.

Costs associated with field inspection and re-inspections of construction activities, new development, and re-development activities other than those routinely performed by department of stormwater management as part of compliance monitoring may be assessed a fee representing the cost in labor, equipment, and materials expended in the conduct of the inspection. Establishment and revision of such fees shall be approved by city council.
(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2018-150, § 1, 11-27-18)

Secs. 27-79—27-84. Reserved.

ARTICLE II. STORMWATER FACILITIES AND FLOOD HAZARD DAMAGE PREVENTION AND CONTROL

DIVISION 1. STORMWATER FACILITIES

Sec. 27-85. Injuring or obstructing stormwater facilities.

It shall be unlawful for any person to do or cause to be done any injury to or to cause an obstruction of any kind in any manner to any of the appliances or parts of the public stormwater facilities.
(Ord. No. 2007-158, § 2, 8-21-07)

Sec. 27-86. Consent required to uncover public stormwater facility.

It shall be unlawful for any person to uncover any public stormwater facility, or connection branches thereof, for any purpose or to make connection therewith, or to open any stormwater facility, unless and except with the approval and inspection of the department of stormwater management.
(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2018-150, § 2, 11-27-18)

Sec. 27-87. Removal of sewage by connection with a stormwater facility prohibited.

It shall be unlawful for any person to make, or cause to be made, any connection for the removal of sewage from any premises, with any stormwater facility or with any receiving water within the limits of the city.
(Ord. No. 2007-158, § 2, 8-21-07)

Sec. 27-88. Laying pipe in street within five (5) feet of stormwater facility prohibited.

No person shall lay any pipe or conduit for any purpose whatsoever in any street within five (5) feet on either side of a public stormwater facility without the prior approval of the director of stormwater management or his designee.
(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2018-150, § 2, 11-27-18)

Sec. 27-89. Opening trenches in public way.

In opening trenches in any street or public way, the paving or ballast shall be removed with care; the sides of the trench shall be sheeted or braced in accordance with local, state, and federal law and every precaution taken to prevent injury to person or property during the progress of the work. The earth thrown from the trench shall be placed so as not to obstruct public stormwater facilities and so as to cause the least obstruction to public travel. All existing utility lines shall be protected from injury.
(Ord. No. 2007-158, § 2, 8-21-07)

Sec. 27-90. Form of application for connection permit.

Application for a permit to make a stormwater facility connection shall be made on suitable forms provided by the department of stormwater management.
(Ord. No. 2007-158, § 2, 8-21-07) ; Ord. No. 2018-150, § 2, 11-27-18

Sec. 27-91. Notification of engineering division and department of stormwater management prior to laying stormwater facilities; inspection and approval.

Notice shall be left at the engineering division forty-eight (48) hours prior to the beginning of any work laying a storm drain. No material shall be used or work covered until inspected and approved by the engineering division and department of stormwater management.
(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2018-150, § 2, 11-27-18)

Sec. 27-92. Grading and drainage requirements.

(a) No lot shall be used for building purposes in the city until the director of stormwater management or his designee has determined that such lot is has been graded so as to be effectively drained in accordance with an approved stormwater management plan.

(b) All premises shall be graded and maintained so as to prevent the accumulation of stagnant water thereon, or within any building or structure located thereon.
(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2018-150, § 2, 11-27-18)

Sec. 27-93—27-98. Reserved.

DIVISION 2. PROVISIONS FOR FLOOD HAZARD REDUCTION

Sec. 27-99. Low lots or grounds constituting public nuisance or health hazard.

(a) It shall be unlawful for any owner with low lots which shall be found by the department of stormwater management to be a public nuisance or health hazard, to fail to eliminate such nuisance or hazard in such manner and within such times as the department of stormwater management shall direct.

(b) *Inspections.* Whenever it shall appear to the department of stormwater management that any low lots are in a condition to constitute a public nuisance or health hazard, it shall be the duty of the department of stormwater management to enter upon and thoroughly examine the low grounds in question to determine whether such lots should be drained, filled up, leveled, cleared or otherwise so improved as to remove the nuisance and health hazard there complained of or existing.

(c) *Determination of hazard; order to correct.* Should the department of stormwater management be of the opinion that the low lots in question ought to be filled up, leveled, cleared or drained, or otherwise improved as to remove the nuisance and health hazard, the department of stormwater management shall forthwith order and direct the owners of such low lots to take such action in such manner and with such materials and within such reasonable times as the department of stormwater management may prescribe. In no event shall the time prescribed be less than ten (10) days.

(d) *Service of notice.* Such notice shall be served on the owner or owners of the low lots in writing either in person, by registered mail, or by publication. Where a notice by registered mail is sent to the last known address of the owners it shall be deemed a service upon the owners of such lots.

(e) *Noncompliance with notice; work done by city.* In case of neglect or refusal of an owner to obey a notice as provided for in paragraph (d) of this Section, it shall be the duty of the

department of stormwater management to cause the low lots in question to be filled up, leveled, cleared, drained or otherwise so improved as to remove the nuisance and health hazard.

(f) *Costs of work done by city to constitute lien against property.* The expenses and charges paid or incurred in case low lots shall be filled up, leveled, cleared, drained or otherwise improved by the department of stormwater management shall be paid in the first instance out of the city treasury and such expenses and charges shall be a lien against the real property upon which such cost was incurred, which lien shall be enforced and collected in the same manner as municipal taxes.

(g) Nothing herein shall prevent the enforcement of any other remedy or remedies in other provisions of this Code or other laws and regulations.
(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2018-150, § 2, 11-27-18)

Sec. 27-100. Water from building.

On all new construction, developments, or redevelopments required by the Standard Building Code to conform to requirements for new buildings, it shall be unlawful for any person to collect rainwater for deposit on any street, sidewalk or right-of-way, or otherwise suffer or permit, or by mechanical means propel, rainwater on such street, sidewalk or right-of-way.
(Ord. No. 2007-158, § 2, 8-21-07)

Sec. 27-101. Flood hazard areas.

(a) If, upon the determination and written notice of the building code official or any other responsible city official, a proposed structural use in any zone district of the city lies within an area of suspected flood hazard to public health or safety it shall be the duty of the building code official to withhold approval of building permits until one of the following requirements has been met:

(1) Documented, written evidence by a registered engineer that the proposed development does not place in hazard public health or safety, either on the subject property or upstream, or downstream.

(2) Documented, written evidence by the owner of the land or his agent further certified by a registered engineer that proposed improvements or standards such as flood proofing, filling, excavating, etc., will be instituted to overcome encroachment upon the normal water-carrying functions of adjacent streams resulting in hazards to public health and safety.

(3) Written evidence by the owner of the land or his agent that the development shall be confined to the following permitted uses with normal safeguards to public health and safety:

a. In or adjacent to residential developments:

i. Agricultural uses permitted under the provision of the zoning ordinance.

ii. Railroads, streets, bridges and public utility wire and pipe lines for transmission and local distribution purposes.

iii. Public parks and playgrounds and outdoor private clubs, including but not limited to country club, swimming clubs, tennis clubs, provided that no principal building is located in the floodway.

iv. Recreational camp and camping grounds, provided that rest room facilities shall be located and constructed in accordance with the health department requirements.

v. Commercial excavation of natural materials and improvements of a stream channel.

vi. Uses accessory to those permitted in adjoining lots or tracts of land.

b. In or adjacent to commercial development:

i. Any of the above permitted uses.

ii. Archery ranges, drive-in theaters, miniature golf courses and golf driving ranges.

iii. Loading and unloading areas, parking lots, used car lots.

iv. Other similar uses accessory to those permitted in the adjoining district.

v. Parking lots.

c. In or adjacent to industrial development:

i. Agricultural uses including crop, nursery stock, and tree farming, truck gardening, livestock grazing, and other agricultural uses which are of the same or closely similar nature.

ii. Storage yards for equipment and material not subject to major damage by flood, provided such use is accessory to a use permitted in an adjoining district.

iii. Parking lots.

iv. Railroads, streets, bridges and utility lines.

v. Uses accessory to those permitted in adjoining lots or tracts of land.

(b) The required evidence shall be submitted to the board of adjustment by the owner or his agent and reviewed for adequacy within a period not exceeding thirty-days after receipt. The board of adjustment shall determine if conditions necessary for public health and safety have been met within the allotted thirty-day period or an affirmative decision shall be presumed. However, upon the event of a negative decision additional documentation may be presented which starts another thirty-day period.
(Ord. No. 2007-158, § 2, 8-21-07)

Sec. 27-102. Stormwater management systems.

(a) Stormwater management systems for development in the city shall adhere, at a minimum, to the requirements as established by S.C. Code § 48-14-10, et. seq. (Supp. 2000), the Stormwater Management and Sediment Reduction Act, and the regulations promulgated pursuant thereto, as the same may from time to time be amended.

(b) Consistent with requirements of the Stormwater Management and Sediment Reduction Act, in areas of the city deemed by the director of stormwater management or his designee to

require more stringent design specifications due to reoccurring flooding conditions, stormwater management systems shall be required to adhere to such development and design criteria as deemed necessary by the director of stormwater management or his designee.

(c) Within the area of the city delineated as the Church Creek Basin in the Master Drainage and Floodplain Management Plan dated May 1984, on file in the offices of the department of stormwater management, city council finds that because of the topography and the limited stormwater infrastructure, homes and other developed properties in the basin have experienced severe flooding during rainstorms that did not exceed the design rainfall event. The infrastructure now in place is not sufficient to adequately handle the stormwater discharge of the development that has occurred to date, and stands to be further adversely impacted as additional development occurs. It is evident that absent the implementation of reasonable regulations and specific criteria for the design and construction of permanent stormwater management systems associated with new development in the basin, both existing and planned, will be threatened.

A special stormwater management area is established within which all new development shall adhere to special stormwater management design standards, which shall be designated as the Church Creek Special Stormwater Management Area and shall be defined as only that portion of the Church Creek basin that lies north of the existing railroad right-of-way, which is more specifically shown in the Master Drainage and Floodplain Management Plan dated May 1984 and the Stormwater Master Plan for the Church Creek Watershed on file in the offices of the department of stormwater management (hereinafter referred to as the "Church Creek Special Stormwater Management Area").

Within the Church Creek Special Stormwater Management Area, all permanent stormwater management systems associated with new development shall be designed and constructed to maintain the post-development peak flow rates at or below the pre-development peak flow rates, and to detain the excess runoff volume difference between the pre-development and post-

development conditions for the design storm having a duration of 24-hours and frequencies of 2, 10, 25, 50 and 100 years for a period of twenty-four (24) hours, with tolerances for a peak flow rate match for the 25- and 50-year storm events being plus or minus ten (10) percent, with all others matching pre post-development conditions. Detention facilities meeting these standards shall be designed and constructed to contain the excess volume for the twenty-four-hour period and the volume required to release the post-development peak flow at or below the pre-development peak flow rates, all as are more fully explained and specified in the Stormwater Master Plan for the Church Creek Watershed maintained on file in the office of the director of stormwater management or his designee, and which is incorporated herein by reference.
(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2018-150, § 2, 11-27-18)

DIVISION 3. FLOOD HAZARD PREVENTION AND CONTROL

Sec. 27-103. Definitions.

Unless specifically defined in this section, words or phrases used in this division shall be interpreted so as to give them the meaning they have in common usage and to give this division its most reasonable application.

Addition (to an existing building) means any walled and roofed expansion to the perimeter of a building in which the addition is connected by a common load-bearing wall other than a fire wall. Any wall and roofed addition which is connected by a fire wall or is separated by independent perimeter load-bearing walls is new construction.

Appeal means a request for a review of the city's interpretation of any provision of this division or a request for a variance.

Area of shallow flooding means a designated AO of VO zone on a community's flood insurance rate map (FIRM) with base

flood depths from one (1) to three (3) feet where a clearly defined channel does not exist, where the path of flooding is unpredictable and indeterminate, and where velocity flow may be evident.

Area of special flood hazard is the land in the flood plain within a community subject to a one (1) percent or greater chance of flooding in any given year.

Base flood means the flood having a one (1) percent chance of being equaled or exceeded in any given year.

Basement means that portion of a building having its floor sub-grade (below ground level) on all sides.

Breakaway wall means a wall that is not part of the structural support of the building and is intended through its design and construction to collapse under specific lateral loading forces without causing damage to the elevated portion of the building or the supporting foundation system.

Building means any structure built for support, shelter, or enclosure for any occupancy or storage.

Coastal high hazard area means the area subject to high velocity waters caused by, but not limited to, hurricane wave wash or tsunamis. The area is designated on a FIRM as zone VI—30.

Development means any manmade change to improved or unimproved real estate, including, but not limited to, buildings or other structure, permanent storage of equipment or material, mining, dredging, filling, grading, paving, excavation or drilling operations.

Elevated building means a non-basement building built to have the lowest floor elevated above the ground level by means of fill, solid foundation perimeter walls, pilings, columns (posts and piers), shear walls, or breakaway walls.

Elevation certificate means FEMA Form 81-31, February 13, 2006 or subsequent revisions, including FEMA Form 086-0-33 revised December 2019, used to show elevations of real property in relation to base flood elevations.

Existing construction means any structure for which the "start of construction" commenced before April 9, 1971.

Existing manufactured home park means a manufactured home park for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including at a minimum the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads) is completed before April 9, 1971.

Expansion to existing manufactured home park means the preparation of additional sites by the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads.)

Fill or *filling* means placement of natural sands, dirt, soil or rock above the natural grade to raise the elevation of the ground, and may also include concrete, cement, soil cement, brick or similar material as approved on a case-by-case basis.

Flood or *flooding* means a general and temporary condition of partial or complete inundation of normally dry land areas from:

(1) The overflow of inland or tidal waters;

(2) The unusual and rapid accumulation of runoff of surface waters from any source.

Flood hazard boundary map (FHBM) means an official map of a community, issued by the Federal Emergency Management Agency, where the boundaries of the areas of special flood hazard have been defined as zone A.

Flood insurance rate map (FIRM) means an official map of a community on which the Federal Emergency Management Agency has delineated both the areas of special flood hazard and the risk premium zones applicable to the community.

Flood insurance study is the official report provided by the federal emergency management agency. The report contains flood profiles, as well as the flood boundary-floodway map and the water surface elevation of the base flood.

Floodway means the channel of a river or other watercourse and the adjacent land areas that must be reserved in order to discharge the base flood without cumulatively increasing the water surface elevation more than one (1) foot.

Floor means the top surface of an enclosed area in a building (including basement) i.e., top slab in concrete slab construction or top of wood flooring in wood frame construction. The term does not include the floor of a garage used solely for parking vehicles.

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Freeboard means a factor of safety usually expressed in feet above a base flood level for purposes of floodplain management.

Functionally dependent facility means a facility which cannot be used for its intended purpose unless it is located or carried out in close proximity to water, such as a docking or port facility necessary for the loading and unloading of cargo or passengers, shipbuilding, ship repair, or seafood processing facilities. The term does not include long-term storage, manufacture, sales, or service facilities.

Highest adjacent grade means the highest natural elevation of the ground surface, prior to construction, next to the proposed walls of a structure.

Historic structure means any structure that is:

(1) Listed individually in the National Register of Historic Places (a listing maintained by the Department of Interior) or preliminarily determined by the Secretary of the Interior as meeting the requirements for individual listing on the National Register;

(2) Certified or preliminarily determined by the Secretary of the Interior as contributing to the historical significance of a registered historic district or a district preliminarily determined by the Secretary to qualify as a registered district;

(3) Certified or preliminarily determined by the State Historic Preservation Office as contributing to the historical significance of a registered historic district or a district preliminarily determined by the Secretary of the Interior to be eligible for inclusion in the National Register.

Lowest floor means the lowest floor of the lowest enclosed area (including basement). An unfinished or flood resistant enclosure, usable solely for parking of vehicles, building access, or storage in an area other than a basement area is not considered a building's lowest floor, provided that such enclosure is not built so as to render the structure in violation of the applicable non-elevation design requirements of this article.

Mangrove stand means an assemblage of mangrove trees which is mostly low trees noted for a copious development of interlacing adventitious roots above the ground and which contain one (1) or more of the following species: black mangrove (Avicennia Nitida); red mangrove (Rhizophora Mangle); white mangrove (Languncularia Racemosa); and buttonwood (Conocarpus Erecta).

Manufactured home means a structure, transportable in one (1) or more sections, which is built on a permanent chassis and designed to be used with or without a permanent foundation when connected to the required utilities. It also includes park trailers, travel trailers, and similar transportable structures placed on a site for one hundred eighty (180) consecutive days and intended to be improved property.

Manufactured home park or subdivision means a parcel (or contiguous parcels) of land divided into two or more manufactured home lots for rent or sale.

Market value means, for the purpose of making determinations of substantial damage or substantial improvement pursuant to this division:

(1) The current market value of the building, as determined by the county's assessor's office; or

(2) The appraised value of the building, as determined by an appraisal performed by an independent, licensed professional appraiser in accordance with the laws of the State of South Carolina within the past six (6) months from the date of determination. An appraised value shall supersede the county's market value in making final determinations of substantial damage or substantial improvement.

Mean sea level means the average height of the sea for all stages of the tide. It is used as a reference for establishing various elevations within the flood plain. For purposes of this division, the term is synonymous with National Geodetic Vertical Datum (NGVD).

National Geodetic Vertical Datum (NGVD) is a vertical control used as a reference for establishing varying elevations within the flood plain.

New construction means structures for which the "start of construction" commenced on or after April 9, 1971.

New manufactured home park means a manufactured home park for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including at a minimum, the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads) is completed on or after April 9, 1971.

Recreational vehicle means a vehicle which is:

(1) Built on a single chassis;

(2) Four hundred (400) square feet or less when measured at the largest horizontal projection;

(3) Designed to be self-propelled or permanently towable by a light duty truck; and

(4) Designed primarily not for use as a permanent dwelling but as temporary living quarters for recreational, camping, travel, or seasonal use.

Sand dunes means naturally occurring accumulations of sand in ridges or mounds landward of the beach.

Start of construction (for other than new construction or substantial improvements under the coastal barrier resources act (p. L. 97-348)), includes substantial improvement, and means the date the permit was issued, provided the actual start of construction, repair, reconstruction, or improvement was within one hundred eighty (180) days of the permit date. The actual start means the first placement of permanent construction of a building (including a manufactured home) on a site, such as the pouring of slabs or footings, installation of piles, construction of columns, or any work beyond the stage of excavation or the placement of a manufactured hoem on a foundation. Permanent construction does not include land preparation, such as clearing, grading and filling; nor does it include the installation of streets and/or walkways; nor does it

include excavation for a basement, footings, piers or foundations or the erection of temporary forms; nor does it include the installation on the property of accessory buildings, such as garages or sheds not occupied as dwelling units or not part of the main building. For a substantial improvement, the actual start of construction means the first alteration of any wall, ceiling, floor, or other structural part of a building, whether or not that alteration affects the external dimensions of the building.

Structure means a walled and roofed building that is principally above ground, a manufactured home, a gas or liquid storage tank, or other man-made facilities or infrastructures.

Substantial damage means damage of any origin sustained by a structure whereby the cumulative cost of restoring and/or repairing the structure to its before damaged condition would equal or exceed fifty (50) percent of the market value of the structure before the damage occurred. The reconstruction and repairs are counted cumulatively for one (1) year.

Substantial improvement means any repair, reconstruction, improvement or addition to an existing structure, where the cumulative cost counted for a one-year period equals or exceeds fifty (50) percent of the market value of the structure, either (1) before the improvement or repair is started, or (2) if the structure has been damaged and is being restored, before the damage occurred. For the purposes of this definition, "substantial improvement" is considered to occur when the first alteration of any wall, ceiling, floor. or other structural part of the building commences, whether or not that alteration affects the external dimensions of the structure. The term does not, however, include either (1) any project for improvement of a structure to comply with existing state or local health, sanitary, or safety code specifications which are solely necessary to assure safe living conditions, or (2) any alteration to a historic structure as defined in section 27-103 when such structure is judged by the chief building official to be safe and in the public interest of health, safety and welfare.

Substantially improved existing manufactured home parks are where the repair, reconstruction, rehabilitation or improvement of the streets, utilities and pads equals or exceeds fifty (50)

percent of the value of the streets, utilities and pads before the repair, reconstruction or improvement commenced. The reconstruction and repairs are counted cumulatively for one (1) year.

Variance is a grant of relief to a person from the requirements of this division which permits construction in a manner otherwise prohibited by this division where specific enforcement would result in unnecessary hardship.

Violation means the failure of a structure or other development to be fully compliant with these regulations.
(Ord. No. 2008-58, § 2, 4-8-08; Ord. No. 2014-123, §§ 1—4, 9-9-14; Ord. No. 2018-131, § 1, 10-9-18; Ord. No. 2019-095, § 1, 10-8-19; Ord. No. 2020-147, § 1, 10-27-20; Ord. No. 2023-071, § 1, 4-11-23; Ord. No. 2024-097, § 1, 7-16-24)

Sec. 27-104. Lands to which division applies.

This division shall apply to all areas of special flood hazard within the jurisdiction of the city.
(Ord. No. 2008-58, § 2, 4-8-08)

Sec. 27-105. Establishment of areas of special flood hazard.

Areas of special flood hazard in the city are identified in and established by the Federal Emergency Management Agency (FEMA) in its Flood Insurance Studies, Berkeley County study dated December 7, 2018 and Charleston County study dated January 29, 2021, with accompanying maps and other supporting data that are hereby adopted by reference and declared to be a part of this article. Upon annexation, any special flood hazard areas identified by FEMA in its Flood Insurance Study for the unincorporated areas of Berkeley County and Charleston County, with accompanying maps and other data, are adopted by reference and declared part of this article.
(Ord. No. 2008-58, § 2, 4-8-08; Ord. No. 2018-131, § 2, 10-9-18; Ord. No. 2020-140, § 1, 10-13-20)

Sec. 27-106. Compliance.

No structure or land shall hereafter be located, extended, converted, or structurally altered without full compliance with the terms of this division and other applicable regulations.
(Ord. No. 2008-58, § 2, 4-8-08)

Sec. 27-107. Abrogation and greater restrictions.

This division is not intended to repeal, abrogate or impair any existing easements, covenants or deed restrictions, except as specifically stated. In the event this division and another ordinance of the city should conflict or overlay, whichever ordinance imposes the more stringent restrictions shall prevail.
(Ord. No. 2008-58, § 2, 4-8-08)

Sec. 27-108. Interpretation.

In the interpretation and application of this division all provisions shall be:

(1) Considered as minimum requirements;

(2) Liberally construed in favor of the governing body; and

(3) Deemed neither to limit nor repeal any other powers granted under state statutes.

(Ord. No. 2008-58, § 2, 4-8-08)

Sec. 27-109. Warning and disclaimer of liability.

The degree of flooding protection required by this division is considered reasonable for regulatory purposes and is based on scientific and engineering consideration. Larger floods can and will occur on rare occasions. Flood heights may be increased by manmade or natural causes. This division does not imply that land outside the areas of special flood hazard or uses permitted within such areas will be free from flooding or flood damages. Nothing contained in this division shall create, or be deemed to create, any liability on the part of the city or by any officer or employee thereof for any flood damages that result from reliance on this division or any administrative decision lawfully made thereunder.
(Ord. No. 2008-58, § 2, 4-8-08)

Sec. 27-110. Annexations.

Should further areas be annexed to the city, elevations existing as per the latest editions of the county FIRM maps, shall continue in force and effect at the time of such annexation.
(Ord. No. 2008-58, § 2, 4-8-08)

Sec. 27-111. Penalties.

Violation of the provisions of this division or failure comply with any of its requirements, including violation of conditions and safeguards established in connection with grants of variance or special exceptions, shall constitute a misdemeanor. Any person who violates this division or fails to comply with any of its requirements shall, upon conviction thereof, be subject to punishment as provided in section 1-16 of this Code, and in addition shall pay all costs and expenses involved in the case. Nothing herein contained shall prevent the city from taking such other lawful action as is necessary to prevent or remedy any
(Ord. No. 2008-58, § 2, 4-8-08)

Sec. 27-112. Floodplain manager and chief building official to administer division.

The city's floodplain manager and chief building official, or their duly designated agents, are hereby appointed to administer and implement the provisions of this division.
(Ord. No. 2008-58, § 2, 4-8-08; Ord. No. 2023-071, § 2, 4-11-23)

Sec. 27-113. Same—Duties and responsibilities.

Duties of the chief building official or his designated agent shall include, but not limited to:

(1) Reviewing all subdivision and development applications to assure that the requirements of this division have been satisfied;

(2) Advising applicant that additional federal, state or local permits may be required, and if specific federal, state or

local permits are known, requiring that copies of such permits be provided and maintained on file with the subdivision or development application;

(3) Notifying adjacent communities and all appropriate federal, state and local government agencies, including the S.C. Water Resources Commission, prior to any alteration or relocation of a watercourse, and submitting evidence of such notification to the Federal Emergency Management Agency;

(4) Assuring that maintenance is provided within the altered or relocation portion of such watercourse so that the flood-carrying capacity is not diminished;

(5) In coastal high hazard areas obtaining certification from a registered professional engineer or architect that the structure is securely anchored to adequately anchored pilings or columns in order to withstand velocity waters and hurricane wave wash;

(6) In coastal high hazard areas, reviewing plans for adequacy of breakaway walls in accordance with section 27-117(6)h. of this division;

(7) When flood-proofing is utilized for a particular structure, obtaining certification from a registered professional engineer or architect that the structure has been flood-proofed in accordance with section 27-117 of this division;

(8) Where interpretation is needed as to the exact location of boundaries of the areas of special flood hazard (for example, where there appears to be a conflict between a mapped boundary and actual field conditions) making the necessary interpretation. The person contesting the location of the boundary shall be given a reasonable opportunity to appeal the interpretation as provided in this division;

(9) When base flood elevation data has not been provided in accordance with section 27-105 of this division, obtaining, reviewing and reasonably utilizing any base flood

elevation data available from a federal, state or other source, in order to administer the provisions of Division 3 of this article;

(10) Assuring that all records pertaining to the provisions of the ordinance from which this division derives are maintained by the city in the appropriate offices, and be open for public inspection.

(Ord. No. 2008-58, § 2, 4-8-08)

Sec. 27-114. Subdivision and development procedures.

Application for a subdivision or development shall be made to the city prior to any development activities. Application shall include, but not be limited to, the following plans in duplicate drawn to scale showing the nature, locations, dimensions, and elevations of the area in question; existing or proposed structures, fill or storage of materials; drainage facilities, and the location of the foregoing. Specifically, the following information is required:

(1) Elevation in relation to mean sea level of the proposed lowest floor; including basement, or the applicable structural members of all structures;

(2) Elevation in relation to mean sea level to which any non-residential structure will be flood-proofed;

(3) A certificate from a registered professional engineer or architect that the non-residential flood-proofed structure meets the flood-proofed criteria in section 27-117(2) of this division;

(4) A description of the extent to which any watercourse will be altered or relocated as a result of proposed development;

(5) A floor elevation or flood-proofing certification after the lowest floor is completed, or in instances where the structure is subject to the regulations applicable to coastal high hazard areas, after placement of the horizontal structural members of the lowest floor. Within twenty-one (21) calendar days the establishment of the lowest floor elevation, or flood-proofing by whatever construction means, or upon placement of the horizontal

structural members of the lowest floor, whichever is applicable, it shall be the duty of the applicant to submit to the city a certification of the elevation of the lowest floor, flood-proofed elevation, or the elevation of the lowest portion of the horizontal structural members of the lowest floor, whichever is applicable, as built, in relation to mean sea level. Such certification shall be prepared by or under the direct supervision of a registered land surveyor or professional engineer and certified by same. When flood-proofing is utilized for a particular building, such certification shall be prepared by or under the direct supervision of a professional engineer or architect and certified by same. Any work done within the twenty-one-day calendar period and prior to submission of the certification shall be at the applicant's risk. The city shall review the floor elevation survey data submitted. Deficiencies detected by such review shall be corrected by the applicant immediately and prior to further progressive work being permitted to proceed. Failure to submit the survey or failure to make such corrections required hereby, shall be cause to issue a stop-work order for the project.

(Ord. No. 2008-58, § 2, 4-8-08)

Sec. 27-115. Variance procedures.

(a) The building board of adjustments and appeals as established by the city council shall hear and decide appeals and requests for variances from the requirements of this division.

(b) The building board of adjustments and appeals shall hear and decide appeals when it is alleged there is an error in any requirement, decision, or determination made by the city in the enforcement or administration of this division; provided, however, that, the person aggrieved requests a hearing before the building board of adjustment and appeals within ten (10) days of the determination made by the city from which appeal is sought.

(c) Any person aggrieved by the decision of the building board of adjustment and appeals may appeal such decision to the appropriate court.

(d) Variances may be issued for the repair or rehabilitation of historic structures (see definition) upon a determination the proposed repair or rehabilitation will not preclude the structure's continued designation as a historic structure character and design of the structure.

(e) In passing upon applications for variances, the building board of adjustments and appeals shall consider all technical evaluations, all relevant factors, all standards specified in other sections of this division, and:

(1) The danger that materials may be swept onto other lands to the injury of others;

(2) The danger of life and property due to flooding or erosion damage;

(3) The susceptibility of the proposed facility and its contents to flood damage and the effect of such damage on the individual owner;

(4) The importance of the services provided by the proposed facility to the community;

(5) The necessity to the facility of a waterfront location, where applicable;

(6) The availability of alternative locations, not subject to flooding or erosion damage, for the proposed use;

(7) The compatibility of the proposed use with existing and anticipated development;

(8) The relationship of the proposed use to the comprehensive plan and flood plain management program for that area;

(9) The safety of access to the property in times of flood for ordinary and emergency vehicles;

(10) The expected heights, velocity, duration, rate of rise and sediment transport of the flood waters and the effects of wave action, if applicable, expected at the site; and

(11) The costs of providing governmental services during and after flood conditions including maintenance and repair of public utilities and facilities such as sewer, gas, electrical and water systems, and street and bridges.

(f) Upon consideration of the factors listed above and the purposes of this division, the building board of adjustments and appeals may grant such variances and attach such conditions to the granting of variances as it deems necessary to further the purposes of this division.

(g) Variances shall not be issued within any designated floodway if any increase in flood levels during the base flood discharge would result.

(h) Conditions for variances are as follows:

(1) Variances shall only be issued upon determination that the variance is the minimum necessary considering the flood hazard, to afford relief; and in the instance of a historical building, a determination that the variance is the minimum necessary so as not to destroy the historic character and design of the building; and

(2) Variances shall only be issued upon:

a. A showing of good and sufficient cause;

b. A determination that failure to grant the variance would result in exceptional hardship to the applicant; and

c. A determination that the granting of a variance will not result in increased flood heights, additional threats to public safety, extraordinary public expense, create nuisance, cause fraud on or victimization of the public, or conflict with existing local laws or ordinances.

(i) Any applicant to whom a variance is granted shall be given written notice specifying the difference between the base flood elevation and the elevation to which the building is to be built and stating that the cost of flood insurance will be commensurate with the increased risk resulting from the reduced lowest floor elevation.

(j) The city shall maintain the records of all appeal actions and report any variances to the Federal Emergency Management Agency upon request.

Sec. 27-116. General standards.

(a) In all areas of special flood hazard, the following provisions are required:

(1) All new construction and substantial improvements shall be anchored to prevent floatation, collapse or lateral movement of the structure;

(2) All new construction and substantial improvements shall be constructed with materials and utility equipment resistant to flood damage; be constructed by methods and practices that minimize flood damages; and be constructed with electrical, heating, ventilation, plumbing and air conditioning equipment (including ductwork), and other service facilities that are designed and/or located so as to prevent water from entering or accumulating within the components during conditions of the base flood plus applicable freeboard as set forth in section 27-117(1) and (2).

(3) All new construction or substantial improvements shall be constructed by methods and practices that minimize flood damage;

(4) All new and replacement water supply systems shall be designed to minimize or eliminate infiltration of flood waters into the system;

(5) New and replacement sanitary systems shall be designed to minimize or eliminate infiltration of flood waters into the systems and discharges from the systems into flood waters;

(6) On-site disposal systems shall be located and constructed to avoid impairment to them or contamination from them during flooding;

(7) Any alteration, repair, reconstruction or improvements to a building which is not in compliance, shall be undertaken only if said non-conformity is not furthered, extended, or replaced.

(8) All permit applications shall be reviewed to determine whether proposed building sites will be reasonably safe from flooding.

(b) Any alteration, repair, reconstruction, or improvements to a structure which is in compliance with the provisions of this ordinance shall meet the requirements of "new construction" as contained in this division.

(c) In order to address increasing flood levels, flood hazards, and the associated damage caused by the importation of fill, the following shall apply within the city's one-hundred-year regulatory floodplain:

(1) Beginning January 1, 2024 (the "effective date"), the permitting of certain foundation types shall be prohibited for all new foundations for single-family dwellings, including attached single-family dwellings.

(2) The most current version of Appendix B to the Federal Emergency Management Agency's National Flood Insurance Program (NFIP) Flood Insurance Manual dated October 2022 (the "appendix") is hereby incorporated by reference and shall govern acceptable foundation types, as may be supplemented and amended by the city's stormwater design standards manual.

1. The foundations depicted in Diagrams 1A, 1B, 2A, 2B, and 3 of the appendix are prohibited for detached single-family dwellings.

2. The foundations depicted in Diagrams 1A, 2A, 2B, and 3 of the appendix are prohibited for attached single-family dwellings.

(3) The city's floodplain manager or his/her duly authorized agent shall review elevation certificates to ensure the proper type of foundation has been used pursuant to this section.

(Ord. No. 2008-58, § 2, 4-8-08; Ord. No. 2018-131, § 3, 10-9-18; Ord. No. 2023-071, § 3, 4-11-23; Ord. No. 2024-097, § 2, 7-16-24)

Sec. 27-117. Specific standards.

In all areas of special flood hazard where base flood elevation data has been provided, as set forth in section 27-105 or section 27-113(9), the following provisions are required:

(1) *Residential construction.* New construction shall have the lowest floor, including basement, or the applicable structural member elevated at least two (2) feet above the level of base flood elevation prescribed for that zone. Substantial improvement of any residential structure shall have the lowest floor, including basement, or the applicable structural member elevated at least one (1) foot above the level of the base flood elevation prescribed for that zone.

(2) *Non-residential construction.* New construction or substantial improvement of any commercial, industrial or other non-residential structure on or after April 9, 1971 shall either have the lowest floor, including basement, or the applicable structural member elevated at least two (2) feet above the level of the base flood elevation prescribed for that zone or, together with attendant utility and sanitary facilities be flood-proofed in accordance with the FEMA publication "Floodproofing Non-Residential Structures" (2013), so that all areas below the required elevation are watertight and with walls substantially impermeable to the passage of water and with structural components having the capability of resisting hydrostatic and hydrodynamic loads and effects of buoyancy. A registered professional engineer or architect shall certify that the standards of this subparagraph (2) are satisfied. Such certification shall be provided to the city as set forth in section 27-114(3) of this division.

(3) *Elevated buildings.* New construction or substantial improvements of elevated buildings that include fully enclosed areas formed by foundation and other exterior walls below the base flood elevation shall be designed to

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preclude finished living space and designed to allow for the entry and exit of flood waters to automatically equalize hydrostatic flood forces on exterior walls.

a. Designs for complying with this requirement must either be certified by a professional engineer or architect or meet the following minimum criteria:

   i. Provide a minimum of two (2) openings having a total net area of not less than one (1) square inch for every square foot of enclosed area subject to flooding;

   ii. The bottom of all openings shall be no higher than one (1) foot above grade; and

   iii. Openings may be equipped with screens, louvers, valves or other coverings or devices provided they permit the automatic flow of floodwater in both directions.

b. Access to the enclosed area shall be the minimum necessary to allow for parking of vehicles (garage door) or limited storage of maintenance equipment used in connection with the premises (standard exterior door) or entry to the living area (stairway or elevator); and

c. The interior portion of such enclosed area shall not be partitioned or finished into separate rooms.

(4) *Manufactured homes.* Manufactured homes are subject to the following:

a. No manufactured home shall be placed in a floodway or coastal high hazard area, except in an existing manufactured park or existing manufactured home subdivision. Manufactured homes placed in existing manufactured home subdivision in floodway or coastal high hazard areas shall be anchored as specified in subsection 27-117(4)b. and meet the elevation requirements in subsection 27-117(4)d.(i).

b. All manufactured homes shall be anchored to resist floatation, collapse, or lateral movement by providing over-the-top and frame ties to ground anchors. Specific requirements shall be that:

i. Over-the-top ties shall be provided at each end of the manufactured home, with one (1) additional tie per side at an intermediate location on manufactured homes of less fifty (50) feet and one (1) additional tie per side for manufactured homes of fifty (50) feet or more;

ii. Frame ties shall be provided at each corner of the home with four (4) additional ties per side at intermediate points for manufactured home less than fifty (50) feet long and one (1) additional tie for manufactured homes of fifty (50) feet or longer;

iii. All components of the anchoring system shall be capable of carrying a force of four thousand eight hundred (4,800) pounds; and

iv. Any additions to the manufactured home shall be similarly anchored.

c. For new manufactured home parks and subdivisions; for expansions to existing manufactured home parks and subdivisions; for existing parks and subdivisions where the repair, reconstruction or improvement of the streets, utilities and pads equal or exceed fifty (50) percent of value of the streets, utilities and pads before the repair, reconstruction or improvement has commenced; and, for manufactured homes not placed in a manufactured park or subdivision it is required that:

i. Stands or lots be elevated on compacted fill or on pilings so that the lowest floor of new construction of the manufactured home will be at least two (2) feet above the base flood level;

ii. Adequate surface drainage and access for a hauler be provided; and

iii. In the instance of elevation on pilings:

(i) Lots be large enough to permit steps;

(ii) Piling foundations be placed in stable soil no more than ten (10) feet apart; and

(iii) Reinforcement be provided for pilings more than six (6) feet above the ground level.

d. All manufactured homes placed or substantially improved in an existing manufactured home park or subdivision must be elevated so that:

i. The lowest floor of new construction of the manufactured home is elevated to at least two (2) feet above the level of the base flood elevation;

ii. The manufactured home must be securely anchored to the adequately anchored foundation system to resist floatation, collapse and lateral movement.

iii. In an existing manufactured home park or subdivision on which a manufactured home has incurred "substantial damage" as the result of a flood, any manufactured home placed or substantially improved must meet the standards of subsection 27-117(4)d.(i) and (ii) above.

(5) *Floodways.* Located within the areas of special flood hazard established in section 27-105 are areas designated as floodways. Since the floodway is an extremely hazardous area due to the velocity of flood waters which carry debris, potential projectiles, and has erosion potential, the following provisions shall apply:

a. No encroachments, including fill, or new construction or substantial improvements or any other developments shall be had until and unless certification (with supporting technical data) by a registered

professional engineer is provided to the city engineer or his designated agent demonstrating that such activity shall not result in any increase in flood levels during occurrence of the base flood discharge;

b. In the event the provisions of subparagraph (4)a. of this section are satisfied, all new construction and substantial improvements shall comply with all applicable flood hazard reduction provisions of this division (Division 3).

c. There shall be no placement of any manufactured homes, except in an existing manufactured park or existing manufactured home subdivision.

(6) *High hazard areas—V or VE zones.* Specific standards high hazard areas V or VE zones located within the areas of special flood hazard are areas designated as coastal high hazard areas. These areas have special flood hazards associated with wave wash, and therefore, the following provisions shall apply:

a. All new construction within zones V and VE on the Charleston FIRM shall be located landward of the reach of mean high tide.

b. Provide that all new construction and substantial improvements in zones V and VE, if base flood elevation data is available on the Charleston FIRM, are elevated on pilings and columns so that:

i. The bottom of the lowest horizontal structural member of the lowest floor (excluding the pilings or columns) of new construction is elevated to or above two (2) feet above the base flood level; and

ii. The pile or column foundation and structure attached thereto is anchored to resist flotation, collapse and lateral movement due to the effects of wind and water loads acting simultaneously on all building components. Water loading values used shall be those associated with the base flood. Wind loading values used shall be those required by the

International Building Code or International Residential Code as adopted and periodically amended by the South Carolina Department of Labor, Licensing and Regulation. A registered professional engineer or architect licensed in South Carolina shall develop the structural design, specifications and plans for construction, and shall certify that the design and methods of construction to be used are in accordance with accepted standards of practice for meeting the provisions of subsections (6)b.i. and ii. of section 27-117 of the Code of Ordinances, of the City of Charleston, South Carolina.

c. New construction and substantial improvements within zones V and VE on the Charleston FIRM have the space below the lowest floor either free of obstruction or constructed with non-supporting breakaway walls, open wood latticework, or insect screening intended to collapse under wind and water loads without causing collapse, displacement, or other structural damage to the elevated portion of the building or supporting foundation system. For the purposes of this section, a breakaway wall shall have a design safe loading resistance of not less than ten and no more than twenty (20) pounds per square foot. Use of breakaway walls which exceed a design safe loading resistance of twenty (20) pounds per square foot (either by design or when so required by local or state codes) may be permitted only if a registered professional engineer or architect licensed in South Carolina certifies that the designs proposed meet the following conditions:

   i. Breakaway wall collapse shall result from a water load less than that which would occur during the base flood; and

   ii. The elevated portion of the building and supporting foundations system shall not be subject

to collapse, displacement, or other structural damage due to the effects of wind and water loads acting simultaneously on all building components (structural and nonstructural). Water loading values used shall be those associated with the base flood. Wind loading values used shall be those required by applicable state or local building standards. Such enclosed space shall be useable solely for parking of vehicles, building access, or storage.

d. There shall be no fill used as structural support. Non-compacted fill may be used around the perimeter of a building for landscaping/aesthetic purposes provided the fill will wash out from storm surge, thereby rendering the building free of obstruction prior to generating excessive loading forces, ramping effects, or wave deflection. The building official shall approve design plans for landscaping/aesthetic fill only after the applicant has provided an analysis by an engineer, architect, and/or soil scientist licensed in South Carolina which demonstrates that the following factors have been fully considered:

   i. Particle composition of fill material does not have a tendency for excessive natural compaction;

   ii. Volume and distribution of fill will not cause wave deflection to adjacent properties; and

   iii. Slope of fill will not cause wave run-up or ramping.

e. Manmade alteration of sand dunes and mangrove stands within zones VE and V on the Charleston FIRM which would increase potential flood damage shall be prohibited.

f. The placement of new or replacement manufactured homes is prohibited.

g. A modular building (manufactured) may be installed in a V or VE zone, providing the requirements in

this subsection are met, and the building meets the standards of the South Carolina Modular Building Construction Act (S.C. Code 1976, § 23-43-10 et seq.) as may be amended from time to time, which is incorporated herein by reference.

h. Preconstruction and as-built design and breakaway wall certifications, where applicable, shall be provided by registered professional engineers and/or architects licensed in South Carolina for new and substantially improved structures in V or VE flood zones on the Charleston FIRM. These certificates shall also be provided for all lateral additions to structures in V or VE flood zones.

i. Enclosed areas below the lowest floor shall be the minimum necessary to allow for parking of vehicles, limited storage, and access to the primary occupancy (stairways and/or elevator).

j. Appurtenant features, defined as swimming pools, decks, gazebos, fences, and other features as determined by the building official as potentially causing an obstruction in the coastal high hazard area, must comply with the Federal Emergency Management Agency (FEMA) Technical Bulletin 5-93, Free of Obstruction Requirements, or any revisions thereto, incorporated herein by reference.

(7) *Recreational vehicles.* All recreational vehicles placed on sites must either:

a. Be fully licensed and ready for highway use; or

b. The recreational vehicle must meet all the requirements for new construction, including anchoring and elevation requirements of subsection 27-117(4), Manufactured homes. A recreational vehicle is ready for highway use if it is on its wheels or jacking system, is attached to the site only by quick disconnect type utilities and security devices and has no permanently attached structures.

(Ord. No. 2008-58, § 2, 4-8-08; Ord. No. 2014-123, §§ 5, 6, 9-9-14; Ord. No. 2020-032, §§ 1—5, 3-10-20; Ord. No. 2021-008, § 1, 1-26-21)

Sec. 27-118. Standards for streams without established base flood elevations and/or floodways.

Located within the areas of special flood hazard established in section 21-117 of this division, where small streams exist but where no base flood data has been provided or where no floodways have been provided, the following provisions shall apply:

(1) No encroachments, including fill materials or structures shall be located within a distance of the top of the stream bank equal to one (1) times the width of the stream at the top bank or twenty (20) feet on each side from top of bank, whichever is greater; unless certification by a registered professional engineer is provided demonstrating that such encroachments shall not result in any increase in flood level during the occurrence of the base flood discharge.

(2) New construction for substantial improvements of structures shall be elevated or flood-proofed in accordance with elevations established in accordance with subsection 27-113(9) of this division.

(3) In the event that the city has been unable to determine flood elevation data to fulfill subsection 27-118(2), a lowest floor elevation requirement of five (5) feet above highest adjacent grade must be required.

(Ord. No. 2008-58, § 2, 4-8-08)

Sec. 27-119. Standards for subdivision proposals.

(a) All subdivision proposals shall be consistent with the need to minimize flood damage, shall be reviewed to determine whether proposed building sites will be reasonably safe from flooding, and are subject to all applicable standards in these regulations.

(b) All subdivision proposals shall have public utilities and facilities such as sewer, gas, electrical and water systems located and construction to minimize flood damage.

(c) All subdivision proposals shall have all street and storm drainage designed and provided in accordance with standards adopted by the city so as to minimize exposure and damage thereto by flooding.

(d) Base flood elevation data shall be provided for subdivision proposals and other proposed developments which are greater than the lesser of fifty (50) lots or five (5) acres.
(Ord. No. 2008-58, § 2, 4-8-08; Ord. No. 2018-131, § 4, 10-9-18)

Sec. 27-120. Standards for areas of shallow flooding (AO zone).

Located within the areas of special flood hazard established in section 27-105 of this division are areas designed as areas of shallow flooding. These areas have special flood hazards associated with base flood depths of one (1) to three (3) feet where a clearly defined channel does not exist and where the path of flooding is unpredictable and indeterminate; therefore, the following provisions shall apply:

(1) All new construction and substantial improvements of residential shall have the lowest floor, including basement, elevated to one (1) foot above the depth number specified on the flood insurance rate map, in feet, the highest adjacent grade. If no depth number is specified, the lowest floor, including basement, shall be elevated, at least three (3) feet above the highest adjacent grade.

(2) All new construction and substantial improvements of non-residential structures shall:

   a. Have the lowest floor, including basement, elevated to one (1) foot above the depth number specified on the flood insurance rate map, in feet, above the highest adjacent grade. If no depth number is specified, the lowest floor, including basement, shall be elevated at least three (3) feet above the highest adjacent grade; or

   b. Together with attendant utility and sanitary facilities be completely flood-proofed to or above that level in accordance with the FEMA publication

"Flood-Proofing Non-Residential Structures" (1987), so that any space below that level is watertight with walls substantially impermeable to the passage of water and with structural components having the capability of resisting hydrostatic and hydrodynamic loads and effects of buoyancy. A registered professional engineer or architect shall certify that the standards of this subsection are satisfied. Such certification shall be provided to the city as set forth in section 27-114(3) of this division.

(3) All structures on slopes must have drainage paths around them to guide water away from the structures.

(Ord. No. 2008-58, § 2, 4-8-08; Ord. No. 2014-123, § 7, 9-9-14; Ord. No. 2018-131, § 5, 10-9-18)

Sec. 27-121. Standards for streams with established base flood elevations but without floodways.

Along rivers and streams where base flood elevation (BFE) data are provided but no floodway is identified for a special flood hazard area on the FIRM or in the FIS, no encroachments including fill, new construction, substantial improvements, or other development shall be permitted unless certification with supporting technical data by a registered professional engineer is provided demonstrating that the cumulative effect of the proposed development, when combined with all other existing and anticipated development, will not increase the water surface elevation of the base flood more than one foot at any point within the city.

(Ord. No. 2018-131, § 6, 10-9-18)

Secs. 27-122—27-131. Reserved.

ARTICLE III. STORMWATER MANAGEMENT UTILITY*

Sec. 27-132. Findings.

City council hereby makes the following findings of fact:

(a) The management of stormwater runoff and sediment is necessary to reduce pollution, siltation, sedimentation, local flooding and stream channel erosion, all of which impact adversely on land and water resources and the health, safety, property and welfare of the residents of the city;

(b) The city maintains a system of stormwater management facilities, including but not limited to, inlets, conduits, manholes, channels, ditches, drainage easements, retention and detention basins, infiltration facilities, and other components as well as natural waterways;

(c) The stormwater management facilities and components of the city need to be regularly rehabilitated, upgraded or expanded, and additional stormwater management facilities and measures need to be installed throughout the city;

(d) The city needs to upgrade its capability to maintain existing and future stormwater management facilities and measures;

(e) Every parcel of improved real property in the city both uses or benefits from the stormwater management system; and the improvement of existing facilities and construction of additional facilities in the system will directly benefit the owners of all improved real estate;

***Editor's note—**Ord. No. 2025-083, § 9, adopted June 17, 2025, provides that all provisions set forth in said ordinance related to the administration, imposition, and collection of fees shall take effect and become operative and enforceable on January 1, 2026. Notwithstanding the foregoing, the fees for the 2026 billing period shall be included on the county property tax bills issued in calendar year 2025 and received prior to January 1, 2026.

Previously, Ord. No. 2008-58, § 3, adopted April 8, 2008, renumbered former Art. III, §§ 27-109—27-126, as Art. III, §§ 27-132—27-149, as set out herein.

(f) Continued growth in the city will contribute to the need for improvements to and maintenance of the stormwater management system;

(g) The extent of use of the stormwater management system by each parcel of improved real property is dependent on factors that influence runoff, such as land use, intensity of development, amount of impervious surface, and location in a particular watershed or basin;

(h) Owners of improved real property and users should finance the stormwater management system to the extent they contribute to the need for the system, and derive special benefits therefrom, and charges therefore should bear a substantial relationship to the cost of the service;

(i) It is in the best interests of the citizens of this city and, most specifically, the owners of improved property, that a stormwater management utility and stormwater management utility fee system be established by ordinance and implemented as part of the city's utility enterprise system;

(j) Pursuant to S.C. Code Ann. § 12-37-250 (1976) persons sixty-five (65) years of age or older and certain persons who are totally and permanently disabled, or are legally blind are entitled to a reduction of ad valorem taxes upon application for a homestead exemption;

(k) City council finds that it is the public policy of the State of South Carolina that consideration be accorded those persons who are sixty-five (65) years of age or older and certain persons who are totally and permanently disabled or are legally blind in the payment of monies for the operation of local governments and their agencies, in recognition of the fact such persons are often on fixed incomes and least able to afford such payments; and

(l) City council is desirous of exempting from the payment of stormwater utility fees all properties that are designated for homestead exemptions on the Charleston County

and Berkeley County tax records, and city council finds that an exemption from stormwater utility fees is in accordance with that public policy.

(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2008-58, § 3, 4-8-08)

Sec. 27-133. Article designation and authority.

This article may be cited as the Stormwater Management Utility Ordinance and is adopted pursuant to S.C. Code Ann. § 48-14-10, et seq., S.C. Code Ann. § 5-7-30 and S.C. Land Resources Conservation Commission Regulations 72-300 to 72-316.

(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2008-58, § 3, 4-8-08)

Sec. 27-134. Definitions.

Unless the context specifically indicates otherwise, the meanings of words and terms used in this article shall be as set forth in S.C. Land Resources Conservation Commission, Regulation 72-301, (Supp. 1992), mutatis mutandis.

Base rate shall mean the annual stormwater management utility fee charged per equivalent residential unit at an annual rate of one hundred thirty-two dollars ($132.00).

Condominium property shall mean the developed property that serves the primary purpose of providing permanent condominium units and their collectively owned common elements.

Condominium units shall mean an individually owned parcel in a multi-unit developed property where unit owners collectively own common elements such as parking, lobby grounds, and similar features.

Developed property shall mean real property, which has been altered from its natural state by the addition of any improvements such as buildings, structures, or other impervious surface area.

Dwelling unit shall mean a single unit providing complete, independent living facilities for one (1) family, including permanent provisions for living, sleeping, eating, cooking and sanitation.

Equivalent residential unit shall mean the total impervious area of a typical single-family residential property; and is defined as the median impervious area of a representative sample of all residential properties in the flat rate single-family category. The equivalent residential unit is two thousand two hundred (2,200) square feet.

Fee shall mean the annual amount charged to a property owner for the services provided by the stormwater management utility.

Impervious surface area shall mean a surface which is compacted or covered with material that is resistant to infiltration by water, including, but not limited to, most conventional surfaced streets, roofs, sidewalks, parking lots, and other similar structures.

Non-residential property shall mean developed property that is not single-family residential property or condominium property. Such property shall include, but not be limited to, multi-family residential properties (other than condominium units), commercial properties, industrial properties, parking lots, recreational, institutional and cultural facilities, hotels, offices, and churches.

Private stormwater management facilities are those facilities that are not dedicated for public conveyance of stormwater, nor have they been accepted for maintenance by the city as part of the public stormwater system.

Public stormwater management system includes stormwater management facilities that have been dedicated and accepted for public use and maintenance by the city.

Revenues shall mean all fees, assessments or other income received by the stormwater management utility, including but not limited to, amounts received from the investment or deposit of monies in any fund or account and all amounts received as gifts, donations and the proceeds from the sale of bonds to finance the stormwater management program.

Self-contained stormwater management facilities shall mean stormwater management facilities that: (1) accept stormwater drainage in such a way as to have no impact on other city owned

or city maintained drainage facilities or drainage activities of the city, as determined by the director of stormwater management or their designee; and (2) are not connected on the inlet or outlet side of any city-owned or city-maintained stormwater management facility.

Single-family residential property shall mean property designated as a single parcel on the Berkeley or Charleston County tax maps, containing only one (1) principal dwelling unit and that does not share a ceiling or floor with another dwelling unit. The presence of an accessory dwelling unit does not disqualify a property from this classification.

Stormwater management facilities may include ditches, swales, channels, canals, ponds, lakes, pipes, culverts, grates, weirs, inlets, outlets and other structures that exist for the collection, storage, conveyance and treatment of stormwater runoff.

Undeveloped property, for purposes of this article, shall mean any residential or non-residential property that has less than ten (10) percent of the equivalent residential unit of impervious surface area or any property operating solely as a cemetery without a colocated additional use.

Utility customer shall mean the person or entity that is the property owner, and such person or entity shall receive the annual billing for the stormwater management utility fee.
(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2008-58, § 3, 4-8-08; Ord. No. 2015-187, § 1, 12-15-15; Ord. No. 2018-150, § 3, 11-27-18; Ord. No. 2025-083, § 1, 6-17-25)

Sec. 27-135. Establishment of stormwater management utility; administration; duties and powers.

City council hereby establishes a stormwater management utility (utility) to carry out the purposes, functions and responsibilities herein set forth. The governing body of the utility shall be city council. The mayor shall administer the utility under the department of stormwater management. The

utility shall have the powers and duties hereinafter set out, which powers and duties are not necessarily exclusive to the utility, to wit:

(a) Stormwater management planting and preparation of comprehensive watershed master plans for stormwater management;

(b) Regular inspections of public and private stormwater management facilities and measures and the construction thereof;

(c) Maintenance and improvement of stormwater management facilities that have been accepted by the city for that purpose;

(d) Plan review and inspection of sediment control and stormwater management plans, measures and practices;

(e) Retro-fitting designated watersheds to reduce existing flooding problems to improve water quality;

(f) Acquisition of interests in land, including easements;

(g) Design and construction of stormwater management facilities and measures and acquisition of equipment;

(h) Water quantity and water quality management, including monitoring surveillance; and

(i) Any and all powers and duties delegated or granted to it as a local government implementing agency under the laws and regulations of the State of South Carolina, and the ordinances of this city.

(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2008-58, § 3, 4-8-08; Ord. No. 2018-150, § 3, 11-27-18)

Sec. 27-136. Jurisdiction.

The boundaries and jurisdiction of the stormwater management utility shall extend to the corporate limits of the city, as they may exist from time to time.

(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2008-58, § 3, 4-8-08; Ord. No. 2025-083, § 2, 6-17-25)

Sec. 27-137. Stormwater utility fees.

City council shall establish by ordinance the amount or amounts and classifications of fees to be implemented to help fund the utility and its programs and projects. In establishing such fees, city council shall consider, among other things, the following criteria:

(a) The fee system shall be reasonable and equitable so that users pay to the extent they contribute to the need for the utility, and the fees shall be apportioned with approximate equality and upon a reasonable basis of equality with due regards for the benefits conferred. City council recognizes that these benefits, while substantial, in many cases cannot be measured directly.

(b) The components of the calculations used to establish fees shall include, but may not be limited to, the following cost factors, which may be associated with the resolution of stormwater problems which the utility shall seek to alleviate:

(1) Stormwater management planning and preparation of comprehensive watershed master plans for stormwater management;

(2) Regular inspections of public and private stormwater management facilities and measures and the construction thereof;

(3) Maintenance and improvement of stormwater management facilities that have been accepted by the city for that purpose;

(4) Plan review and inspection of sediment control and stormwater management plans, measures and practices;

(5) Retro-fitting watersheds to reduce existing flooding problems or to improve water quality;

(6) Acquisition of interests in land, including easements;

(7) Design and construction of stormwater management facilities and measures and acquisitions of equipment;

(8) Administration and enforcement;

(9) Water quantity and water quality management, including monitoring surveillance; and

(10) Debt service and financing costs.

(c) The components of the calculations used to establish fees shall be based on an "equivalent residential unit" (ERU), to be determined and approved by city council with reasonable general adjustments being made for, but not limited to, the following factors:

(1) Commercial and land uses other than single family residential;

(2) Open and/forested land;

(3) Lot or tract size;

(4) The total amount of impervious area on each parcel; and

(5) Other generally accepted factors relevant to such calculations based upon the provisions of this article.

(d) The practical difficulties and limitations related to establishing, calculating, and administering such fees.

(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2008-58, § 3, 4-8-08)

Sec. 27-138. Reserved.

Sec. 27-139. Classification of property for purposes of determination of the fee.

For the purposes of determining the fee, all properties in the city are classified as follows:

(a) Single-family residential;

(b) Condominium unit:

(c) Non-residential; or

(d) Undeveloped.

(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2008-58, § 3, 4-8-08; Ord. No. 2025-083, § 3, 6-17-25)

Sec. 27-140. Establishment of fees for all classifications of property.

The fees for each classification of property shall be as follows:

(a) Single-family residential property shall be charged a fee of the base rate times one (1) equivalent residential unit, regardless of the size of the parcel or the improvements. Provided however, upon applications by the owner and verification by the utility, all properties that are designated for homestead exemptions on the tax records for Charleston County and Berkeley County are exempt from the payment of the fee.

(b) Condominium units shall be charged the base rate multiplied by the numerical factor obtained by dividing the total impervious area of the condominium property, as determined by the director of stormwater management or their designee, by one (1) equivalent residential unit (two thousand two hundred (2,200) square feet), divided proportionally among condominium units within the condominium property. The numerical factor will be rounded to the nearest hundredth (0.01) of a unit.

(c) Non-residential property shall be charged the base rate multiplied by the numerical factor obtained by dividing the total impervious area of the property, as determined by the director of stormwater management or their designee, by one (1) equivalent residential unit (two thousand two hundred (2,200) square feet). The numerical factor will be rounded to the nearest hundredth (0.01) of a unit.

(d) Undeveloped property shall be exempt from the fee.

(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2008-58, § 3, 4-8-08; Ord. No. 2018-150, § 3, 11-27-18; Ord. No. 2025-083, § 4, 6-17-25)

Sec. 27-141. Responsibility for fees.

The ultimate responsibility for fees shall be that of the property owner.
(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2008-58, § 3, 4-8-08; Ord. No. 2025-083, § 5, 6-17-25)

Sec. 27-142. Fee adjustments.

After the numbers of ERUs have been calculated based on existing site development and when certain criteria are met non-residential properties may be eligible for adjustments. Retention/detention adjustments are available for properties where private stormwater facilities exist. Self-contained stormwater system adjustments are available for properties that have self-contained stormwater facilities which do not directly discharge to any stormwater conveyance facility maintained by the city. However, no parcel shall be assigned an ERU of less than one (1) per parcel to reflect the costs of maintaining those parcels in the stormwater database, and to reflect the benefit each parcel receives through the incremental improvement of stormwater management throughout the city. It is the stormwater utility customer's responsibility to provide proof that conditions exist that may qualify a property for a particular adjustment.

(a) *Retention/detention adjustments.* The city may allow adjustment of stormwater charges for privately maintained retention and/or detention facilities upon inspection and approval of facilities by the director of stormwater management or his designee. The amount of the adjustment and requirements for receiving and maintaining those adjustments are as follows:

(1) The rate of the adjustment for privately maintained retention/detention stormwater facilities is based on the amount of reduced impact that the privately maintained stormwater facilities achieve. Rates of adjustment are as follows:

a. Where stormwater management facilities are constructed and maintained which reduce the maximum instantaneous rate of discharge from the property from a ten-year, twenty-four-

hour storm event to less than or equal to the predevelopment rate, the utility customer shall receive a reduction of the fee by twenty-five (25) percent.

b. Where stormwater management facilities are constructed and maintained which reduce the maximum instantaneous rate of discharge from the property from a twenty-five-year, 24-hour storm event to less than or equal to the predevelopment rate, the utility customer shall receive a reduction of the fee by twenty-five (25) percent.

c. Where stormwater management facilities are constructed and maintained which reduce the maximum instantaneous rate of discharge from the property from a one hundred-year, 24-hour storm event to less than or equal to the predevelopment rate, the utility customer shall receive a reduction of the fee by twenty-five (25) percent.

(2) A non-residential property with private stormwater retention/detention facilities shall be eligible for an adjustment of fees when the following conditions are met:

a. Private stormwater facilities exist;

b. The utility customer has provided proof of reduced impact by submitting hydraulic/hydrologic calculations and topographic maps signed and sealed by an engineer registered in the State of South Carolina to the director of stormwater management or his designee;

c. The utility customer has provided a copy of a valid NPDES stormwater permit or a statement that no permit is required for the activity on the parcel;

d. The utility customer has entered into a maintenance agreement with the city for continued maintenance of the private stormwater facilities;

e. The proof of reduced impact upon city-owned or maintained stormwater facilities has been approved by the director of stormwater management or his designee; and

f. The owners of the parcel receiving adjustments of the city stormwater charges agrees that, prior to receiving such adjustments, it will provide maintenance on all private drainage structures, consistent with the requirements of the city and the city's maintenance practices for public drainage structures.

(b) *Self-contained stormwater facilities adjustments.* The city may allow adjustment of stormwater charges for self-contained stormwater facilities that reduce the amount of impact on city maintained stormwater facilities upon inspection and approval of facilities by the director of stormwater management or his designee. The amount of the adjustment and requirements for receiving and maintaining those adjustments are as follows:

(1) The rate of the adjustment for self-contained stormwater facilities is based on the amount of reduced impact that the privately maintained stormwater facilities achieve. The city may allow exemption from stormwater charges for any portion of the parcel that can be demonstrated to directly discharge into any drainage conveyance facility not maintained by the city. The adjustment in fee shall be one hundred (100) percent for that portion of the parcel that meets this criteria.

(2) A non-residential property with private stormwater facilities shall be eligible for an adjustment of fees for self-contained stormwater facilities when the following conditions are met:

a. Private stormwater facilities exist;

b. The utility customer has provided to the city information demonstrating its facilities qualify as self-contained facilities, including hydraulic/hydrologic calculations, topographic maps and

other necessary information signed and sealed by an engineer registered in the State of South Carolina.

c. The utility customer has provided a copy of a valid NPDES stormwater permit or a statement that no permit is required for the activity on the parcel;

d. The utility customer has entered into an agreement with the city in which the property owner agrees to provide continued maintenance of the private stormwater facilities;

e. The proof of reduced impact upon city-owned or maintained stormwater facilities has been approved by the director of stormwater management or his designee; and

f. The owners of the parcel of property receiving adjustments of the city stormwater charges agrees that, prior to receiving such adjustments, it will provide maintenance on all private drainage structures, consistent with the requirements of the city and the city's maintenance practices for public drainage structures.

(c) *Combining fee adjustments.* Fee adjustments, as described in subsection (a)(1)a., through (a)(1).c. are cumulative and may be combined. A fee adjustment as described in subsection (b)(1) is not cumulative and may not be combined with the adjustment described in subsection (a) of this section.

(d) *"In-kind" payments allowed:* The city and the utility customer may enter into an agreement in which (1) the utility customer agrees to maintain its private stormwater facilities that receive discharge from city stormwater facilities located on or adjacent to the owner's property, and (2) the city accepts the utility customer's maintenance services "in-kind" in place of payment of city stormwater

utility charges. Valuation of any "in-kind" services provided by the utility customer shall be made based on the cost savings realized by the city.

(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2008-58, § 3, 4-8-08; Ord. No. 2018-150, § 3, 11-27-18; Ord. No. 2025-083, § 6, 6-17-25)

Sec. 27-143. Effective date of adjustments.

Adjustments approved pursuant to section 27-142 to a utility customer's fee on a parcel with private stormwater facilities shall become effective as follows:

(a) The rates of adjustment for new and existing stormwater facilities that meet the criteria of subsection 27-142(a), retention/detention adjustments, shall be effective the first full billing period following the date of ratification for the ordinance from which this article derives or the date that the application is approved which ever is later.

(b) For new stormwater facilities that meet the criteria of subsection 27-142(b), self-contained stormwater facilities adjustments, the adjustment shall be effective the first full billing month after the application is approved by the director of stormwater management or his designee.

(c) For existing stormwater facilities that meet the requirements of subsection 27-142(b), self-contained stormwater facilities adjustments, the effective date of the adjustment shall be February 28, 1995, or the date such conditions came into being, whichever is later; provided that the application is made within the first twelve (12) months after the date of ratification of the ordinance from which this article derives. For applications received after the first twelve (12) months after ratification the ordinance from which this article derives, adjustments shall be effective the first full billing period after the director of stormwater management or his designee approves the application.

(d) Adjustments are transferable and shall continue as long as the conditions and circumstances under which the adjustment was granted are met. Should the utility

customer fail to maintain the private stormwater facility or fail to perform in accordance with the stormwater maintenance agreement, the director of stormwater management or his designee shall immediately revoke the fee adjustment by written notice to the utility customer.

(e) Under no condition shall adjustments exceed the amount of actual fees paid by a customer for a particular parcel.

(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2008-58, § 3, 4-8-08; Ord. No. 2018-150, § 3, 11-27-18)

Sec. 27-144. Notification of determination of impervious area for developed non-residential property.

The director of stormwater management or their designee shall determine the amount of impervious area on each non-residential property. A determination shall be made using aerial photographs and/or field checks where necessary. Upon application, a utility customer shall be provided a written determination of the amount of impervious area for which a fee has been established.

(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2008-58, § 3, 4-8-08; Ord. No. 2018-150, § 3, 11-27-18; Ord. No. 2025-083, § 7, 6-17-25)

Sec. 27-145. Collection of fees.

(a) The director of stormwater management or their designee shall prepare and forward all information necessary to Berkeley County and Charleston County for the purpose of annual billing of fees to be included on the county property tax bills. Fees shall be due and paid no later than the due date set forth on the bill. The fee may be billed separately to utility customers, in cases where the use of the county property tax billing system is deemed inappropriate.

(b) In the event that the fees are not paid when due, penalties and/or late fees shall accrue as per the relevant county property tax billing policy, until such time as the overdue payment and interest are paid.

(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2008-58, § 3, 4-8-08; Ord. No. 2008-131, § 1, 9-23-08; Ord. No. 2018-150, § 3, 11-27-18; Ord. No. 2025-083, § 8, 6-17-25)

Sec. 27-146. Investment and reinvestment of funds and borrowing.

Funds generated for the utility from fees, bond issues, other borrowing, and other sources shall be utilized only for those purposes for which the utility has been established, including but not limited to: planning; acquisition of interests in land including easements; design and construction of facilities; maintenance of the stormwater system; billing and administration; and water quantity and water quality management, including monitoring, surveillance, private maintenance inspection, construction inspection, and other activities which are reasonably required. Such funds shall be invested and reinvested pursuant to the same procedures and practices established by the city for investment and reinvestment of funds. City council may use any form of borrowing authorized by law to fund capital acquisitions or expenditures for the utility.
(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2008-58, § 3, 4-8-08)

Sec. 27-147. Requests for reconsideration.

(a) A utility customer may request a reconsideration of any determination or interpretation by the director of stormwater management or his designee in the operation of the stormwater utility. Such request shall be in writing and filed with the director of stormwater management or his designee within thirty (30) days of receipt of notification of the determination or interpretation.

(b) The director of stormwater management or his designee shall review the application and make a decision on the request within thirty (30) working days.

(c) The request shall be made upon such forms and be accompanied by such information as the director of stormwater management or his designee, by written policy, shall require.
(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2008-58, § 3, 4-8-08; Ord. No. 2018-150, § 3, 11-27-18)

Sec. 27-148. Appeals.

Any person aggrieved by the decision of the director of stormwater management or his designee under section 27-147

shall have the right to appeal to the city's public works and utilities committee by filing with the city's clerk of council a petition in writing setting forth plainly, fully, and distinctly why the denial is contrary to law. The appeal shall be filed within thirty (30) days after the affected party receives actual notice of the decision of the director of stormwater management or his designee. Public works and utilities committee hearings requested pursuant to this section shall be scheduled within thirty (30) days after receipt of a proper request for an appeal unless continued by agreement and decisions shall be rendered within sixty (60) days from the end of the hearing. The public works and utilities committee shall have full authority to affirm, modify, or reverse a decision of the director of stormwater management or his designee. In evaluating the appeal, the public works and utilities committee shall determine whether the decision of the director of stormwater management or his designee was made in compliance with the standards, policies, and criteria of this article. Any person aggrieved by a final determination of the public works and utilities committee shall have the right to file an appeal with the court of common pleas in and for the County of Charleston within thirty (30) days of notice of such determination.

(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2008-58, § 3, 4-8-08; Ord. No. 2018-150, § 3, 11-27-18)

Sec. 27-149. Severability.

It is declared the intent of city council that the sections, subsections, paragraphs, sentences, clauses and phrases of this article are severable; and if any such provision shall be declared unconstitutional or otherwise invalid or unenforceable by a court of competent jurisdiction, it shall not affect the validity or enforceability of any remaining provisions of this article, and it is the intent of city council that such provisions shall continue in full force and affect.

(Ord. No. 2007-158, § 2, 8-21-07; Ord. No. 2008-58, § 3, 4-8-08)

ARTICLE IV. CHURCH CREEK STORMWATER DRAINAGE BASIN AUTHORITY*

Sec. 27-171. Establishment.

There is hereby established an advisory authority for the Church Creek stormwater drainage basin to be known as the "City of Charleston Church Creek Stormwater Drainage Basin Authority."
(Ord. No. 2020-131, § 2, 9-22-20)

Sec. 27-172. Purpose.

The City of Charleston's Church Creek Stormwater Drainage Basin Authority shall have the following roles and responsibilities:

(a) To review, rank, and recommend to the Mayor and City Council Church Creek stormwater drainage basin projects requiring Church Creek stormwater drainage basin TIF funds;

(b) Increase community awareness of past, present, and future Church Creek stormwater drainage basin issues;

(c) Assist City of Charleston staff with implementing flood abatement projects in the Church Creek stormwater drainage basin; and

(d) Make recommendations on city partnerships with private and public organizations to create, support, and encourage community flood abatement programs and activities benefiting the Church Creek stormwater drainage basin.

(Ord. No. 2020-131, § 2, 9-22-20)

Sec. 27-173. Organization.

The organization of the City of Charleston's Church Creek Stormwater Drainage Basin Authority shall be:

(a) *Membership.* The authority shall be comprised of eleven (11) members. The members of the authority shall be appointed by the mayor subject to the approval of city council.

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*__Editor's note—__Ord. No. 2020-131, § 2, adopted Sept. 22, 2020, amended the Code by adding provisions designated as §§ 27-122—27-126. In order to avoid conflicts in section numbering the editor has renumbered the provisions added by said ordinance as §§ 27-171—27-175.

(b) The authority membership shall include the mayor, two (2) city council members appointed by the mayor, and a representative from each of the following:

(1) *Institutional representation:*

a. The Charleston County Council member currently representing the district that includes the Church Creek basin;

a. A local utility representative.

(2) *Categorical representation:*

a. Local expert on drainage and flooding;

b. Expert on water retention measures and flood control;

c. Experienced public relations delegate;

d. Faith-based community advocate in the basin;

e. Commercial property owner in the basin; and

f. Neighborhood residential property owner in the basin.

(c) The City of Charleston Director of Stormwater Management or designee shall serve as the coordinator between the city and the authority to advance the recommendations of the authority with city government. The City of Charleston Chief Financial Officer or designee shall coordinate the Use of TIF funds to carry out recommendations by the authority that are approved by the mayor and city council.

(d) The mayor shall annually appoint one of the authority's members to be chairperson.

(e) The terms for authority members shall be two (2) years. No member shall serve more than two (2) consecutive terms. Members of the authority filling a vacancy shall serve for the balance of the unexpired term.

(f) The authority shall establish a regular time and place for its meetings and shall hold at least one (1) regular meeting quarterly. For purpose of authority action, a quorum of the authority shall consist of six (6) members of the authority in attendance.

(g) The authority shall make and alter rules governing its organization and procedures that are not inconsistent with any city ordinance or Robert's Rules of Order.

(h) The authority shall keep a written record of its proceedings and file the record with the clerk or council after the completion of any meeting.

(Ord. No. 2020-131, § 2, 9-22-20)

Sec. 27-174. Attendance requirements for members.

With the exception of the Charleston County Council member, in the event a member of the authority shall fail to either attend two (2) consecutive meetings or three (3) meetings per year without written justification for said absence that is approved by a vote of a majority of the members of the authority such member shall be automatically removed from the authority and a new member shall be appointed in his or her place and stead.
(Ord. No. 2020-131, § 2, 9-22-20)

Sec. 27-175. Intragovernmental relations.

The authority shall have the full cooperation of all departments of the city in the performance of its duties, and all departments shall supply the authority with all information and reports requested in order that the goals of this authority may be realized.
(Ord. No. 2020-131, § 2, 9-22-20)

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Chapter 28

STREETS AND DRAINAGE*

Article I. In General

Sec. 28-1. Specifications for design and construction of roads and drainage systems.
Sec. 28-2. Establishment of street level as prerequisite to excavation of lots; excavation below level.
Sec. 28-3. Draining grease or oil.
Sec. 28-4. Right to plant on unpaved portion of sidewalks.
Sec. 28-5. Damaging vegetation in unpaved portion of sidewalks.
Sec. 28-6. Use of chemical defoliants restricted.
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Article II. Excavation and Construction

Sec. 28-21. Permit required for disturbing surface of or opening street or taking up sidewalk; closing openings.
Sec. 28-22. Street opening permit; application; deposit.
Sec. 28-23. Arrest of person digging without permit.
Sec. 28-24. Warning signs required during construction or repair.
Sec. 28-25. Lanterns and barricades required when street opened for pipes or drains or when materials are piled up.
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Article III. Encroachment and Obstruction

Sec. 28-36. Findings of city council.
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Sec. 28-38. Permissive encroachments.
Sec. 28-39. Prohibition of unauthorized encroachments.
Sec. 28-40. Location, style, etc. of encroachments.

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*__Editor's note—__Ord. No. 1988-6, § 1, adopted Jan. 26, 1988, changed the title of Chapter 28 from Streets and Sidewalks to Streets and Drainage.

__Cross references—__Department of public service, § 2-231 et seq.; department of special facilities, § 2-246 et seq.; motor vehicles and traffic, Ch. 19; parks and recreation, Ch. 22; planning, Ch. 23; railroads, Ch. 26; public utility poles and wires, § 30-76 et seq.; underground conduits, cables and wires in public rights-of-way, § 30-146 et seq.; vehicles for hire, Ch. 31.

__State law references—__Power of city with reference to roads and streets, S.C. Code 1976, § 5-7-30; purchase of land for streets, etc., S.C. Code 1976, § 5-27-10; opening, closing, etc., streets in cities over 5,000 population, S.C. Code, § 5-27-150.

Sec. 28-41. Administration.
Sec. 28-42. Encroachment installation, mounting and maintenance permitting and standards.
Sec. 28-43. Removal.
Sec. 28-44. Exemptions.
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Article IV. Paving

Sec. 28-56. Definitions.
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ARTICLE I. IN GENERAL

Sec. 28-1. Specifications for design and construction of roads and drainage systems.

(a) No street, sidewalk or drainage system shall be accepted by the city as dedicated unless such shall be designed, constructed and/or rehabilitated in accordance with the city's standard specifications for design and construction of roads and drainage systems and the Standard Specifications for Highway Construction for the South Carolina Department of Transportation. Public acceptance of a dedication of any street, sidewalk, easement, or other ground shown upon a land development plat or a subdivision plat shall be by action of city council. All liability and maintenance for the dedicated property shall remain with the developer in accordance with the maintenance agreement until the deed transferring the property is accepted by city council and the two-year warranty period has expired.

(b) In the event of a conflict between the standards of the city and the state highway department, the city standard shall prevail.

(c) As-built certification for all dedicated public improvements, as set forth in the As-built Requirements for Final Subdivision Approval, which policy is maintained and a copy of such kept by the City of Charleston Engineering Division, shall be required prior to acceptance of the improvements by the city as dedicated.

(d) The developer shall execute a maintenance agreement guaranteeing the dedicated improvements against defect in workmanship and materials for two (2) years after construction and acceptance of such improvements by city council as documented by the minutes of city council. A letter of credit or a maintenance bond shall be provided to the city in an amount equivalent to ten (10) percent of the cost of the improvements dedicated to the city.

(Ord. No. 2006-457, § 1, 9-26-06; Ord. No. 2010-249, § 1, 11-10-10)

Sec. 28-2. Establishment of street level as prerequisite to excavation of lots; excavation below level.

It shall be unlawful for any person to excavate, cut down, or reduce the level of any lot before he shall have obtained approval from the inspections division. No approval shall be given unless adequate provisions are made to prevent injury or damage to adjoining rights-of-way or property of others by reason of such excavation.
(Code 1975, § 47-4)

Sec. 28-3. Draining grease or oil.

It shall be unlawful for any person to drain or discharge grease, oil, gasoline or other petroleum products upon any right-of-way or into any storm drainage system.
(Code 1975, § 47-9)

Sec. 28-4. Right to plant on unpaved portion of sidewalks.

The occupant of any building or portion thereof, or the owner of a vacant lot which abuts on any sidewalk shall have the right to plant flowers or lawn grass in any unpaved portion of the sidewalk on which the building or lot abuts. Such flowers or lawn grass shall not be so planted or maintained as to interfere with or restrict the ordinary and customary use of the sidewalk by pedestrians.
(Code 1975, § 47-10)

Sec. 28-5. Damaging vegetation in unpaved portion of sidewalks.

Any person who shall wilfully or wantonly injure, destroy or remove flowers or lawn grass planted as provided in section 28-4 shall be deemed guilty of a misdemeanor.
(Code 1975, § 47-11)

Sec. 28-6. Use of chemical defoliants restricted.

It shall be unlawful for any person to spray, pour, use, disseminate or cause to be sprayed, poured, used or disseminated any chemical defoliant, foliage poisons or other

similar preparations on public streets, highways and public rights-of-way, other than upon city sidewalks for purposes of weed control in amounts not sufficient to be considered detrimental by public health officials to human life, animal life, shrubs, trees and other preferred growth.
(Code 1975, § 47-43)

Sec. 28-7. Depositing material into storm drainage system prohibited.

It shall be unlawful to dump, deposit or otherwise cause any trash, landscape debris or other material to be placed in any stream channel, pond or basin within the City of Charleston which regularly or periodically carries or stores stormwater.
(Ord. No. 1993-446, § 1, 12-7-93)

Secs. 28-8—28-20. Reserved.

ARTICLE II. EXCAVATION AND CONSTRUCTION*

Sec. 28-21. Permit required for disturbing surface of or opening street or taking up sidewalk; closing openings.

Except as otherwise provided in this Code, no person shall be allowed to take up or disturb the surface of the earth in any street, or to take up the sidewalk or open the surface of any street for any purpose without first obtaining a written permit from the city engineer for each and every opening proposed to be made. The closing, refilling and repairing of all such openings shall be made by the permittee, subject to the specifications of the department of public service.
(Code 1975, § 47-17)

Cross references—Licenses, permits and miscellaneous business regulations, Ch. 17; pipe connections of building with public sanitary sewers, § 30-123.

*__Cross reference—__Special requirements as to excavations in streets for laying sewers, §§ 30-128, 30-129.

Sec. 28-22. Street opening permit; application; deposit.

If any person desires to make openings in streets for the purpose of laying or repairing wire, pipe, tile drains or sewers or for any other purpose, he shall apply to the city engineer for a permit to make such openings, who shall issue such permit upon deposit with the city engineer of a certified check to reimburse the city for the cost of refilling and repairing the streets or pavements and replacing the same to their former condition, as well as a covenant, approved in form by the corporation counsel, to indemnify and hold harmless the city, its officers and employees from any claims arising from the proposed construction. Such application shall be made at least seventy-two (72) hours prior to the proposed opening, but in an emergency, the city engineer may waive such notice. If the proposed work will require blocking or diversion of or otherwise interfere with pedestrian or vehicular traffic, the city engineer shall immediately notify the department of traffic and transportation of the issuance of the permit. The cost of such work shall be filed in the office of the city engineer and shall be given upon request of any person who may desire to know such cost.
(Code 1975, § 47-18)

Sec. 28-23. Arrest of person digging without permit.

It shall be the duty of the police department to arrest any person who may be found digging up the streets or sidewalks for any purpose without the written permit of the city engineer.
(Code 1975, § 47-19)

Sec. 28-24. Warning signs required during construction or repair.

All persons engaged in any work of construction or repair to any public street of the city, or any work on such street affecting the construction of the surface of any such street, shall at the time of commencing such work erect, and shall until the completion of such work maintain, at each end of such street or streets, or of the portion of such street or streets on which such work is being done, a plainly visible sign displaying in letters legible at a distance of at least one hundred (100) feet the words

"street under repair," or "street under construction," or words of similar import, and the name of the person engaged in such work.
(Code 1975, § 47-20)

Sec. 28-25. Lanterns and barricades required when street opened for pipes or drains or when materials are piled up.

All persons opening the streets for any purpose or piling earth or making excavations in the streets or pavements for any purpose or placing building materials or other materials in the streets shall furnish and place lanterns or other lights on such earth and materials and at such excavations and keep such lanterns or lights lighted during the right for the purpose of warning persons using the streets and shall place barricades properly when so directed by the city engineer. It shall be the duty of the owners of properties where such acts occur to see that their contractors and workmen comply with this section.
(Code 1975, § 47-21)

Secs. 28-26—28-35. Reserved.

ARTICLE III. ENCROACHMENT AND OBSTRUCTION*

Sec. 28-36. Findings of city council.

City council finds it necessary to promulgate standards to govern encroachments on public property including rights-of-way. Such public property is an integral component of the public realm, that should and must be available for public use, access and enjoyment without undue interference by private sector interests. The purpose of this article is to promote the public

*__Editor's note—__Ord. No. 1996-158, § 1, adopted August 20, 1996, repealed the former Art. III, §§ 28-36—28-39, and enacted a new Art. III as set out herein. The former Art. III pertained to similar subject matter and derived from Code 1975, §§ 47-22, 47-25 and 47-27.

health, safety and welfare by establishing reasonable regulations to govern the placement, type, appearance and servicing of encroachments on public rights-of way so as to:

(1) Provide for pedestrian and driving safety and convenience;

(2) Restrict unreasonable interference with the flow of pedestrian or vehicular traffic including ingress and egress from any residence or place of business, or from the street to the sidewalk by persons exiting or entering parked or standing vehicles;

(3) Provide for public and property safety during adverse weather conditions;

(4) Provide reasonable access for the use and maintenance of poles, posts, traffic signs, signals, hydrants, mailboxes, and access to locations used for public transportation purposes;

(5) Relocate and/or replace encroachments which result in visual blight and/or excessive space allocation on the public rights-of-way, or which unreasonably detract from the aesthetics of store window displays, adjacent landscaping and other improvements, as well as to have abandoned or neglected encroachments removed;

(6) Maintain and protect the values of surrounding properties;

(7) Reduce unnecessary exposure of the public to personal injury or property damage claims,

(8) Treat all applicants equally according to the standards set forth in this article and all applicable regulations promulgated in furtherance hereof; and

(9) Provide uniformity as to the type of encroachments and the means by which they are permitted.

(Ord. No. 1996-158, § 1, 8-20-96)

Sec. 28-37. Definitions.

Canopies shall mean any overhead covering which extends over the public right-of-way, typically made of fabric.

Encroachment shall mean any privately owned personalty situated on, affixed to or overhanging any public right-of-way, including but not limited to canopies and street furniture.

Encroachment fee shall mean the amount, as established by the city council from time to time, payable by the encroachment applicant upon submitting an encroachment request application which covers the costs of processing the encroachment request application. This fee is in addition to any recordation fee that may be required for filing encroachment agreements with the appropriate Register Mesne Conveyance office.

Permanent encroachment shall mean all items of privately owned personalty affixed, connected, attached or fastened to any public right-of-way. Examples of these include footings, building cornices and parapets, balconies, portions of a residence, HVAC units, special finish sidewalks, and driveways.

Public right-of-way shall mean any public property, including, but not limited to, a street, highway, sidewalk, parkway or alley.

Street furniture shall mean benches, planters, flower boxes/pots, or other personalties constructed or used outdoors.

Temporary encroachment shall mean all items of privately owned personalty situated on, but not affixed, connected, attached or fastened to, any public right-of-way. Examples of these include non-permanently affixed street furniture, irrigation system, fences, awnings, and signs.
(Ord. No. 1996-158, § 1, 8-20-96; Ord. No. 2008-134, § 1, 10-7-08; Ord. No. 2012-367, § 1, 8-21-12)

Sec. 28-38. Permissive encroachments.

The projection of a building or structure, or any part thereof, or any attachment thereto, beyond the property line into, on or above any street, way, lane, open court or other public property which existed on December 11, 1962 is a permissive encroachment. Permission for such permissive encroachment, expressed or implied, may be revoked by the city in accordance with section 28-43. Any such projection which existed on December 11, 1962 may be maintained as constructed until removal is directed by the city, but no change or enlargement of any such

encroachment shall be made except as hereafter authorized. Maintenance and liability for the permissive encroachment shall be the responsibility of the property owner or tenant.
(Ord. No. 2010-112, § 2, 7-20-10)

Editor's note—Ord. No. 2010-112, §§ 1, 2, adopted July 20, 2010, renumbered the former §§ 28-38—28-43 as §§ 28-39—28-44, and enacted a new § 28-38 as set out herein. The historical notation has been retained with the amended provisions for reference purposes.

Sec. 28-39. Prohibition of unauthorized encroachments.

No person shall place, affix, connect, attach, fasten, erect, construct or maintain an encroachment on public rights-of-way without first obtaining approval, evidenced by an encroachment agreement, for each encroachment in accordance with the provisions of this article.
(Ord. No. 1996-158, § 1, 8-20-96; Ord. No. 2010-112, § 1, 7-20-10)

Note—See the editor's note for § 28-38.

Sec. 28-40. Location, style, etc. of encroachments.

(a) *General placement of encroachments.*

(1) Subject to the standards set forth hereinafter, an encroachment must be placed near any wall structure parallel to and not more than six (6) inches from the wall unless such location is determined unsuitable, then consideration shall be given to locating encroachments parallel to and closer than eighteen (18) inches from the edge of the curb based on the standards listed in subsection (b) below.

(2) The standards hereinafter set forth are minimum standards and nothing herein shall be deemed to preclude the public service department or the public works and utilities committee from denying approval of an encroachment or requiring additional measures when in the opinion of the public service department or the public works and utilities committee such is necessary for the public safety and general welfare.

(b) *Standards.*

(1) *General.*

a. No encroachment shall be placed, connected, attached, fastened, installed, used, erected or maintained in the public right-of-way:

1. If the proposed encroachment can be sited on private property;
2. In a manner affixed or attached to any fixture located within the public right-of-way including the surface of the walkway unless approved by the city engineer;
3. On or within two (2) feet of a sign, parking meter, street light, utility pole or planting area for flowers, shrubs or trees within the public right-of-way or within two (2) feet of a public park;
4. Within fifteen (15) feet of any roadway at an intersection (measured fifteen (15) feet back from the edge of the right-of-way intersection);
5. Within five (5) feet of any crosswalk or driveway;
6. Within fifteen (15) feet of any fire hydrant, standpipe or Siamese connector;
7. Within five (5) feet of any emergency call box or other emergency telecommunication equipment or any other emergency facility;
8. Within five (5) feet on the departure side of, and fifteen (15) feet on the approach side of any sign marking a designated bus stop, measured parallel to the edge of the curb;
9. At any location where the clear space for the passageway of pedestrians is reduced to less than forty-eight (48) inches;
10. At any location which obstructs underground utility access points, ventilation areas, meters, physically disadvantaged ramps, or other facil-

ity provided for the physically disadvantaged persons, any building access, exit or any emergency access or exit way;

11. In front of any display window of any building abutting the right-of-way when the encroachment is placed within six (6) inches of the building or in such a manner as to impede or interfere with the reasonable use of such window display purpose unless the tenant consents to such location in writing (this standard is not applicable when the encroachment is adjacent to the curb); and
12. To display merchandise.

b. Consideration shall be given to aesthetic appearance and safety in the siting, design and construction of encroachments.

(2) *Canopy standards.* All canopies must adhere to the following standards:

a. A minimum height from sidewalk surface to the underside of the canopy must be nine (9) feet for the structure and eight (8) feet for the valance;

b. The staff in the architecture and preservation division of the department of planning and preservation must approve the color design and construction of canopies if located in the old city district or the old and historic district, all others will be approved by the design review committee; and

c. Signage is subject to the City of Charleston zoning ordinance.

(3) *Street furniture standards.* The following must be adhered to in addition to the standards in subsection (1), general standards, above:

a. The color, design and construction must be approved by the city's design review committee;

b. Street furniture shall be constructed for outdoor use and shall be made of appropriate materials to withstand one hundred-mile per hour winds;

c. Any means of securing the furniture must be approved by the design review committee; and

d. Street furniture shall carry no advertising.

(4) *Sandwich board signs.* In addition to meeting the standards in subsection (1), general standards, above, all sandwich boards must adhere to the requirements of the City of Charleston zoning ordinance.

(Ord. No. 1996-158, § 1, 8-20-96; Ord. No. 2010-112, § 1, 7-20-10; Ord. No. 2012-367, § 2, 8-21-12; Ord. No. 2025-024, § 1, 2-25-25)

Note—See the editor's note for § 28-38.

Sec. 28-41. Administration.

(a) *Issuing authority.* Pursuant to section 2-55 of the Code of the City of Charleston, South Carolina the public works and utilities committee shall be the issuing authority for all permanent encroachments and the department of public service shall be the issuing authority for all temporary encroachments.

(b) *Applications.* The applicant shall file with the department of public service a typed application for a one-time only installation of encroachment(s) which shall contain the following information:

(1) The name, address and telephone number of the applicant, who is the owner and/or principal in charge of the encroachment(s);

(2) The number of encroachments and the proposed location of each to be shown on a scaled drawing;

(3) An illustration and description of the encroachment(s) and method of securing;

(4) Evidence of the applicant's City of Charleston business license, as applicable;

(5) Encroachment fee;

(6) Recording fee, if applicable; and

(7) An agreement to indemnify and save harmless the city, its officers, directors, and employees against any loss,

liability or damages, including expenses and costs for bodily or personal injury and for property damage sustained by any person as the result of the installation, use or maintenance of an encroachment within the city.

(c) *Temporary encroachment approval.* Upon a finding by the department of public service that a temporary encroachment application meets the provisions of this article, the department may approve the temporary encroachment application, evidenced by an encroachment agreement.

(d) *Permanent encroachment approval.* Upon a finding by the public works and utilities committee that an applicant is in compliance with the provisions of this article, approval, as evidenced by an encroachment agreement, for installation may be issued along with a sticker identifying the permitted location for each approved encroachment.

(e) *Zoning.* No approval shall issue for any temporary or permanent encroachment requiring separate approval under the zoning ordinance until evidence of such approval is presented to the department of public service or the public works and utilities committee. Further, the standards contained herein are deemed minimum guidelines and at times, given unique situations, requirements may exceed these stated standards.

(f) *Denial of approval.* If approval for a permanent or temporary encroachment shall be denied, the city shall notify the applicant of the specific cause for the denial. If approval for a temporary encroachment shall be denied, the applicant shall have the opportunity to appeal the denial to the public works and utilities committee.

(Ord. No. 1996-158, § 1, 8-20-96; Ord. No. 2008-134, § 3, 10-7-08; Ord. No. 2010-112, § 1, 7-20-10; Ord. No. 2012-367, §§ 3—5, 8-21-12)

Note—See the editor's note for § 28-38.

Sec. 28-42. Encroachment installation, mounting and maintenance permitting and standards.

(a) The public works and utilities committee shall approve the location of permanent encroachments.

(b) The construction in right-of-way fee required from the city engineer shall be required for each encroachment installation when applicable;

(c) Mounting standards shall be governed by manufacturers specifications, if applicable, and approved by the city engineer.

(d) Encroachments shall be maintained in good working order at all times and be freshly painted and maintained in as good as a condition as originally installed.
(Ord. No. 1996-158, § 1, 8-20-96; Ord. No. 2010-112, § 1, 7-20-10)

Note—See the editor's note for § 28-38.

Sec. 28-43. Removal.

(a) Any unlawful encroachments existing in the public right-of-way shall be subject to removal and the owner shall be responsible for labor and costs associated with such removal.

(b) Any encroachments existing in the public right-of-way shall be removed upon twenty-four (24) hours notice given by the department of public service when such removal is necessary to repair or improve the right-of-way. If it is necessary to remove the encroachment(s), the owner shall be responsible for labor and costs associated with removal and reinstallation.

(c) In the event that the city police, fire, public service or traffic and transportation departments determine that the location of an encroachment constitutes an immediate physical danger to life, safety or health, the encroachment may be removed immediately without prior notice. If the city removes an encroachment, a notice of removal shall be sent to the owner as soon as practicable under the circumstances.

(d) Any abandoned encroachment shall be subject to removal. For purposes hereof, "abandoned" shall mean the vacating of the premises by the encroachment's owner/applicant for a period of seven (7) consecutive days or more.

(e) Any costs incurred to the city in restoring the public right-of-way to the condition that existed prior to the encroachment shall be the responsibility of the encroachment owner/applicant.

(Ord. No. 1996-158, § 1, 8-20-96; Ord. No. 2010-112, § 1, 7-20-10)

Note—See the editor's note for § 28-38.

Sec. 28-44. Exemptions.

This article shall not be applicable to a public utility or private utility encroachment or encroachments which are a result of a franchise or other written agreement with the city. (Ord. No. 2008-134, § 1, 10-7-08; Ord. No. 2010-112, § 1, 7-20-10)

Note—See the editor's note for § 28-38.

Sec. 28-45. Promotion of civil sidewalks.

(a) *Findings.* The King and Market Street corridors in the downtown area of the city are places of gathering and commerce, where patrons, residents and visitors conduct business, shop, sightsee and recreate. Being in the heart of the peninsula, these corridors offer an array of services to support residents living nearby and those coming into the peninsula to enjoy the urban core of the city, to include shopping, dining and art venues. Being in the heart of the tourism district, these corridors are heavily impacted not by just visitors, but also by vendors and service providers tending to the needs of the industry businesses. Being adjacent to the College of Charleston campus, these corridors are also impacted by students tending to daily needs or seeking places to recreate. The sidewalks of these corridors, part of an urban street grid established in the eighteenth century, are narrow by modern standards and are incapable of being enlarged in any meaningful way. It is imperative that pedestrian flow along the sidewalks of these corridors be safe, effective and efficient during times of heavy use. The primary purpose of a sidewalk is to provide a means of conveyance by foot. Interferences with that purpose should be minimized to the extent feasible. Sitting or lying on the sidewalks of the King and Market Street corridors during times of heavy use poses a threat to safe pedestrian passage, especially for the elderly, disabled, vision-impaired and small children. As there exist alternate public places in the vicinity of the King and Market Street corridors that accommodate sitting or lying down,

council finds it necessary and in furtherance of the public peace and good order that sitting or lying on the sidewalks of the King and Market Street corridors be regulated in a manner that promotes safety but which preserves these areas for traditional constitutional expression and other lawful activity on sidewalks consistent with any city permitting requirements.

(b) *Prohibition.* During the hours between eight (8:00) a.m. and two (2:00) a.m., it is unlawful to sit or lie down upon a public sidewalk or sit or lie down on property adjacent to a public sidewalk in such a manner so that any part of the person's body or personal effects are on a public sidewalk:

(1) On King Street, between Line Street and Broad Street;

(2) On streets crossing King Street for one (1) block in either direction of King Street between and including Line Street and Broad Street;

(3) On North and South Market Streets, between King Street and East Bay Street; and

(4) On streets crossing Market Street for one (1) block in either direction from Market Street between and including King and East Bay Street.

(c) *Exceptions.* The prohibitions in subsection (b) shall not apply to any person:

(1) Sitting or lying on a public sidewalk due to a medical emergency;

(2) Using a wheelchair, walker, or similar device as the result of a disability;

(3) Operating or patronizing a commercial establishment conducted on the public sidewalk pursuant to a sidewalk use permit;

(4) Participating in or attending a parade, festival, performance, rally, demonstration, meeting, picketing, or similar event conducted on the public sidewalk pursuant to and in compliance with a street use or other applicable permit;

(5) Sitting on a fixed chair or bench located on the public sidewalk supplied by a public agency or by the abutting private property owner;

(6) Sitting in line for goods or services unless the person or person's possessions impede the ability of pedestrians to travel along the length of the sidewalk or enter a doorway or other entrance alongside the sidewalk; or,

(7) Who is a child seated in a stroller.

(d) *Other laws and orders.* Nothing in any of the exceptions listed in subsection (c) shall be construed to permit any conduct which is prohibited by City Code sections 17-93, 17-98, and 21-109, which prohibit willfully and substantially obstructing the free passage of any person.

(e) *Penalties.*

(1) *First offense.* Upon conviction for a first offense of this section, the court shall impose a fine of not more than twenty-five dollars ($25.00).

(2) *Subsequent offenses.* Upon conviction for a second offense of this Section, the court shall impose a fine of not more than fifty dollars ($50.00). All further violations of this section maybe handled in a manner consistent with the City's general penalty provision as provided in section 1-16 of this Code.

(3) *Trespass.* In addition to these penalties, a person convicted of a third or subsequent violation of this section may be prohibited from returning to the streets and sidewalks delineated in subsection (b) for a period of six (6) months from the date such notice is given. Notice of this prohibition may be given by any code enforcement officer, police officer, city attorney or judge of municipal court. Upon conviction of this provision a person may be sentenced in a manner consisted with the city's general penalty provision as provided in section 1-16 of this Code in addition to the penalties set forth above.

(f) *Reporting.* One (1) year after the effective date of the ordinance from which this section derives, and every two (2) years thereafter, the police department shall make a written report to the mayor and the city council members that evaluates the effectiveness of enforcement of this section in the King and Market Street Corridors as set out herein.

(g) *Outreach.* The city shall maintain an outreach plan summarizing the city's efforts with assisting those that are chronically found sitting or lying down on a public sidewalk. The outreach plan must outline what assistance the city supplies to connect individuals in need of social services with providers of the social services. The plan must also include, but not be limited to, health care and social service capacity, evaluation of service delivery and identification of areas for improved service delivery.

(h) *Severability.* If any subsection, sentence, clause, phrase, or word of this Section be for any reason declared unconstitutional or invalid or ineffective by any court of competent jurisdiction, such declaration shall not affect the validity or the effectiveness of the remaining portions of this section or any part thereof which can be given meaning without the offensive subsection, sentence, clause, phrase or word.
(Ord. No. 2018-051, § 1, 4-10-18; Ord. No. 2019-024, § 1, 4-9-19; Ord. No. 2020-023, § 1, 2-11-20; Ord. No. 2021-116, § 1, 8-17-21)

Secs. 28-46—28-55. Reserved.

ARTICLE IV. PAVING

Sec. 28-56. Definitions.

The following definitions shall govern the interpretation of the sections of this article:

Original paving of roadways. Original paving of roadways shall consist of grading, concrete foundation or other foundation, wearing surface, new curb, new counter curb, relining and resetting existing curb and counter curb, gutter bottoms, culverts and subsurface drains not exceeding twelve (12) inches in

diameter, together with all manholes, catch basins and excavations incidental thereto, and the installing of house drains, hand holes or cleanouts and connections. Original paving of roadways shall also include the filing or cutting down of sidewalks not at established grade, the installing of house drains, hand holes or cleanouts and connections, the taking up and relaying of sidewalk pavements not in good condition, the construction of new sidewalk pavement where none exists, the substituting of modern for antiquated sidewalk pavements and the construction of driveways.

Original paving of sidewalk. Original paving of sidewalks shall consist of a new curb, new counter curb, relining and resetting existing curb and counter curb, gutter bottoms, culverts, subsurface drains not exceeding twelve (12) inches in diameter, together with all manholes, catch basins and excavations incidental thereto, the filling or cutting down of sidewalks, not at established grades, installing house drains, hand holes or cleanouts and connections, taking up and relaying sidewalk pavements not at established grade, repairing sidewalk pavements not in good condition and constructing new sidewalks where none exist.

Paving and *paving of streets.* The word "paving" and the term "paving of streets" shall be and are hereby construed to mean and embrace two (2) classes, as following:

(1) Paving of roadways, and

(2) Paving of sidewalks.

Paving of roadways. Paving of roadways shall be and is hereby construed to mean and embrace two (2) classes, as follows:

(1) Original paving of roadways, and

(2) Repaving of roadways.

Paving of sidewalks. Paving of sidewalks shall be and is hereby construed to mean and embrace two (2) classes, as follows:

(1) Original paving of sidewalks, and

(2) Repaving of sidewalks.

Repaving of roadways. Repaving of roadways shall consist of removing old pavements, grading roadway wherever necessary, laying new concrete or other foundations and surfacing with asphalt or other suitable surfacing material. If, however, it is found advantageous or more economical to leave old cobblestone, granite block, cement or brick pavements in place, either in part or in whole, and use the same as foundation for the asphalt or other surfacing material, this process shall also be classified as repaving of roadways. Resurfacing of old asphalt pavements with asphalt or similar material shall not be classified as repaving of roadways. Repaving shall also include, wherever found necessary, the construction of new curb, counter curb, gutter bottom culverts, relining and resetting existing curb and counter curb, or surface drains not exceeding twelve (12) inches in diameter, together with all manholes, catch basins and excavations incidental thereto and the installing of house drains, hand holes or cleanouts and connections wherever necessary. Repaving of roadways shall also include wherever necessary the filling in or cutting down of sidewalks not at established grade or resurfacing existing sunken or depressed sidewalk pavements with concrete or asphalt surfacing material so as to restore them to the necessary grade, the installing of house drains, hand holes or cleanouts and connections, the taking up and relaying of sidewalk pavements not in good condition, the construction of new sidewalk pavements where none exist, the substitution of modern sidewalks for antiquated sidewalk pavements and the construction of driveways. Whenever it may be necessary to remove the paving on a roadway, either in whole or in part in order to install a drain where none exists in the street, or to install underground electric wires, cables, ducts or conduits for street improvement and street illumination purposes, the removal and repaving of such pavements, together with all necessary repairs to pavements in immediate connection therewith, and also the installation of whatever new curb may be necessary, or the relining and resetting of existing curb, shall be classified as "repaving of roadways" under this section and shall be subject to all of the conditions as are connected therewith.

Repaving of sidewalks. Repaving of sidewalks shall consist of removing and reconstructing on different lines or grades, or for the purpose of changing the character of the materials, or for the purpose of making additions to existing pavements, of the following items of work: Curb, counter curb, relining and resetting existing curbs and counter curb, gutter bottoms and subsurface drains not exceeding twelve (12) inches in diameter, with all manholes, catch basins and excavations incidental thereto, filling or cutting down of sidewalks not at established grade, installing house drains, hand holes or cleanouts and connections, taking up and relaying sidewalk pavements not at established grade, repairing sidewalk pavements not in good condition and constructing new sidewalk pavements where none exist. Whenever it may be necessary to remove the paving on a sidewalk, either in whole or in part in order to install a drain where none exists in the street, or to install underground electric wires, cables, ducts or conduits for street improvement and street illumination purposes, the removal and repaving of said pavements, together with all necessary repairs to pavements in immediate connection therewith, and also the installation of whatever new curb may be necessary, or the relining and resetting of existing curb, shall be classified as "repaving of sidewalks" under this section and shall be subject to all of the conditions as are connected therewith.

Roadways. The word "roadway" shall be and is hereby construed to mean and embrace neutral grounds, center strips, intersections and all other divisions and subdivisions of streets, except sidewalks, as established or reestablished and recognized at any time by the city council.

Streets. The word "street" shall be given its ordinary legal signification, and accordingly shall be and is hereby construed to mean any way over land legally set apart for public travel in the city and recognized by the city council as a public highway or thoroughfare, no matter by what name it may be called, and is hereby declared to embrace any and all divisions and subdivisions of such way from property line to property line, including sidewalks, grass or tree strips, roadway, neutral grounds, center

strips, intersections and other divisions and subdivisions, as such divisions and subdivisions exist or may at any time be established or reestablished by the city council.
(Code 1975, § 47-31)

Cross reference—Rules of construction and definitions generally, § 1-2.

Sec. 28-57. Authority of council to provide for paving.

The city council may, upon its own motion, provide for the paving or repaving of any street, or portion thereof, in the city after due notice of its intention to do so shall have been published in the official journal of the city four (4) times within fifteen (15) days.
(Code 1975, § 47-32)

Secs. 28-58—28-75. Reserved.

ARTICLE V. NUMBERING OF BUILDINGS

Sec. 28-76. Numbers required.

All buildings erected or to be erected on the streets, alleys, lanes and courts in the city whether public or private, shall be numbered by the city's geographic information system ("GIS") Division, in compliance with the requirements of this article.
(Code 1975, § 47-36; Ord. No. 1986-112, § 1, 9-23-86; Ord. No. 2002-109, § 2, 9-10-02; Ord. No. 2014-113, § 1, 8-19-14)

Sec. 28-77. Assignment of numbers.

On all streets, numbers shall be assigned to each lot or parcel by the the city's GIS Division, and such numbers shall be assigned whether the lot or parcel fronting on such streets, alleys, lanes or courts is built upon or not. The odd numbers shall be placed upon the buildings erected on the west and south sides, and the even numbers shall be placed upon the buildings erected on the north and east sides of such streets, alleys, lanes

and courts, whenever possible, and with one number being assigned for each forty (40) feet of property frontage along the street.
(Code 1975, § 47-37; Ord. No. 1986-112, § 2, 9-23-86; Ord. No. 2002-109, § 3, 9-10-02; Ord. No. 2014-113, § 1, 8-19-14)

Sec. 28-78. Owner to identify building by correct number.

The owner of each building shall obtain from the city's GIS Divisio the number assigned to his premises as required in this chapter and shall place thereon or attach thereto, in a conspicuous location, numerals not less than three (3) inches in height on buildings utilized for residential purposes and not less than four (4) inches in height on buildings utilized for other purposes, setting forth the identifying street number. Numbers placed on or attached to buildings shall be in a color contrasting to the building, and only one number shall be assigned to a building.
(Code 1975, § 47-38; Ord. No. 1986-112, § 3, 9-23-86; Ord. No. 2002-109, § 4, 9-10-02; Ord. No. 2014-113, § 1, 8-19-14)

Sec. 28-79. Building set back from street.

Should a building be set back more than fifty (50) feet from the right-of-way, the number assigned to such building or the premises upon which the same is situate shall be displayed on an approved sign, a post, fence, mailbox, or the like at the property line so as to be easily discernible from the street.
(Ord. No. 1986-112, § 4, 9-23-86)

Sec. 28-80. Correction of irregularities in numbering system.

It shall be the further duty of the city's GIS Division when an error or irregularity exists in the numbering system, or when they are without numbers in any streets, alleys, lanes or courts in the city, to have the same corrected or numbered without unnecessary delay, as soon as the facts are brought to its notice.
(Code 1975, § 47-40; Ord. No. 1986-112, § 5, 9-23-86; Ord. No. 2002-109, § 5, 9-10-02; Ord. No. 2014-113, § 1, 8-19-14)

Sec. 28-81. Assignment of number prior to issuance of building permit.

No building permit for construction or renovation shall be issued until such time as an official street number has been assigned to the proposed or existing structure.
(Code 1975, § 47-41; Ord. No. 1986-112, § 6, 9-23-86)

Sec. 28-82. Damaging or altering numbers.

No person shall take down, alter, deface, destroy or conceal any number assigned to, or placed upon any building, or shall place or substitute or permit to be placed or substituted, an erroneous or improper number to be retained upon any building.
(Code 1975, § 47-42)

Secs. 28-83—28-95. Reserved.

ARTICLE VI. RESTORATION OF SIDEWALK AND CURB UPON ABANDONMENT OF DRIVEWAY

Sec. 28-96. Bond required to obstruct driveway.

Before issuance of any permit by the office of the inspections division for any construction or alteration of existing properties and land, which construction or alteration will destroy ingress over a presently existing driveway between a public roadway and lands of an abutting owner, the owner, contractor or other person proposing such construction or alterations shall file with the city a penal bond in the sum of five hundred dollars ($500.00) for each single driveway to be abandoned or blocked, with good and sufficient surety thereon, conditioned that the makers shall indemnify the city against any expense that it might incur in restoring such abandoned driveway to the condition of the sidewalks and streets contiguous thereto.
(Code 1975, § 47-44)

Sec. 28-97. Payment of restoration costs in lieu of bond.

Instead of posting a bond as provided in section 28-96, such owner, contractor or other person may pay to the inspections

division at the time of obtaining a permit, the cost of restoring such abandoned driveway, and such payment shall relieve such owner, contractor or other person from any responsibility to restore such abandoned driveway, and such restoration shall then be performed by the inspections division.
(Code 1975, § 47-45)

Sec. 28-98. Quality of materials used in restoration.

All materials used in such restoration shall be of a type and quality at least equal to the type and quality of materials existing on the contiguous sidewalks and streets.
(Code 1975, § 47-46)

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Chapter 29

TOURISM*

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***Editor's note—**Ord. No. 1998-174, §§ 1—29, substantially amended the provisions of this chapter. Section 29 of Ord. No. 1998-74 repealed former Art. VIII, §§ 29-291—29-306, in its entirety which pertained to pedal carriages and derived from Ord. No. 1992-22, § 1, adopted Feb. 25, 1992.

Cross references—Department of special facilities, § 2-246 et seq.; amusements, Ch. 4; Colonial Common and Ashley River Embankment, Ch. 9; Cypress Gardens, Ch. 10; planning, Ch. 23.

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ARTICLE I. IN GENERAL

Sec. 29-1. Findings of fact.

The city council finds and declares that because the number of tourists coming to the city in recent years has increased dramatically, it is in the public interest that sightseeing vehicles, tour guides and certain commercial passenger vehicles which travel in the old city district and old and historic district of the city be regulated under the police power of the city. It is the purpose of such regulation to maintain, protect and promote the tourism industry and economy of the city and, at the same time, to maintain and protect the tax base and land values of the city, to reduce unnecessary traffic and pollution and to maintain and promote aesthetic charm and the quality of life for the residents of the city. The city council finds, further, that the numbers of unregulated tour vehicles and other commercial vehicles entering the city for the purpose of touring the historic districts are having adverse effects upon the health, safety and welfare of the citizens of the city and that traffic accidents, damage to property, traffic congestion and other problems require the enactment by the city of a comprehensive tourism management ordinance. The council also finds that responsibilities for tourism management are of sufficient scope and complexity to justify a separate ordinance and organizational entity from that required for the administration of the arts and history interests of the city.
(Ord. No. 1983-22, § 1, 5-10-83)

Sec. 29-2. Definitions.

Unless the context clearly requires otherwise, the following terms, where used in this chapter, shall have the following meaning:

Accident shall mean an unexpected event which results in serious injury, property damage, or a combination of injury and property damage.

Amplifying device shall mean any equipment or apparatus that broadens or magnifies the human voice, music or any other sound.

Animal-drawn vehicle shall mean a vehicle which meets the design standards of section 29-207 and is pulled by carriage horses, dray horses or mules and is used for the purpose of touring for hire.

Articulated vehicles shall mean any motorized vehicles that are comprised of a lead compartment having attached thereto one or more other compartmentalized sections, segments or other units that are designed primarily for transporting passengers and which are sometimes referred to as "conch trains."

Certificate of appropriateness shall mean a certificate authorizing the use of a certain motor vehicle or animal-drawn vehicle for touring purposes.

Charter route shall mean an approved route of travel for certain touring vehicles on file in the office of the department of livability and tourism.

City building shall mean any structure owned, operated, maintained or controlled by the City of Charleston.

Commission shall mean the city tourism commission.

Districts shall mean the old and historic district and the old city district.

Incident shall mean an unexpected event or occurrence that does not result in serious injury or property damage.

Large buses shall mean passenger vehicles longer than twenty-five (25) feet but not longer than forty (40) feet in length and used for the purpose of touring.

Manifest shall mean a daily record, prepared by either tour guide, carriage driver, or tour company which includes information specified in section 29-206 relevant to touring operations.

Old and historic district shall mean that portion of the city that is so designated from time to time on the official zoning map of the city.

Old city district shall mean that portion of the city that is so designated from time to time on the official zoning map of the city.

Per capita touring shall mean the conduct of tours of individuals who are not affiliated with one another, as opposed to tours of organized groups.

Perimeter route shall mean an approved route of travel for certain touring vehicles on file in the office of the department of livability and tourism.

Private passenger automobile shall mean a standard family passenger automobile, designed to hold no more than eight (8) persons including a sedan, cross-over, SUV, or mini-van. Private passenger automobile shall not include full-sized vans, buses of any type, panel trucks, limousines, motorcycles with or without passenger compartments, tricycles whether motorized or not, golf carts, low speed vehicles, motor homes, home-made vehicles, custom-made vehicles or standard family passenger automobiles that have been substantially modified from their original design, excepting modification of a standard family passenger vehicle for handicapped use is allowed. A taxi cab cannot he used as a private passenger automobile for touring purposes. A vehicle in service of a transportation network company {also known as a ride-share company including Uber and Lyft as defined by S.C. Code § 58-23-1610 cannot be used as a private passenger automobile for touring while actively engaged in transport of riders for the transportation network company.

Public right-of-way shall mean any street, highway, sidewalk, parkway or alley that is owned, controlled, maintained or operated by the city.

Small bus shall mean a vehicle larger than a private passenger automobile, but twenty-six (26) feet in length or less and used for the purpose of touring for hire. However, a small bus may be greater than twenty-six (26) feet in length but no more than twenty-six (26) feet six (6) inches in length if such bus is accessible to persons with disabilities and meets all requirements of the federal Americans with Disabilities Act and if such bus is operating pursuant to the exception set forth in section 29-115.

Theme vehicles shall mean any motorized vehicle which displays a subject or topic of discourse or of artistic representa-

tion, possesses a theme park-like appearance, or is manufactured prior to 1963 or any replica thereof including but not limited to trolleys, stagecoaches, double-decker buses or replicas thereof.

Tour or *touring* shall mean the conducting of or the participation in sightseeing in the districts for hire or in combination with a request for donations.

Tour guide shall mean any person who acts or offers to act as a guide for hire through any part of the districts, including but not limited to pedestrians and persons within automobiles, motor vehicles or horse-drawn vehicles when the primary purpose of riding in such vehicles is not transportation, but touring the historic areas of the city.

(Ord. No. 1983-22, §§ 3, 19, 25, 31, 37, 45, 57, 5-10-83; Ord. No. 1985-148, § 1, 12-17-85; Ord. No. 1995-488, § 2, 10-10-95; Ord. No. 1998-174, § 1—3, 9-22-98; Ord. No. 1999-134, § 1, 9-20-99; Ord. No. 2004-146, § 1, 1-23-04; Ord. No. 2009-62, § 1, 4-28-09; Ord. No. 2016-054, § 1, 4-26-16; Ord. No. 2016-070, § 8, 5-24-16; Ord. No. 2019-084, § 1, 9-10-19; Ord. No. 2021-127, § 1, 9-14-21; Ord. No. 2023-063, § 2, 3-28-23; Ord. No. 2023-064, § 2, 3-28-23)

Cross reference—Rules of construction and definitions generally, § 1-2.

Sec. 29-3. Operation of motorized vehicles by peddlers in the old and historic district.

It shall be unlawful for any person to engage in the business of a peddler from any vehicle or trailer that is parked, placed or stopped in or upon any city street or in any parking space, right-of-way, driveway or sidewalk alongside of or next to any parking meter on any city street in the old and historic district in the city except as provided herein. The word "peddler," as used in this section, shall include any person traveling by motor vehicle, or any other type of conveyance, other than a hand-pushed cart, from place to place, from house to house, or from street to street, carrying, conveying, transporting goods, wares, merchandise, food, drinks, concessions, or provisions for sale, or making sales and delivering articles to purchasers; provided, however, the council finds that the area known as Robert Mills Manor is not generally impacted by tourist-related traffic, is an area that is less congested, and one in which the structures

generally are not of similar age as other structures in the old and historic district and therefore excepts from the operation of this section the following streets:

(1) *Logan Street* from Magazine to Beaufain.

(2) *Magazine Street* from Logan to Franklin.

(3) *Wilson* from Franklin to Beaufain.

(4) *Cromwell Street* from Franklin to Smith.

(Code 1975, § 45-23; Ord. No. 1980-115, § 1, 10-28-80; Ord. No. 1998-174, § 4, 9-22-98)

Sec. 29-4. Limitation on operation of vehicles on Battery and White Point Gardens.

No peddlers shall operate in the area known as White Point Gardens and the Battery, or within one block of Murray Boulevard, or East Battery or South Battery between King Street and Murray Boulevard; provided, however, the city council may award a franchise for the sale of drinks or frozen ice products in such areas and under such terms and conditions as the city council may provide.

(Code 1975, § 45-24; Ord. No. 1980-115, § 2, 10-28-80)

Sec. 29-5. Limitation on operation of vendors near churches or places of worship.

No vendor may operate within fifty (50) feet of the entrance to any church or place of worship.

(Code 1975, § 45-25; Ord. No. 1980-115, § 3, 10-28-80)

Secs. 29-6—29-15. Reserved.

ARTICLE II. ADMINISTRATION AND ENFORCEMENT

DIVISION 1. GENERALLY

Sec. 29-16. Appeals generally.

Any citizen aggrieved by a decision or interpretation of the director of livability and tourism or his/her designee in enforcing

this chapter may appeal such decision to the commission within fifteen (15) days after the director of livability and tourism or his/her designee issues a written decision. Such appeal shall be taken by filing with the director of livability and tourism or his/her designee and with the commission a written notice of appeal stating the grounds thereof. The director of livability and tourism or his/her designee shall immediately transmit to the commission all papers and matters constituting the record upon which the action appealed from was taken.
(Ord. No. 1983-22, § 73, 5-10-83; Ord. No. 1998-174, § 5, 9-22-98; Ord. No. 2023-064, § 3, 3-28-23)

Sec. 29-17. Hearing on suspension, revocation or appeal.

(a) Should the director serve notice of suspension or revocation of a certificate, the notice of suspension or revocation shall advise the holder of the time and location of the hearing and the right to present evidence and to be represented by counsel. The hearing shall be informal and the decision of the commission shall be final. Should the commission order the suspension or revocation of a certificate or should the holder fail to appear at the hearing, the suspension or revocation shall take effect at the closing of the hearing.

(b) A hearing on an appeal shall be heard in a similar manner. The filing of an appeal to the commission shall stay all proceedings thereunder until a final decision of the commission is rendered.
(Ord. No. 1983-22, § 74, 5-10-83; Ord. No. 2023-063, § 3, 3-28-23)

Sec. 29-18. Appeal to council.

Any person or persons jointly or severally aggrieved by a decision of the commission may appeal such decision to the city council within thirty (30) days after the commission issues a written decision.
(Ord. No. 1983-22, § 75, 5-10-83; Ord. No. 1998-174, § 6, 9-22-98)

Sec. 29-19. Appeal of council's decision to court.

(a) Any person or persons jointly or severally aggrieved by any final decision of the city council may present to the court of common pleas a petition duly verified setting forth that the decision of the tourism commission is illegal, in whole or in part, specifying the grounds of illegality. Such petition shall be presented to the court within thirty (30) days after the filing of the decision of the commission.

(b) Upon the presentation of such petition, the court may allow a writ of certiorari directed to the tourism commission to review such decision of the tourism commission, and shall prescribe therein the time within which a return thereto must be made and served upon the petitioner or his attorney, which shall be not less than thirty (30) days. The allowance of the writ shall not stay proceedings upon the decision appealed from unless the court, or proper application, grants a restraining order.
(Ord. No. 1983-22, § 76, 5-10-83)

Secs. 29-20—29-30. Reserved.

DIVISION 2. TOURISM COMMISSION*

Sec. 29-31. Establishment.

There is hereby created the City of Charleston Tourism Commission.
(Ord. No. 1983-22, § 4, 5-10-83)

Sec. 29-32. Membership; appointment; terms of office.

The commission shall be appointed by the mayor upon the advice and consent of the city council and shall consist of fourteen (14) voting members including a chairman. Eight (8) members shall be persons who have demonstrated their knowledge and appreciation of the history and architecture of the city. Of these eight (8), at least four (4) shall be residents of the Peninsula, three (3) shall be residents from areas outside of the

*__Cross reference—__City boards and commissions generally, § 2-151 et seq.

Peninsula and one (1) shall be a member of the city council. One (1) member shall be a member of the business community who shall have demonstrated his or her knowledge of business, commerce and urban economics. Effective the first meeting of city council in 2004, the number of members of the business community who shall have demonstrated his or her knowledge of business, commerce and urban economics shall increase from one (1) to two (2). Four (4) members shall be active participants in some tourism related business or association including but not limited to: (i) the carriage tour, walking tour, bus tour or tour guide business; (ii) a downtown convention and visitors bureau; (iii) a hotel and motel association; or, (iv) a restaurant association. Effective the first meeting of city council in 2004, the number of members who shall be active participants in some tourism related business or association shall decrease from four (4) to three (3). However, unless authorized above, no person may serve as a member of the tourism commission if any business with which that person is associated is regulated by the commission. The mayor of the city shall be a member of the commission. He may be represented at city meetings by a personal voting representative. The term of office, after the initial members, for all members of the commission, except the mayor, shall be three (3) years. Members may be appointed for one (1) additional three-year term, but no more. An appointment to fill a vacancy shall be only for the unexpired portion of the term. The chairman of the commission shall be appointed annually by the mayor. Any commission member who fails to attend three (3) consecutive meetings without an excuse from the chairman, or who fails to attend a total of seven (7) meetings in any calendar year, whichever occurs first, shall forfeit his or her seat.

For purposes of this section, the following definitions shall apply:

(1) *Business* means a corporation, partnership, proprietorship, firm, an enterprise, a franchise, an association, organization, or a self-employed individual.

(2) *Business with which he is associated* means a business of which the person or a member of his immediate family is a director, officer, owner, employee, a compensated agent,

or holder of stock worth one hundred thousand dollars ($100,000.00) or more at fair market value and which constitutes five (5) per cent or more of the total outstanding stock of any class.

(3) *Immediate family* means:

a. A child residing in the member's household;

b. A spouse of a member; or an individual claimed by the member as a dependent for income tax purposes.

(Ord. No. 1983-22, § 5, 5-10-83; Ord. No. 1992-198, § 1, 11-10-92; Ord. No. 1998-174, § 7, 9-22-98; Ord. No. 2002-49, § 1, 3-26-02)

Sec. 29-33. Duties and responsibilities.

The commission shall:

(1) Oversee the broad range of tourism-related matters that affect the economic and general welfare of the citizens of the city in order to ensure that visitors can enjoy the historic and cultural aspects of the city's heritage consistent with the maintenance of the environmental quality of life of its citizens;

(2) Make such policy recommendations to the mayor and city council as will further the goals of tourism management, particularly in the areas of parking and routing of tourism-related traffic activities, the qualification and licensing of tour guides, the determination of vehicle appropriateness and the enforcement of tourism management regulations;

(3) Hear appeals from the decisions of the department of livability and tourism;

(4) Apply Robert's Rules of Order to the conduct of its meetings, except as otherwise provided by these rules of procedure;

(5) Issue such regulations as the city council may, by ordinance, authorize;

(6) Review the annual report of the director of the department of livability and recommend revisions to procedures as required;

(7) Monitor the enforcement and decisions of the director of the department of livability and tourism to ensure consistency with long-term tourism planning goals; and

(8) Have such other duties and responsibilities as the city council may from time to time direct.

(Ord. No. 1983-22, § 6, 5-10-83; Ord. No. 1998-174, §§ 8, 9, 9-22-98; Ord. No. 2015-164, § 17, 11-10-15; Ord. No. 2016-070, § 1, 5-24-16; Ord. No. 2019-025, § 1, 4-9-19)

Secs. 29-34—29-45. Reserved.

DIVISION 3. RESERVED*

Secs. 29-45—29-57. Reserved.

ARTICLE III. TOUR GUIDES†

Sec. 29-58. Business license—Required.

No person shall act or offer to act as a tour guide in the city for hire unless he or she has a City of Charleston business license or works for a tour business with a City of Charleston business license.

(Ord. No. 2007-203, § 1, 10-23-07; Ord. No. 2016-054, § 2, 4-26-16; Ord. No. 2023-063, § 4, 3-28-23)

Cross reference—Licenses, permits and miscellaneous business regulations, Ch. 17.

***Editor's note—**Ord. No. 2023-064, § 4, adopted March 28, 2023, repealed Div. 3, §§ 29-45, 29-46, which pertained to tourism commissions and derived from Ord. No. 2015-164, §§ 10, 11, adopted Nov. 10, 2015.

†**Editor's note—**Ord. No. 2007-203, §§ 1, 2, adopted Oct. 23, 2007, substantially amended former Art. III, §§ 29-58—29-66 to read as herein set out. Former Art III pertained to similar subject matter and derived from the following; Ord. No. 1983-22, §§ 9—17, 5-10-83; Ord. No. 1986-49, § 1, 5-27-86; Ord. No. 1998-174, §§ 11—13, 9-22-98; Ord. No. 2001-132, § 1, 12-18-01.

Sec. 29-59. Voluntary tour guide certification.

(a) The written examination shall be based upon materials approved by the tourism commission which shall be made available to the public by department of livability and tourism for a fee.

(b) The department of livability and tourism shall prepare and administer the written examination which is meant to test the applicant's knowledge of the city and its history.

(c) At the time of the examination, applicants shall provide:

(1) Current driver's license or state-issued identification; or

(2) A recent photograph and other proof of identification to the satisfaction of the director of livability and tourism or his/her designee; and

(3) A receipt indicating proof of payment for examination.

(d) The examination shall be given twice a month at a time and place to be determined by the director of livability and tourism or his/her designee however, in case of hardship, the examination may be scheduled sooner.

(e) The examination shall be uniform for all persons taking the examination on the same day.

(f) An applicant shall receive a passing grade for the examination when seventy (70) percent of the questions asked are answered correctly. An applicant must receive a passing grade on the written examination before being granted a tour guide certification.

(g) It shall be the duty of the director of livability and tourism or his/her designee to review each examination to determine if a passing grade has been attained.

(h) Individuals found cheating on the tour guide certification examination shall receive a failing grade on the examination and shall be disqualified from re-taking the examination for a period of one (1) year.

(i) The voluntary certification of a tour guide shall expire on December 31 of the third year after its issuance. Renewal of certification can be met in one (1) of the two (2) following ways:

(1) Re-taking and obtaining a passing grade of seventy (70) percent on the examination.

(2) A tour guide may renew their certification by showing proof of attendance at four (4) approved continuing education lectures since the guide's last test or renewal. Approved courses shall be on a list maintained by the city per section 29-64.

(j) A tour guide maintaining certification for a period of twenty-five (25) consecutive years shall achieve the status of tour guide emeritus and shall be issued a permanent certified tour guide ID with no expiration date and shall be exempt from further examination and education requirements.
(Ord. No. 2007-203, § 2, 10-23-07; Ord. No. 2015-164, § 12, 11-10-15; Ord. No. 2016-054, § 3, 4-26-16; Ord. No. 2023-063, § 5, 3-28-23)

Sec. 29-60. Reserved.

Editor's note—Ord. No. 2016-054, § 4, adopted April 26, 2016, repealed former § 29-60 in its entirety which pertained to the granting of temporary tour guide licenses and derived from Ord. No. 2007-203, § 2, 10-23-07; Ord. No. 2015-164, § 13, 11-10-15)

Sec. 29-61. Tour guide identification card.

(a) Upon successfully meeting all the requirements of the voluntary certification program and after verification of a business license, the applicant shall be issued a certified tour guide ID by the department of livability and tourism.

(b) Individuals choosing not to participate in the voluntary certification program may request an ID by the department of livability and tourism once they have completed the following requirements.

(1) First time tour guide applicants shall sign an acknowledgement stating that they have reviewed the current tour regulations and that they understand that these regulations apply to their tour activities.

(2) Individuals must provide a copy of their business license if independently employed or a copy of their employer's business license and a signed acknowledgement form from the department of livability and tourism showing that they are employed by them.

(Ord. No. 2007-203, § 2, 10-23-07; Ord. No. 2015-164, § 14, 11-10-15; Ord. No. 2016-054, § 5, 4-26-16; Ord. No. 2023-063, § 6, 3-28-23)

Sec. 29-62. Display of tour guide identification card.

(a) Every person conducting tours shall wear their tour guide identification card (ID) or a copy of their state issued ID on his or her person in plain view at all times when exercising the privileges of such license.

(b) Additionally, every person acting as a tour guide, must carry on their person proof of valid business license and picture identification.

(Ord. No. 2007-203, § 2, 10-23-07; Ord. No. 2023-063, § 7, 3-28-23)

Sec. 29-63. Continuing education.

The tourism commission shall maintain a list of sources on the history of the city and shall offer continuing education programs and encourage tour guides to participate therein.

(Ord. No. 2007-203, § 2, 10-23-07; Ord. No. 2023-063, § 8, 3-28-23)

Editor's note—Ord. No. 2023-063, § 8, adopted March 28, 2023, repealed § 29-63, and renumbered former §§ 29-64 and 29-65 as §§ 29-63 and 29-64. Former § 29-63 pertained to renewal and expiration of registered tour guide license and derived from Ord. No. 2007-203, § 2, 10-23-07; Ord. No. 2016-054, § 6, 4-26-16.

Sec. 29-64. Reporting requirements.

All businesses or tour guides, conducting tours for hire shall file on a monthly basis, in a format required by the revenue

collections division of the department of budget, finance and revenue collection, the number of tours conducted and the number of people involved in each tour.
(Ord. No. 2007-203, § 2, 10-23-07; Ord. No. 2015-164, § 15, 11-10-15; Ord. No. 2023-063, § 8, 3-28-23)

Note—See editor's note at § 29-63.

Secs. 29-65—29-80. Reserved.

Editor's note—Ord. No. 2023-063, § 9, adopted March 28, 2023, repealed § 29-66, which pertained to revocation of license and derived from Ord. No. 2007-203, § 2, 10-23-07; Ord. No. 2015-164, § 16, 11-10-15; Ord. No. 2016-054, § 7, 4-26-16.

ARTICLE IV. TRANSPORTATION BY MOTOR VEHICLE FOR PURPOSES OF TOURING*

DIVISION 1. GENERALLY

Sec. 29-81. Restricted to certain vehicles.

No person shall operate or cause to be operated any motor vehicle for hire for the purpose of conducting tours within the old city district or the old and historic district of the city except in private passenger automobiles, small buses, charter buses and large buses as provided in this chapter.
(Ord. No. 1983-22, § 18, 5-10-83)

Secs. 29-82—29-92. Reserved.

DIVISION 2. PRIVATE PASSENGER AUTOMOBILES

Sec. 29-93. Certificate of appropriateness not required.

No certificate of appropriateness shall be required for private passenger automobiles.
(Ord. No. 1983-22, § 20, 5-10-83)

***Editor's note—**Ord. No. 1998-174, adopted Sept. 22, 1998, substantially amended the various provisions of Art. IV, as noted in the history notes following amended sections. Section 22 of Ord. No. 1998-174 repealed former Div. 6, §§ 29-159—29-29-161, in its entirety which pertained to extra large buses and renumbered former Divs. 7, 8, as 6, 7.

Sec. 29-94. Route limitations.

There are no route limitations on private passenger automobiles.
(Ord. No. 1983-22, § 21, 5-10-83)

Sec. 29-95. Tour guide required.

No one other than a tour guide may conduct a tour for hire in a private passenger automobile. A tour guide card will be placed in the rear window of the vehicle while touring for hire.
(Ord. No. 1983-22, § 22, 5-10-83; Ord. No. 2023-063, § 10, 3-28-23)

Sec. 29-96. Insurance required.

Private passenger automobiles used in conducting tours for hire must carry liability insurance of at least the amounts required by the Financial Responsibility Act of South Carolina and also shall carry medical payments (Med Pay) or Personal Injury Protection (PIP) coverage in an amount of at least five thousand dollars ($5,000.00) per accident. Such policies shall contain no exclusion of coverage while operating vehicles for hire.
(Ord. No. 1983-22, § 23, 5-10-83; Ord. No. 2019-083, § 1, 9-10-19)

Sec. 29-97. Passenger loading and parking.

Private passenger automobiles need only comply with the ordinances of the city, the laws of the state regulating traffic generally and with the provisions of article VI of this chapter.
(Ord. No. 1983-22, § 24, 5-10-83)

Secs. 29-98—29-108. Reserved.

DIVISION 3. SMALL BUSES

Sec. 29-109. Certificate of appropriateness required.

No small bus shall operate for touring without a duly issued certificate of appropriateness or without having paid such fee therefor that city council may, from time to time, establish.
(Ord. No. 1983-22, § 26, 5-10-83; Ord. No. 1985-148, § 2, 12-17-85)

Cross reference—Licenses, permits and miscellaneous business regulations, Ch. 17.

Sec. 29-110. Route limitations.

(a) Small buses may operate on all streets in the districts, with the exception of brick and cobblestone streets, any public way designated as an alley, lane or court, on Tradd Street, between Meeting and Church Streets, and such streets as may be restricted from such use by the department of traffic and transportation and so designated in the office of tourism.

(b) The peninsula city shall be divided into zones of operation as may be recommended from time to time by the commission and approved by city council. A map outlining such zones shall be maintained in the office of the department of livability and tourism.

(c) Every touring entity having regularly scheduled small bus tours shall submit to the director of livability and tourism or his/her designee the schedule of times it offers small bus tours. The director of livability and tourism or his/her designee shall assign to touring entities with regularly scheduled small bus tours a route, per regularly scheduled tour, that must be followed and adhered to by the touring entity on a given tour, and shall continue to do so on an annual basis thereafter upon the issuance or renewal of a certificate of appropriateness. Routes assigned by the director of livability and tourism or his/her designee shall be distributed equally among the touring entities submitting schedules to the tourism director.

(d) Upon being assigned a particular route for a given tour, the touring entity must follow such route and utilize its best efforts to spend equal amounts of time in each zone of operation on the route.

(e) Those touring entities having small buses, but which do not conduct regularly scheduled tours, must notify the director of livability and tourism or his/her designee, at least twenty-four (24) hours in advance of a tour, of its intention to conduct a tour, and shall then be assigned a route which must be followed on such tour.
(Ord. No. 1983-22, § 27, 5-10-83; Ord. No. 1984-171, § 1, 11-13-84; Ord. No. 1985-148, § 3, 12-17-85; Ord. No. 2023-064, § 5, 3-28-23)

Sec. 29-111. Tour guide required.

All tours on small buses must be conducted by a tour guide.
(Ord. No. 1983-22, § 28, 5-10-83; Ord. No. 2016-054, § 8, 4-26-16; Ord. No. 2023-063, § 11, 3-28-23)

Sec. 29-112. Passenger loading.

No small bus shall pick up or discharge passengers at any location on the public streets or public properties of the city except at duly designated passenger loading zones.
(Ord. No. 1983-22, § 29, 5-10-83)

Sec. 29-113. Parking.

No small buses shall park at any location on the public streets of the city except at the following locations:

(a) The Gaillard Municipal Auditorium;

(b) The visitor information center;

(c) In designated areas:

(1) On North Market Street near Meeting Street;

(2) On Wentworth Street near Glebe Street;

(3) On the east side of East Battery between Murray Boulevard and South Battery;

(4) On the west side of Meeting Street between Queen Street and Courthouse Square;

(5) On the south side of Cumberland Street between Meeting and Church Streets.

(d) At other locations approved by the department of traffic and transportation with the approval of the committee on traffic and transportation and so designated in the office of tourism.

(Ord. No. 1983-22, § 30, 5-10-83; Ord. No. 1998-174, § 14, 9-22-98)

Cross reference—Stopping, standing and parking of motor vehicles generally, § 19-231.

Sec. 29-114. Limitation upon number of small buses in operation.

(a) There shall not be operated on the streets of the city, pursuant to section 29-81, more than thirty-six (36) small buses at any one (1) time. Should the number of persons desiring to operate small buses exceed thirty-six (36), then the director of livability and tourism or his/her designee with the advice of the tourism commission shall devise a lottery or similar system to ensure that all operators have an equal opportunity to operate for reasonable periods of time.

(b) When the number of small buses operating at the same time reaches thirty-six (36), the bus operators must report to the small bus gate keeper who will be housed at the permit office in the visitor center, to obtain a medallion. This will ensure that all operators will have an equal opportunity to operate for reasonable periods of time.

(Ord. No. 1995-487, § 1, 10-10-95; Ord. No. 1998-174, § 15, 9-22-98; Ord. No. 2010-102, § 1, 6-15-10; Ord. No. 2023-064, § 6, 3-28-23)

Sec. 29-115. Exception to the size of small buses in operation.

(a) There may be operated on the streets of the City of Charleston, pursuant to section 29-81, no more than one (1) small bus that is greater than twenty-six (26) feet in length but

no more than twenty-six (26) feet six (6) inches in length if such bus is accessible to persons with disabilities and meets all requirements of the federal Americans with Disabilities Act. This bus shall be included in the limitation upon the number of small buses in operation as provided for in section 29-114.

(b) All tour bus entities and drivers shall refer patrons with disabilities to the small bus authorized to operate pursuant to this section so that tour bus service shall be accessible to persons with disabilities in the Old and Historic District of the City of Charleston.

(c) In the event there is a desire by persons or entities to operate more than one (1) bus in the city as described in subsection (a), the right to operate shall be made available to persons or entities whose buses met subsection (a) by the director of livability and tourism or his/her designee conducting a drawing on a six-month basis to determine which bus shall operate in the next succeeding six (6) months.
(Ord. No. 2004-146, § 2, 11-23-04; Ord. No. 2009-62, § 2, 4-28-09; Ord. No. 2023-064, § 7, 3-28-23)

Secs. 29-116—29-124. Reserved.

DIVISION 4. ARTICULATED VEHICLES AND THEME VEHICLES—PROHIBITED*

Sec. 29-125. Findings of council.

(a) City council hereby makes the following finding of fact:

(1) The number of persons using the public streets in the Old and Historic District and the Old City District (the districts) in the recent years has increased dramatically due to an expanded commercial use and the growing tourism industry. As a result, the streets in the districts

*__Editor's note—__Ord. No. 1998-174, § 16, adopted Sept. 22, 1998, amended former Division 4, §§ 29-125—29-129 in its entirety to read as herein set out. Former Division 4 pertained to charter buses and derived from Ord. No. 1998-32, §§ 23—36, 5-10-83; Ord. No. 1985-148, § 4, 12-17-85.

have increased congestion because of a rise in the number of vehicles, motorized and pedestrian, using the streets.

(2) To protect the historic and traditional ambiance of the districts, which not only promotes the welfare of the residents living therein, but also the welfare of the community at large due to the economic benefits generated by a viable and healthy tourism industry, and to promote and protect the safety of those using the streets in the districts, whether they be visitors or citizens, city council finds it necessary to restrict access to the streets in the districts to certain vehicles.

(3) Articulated vehicles and theme vehicles, as defined in section 29-2, are, by their design and nature, distracting, elongated, slow moving, bulky and cumbersome and, by their appearance, not in keeping with the ambiance of the Old City District or Old and Historic District.

(4) Control of access to and from such vehicles by users or pedestrians to and from the sidewalks or public streets is not readily manageable, thereby posing a potential danger for those using the vehicles and for those using the streets and sidewalks, be they pedestrians or persons in or on other vehicles.

(5) Articulated vehicles and theme vehicles on the streets of the Old City District and Old and Historic District would be detrimental to the ambiance and environment of the districts, and would add to congestion in the streets and would greatly inconvenience, if not endanger, users of the streets and sidewalks in the districts, all to the detriment of the character of the districts, the residents of the districts and the visitors to the districts.

(6) It is in the public interest, and for the public safety and welfare, that the streets in the districts, and the users thereof be protected from unreasonable encroachments or vehicles which hinder travel or which pose dangers or distractions which give rise to accidents and inconvenience.

(Ord. No. 1998-174, § 16, 9-22-98)

Sec. 29-126. Articulated vehicles prohibited.

It shall be unlawful for any person to operate or utilize, or cause to be operated or utilized, any articulated vehicle in, on, or alongside the public streets of the Old City District and Old and Historic District.
(Ord. No. 1998-174, § 16, 9-22-98)

Sec. 29-127. Theme vehicles prohibited.

It shall be unlawful for any person to operate or utilize, or cause to be operated or utilized, any theme vehicle in, on, or alongside the public streets of the old city district and the old and historic district for the purpose of conducting tours except as hereinabove provided.
(Ord. No. 1998-174, § 16, 9-22-98)

Secs. 29-128—29-140. Reserved.

DIVISION 5. LARGE BUSES

Sec. 29-141. Certificate of appropriateness not required.

No certificate of appropriateness shall be required for large buses.
(Ord. No. 1983-22, § 38, 5-10-83)

Cross reference—Licenses, permits and miscellaneous business regulations, Ch. 17.

Sec. 29-142. Special permit required.

No large buses may conduct a tour in the districts without a touring permit duly authorized by the director of the department of livability and tourism. A separate permit shall be required for each trip into the districts. At all times during the tour, the permit shall be displayed in the front window of the vehicle. The number of permits in use at any one (1) time may be limited by the director of the department of livability and tourism in coordination with the director of traffic and transporta-

tion for the purpose of traffic management. Advance requests for permits may be granted by the director of livability and tourism or his/her designee.
(Ord. No. 1983-22, § 39, 5-10-83; Ord. No. 2015-164, § 17, 11-10-15; Ord. No. 2016-070, § 2, 5-24-16; Ord. No. 2023-064, § 8, 3-28-23)

Cross reference—Licenses, permits and miscellaneous business regulations, Ch. 17.

Sec. 29-143. Route limitations.

Large buses may operate only on the perimeter route so designated by the director of the department of livability and tourism, and incorporated herein by reference; provided, however, large buses may also operate in a westerly direction on Broad Street to Meeting Street and in a northerly direction on Meeting Street, South of Calhoun Street, but not between the hours of 4:30 p.m. and 6:00 p.m., except on Saturdays, Sundays and legal holidays.
(Ord. No. 1983-22, § 40, 5-10-83; Ord. No. 2015-164, § 17, 11-10-15; Ord. No. 2016-070, § 3, 5-24-16)

Sec. 29-144. Tour guide required.

All tours on large buses must be conducted by a tour guide.
(Ord. No. 1983-22, § 41, 5-10-83; Ord. No. 2023-063, § 12, 3-28-23)

Sec. 29-145. Passenger loading for large buses.

No large buses shall pick up or discharge passengers on the public streets or public properties of the city except at the following locations:

(a) At any legal parking space for buses north of Calhoun Street;

(b) At the visitor information center;

(c) In designated spaces:

(1) On East Bay Street near the Exchange Building;

(2) On Murray Boulevard near King Street;

(3) On Wentworth Street near Glebe Street;

(4) On John Street between Elizabeth and Meeting Streets;

(5) On the northwest corner of Broad and Church Streets;

(6) At other locations approved by the department of traffic and transportation with the approval of the city council committee on traffic and transportation and so designated by the director of the department of livability and tourism.

(Ord. No. 1983-22, § 42, 5-10-83; Ord. No. 1998-174, § 17, 9-22-98; Ord. No. 2015-164, § 17, 11-10-15; Ord. No. 2016-070, § 4, 5-24-16)

Sec. 29-146. Permitted transportation for nontouring purposes.

Other than as set forth in section 29-143, large buses may enter the districts only upon the issuance of a permit by the director of the department of livability and tourism and only for the purpose of transporting passengers to or from a single designated point, such as hotels, restaurants, the visitor information center or the tour boat facility. The permit shall specify the route to and from the designated delivery and pickup points at the time of such transportation and must be designated in the front window of the vehicle. Upon discharge of passengers, such buses must depart the districts and may reenter only to pick up passengers for departure from the district. The route and time of transportation shall be at the discretion of the director of the department of livability and tourism upon consideration of such factors as traffic, the width of streets and the number of such permits in use. Advance requests for permits may be granted by the director of the department of livability and tourism. No permit shall be required to transport passengers to or from the City Marina via Lockwood Drive.

(Ord. No. 1983-22, § 43, 5-10-83; Ord. No. 2015-164, § 17, 11-10-15; Ord. No. 2016-070, § 3, 5-24-16)

Sec. 29-147. Parking.

No large bus shall park at any location on the public streets or public parking facilities in the districts except at locations

approved by the department of traffic and transportation with the approval of city council and so designated in the office of the department of livability and tourism, and without obtaining a parking permit from the director of the department of livability and tourism prior to parking in any approved area as set forth herein.
(Ord. No. 1983-22, § 44, 5-10-83; Ord. No. 1998-174, § 18, 9-22-98; Ord. No. 2015-164, § 17, 11-10-15; Ord. No. 2016-070, § 5, 5-24-16)

Sec. 29-148. Day Light Savings Time perimeter route limits.

The director of the department of livability and tourism shall issue no more than six (6) permits per hour between the hours of 9:00 a.m. to 12:00 p.m. and 2:00 p.m. to 4:30 p.m. to large buses for the purpose of touring. Between the hours of 12:00 p.m. and 2:00 p.m. and 4:30 p.m. and 6:00 p.m. no more than four (4) permits shall be issued to large buses.
(Ord. No. 1998-174, § 19, 9-22-98; Ord. No. 2015-164, § 17, 11-10-15; Ord. No. 2016-070, § 3, 5-24-16)

Sec. 29-149. Eastern Standard Time perimeter route limits.

The director of the department of livability and tourism shall issue no more than six (6) permits per hour between the hours of 9:00 a.m. to 12:00 p.m. and 2:00 p.m. to 4:30 p.m. to large buses for the purpose of touring. Between the hours of 12:00 p.m. and 2:00 p.m. and 4:00 p.m. and 5:00 p.m. no more than four (4) permits shall be issued to large buses for the purpose of touring.
(Ord. No. 1998-174, § 20, 9-22-98; Ord. No. 2016-070, § 3, 5-24-16)

Sec. 29-150. Perimeter routes.

There is hereby established two (2) perimeter zones for large buses conducting tours. One zone shall begin north of Calhoun Street and end south of Calhoun Street. The other zone shall begin south of Calhoun Street and end north of Calhoun Street.

Any permit issued to large tour buses shall be done so in alternating fashion so that no permits are issued consecutively in the same zone.
(Ord. No. 1998-174, § 21, 9-22-98)

Secs. 29-151—29-172. Reserved.

DIVISION 6. SCHOOL BUSES, CHURCH BUSES AND RECREATIONAL VEHICLES

Sec. 29-173. Touring limitation.

(a) Recreational vehicles, school buses and church buses twenty-five (25) feet or less in length may travel freely in the districts, but must park in compliance with applicable ordinances of the city, specifically, section 19-237 of the City Code prohibiting vehicles over twenty (20) feet in length from parking on public streets for more than one hour, and section 19-238 of the City Code prohibiting camping in any vehicle on public streets, in accordance with the laws of the state regulating traffic generally and with the provisions of article VI of this chapter.

(b) School buses, church buses or recreational vehicles over twenty-five (25) feet in length may transport passengers for the purpose of touring at any time in the districts, but only on the perimeter route or charter route as determined by the size of the vehicle. Such vehicles shall not stop or stand and may only park at bus parking spaces at the George M. Lockwood Marina, the Gaillard Municipal Auditorium, the SC State Ports Authority Passenger Terminal or other locations authorized by the department of traffic and transportation with the approval of the city council committee on traffic and transportation.
(Ord. No. 1983-22, § 49, 5-10-83)

Secs. 29-174—29-184. Reserved.

DIVISION 7. CERTIFICATES OF APPROPRIATENESS*

Sec. 29-185. When required.

No small bus or charter bus may be utilized for touring purposes in the district either by a company engaged in the touring business in the state or made available for charter for such use, without a duly issued certificate of appropriateness which must be permanently affixed to the vehicle in a location designated by the commission.
(Ord. No. 1983-22, § 50, 5-10-83)

Sec. 29-186. Application.

(a) An applicant for a certificate of appropriateness shall provide the director with the following:

(1) Adequate identification of the applicant and vehicle;

(2) Factory authorized material setting forth the characteristics of the vehicle including its dimensions, weight, passenger capacity, manner of propulsion, described noise level and air pollution characteristics;

(3) Color photographs not less than eight (8) inches by ten (10) inches of all four (4) sides of the vehicle or, in the discretion of the director of livability and tourism or his/her designee, sketches of a similar make and model, and samples of the color proposed for use on the vehicle;

(4) Adequate proof of liability insurance with PIP coverage in an amount as from time to time determined by the commission;

(5) If the vehicle is a used vehicle, the director of livability and tourism or his/her designee in their discretion may require visual inspection or that of the commission;

(6) A current state department of highways and transportation safety inspection sticker and a license tag;

(7) A fee as set by city council; and

*__Cross reference—__Licenses, permits and miscellaneous business regulations, Ch. 17.

(8) After approval but prior to issuance of the certificate, a current city business license.

(b) Upon receipt of the information as set forth in subsections (a)(1)—(7) director of livability and tourism or his/her designee shall submit the application to such subcommittees as may be designated by the commission for the subcommittee's recommendation as to whether the application should be approved. In acting upon and evaluating any application, the designated subcommittee shall utilize the criteria as set forth in section 29-187 of this chapter.

(c) The recommendation of the designated subcommittee shall only be advisory to the commission, and shall not in any way be construed to bind or otherwise obligate the commission.
(Ord. No. 1983-22, § 52, 5-10-83; Ord. No. 1987-83, § 1, 7-21-87; Ord. No. 2015-164, § 17, 11-10-15; Ord. No. 2023-064, § 9, 3-28-23)

Sec. 29-187. Design standards prerequisite to issuance.

No certificate of appropriateness shall be issued unless the commission has approved the design and appearance of the vehicle. The commission shall consider among other things the general design and color of the vehicle, specifically the character and appropriateness of the design and color for use in the districts, the age, condition, manner of propulsion, noise level and outward appearance of the vehicle.
(Ord. No. 1983-22, § 51, 5-10-83)

Sec. 29-188. Transferability.

A certificate of appropriateness shall be issued on a specific vehicle and for a specific owner and is nontransferable without approval of the commission. The certificate remains the property of the city and must be surrendered upon expiration or revocation.
(Ord. No. 1983-22, § 53, 5-10-83)

Sec. 29-189. Suspension or revocation.

(a) Failure to abide by the provisions of this chapter or any of the ordinances of the city or laws of the state in any manner affecting or regulating the operation of the vehicle for which the

certificate is issued, or the failure to maintain a city business license, a current state inspection sticker, vehicle license tags and required insurance shall be grounds for the suspension for a reasonable time or the revocation of a certificate of appropriateness.

(b) If, in the opinion of the director of the department of livability and tourism or his/her designee, a certificate of appropriateness should be suspended or revoked, he or she shall give written notice to the holder thereof, by certified mail, of the right to appear before the commission and show cause why the certificate of appropriateness should not be suspended or revoked.
(Ord. No. 1983-22, § 55, 5-10-83; Ord. No. 2016-070, § 6, 5-24-16; Ord. No. 2023-063, § 13, 3-28-23; Ord. No. 2023-064, § 10, 3-28-23)

Sec. 29-190. Expiration.

All certificates of appropriateness shall be granted for a period of one year and shall expire on the anniversary of the date of issue; provided, however, upon compliance with the provisions of section 29-186(1), (4), (6), (7) and (8), the certificate shall be renewed.
(Ord. No. 1983-22, § 54, 5-10-83)

Secs. 29-191—29-200. Reserved.

ARTICLE V. TRANSPORTATION BY ANIMAL-DRAWN VEHICLES FOR PURPOSES OF TOURING

DIVISION 1. GENERALLY

Sec. 29-201. Restricted.

No person shall operate or cause to be operate for hire any vehicle, of whatever nature, drawn by animals for the purpose of conducting tours within the old city district or the old and historic district, except animal-drawn vehicles as provided in this chapter.
(Ord. No. 1983-22, § 56, 5-10-83)

Sec. 29-202. Franchise agreement required; restrictions.

(a) *Findings of fact:*

(1) City council finds that certain of the operators of animal drawn vehicles in the old and historic district of the city have begun to utilize aggressive solicitation practices, adjacent to or upon the streets, sidewalks and public properties, urging upon citizens and visitors the use of their services; have abruptly approached citizens and visitors and thrust brochures in their hands, which are often unwanted and end up on the streets and sidewalks; have utilized solicitors, pamphleteers, persons holding signs, hawkers and pullers-in and have even placed fixed structures upon or adjacent to the streets, sidewalks and public properties to solicit business and/or distribute materials urging the use of their services.

(2) City council further finds that the success of such commercial practices requires that persons congregate and respond to such solicitation, thereby impeding pedestrian and vehicle travel.

(3) City council further finds that such practices have an adverse impact on the ambiance of the city and its old and historic district; tend to create confrontations with citizens and visitors; adversely impact pedestrian and vehicle traffic flow; create litter; tend to create nuisances; adversely impact the health, safety and well being of the public; and otherwise have a negative impact on the tourism industry and economy of the city.

(4) City council further finds that it is appropriate that, as a condition of operating animal-drawn vehicles in the old and historic district, all persons must obtain a franchise, and must agree to desist from the aforesaid business practices, which agreement shall be a condition of the franchise.

(5) City council further finds that the operation of animal drawn vehicles on the public streets is a privilege and not a right and such operation is for the benefit of the public.

(6) City council further finds in the adoption of this section, that this is part of an ongoing effort to reasonably regulate the conduct of business upon the streets and sidewalks of the central business district and the market area for the benefit of the general public.

(b) *Franchise required:* No person shall operate or cause to be operated upon the streets or sidewalks of the old and historic district of the city any animal-drawn vehicle, without first entering into a franchise agreement with the city. Such franchise agreement shall be granted for a period of one (1) year and shall expire on the anniversary of the date of execution; provided, however, upon compliance with the provisions of the franchise agreement and Chapter 29, Articles V and VI, the agreement shall be automatically renewed. The franchise agreement shall contain the following provisions, which provisions are material and go to the essence of the franchise agreement:

(1) The franchisee shall maintain a current business license.

(2) The franchisee shall agree to operate its business strictly in accordance with the ordinances of the city, applicable thereto, as from time to time amended.

(3) The franchisee shall agree that it will not carry out the following business practices, or suffer them to be carried out on its behalf, upon the sidewalks, streets and public properties in the old and historic district, or upon private property adjacent to such streets, sidewalks and public properties, but directed at persons upon such streets, sidewalks and public properties:

a. The distribution of pamphlets or other printed materials to solicit or advertise for business.

b. The use of hawkers, pullers-in, pamphleteers, or persons holding signs to solicit or advertise the business or inviting the public to make inquiries to such persons.

c. The placement of fixed structures for the purpose of sales, solicitation, hawking, pullers-in, pamphleteering or the support of signage or advertising.

d. The parking or storage of animals or equipment on the public streets and sidewalks, except to load or unload passengers in approved loading zones. Nothing herein shall regulate the parking or storage of animals or equipment on private property.

(4) Nothing herein shall prohibit the solicitation of business immediately alongside an animal-drawn vehicle in an approved loading zone so long as such solicitation is not done in a raucous manner.

(5) The franchise shall be nonexclusive.

(6) The franchisee shall agree that, upon the violation of the provisions of this section by the franchisee, its agents, employees, or persons acting on its behalf, the right to operate animal-drawn vehicles in the old and historic district shall be suspended as follows:

a. Upon two (2) violations within a six-month period, the franchise shall be suspended for a period not to exceed seven (7) days.

b. Upon three (3) violations within a one-year period, the franchise shall be suspended for a period not to exceed thirty (30) days.

c. Upon four (4) violations within a one-year period, the franchise shall be suspended for a period not to exceed one hundred eighty (180) days.

(c) *Administration and appeals.* This section shall be administered by the director of livability and tourism or his/her designee. All appeals from an interpretation or determination by the director of livability and tourism or his/her designee shall be made to the tourism commission, within fifteen (15) days of notice of such interpretation or determination. All appeals from an adverse decision by the tourism commission shall be made to the court of common pleas within thirty (30) days of such decision.

(d) *Execution of agreement.* City council, by the adoption of this section, authorizes the mayor to enter into a franchise agreement with any and all persons who desire to operate animal-drawn vehicles in the old and historic district. Unless

otherwise stated, each franchise agreement shall automatically renew on January 1 of every year so long as the franchisee is in good standing.
(Ord. No. 1995-110, § 1, 3-28-95; Ord. No. 1998-174, § 23, 9-22-98; Ord. No. 2001-133, § 1, 12-18-01; Ord. No. 2002-99, § 1, 8-13-02; Ord. No. 2006-200, § 1, 5-23-06; Ord. No. 2023-064, § 11, 3-28-23)

Sec. 29-203. Route limitations.

Animal-drawn vehicles may operate on all streets or public ways in the district except the following:

(a) The bricked portion of Church Street, from Water Street to South Battery, and all cobblestone and Belgium block streets;

(b) Any public way designated as an alley, land or court (excluding St. Michael's Alley which may be used through Friday from 4:00 to 6:00 p.m., excepting legal holidays.);

(c) The following streets:

(1) Atlantic Street;

(2) Price's Alley;

(3) Rope Maker's Lane;

(4) Bedons Alley;

(5) Ladson Street;

(6) Big Lamboll Street;

(7) Water Street (from Church to Meeting Streets);

(8) Church Street (from Tradd to Water Street);

(9) King Street (between Mary and George Streets).

(d) On such streets or at such times as are restricted for such use by the department of traffic and transportation with the approval of the city council committee on traffic and transportation and so designated by the director of the department of livability and tourism.

(e) There shall be an amended commercial route that can be used during eastern standard time between the hours of

4:30 p.m. to 6:00 p.m. The commercial route approved is as follows: Market Street to Concord Street to Vendue Range to Prioleau Street to Elliot Street to E. Bay Street to Exchange Street to Prioleau Street to Concord Street to Market Street.

(Ord. No. 1983-22, § 59, 5-10-83; Ord. No. 1986-88, § 1, 8-19-86; Ord. No. 1993-58, § 9, 4-27-93; Ord. No. 2013-10, § 1, 1-22-13; Ord. No. 2015-164, § 17, 11-10-15; Ord. No. 2016-070, § 3, 5-24-16; Ord. No. 2017-111, § 2, 9-13-17)

Sec. 29-204. Drivers.

All drivers of animal-drawn vehicles shall have a current automotive vehicle drivers license and demonstrate competence in handling animal-drawn vehicles. All drivers of animal-drawn vehicles shall be required to pass an animal-drawn vehicle competency examination which will satisfy the city that the driver is knowledgeable and capable of handling horses and animal-drawn vehicles in emergency situations.

(Ord. No. 1983-22, § 60, 5-10-83; Ord. No. 1993-58, § 7, 4-27-93)

Sec. 29-205. Tour guide required.

All tours on animal-drawn vehicles must be conducted by a tour guide.

(Ord. No. 1983-22, § 61, 5-10-83; Ord. No. 2023-063, § 14, 3-28-23)

Sec. 29-206. Gatekeeper loading and medallion issuance procedure.

(a) The city shall establish a central location at the corner of North Market and Church Streets for the distribution of medallions to be issued in the conduct of tours in the zones of operation as established pursuant to section 29-208 of the Code of the City of Charleston. The central location point shall be designated as the "gate" which will consist of a structure to be occupied by a city employee authorized to issue medallions for touring as provided herein, said employee to be more commonly referred to as the "gatekeeper." The gate loading procedure shall require an animal-drawn vehicle to load and discharge pas-

sengers as herein provided and to pass through the gate to receive a medallion and a GPS unit. This medallion shall indicate the zone in which the animal-drawn vehicle shall conduct its tour. The zone designation shall be obtained by random selection by the gatekeeper as hereinafter provided. The medallion shall be issued by the gatekeeper and affixed to the back of the animal-drawn vehicle. The GPS unit shall be used by the driver of the animal drawn vehicle to mark animal excreta on the public right-of-way. Upon completion of the tour, the medallion, and the GPS unit shall be returned to the gatekeeper by the driver or company representative of the animal-drawn vehicle having been issued the medallion. A medallion, and GPS unit shall be returned to the gatekeeper no later than seventy-five (75) minutes after its issuance. Loss or damage of a GPS unit shall result in the company assigned the unit being charged the cost of replacement of the unit.

(b) Animal-drawn vehicles shall load and discharge passengers at the city's one (1) central loading zone, located on Anson Street south of Pinckney Street and on North Market Street between Anson Street and Church Street, provided that an animal-drawn vehicle shall be able to load and discharge passengers on private property that is owned or operated by its company and provided that the said private loading zone is within the Market zone which is described as the area lying between and including Pinckney Street to the north; Cumberland Street to the south; East Bay Street to the east, and Meeting Street to the west.

(c) The gate shall operate between the hours of 9:00 a.m. through 5:30 p.m. during Eastern Standard time and from 9:00 a.m. and 6:30 p.m. during daylight savings time. During Eastern Standard Time, medallions shall be issued until 4:15 p.m. And shall be returned by 5:30 p.m. During daylight savings time, medallions shall be issued until 5:15 p.m. and shall be returned by 6:30 p.m.

(d) Animal-drawn vehicles shall be permitted to remain in a loading zone no longer than fifteen (15) minutes prior to entering the gate to receive a medallion. If a medallion is not issued to a vehicle which has been in the loading zone for fifteen

(15) minutes, the said vehicle shall move to the rear of the loading zone and wait in line to enter the gate and receive a medallion.

(e) A special tour, which is defined as a tour that has been scheduled in advance by the director of the department of livability and tourism, shall require a medallion before the said special tour can be conducted. A special tour must also utilize the city's loading zone or private property for loading and discharging passengers as provided herein.

(f) A commercial tour, shall be defined as a tour that is conducted in the commercial district only and after 4:15 p.m. There shall be no more than be five (5) commercial tours permitted to begin between 4:15 p.m. and 5:00 p.m. industry wide, and there shall be no more than five (5) commercial tours permitted to begin between 5:00 p.m. and 5:30 p.m. industry wide. The carriage company owners will determine among

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themselves how the five (5) commercial tours permitted to begin between 4:30 p.m. and 5:00 p.m. and the five (5) commercial tours permitted to begin between 5:00 p.m. and 5:30 p.m. will be divided up among the carriage companies. Commercial tours conducted after 5:30 p.m. shall not be restricted in the number of tours permitted and shall not require a medallion. Commercial tours shall not require a medallion.

(g) Every franchisee shall maintain a daily manifest upon which is recorded every trip made each day after the closure of the city's gate. Such manifests shall include details of every trip as defined by the department of livability and tourism. Manifests will be provided to the department of livability and tourism the following day. All rules and regulations of this chapter must be followed for these tours including the equipment required under section 29-212(c).

(Ord. No. 1983-22, § 62, 5-10-83; Ord. No. 1993-58, § 1, 4-27-93; Ord. No. 2002-73, § 1, 5-28-02; Ord. No. 2006-495, § 1, 11-14-06; Ord. No. 2010-85, § 2, 5-11-10; Ord. No. 2015-164, § 17, 11-10-15; Ord. No. 2016-070, § 3, 5-24-16; Ord. No. 2017-111, §§ 3, 4, 8, 9-13-17; Ord. No. 2019-026, § 1, 4-9-19; Ord. No. 2021-127, § 2, 9-14-21)

Sec. 29-207. Design standards.

Animal-drawn vehicles shall be authentically styled passenger carriages. Wagons which patently were designed for cargo instead of passengers will not be approved. Carriages must not exceed twelve (12) feet in length or six (6) feet in width. Carriages will be measured from end to end, excluding the steps and shafts; and, from axle tip to axle tip. No part of the carriage may be over six (6) feet in width; provided, however, any certificated carriage which was in use as of January 1, 1982, and no longer than thirteen (13) feet may continue in use.

(Ord. No. 1983-22, § 63, 5-10-83; Ord. No. 1998-174, § 24, 9-22-98)

Sec. 29-208. Zones of operation.

(a) The peninsula city shall be divided into zones of operation as may be recommended from time to time by the commission and approved by city council. A map outlining such zones and

the streets to be used for ingress and egress thereto, as applicable, shall be maintained by the department of livability and tourism.

(b) Based upon traffic studies, industry input and observations and experience of the commission, the maximum number of animal drawn vehicles to be allowed to operate in a given zone may be restricted, all as may be recommended by the commission and approved by city council.

(c) The right to operate in Zones 1, 2, 3, 4, and 5 shall be made available to touring entities having animal drawn vehicles for which certificates of appropriateness have been issued as follows:

(1) Through the use of the gate and gatekeeper procedure hereinabove defined, the gatekeeper shall utilize a medallion selection machine and twenty-eight (28) medallions, six (6) of which shall be designated for Zone 1, six (6) of which shall be designated for Zone 2, eight (8) of which shall be designated for Zone 3, and eight (8) of which shall be designated for Zone 5, to randomly select a medallion with a designated zone destination marked thereon, and that upon selection, the number shall be removed from the medallion selection machine and replaced when the medallion is returned.

(2) The gatekeeper will alternate between A and B medallions which will provide a different route for exiting the gate area and entering into the zones. These A and B routes provide for different paths of ingress into each zone. A detour is allowed for ingress in Zone 3B during school pickup only; carriages may avoid Archdale and travel Meeting and Queen Streets to enter Zone 3B. The routes are designated on the maps maintained by the department of livability and tourism.

(3) To avoid multiple carriages from being sent out in succession on the same path, the gatekeeper will keep drawing medallions until a different zone is drawn, unless all of the medallions left are of the same zone.

(4) Zone 4 will be used as a relief valve system. Zone 4 will have six (6) balls. Zone 4 balls will be put in the medallion selection machine on city holidays, the 30 busiest days of the year as determined by the industry, and such other days as the director of livability and tourism deems necessary. An exchange of one medallion for a Zone 4 medallion will be allowed once per day.

(5) When a medallion is issued, the gatekeeper shall record the company's name, the animal-drawn vehicle driver's name, medallion number, GPS unit number, and the

time that it is issued. No animal-drawn vehicle shall be issued more than one (1) medallion within forty-five (45) minutes from the time of issuance of the first medallion. When the medallion is returned, the check-in time shall be recorded by the gatekeeper. The gatekeeper shall verify that the maximum check-out time has not been exceeded.

(6) A medallion and GPS unit shall be returned to the gatekeeper no later than seventy-five (75) minutes from the time of its issuance.

(Ord. No. 1985-148, § 5, 12-17-85; Ord. No. 1986-49, § 2, 5-27-86; Ord. No. 1993-58, § 4, 4-27-93; Ord. No. 2015-164, § 17, 11-10-15; Ord. No. 2017-111, §§ 4, 5, 9-13-17; Ord. No. 2019-026, § 2, 4-9-19)

Sec. 29-209. Diapering apparatus and sanitation communication required.

It shall be unlawful for any person, firm, corporation or other entity to utilize any animal for the purpose of pulling any vehicle on city streets unless such animal is equipped with diapering apparatus that prevents the droppings of such animal from being deposited or otherwise left on city streets. It shall be the responsibility of the person, firm, corporation or other entity utilizing any animal-drawn vehicle to see that the diapering apparatus is maintained in working order. Further, every animal-drawn vehicle shall be equipped with a two-way communication system, a GPS unit, and flags to identify areas in need of sanitation. It shall be the responsibility of the person, firm, corporation or other entity utilizing any animal-drawn vehicle to drop a sanitation flag, marking areas where animals deposit or otherwise leave excreta on city streets and to use a GPS unit or utilize two-way communications to provide notice of areas in need of equine sanitation.

(Ord. No. 1987-82, § 1, 7-21-87; Ord. No. 1998-174, § 25, 9-22-98; Ord. No. 2007-223, § 1, 11-27-07; Ord. No. 2019-026, § 3, 4-9-19)

Sec. 29-210. Number of medallions to be issued.

(a) The city shall authorize a total of thirty-four (34) medallions to be distributed as follows:

Zone 1 6

Zone 2 6

Zone 3 8

Zone 4* 6

Zone 5 8

*Only available as described in section 29-208(c)(4).

(b) The medallions shall be labeled with a serial number as follows:

Zone 1 Serial Nos. 101—106

Zone 2 Serial Nos. 201—206

Zone 3 Serial Nos. 301—308

Zone 4 Serial Nos. 401—406

Zone 5 Serial Nos. 501—508

(Ord. No. 1993-58, § 3, 4-27-93; Ord. No. 2017-111, § 6, 9-13-17)

Sec. 29-211. Fees.

(a) Each animal-drawn vehicle company authorized to do business within the City of Charleston shall be assessed an annual fee of seventeen thousand five hundred dollars ($17,500.00) to operate a carriage business in the City of Charleston. This fee will allow a company to have one (1) animal-drawn vehicle in the central loading zone at any given time.

(b) Each animal-drawn vehicle company shall be assessed a fee of three dollars ($3.00) each time one of its animal-drawn vehicles receives a medallion at the gate. The company shall be billed on a monthly basis.

(c) A company which operates an animal-drawn vehicle business in the City of Charleston shall be assessed a monthly sanitation fee in a sum to be assessed by the director of the

department of livability and tourism, which fee shall be paid before the company shall be allowed to participate in the gatekeeper system, said fee to be billed to the company on a monthly basis.

(Ord. No. 1993-58, § 5, 4-27-93; Ord. No. 2015-164, § 17, 11-10-15; Ord. No. 2016-070, § 3, 5-24-16)

Editor's note—Ord. No. 1993-58, § 5, adopted April 27, 1993, enacted a new section 29-212. In order to better conform to the organization of the Code, the editor has redesignated the provisions of § 5 of Ord. No. 1993-58 as § 29-211.

Sec. 29-212. General health care and management requirements.

(a) *Findings of fact.* City council hereby makes the following findings of fact:

(1) The City of Charleston, carriage company operators, residents, and visitors to the City of cHarleston have sought to take a proactive approach to protect and ensure the health, safety and welfare of animals used in the tourism industry;

(2) A study was conducted to develop and recommend animal welfare policies to the tourism commission. In response to the study, the tourism commission formed the ad hoc committee on animal-drawn carriages which committee was comprised of representatives from the tourism commission, animal control, the carriage industry, the Society for the Prevention of Cruelty to Animals ("SPCA"), and an independent veterinarian;

(3) The ad hoc committee on animal-drawn carriages has now reviewed and updated the previously recommended policies after much deliberation and with input from the general public, Carriage Operators of North America ("CONA"), and the veterinarian community; and

(4) The codification of the ad hoc committee on animal-drawn carriages recommended regulations is in the best interest of protecting the health, safety, and welfare of the animals used in the tourism industry and protects

the health, safety, and welfare of motorists and pedestrians using the public right-of-ways along with the residents and tourists of the City of Charleston.

(b) *Definitions.* Except where the context clearly indicates otherwise, the following terms and phrases as used in this section shall have the following meanings:

(1) *Animal* shall mean any horse or mule used for touring purposes and operated under a franchise agreement as outlined in section 29-202.

(2) *Contamination* shall mean the introduction of unwholesome or undesirable elements, including but not limited to, bedding, mold, bugs, and rodent droppings.

(3) *Equine sanitation flag* shall mean the marker used to identify animal excreta and is generally recognized as a two and one-half-inch rubber ball cut in half with an eight-inch surveyor's flag attached.

(4) *Farrier* shall mean a specialist in horse care who addresses the hooves, feet and legs of the animal.

(5) *Free choice* shall mean that water shall be ready and in front of a horse for fifteen(15) minutes after a tour is conducted so that a horse is free to choose to drink or not to drink water.

(6) *GPS unit* shall mean a device supplied at the gate for the use of marking animal excreta.

(7) *Halter* shall mean a headcollar or other proper equine or livestock headgear that is used to safely lead or tie up an animal that fits behind the ears (behind the poll) and around the muzzle.

(8) *Hitching* shall mean the act of either attaching or detaching an animal to or from a carriage through the use of a harness secured to the animal.

(9) *Inspection* shall mean to permit the department of livability and tourism, the police department, or a city contracted veterinarian to enter upon the premises of any carriage company subject to this ordinance to make inspections and to examine and audit required records.

(10) *Old and Historic District* shall mean that portion of the city that is so designated from time to time on the official zoning map of the city.

(11) *Out of service* shall mean when the animal is unhitched from a carriage and out of its harness.

(12) *Police department* shall mean the chief of police or his or her designee.

(13) *Rest* shall mean the time when the animal is in service but not performing work as defined herein.

(14) *Stable* shall mean the barn where the animals are kept.

(15) *Stall* shall mean individual space within the barn where each animal is kept.

(16) *Tie(s)* shall mean a lead rope, crosstie, or other item used to connect the animal to either a handler or anchor point. Ties shall be strong to ensure the safe securing or handling of the animal and all hardware accompanying such ties shall also be strong enough for such safe handling. Ties and or their accompanying hardware shall be removed from usage if damaged and not able to safely secure the animal.

(17) *Tour* or *touring* shall mean the conducting of or the participation in sightseeing in the districts for hire or in exchange for a donation.

(18) *Touring stock* shall mean all animals used for touring pursuant to this section.

(19) *Vintage carriage* shall mean any carriage built before 1900.

(20) *Work* and *working* shall mean the act of pulling a carriage.

(c) *Equipment.*

(1) Every carriage used for touring purposes and operated under a franchise agreement as outlined in section 29-202 shall be equipped with the following:

a. Head lights or lanterns and tail lights or lanterns which are visible for a distance of (500) feet when

the carriage is operated from a half hour after sunset to a half hour before sunrise, and at any other time when windshield wipers are in use as a result of rain, sleet, or snow, or when inclement weather or environmental factors severely reduce the ability to clearly discern persons and vehicles on the street or highway at a distance of five hundred feet ahead. High reflectivity markers on the front, back and sides of the carriage as well as on the harness of the carriage-animal shall also be required;

b. A slow moving vehicle emblem attached to the rear of the carriage;

c. A diapering apparatus that prevents the droppings of the animal used to pull the carriage from being deposited on the ground or the right-of-way;

d. A fifth wheel or cut under turning mechanism on the front axle with the exception of vintage carriages;

e. Reflective ankle cuffs or another reflective device approved by the tourism committee shall be used on at least two (2) of the animal's legs if one (1) animal is pulling a carriage, or if two (2) animals are pulling a carriage reflective ankle cuffs or another reflective device approved by the tourism committee shall be used on at least one (1) of the outside legs of each animal when the carriage is operated from a half (½) hour after sunset to a half (½) hour before sunrise, and at any other time when windshield wipers are in use as a result of rain, sleet, or snow, or when inclement weather or environmental factors severely reduce the ability to clearly discern persons and vehicles on the street or highway at a distance of five hundred (500) feet ahead;

f. A two-way electronic communication system; and

g. A minimum of two (2) equine sanitation flags to mark animal excreta droppings.

h. One (1) GPS unit to mark animal excreta.

(2) Carriages must be properly lubricated and the carriage wheels shall spin freely.

(3) Each carriage shall be maintained in a safe condition so as to not endanger any person or property.

(4) Each carriage shall be maintained in a clean and sanitary condition, free of liter and debris and at all times suitable for public transportation of passengers.

(5) No carriage shall be operated having more passengers than what is permitted by its certificate of appropriateness or having a combined weight of carriage, passengers, and drivers that is more than three (3) times the weight of the animal(s) pulling the vehicle.

(d) *Carriage stands, client pick-up locations, staging areas, and barns.*

(1) Carriages queuing in the medallion booth line shall move and circle the block during equine sanitation cleaning.

(2) Each carriage company shall ensure that their animals in the queue line at the medallion booth shall have a fresh water source every hour.

(3) Each carriage company shall post at their barns in a conspicuous place signage as required under applicable federal, state, and local laws, including but not limited to, the Equine Activity Liability Act (S.C. Code 47-9-730), along with providing brochures outlining the City's ordinances governing the general health and welfare of the animals used in the tourism industry of Charleston.

(e) *Care and shelter of animals.*

(1) No animal shall be used to draw a carriage unless the animal is in good health and the following standards are met:

a. The animal shall not have open sores, open wounds, diarrhea, nor shall the animal be lame or have any other ailments unless the department of livability

and tourism as well as the individual company's stable has a current written statement by a veterinarian on file that the animal is fit for such work not withstanding such condition. Further, the written statement by the veterinarian must have a required expiration date;

b. The hooves of all animals while engaged in work on pavement, brick, concrete or other like hard surfaces shall have rubber or elastomer shoes, boots or pads to prevent slipping and shall be evenly trimmed and shod. However, steel shoes can be used upon introduction to the touring stock during an initial two-week trial period. Also, if a farrier determines that the horse's hooves will not accommodate the use of rubber pads, metal shoes can be used on the rear legs of the animal;

c. The animal shall be properly and appropriately groomed;

d. The animal shall have adequate flesh and muscle tone as determined by the Body Condition Scale of the Henneke Chart and shall average between 4 and 7;

e. The animal is kept in good working condition;

f. At introduction into the touring stock then bi-annually thereafter, the animal shall have had a physical inspection completed by and a certificate of serviceability for carriage work signed by a licensed equine veterinarian, with the results thereof provided to the City of Charleston Department of Livability and Tourism and made available for inspection on site. Additionally, written documentation from a certified scale verifying the weight of the animal shall he provided at introduction into the touring stock. Written documentation from a certified scale may be required on an as needed basis;

g. All animals upon reasonable notice by the department of livability and tourism or police department

shall be made available for an annual physical inspection to be conducted by the department of livability and tourism or police department's veterinarian with the results thereof being maintained by the department of livability and tourism with a copy being provided to the carriage company operator;

h. At introduction into the touring stock then quarterly thereafter, the animal shall have been de-wormed; and

i. At introduction into the touring stock, the animal has been vaccinated under the direction of a veterinarian for appropriate diseases and risk factors of the area, as outlined on the certificate of serviceability.

(2) Free choice water shall be provided to each animal immediately after completing a tour for a minimum of fifteen (15) minutes.

(3) Animals shall be provided electrolyte supplements at each feeding.

(4) Animals shall have at least fifteen (15) minutes rest between back to back tours.

(5) In a twenty-four-hour period, animals shall not engage in Work more than eight (8) consecutive hours or ten hours with out a one and one-half (1½) hour break being disconnected from the carriage, in a twenty-four-hour period.

(6) Animals shall not engage in work more than six (6) days in a seven-day period.

(7) Animals shall not engage in work with equipment causing an impairment of vision, other than normal blinders.

(8) Animals shall not be driven at a speed faster than a slow trot.

(9) Animals shall not be subject to any cruel or harassing treatment or equipment.

(10) Animals shall not be sold or disposed of except in a humane manner in accordance with American Association of Equine Practitioners' guidelines.

(11) Animals shall be at least three and one-half (3½ years of age and shall not weigh less than nine hundred fifty (950) pounds in fit condition.

(f) *Harnesses.*

(1) Animals shall not engage in work with harnesses or bits that harm or are unsafe to the animal.

(2) Harnesses, bridles, bits and padding shall be properly fitted and kept in clean and good repair.

(3) Harnesses shall be kept free of makeshifts like wire, rope, and rusty chain.

(4) Collars shall be sized appropriately for each equine.

(5) Harnesses, collars, blinders, bits, and bridles should exhibit no frayed or torn parts or evidence or being taped or other such sub-standard repairs.

(6) Trace chains shall not put pressure on the collar and shoulders of the animal when it starts pulling the carriage resulting in a jolting start versus a smooth start with a snug collar already in place.

(7) Breeching shall fit so that it will not rub or hinder the hind leg movement of the animal.

(g) *Weather conditions.*

(1) Carriage company operators and drivers shall use caution when Working animals in adverse weather conditions such as high heat and humidity, snow, ice, heavy rain, and other slippery or reduced visibility situations.

(2) When the ambient temperature reaches or exceeds eighty-five (85) degrees Fahrenheit at any point during the carriage company's hours of operation, the carriage company operators shall implement a mandatory system of taking the rectal temperature of each working animal immediately after completing a tour. In the event an animal's temperature reaches one hundred three (103)

degrees Fahrenheit or above, the animal's temperature shall be taken every fifteen (15) minutes until the animal's temperature falls below one hundred three (103) degrees Fahrenheit before the animal is allowed to return to work.

(3) When the rectal temperature of an animal reaches between 103—103.9 degrees Fahrenheit, the carriage company operator shall require the animal to be removed from service and be cooled down to a temperature of 101.5 degrees Fahrenheit before returning them to engage in Work.

(4) In the event that an animal's rectal temperature reaches 104 degrees Fahrenheit or above the animal shall be taken out of service for the day and cooled down.

(5) In the event an animal can not be cooled down to a rectal temperature of 101.5 degrees Fahrenheit within two (2) hours of the first 103 degree Fahrenheit or above rectal temperature recording, a veterinarian shall be immediately contacted to inspect the animal.

(6) At any time when an animal's rectal temperature reaches 105.0 or above, or if any animal shows signs of distress such as panting motions, thumping of the chest (synchronous diaphramic flutter), tying up, or stiffening of legs or back, muscle trembling, or colic, a veterinarian shall be immediately contacted to inspect the animal.

(7) When either the ambient temperature reaches ninety-five (95) degrees Fahrenheit or the Heat Index reaches one hundred ten (110) degrees Fahrenheit, as determined by the department of livability and tourism or the police department after having received four (4) consecutive ambient temperature and/or heat index readings, which readings were taken at least fifteen (15) minutes apart that demonstrate that the ambient temperature and/or heat index equals or is above the stated ambient temperature or heat index as provided herein, the carriage company operators shall discontinue working their animals and remove them from the streets until the temperature decreases below the above-stated

temperatures as authorized by the department of livability and tourism or the police department. When such a determination is made, the authorized city employee of the department of livability and tourism or the police department making the determination shall contact the medallion gate and the carriage operators of such determination and require that all carriage operations shall be discontinued until such time as the department of livability and tourism or the police department authorizes the carriages to return to the streets. The department of livability and tourism or the police department shall monitor the temperature and heat index and authorize the carriage operations to begin operating on the streets again after it is determined that the temperature is below ninety-five (95) degrees Fahrenheit and/or the heat index is below one hundred ten (110) degrees Fahrenheit for a period of thirty (30) minutes from the time of the first reading. However, if the temperature and/or heat index rises above the prescribed numbers at any time during the first thirty (30) minutes, the process starts over until the ambient temperature remains below ninety-five (95) degrees Fahrenheit and/or the heat index remains below one hundred ten (110) degrees Fahrenheit for thirty (30) consecutive minutes. At that time the authorized city employee of the department of livability and tourism or the police department making the determination shall notify the medallion gate and the carriage operators to advise that the medallion gate and carriage operators shall be permitted to resume the operation of the medallion gate and the working of their animals for tours on the streets.

(8) The official thermometer used for determining the temperature and the heat index shall be located at 181 Church Street in the City and County of Charleston, South Carolina. In the event this thermometer is out of service, as determined by the department of livability and tourism or the police department, the back-up thermometer shall be the thermometer at the Dock Street Theater located at 135 Church Street in the City

and County of Charleston, South Carolina, or as determined by the department of livability and tourism if the back-up thermometer is no longer available.

(h) *Feeding.*

(1) Animals shall receive an adequate amount of equine feed daily, which is free from contamination, sufficient in quantity, having nutritional value, and be provided frequently enough to meet normal daily requirements for the animal's condition, special needs, environmental factors and size of the animal so as to maintain a healthy flesh.

(2) Clean drinking water free from contamination shall be available to an out of service animal at all times.

(3) Out of service animals shall at all times have access to salt in a block or loose form.

(i) *Stables and stalls.*

(1) Stables shall be safe, well lighted, ventilated, and provide protection from the weather as described herein;

a. Stables and stalls shall be kept clean and in good repair and excreta shall be removed daily;

b. The floors of the stalls shall be graded and raked to keep their surface dry; each stall shall have rubber mats under the shavings or shavings with a minimum depth of four (4) inches;

c. Fans shall be used to increase ventilation when the ambient temperature reaches eighty (80) degrees Fahrenheit;

d. Sharp surfaces and any other hazards shall not be permitted in any stable or stall where they can come in contact with the animals;

e. Stables and stalls shall be kept free of leaks, including but not limited to, leaks form roofs or from plumbing;

f. Stalls sizes shall be no less than five (5) feet nine (9) inches by eleven (11) feet unless a carriage

company undertakes any remodeling or refurbishing of any sorts to their stable that equals fifty (50) percent of the market value of the stable or moves their stable. In the event a carriage company does remodel or refurbish their stable as stated in the previous sentence then they must implement a minimum stall size of twelve (12) feet by twelve (12) feet for every stall;

g. The practice of tethering the animal in a stall is permitted so long as the animal can lie down without the risk of entanglement or injury;

h. Occupied stalls shall have a minimum of three (3) inches of bedding or have a specialized surface so as to keep animals clean, dry and free of concussion, abrasion or pressure points;

i. Interior and exterior areas of the stable shall be kept clean, properly drained and free of nuisances including, but not limited to, unreasonable and excessive odors and unreasonable accumulation of refuse and excreta;

j. There shall be no smoking at any time in stables; and

k. Unless otherwise directed by a veterinarian, animals shall be given a pasture turn-out time of a minimum of four (4) consecutive days to total fourteen (14) days within four (4) months;

(2) Stables shall be located within walking distance the medallion gate located at the corner of Church and North Market.

(3) All stables shall have a yearly inspection by the fire department. Fire extinguishers must be kept in obvious places in every stable as required by law and as recommended by the fire department.

(j) *Recordkeeping.*

(1) Feeding, shoeing, medication, and treatment logs, biannual inspection records, certificate of serviceability, quarterly de-worming records, rectal temperature logs,

work schedules, disposal documentation, and such other records as requested by the director of livability and tourism or his/her designee and police department shall be maintained for a three-year period by each carriage company operator for every animal used in the touring stock.

(k) *Inspections.* In addition to the annual inspection provided for herein, animals, facilities and records shall be subject to random or unannounced inspections at the discretion of the director of livability and tourism or his/her designee, police department, and/or the city designated veterinarian. The inspector is permitted to take notes, pictures and video if they deem appropriate. These inspections shall be brief in order to not interfere with the work flow of the business. The inspector should be allowed to enter the premises no longer than fifteen (15) minutes after arrival at the facility during business hours.

(l) *Hitching.*

(1) All animals must be properly secured while being hitched or unhitched from any carriage or apparatus to ensure all animals remain under control during either process. A properly secured animal is one that is secured in any of the following manners:

a. Having at least one (1) tie when the tie is securing the animal to a physical barrier. A physical barrier is limited in this circumstance to mean only a wall, a horse trailer stationed in front of the animals so that the animal cannot walk through, or permanent fixture specifically designed for the safe securing of animals.

b. When no physical barrier is present, two (2) ties are required. These ties will be connecting the animal on the left and right side of the harness to a secured anchor point on each side, with a minimum of eight (8) feet between the two secured anchor points.

(2) Ties, in no situation, shall ever be attached to bridles or bits while being worn by the animal;

(3) All animals must wear halters during the hitching and unhitching processes. Halters shall also remain on underneath the bridle while harnessed.

(4) The animal must be completely unhitched before the bridle may be removed.

(m) *Annual training certifications.*

(1) Each animal-drawn carriage company shall implement a structured annual training program subject to the approval of the city for both its tour guides, and carriage operators to ensure proficiency when operating on the public right-of-way.

(2) Each animal-drawn carriage company shall implement a structured annual training program subject to the approval of the city for every employee who comes into contact with its animals in any capacity to have basic knowledge and training to include proper procedures and tacking methods to ensure proper fit and care of the animals and equipment.

(3) Each animal-drawn carriage company shall make available a report to the department of livability and tourism for inspection no less than once per year on the completion of annual or other mandated training of all drivers.

(Ord. No. 2007-90, § 1, 4-24-07; Ord. No. 2011-58, §§ 1—10, 8-16-11; Ord. No. 2011-59, § 1, 8-16-11; Ord. No. 2011-60, § 1, 8-16-11; Ord. No. 2015-164, §§ 17—19, 11-10-15; Ord. No. 2016-070, § 7, 5-24-16; Ord. No. 2017-034, § 2, 3-28-17; Ord. No. 2017-151, § 2, 12-11-17; Ord. No. 2019-026, §§ 4, 5, 4-9-19; Ord. No. 2019-099, § 1, 10-8-19; Ord. No. 2020-123, §§ 1, 2, 9-8-20; Ord. No. 2021-127, § 5, 9-14-21; Ord. No. 2022-110, §§ 1, 2, 8-16-22; Ord. No. 2023-064, § 12, 3-28-23)

Sec. 29-213. Emergency procedures.

(a) The department of livability and tourism has the authority to temporarily stop issuing medallions and to temporarily prohibit new tours including commercial tours if it is determined by the department of livability and tourism that a weather emergency or other condition(s) in the city exist which presents

a substantial risk of injury to horses or carriage passengers. This will not be construed as creating different heat restrictions than those set forth in 29-212.

(b) When the department of livability and tourism does refuse to issue medallions or temporarily prohibits new tours in accordance with subsection (a), then, the department must report such occurrence at the next occurring tourism commission.
(Ord. No. 2021-127, § 6, 9-14-21)

Secs. 29-214—29-218. Reserved.

DIVISION 2. CERTIFICATE OF APPROPRIATENESS

Sec. 29-219. Required.

No animal drawn vehicle shall operate without a duly issued certificate of appropriateness and without having paid such fee therefor as city council may, from time to time, establish. The certificate of appropriateness must be permanently affixed to the vehicle in a location approved by the commission.
(Ord. No. 1983-22, § 58, 5-10-83; Ord. No. 1985-148, § 5, 12-17-85)

Sec. 29-220. Application; inspection.

(a) An applicant for a certificate of appropriateness shall provide the department of livability and tourism with the following:

(1) Adequate identification of the applicant and animal-drawn vehicle and proof of ownership;

(2) Material setting forth the characteristics of the vehicle including its dimensions, weight, passenger capacity, maker, year built;

(3) An applicant must provide written documentation from a certified scale verifying the weight of the animal-drawn vehicle;

(4) Color photographs not less than eight (8) inches by ten (10) inches of all four (4) sides of the vehicle or, in the discretion of the department of livability and tourism, sketches of a similar make and model and samples of colors proposed for use on the vehicle;

(5) Adequate proof of liability insurance with at least the amount required for motor vehicles and also medical payments or PIP in an amount of five thousand dollars ($5,000.00);

(6) A fee as set forth by city council;

(7) After approval but prior to the issuance, a current city business license;

(8) Any modifications, other than routine maintenance, to the animal-drawn vehicle that change the dimensions, weight, passenger capacity or other characteristics must be submitted to the department of livability and tourism and shall be either approved or rejected by the tourism commission.

(b) Upon receipt of the information set forth in subsection (a)(1)—(4) and (6), the department of livability and tourism shall submit the application to the tourism commission for the commission's determination as to whether the application should be approved. In acting upon and evaluating any application, the tourism commission shall consider the design standards as set forth in section 29-207 of this chapter as well as the proposed color of the vehicle.

(c) Nothing herein shall be construed so as to prohibit the department of livability and tourism or the commission from requiring visual inspection of the vehicle.
(Ord. No. 1983-22, § 64, 5-10-83; Ord. No. 1987-83, § 2, 7-21-87; Ord. No. 2007-202, § 1, 10-23-07; Ord. No. 2015-164, § 17, 11-10-15; Ord. No. 2019-100, § 1, 10-8-19)

Sec. 29-221. Transferability.

A certificate of appropriateness required by this division shall be issued on a specific vehicle and for a specific owner and is not transferable. The certificate remains the property of the city and must be surrendered upon expiration or revocation.
(Ord. No. 1983-22, § 65, 5-10-83)

Sec. 29-222. Suspension or revocation.

(a) Failure to abide by the provisions of this chapter or any of the ordinances of the city or laws of the state in any manner affecting or regulating the operation of the vehicle for which the certificate is issued, or the failure to maintain the required insurance shall be grounds for suspension for a reasonable time or the revocation of a certificate of appropriateness issued under this division.

(b) If, in the opinion of the director of livability and tourism or his/her designee, a certificate of appropriateness should be suspended or revoked, he shall give written notice to the holder thereof, by certified mail of the right to appear before the commission and show cause why the certificate should not be suspended or revoked.
(Ord. No. 1983-22, § 67, 5-10-83; Ord. No. 2007-202, § 2, 10-23-07; Ord. No. 2015-164, § 17, 11-10-15; Ord. No. 2023-064, § 13, 3-28-23)

Sec. 29-223. Expiration.

All certificates of appropriateness shall be granted for a period of one year and shall expire on the anniversary of the date of issuance; provided, however, upon compliance with the provisions of section 29-220(a)(1), (4), (5), and (6) the certificate shall be renewed.
(Ord. No. 1983-22, § 66, 5-10-83; Ord. No. 2007-202, § 3, 10-23-07)

Secs. 29-224—29-234. Reserved.

ARTICLE VI. TOURING REGULATIONS GENERALLY

Sec. 29-235. Maintenance of traffic flow.

No vehicle of any kind in the conduct of a tour shall stop or stand for description purposes but shall remain in and be part of the normal traffic flow; provided, however, slower moving vehicles shall safely pull temporarily to the side so as to prevent unnecessary delays to following traffic; and provided, further, animal-drawn vehicles are permitted to temporarily pull to the side of streets, out of the traffic flow, for description purposes.

All animal-drawn carriages shall follow posted traffic signs, including without limitation stop signs and traffic signals.
(Ord. No. 1983-22, § 68, 5-10-83; Ord. No. 2021-127, § 9, 9-14-21)

Sec. 29-236. Hours of operation.

No person or entity shall conduct a tour in a small bus, large bus or animal-drawn vehicle or on foot prior to 9:00 a.m. and after 6:00 p.m. Day Light Savings Time or 5:00 p.m. Eastern Standard Time, in residential areas zoned SR, STR, or DR on the city zoning map on file in the office of zoning.
(Ord. No. 1983-22, § 69, 5-10-83; Ord. No. 1993-58, § 8, 4-27-93; Ord. No. 1994-402, § 1, 11-8-94; Ord. No. 1998-174, § 26, 9-22-98; Ord. No. 2010-85, § 1, 5-11-10; Ord. No. 2017-111, § 9, 9-13-17)

Sec. 29-237. Temporary traffic alterations.

The director of livability and tourism or his/her designee, with the consent of the director of traffic and transportation, may temporarily alter the routes of travel and parking limitations of this chapter as well as the trip limitation provisions of sections 29-126, 29-146, and 29-160.
(Ord. No. 1983-22, § 70, 5-10-83; Ord. No. 2023-064, § 14, 3-28-23)

Sec. 29-238. Touring by non-certified small buses and charter buses.

Small buses and charter buses which have not been granted certificates of appropriateness may transport passengers for the purpose of touring for hire in the districts, but only on the perimeter route. Such buses must receive the permit required by section 29-142 of this chapter and must comply with the remaining provisions of sections 29-142 through 29-147 of this chapter.
(Ord. No. 1983-22, § 71, 5-10-83)

Sec. 29-239. Limitations on engine idling.

No buses may park with engines idling for more than five (5) minutes in residential areas.
(Ord. No. 1983-22, § 72, 5-10-83)

Sec. 29-240. Report of accident required.

(a) The driver of a vehicle, or tour guide, governed by the tourism ordinances, involved in any accident/occurrence resulting in injury to or death of any person/animal and/or property damage shall within twenty-four (24) hours of such accident/occurrence make written report thereof to the director of livability and tourism or his/her designee. Further, all carriage operators must maintain current liability insurance information on their carriages at all times. The information must include the name of the insurance carrier, the policy number, and the contact telephone number of the insurance carrier.

(b) Each animal-drawn carriage company shall designate at least one (1) employee per shift to be trained in equine triage and/or first aid and to deploy as a first responder to any accident or incident involving possible injuries to a horse from their respective company.

(c) Every equine involved in a reportable accident or incident must be inspected by a licensed equine vet at the discretion of the Director of livability and tourism or his designee certifying the animal is healthy and sound before it may be returned to service.

(d) Each animal-drawn carriage involved in a reportable accident or incident shall be inspected before it may be returned to service.

(Ord. No. 2010-94, § 1, 5-25-10; Ord. No. 2013-11, § 1, 1-22-13; Ord. No. 2021-127, § 7, 9-14-21; Ord. No. 2023-063, § 15, 3-28-23; Ord. No. 2023-064, § 15, 3-28-23)

Editor's note—Prior to the reenactment of § 29-240 by Ord. No. 2010-94, Ord. No. 1998-174, § 27, adopted Sept. 22, 1998, repealed § 29-240 which pertained to restrictions on the operation of theme vehicles and derived from Ord. No. 1995-488, § 3, adopted Oct. 10, 1995.

Sec. 29-241. Compliance required.

Failure to comply with this article or any of the laws, ordinances, or regulations of this city may result in revocation of any certifications and punishment in a court of appropriate jurisdiction.

(Ord. No. 2021-127, § 8, 9-14-21; Ord. No. 2023-063, § 16, 3-28-23)

Secs. 29-242—29-260. Reserved.

ARTICLE VII. WALKING TOURS*

Sec. 29-261. Limits on size; additional tour guides.

(a) All walking tours for hire conducted from the public right-of-way shall consist of no more than twenty (20) persons per group, excluding the tour guide. Any walking tour for hire conducted from the public right-of-way consisting of more than twenty (20) people shall be divided into groups not to exceed twenty (20) and each group shall be accompanied by a tour guide. This section shall not apply to school groups that exceed twenty (20) people. School groups exceeding twenty (20) people may be accompanied by either a tour guide or a chaperone for every group of twenty (20) people, or fraction thereof, that

*__Editor's note—__Ord. No. 1998-174, § 28, adopted Sept. 22, 1998, amended former Art. VII, §§ 29-261—29-275, in its entirety to read as herein set out. Former Art. VII pertained to rickshaws and derived from Ord. No. 1992-23, § 1, adopted Feb. 25, 1992; Ord. No. 1995-425, §§ 2, 3, 9-12-95)

exceeds an initial twenty (20) people to manage the school groups while walking on the public rights-of-way to avoid impeding vehicular or pedestrian traffic.

(b) Further, the provisions of this section shall not apply to tours conducted off the public right-of-way when use of the public right-of-way is only incidental to conducting a tour. Use of the public right-of-way is incidental to conducting a tour when the public right-of-way is used for transportation purposes only and no tours are being conducting from the right-of-way. Further, this section shall not apply to tours conducted within city buildings or within city parks.

(c) Tour groups of any size shall not obstruct or otherwise inhibit the free, safe and efficient flow of vehicular or pedestrian traffic on any public right-of-way or public property including into and out of private property adjacent to any public right-of-way.
(Ord. No. 1998-174, § 28, 9-22-98; Ord. No. 2016-054, § 9, 4-26-16; Ord. No. 2019-027, §§ 1, 2, 4-9-2019; Ord. No. 2023-063, § 17, 3-28-23)

Sec. 29-262. Amplifying devices prohibited.

The use of an amplifying device while conducting a walking tour is prohibited.
(Ord. No. 1998-174, § 29, 9-22-98

Secs. 29-263—29-280. Reserved.

ARTICLE VIII. BICYCLE TOURS

DIVISION 1. GENERALLY

Sec. 29-281. Conduction of bicycle tours.

No person shall operate or cause to be operated bicycle tours, of whatever nature, within the old and historic district.
(Ord. No. 2002-24, § 1, 2, 2-26-02)

Sec. 29-282. Definitions.

Bicycle shall be a cycle, which contains two (2) or more wheels, however powered for the purpose of transportation.

Bicycle tours shall mean the use of a bicycle or bicycles to conduct a tour for hire whether or not the tour is conducted while the bicycle or bicycles are operational or whether they are used for transportation to various locations when the tour is conducted.
(Ord. No. 2002-24, § 1, 2, 2-26-02)

ARTICLE IX. PROCESS FOR REVIEWING PROPOSED CHANGES TO THE SOUTH CAROLINA STATE PORTS AUTHORITY'S PASSENGER CRUISE MANAGEMENT PLAN

Sec. 29-283. Findings of fact.

The city council hereby makes the following finds of fact:

(1) The city council unanimously supported and approved a resolution on September 14, 2010, in support of the redevelopment of Union Pier and relocation of the passenger terminal to the north end of Union Pier; and this resolution supported and approved the South Carolina State Ports Authority's Passenger Cruise Management Plan as outlined in letters from Jim Newsome, President and CEO of the authority, dated June 25, 2010 and Bill Stern, Chairman of the Board of the authority, dated July 30, 2010; and

(2) Additional community input has led the mayor and city council to work with the South Carolina State Ports Authority to further define the ports authority's commitment to a process through which the city and the community will be involved in any contemplated material change in the authority's passenger cruise management plan; and

(3) The South Carolina State Ports Authority unanimously approved a resolution on 21 April 2011 committing to a

public review process should the SCSPA make a material change in the authority's Passenger cruise management plan, as outlined in the letter from Jim Newsome, President and CEO of the authority and Bill Stern, Chairman of the Board of the authority, dated April 21, 2011; and

(4) The city council finds that the public review process set forth in section 29-284 below will allow the city and the citizens to have a substantial role in discussing, consulting with, and advising the authority on any material change to the operations of the new cruise facility, as the authority continues its mission to contribute to the economic development of South Carolina by fostering and stimulating waterborne commerce and shipment of freight, through the enactment of its passenger cruise management plan.

(Ord. No. 2011-136, § 1, 9-13-11)

Sec. 29-284. Establishment of process.

(a) There is hereby established a process to involve the Charleston community one (1) year in advance of any material change to the authority's passenger cruise management plan and to advise the ports authority as to the city's position on any proposed changes. Upon notification by the South Carolina State Ports Authority of any material changes in the authority's passenger cruise management plan, the following shall be done:

(1) Written notification to the following organizations:

a. Cruise neighbors advisory council. If such council is not then in existence, one shall be appointed by the mayor with the approval of city council. Council shall have a representative from each neighborhood, as recognized by the city's neighborhood council system, whose boundaries are adjacent to the Cooper River or any port operation as well as containing any or part of its jurisdiction within the peninsula historic district.

b. Historic Charleston Foundation.

c. Preservation Society of Charleston.

d. The Committee to Save the City.

e. The president of each of the neighborhood council which boundaries are adjacent to the Cooper River or any port operation as well as containing any or part of its jurisdiction within the peninsula historic district.

f. The tourism commission.

g. The Charleston Metro Chamber of Commerce.

h. The South Carolina Maritime Association.

(2) The city shall convene a community forum to discuss the material change or Changes to the passenger cruise management plan. The forum shall be advertised with two (2) public notices in a paper of community-wide circulation and notice posted as the city publishes official meetings. At the forum, if a majority of forum members request, additional forums shall be held for further discussion during this one (1) year.

(3) The city shall solicit public input as well through one (1) or more public hearings, including a public hearing at a city council meeting.

(b) For purposes of this section, material change will be defined as any change to the following commitments by the authority and previously supported by city council, as outlined in section 29-283, paragraphs (1) and (3):

(1) The construction of a one-berth cruise facility at the north end of Union Pier Terminal hosting no more than one (1) passenger cruise ship at a time at the dock, unless hosting a vessel in distress or in need of safe harbor;

(2) The maximum number of cruise ships calling in a calendar year; and

(3) A passenger terminal designed to accommodate a maximum three thousand five hundred (3,500) passenger ship.

(Ord. No. 2011-136, § 2, 9-13-11)

Sec. 29-285. Tourism commission review.

Upon written notification by the state ports authority of a material change to the passenger cruise management plan, the tourism commission will have the following roles and responsibilities:

(1) Review preliminary plan designs related to changes in the passenger cruise management plan;

(2) Advise city council regarding the changes in the passenger cruise management plan; and

(3) Make recommendations to city council regarding the changes to the passenger cruise management plan, including how the changes relate to the goals of tourism management.

(Ord. No. 2011-136, § 3, 9-13-11)

Sec. 29-286. City council to advise by resolution.

Within the one (1) year period set forth in section 29-284, the city council shall receive the report from public forums and public hearings that have been held at city council meetings, the report of the tourism commission, and any other communications that city council has received, and thereafter, the city council shall by resolution advise the South Carolina State Ports Authority of its recommendations on any proposed material changes in the ports authority's passenger cruise management plan.

(Ord. No. 2011-136, § 4, 9-13-11)

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Chapter 30

UTILITIES*

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Sec. 30-51. Public lighting.

***Cross references—**Administration generally, Ch. 2; buildings and building regulations, Ch. 7; fire prevention and protection, Ch. 13; garbage, trash and refuse, Ch. 14; parks and recreation, Ch. 22; planning, Ch. 23; railroads, Ch. 26; streets and sidewalks, Ch. 28.

State law references—Authority to construct and operate municipal utilities, S.C. Code 1976, § 5-31-610; authority to require sewage connections, S.C. Code 1976, §§ 5-31-2010(2), 5-31-2030(3)(a).

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ARTICLE I. IN GENERAL

Sec. 30-1. Interfering with city property controlled by commissioners of public works.

It shall be unlawful for any person to interfere or tamper with the property of the city controlled by the commissioners of public works or with the property of the commissioners of public works.
(Code 1975, § 46-1)

State law references—Commissioners of public works, S.C. Code 1976, § 5-31-210 et seq.; interference with sewers, waterworks, etc., S.C. Code 1976, § 5-31-20.

Sec. 30-2. Enforcement by police.

It shall be the duty of the police to report all persons found violating any of the provisions or prohibitions of any of the sections of this chapter and to arrest all persons who may violate the same or who may wantonly deface or injure any of the property of the city, controlled by the commissioners of public works.
(Code 1975, § 46-2)

Sec. 30-3. Combined waterworks and sewer system.

(a) *Feasibility of combination declared.* The city council determines that the waterworks system of the city and the city system for collection and disposal of sewage are so related as to make it both proper and feasible to combine the same.

(b) *Combination and designation of system.* The waterworks system of the city and the system of the city for the collection and disposal of sewage in existence as of August 16, 1960 is hereby combined into a single system. Such system shall be known as "The Waterworks and Sewer System of the City of Charleston."

(c) *Management of system; rates, tolls and charges.* The combined system provided for in paragraph (b) of this section shall be under the full control and management of the commissioners of public works of the city, who shall be fully empowered to operate, maintain, enlarge and improve the same and to

establish such rates, tolls and charges as it may deem proper for the services and facilities afforded by such waterworks and sewer system.
(Code 1975, §§ 46-3—46-5)

State law reference—Authority for governing body of any city to constitute a municipally-owned and operated waterworks system and a municipally-owned sewer system as a single system, S.C. Code 1976, § 6-21-10 et seq.

Secs. 30-4—30-15. Reserved.

ARTICLE II. CITY ELECTRICIAN

Sec. 30-16. Appointment of employees.

The director of the department of public service shall appoint, subject to the approval and consent of the mayor, such employees as are necessary to carry on the work formerly performed by the department of electricity.
(Code 1975, § 18-7)

Sec. 30-17. Duty to supervise and inspect wiring and equipment.

The department of public service shall supervise and inspect all electric wiring and apparatus and equipment for light, heat and power within the city.
(Code 1975, § 18-8)

Sec. 30-18. Jurisdiction over telegraph, radio and alarm systems.

The department of public service shall have charge of the police telephone and telegraph systems, the police and fire department radio system and the fire alarm system.
(Code 1975, § 18-9)

State law reference—Interference with police and fire alarm boxes, see S.C. Code 1976, § 16-17-570.

Sec. 30-19. Inspection of wiring and apparatus.

The department of public service may inspect or reinspect, at any time, any wiring or apparatus conducting or using electric current for light, heat or power, within the city.
(Code 1975, § 18-10)

Sec. 30-20. Supervision over erection and maintenance of wires and poles in streets.

Except as otherwise provided, the department of public service shall generally, so far as the interests of the city and the citizens are concerned, supervise and direct the erection, conduct and maintenance of all poles, wires and other electrical apparatus in, through, upon or over the streets of the city.
(Code 1975, § 18-11)

Sec. 30-21. Supervision and regulation of placement of wires to prevent fires and accidents.

The department of public service shall have general supervision over and shall regulate and determine the placing, stringing and attaching of all telegraph, telephone or electric light and power or other wires now in use or which shall hereafter be erected in the city so as to prevent fires or accident or injury to

persons or property, and to cause all such wires and all electrical appliances to be so placed, constructed and guarded, as not to cause fires or accidents, or endanger life or property.
(Code 1975, § 18-12)

Sec. 30-22. Enforcement of laws.

The department of public service shall enforce all laws, ordinances, rules and regulations relating to the installation, alteration, repair and operation of electrical wiring, apparatus and equipment.
(Code 1975, § 18-13)

Sec. 30-23. Right to enter buildings for inspections and testing.

The employees of the department of public service shall have the right, in the discharge of their official duties, to enter any building, manhole or subway, or climb any pole for the purpose of examining or testing the electrical appliances therein or thereon contained. For such purposes, they shall be given prompt access during reasonable hours to all buildings, public or private, and to all manholes and subways, on application to the individual or company owning or in charge of the same.
(Code 1975, § 18-14)

Sec. 30-24. Compliance with orders; interfering with department of public service.

Any person failing to comply with the lawful orders of the department of public service, or hindering or interfering with the employees of the department in the discharge of their duty shall be guilty of a misdemeanor.
(Code 1975, § 18-15)

Secs. 30-25—30-35. Reserved.

ARTICLE III. METERS AND METER INSPECTION

Sec. 30-36. Permit required to locate meter box in sidewalk or roadway.

No meter boxes shall be placed in the sidewalks or roadways of the city except under special permit which will be issued by the

department of public service only in case it is impracticable to locate such meter boxes inside the property which the meters are intended to serve.
(Code 1975, § 18-110)

Cross reference—Licenses, permits and miscellaneous business regulations, Ch. 17.

Sec. 30-37. Curb boxes in roadways prohibited; repair of curb and meter boxes.

No curb boxes shall be placed or maintained in the roadways. All curb boxes in the sidewalks or to be placed there hereafter, and all meter boxes duly authorized shall be kept in proper repair by the public service corporation or by the commission controlling same; provided that should such public service corporation or commission fail to repair any such curb and meter boxes within ten (10) days after notice by the department of public service, the department shall repair the same at the expense of the corporation or commission controlling the same.
(Code 1975, § 18-111)

Secs. 30-38—30-50. Reserved.

ARTICLE IV. PUBLIC LIGHTING*

Sec. 30-51. Public lighting.

The director of parks or his designee shall have general supervision over the public lighting of the streets, whether such lighting be done by franchise agreement, contract or otherwise, as the city council may from time to time determine and shall issue the orders for the installation, acceptance, or discontinuance of street lights and develop, implement, enforce, and administer the city's street lighting standards.
(Code 1975, § 18-80; Ord. No. 2010-111, § 2, 7-20-10)

*__Editor's note—__Ord. No. 2010-111, § 2, adopted July 20, 2010, repealed the former §§ 30-53—30-56 and 30-58—30-60 of art. IV, and renumbered § 30-57 as § 30-53, and §§ 30-61 and 30-62 as §§ 30-54 and 30-55, as set out herein. The historical notation has been retained with the amended provisions for reference purposes.

Sec. 30-52. Enforcement of article.

The department of parks shall see that all provisions of this article and other ordinances of the city and all orders and rules of the city council and of the public works and utilities committee of the city council relating to public lamps, or lighting of the streets and public grounds, are strictly enforced.
(Code 1975, § 18-81; Ord. No. 2010-111, § 2, 7-20-10)

Sec. 30-53. Additional duties of department of parks.

The department of parks shall perform such other duties pertaining to the public lighting as may from time to time be prescribed by the city council and the public works and utilities committee of the city council.
(Code 1975, § 18-86; Ord. No. 2010-111, § 2, 7-20-10)

Sec. 30-54. Access to equipment for testing current and voltage; testing circuits.

In order to properly inspect, maintain, and repair public lighting, the department of parks shall have access at all times to all electrical lamps, poles, posts, conduits, apparatus or machinery, on or in the streets, parks and squares. The department of parks or its duly authorized agent shall have the privilege at all times to test any of such circuits at such point or points as it may select, by the use of such standard measuring instrument as it may desire to use, and it shall maintain such instruments in circuits for so long a time as it may select.
(Code 1975, § 18-90; Ord. No. 2010-111, § 2, 7-20-10)

Sec. 30-55. Deduction from bill when city uses less than prescribed amount of energy.

Should the average amount of electrical energy actually supplied during any one month be determined by the department of parks and confirmed by the public works and utilities committee of the city council to be less than the amount prescribed, the department of parks shall make note of such deficiency on the bill of the person furnishing lights, and there shall be deducted from

the amount of the bill an amount equal to that proportion that the actual amount of service rendered bears to the amount of service required."
(Code 1975, § 18-91; Ord. No. 2010-111, § 2, 7-20-10)

Secs. 30-56—30-75. Reserved.

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ARTICLE V. PUBLIC UTILITY POLES AND WIRES

Sec. 30-76. Marking of poles required; manner of working.

All persons authorized to erect poles for the purpose of carrying electric, telephone or telegraph wires in the streets of the city shall, at the time of the placing of such poles, stencil in one-inch letters on such poles the initials of the name of the owner of such poles, which letters shall be placed at least five (5) feet above the sidewalk. The poles owned by the city shall be marked with the initials "F. and P."
(Code 1975, § 18-54)

Sec. 30-77. Posting signs and bills on poles prohibited.

It shall be unlawful for any person to place signs or post bills on any poles authorized by this article.
(Code 1975, § 18-55)

Sec. 30-78. Permit to erect pole or run wires in street—Required.

It shall be unlawful for any person to erect any pole or poles, or to stretch, extend or run any wires along and through any of the streets of the city unless he shall first have obtained a permit therefor from the department of public service.
(Code 1975, § 18-56)

Cross reference—Licenses, permits and miscellaneous business regulations, Ch. 17.

Sec. 30-79. Same—Application; filing of location.

Any person desiring a permit, as required in section 30-78, shall file an application therefor in the office of the department of public service at least seventy-two (72) hours prior to the date when the work is proposed to begin; provided that in an emergency, the department of public service may waive prior notice. Such application shall be accompanied by a plan indicating the proposed character and location of such poles or wires.
(Code 1975, § 18-57)

Sec. 30-80. Same—Issuance.

A plan filed as provided in section 30-79 shall be approved by the department of public service and, when so approved, it shall issue a permit for the work covered by such plan, and shall immediately notify the necessary city departments if the contemplated work will require blocking or diversion of or otherwise interfere with normal pedestrian or vehicular traffic.
(Code 1975, § 18-58)

Sec. 30-81. Poles in streets.

For the purpose of reaching the premises of the users of the service furnished by any person operating under this article, the necessary poles for distributing wires from the subways may be erected under the direction and supervision of the public works and utilities committee of the city council where deemed necessary by the department of public service.
(Code 1975, § 18-59)

Sec. 30-82. Classification of telegraph and power wires as electrical.

All wires carrying currents for electric lights or electric power for any purpose whatsoever are hereby designated and classed as electric wires. All wires other than for such purpose are hereby designated and classed as telegraph wires.
(Code 1975, § 18-60)

Sec. 30-83. When companies required to occupy same line of poles.

All companies erecting wires shall occupy the same line of poles wherever such combined use is practicable, to be determined by the public works and utilities committee of the city council and shall pay therefor such rental or compensation as the parties interested may agree upon, or if they shall fail to agree, then such as may be fixed by such committee.
(Code 1975, § 18-61)

Sec. 30-84. Use of buildings to support wires.

It shall be unlawful for any person to use roofs of buildings in the support of wires. No other part of buildings shall be so used

without the consent of the owners thereof properly authenticated to the department of public service and its approval of the same.
(Code 1975, § 18-62)

Sec. 30-85. Compliance with National Electrical Code required; approval of samples prerequisite to stringing wires.

All electric light or power wires erected or strung after October 13, 1936, shall be erected or strung to conform to the requirements of the National Electrical Code as adopted by section 12-16 of this Code. Permits to string wires will be granted only after approval of samples submitted to the department of public service, and no wires, other than those thus approved by sample, may be strung.
(Code 1975, § 18-63)

Sec. 30-86. Size of poles.

All poles shall be of ample size to support with safety the wires to be placed thereon.
(Code 1975, § 18-69)

Sec. 30-87. Poles and wires obstructing travel; removal of superfluous poles and wires.

It shall be the duty of the department of public service to direct the placing of poles and wires in the streets, alleys and public places of the city so that the same shall cause as little obstruction as possible either to public travel on such thoroughfares or to the private use and enjoyment of adjacent property. The department of public service shall compel the removal of superfluous poles, loops, wires and supports at once.
(Code 1975, § 18-68)

Sec. 30-88. Height of wires above street.

All wires shall be erected at a distance not less than eighteen (18) feet above the level of the street for telephone cables, twenty (20) feet for police and fire alarm and twenty-four (24) feet for electric wiring.
(Code 1975, § 18-70)

Sec. 30-89. Fastening wires to trees; powers of inspections division and director of parks; cutting tree limbs for poles and wires.

No electric wires, cables, guys, poles, cross-arms, brackets, insulators, or other wires or fixtures shall be attached to or come in contact with any tree standing for use or ornament in any public street, lane, court, park or other public place in the city, without the consent of, or written permit from, the inspections division. The inspections division may order the removal of any wires, cables, guys, poles, cross-arms, brackets, insulators or other wires or fixtures, attached to or in contact with such trees, which it deems injurious to such trees, or when such removal is advisable for the protection of the trees. It shall be the duty of the inspections division, where necessary to remove or cause to be removed any such wires or wire fixtures. The cost of such removal shall be charged to and paid for by the company or person owning such wires or wire fixtures. Application shall be made to the director of the department of parks whenever it shall be deemed necessary to trim any tree or trees to clear wires or any other such like purpose, and if the same be granted, such necessary trimming shall be done, in each instance, under his supervision and attention, and all expense of such trimming of the trees shall be borne and paid for, in advance, by the person or corporation making such application. Every person having any wire charged with electricity, running through a public highway, shall securely fasten such wire so that it shall not come in contact with any tree. It shall be unlawful for any person to cut away the limbs or branches of any tree for the purpose of erecting posts or suspending wires for electric light, telegraph or telephone or fire alarm service without the express permission, in writing, of the director of the department of parks.

(Code 1975, § 18-71; Ord. No. 1976-16, §§ 7, 8, 3-9-76; Ord. No. 1979-16, § 4, 2-22-79; Ord. No. 1982-48, §§ 2, 3, 5-25-82)

Sec. 30-90. Location of poles; relocation.

All poles, unless otherwise ordered by the department of public service, shall be set within the curb and five (5) feet from any fire hydrant, the right being hereby reserved to the public works and utilities committee of the city council to change, at the expense of

the respective company, the location of any pole or poles when such change is deemed necessary for the public convenience or safety.
(Code 1975, § 18-72)

Sec. 30-91. Right of city to install alarm wires on poles.

The right is reserved to the city council to place without cost any police or fire alarm wires that are or may be in the future erected for the city's use, on any pole or poles erected in the streets, alleyways or other highways of the city, and all permits granted for the erection of poles shall be subject to this condition.
(Code 1975, § 18-73)

Sec. 30-92. Suspension of permits; discontinuance of service upon repeated violations.

Any violation or refusal on the part of any person or company to make such alterations or repairs in present or future construction as may be demanded by the public works and utilities committee of the city council in conformity with this article shall work immediate suspension of all permits held by the person or company guilty of such violation or refusal. In case of persistent violation of the requirements of this article, and in case of dangerous necessity, the public works and utilities committee of the city council may instruct the chief of police and the department of public service, either or both, to cut out light or to cut out the current in any locality concerned and to enforce the discontinuance of all rights until violations have been remedied.
(Code 1975, § 18-75)

Sec. 30-93. Emergency crew for removal of wires upon occurrence of fire.

When requested by the fire department upon occurrence of a fire, the electric utility, telephone or telegraph companies shall immediately send to the scene an emergency crew, with the necessary apparatus and tools to remove such wire or wires as shall be ordered removed by the chief of the fire department or his assistant or other officer in charge of such fire. Such emergency crew shall report immediately to the chief, assistant or

other person in charge of the fire, and be and remain under his orders, which shall be promptly executed, until dismissed.
(Code 1975, § 18-78)

Sec. 30-94. Authority of fire chief to order current turned off in emergency.

The electric utility company shall immediately turn off electric current in any district when notified by the chief of the fire department, his assistant or other officer in charge, that great emergency exists.
(Code 1975, § 18-79)

Secs. 30-95—30-105. Reserved.

ARTICLE VI. SANITARY SEWERS AND SEWAGE DISPOSAL

DIVISION 1. GENERALLY

Sec. 30-106. Injuring or obstructing sewers or drains.

It shall be unlawful for any person to do or cause to be done any injury or to cause an obstruction of any kind in any manner to any of the appliances or parts of the public sanitary sewers or drains.
(Code 1975, § 42-6)

Sec. 30-107. Consent required to uncover public sanitary sewer or drain.

It shall be unlawful for any person to uncover a public sanitary sewer or drain, or connection branches thereof, for any purpose or to make connection therewith, or to open any manhole or flush tank, unless and except with the approval of the manager of the commissioners of public works.
(Code 1975, § 42-35)

Secs. 30-108—30-115. Reserved.

DIVISION 2. CONNECTIONS

Sec. 30-116. Removal of sewage by connection with storm drain prohibited.

It shall be unlawful for any person to make, or cause to be made, any connection for the removal of sewage from any premises, with any storm or subwater drain, or with any stream or watercourse within the limits of the city.
(Code 1975, § 42-38)

Sec. 30-117. Permit for connection with sanitary sewer—Required.

It shall be unlawful for any person to make or cause to be made any connection for the removal of sewage with any sanitary sewer of the city without first obtaining a written permit from the inspections division.
(Code 1975, § 42-36)

Cross reference—Licenses, permits and miscellaneous business regulations, Ch. 17.

Sec. 30-118. Same—Application; filing; issuance.

Application for a sanitary sewer connection permit pursuant to this division shall be filed at the office of the inspections division. If the application is approved a permit shall be issued to the master plumber or plumbing contractor who is the agent of the owner. The applicant also shall notify the department of traffic and transportation and the police department if the proposed work will require blocking or diversion of or interfere with pedestrian or vehicular traffic.
(Code 1975, § 42-39)

Sec. 30-119. Same—Form of application.

Application for a permit to make a sanitary sewer connection shall be made on suitable forms provided by the inspections division.
(Code 1975, § 42-40)

Sec. 30-120. Same—Approval of plumbing work and material in building required for issuance.

Permits to make connections with the public sanitary sewers shall be issued only when the plumbing work and material in the house or building to be connected is in accordance with the rules and regulations for plumbing prescribed in this Code.
(Code 1975, § 42-51)

Sec. 30-121. Licensed plumber required to make connection.

It shall be unlawful for any person, other than a plumber duly licensed to do such work by the city, or the authorized agent of such plumber so licensed, to make any connection with the public sanitary sewers. It shall be unlawful for any person to cause any such connection to be made by any person other than as provided in this section.
(Code 1975, § 42-41)

Sec. 30-122. Compliance with division required.

It shall be unlawful for any person to make connections with the public sanitary sewer in any other manner and with any other material than as provided in this division.
(Code 1975, § 42-42)

Sec. 30-123. Pipe connections of buildings with public sanitary sewers; backfilling; repaving.

Every pipe connected with the public sanitary sewers, from a point four (4) feet outside of the foundation walls or piers of the building, shall be strong, sound and impervious in all of its parts, shall be solidly laid on a true grade, and as nearly as possible in a straight line; all shall be jointed in the best manner, and covered at least to a depth of one foot with well-rammed earth, entirely free from stones and rubbish. Within twenty-four (24) hours (Sunday excepted), after the backfilling of the trench is completed, all paving and ballast shall be replaced and the street left in the best condition, to the satisfaction of the department of public service.
(Code 1975, § 42-43)

Cross reference—Permit required for disturbing surface of or opening street or taking up sidewalk, § 28-21.

Sec. 30-124. Gasket required at joints.

Gaskets shall be used to prevent cement, lead or other compound from entering the pipes at the joints.
(Code 1975, § 42-44)

Sec. 30-125. Separate connection of buildings with sanitary sewers; six-inch lines to private property; permit for more than one drain.

(a) Every building, except under conditions determined by the manager of the commissioners of public works and not conflicting with other provisions of this article, shall be separately and independently connected with the public sanitary sewers; each tenement to be regarded as a separate building; provided, however, that in all private courts, lanes and alleys fronting on streets in which there is a public sanitary sewer, on which private courts, lanes and alleys there are located two (2) or more separate lots and houses, such lots and houses may be connected by the use of one sewer laid in such private court, lane or alley connecting with the public sanitary sewer in such street, such sewer to be constructed by the owners of property fronting on such private court, lane or alley at their joint expense, and under the supervision of the manager of the commissioners of public works or upon the written request of the owner of any property fronting on such private court, lane or alley, the city may construct such sewer and the owners of adjoining property may connect with the same, provided they pay their proportionate cost of the same. For such purpose, the manager of commissioners of public works shall keep in his office a record of the cost of such sewer and shall establish the proportion which each owner shall pay. In the event of any disagreement as to such cost, the person affected shall have the right of appeal to the city council. Six (6) inch lines may be laid in private property after approval by the inspections division, but only when there is not less than ten (10) feet of four (4) inch pipe to the closet or slop sink and where there are a number of small houses on one lot.

(b) No more than one drain shall be used to connect a building with the public sanitary sewers without special permit of the

manager of the commissioners of public works and the inspections division.
(Code 1975, § 42-45)

Cross reference—Licenses, permits and miscellaneous business regulations, Ch. 17.

Sec. 30-126. Drains—General construction requirements.

No drain connected with the public sanitary sewer shall be laid at a less grade than one in one hundred (100) without the written permission of the inspections division. In all ditches where the bottom is unsafe from any cause, the grade shall be made secure by concrete, planking or other means, to the satisfaction of the inspections division, or by the use of cast iron or fibre pipe of satisfactory quality. If water pipe is laid in the sewer connection trench, it shall be laid well to one side and above the sewer. Iron water pipes shall be laid in a separate trench.
(Code 1975, § 42-46)

Sec. 30-127. Same—Size; depth for laying pipes and drains.

All drains connected with the public sanitary sewers or branches shall be four (4) inches in diameter, except as provided in section 30-125. No earthenware pipe shall be laid less than one foot under cover of earth. All drains of less depth shall be of cast-iron pipe, with well-calked lead joints.
(Code 1975, § 42-47)

Sec. 30-128. Laying pipe in street within five feet of street sanitary sewer prohibited.

No person shall lay any pipe or conduit for any purpose whatsoever in any street within five (5) feet on either side of the public sanitary sewer in such street.
(Code 1975, § 42-48)

Sec. 30-129. Opening trenches in street or public way.

In opening trenches in any street or public way, the paving or ballast shall be removed with care, the sides of the trench shall be sheeted or braced when directed and in the manner directed by the department of public service. The earth thrown from the

trench shall be placed so as not to obstruct the gutters and so as to cause the least obstruction to public travel. Gas and water pipes shall be protected from injury, the trench enclosed and lighted at night and every precaution taken to prevent injury to person or property during the progress of the work.
(Code 1975, § 42-49)

Secs. 30-130—30-145. Reserved.

ARTICLE VII. UNDERGROUND CONDUITS, CABLES AND WIRES IN PUBLIC RIGHTS-OF-WAY

Sec. 30-146. Compliance with article required.

All persons to whom a permit may be granted for running or laying underground conduits, ducts or pipes for electrical conductors or cables or wires, or who shall be required by law or ordinance to do so, shall comply with the requirements of this article.
(Code 1975, § 18-92)

Sec. 30-147. Permit to lay conduits—Required.

No street, lane, alley, road or public place in the city shall be broken or occupied by any person for the purpose of laying down conduits, ducts or pipes except under a permit from the department of public service, as provided in this article.
(Code 1975, § 18-93)

Cross reference—Licenses, permits and miscellaneous business regulations, Ch. 17.

Sec. 30-148. Same—Application; filing of plans and specifications.

Any person duly authorized by the city council to run or lay underground conduits, ducts or pipes for electrical conductors, cables or wires, and desiring a permit as required in section 30-147 shall file with the department of public service an application therefor, with plans and specifications showing the location, routes and length of the proposed underground conduits, ducts or pipes. Such application shall be filed at least seventy-two (72) hours before the date scheduled for beginning the work, but

in an emergency, the department of public service shall waive prior notice.
(Code 1975, § 18-94)

Sec. 30-149. Same—Issuance; penalty for opening street without permit.

The department of public service is hereby authorized, upon the filing of the application and plans and specifications required by section 30-148, to grant a permit for the breaking and occupancy of the streets, lanes, alleys, roads and public places as shall be set forth in such application, plans and specifications, subject to the regulations and qualifications of this article. The department of public service shall immediately notify the department of traffic and transportation if the permit will require blocking or diversion of, or interfere with normal pedestrian or vehicular traffic. The opening of any street or public place for such purposes without a permit having been first obtained shall subject such person to punishment as provided in section 1-16 of this Code and the stoppage of the work until such permission is obtained.
(Code 1975, § 18-95)

Sec. 30-150. Excavations; length and width; time restrictions; restoration of street surface.

During the construction or laying down of underground conduits, ducts or pipes, conductors, cables or wires under this article, no street, alley, lane or road or public place shall be opened or roadway broken into for a greater distance than one thousand (1,000) feet at any one time, or opening, and no section of one thousand (1,000) feet shall be kept open for a longer period than ten (10) days. Such opening or trench shall not be of greater width than five (5) feet, except the manholes, and as the work progresses the paving shall be promptly and properly relaid and the street, alley, lane or road put in good condition at the expense of the person constructing the same. For good cause shown the department of public service may extend the time during which such trench may be kept open.
(Code 1975, § 18-96)

Sec. 30-151. Inspection of work by city; access of officials.

The work of constructing any underground conduits, or laying any ducts, pipes, electrical conductors, cables or wires under this article shall be subject to inspection by the department of public service, who shall have at all times free and unobstructed access to the conduits, ducts or pipes, electrical conductors, or cables for the purpose of making such inspection.
(Code 1975, § 18-97)

Sec. 30-152. Liability for damage to gas or water mains or sewer connections; bond required.

All persons occupying any streets, lanes, alleys or roads with poles or with underground conduits, ducts, pipes, cables, electrical conductors or wires under this article shall be liable for all damages to gas and water mains, sewers and sewer connections and drains and drain connections, for all damages which may come to the city directly and proximately, or for which it may be in any manner whatsoever responsible, caused by the opening of trenches or the condition of streets, alleys, lanes or roads resulting from the erection of poles or the construction of conduits or the laying of ducts, pipes, electrical conductors, cables or wires or making connection, and good and sufficient bond shall be given, subject to the approval of the mayor, in the sum of five thousand dollars ($5,000.00) as the security for the same.
(Code 1975, § 18-98)

Sec. 30-153. Authority of city to require duct for fire and police purposes.

Any person constructing conduits or laying ducts or pipes under this article shall furnish to the city, on demand, one duct for municipal fire and police purposes; provided, however, that no electric light or power wire shall be placed or used by the city or by any other person in any duct or conduit constructed or used by any telephone or telegraph company.
(Code 1975, § 18-99)

Sec. 30-154. Report of underground conduits and wires by owners.

All persons having telegraph, telephone or electric light wires, electrical conductors or cables placed underground shall, when-

ever thereto required by the mayor of the city, file their report within thirty (30) days thereafter, under oath, with the mayor, showing the actual number of wires and their location, and the miles of wire and electrical conductors underground, owned or leased or controlled by them in the city.
(Code 1975, § 18-100)

Sec. 30-155. Bond for restoration of street surface required.

Upon the passage of any ordinance granting any individual privileges under this article or under any ordinance in force relating to or regulating or requiring underground wires, electrical conductors, conduits, pipes or tubes, the individual shall, before exercising any privileges or requirements thereunder, give a bond to be prepared and approved by the corporation counsel and the mayor, and to be entered of record, in the sum of five thousand dollars ($5,000.00) conditioned that they will properly relay and pave all openings made by them. Such bond shall be cancelled when such openings shall have been properly relaid and paved and accepted as such by the city engineer. No permit shall be issued, as provided in section 30-149, until this condition is complied with.
(Code 1975, § 18-101)

Sec. 30-156. Telegraph, telephone and burglar alarm business; construction and maintenance of conduits.

All persons conducting a telegraph, telephone or burglar alarm business, shall, when so required by the public works and utilities committee of the city council, construct and maintain, each for himself, or conjointly, should they so determine and agree, such conduits or subways including necessary manholes and house connections in the streets, as may be necessary to contain the wires used and to be used by them, or any or either of them, or their lessees, along and through the streets.
(Code 1975, § 18-102)

Secs. 30-157—30-170. Reserved.

ARTICLE VIII. NON-STANDARD SERVICES*

DIVISION 1. GENERALLY†

Sec. 30-171. Designation of non-standard service districts.

City council may from time to time by ordinance designate and extend non-standard service districts and/or provide for non-standard services within the city in accordance with the provisions of this article.
(Ord. No. 2021-052, § 1, 4-13-21)

Sec. 30-172. Definitions.

Company means Dominion Energy South Carolina, Inc., formerly known as South Carolina Electric & Gas Company, as well as the successors and assigns of the Company.

District means (1) a specific neighborhood or project within the municipal limits of the city that has been designated by city council as a non-standard service district according to the provisions of this article; or (2) a specific neighborhood or project, a portion of which lies within the municipal limits of the city, that has been designated by city council as a non-standard service district according to the provisions of this article and for which all other local governments with jurisdiction over properties in the neighborhood or project have entered into an agreement with the city, under which each local government will contribute its pro rata share to the non-standard service and order the disconnection of existing overhead utilities.

Franchise ordinance means Ordinance No. 1996-113, adopted by City Council on July 16, 1996, as amended.

***Editor's note—**Retitled by Ord. No. 2021-052, § 1, adopted April 13, 2021. Formerly titled as "Article VIII, Underground Utility Districts."

†**Editor's note—**Former Div. 1, §§ 30-171—30-177 was amended in its entirety by Ord. No. 2021-52, § 1, adopted April 13, 2021. Former Div. 1 pertained to similar subject matter and derived from Code of 1975, §§ 18-103—18-109; Ord. No. 1999-162, §2, 11-16-99; Ord. No. Ord. No. 2001-109, § 1, 10-9-01; Ord. No. 2005-18, § VI, 1-25-05.

Fund means the non-standard service fund established by section 10 of the franchise ordinance, under which the company and the city each agree to contribute to the fund. The amounts so designated to the fund are to be used exclusively to cover the costs of planning, designing, engineering and constructing non-standard service projects, or otherwise providing non-standard service, within the city. The company is obligated to undertake the planning, designing, engineering and construction of non-standard service projects only to the extent monies designated to the fund are reasonably projected to be adequate to cover the costs of the projects as they are incurred.

Non-standard service means the provision of electrical service to existing or new customers of the company by the use of underground distribution and service lines, the cost of which exceeds the company's standard cost of electric distribution service, and where such costs can be recovered through the fund. "Non-standard service" also means the use of special equipment, facilities, special landscaping, or the screening of electrical facilities within the municipal limits of the city. "Non-standard service" does not include (1) the cost of installation of underground electric distribution lines in new residential subdivisions of the city under terms and conditions customarily applicable with respect to aid to construction payments; or (2) any other service which the company agrees to provide under the franchise ordinance (other than in section 10 of the franchise ordinance).

Owner means any person eighteen (18) years of age or older, or the proper legal representative for any person younger than eighteen (18) years of age, and any firm or corporation, who or which owns legal title to a present possessory interest in real estate equal to a life estate or greater (expressly excluding leaseholders, easements, equitable interests, inchoate rights, dower rights, and future interests) and who or which owns, at the date of a petition, at least an undivided one-tenth (1/10) interest in a single parcel of real estate and whose name appears on the county tax records as an owner of such single parcel of real estate.

Priority list means the list established and updated by city council, as described in section 30-173.
(Ord. No. 2021-052, § 1, 4-13-21)

Sec. 30-173. Priority list.

(a) Subject to subsection 30-173(c), city council shall, by ordinance, establish, update, and amend a priority list for non-standard service projects and non-standard services, utilizing the manual approved by the underground advisory committee, as prepared and updated by the mayor or the mayor's designee.

(b) Subject to subsection 30-173(c), in furtherance of the foregoing, City council may, by resolution, require that the company undertake the planning, design, engineering, and cost estimating for a specific area or areas, with the costs of such planning, design, engineering, and cost estimating to be payable from the fund. Within a reasonable time after a resolution from the city, or as soon thereafter as reasonably practicable, the company shall undertake the planning, design, engineering and cost estimating for the specified area or areas. Notwithstanding the foregoing, the company shall not be obligated to undertake the planning, design, engineering and cost estimating for a non-standard service project unless the monies then obligated to the fund are reasonably projected to be adequate to cover such costs as they are incurred and the company shall not be obligated to undertake the planning, design, engineering and cost estimating for more than four (4) projects. For purposes of this definition, the four-project limitation shall apply to projects which have not received construction approval by city council.

(c) The provisions of this subsection 30-173(c) shall apply notwithstanding any other provision of this article. The city has received initial petitions for non-standard service projects designated as (1) Ansonborough; (2) Country Club II; (3) Wappoo Heights; (4) South Battery, Tradd Street and a portion of Legare Street; (5) Old Windermere; (6) South Windermere; and (7) a section of Clifford Street (the "Existing Proposed Districts"). With respect to the existing proposed districts, the provisions of Article VIII of Chapter 30 of the City Code, as they existed prior to the effective date of the ordinance from which this article derives [thirty days after April 12, 2021], shall continue to apply. The company shall undertake the planning, design, engineering, and cost estimating for the existing proposed districts in the

order in which the city received a petition in compliance with subsection 30-172(b) of the City Code, as it existed prior to the effective date of this article; provided, however, the company shall not be obligated to undertake the planning, design, engineering, and cost estimating for more than two (2) existing proposed districts at any given time. The existing proposed districts shall be prioritized for construction purposes in the order in which the city receives a petition in compliance with subsection. 30-172(e) of the City Code, as it existed prior to the effective date of this article. City council may approve construction in separate, individual phases of an existing proposed district for which the planning, design, and engineering has been completed, with construction to proceed for an individual phase upon receipt of a petition for such phase that complies with subsection. 30-172(e) of the City Code, as it existed prior to the effective date of the ordinance from which this article derives.

(d) A petition for an existing proposed district may be withdrawn, in which case the existing proposed district, or any portion thereof, shall be prioritized as set forth in subsection 30-173(a).
(Ord. No. 2021-052, § 1, 4-13-21)

Sec. 30-174. Construction.

By ordinance, city council shall authorize the company to commence construction of nonstandard service projects according to the priority list, as amended or updated by city council from time-to-time. The company shall be required to commence construction of non-standard service projects within a district within twelve (12) months of city council's adoption of an ordinance authorizing such construction, subject to the company's ability to construct more than one (1) project at a time and subject to the amounts present or anticipated in the fund that are reasonably projected to be adequate to cover the costs of the non-standard service projects as they are incurred. Such projects shall be undertaken in advance of amounts being designated to the fund, if monies to be obligated to the fund over the next successive ten-year period are reasonably projected by the company to be adequate to cover any negative balances and

associated finance and federal and state income tax charges plus a contingency of twenty-five (25) percent. Once commenced, the company shall carry non-standard service projects to completion.
(Ord. No. 2021-052, § 1, 4-13-21)

Sec. 30-175. Removal of overhead structures or poles; limitations on new installations; adaptation of existing service facilities.

(a) When any street or portion thereof within the city is designated as a district, any person, firm, company or corporation owning or maintaining overhead wires or equipment, associated overhead structures or poles serving the same in such street or portion thereof shall remove such wires and equipment, associated structures and poles prior to or concurrently with the underground placement of non-standard service utilities in the district and shall install same underground concurrently with the underground placement of non-standard service utilities in the district, with the exception of such poles as are necessary to support street lighting, traffic signals and transmission lines above forty-three thousand (43,000) volts.

(b) It shall be unlawful for any person to erect, construct, maintain or use any pole, overhead wires or associated structure within a district, excepting such poles as are necessary to support street lighting, traffic signals, and transmission lines above forty-three thousand (43,000) volts, after the date when such utilities are required to have been removed, or after a reasonable period of time after the designation by City Council of a district or the extension of a district.

(c) All conduits, conductors and associated equipment necessary to receive utility service between service conductors or underground pipe or conduit of the supplying utility and the service facilities to the structure being served shall be provided by the person owning such property. Such required construction shall be accomplished within one hundred eighty (180) days after the installation of the utility's facilities.
(Ord. No. 2021-052, § 1, 4-13-21)

Sec. 30-176. Notice to utility companies and owners.

Within sixty (60) days after the passage of an ordinance authorizing the company to commence construction of a non-standard service project within a district, the clerk of council shall mail a notice of such action to all affected utilities and all persons owning real estate in the affected area. Such notice shall be directed to the last known address of such utility or owner, as shown on the records of the county assessor. Such notice shall advise owners that overhead wires, poles and associated structures are to be removed, and if such owners or their tenants desire to continue to receive utility service or services, such owners shall at their expense make the necessary modifications to facilities on their property in order to receive such underground service from the utilities' specified terminal point. If no other changes are made in owner's facilities, then only that portion being modified to receive underground service shall be upgraded to conform to the city's electrical code.
(Ord. No. 2021-052, § 1, 4-13-21)

Sec. 30-177. Discontinuance of service to premises for noncompliance.

If the owner does not comply with subsection. 30-175(c) within the time specified therein, the department of public service shall have authority to order disconnection and removal of any and all poles, overhead wires or associated overhead structures supplying utility service to such property, and the company shall not be required thereafter to provide service to such premises, until the owner makes the necessary changes.
(Ord. No. 2021-052, § 1, 4-13-21)

Sec. 30-178. Penalty.

Any person violating any provision of this article or failing to comply with any order issued pursuant hereto shall be subject to the penalty provided in section 1-16 of this Code.
(Ord. No. 2021-052, § 1, 4-13-21)

Secs. 30-179—30-180. Reserved.

DIVISION 2. SPECIFIC UNDERGROUND UTILITY DISTRICTS

Subdivision A. Crescent Neighborhood

Sec. 30-181. Crescent Neighborhood underground utility district.

(a) The Crescent Neighborhood is hereby designated as an underground utility district for non-standard service, said district being more fully described in Exhibit A, attached hereto and incorporated by reference herein, provided all requirements of sections 30-171 through 30-177 of the Code of the City of Charleston are met.

(b) City council authorizes the expenditure from the fund for the purpose of providing SCE&G and the city's portion of the funding for The Crescent Neighborhood underground utility district for non-standard service as more fully set forth in Exhibit A.

(Ord. No. 2004-54, §§ 1, 2, 5-25-04)

Editor's note—Exhibit A to Ord. No. 2004-54 is not set out herein but is available in the office of the clerk of council.

Sec. 30-182. Assessment and collection of underground utility fee.

(a) The council hereby authorizes the assessment and collection of an underground utility fee from the property owners in the district which is more fully described on Exhibit A attached hereto and incorporated by reference herein.

(b) The underground utility fee shall be collected by the city or its agent in the same manner as property taxes or by some other lawful means at the election of the city.

(c) The property owners within the district shall pay a sum equal to fifteen (15) percent of the total cost of the non-standard service within the district; the specific charges allocated to the individual parcels for non-standard service are set forth on Exhibit A, provided however, that the charges may increase or decrease based on the final cost of the installation of the primary non standard service as actually incurred by SCE&G.

(d) The property owners located within the district shall be required pursuant to § 30-174 of the Code of the City to make the modifications to facilities on their property in order to receive such underground service and shall pay the actual cost to connect to the underground system; a preliminary estimate is identified in Exhibit A as a service cost and shall be collected in the same manner as the underground utility fee and shall be deposited into the fund.

(e) All property owners within the Crescent Neighborhood Underground Utility District are required to connect to the underground service to be installed in accordance with this section and shall pay the cost for connection.

(Ord. No. 2005-18, §§ I—VI, 1-25-05)

Editor's note—Exhibit A to Ord. No. 2005-118 is not set out herein but is available in the office of the clerk of council.

Sec. 30-183. Reserved.

Subdivision B. Headquarters Island Plantation Neighborhood

Sec. 30-184. Headquarters Island Plantation Neighborhood underground utility district.

(a) A portion of Headquarters Island Plantation Neighborhood is hereby designated as an underground utility district for non-standard service, said district being more fully described in Exhibit A, attached hereto and incorporated by reference herein provided all requirements of Sections 30-171 through 30-177 of the Code of the City of Charleston are satisfied.

(b) City council authorizes the expenditure for non-standard service to a portion of Headquarters Island Plantation Neighborhood from the fund for the purpose of providing SCE&G and the city's portion of the funding for Headquarters Island Plantation Neighborhood underground utility district for non-standard service as more fully set forth in Exhibit A.
(Ord. No. 2005-01, §§ 1, 2, 1-11-05)

Editor's note—Exhibit A to Ord. No. 2005-01 is not set out herein but is available in the office of the clerk of council.

Sec. 30-185. Reserved.

Subdivision C. King Street

Sec. 30-186. King Street Neighborhood underground utility district.

That certain portion of King Street from Broad Street to Tradd Street in the City and County of Charleston, State of South Carolina, is hereby designated as an underground utility district in accordance with section 30-171 of the Code of the City of Charleston.
(Ord. No. 2005-77, § 1, 4-26-05)

Sec. 30-187. Reserved.

Subdivision D. Country Club Neighborhood

Sec. 30-188. Country Club Neighborhood underground utility district.

(a) The Country Club Neighborhood is hereby designated as an underground utility district for non-standard service, said district being more fully described in Exhibit A, and incorporated by reference herein provided all requirements of sections 30-171 through 30-177 of this Code are satisfied.

(b) City council authorizes the expenditure for non-standard service to the Country Club Neighborhood from the fund for the purpose of providing SCE&G and the city's portion of the funding

for Headquarters Island Plantation Neighborhood underground utility district for non-standard service as more fully set forth in Exhibit A.

(Ord. No. 2010-230, §§ 1, 2, 8-17-10)

Editor's note—Exhibit A to Ord. No. 2010-230 is not set out herein but is available in the office of the clerk of council.

Subdivision E. Orange Street Neighborhood

Sec. 30-189. Orange Street Neighborhood

(a) Orange Street is hereby designated as an underground utility district for non-standard service, said district being more fully described in Exhibit A, attached hereto and incorporated by reference herein provided all requirements of Sections 30-171 through 30-177 of the Code of the City of Charleston are satisfied.

(b) City council authorizes the expenditure for non-standard service to Orange Street from the Fund for the purpose of providing SCE&G and the city's portion of the funding for the Orange Street underground utility district for non-standard service as more folly set forth in Exhibit A.

(Ord. No. 2015-170, §§ 1, 2, 11-24-15)

Editor's note—Exhibit A to Ord. No. 2015-170 is not set out herein but is available in the office of the clerk of council.

Subdivision F. Country Club Neighborhood II

Sec. 30-190. Country Club Neighborhood II underground utility district.

(a) The Country Club II Neighborhood is hereby designated as an underground utility district for non-standard service, said district being more fully described in Exhibit A, attached hereto and incorporated by reference herein, provided all requirements of sections 30-171 through 30-177 of the Code of the City of Charleston are satisfied.

(b) City council authorizes the expenditure for non-standard service to the Country Club Neighborhood II from the Fund for the purpose of providing dominion and the city's portion of the

funding for the Country Club Neighborhood II underground utility district for nonstandard service as more fully set forth in Exhibit A.

(Ord. No. 2020-166, §§ 2, 3, 11-24-20)

Editor's note—Exhibit A to Ord. No. 2020-166 is not set out herein but is available in the office of the clerk of council.

ARTICLE IX. WATER*

DIVISION 1. GENERALLY

Sec. 30-191. Contract prerequisite to taking water from public hydrant or private pipe connection.

It shall be unlawful for any person to take water from any public hydrant or private pipe connected to the service, controlled by the commissioners of public works, for domestic, industrial, fire or other purposes, without having previously contracted for such service.
(Code 1975, § 46-7)

Sec. 30-192. Use of fire plug or private pipe connected with waterworks.

It shall be unlawful for any person to open any fire plug, hydrant or private pipe connected with or appurtenant to the waterworks, under the control of the commissioners of public works, or to draw water therefrom, excepting the officers of the commissioners of public works and persons under their direction or with their permission, the chief of the fire department and the members of the fire department, and any authorized officer of the city for sanitary and other purposes, as agreed to, under any existing contract between the city council and the commissioners of public works.
(Code 1975, § 46-8)

Sec. 30-193. Permit required to turn curb cock on or off.

It shall be unlawful for any person to turn on or off the supply of water to any premises in the city at and with the curb cock, without first having obtained a proper permit to do so from the authorized representatives of the commissioners of public works.
(Code 1975, § 46-9)

Cross reference—Licenses, permits and miscellaneous business regulations, Ch. 17.

***State law references**—Inspection, testing, etc., of water supplies, S.C. Code 1976, § 44-55-10; unauthorized use of municipal water system, S.C. Code 1976, § 5-31-1110 et seq.

Sec. 30-194. Permit required to open or interfere with hydrants or mains.

It shall be unlawful for any person not connected with the commissioners of public works or with the fire department to interfere with or open for any purpose whatever any of the fire hydrants on the mains of the waterworks without first having obtained a proper permit to do so from the authorized representatives of the commissioners of public works.
(Code 1975, § 46-10)

Cross reference—Licenses, permits and miscellaneous business regulations, Ch. 17.

Sec. 30-195. Wasting water.

It shall be unlawful for any person to waste the water supply of the city, controlled by the commissioners of public works.
(Code 1975, § 46-12)

Sec. 30-196. Polluting water supply prohibited.

It shall be unlawful for any person to pollute the water supply of the city controlled by the commissioners of public works.
(Code 1975, § 46-13)

Sec. 30-197. Obstructing hydrants.

It shall be unlawful for any person to place or deposit any building material, rubbish, merchandise or any other obstruction in front of any public fire well or hydrant so as to interfere with the ready access to the same by the fire department.
(Code 1975, § 46-14)

Sec. 30-198. Hitching animals to hydrants or drinking fountains.

It shall be unlawful for any person to hitch horses or other animals to any of the hydrant posts or any of the fire hydrants or drinking fountains.
(Code 1975, § 46-15)

Cross references—Animals generally, Ch. 5; transportation by animal-drawn vehicles for purposes of touring, § 29-202.

Sec. 30-199. Permission required for extending service pipes.

It shall be unlawful for any person to extend service pipes attached to the mains of water supply, on any premises within the city, without first obtaining permission therefor in writing from the commissioners of public works and, before any workman or plumber shall perform any work connected with the extension of such, written permission for such extension shall be obtained from the commissioners of public works.
(Code 1975, § 46-16)

Sec. 30-200. Duty of paving contractors as to valves, valve boxes, hydrants, etc.

It shall be unlawful for any person who may pave any of the streets or sidewalks of the city to destroy, remove or obliterate by burying or covering up any of the valves, valve boxes, hydrants, curb stop valves, meter boxes or any other similar property, belonging to or owned by the city, and controlled by the commissioners of public works. It shall be the duty of any such paving contractors, before any paving is done in the unpaved streets, to obtain from the commissioners of public works the exact location in such streets of all valves, valve boxes, hydrants, curb stop boxes and meter boxes in order to carry out the provisions of this section.
(Code 1975, § 46-17)

Secs. 30-201—30-210. Reserved.

DIVISION 2. DROUGHT AND EMERGENCY REGULATIONS

Sec. 30-211. Application of conservation regulations upon mayor's proclamation.

Whenever in the judgment of the mayor and the chairman of the commissioners of public works for the city, on account of drought and emergency, it is necessary from time to time to conserve the water supply in the city, the mayor is authorized to issue a proclamation that any or all the provisions set out in section 30-212 shall apply and be in force for such time as in the judgment of the mayor and chairman of the commissioners of public works, shall be deemed necessary.
(Code 1975, § 46-18)

Sec. 30-212. Prohibited uses during emergency.

(a) Immediately upon the issuance of a proclamation as provided in section 30-211 and so long as the same may be in force, it shall be unlawful for any person to commit such of the following acts as may be prohibited in such proclamation:

(1) Washing carriages and automobiles in private and public garages or elsewhere.

(2) Sprinkling private or public lawns.

(3) Sprinkling streets.

(4) Washing pavements.

(5) Use of water in public or private swimming pools.

(6) Use of water in flushing of sewers.

(b) In all public drinking and soda fountains, sanitary cups shall be used instead of utensils which require washing with water.

(c) The public hostelries shall be required to post notices to prevent, as far as possible, the unnecessary use of water for bathing.
(Code 1975, § 46-19)

Sec. 30-213. Effect of proclamation on water charges.

Whenever a proclamation is issued, as provided in section 30-211, the minimum charge for water shall not be effective, but the charges shall be only for actual consumption, as shown by the meter readings for the current quarter.
(Code 1975, § 46-20)

Sec. 30-214. Penalty.

Any person violating any provision of section 30-211, relative to which a proclamation has been issued, as provided in such section, when declared to be in force by the mayor of the city, shall be punished as provided in section 1-16 of this Code.
(Code 1975, § 46-21)

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Chapter 31

VEHICLES FOR HIRE*

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*__Cross references—__Licenses, permits and miscellaneous business regulations, Ch. 17; motor vehicles and traffic, Ch. 19; streets and sidewalks, Ch. 28.

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ARTICLE I. IN GENERAL

Sec. 31-1. Use for prostitution prohibited.

It shall be unlawful for the driver of any vehicle for hire to permit any person to occupy or use such vehicle for hire for the purpose of prostitution or any other lewd or indecent act, with the knowledge or reasonable cause to know that the same is or is to be used, for any such purpose, or to direct, take or transport, or offer or agree to take or transport any person to any building or place or to any other person with knowledge or reasonable cause to know that the purpose of such directing, taking or transporting is prostitution or any other lewd or indecent act.
(Code 1975, § 33-154)

Cross reference—Offenses against morals, § 21-161 et seq.

Sec. 31-2. Authorized vehicles.

Any vehicle for hire or any vehicle used for shuttling passengers that is operating in the city shall be a standard automobile, limousine, tour bus, van or trolley-type vehicle which is compatible with and not damaging to the infrastructure and ambiance of the historic district. Such vehicles shall be no more than thirteen (13) feet in height, shall load and unload passengers only on the right-hand or curb side, shall not have double-deck passenger compartments, shall not be combination or train-type vehicles, and shall not be amphibious or boat-type vehicles.
(Ord. No. 2013-94, § 1, 9-24-13; Ord. No. 2015-041, § 2, 4-28-15)

Secs. 31-3—31-15. Reserved.

ARTICLE II. BUSES

Sec. 31-16. Petition to establish line; applicability of chapter.

Before any company or corporation shall operate a bus or buses for the conveyance of goods or passengers along any of the streets of the city, such company or corporation shall petition the city council for the privilege, stating the streets along which it is

proposed to operate such line and the points between which it is proposed to operate the same. Except as otherwise provided, bus lines operated in the city pursuant to a franchise for which a petition was filed as provided in this section shall be subject to the provisions of this article. Sightseeing vehicles licensed under chapter 29 also shall be subject to the provisions of this article to the extent that they are applicable.
(Code 1975, § 11-1)

Sec. 31-17. Maintenance of adequate schedules.

It shall be the duty of the company or corporation operating buses in the city to run its vehicles upon such schedules as shall provide adequate transportation service to the public, subject to punishment as provided in section 1-16 of this Code.
(Code 1975, § 11-2)

Sec. 31-18. Duty of person in charge to discharge and stop for passengers.

The person in charge of any bus or the driver thereof shall not allow passengers to leave or enter the vehicle while the same is in motion, and shall, when required, stop to allow anyone to leave the vehicle and, when the vehicle is not full, stop for any passenger.
(Code 1975, § 11-4)

Sec. 31-19. Permitting passengers to stand.

The person in charge of any bus or driver may, in his discretion, permit a reasonable number of passengers to stand in the aisle or between the seats, when an emergency for so doing arises.
(Code 1975, § 11-5)

Sec. 31-20. Passengers not allowed to stand next to bus driver or in stairwells of bus.

No passenger on a bus used for public transportation shall stand in the stairwells or in front of the line which shall be

drawn at the rear of the driver's seat. A sign shall be placed at the front of all buses directing passengers not to stand in such areas.
(Code 1975, § 11-5A; Ord. No. 1981-69, § 1, 11-10-81)

Sec. 31-21. Obstructing street or foot crossing with vehicle.

It shall be unlawful for any person in charge of or the driver of any bus operated pursuant to the provisions of this article to stop the vehicle so as to obstruct the street, nor shall they obstruct the foot crossings of the street, for any longer time than is necessary for the receiving or discharging of passengers.
(Code 1975, § 11-6)

Sec. 31-22. Smoking, spitting or improper conduct prohibited.

If any person shall smoke or spit in any bus operated pursuant to the provisions of this article or otherwise in any way thereon improperly conduct himself on such bus, he shall be liable to ejectment from the vehicle and to punishment as provided in section 1-16 of this Code.
(Code 1975, § 11-7)

Sec. 31-23. Council's power to amend article; grant of privilege not exclusive.

The city council reserves the right to amend or alter the sections of this article whenever circumstances may require it. The granting of the privilege to any person to operate buses through any street is not exclusive, and the city council may grant or deny the same right to persons, through the same streets or thoroughfares, if it is deemed advisable by the city council. The provisions contained in this section shall be binding on any person already in existence in the same manner as persons hereafter privileged.
(Code 1975, § 11-9)

Secs. 31-24—31-35. Reserved.

ARTICLE III. LIMOUSINES, TAXI CABS AND TRANSPORTATION NETWORK COMPANIES*

DIVISION 1. DEFINITIONS

Sec. 31-36. Definitions.

Unless otherwise expressly stated or the context clearly indicates a different intention, the following terms shall, for the purpose of this article, have the meanings indicated in this section:

Agent or *representative* shall mean the person or persons that a licensee has authorized to:

(1) File applications, rates, and charges on behalf of the limousine, taxi cab, or TNC;

(2) Receive and accept all correspondence and notices from the city pertaining to the limousine company, taxi cab company, TNC, or to affiliated drivers operating with these companies; and

(3) Forward any correspondence, notices and/or legal process received by the licensee and intended for an affiliated driver operating within the licensee's company.

Certificate shall mean a certificate of public convenience and necessity approved by city council.

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*__Editor's note—__Ord. No. 2015-041, § 1, adopted April 28, 2015, repealed former Arts. III and IV and enacted new provisions as herein set out. Former Art. III, Divs. 1—5, pertained to limousines and derived from Code 1975, § 33-1; Ord. No. 2004-136, § 1, 11-23-04; Ord. No. 2011-21, §§ 3, 4, 6, 7, 3-22-11; Ord. No. 2012-91, § 1, 3-19-12; and Ord. No. 2013-42, §§ 2, 3, 5, 4-23-13. Former Art. IV, Divs. 1—6, pertained to taxicabs and derived from Code 1975, §§ 50-1, 50-4, 50-5, 50-7, 50-9—50-15, 50-17—50-32, 50-34—50-38, 50-41, 50-43, 50-45—50-53; 50-71—50-75, 50-79; Ord. No. 1984-45, § 1, 4-24-84; Ord. No. 1984-169, § 1, 11-13-84; Ord. No. 1997-560, § 1, 12-16-97; Ord. No. 2004-137, § 1, 11-23-04; Ord. No. 2010-61, § 1, 4-13-10; Ord. No. 2010-251, § 1, 11-23-10; Ord. No. 2011-21, §§ 9, 12, 14, 15, 17—22, 25, 27, 3-22-11; Ord. No. 2013-42, §§ 6, 7, 4-23-13; Ord. No. 2013-071, § 1, 7-16-13; Ord. No. 2013-129, § 1, 11-26-13; Ord. No. 2013-130, § 1, 11-26-13; Ord. No. 2014-28, § 1, 2-15-14; and Ord. No. 2015-005, § 1, 1-13-15.

Certificate of operation shall mean the sticker provided by the revenue collections department to a driver or endorsed driver who is operating an endorsed vehicle or a vehicle that meets all of the requirements of this chapter.

Compensation shall mean remuneration or anything of economic value that is provided, promised, or donated primarily in exchange for services rendered. This includes, but is not limited to voluntary donations, fee-sharing between a taxi cab or transportation network company, and an affiliated driver, and passenger.

Day time hours shall mean the hours including and between 5:00 a.m. and midnight.

Driver shall mean any person licensed in accordance with this chapter that is in actual charge of the operation of a limousine, taxi cab, or transportation network company vehicle, whether as owner or agent, lessee or employee of the owner.

Endorsed driver shall mean a driver that has been endorsed by an affiliated limousine company, taxi cab company, or TNC and authorized to provide for hire transportation services within the city for that company.

Endorsed vehicle shall mean a vehicle endorsed by the affiliated limousine company, taxi cab company, or TNC and authorized to provide for hire transportation services within the city. An endorsed vehicle has received a certificate of operation as defined in this chapter.

Food delivery service and *food delivery vehicle* shall have the same meaning as set forth in chapter 19, article I, section 19-1.

Licensee shall mean the holder of, or a person that is required to hold, a certificate of public convenience and necessity for the operation of a limousine company, a taxi cab company, or a transportation network company issued pursuant to this chapter.

Limousine shall mean any motor vehicle equipped to carry up to fifteen (15) passengers that engage in transporting passengers for hire that has a Class C Charter Certificate issued by the South Carolina Office of Regulatory Staff, that accepts passengers exclusively on a pre-arranged basis, and which

remuneration is determined on an hourly basis. Limousines shall operate with limousine license plates and conform to the Federal Motor Vehicle Safety Standards for such vehicles and be equipped for operation on all public streets, roads, interstates and other highways; however, such term shall not be construed to include buses, taxi cabs or transportation network vehicles.

Manifest shall mean a daily record, prepared by the licensee or electronically, of all trips made by each limousine, taxi cab, or TNC vehicle owned, or operated on its behalf showing the time and place of origin, destination and time of delivery to destination, and the amount of the fare for each trip.

Night time hours shall mean the hours including and between midnight and 5:00 a.m.

Operation of a transportation network vehicle or *operating a transportation network vehicle* shall mean offering, making available, or using a transportation network vehicle to provide a transportation network service, including any time when a driver is logged onto the transportation network provider's internet-enabled application or digital platform showing that the driver is available to pick up passengers; when a passenger is in the vehicle; when the provider's records show that the vehicle is en route; or when the driver has accepted a ride request and is in route to provide a transportation network service to a passenger.

Owner shall mean any entity to which a certificate of public convenience and necessity for the operation of a business providing or arranging for transportation services for hire has been issued.

Passenger vehicle shall mean the traveling of two (2) or more persons by any mode of private passenger vehicle to any location incidental to another purpose of the vehicle operator for which compensation is neither accepted, collected, encouraged, promoted, or requested.

Peninsula shall mean the area bounded by Mount Pleasant Street to the North, the battery to the south, the Cooper River to the East, and the Ashley River to the west.

Person shall mean a natural person, corporation, trust, estate, partnership, incorporated or unincorporated association or any other legal entity.

Pick-up and drop-off zone shall mean an area, including metered areas, designated by appropriate sign or marking for the active loading or unloading of passengers, by passenger vehicles and vehicles operated pursuant to a rideshare service or for the parking of food delivery vehicles, not to exceed fifteen (15) minutes, between 6:00 p.m. and 3:00 a.m., unless otherwise designated by sign or marking.

Place of business in the City of Charleston shall mean a location within the City of Charleston where (1) the city may send, and the licensee shall accept, notices of hearing or other notices from the city; and (2) a place where records required by this chapter may be viewed and copied unless provided electronically within twelve (12) hours of a request.

Public vehicle for hire shall mean a limousine, taxi cab, or transportation network vehicle that has been endorsed, owned, leased or operated by a licensee, or vehicles operated pursuant to a rideshare service.

Rideshare driver means an individual who uses his or her personal passenger car, to provide transportation for passengers arranged through a rideshare service. This includes transportation network company drivers, or individuals who use or permit to be used their personal vehicle to provide transportation network company services. Such drivers need not be employees of a transportation network company.

Rideshare service means any person or entity that uses a digital network or Internet network to connect passengers to rideshare drivers for the purpose of prearranged transportation for hire or for donation. This includes transportation network companies, or corporations, partnerships, sole proprietorships, or other entities that use a digital network or other means to connect customers to transportation network company drivers for the purposes of providing transportation for compensation

including, but not limited to, payment, donation, or other item of value. The term shall not include emergency or nonemergency medical transports.

Taxi cab shall mean any motor vehicle equipped to carry less than fifteen (15) passengers, that engages in transporting passengers for hire, that has a Class C taxi certificate issued by the South Carolina Office of Regulatory Staff, that operates upon any public street, road or highway in the City of Charleston on call or demand, accepting or soliciting passengers indiscriminately for hire between such points along such street, road or highway as may be directed by the passenger so being transported, and which remuneration is determined on a per trip basis. Taxi cabs shall have taxi license plates. Taxi cabs shall conform to the Federal Motor Vehicle Safety Standards for such vehicle and is equipped for operation on all public streets, roads, and interstate and other highways; further provided, however, that such term shall not be construed to include buses, limousines, or transportation network company vehicles.

Taximeter shall mean an instrument or device attached to a taxi cab mechanically measuring the distance, time or zone unit upon which the fare to be charged the passenger shall be based, and recording by figures on the dial of the device the fare as it accrues.

TNC shall mean a transportation network company.

Transportation network company (TNC) shall mean a person or entities affiliated with drivers that provide transportation application services via one (1) unique transportation application system to connect endorsed drivers with passengers for the transport of passengers for compensation and meeting the licensing requirements and any other requirements under this chapter.

Waiting time shall mean all of the time when a limousine, taxi cab, or TNC vehicle is not in motion, occupied by a passenger, and the time consumed while standing at the direction of a passenger, or person who has engaged such public vehicle for hire.

(Ord. No. 2015-041, § 1, 4-28-15; Ord. No. 2024-066, § 4, 4-23-24; Ord. No. 2025-064, § 2, 4-22-25)

Secs. 31-37—31-40. Reserved.

DIVISION 2. CERTIFICATES OF OPERATION.

Sec. 31-41. Required.

No limousine company, taxi cab company, or TNC shall be licensed to do business in or use the streets of the city unless there shall have been approved by city council a certificate of public convenience and necessity therefor.
(Ord. No. 2015-041, § 1, 4-28-15)

Sec. 31-42. Application; contents.

All persons applying to the city council for a certificate of public convenience and necessity for the operation of one (1) or more limousine, taxi cab, or a TNC shall file with the city council a sworn application therefor, on forms provided by the traffic and transportation department stating as follows:

(1) The name and address of the owner, and in the event that the owner is a corporation, a certified copy of the articles of incorporation;

(2) The location of their place of business in the City of Charleston, the name of their agent, and an address and telephone number for their agent;

(3) The number of endorsed vehicles actually owned and the number of endorsed vehicles operating on behalf of such owner on the date of such application;

(4) The number of vehicles for which a certificate of public convenience and necessity is desired;

(5) The PSC/ORS certificate number and a copy of the ORS certificate of public convenience and necessity;

(6) The application fee as approved by city council; and

(7) Such other information as the city council may in its discretion require.

(Ord. No. 2015-041, § 1, 4-28-15)

Sec. 31-43. Report of traffic and transportation committee on application.

(1) No certificate required by this division shall be granted until the traffic and transportation committee of the city council shall report on the question of public convenience and necessity.

(2) In determining whether public convenience and necessity requires the licensing of a company offering public vehicles for hire or TNC services, consideration shall be given to the following:

a. Whether the demand of the public requires additional limousine, taxi cab, or TNC services;

b. The adequacy of existing mass transportation and limousine, taxi cab and TNC services;

c. The effect which such additional limousine, taxi cab, or TNC service may have upon traffic congestion and parking;

d. Whether the additional limousine, taxi cab, or TNC service will result in a greater hazard to the public;

e. Whether the company name or trade dress as it appears on the vehicle would cause confusion as to the type of business being operated or confusion with any existing business.

f. Such other relevant facts as may be deemed advisable or necessary, including but not limited to, the financial responsibility and experience of the business owner, the ability of the business owner to earn a fair return on the capital invested, and the number, kind, and type of equipment and the color scheme to be used.

(3) The burden of showing public convenience and necessity shall rest upon the applicant.
(Ord. No. 2015-041, § 1, 4-28-15)

Sec. 31-44. Continuance.

(1) Prior to the termination of each calendar year, the director of traffic and transportation may continue in full force and effect any certificate previously authorized by the traffic

and transportation committee under this division, for the ensuing year, in the absence of any evidence regarding the lack of qualifications of the owner of the certificate. Fee statements for the automatic renewal of the certificate will be postmarked by end of December and payment in full of the fees for the certificate are due on or about the 31st day of January.

(2) Whenever any information submitted on the application for a certificate of public convenience and necessity changes, the owner, within forty-eight (48) hours of the change, shall inform the traffic and transportation department of the change.
(Ord. No. 2015-041, § 1, 4-28-15)

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Sec. 31-45. Suspension or revocation by traffic and transportation committee.

(1) Certificates issued under this division may be suspended or revoked by the traffic and transportation committee at any time when:

a. The certificate holder's record of performance is unsatisfactory as evidenced by the issuance of five criminal citations in a year;

b. The certificate holder fails to operate his or her limousine company, taxi cab company, or TNC in accordance with the provisions of this chapter;

c. The limousine company, taxi cab company, or TNC charges or deducts a fare other than agreed upon or as provided by this chapter; or,

d. The owner's ORS certificate of public convenience and necessity is revoked or suspended.

(2) No certificate shall be revoked unless and until seven (7) days' notice of a hearing shall have been given to the holder of such certificate and such hearing is duly had thereon, such notice to contain the reasons for proposed suspension or revocation.

(3) Certificates which shall have been suspended or revoked by the traffic and transportation committee shall forthwith be surrendered to the director of traffic and transportation and the operation of any limousine, taxi cab, or TNC vehicle covered by such certificate shall cease immediately.
(Ord. No. 2015-041, § 1, 4-28-15)

Secs. 31-46—31-75. Reserved.

DIVISION 3. CHAUFFER'S LICENSES.

Sec. 31-76. Required.

No person shall drive a limousine, taxi cab or TNC endorsed vehicle within the city without first having obtained either a chauffer's license from the Charleston Police Department or a driver endorsement issued by a licensee.
(Ord. No. 2015-041, § 1, 4-28-15)

Sec. 31-77. Data required of applicant.

(1) Each applicant for chauffer's license issued by the City of Charleston shall make his or her application on forms to be provided by the police department. Such application shall be completed by the applicant with all requested information and shall be signed and sworn to by the applicant. Any false statement made by an applicant in applying for a chauffer's license shall invalidate the license issued to such applicant. The applicant must submit along with his chauffer's license application the following documents and information:

a. Signed statement from the applicant certifying that they do not have a documented or known physical or mental disability that would prevent them from safely operating a vehicle and performing the normal duties of a driver;

b. Documented results of a nationwide criminal records check conducted by the South Carolina State Law Enforcement Division, Federal Bureau of Investigation, or other entity as approved by the city;

c. A certified copy of their ten-year driving record through SCDMV;

d. Copy of current South Carolina Driver's License;

e. The name of their employer; and

f. The permit fee.

(2) Each licensee who requests to endorse their drivers in lieu of the city's licensing process shall certify to the police department that their driver endorsement process shall include at a minimum:

a. Signed medical statement from the applicant certifying that they do not have a documented or known physical or mental disability that would prevent them from safely operating a vehicle and performing the normal duties of a driver;

b. A ten-year criminal background check using a National Association of Professional Background Screeners accredited agency;

c. A ten-year driver's license check from every state issuing a driver's license to the applicant; and

d. A national sex offender registry search.

(Ord. No. 2015-041, § 1, 4-28-15; Ord. No. 2020-053, § 1, 4-28-20)

Sec. 31-78. Qualifications of applicant.

Each applicant for a chauffer's license or driver endorsement shall meet the following requirements:

(1) Be at least eighteen (18) years of age:

(2) Be clean in dress and person;

(3) Shall have no felony convictions in the last ten (10) years; shall have no non-traffic gross misdemeanor or misdemeanor convictions in the last ten (10) years involving the use or threat of use of force, possession or sale of a controlled substance, prostitution, or indecent conduct;

(4) Shall have a driving record meeting the following standards:

a. No convictions in the last ten (10) years for any of the following offenses involving injury or death; no convictions in the last ten (10) years for any of the following offenses not involving injury or death:

1. Hit and run;

2. Driving under the influence of an alcoholic beverage or drug; or,

3. Reckless or careless driving;

b. For original endorsement: No more than four (4) moving violations within the last three (3) years, and no more than two (2) moving violations in the last year;

c. For annual endorsement renewal: No more than four (4) moving violations within the last three (3) years and no more than two (2) moving violations in the last year;

(5) Shall have at least one (1) year's driving experience as a licensed driver;

(6) Has certified to the endorser that they do not have a documented or known physical or mental disability that would prevent them from safely operating a vehicle and performing the normal duties of a driver; and,

(7) Has not had a driver's license or commercial driver's license suspended, revoked or non-renewed by a city or state within the five (5) years immediately preceding their application to be a driver.

(Ord. No. 2015-041, § 1, 4-28-15)

Sec. 31-79. Grounds for refusal by the police department or a certifying licensee.

The police department or a licensee shall refuse to grant or renew a chauffer's license or driver endorsement in the case of an application from any person:

a. Whose state automobile operator's license or whose chauffer's license or driver endorsement to operate a public vehicle for hire has been suspended, revoked, or has expired;

b. Who is required to register as a sex offender;

c. Who shall have previously been convicted of driving an automobile resulting in death to any person during the past ten (10) years;

d. Who has been a habitual violator of traffic laws or a habitual user of intoxicating liquors or narcotic drugs during the past ten (10) years;

e. Who shall have been convicted of a violation of any law, state or federal, relating to the possession with intent to distribute, sale or trafficking of narcotic drugs during the past ten (10) years;

f. Who shall have been convicted, during the past ten (10) years. of a violation of law. state or federal, which is considered to be a violent crime as defined under South Carolina law as amended from time to time;

g. Who shall have been convicted of driving a motor vehicle while intoxicated during the past five (5) years; or

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h. Who shall have been convicted, during the previous five (5) years, of any other violation of law, state or federal, which offense carries a minimum term of imprisonment of more than one (1) year.

(Ord. No. 2015-041, § 1, 4-28-15)

Sec. 31-80. Issuance; term.

Should the police department find that the applicant for a chauffer's license has satisfactorily complied with all the conditions of this division, he shall issue to him or her the appropriate license. Should a licensee find that an applicant for a driver's endorsement meets all of the requirements of this division: the licensee shall issue to him or her a driver endorsement. Chauffer licenses and driver endorsements shall expire one year from the date they are granted or automatically when the driver's employment terminates with the licensee for whom the endorsement was issued for or by.

(Ord. No. 2015-041, § 1, 4-28-15)

Sec. 31-81. Fees for new permits, renewals, transfers, replacements.

All applicants for a chauffer's license or driver's endorsement shall pay to the revenue collections department a fee in accordance with the schedule of fees approved by city council from time to time for the renewal, transfer, or replacement of such license or endorsement.

(Ord. No. 2015-041, § 1, 4-28-15)

Sec. 31-82. Contents; display in vehicle or on person.

Chauffer licenses and driver endorsements shall be maintained on the driver at all times while the driver is operating a vehicle for hire. The driver shall be required to present their chauffer license or driver endorsement upon request for inspection by a passenger, a police officer, or the traffic and transportation department. Driver endorsements and chauffer's licenses shall have the driver's photograph, driver's name, company name endorsing or employing the driver, and the expiration date of the license or endorsement.

(Ord. No. 2015-041, § 1, 4-28-15)

Sec. 31-83. Suspension, revocation, and surrender.

(1) The City of Charleston police department and its designee shall have the authority to suspend any driver and require the surrender of his chauffer's license or driver's endorsement for a period not to exceed sixty (60) days for a violation of this chapter or any ordinance dealing with public safety or public morals, or for making any false statement in his or her application for a chauffer's license.

(2) The police department and its designee shall revoke a chauffer's license or driver endorsement if the person holding such license or endorsement becomes ineligible for a license or endorsement under any of the grounds set out in 31-78 or is convicted of any of the following:

a. Petit larceny;

b. Two (2) charges of reckless driving within the preceding twelve (12) months;

c. Charging and collecting for any transportation service a sum in excess of the lawful rates therefor; or,

d. Three (3) charges of violating any other provisions of this chapter as now in effect or as may be hereafter amended and put into effect, all within the preceding twelve (12) months.

(3) The police department, except in the cases set forth in paragraph (2) of this section where the revocation is mandatory, after due hearing and upon not less than five (5) days' notice in writing to the driver, such notice to be sent by registered letter to the address given by the driver when applying for such license, or if an endorsed vehicle driver to the company endorsing the driver which shall constitute sufficient form of notice, may suspend, pursuant to paragraph (1) of this section, the chauffer's license or driver endorsement of any person. for good cause shown.

(4) In the event of such revocation or suspension of such license or endorsement, the chauffer's license or driver endorsement shall be forthwith null and void, and in case of suspension only, the license or endorsement shall be restored to the driver at the expiration of the period of suspension. In the event of a second

suspension for the same cause or of a third suspension for any cause, the police department shall revoke the license or driver endorsement. Each such suspension shall be noted on the chauffer's license or driver endorsement.

(5) No person whose chauffer's license or driver endorsement has been revoked shall again be issued a chauffer's license or driver endorsement unless upon the presentation of reasons satisfactory to the police department as to why a new chauffer's license or driver endorsement should be issued.
(Ord. No. 2015-041, § 1, 4-28-15)

Sec. 31-84. Appeals from decision of police department.

Any person aggrieved by the action of the police department in the denial or the revocation of a chauffer's license or driver endorsement shall have the right to appeal to the traffic and transportation committee by filing with the city's clerk of council a petition in writing setting forth plainly, fully, and distinctly why the decision is contrary to law. The appeal shall be filed within thirty (30) days after the affected party receives notice of the decision of the police department. The sole issue before the committee shall be whether the police department abused their discretion in denying the permit.

Any person whose appeal for a chauffer's license or driver endorsement has been denied by the traffic and transportation committee shall wait one year from the date of denial by the committee before reapplying for another chauffer license or driver endorsement.
(Ord. No. 2015-041, § 1, 4-28-15)

Secs. 31-85—31-100. Reserved.

DIVISION 4. INSURANCE REQUIREMENTS

Sec. 31-101. Liability insurance policy required.

Before the issuance of a certificate of public convenience and necessity, the licensee must provide and have accepted by the city evidence of an insurance policy or surety bond from an insurance

company licensed and admitted to do business in South Carolina, an eligible surplus lines insurer pursuant to S.C. Code Section 38-45-90, or self-insurance in the amounts prescribed and the conditions required by state law, as amended from time to time.
(Ord. No. 2015-041, § 1, 4-28-15)

Sec. 31-102. Effect of policy cancellation.

(1) In the event of cancellation of the policy of insurance or bond, as required in section 31-101, the certificate of public convenience and necessity, as provided in division 2. shall become null and void and shall immediately be surrendered by the owner of the company to the director of traffic and transportation, and the operation of any vehicle licensed or endorsed to operate under that certificate is automatically revoked. The failure to surrender such certificate of public convenience and necessity or the continuation of a vehicle operating under a revoked certificate shall be violation of this chapter.

(2) Such cancellation shall not relieve the insurance or bonding company of liability from any injury or damage happening before such cancellation becomes effective.
(Ord. No. 2015-041, § 1, 4-28-15)

Secs. 31-103—31-113. Reserved.

DIVISION 5. VEHICLE REGISTRATION

Sec. 31-114. Vehicle registration.

No person shall operate a limousine, taxi cab, or a TNC endorsed vehicle until such vehicle has been registered in accordance with all of the requirements of the state and until all proper licenses, including a City of Charleston business license shall have been obtained therefor.
(Ord. No. 2015-041, § 1, 4-28-15)

Sec. 31-115. Proof of registration.

All vehicles registered with the revenue collection department shall display on their rear window a certificate of operation

sticker issued by the city's revenue collection department. Such certificate of operation sticker shall be issued after receipt of proof of compliance with all of the licensing requirements of this chapter and payment of the business license fee.
(Ord. No. 2015-041, § 1, 4-28-15)

Secs. 31-116—31-126. Reserved.

DIVISION 6. VEHICLE REQUIREMENTS

Sec. 31-127. Compliance with chapter prerequisite to operating a public vehicle for hire.

No person shall operate a vehicle as a limousine, a taxi cab or a TNC endorsed vehicle unless it conforms to all the provisions of this division.
(Ord. No. 2015-041, § 1, 4-28-15)

Sec. 31-128. Vehicle inspection.

Prior to using any public vehicle for hire and annually thereafter, a licensee or a driver of a public vehicle for hire shall have the vehicle inspected by an ASE-certified mechanic. Drivers are required to maintain complete documentation of such inspections in their vehicle at all times, and a written copy of such documentation shall be made available for review by the licensing official upon request. To pass a vehicles inspection, a vehicle shall, at a minimum, be rust-free, damage-free, and pass an inspection of the vehicle components identified on an approved vehicle inspection form provided by the city.
(Ord. No. 2015-041, § 1, 4-28-15)

Sec. 31-129. Inspection.

(1) The director of traffic and transportation and the chief of police shall have the right, at any time, after displaying proper identification, to enter into or upon any vehicle for hire for the purpose of ascertaining whether or not any of the provisions of this chapter are being violated.

(2) Any public vehicle for hire found by the driver or licensee, upon inspection, to be unsafe for operation shall have such repairs and alterations made as may be required, and shall not operate or cause or permit to be operated any such vehicle until all such repairs and alterations have been completed.

(3) Notwithstanding paragraph (1) of this section, no public vehicle for hire which has: visible dents on any body panels, broken glass on any windows or mirrors, or visible unpainted body filler shall be used to transport passengers.

(4) Any public vehicle for hire which is found, after inspection, to be unsafe or in any way unsuitable for service may be immediately ordered out of service by the chief of police or the director of traffic and transportation and before again being placed in service, such vehicle shall be re-inspected and approved by the chief of police or the director of traffic and transportation for service.
(Ord. No. 2015-041, § 1, 4-28-15)

Sec. 31-130. Trade dress.

A public vehicle for hire shall display, as approved by the licensing official, a consistent and distinctive paint scheme, signage, emblem, or wrap at all times while a public vehicle for hire is being operated on the public right of way. The distinctive paint scheme, signage, emblem, or wrap shall be sufficiently large and color contrasted:

a. As to be readable from the front and the rear of the vehicle during daylight hours at a distance of at least fifty (50) feet; and

b. Reflective, illuminated or otherwise patently visible so as to be seen in darkness from both the front and the rear of vehicle, and to identify that a particular vehicle is associated with a particular licensee.

Acceptable forms of distinctive trade dress include, but are not limited to. symbols, decals, or signs on vehicle doors, windows,

roofs, or grilles. Magnetic or temporary trade dress shall not be acceptable. Licensees shall file an illustration of their distinctive trade dress with the license official.
(Ord. No. 2015-041, § 1, 4-28-15)

Secs. 31-131—31-140. Reserved.

DIVISION 7. GENERAL RULES REGARDING SERVICE AND OPERATION

Sec. 31-141. Minimum standards of service

(1) It shall be unlawful for any person to refuse to pay for a public vehicle for hire.

(2) Upon demand, the driver of a public vehicle for hire shall issue a receipt for the full fare charged any passenger.

(3) No driver of any public vehicle for hire shall lay hold upon or take possession of any trunk, baggage or any other article belonging to any traveler or person without the consent of the owner of such trunks, baggage or other article.

(4) No vehicle for hire, other than a taxi cab, may engage in cruising. Cruising shall mean the driving, parking, stopping, or standing of a limousine or TNC endorsed vehicle on the streets, alleys, or other public property for the purpose of attracting/soliciting passengers.

(5) No vehicle for hire shall be operated except by a driver who possesses a valid chauffer's license or a driver endorsement as set forth in division 3 herein.

(6) No driver shall deceive, or attempt to deceive, any passenger who may ride in his vehicle, or who may desire to ride in his vehicle, as to his destination or the rate of fare to be charged.

(7) No driver shall knowingly convey any passenger, or cause him to be conveyed, to a place other than directed by him.

(8) No driver shall take a longer route to his destination than is necessary unless so requested by a passenger.

(9) All drivers shall comply with all reasonable and lawful requests of their passengers as to the speed of travel and the route to be taken.

(10) Except for a taxi driver, no driver shall solicit passengers when sitting in the driver's compartment of their vehicle or while standing immediately adjacent to the curb side thereof.

(11) No driver shall solicit patronage in a loud or annoying tone of voice, nor shall any driver annoy any person by any sign or in any manner, nor shall any driver obstruct the movement of any person or follow any person for the purpose of soliciting patronage.

(12) No owner, driver, or any other person shall solicit the patronage of persons assembled at the terminal of any common carrier, nor at any intermediate points along any established route of such carrier, when such persons have assembled for the purpose of using the service of such common carrier. Nothing in this section shall be construed to prohibit or interfere with a response to any call for a public vehicle for hire made by a pedestrian.

(13) Drivers of public vehicles for hire shall not receive or discharge passengers in the roadway, but shall pull up to the sidewalk on the right-hand side of the roadway, or in the absence of a sidewalk, to the right-hand side of the roadway and there receive or discharge passengers.

(14) No driver shall permit the number of persons to be carried in a public vehicle for hire at any one (1) time to exceed the amount of passengers specified by the vehicle manufacturer's original specifications without modification. Further, the driver and every occupant of the motor vehicle, when it is being operated on the public streets and highways of the City of Charleston, shall wear a fastened safety belt which complies with all applicable provisions of the Code of Laws of South Carolina, 1976, § 56-5-6520 (Mandatory Use of Seatbelts as amended.

(15) Whenever any taxi cab is occupied by a passenger, the driver may permit other persons to occupy or ride in the taxi cab from the original point of departure, unless the original passenger objects thereto.

(16) It shall be unlawful for any person to transport in a motor vehicle used in the transportation of passengers for hire, any alcoholic beverages. This section shall not apply to alcoholic beverages belonging to a passenger being transported when such alcoholic beverages are in the baggage of such passenger.
(Ord. No. 2015-041, § 1, 4-28-15)

Sec. 31-142. Driver's manifests to be prepared and preserved.

(1) Every driver or licensee shall maintain a daily manifest upon which is recorded every trip made each day. Such manifest shall show the time and place of origin, the time and place of destination, and the amount of the fare.

(2) Daily manifests are required to be kept for at least six (6) months and they shall be made available for inspection upon demand to the director of traffic and transportation, the city police, and the city council.
(Ord. No. 2015-041, § 1, 4-28-15)

Sec. 31-143. General rules of operation.

(1) Every public vehicle for hire shall be operated in accordance with the laws of the state, this Code, and the other ordinances of the city and with due regard for the safety, comfort, and convenience of passengers and for the safe and careful transportation of property and for the safety of the general public.

(2) No vehicle for hire shall be operated in such a manner or in such a condition, when in the opinion of the director of traffic and transportation or the chief of police such operation would endanger, or be likely to endanger, the safety of passengers, pedestrians, vehicles, or the property of others.
(Ord. No. 2015-041, § 1, 4-28-15)

Secs. 31-144—31-166. Reserved.

DIVISION 8. METERS AND FARES

Sec. 31-167. Meters—Use of; required specifications.

(1) All charges for taxi cab service shall be calculated by taximeter rates. All taxi cabs shall be equipped with taximeters which shall display, in a conspicuous place in the taxi cab as

approved by the director of traffic and transportation, the maximum fee that shall be charged to the passenger(s). All taxi cab drivers shall be required to activate the meter and charge no more than the maximum rates permitted pursuant to when transporting passenger(s).

(2) Every taxi cab is required to display a rate card in a conspicuous place within the vehicle where it may be easily and conveniently read by any passenger which upon it shall be printed in plain legible type the name of the owner of such taxi, the driver's name, and the rates charged by the taxi cab company.

(3) Every limousine, taxi cab and TNC vehicle is required to display either in their vehicles, on their web page, or on their vehicle mobile reservation platform information regarding regulatory inquiries or where to file a complaint. The information posted shall in addition to the licensee's contact information include the area code and phone number of the City of Charleston's process and service improvement division.
(Ord. No. 2015-041, § 1, 4-28-15)

Sec. 31-168. Taximeters to be kept accurate.

It shall be the duty of every licensee and driver using any meter to at all times to keep the meter accurate and calibrated with the authorized rates provided herein and sealed by a certified dealer.
(Ord. No. 2015-041, § 1, 4-28-15)

Sec. 31-169. Inspection of meters.

Meters shall be subject to inspection from time to time by the director of traffic and transportation and/or the chief of police.
(Ord. No. 2015-041, § 1, 4-28-15)

Sec. 31-170. Indication of status of taxi cab by flag.

It shall be unlawful for any taxi cab driver, while carrying passengers, to display the flag attached to the meter in such position as to denote that such vehicle is not employed, or to fail

to throw the flag of the meter to a position indicating that such vehicle is unemployed at the termination of each and every trip or drive.
(Ord. No. 2015-041, § 1, 4-28-15)

Sec. 31-171. Certain meters and uses prohibited.

No meter shall be used whose mechanism will register a combined charge for mileage and waiting time in any single position, and no meter shall be so operated as to cause any charge to be registered thereon except during the time the vehicle for hire is engaged by a passenger.
(Ord. No. 2015-041, § 1, 4-28-15)

Sec. 31-172. Metered rates and fares

(1) No taxi cab operator shall charge any passenger more than the rate for transportation or waiting time as determined and prescribed by the city council which is hereby declared to be as follows:

a. The maximum rates to be charged for day time taxi cab service on the peninsula shall be as follows:

    1. There shall be a seven-dollar ($7.00) flat rate fee for all trips that pick up and discharge on the peninsula.

    2. For peninsula trips with more than one (1) passenger, a one-dollar ($1.00) per trip surcharge is permitted to be charged to each additional passenger after the first passenger.

b. The maximum rates to be charged for day time taxi cab service outside of the peninsula shall be as follows:

    1. For the first two (2) miles, or fraction thereof, five dollars and no cents ($5.00); for each succeeding one-fifth (1/5) mile or fraction thereof, fifty cents ($0.50).

    2. A one-dollar ($1.00) surcharge may be charged per passenger per trip above the first passenger.

3. Day time hours are defined as the hours including and between 5:00 a.m. and midnight.

c. During night time hours, the maximum rate that may be charged (MRC) shall be one hundred percent of the maximum daily metered rate that may be charged for the same trip.

1. Night time hours are defined as the hours including and between 12:01 a.m. and 4:59 a. m.

d. Gas surcharge.

1. A gas surcharge shall be permitted to be charged per trip at the following amounts:

Gas Price	*Surcharge*
$3.00	$0.50
$3.50	$1.00
$4.00	$1.50
$4.50	$2.00
$5.00	$2.50
$6.00	$3.00
$6.50	$3.50

2. The "gas price" shall be as determined by Carolina Triple A. It shall be the duty of every driver to verify the gas price.

3. When the surcharge is in effect, the driver shall post a notice in a conspicuous place stating the amount of the surcharge and that the surcharge is in effect.

(2) For each one and one (1) minute of waiting time, a charge of twenty cents ($0.20) may be made, with no free minutes. This is equal to twelve dollars ($12.00) per hour. Charges for baggage shall be as follows:

1. Fifty cents ($0.50) for each additional bag after the first three (3) bags;

2. One dollar ($1.00) for each foot locker (average weight sixty (60)—seventy (70) pounds);

3. One dollar ($1.00) for each duffle bag (average weight sixty (60) pounds).

(3) For transportation of passengers in a taxi cab within the city limits and city controlled property, the above rates shall be applicable. When two (2) or more passengers, bona fide traveling together, engage a public vehicle to different destinations, the charge shall be made as if the vehicle was hired by one (1) passenger for the last destination.

(4) For the purpose of this section, "waiting time" shall mean the time consumed while a vehicle for hire is not in motion at the direction of a passenger and also the time consumed while the driver is waiting for a passenger after having responded to a call; but no charge shall be made for the time consumed by a premature response to a call, or for the first three (3) minutes following timely arrival at any location in response to a call or for the time lost through traffic interruptions or for delays caused by the inefficiency of the vehicle for hire or its driver.

(5) If a transportation company, other than a taxi cab, elects to use a pricing structure other than the pricing structure filed with the office of regulatory staff, the company shall inform the rider in advance of the change in pricing structure, if the proposed trip will be subject to a change in pricing, and the amount of the fare before the rider elects to use the service.

(6) TNCs may set their own fares. They must comply, however, with the fare transparency provisions required by law. A company that uses a digital dispatch service must disclose the fare calculation method, the applicable rates being charged, and the option for an estimated fare.

(7) Fares may be reviewed by the committee on traffic and transportation annually.
(Ord. No. 2015-041, § 1, 4-28-15)

Sec. 31-173. Fares posted.

Fares for taxi cabs shall be prominently displayed on the rear door or rear quarter panel of each side of every vehicle. Each letter used in the display on the side of the vehicle shall be no smaller than one-half (½) inch in height and width.
(Ord. No. 2015-041, § 1, 4-28-15)

Sec. 31-174. Fares for baggage.

No extra charges shall be made for the transportation of ordinary hand baggage carried by passengers. More than three (3) bags or parcels per person shall not be construed to be ordinary hand baggage, and a reasonable charge may be made for such excess baggage. Trunks and other bulky packages not ordinarily construed to be hand baggage may also be charged a reasonable fee. Baggage fees may only be charged at an established rate, as printed on the rate card, and then only if accompanied by a passenger or passengers.
(Ord. No. 2015-041, § 1, 4-28-15)

Sec. 31-175. Severability.

The provisions of this chapter are declared to be severable. If any article. section, sentence, clause, or phrase of the chapter shall for any reason be held to be invalid, unconstitutional by a court of competent jurisdiction, or pre-empted by state law, such decision or legislation shall not affect the remaining articles, sections, sentences, clauses and phrases of this chapter, but they shall remain in effect, it being the legislative intent that this chapter shall remain in effect notwithstanding the invalidity of any part.
(Ord. No. 2015-041, § 1, 4-28-15)

Secs. 31-176—31-210. Reserved.

DIVISION 9. PICK-UP AND DROP-OFF ZONES*

Sec. 31-211. Findings.

(a) City council finds that the use of the public streets and rights-of-way for active passenger loading and unloading services provides a public benefit; however, such use may also impede travel, interfere with the rights of others using the streets and public rights-of-way, affect the public safety, and create a public

*__Editor's note—__Ord. No. 2024-066, § 5, adopted April 23, 2024, changed the title of Div. 9 from "Taxi Cab Stands" to read as herein set out.

nuisance. Therefore, use of authorized pick-up and drop-off zones is a special privilege, not a matter of right, subject to the regulations in this Code.

(b) After the bars and social establishments close, patrons exit out onto the public rights-of-way; many in search of transportation.

(c) The city is interested in creating an orderly process to increase authorized pick-up and drop-off zone availability and organization in certain areas of the city during this time period. (Ord. No. 2015-041, § 1, 4-28-15; Ord. No. 2024-066, § 5, 4-23-24)

Sec. 31-212. Pick-up and drop-off zones, no pick-up zones—Creation and rules.

(a) The traffic and transportation department is hereby authorized and empowered to establish pick-up and drop-off zones in such place or places upon the streets of the city as may be deemed necessary for the use and convenience of the general public. The Charleston police department is authorized and empowered to establish no pick-up zones in such place or places upon the streets of the city as may be deemed necessary for the safety of pedestrians, and shall make recommendations to the traffic and transportation department regarding the establishment of pick-up and drop-off zones.

(b) The traffic and transportation department shall, in consideration of the need for such pick-up and drop-off zones and the convenience to the general public, prescribe the dimensions of said pick-up and drop-off zones by which to accommodate the number of vehicles that shall occupy an established pick-up and drop-off zone. Maps displaying authorized pick-up and drop-off zones and no pick-up zones, as may be amended from time to time, shall be published online at the City of Charleston's website.

(c) Pick-up and drop-off zones shall be used by rideshare drivers and drivers of passenger vehicles on a first come first served basis. Rideshare drivers and drivers of passenger vehicles shall pull into the pick-up and drop-off zone from the rear and

shall advance forward as the vehicles ahead pull out. Rideshare drivers and drivers of passenger vehicles waiting for passengers shall idle near the curb so as to allow a clear path of entry to and exit from the passenger zone for other drivers. It shall be unlawful for any vehicle to occupy or use a pick-up and drop-off zone, except for passenger vehicles and vehicles operated pursuant to a rideshare service.

(d) It shall be unlawful for any vehicle to park, stop, or stand in areas designated as no pickup zones on such maps published by the City of Charleston Police Department, except that riders with disabilities may request accommodation to modify drop-off/pick-up locations via direct communication with drivers.

(Ord. No. 2015-041, § 1, 4-28-15; Ord. No. 2016-149, § 1, 11-22-16; Ord. No. 2024-066, § 6, 4-23-24; Ord. No. 2025-064, § 3, 4-22-25)

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Chapter 54

ZONING

(RESERVED)*

*__Editor's note—__Ord. No. 1996-110, adopted June 18, 1996, enacted new zoning regulations for the city. The zoning regulations are published by the city as a separate volume, Zoning Ordinance of the City of Charleston, and are also available on the Internet.

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CODE COMPARATIVE TABLE

1975 CODE

This table gives the location within this Code of those sections of the 1975 Code, which are included herein. Sections of the 1975 Code not listed herein have been omitted as repealed, superseded, obsolete or not of a general and permanent nature. For the location of ordinances adopted subsequently thereto, see the table immediately following this table.

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ORDINANCES

This table gives the location within this Code, of those ordinances adopted since the 1975 Code, which are listed herein. Ordinances adopted prior to such date were incorporated into the 1975 Code, a table of which immediately precedes this table. Ordinances not listed herein have been omitted as repealed, superseded, or not of a general and permanent nature.

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1991-140	11-12-90	1		23-67
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